

**Ontario Rental
Housing Tribunal**

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Tribunal du logement
de l'Ontario**

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Tél: (416) 585-7295
Télécopieur: (416) 585-6363



**TO THE HONOURABLE TONY CLEMENT,
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING**

MINISTER:

I have the honour to submit for your approval the Ontario Rental Housing Tribunal's Annual Report for the 1998/99 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Chisanga Puta-Chekwe".

Chisanga Puta-Chekwe
Chair
Ontario Rental Housing Tribunal



Chair's Message

The *Tenant Protection Act* was proclaimed into law on June 17, 1998 and ushered in a number of changes in the statutory rights and obligations of residential landlords and tenants. It also created a new administrative Tribunal to adjudicate and mediate landlord and tenant disputes over these rights and obligations.

Thanks to a large number of dedicated public servants, primarily in the ministries of Municipal Affairs and Housing and the Attorney General, the Tribunal was able to open its doors and immediately provide service to the public on June 17, performing duties and functions which, until the day before, had been performed by different parts of different ministries.

The establishment of the Tribunal was a daunting, yet invigorating challenge. A major goal of the Government was to speed up and simplify the process of resolving landlord and tenant disputes. This was accomplished through changes in legislation and also by a major re-engineering of administrative procedures and practices.

Effective management of the Tribunal's anticipated application workload is a key element toward meeting this goal. The Tribunal customized a software system and installed it in its eight District Offices and 12 Client Service Offices across the province. During the next year, the Tribunal will be improving this system and offering a service to allow clients to file applications using the internet and have access to the information on their cases through interactive voice recognition software.

A review of the Tribunal's operations has been completed and offers us a number of innovative ways in which we can continue to streamline our workload while providing our client base with the best possible customer service.

We have enjoyed our first year of operation and believe that the coming years will allow us to become even better equipped to provide excellent service to the people of Ontario.

Sincerely,

A handwritten signature in black ink, appearing to read 'Chisanga Puta-Chekwe'. The signature is stylized with a large, sweeping flourish at the end.

Chisanga Puta-Chekwe, Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

On June 17, 1998, The *Tenant Protection Act*, commonly known as the TPA, was proclaimed.

The TPA brought together six pieces of legislation that formerly governed the relationship between landlords and tenants, plus the Ontario Building Code and the Planning Act. The result is a comprehensive package that balances the rights of tenants and landlords.

The four primary objectives of the TPA are:

- ⇒ To simplify the relationship between landlords and tenants
- ⇒ To balance the needs of landlords and tenants
- ⇒ To create an efficient process that deals with disputes quickly
- ⇒ To create a cost-efficient process

Under the previous legislation, disputes between landlords and tenants were settled through the provincial court system. The formality of the court system and the associated high costs, as well as the length of time it took to resolve some disputes offered exciting challenges to the Ontario Rental Housing Tribunal.

As well, the previous legislation had a separate system, Rent Control Programs, that oversaw the regulation of rent increases and provided information resources for tenants and landlords. The need to provide a one-window service to tenants and landlords was clear. As a result, the *Tenant Protection Act* consolidates the two systems and created an independent, quasi-judicial agency - the Ontario Rental Housing Tribunal.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- ⇒ Resolve tenant and landlord disputes through either mediation or adjudication
- ⇒ Regulate rent increases in rental accommodations
- ⇒ Provide landlords and tenants with information about their rights and obligations

Landlords and tenants now have a forum that focuses solely on residential rental accommodation issues and a process that is faster and more efficient for resolving their issues.

The Adjudication Process

The Tribunal was designed to create a more informal environment. Under the adjudication process:

- ⇒ Disputes are heard in public buildings instead of courtrooms
- ⇒ Tenants may choose to represent themselves and may consult an on-site Legal Aid representative
- ⇒ The more conciliatory approach of mediation is encouraged before the hearing process begins or during the hearing if the adjudicator feels that the matter may be resolved easily

The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues.

Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview process.

Locations

The Ontario Rental Housing Tribunal has eight District Offices located across the province. The District Offices are the main processing offices of the Tribunal and where many of the Tribunal's hearings are held. The Tribunal holds hearings in the area that is most convenient to the landlords and tenants who reside in the residential complex that is part of the application.

The District Offices are located in the following areas:

- London
- Hamilton
- Toronto South (56 Wellesley Avenue)
- Toronto North (North York)
- Toronto East (Scarborough)
- Ottawa
- Sudbury

The Client Service Offices are offices where applications can be filed, Customer Service Representatives are available to answer questions and where hearings are held when convenient to both parties.

The Client Service Offices are located in the following areas:

- | | |
|-----------------|------------------|
| → Windsor | → Etobicoke |
| → Thunder Bay | → North Bay |
| → Kingston | → St. Catharines |
| → Timmins | → Peterborough |
| → Durham/Whitby | → Barrie |
| → Owen Sound | → Kitchener |

There are also 31 Data Filing Centres across the province where landlords or tenants can file their applications and pick up information about the Tribunal. In

total, the Tribunal has a network of offices that essentially covers each of the county seats in the province.

Call Centre

The Tribunal has implemented a call centre for handling customer inquiries. This is a toll-free number (1-888-332-3234) which operates 24 hours a day, seven days a week. A customer service operator is available during normal business hours, but an extensive telephone script answers our most frequently asked questions about the *Tenant Protection Act*.

During our first year of operation, the Tribunal responded to 847,149 telephone calls, approximately 3,200 each day. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of our 30 public education brochures. Our brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages; Tamil, Portuguese, Spanish, Punjabi, Italian, Chinese and Polish.

The Tribunal has its own website (orht.gov.on.ca) and responds to between 40 and 50 E-mail inquiries a week. All forms are available on the internet as well as through each District and Client Service Office.

STAFF OF THE TRIBUNAL

The Tribunal employs 282 staff and members. The three main categories include adjudicators, mediators and customer service representatives.

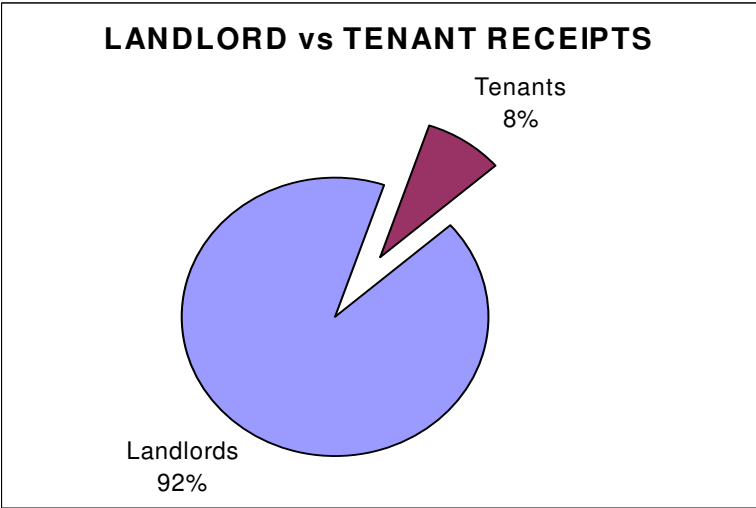
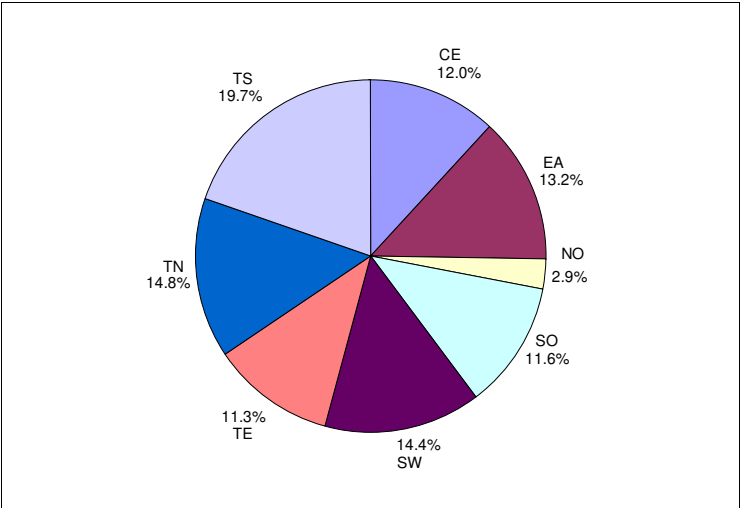
- The members of the Tribunal are appointed by the Lieutenant Governor in Council. An adjudicator reviews landlord and tenant disputes and rules on the basis of the evidence provided by the parties and in accordance with the *Tenant Protection Act*.
- Mediators use both their knowledge of rent regulation and negotiation skills to assist landlords and tenants in resolving their applications and their concerns before the hearing. Mediation is offered under the Tribunal's legislation and is often used to clarify issues and settle disputes so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in content than Tribunal orders. This often aids parties in reaching a satisfactory conclusion to their difficulties.
- Customer Service Representatives are the Tribunal's front-line contact for drop-in customers and for telephone inquiries. Customer Service Representatives assist both tenants and landlords with completion of their applications and provide information on their rights and responsibilities.

Statistical Information for the First Year of Operations

The Tribunal’s first year of operations has been a productive one. Based on previous receipt trends from the Courts, the Tribunal anticipated approximately 65,000 applications during its first year of operation. In fact, the Tribunal received 59,894 applications, or 93% of the forecast.

Total receipts for the first year of operation under the TPA had the following profiles.

(CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwestern; TE to Toronto East; TN to Toronto North and TS to Toronto South;)



76% of the applications received by the Tribunal were for termination of tenancies because of arrears of rent. This translates into 83% of the landlord applications. Tenant applications for rent rebates, rent reductions and violations of tenants' rights accounted for 5.8% of the applications filed during the Tribunal's first year of operation.

Above Guideline Increase Applications

An average of 251 applications for Above Guideline Increases was received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for Above Guideline Increases were filed. This increase was due to the provision in the Act for transitional capital expenditures and is not expected to continue. In the future, receipts of these Above Guideline Increase applications should fall to approximately 300 filings annually.

Harassment Applications

Tenants can make application to the Tribunal at no charge if they believe that their landlord has been harassing them and they wish to obtain relief. The Tribunal received 1,789 applications involving harassment in its first year of operation. Harassment application receipts were received by the districts proportionally to their total application workload. Of the 1,789 applications received, 320 remained outstanding at the end of the first year of operations.

Mediation

Our mediation efforts provide an alternative way of resolving disputes for clients and fosters communication between parties. Where mediation takes place beforehand, clients often resolve issues during the mediation which can actually reduce the length of the hearing and benefit both the client and our members.

Mediation was attempted in 17,900 cases. Mediators facilitated 14, 313 settlements or approximately 17% of the total resolutions during the year. As well, mediation efforts contributed to the withdrawal of almost 500 applications or motions.

During the next year of the Tribunal's operations, we will focus on improving these statistics by concentrating the mediators' efforts on more difficult and time consuming applications such as rent reduction, harassment and serious impairment of the safety of the other residents in a complex

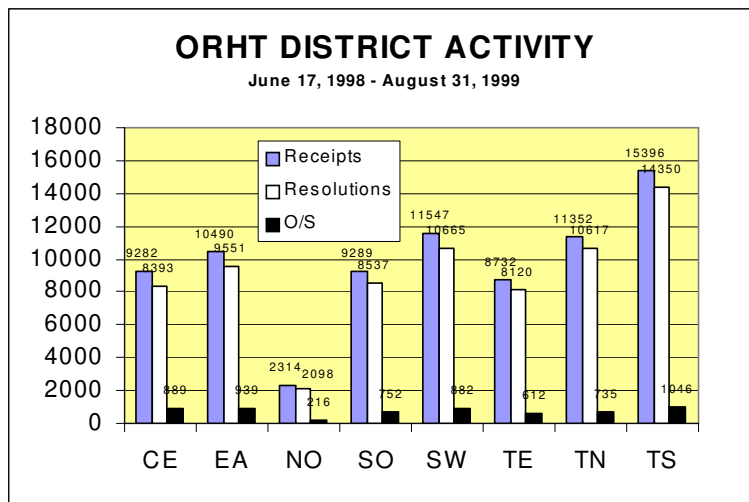
Reviews of Orders

The Tribunal received approximately 1,850 requests for review in its first year. These requests were related to 1,755 cases for a review rate of 3.6% of original orders. The Southwestern District has the lowest request for review rate at 2.5%, while the Central District Office has the highest at about 4.7%.

APPLICATION RESOLUTION

The Tribunal has been quite successful in resolving applications and not creating a backlog during our first year of operations. We have aimed for resolving one month's workload each month so that the outstanding balance is never greater than one month's receipts.

The chart below will indicate how receipts and resolutions have remained fairly constant during the year.



CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwestern; TE to Toronto East; TN to Toronto North and TS to Toronto South.)

Telephone Inquiries

The Tribunal's provincial inquiry telephone system received a total of 847,149 telephone calls from clients during the first year of operation. This translated into a monthly average of 70,596. 774,857 calls (91.5%) were received during business hours. Monday continues to be the busiest day of the week and volumes gradually decline each day as the week progresses.

ORDER SUMMARIES

Below we have summarized some typical orders issued by the Tribunal during the first year of operations.

The tenants applied for an order to determine that the landlord failed to meet their maintenance obligations. The Member concluded that the tenants were without sufficient heat during the winter months, were without water for several days and the rental unit was infested with rats. The order granted the tenants an abatement in rent in the amount of \$1,650.00 plus the costs of the application. If the landlord failed to pay the full amount by the specified date, simple interest would be calculated on the outstanding balance.

**Landlord and Tenant Application (Joined) CEL- 04696 Sections 34 & 69
CET- 00464**

The landlord filed an application to terminate for non-payment of rent. The tenant applied for an order to determine that the landlord had failed to meet its maintenance obligations. The applications were joined.

The tenants did not pay their rent for a two month period from April 1, 1999 to May 31, 1999. The tenants presented undisputed photographic evidence of severe deterioration of both the wooden frame and the paint on the wooden frame of the front door and the entire garage door. The Member concluded that the landlord had not maintained the unit in accordance with reasonable standards and therefore refused to terminate the tenancy. The Member granted the tenants a rent abatement of \$1,320.00 less the arrears of rent for 2 months (\$1314,08). The landlord was directed to carry out repairs by a specific date, failing which, the tenant was authorized to arrange for the maintenance work and to recover the cost by deducting the amount from July's rent.

The landlord filed an application to terminate because the tenant failed to pay the rent that they owed. The tenant did not file a dispute and therefore a standard default order was issued. The default order terminated the tenancy and awarded arrears of rent and compensation in the amount of \$1979.39, per diem compensation in the amount of \$57.15 per day and the cost of filing the application in the amount of \$60.00. The tenant was ordered to pay all rent owing by April 19, 1999 in order to void the order. If the tenant did not pay the full amount owing by April 19, they would start to owe interest on the balance outstanding.

Landlord Application**EAL- 03552****Section 138**

The landlord filed an application to increase the rent by more than the guideline due to 8 capital expenditure items.

During the hearing, the tenants argued that they had received insufficient notice of the hearing. At this time, the tenants did not request an adjournment or an extension of time to make submissions after the hearing. The Member concluded that there was no “substantial” prejudice to the tenants as a result of receiving short notice of the hearing. The tenants also made submissions about maintenance concerns in their individual units and common areas. The Member did not consider these submissions, as the *Tenant Protection Act* does not include this issue as a relevant factor for a Section 138 application.

The Member found each item claimed by the landlord qualified as a capital expenditure, each item was completed in the appropriate time period, and none of the items were demonstrated to be unreasonable. Two receipts were not allowed as they did not relate to the buildings being considered in this application. The allowances for each of the capital expenditure items was apportioned equally to all

units in the complex. The order determined that the landlord had justified an increase above the guideline in the amount of 8%. Therefore, 4% was passed through in the initial year, and the remaining 4% was to be carried forward to the following year.

Landlord Application

TSL- 01301-SA-RV

SPPA

The landlord originally filed an application to terminate for non-payment of rent. The tenant did not file a dispute and a default order was issued. The tenant filed an application to set-aside the order which was denied. The landlord's agent asked for costs to be awarded in the amount of \$450.00 which was denied.

The landlord requested a review of the set-aside order with respect to costs. The landlord argued that the Tribunal erred in failing to consider established case law on the assessment of costs, in failing to conclude that the Costs Interpretation Guideline interferes with the "unfettered" discretion of a Member, by failing to declare the Costs Interpretation Guideline invalid, and by failing to apply the proper principles in assessing costs.

In the reasons, the Member says that the decision to award costs was discretionary. The Member concluded that the Costs Interpretation Guideline did not predetermine the Member's decision towards costs. It merely assists the Member in making a determination. The Tribunal does not have the jurisdiction to declare a Guideline invalid. Since many of the parties appearing before the Tribunal have limited means, the power to award costs should not be used in a way that would discourage parties from exercising their statutory rights. The request for review was denied.

The landlord filed an application to terminate as the tenant had been persistently late in paying the rent. The landlord presented evidence that there had been six occasions over a five year period on which the landlord had to serve Notices of Termination to obtain payment of rent. In their dispute, the tenant claimed relief from eviction due to maintenance issues.

In their reasons, the Member stated that to determine whether payments are persistently late, the number of occasions involved and the length of time over which the events took place must be considered. As well, the Member stated that it is relevant to consider if circumstances are such that the rent would continue to be late.

In the reasons, the Member listed three factors which resulted in the finding that the tenant was persistently late in paying the rent:

- ⇒ The tenant withheld their rent for 4 out of 5 months from the period of April 1998 to Aug 1998.
- ⇒ On 5 out of the 6 occasions when the landlord served notice of termination, the landlord was compelled to follow legal process to completion in order to obtain payment. The tenant deliberately withheld payment until the last moment when he had to either pay or be evicted.
- ⇒ The tenant had deliberately and repeatedly withheld rent in order to protest lack of maintenance.

Relief from eviction was denied on the grounds that it would be unfair to the landlord not to terminate and the tenants complaints did not constitute a serious breach of the landlord's responsibilities as contemplated in clause 84(2)a of the Act. The tenancy was terminated.

The landlord filed an application to terminate because the tenant had committed an illegal act. The landlord and tenant entered into a tenancy agreement before the proclamation of the *Tenant Protection Act*. The rent agreed to was an illegal rent. The landlord argued that by entering into a tenancy agreement for an illegal rent, the tenant had committed an illegal act and this was a ground for eviction.

In the reasons, the Member states that where an illegal act falls into an “innocuous” category, the Tribunal Member might find the act to be illegal but refuse the termination pursuant to section 84 of the Act on the ground that the “illegal act” did not have potential to affect the character of the premises or to disturb the reasonable enjoyment of the premises by the landlord or other tenants. However, the Member did not choose to invoke section 84 because to do so would be to imply that there was some merit to the landlords application. The Member dismissed the application because the illegal act was committed by the landlord not the tenant.

Tenant Application**TST- 00344****Section 144**

The tenant filed an application for a rent rebate since the landlord had failed to pay interest on the last month’s rent deposit. A deposit of \$750 was collected May 1, 1997, and was applied to the rent for September 1998. Therefore, 6% interest was owing to the tenant for the period from May 1, 1997 to August 31, 1998.

The order determined that the landlord had failed to pay the 6% interest required by the TPA. The landlord asked that the interest be offset because of claims made by the landlord. The Member concluded that there was no authority under Section 144 to off-set the interest. The landlord was ordered to pay \$60 in interest plus the cost of the application, since the landlord’s failure to pay the interest caused the tenant to file the application.

The tenant filed an application to determine whether the Act applies. The tenant leased property from the landlord with 30 year lease. The terms of the lease permitted the tenant to erect a cottage. The lease provided that the premises must only be used for recreational purposes on a seasonal basis. The tenant's principal residence was located elsewhere.

The tenant argued that since the rent on the property was raised when the *Rent Control Act* was in force, the provisions of the *Rent Control Act* should govern the Tribunal's decision. The tenant submitted that, since there was a 30 year lease and the property was occupied year round, the property should not be considered "seasonal or temporary".

The Member noted Section 223(2) of the *Tenant Protection Act* provides that the *Rent Control Act* will continue in force only for the purpose of disposing of certain types of applications which were filed under it. Since the tenant filed the application after proclamation of the *Tenant Protection Act*, the Member concluded that the *Tenant Protection Act* was the statute that should govern the proceedings.

The Member stated that the use of the words "temporary or seasonal" in Clause 3(a) of the *Tenant Protection Act* are meant to "capture situations where the property is not used on a permanent basis as a principal residence". The order concludes that, since the tenant has a principal address elsewhere, the rental unit is a cottage occupied for a seasonal period and is therefore exempt from the *Tenant Protection Act*.

The tenants filed an application for an order to determine whether the landlord had withheld the reasonable supply of water. The tenants submitted that they had

lived in a country home, since 1995. On October 15, 1998, the well went dry. The tenants attempted to correct the problem themselves by paying for 3,000 gallons of water to be dumped in the well. However, the well went dry again within 2 hours. When they notified the landlord, his first response was to tell them to move. The landlord looked into several options for temporary solutions, however, none of these options was feasible. The tenants were left with no water for close to two months.

The Member ordered the landlord to drill a new well by a specified date. The Member also ordered the landlord to pay the Tribunal a fine of \$1,000.00 for the landlord's lack of action and concern towards the tenants. The tenants were granted an abatement of rent in the amount of \$875.00. Simple interest would be calculated on the outstanding balance if the landlord did not pay the total monies owed, as directed.

Tenant Application

EAT- 00035

Section 35

The tenant filed for an order to determine whether the landlord had substantially interfered with her reasonable enjoyment of the rental unit. The tenant began to write letters to her landlord complaining about excessive noise in the apartment above, in March of 1990. During this time, three different tenants had lived in the unit above.

The tenant who lived in the above unit appeared at the hearing. The tenant testified that she led a quiet life. Aware of the complaints of the tenant below, she avoided creating excessive noise and had successfully taken steps to correct the noise created by the use of her washing machine. The Member found the testimony of the witness credible and reasonable.

The applicant presented evidence that she suffered from a medical condition exacerbated by stress and lack of sleep. However, the Member was unable to

conclude that the landlord was responsible for this stress. The landlord had repeatedly sent letters to the various tenants in the above unit. An order was issued dismissing the application. On the balance of probabilities, the Member was unable to find that the landlord had substantially interfered with the reasonable enjoyment of the rental unit by the tenant.

BIOGRAPHIES OF ADJUDICATORS

On the following pages, we have given you short biographies of each of the adjudicators who resolve disputes for the Tribunal.

CHAIR

Chisanga Puta-Chekwe

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford.

Mr. Puta-Chekwe was a partner in the firm, Lloyd Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice-president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994.

In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as Chair of the Board from 1994 until 1997.

He served as Executive Director of Oxfam Canada between 1997 and 1998.

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

DAVID BRAUND

David Braund is a graduate of the University of Western Ontario (BA. 1971 and LLB 1974). After his call to the Bar in 1976, he practised law for five years in London, Ontario. During that time he also served as Chair of the London Committee of Adjustments which decided cases under the Planning Act. In 1981, he was appointed as a Commissioner of the Residential Tenancy Commission, and later as Appeal Commissioner. Since 1986, Mr. Braund has been the Rent Registrar for Ontario under the Rent Regulation and Rent Control Programs. He is a member of the Executive of the Couchiching Institute of Public Affairs, and also Co-Chair of the Rules of Practice Committee of the Society of Ontario Adjudicators and Regulators.

GILLES GUÉNETTE

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in Civil Procedure. He worked as a general practitioner for more than thirty years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr Guénette has recently practised as an arbitrator and mediator, and lectured in Alternative Dispute Resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the Vice-Chair of Ottawa-Carleton Housing Authority. He is a former president of L'Association des juristes d'expression française de l'Ontario.

CONNIE HOLMES

Connie Holmes has a long history with the Ministry of the Attorney General. Her prior experience includes: serving as Registrar of the Divisional Court, Southwest Region, Hearings Officer for Small Claims Court pre-trials, Registrar for Landlord and Tenant Hearings, and Counter Services Manager in London, Court Services Manager in Stratford and Goderich, Assistant to the Regional Senior Judge for the Southwest Region, and Special Advisor to the Assistant Deputy Attorney General.

Ms. Holmes has been active in community service organizations such as Mission Services (London), founding member of Teen Girls' Home, Brain Tumour Foundation of Canada (Gus Macher Tournament), and the Advisory Committee of Collections, London Historical Museums.

MARY LEE

Mary Lee most recently served for 3 years as Registrar and Chief Administration Officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over 8 years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Adjudicator's and Regulators Training and Education Committee.

BEVERLY MOORE

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk's program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. She most recently served as a Vice Chair with the Social Assistance Review Board.

CHRIS BRANEY

Chris Braney has extensive experience in both the business community and in public service. Over the years, he has served as the Vice President of the Centennial Community and Recreation Association, a Director of the Variety Club Telethon, and is currently the President of West Hill Community Services which is a volunteer board that caters to the needs of under privileged members of the community. In 1994, he was elected to the Scarborough Board of Education, where he served as both a Trustee and the Vice-Chairman of the Board overseeing an annual budget of \$525 million. As Vice-Chairman Chris chaired

many hearings dealing with students who had broken the rules associated with the Scarborough Board of Education's zero tolerance to weapons and violence policy. Chris has also been the owner and operator of a successful health and safety products company, where he specialized in marketing and communications. Before joining the Tribunal, Chris was the Director of Marketing for a Toronto based aerospace company.

STANLEY CHAPMAN

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served as an Adjudicator with the Worker's Compensation Appeals Tribunal for 7 years.

ANDREAS VON CRAMON

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practiced law in Brockville after his call to the Law Society of Upper Canada in 1991 until his appointment to the Ontario Rental Housing Tribunal. He has been a Member of the Ontario Consent and Capacity Board since 1996.

JANET DAVIES

Janet Davies has been working in the field of rent regulation since 1976 and has held a number of challenging positions, including that of a decision maker under both the Residential Rent Regulation Act and the Rent Control Act. Ms. Davies received the Commemorative Medal for the 125th Anniversary of the Confederation of Canada given for outstanding and significant contributions to her community. In addition, she has completed several courses relating to the residential rental environment, some of which include Real Estate, Property Management and Alternative Dispute Resolution.

NANCY FAHLGREN

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting Chief Rent Officer under Rent Control Programs, adjudicating issues governed by the predecessor housing legislations, and mediating Landlord and Tenant rental matters. Ms. Fahlgren's academic concentrations consisted of science and languages obtained through Nipissing University and the University of Toronto.

LOLA FABOWALÉ

Ms. Lola Fabowalé graduated from Trent University in 1988 with a bachelor's degree in Administrative and Policy Studies. She also completed a Master's degree in Management Studies from Carleton University in 1991. Until her appointment to the Tribunal, Ms. Fabowalé coordinated the development of the policy and advocacy function at Oxfam Canada. She joined Oxfam Canada as Programme Development Officer in 1995 and gradually accepted wider organizational responsibilities. Other organizations she has worked for include: the Public Interest Advocacy Centre (Research Director), Ekos Research Consulting Associates (Research Analyst) and the International Development Research Centre (Professional Research Assistant). Her Master's thesis, An Empirical Analysis of Credit Terms to Female Entrepreneurs was a research project which the Canadian Federation of Independent Business commissioned in 1989. Her involvement in community development work, featured a two-year term as Treasurer on the Volunteer Board of Immigrant and Visible Minority Women Against Abuse (IVMWAA).

STEVEN J. FAUGHNAN

Steven Faughnan received a Bachelor of Commerce degree from Concordia University and degrees in Civil (BCL) and Common Law (LLB) from McGill University. After his call to the Bar of Ontario, Mr. Faughnan practised civil litigation and represented both landlords and tenants in proceedings under the Landlord and Tenant Act. Since then, he has represented clients on mediation

and before administrative tribunals and has appeared on civil and commercial cases at Ontario Courts of all levels, including the Ontario Court of Appeal.

RICHARD A. FELDMAN

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award (University of Toronto) which was conferred upon Mr. Feldman based on his academic standing, his demonstrated concern for others, his perseverance, and his qualities of leadership. As a lawyer, he has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has relevant experience in administrative law, civil litigation and residential real estate transactions. In addition, Mr. Feldman is an experienced educator.

JOHN GOODCHILD

Graduated from Queen's University in 1977 with LLB.; called to the Ontario Bar in 1979. Engaged in private practice in both Ottawa and Kingston until 1993. Employed by the Information and Privacy Commissioner/Ontario from 1993 to 1996, then engaged in private practice in the United States for two years. Employed by the Information Commissioner of Canada prior to being appointed to the Ontario Rental Housing Tribunal.

CHARLES GASCOYNE **(Part-Time Member)**

Mr. Gascoyne graduated from the University of Windsor (BA, 1983 and LLB, 1986). Mr. Gascoyne is a Member of the Board of Directors of the Essex Law Association and a number of other local community groups. Mr. Gascoyne is a part-time Member of the Tribunal and carries on practice in Kingsville, Ontario.

MURRAY WM. GRAHAM

Murray Wm. Graham is a graduate of York University (B.A. 1970) and Osgoode Hall Law School (LL.B. 1973). After his call to the Bar in 1975, he practiced law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management, and environmental research and development industries.

DAVID J. GREGORY

David Gregory is a graduate of the University of Toronto (B.A.Sc. 1969, LL.B. 1972). Mr. Gregory carried on a general law practice in Brantford from 1974 until his appointment to the Ontario Rental Housing Tribunal. Mr. Gregory has served as a Deputy Judge of the Small Claims Court, and was a member for 13 years and Past Chairman of the City of Brantford Committee of Adjustment. Mr. Gregory is a Past President of the Brant Law Association and the Brant Curling Club, a former director of the Brantford Regional Chamber of Commerce, and a past member of the Brantford Economic Development Board.

SHAWN HAYMAN

Shawn Hayman attended Fanshawe College, specializing in Accounting Principles and other business disciplines. She worked for 10 years in the financial sector before joining the Ministry of Housing in 1987. Ms. Hayman has spent the last 11 years involved in all aspects of the delivery of Rent Review Programs as an Appeal Analyst, Financial Consultant and Board Member with the Rent Review Board, and most recently as a Rent Officer with Rent Control Programs. She continues to be a member of the Rent Review Hearings Board.

DAVID HORROX

David Horrox served as an administrator in several departments in the federal government over many years, including the Unemployment Insurance Commission, Canada Employment & Immigration Commission, Labour Canada, and Human Resources Development Canada. He was also a Professor in the School of Business at Centennial College, and a four term Trustee and Chairman of the Scarborough Board of Education. Mr. Horrox is a graduate of York University (BA. Honours) and the University of Toronto (MA., Public Administration).

RICHARD ITTLEMAN

Richard Ittleman attended York University in Toronto, obtaining a Bachelor of Arts (B.A. Hons.) in History in 1975, and he received a Bachelor of Laws (LL.B.) from the University of Windsor in 1978. Mr. Ittleman practiced law until 1987 in the Greater Toronto Area, with a focus on civil litigation. Mr. Ittleman has been involved for a number of years in community volunteer work where he has undertaken a number of fundraising and other projects.

LINDA JOSS

Linda Joss commenced her career in the pioneer days of child care work. After 10 years in that field, she joined Metro Toronto's Community Services Department as a manager of hostels. During her years with Community Services, Ms. Joss managed and developed programmes in Metro's 4 major emergency shelters and consequently became very involved in the impact of evictions.

LAURIE KOCH

Laurie Koch received her BA. From the University of Massachusetts at Amherst (History/Literature) and has completed numerous paralegal courses in both the United States and Ontario. Ms. Koch achieved a Certificate in Alternative Dispute Resolution in 1996 from Seneca College. Her professional experience includes paralegal work in both the public and private sectors. Ms. Koch was most recently a Rent Officer and Mediator with the Ministry of Municipal Affairs and Housing where she adjudicated rent control applications and provided dispute resolution services to the landlord and tenant community as a member of the ministry's pilot project mediation team.

ROMUALD KWOLEK

Romuald Kwolek is a graduate of the University of Western Ontario (LLB, 1981). He has practiced law in the city of Sault Ste. Marie since 1983 and has carried on a general practice with Oraziotti & Kwolek since 1989, specializing in criminal and family law. Romuald Kwolek is currently a deputy judge of the Small Claims Court, and continues to be actively involved in community volunteer work.

EDWARD LEE

Edward Lee is a graduate of McGill University (B.Sc., B.C.L., LL.B.), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

IAN MACINNIS

Ian MacInnis graduated from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board

of Parole, and as a Councillor and Deputy Mayor of the City of Kingston. Mr. MacInnis has also been in private practice as a Court Agent representing clients in Small Claims Court and out-of-court settlements.

DONALD MACVICAR

Don MacVicar is a transplanted Nova Scotian who graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration, and from Dalhousie University in Halifax with his LLB and Master of Business Administration degrees. He was called to the Nova Scotia Bar, and to the Ontario Bar. For the past decade, Mr. Mac Vicar has been in private practice in the Toronto area working primarily as a criminal defence counsel.

J. STEVEN MCCUTCHEON

Steve McCutcheon is a graduate of Queen's University (B.A. 1979) and the University of Windsor (LL.B. 1985) and was called to the Bar of Ontario in 1987. He has practiced law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, he operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

TOM MCDERMOTT

Tom McDermott has been adjudicating and resolving landlord and tenant disputes for over 10 years. He is a member of the Society of Ontario Adjudicators and Regulators. Mr. McDermott participated in a pilot project to mediate disputes at Landlord and Tenant Court, after completing training in alternative dispute resolution. Mr. McDermott received his Honours BA. (Economics) from York University.

SCOTT N.F. MCNEIL

Scott N. F. McNeil is a graduate of Lakehead University (B.A. 1972) and the University of Manitoba (L.L.B., 1978). He was called to the bar in Manitoba in 1979 and Ontario in 1981. He has practiced criminal and civil litigation in Thunder Bay from 1981. He is a part time Assistant Crown Attorney and a former standing agent for the Department of Justice. He is a member of the Law Society of Manitoba, the Law Society of Upper Canada, the Thunder Bay Law Association, and the Criminal Lawyers Association. He is a member of Norwest Gyro (and a past president), a former director of the Thunder Bay Children's Aid Society and Children's Services Foundation and former director and a past president of the Thunder Bay Thunderbolts Swim Club. He was appointed as a part time member of the Ontario Rental Housing Tribunal on August 24, 1998.

DONNA MCGAVIN

Member - Rent Review Hearings Board 1987 - 1994.
Vice-Chair - Social Assistance Review Board 1995 - 1998
Member - Appointed June 1999 Ontario Rental Housing Tribunal.

BRIAN L. RODENHURST

Brian Rodenhurst graduated from the University of Guelph with a Bachelor of Arts (Honours) and the University of Windsor with a Bachelor of Law. For 20 years he was in private law practice. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and Chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, Vice-Chair of Administration and Finance.

JEFFREY ROGERS

Jeffrey Rogers graduated with a B.A. in English from the University of Toronto and an LL.B from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and Real Estate. In 1992 Mr. Rogers was appointed a Deputy Judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

NANCY SAVAGE

Nancy Savage attended the University of Western Ontario Law School obtaining an LLB degree in 1975. She has experience in private practice and in the representation of a child protection agency as in-house counsel.

SHERYL RUTH SENIS

Sheryl Senis has twelve years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in Business Administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. Recently, as a municipal Councillor, Ms. Senis was Chair and/or Member of several committees, Social Development Council, Director; Pickering Hydro Liaison Committee, Vice-Chair; Personnel and Performance Appraisal Committee, to name a few.

CYNTHIA LYNN SUMMERS

Cynthia Summers is a graduate of McMaster University (BA, Political Science 1988, MSW, Social Welfare Policy, 1995). Cynthia has extensive experience in

the social service field working with a diverse clientele, She has worked with the mentally ill, social assistance recipients and mentally and physically challenged children and adults. Her experience includes having represented the Ministry of Community and Social Services as a Case Presenting Officer before the Social Assistance Review Board. Most recently, she was a Professor in the School of Community Services at Sheridan College.

CATHERINE SKINNER

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a BA (Honours) in French and Classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, she was legal counsel to the Ontario Assessment Review Board.

DAVID G. TIMMS

David Timms is a graduate of the University of Western Ontario (B.A. 1980) and the University of Windsor (LL.B. 1983). He is a candidate for an LL.M. in Civil Litigation and Dispute Resolution with Osgoode Hall Law School. Mr. Timms has been practicing in the area of civil litigation and dispute resolution exclusively since his call to the Bar in 1985. He is a member of the Canadian Bar Association, the Arbitration and Mediation Institute of Ontario, The Advocates' Society and the Association of Trial Lawyers of America.

DIANE L. TINKER

Diane L. Tinker is graduate of McMaster University (BA.) and Queen's University at Kingston (LL.B). After her call to the Bar in 1981, she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a Deputy Judge in Small Claims Court in both Kitchener and Cambridge for the past 6 years.

DAVID R. WRIGHT

David Wright is a graduate of Carleton University in Ottawa (BA. Honours in Public Administration). For the first 10 years of his career, Mr. Wright was a public housing property manager in Ottawa. He has spent the last eleven years in rent regulation, also in Ottawa. Mr. Wright has volunteered in various activities such as the Gloucester Public Library Board (Chair), various school advisory councils and the Kiwanis Club of Rideau.

**Ministry of Municipal
Affairs and Housing**

777 Bay Street
Toronto, Ontario M5G 2E5
Tel: (416) 585-7000
www.mah.gov.on.ca

**Ministère des Affaires
municipales et du Logement**

777, rue Bay
Toronto, Ontario M5G 2E5
Tél: (416) 585-7000
www.mah.gov.on.ca



**TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO**

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 1999/2000 fiscal year.

Respectfully submitted,

Chris Hodgson
Minister of Municipal Affairs and Housing

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau du Président

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Tél: (416) 585-7295
Télécopieur: (416) 585-6363



TO THE HONOURABLE CHRIS HODGSON
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 1999/2000 fiscal year.

Respectfully submitted,

Chisanga Puta-Chekwe

Chair

Ontario Rental Housing Tribunal

**Ontario Rental
Housing Tribunal**

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Chair's Message

This is the second Annual Report of the Ontario Rental Housing Tribunal. We have decided to publish our annual reports in line with the government's fiscal year. Therefore, this Report will cover the time period between April 1, 1999 and March 31, 2000.

Our second year of operations has been successful. In 1999, we undertook an operational review, which was conducted by the consulting firm KPMG. We received the results of the review this year, and I am happy to report that overall the results were very positive. Recommendations were also made on areas in which we could improve our service. We spent much of the past year implementing these recommendations. We set up a number of working groups to study the report and to maximize the operational improvements that the consultants recommended. Some of these were easier to accomplish than others.

One of the biggest challenges we faced as a result of the operational review was to re-focus our mediation services. The consultant recommended that we concentrate on the more difficult types of applications, particularly the highly contested ones, and try to resolve these before the hearing. Our experience has shown that this will not be an easy task. Our clients are not always ready to mediate until the day of the hearing, making it difficult to significantly increase the use of routine (as opposed to duty) mediation.

We have had great success with our “best practices” work. We set up a group to work on the best administrative practices across our 20 offices and a group of members to work on the best adjudicative practices. We learned a great deal about how to work more efficiently and, by sharing ideas and strategies, we have learned how to streamline some of our processes.

We have begun to make improvements to our call centre, both technically and in the quality of responses given to our clients. The consultant pointed out that we were missing calls because we did not have proper coverage during our highest peak periods of work. We have changed our client service representatives work hours to remedy this. As well, we will obtain new equipment for the call centre that will allow us to respond to more inquiries, more quickly.

We have expanded our Web site and currently have 25,000 visits to our site each year.

This year has been one of hard work, concentrated on better serving our clients and the people of Ontario. The Tribunal remains dedicated to providing excellent service to all of our customers. We are gratified that the KPMG review found that our clientele was happy with the service we provide. However, we remain open to suggestions, comments, criticism and praise. We look forward to hearing from you.

Sincerely,

Chisanga Puta-Chekwe, Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

On June 17, 1998, The *Tenant Protection Act*, commonly known as the TPA was proclaimed.

The TPA brought together six pieces of legislation that formerly governed the relationship between landlords and tenants, as well as the Ontario Building Code and the Planning Act. The result is a comprehensive package that balances the rights of tenants and landlords.

The four primary objectives of the TPA are:

- ⇒ To simplify the relationship between landlords and tenants
- ⇒ To balance the needs of landlords and tenants
- ⇒ To create an efficient process that deals with disputes quickly
- ⇒ To create a cost-efficient process

Under the previous legislation, disputes between landlords and tenants were settled through the provincial court system. The court system was formal, costly and dispute resolution often took a long time.

As well, the previous legislation had a separate system, the Rent Control Program, that oversaw the regulation of rent increases and provided information resources for tenants and landlords.

The need to provide a one-window service to tenants and landlords was clear. As a result, the *Tenant Protection Act* consolidated the two systems and created an independent, quasi-judicial agency - the Ontario Rental Housing Tribunal.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- ⇒ Resolve tenant and landlord disputes through either mediation or adjudication
- ⇒ Regulate rent increases in residential rental accommodations
- ⇒ Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is faster and more efficient than previous systems for resolving landlord and tenant issues.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between tenants and landlords. Under the adjudication process:

- ⇒ Disputes are heard in public buildings other than courtrooms
- ⇒ Tenants may choose to represent themselves and may consult an on-site legal aid representative
- ⇒ The more conciliatory approach of mediation is encouraged before the hearing process begins or during the hearing if the adjudicator feels that the matter lends itself to mediation

The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues. Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview and selection process.

The adjudicators meet formally every three months to discuss issues. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to look at the order format and groups that gather opinions on specific issues. Most of the formal member meetings also contain elements of training such as conduct of a hearing, natural justice, amendments to the TPA and to other legislation like the *Statutory Powers Procedure Act*.

The Mediation Process

Mediation is offered under the Tribunal's legislation. It is often used to clarify issues and settle disputes so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use both their knowledge of rent regulation and negotiation skills to assist landlords and tenants in resolving their applications and their concerns before the hearing.

Approximately 20 per cent of the Tribunal's applications are successfully mediated. More difficult to quantify, is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus more of our mediation efforts on the more complex applications. We have had some success with mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

Locations

The Ontario Rental Housing Tribunal has eight district offices and 12 client service offices across the province. Most of the Tribunal's hearings are held in its district offices.

Hearings are held in the area that is most convenient for tenants and landlords.

The district offices are located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown)
- Toronto North (North York)
- Toronto East (Scarborough)
- Ottawa
- Sudbury

At client service offices, landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings (when it is convenient for both parties to do so).

The client service offices are located in the following areas:

- | | |
|-----------------|------------------|
| → Windsor | → Etobicoke |
| → Thunder Bay | → North Bay |
| → Kingston | → St. Catharines |
| → Timmins | → Peterborough |
| → Durham/Whitby | → Barrie |
| → Owen Sound | → Kitchener |

The Tribunal has 31 document filing centres across the province where tenants or landlords can file their applications and pick up information about the Tribunal. The Tribunal's network of offices covers each of the county seats in the province.

Call Centre

The Tribunal has created a call centre for handling customer inquiries. This is a toll-free number (1-888-332-3234) which operates 24 hours a day, seven days a week. A customer service operator is available during normal business hours. An extensive telephone script answers frequently asked questions. This year, the Tribunal responded to approximately 870,000 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The Tribunal has its own Web site (orht.gov.on.ca) and responded to 25,000 Internet inquiries last year. All forms are available on the Internet as well as through each district and client service office.

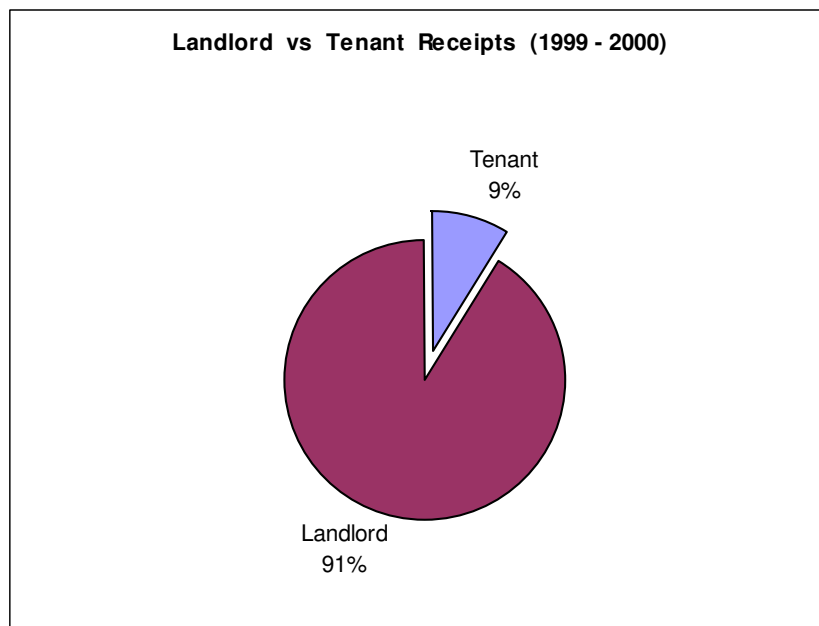
The Tribunal's telephone system will be updated in 2001 to improve our service to customers. The new equipment will allow our customer service representatives to respond to more calls and will allow more clients to get through on our 1-888 telephone line.

Statistical Information for the year 1999- 2000

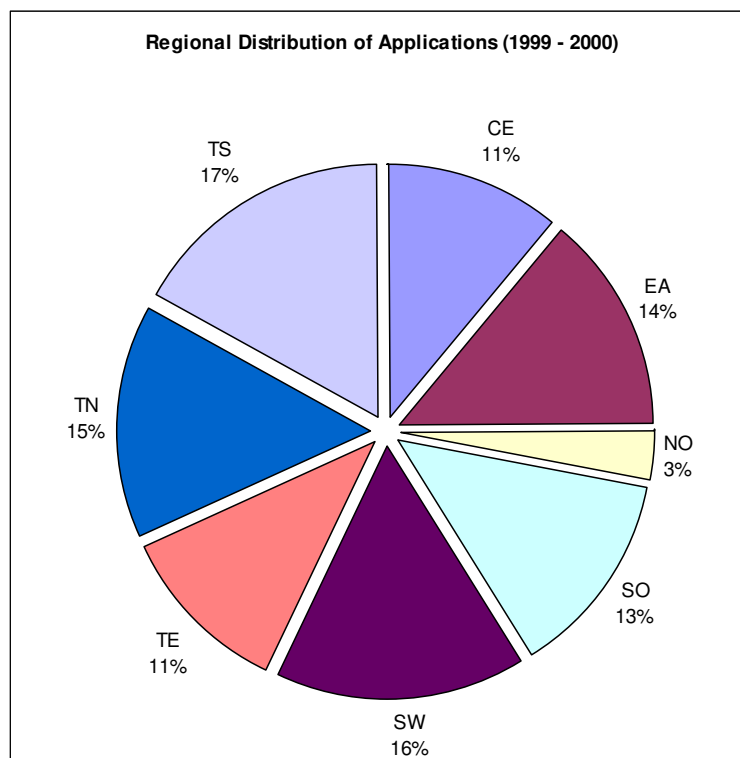
Applications

The Tribunal's second year of operations has been a productive one. In our first year, we received 59,894 applications. During the 1999-2000 fiscal year, the Tribunal received 70,181 applications and resolved 70,862. Approximately 5,000 applications were still in process at the end of the last full year of operations; as well, there are often applications that are re-opened.

The total receipts for the 1999-2000 fiscal year had the following profiles:



The regional distribution of applications is as follows:



CE refers to Central; ***EA*** to Eastern; ***NO*** to Northern; ***SO*** to Southern; ***SW*** to Southwestern; ***TE*** to Toronto East; ***TN*** to Toronto North and ***TS*** to Toronto South

Eviction applications have been by far the majority of applications since the start of rent regulation in Ontario in 1976, and this trend continued through 1999 and 2000. Of the total applications received by the Tribunal, 72.63 per cent were for termination of tenancies because of arrears of rent. This is down from 76 per cent last year. Tenant applications for rent rebates, rent reductions, and violations of tenants' rights accounted for 7.05 per cent of the applications filed during this fiscal year. This is up from 5.8 per cent last year.

Above Guideline Increase Applications

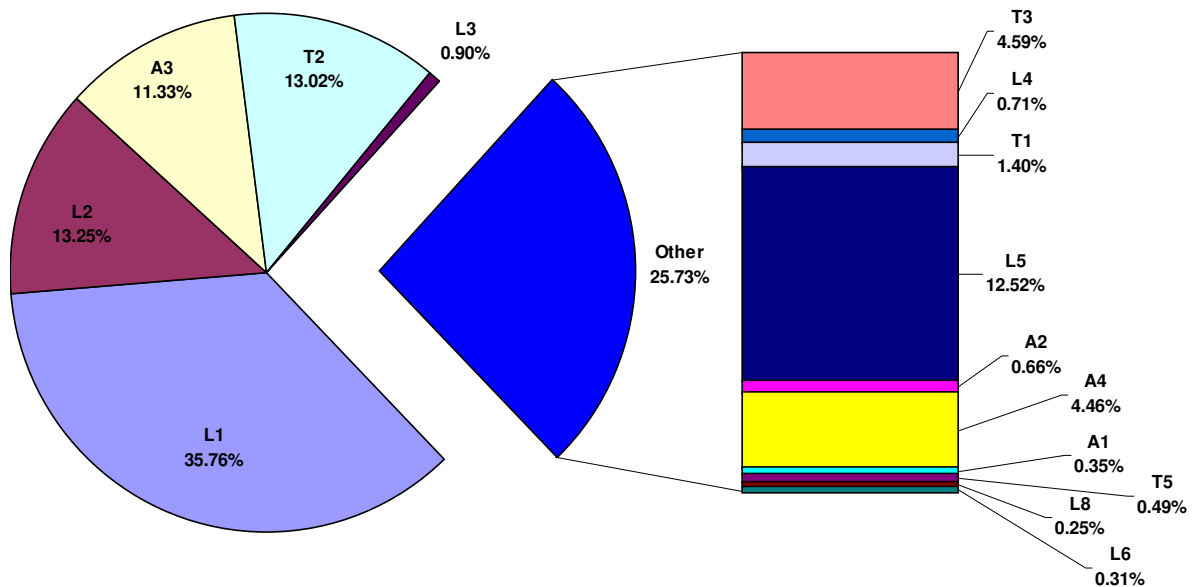
An average of 251 applications for above guideline increases were received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for above guideline increases were received. Although the number decreased to 388 during the 1999-2000 fiscal year, we are finding that these applications, combined with the applications regarding tax increases and decreases, take a disproportionate amount of time both for staff and adjudicators. A study of the Tribunal's workload found that these applications, which make up only one per cent of the Tribunal's workload, take 16 per cent of the Tribunal's time.

Management and the adjudicative team are finding solutions to this problem so that all applications can be heard quickly and resolved expeditiously. This will be one of our priorities for the coming year.

The two charts on the following page show the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing).

Ontario Rental Housing Tribunal

Distribution of Hearing Time by Application Type for Fiscal 1999/2000



Workload for Fiscal 1999/2000

Case Type	# Cases	#Defaults	#Hearings
L1 Termination and Non-Payment of	47,121	29,903	14,398
L2 Terminate Tenancy & Evict	6,347	1,488	3,557
A3 Combined Application	3,209	638	2,028
T2 Tenant Rights	2,627	0	1,748
L3 L3 - Term. Tenant. gave Notice	1,461	1,302	364
T3 Rent Reduction	1,258	0	821
L4 Terminate Tenancy: Failed	1,016	941	287
T1 Rebate	601	47	375
L5 Rent Increase above Guidelines	399	0	420
A2 Sublet or Assignment	354	91	176
A4 Vary Rent Reduction Amount	215	0	299
A1 Determine Whether Act Applies	87	0	47
T5 Bad faith Notice of Term.	85	0	66
L8 Tenant Changed Locks	71	0	33
L6 Review of Prov. Work Order	26	0	21
	64,877	34,410	24,640

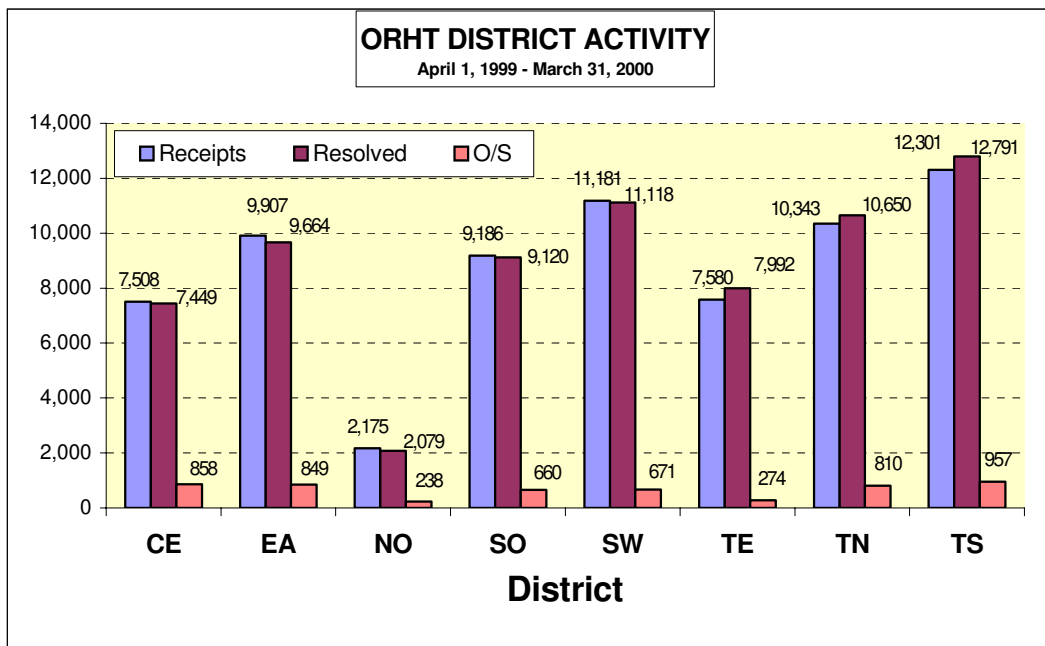
Harassment Applications

Tenants can apply to the Tribunal, at no charge, if they believe that their landlord has been harassing them and they wish to obtain relief. The Tribunal received 2,641 applications compared to 1,789 during the first year of operations alleging violation of tenant's rights. Of the number received, 452 had yet to be resolved at the end of the fiscal year.

APPLICATION RESOLUTION

The Tribunal has been successful in resolving applications quickly. On average the Tribunal maintains only one month's receipts as open files. We were even more efficient this past fiscal year. We focused on the files that had no disputes and issued default orders as quickly as possible. Our statistics indicate that over all, we were able to issue default orders within one to two days after the dispute deadline. In addition, we issued most orders within 21 days of the application being filed, and even more complex orders were issued within 23 to 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North and **TS** to Toronto South

ORDER SUMMARIES

Ontario Rental Housing Tribunal adjudicators are responsible for hearing a wide variety of applications from both landlords and tenants. These applications address such issues as above guideline rent increases, evictions and orders for payment of arrears.

The following presents a sample of cases heard by the Tribunal during the 1999 - 2000 fiscal year.

Tenant Application

TST-01247

Section 34

The tenant applied for an order determining that the landlords failed to meet their maintenance obligations. On June 30, 1999, the tenant's refrigerator broke down. On July 5, a repairman attended the rented premises and determined that the refrigerator could not be repaired. A new refrigerator was installed in the tenant's unit on July 8.

In his analysis, the member first considered the question of negligence. The member found that there was no negligence on the part of the landlords since the breakdown of the fridge was not a "foreseeable" event.

The member also considered whether the tenant was entitled to compensation for the seven days that she was without the use of a refrigerator. According to the member, section 24 of the Act does not require that repairs be made immediately in order for a landlord to avoid liability, but that they should be made promptly. Although the landlords did not respond immediately to the tenant's situation, the landlords did respond with reasonable promptness, considering the breakdown occurred one day before the statutory holiday.

In the order, the member determined that the landlords had not failed to meet their maintenance obligations. The application was dismissed.

The tenants applied for an order determining whether the landlords had given a notice of termination in bad faith. The landlords had served the tenants a notice of termination because they personally required possession of the rented premises. After vacating, the tenants discovered that the landlords never moved into the unit. Instead, the landlords had rented the residence to another tenant.

In dispute of the tenants' application, the landlords testified that at the time the notice of termination was given, they had every intention of moving into the rental unit but, due to a drastic change in their personal circumstances, their plans changed. The landlord testified that shortly after the tenants vacated, his wife suffered a severe seizure and was diagnosed with cancer. Due to the medical treatment that his wife required, the landlord decided not to move into the rental unit.

The member concluded that the evidence of the landlord was credible and given in a forthright manner. It was evident from the landlord's wife's appearance at the hearing that she was very ill. Although the landlords failed to move into the unit, this fact, alone, did not necessarily mean that the notice was given in bad faith. Circumstances change, and in this case, the landlords' lives changed quickly and dramatically. It was determined that the notice of termination was given in good faith. The application was dismissed.

The landlord filed an application to terminate a tenancy for impaired safety and persistent late payment of rent.

According to the facts, there was a fire on the sixth floor of the apartment building. After the incident, the fire alarms were not working and the landlord was ordered by the fire department to repair them. The landlord posted notices in the common areas advising tenants that the alarms in each unit would be inspected.

The tenant refused to allow the landlord entry for the purpose of completing the inspection because the landlord failed to provide her with 24 hours written notice in accordance with section 21 of the *Tenant Protection Act*. The landlord argued that since this was an emergency situation, notice was not required. By refusing entry, the tenant placed other tenants at risk.

In the order, the member indicated that his interpretation of section 20 of the Act is that a landlord can enter a rental unit without notice for emergencies that require immediate action and where it is not possible to provide the tenant with written notice. Since the landlord posted the notices three days prior to the proposed entry date, the member concluded that this was not an emergency situation. The tenant was found to be enforcing her rights under the Act.

With respect to the claim of persistent late rent, the landlord claimed that the tenant had been late in paying her rent for four consecutive months. In dispute, the tenant explained that she had just moved to the province and the bank was holding her cheques before releasing the funds. The member determined that being late in paying rent for four months is insufficient to justify terminating the tenancy for persistent late rent. The explanation provided by the tenant was reasonable and it was too early in the tenancy to determine that this pattern would continue.

The member concluded that the landlord failed to justify terminating the tenancy and the application was dismissed.

The landlord applied for an order for payment of arrears of rent resulting from the tenant's refusal to pay the amount specified in a Notice of Rent Increase.

The tenant had been living in the rental unit since 1988. The rent at the start of the tenancy was \$673. In January 1999, the new landlord gave the tenant a Notice of Rent Increase, which increase the rent by \$157 to \$830. The Notice of Rent Increase indicated that the increase was higher than prescribed by the guideline, but less than maximum rent. The tenant testified that upon receiving the notice, she called the landlord and was told to disregard it. Subsequently, the landlord sent the tenant another notice advising her that a discount of \$55 per month would be granted if the tenant provided 12 post-dated cheques and a last month's rent deposit.

In the order, the member indicated that although subsection 121(2) of the Act allows discounts, the discount cannot be conditional on something which is prohibited by the *Tenant Protection Act*. The discount provisions requiring post-dated cheques and the payment of a rent deposit after the start of the tenancy are contrary to the spirit of the Act. The discount, in effect, becomes a penalty for not doing something prohibited by the Act. Therefore, the rent above the discounted rent was considered a penalty, prohibited by clause 140(1)(a) of the Act, and not collectible. The application for arrears was dismissed.

The landlord filed an application to terminate tenancy because the tenant or another occupant substantially interfered with the reasonable enjoyment or lawful right of the landlord or another tenant.

The tenant has four children and resides in a small townhouse complex. The landlord and two other tenants testified that they had experienced continuous problems and disruptions since the respondent tenant moved in. The tenant's children fought all the time, caused damage to the rental unit and personal property, and were disruptive and disrespectful to other tenants. On several occasions, the children were seen hitting each other, causing bodily harm. The children's objectionable behaviour appeared to be attributable to lack of supervision.

In response to the allegations, the tenant argued that her eldest daughter was 12 years old, a licensed babysitter, and therefore capable of supervising her siblings. The tenant indicated that she was willing to pay for any damage and stated that the actions of her children were not criminal.

The member concluded that the landlord's application was substantially proven. Taken cumulatively, the actions of the tenant's children were beyond what the landlord and other tenants are expected to endure before the remedy of eviction is granted. As well, the member indicated that conduct which results in termination due to substantial interference with reasonable enjoyment does not have to be criminal.

The member concluded that the children were occupants within the meaning of subsection 64(1). On August 27, an order was issued terminating the tenancy but delaying the eviction date to September 30, 1999.

Landlord Application

TNL-11615-SA

Section 77(4)

The landlord applied for an order to terminate the tenancy because the tenant failed to meet the conditions specified in the Tribunal Order TNL-07430-SA. An ex parte order was issued for termination and arrears. The tenant filed a motion to set aside the ex parte order and a hearing was held.

Order TNL-07430-SA, resulting from the landlord's application to terminate the tenancy due to persistent late payment, required the tenant to pay rent for the period from September 1999 to February 2000 on the first day of each month. The landlord testified that the tenant made payments on September 3, October 4, and November 10 in contravention of the order.

In dispute of the landlord's application, the tenant submitted that she purchased money orders on September 1 and October 1 and placed them in the landlord's mail slot on the same day. With respect to November's rent, the tenant testified that she relied on social assistance and the cheque she was to receive at the end of October was late. The tenant left two voice mail messages with the landlord explaining her situation. The tenant claims that she purchased a money order on November 4 and put it in the landlord's mail slot on the same day.

In his decision, the member reviewed subsection 77(3) of the Act which requires the landlord to make his application within 30 days of the tenant's alleged failure. Even if the tenant had failed to meet the September and October deadlines, the member could not consider these to be breaches since they fell outside the 30 day period.

The member accepted that the tenant's payments were made on the dates she claimed. Although the provisions set out in order TNL-07430-SA were not to be taken lightly, the failure to pay November's rent on the first constituted a minor breach for which the tenant had a reasonable explanation. The member exercised his discretion, permitted under section 84, to refuse the eviction. An order was issued setting aside the ex parte order and dismissing the landlord's application. No costs were ordered.

The tenants filed an application for an order to reduce the rent charged because a service or facility was discontinued. The tenants claimed they were asked to give up their underground parking space and move to a parking space above ground in September of 1998 so that the landlord could complete restoration work to the underground garage. In May 1999, the tenants discovered that the restoration work had been completed and their parking space had been assigned to someone else.

In dispute of the tenants' application, the landlord testified that the garage restoration was a huge project that was being completed in phases. As work was completed, available spaces were first assigned to the elderly, handicapped or pregnant. The landlord testified that he had provided additional above ground parking for use by tenants who were displaced from the garage. The landlord also submitted that the fee for above ground parking was the same as for underground parking.

The issues to be determined in the application were whether the landlord had discontinued the facility of underground parking and whether this discontinuance was temporary and of a reasonable duration. For the purposes of the application, the member determined that the "service" provided to the tenants was the use of a parking area and that the "facility" was the garage. The member concluded that since the landlord provided an alternative parking space to the tenants at no additional cost, the service was not discontinued.

The member further concluded that since the tenants did not have use of the garage, the landlord discontinued the use of a facility. As the garage will be re-opened, the member found that the discontinuance was temporary. Since the landlord had taken steps to provide the tenants with alternative parking and there was no evidence of unnecessary delays in the project, the member was satisfied that the duration of the discontinuance was reasonable. An order was issued dismissing the application without costs.

The tenants filed an application to determine whether the landlord collected or retained money illegally. The tenants claimed that they were entitled to a partial refund of September's rent and the return of their last month's rent deposit.

On September 4, 1999, the tenants gave notice to the landlord that they would be moving out of the unit on September 11. On September 17, without the consent of the tenants, the landlord permitted an employee of her spouse to move into the apartment, rent free. The tenants had paid rent for September and the landlord held their last month's rent deposit.

In the order, the member asserted that the "fundamental exchange in the landlord/tenant relationship is the receipt of rent by the landlord and the right to occupy by the tenant." The landlord, by generously allowing the employee to reside in the unit while attempting to hold the tenants liable for rent, was giving something which was not hers to give. The rent free nature of the occupation clearly indicated that the landlord did not make an attempt to mitigate rent loss.

The member concluded that the landlord could not retain the rent deposit and should return the rent from September 18. An order was issued directing the landlord to pay the tenants \$1,099.29 plus \$45 for the cost of filing the application. If the landlord did not pay the tenants the full amount by the date specified, interest would be calculated on the outstanding balance.

The landlord applied for an order to increase the rent in a 66 unit complex by more than prescribed by the rent increase guideline. The landlord's application was based on 19 capital expenditure items.

In considering the application, the member disallowed the costs claimed for an indoor/outdoor control for the Heating System Thermocouples, as he found these were routine repair. The member also disallowed the costs claimed for roof repairs, concluding these were routine roof maintenance costs. The remaining 18 capital expenditure items fell within the definition of a capital expenditure. Each of the items was completed in the appropriate time period and none of the items were found to be unreasonable. As the claimed costs were documented by the landlord, the member allowed the costs as claimed.

The member found that the tenants' submissions, regarding the quality of the work done and the work that remained to be done, were not relevant to the determinations required in the landlord's application.

The landlord requested that the allowances for each item be apportioned equally to all the units, even though all the units did not receive direct benefit from the work. The landlord argued that since he plans to continue the specific unit repairs, it is appropriate to spread the cost equally amongst the units. The member agreed that an equal apportionment of the justified rent increase amongst all the units was the fairest approach.

In the order, the member determined that an increase in rent above the guideline in the amount of 9.7 per cent was justified. The landlord could increase the rent charged from May 1, 2000 to April 30, 2001 by an additional 4 per cent above the guideline.

As well, in the subsequent 12 month period from May 1, 2001 to April 30, 2002, the landlord could increase the rent charged by an additional 4 per cent above the guideline. During the period from May 1, 2002 to April 30, 2003, the landlord could increase the rent charged by an additional 1.7 per cent above the guideline.

The landlords applied for an order to terminate the tenancy because the tenant had failed to pay rent. The original order dismissed the landlords' application on the ground that the Notice of Termination served on the tenant did not comply with the Act. According to the original order, the landlords certified that the notice was served on December 13 with a termination date that was effective 12 days later.

The landlords requested a review of the order and a hearing was held. The request to review the application included an affidavit filed by the person who served the original notice. He submitted that he had been authorized by the landlords to amend the termination date specified on the notice prior to serving the tenant. The landlords explained that they were not able to provide a copy of the amended notice of termination at the original hearing because they did not receive a copy and were not aware of the amendment until after the original hearing of the application.

The member concluded that there was sufficient reason for the landlords' failure to provide the new evidence at the original hearing. The request for review was granted. The member found that the tenant was in arrears for the period from December 1, 1999 to February 29, 2000. An order was issued terminating the tenancy effective February 23, 2000. The tenants were directed to pay the landlords \$1, 227.77 for arrears plus per diem compensation in the amount of \$26.30 per day.

BIOGRAPHIES

CHAIR

Chisanga Puta-Chekwe

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford.

Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994.

In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997.

He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000).

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

VICE CHAIRS

David Braund

David Braund is a graduate of the University of Western Ontario (Bachelor of Arts, 1971 and Bachelor of Laws, 1974). After his call to the bar in 1976, he practised law for five years in London, Ontario. During that time he also served as chair of the London Committee of Adjustments which decided cases under the Planning Act. In 1981, he was appointed as a commissioner of the Residential Tenancy Commission, and later as appeal commissioner. From 1986 to 1998, Mr. Braund was the rent registrar for Ontario under the Rent Review and Rent Control Programs. He is a member of the executive of the Couchiching Institute of Public Affairs, and also co-chair of the Rules of Practice Committee of the Society of Ontario Adjudicators and Regulators.

Gilles Guénette

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette has recently practised as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the vice chair of Ottawa-Carleton Housing Authority. He is a former president of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general. Ms. Holmes has been active in community service organizations such as Mission Services in London and the Brain Tumour Foundation of Canada (Gus Macher Tournament). She is a founding member of Teen Girls' Home, and sits on the Advisory Committee of Collections for the London Historical Museums.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Ontario Adjudicators and Regulators Training and Education Committee.

Beverly Moore

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

ADJUDICATORS

Shehnaz Alidina (*Part-Time Member*)

Shehnaz Alidina has a Master's degree in Health Administration from the University of Ottawa and a Fellowship in Health Administration from the Juan de Fuca Hospitals in British Columbia. She has held a series of roles in health planning and administration in Ontario, Alberta and British Columbia, including five years as executive director of the Nipissing-Timiskaming District Health Council in Ontario. She now works as a private health consultant and has undertaken health reform projects in France, Kenya, Croatia and Tajikistan. She has published in health journals and has received a number of awards for academic excellence and community service.

Chris Braney

Chris Braney has extensive experience in both the business community and in public service. Over the years, he has served as the vice president of the Centennial Community and Recreation Association, and director of the Variety Club Telethon. He is currently the president of West Hill Community Services, a volunteer board that caters to the needs of underprivileged members of the community. In 1994, he was elected to the Scarborough Board of Education, where he served as both a trustee and the vice chairman of the board overseeing an annual budget of \$525 million. As vice chairman, Chris chaired many hearings dealing with students who had broken the rules associated with the Scarborough Board of Education's zero tolerance to weapons and violence policy. Chris has also been the owner and operator of a successful health and safety products company, where he specialized in marketing and communications. Before joining the Tribunal, Chris was the director of marketing for a Toronto based aerospace company.

Jim Brown

Jim Brown graduated from Ryerson Polytechnical Institute in business administration in 1965. He then graduated with a Bachelor of Arts degree from York University in 1968. That same year, he graduated from the Certified General Accountant program. In 1971 he graduated from the Master of Business Administration program at York University. In 1971 he also graduated as a registered industrial accountant. Mr. Brown spent many years at the Toronto Telegram and was one of the founders of the Toronto Sun. Mr. Brown operated his own manufacturing company for 25 years before entering public service. He has lectured at Ryerson, Seneca College and the University of Toronto. He is also a former member of the Ontario Legislature.

Stanley Chapman (*Part-Time Member*)

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Worker's Compensation Appeals Tribunal.

Andreas von Cramon

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practised law in Brockville, after his call to the Law Society of Upper Canada in 1991, until his appointment to the Ontario Rental Housing Tribunal. He is a past member of the Ontario Consent and Capacity Board.

Janet Davies

Janet Davies has been working in the field of rent regulation since 1976 and has held a number of challenging positions as decision maker under both the Residential Rent Regulation Act and the Rent Control Act. Ms. Davies received the Commemorative Medal for the 125th anniversary of the confederation of Canada, given for outstanding and significant contributions to the community. In addition, she has completed several courses relating to the residential rental environment, including courses in real estate, property management and alternative dispute resolution.

Lola Fabowalé

Ms. Lola Fabowalé graduated from Trent University in 1988 with a Bachelor's degree in administrative and policy studies. She also completed a Master's degree in management studies at Carleton University in 1991. Until her appointment to the Tribunal, Ms. Fabowalé coordinated the development of the policy and advocacy functions at Oxfam Canada. She joined Oxfam Canada as programme development officer in 1995 and gradually accepted wider organizational responsibilities. Other organizations she had worked for include: the Public Interest Advocacy Centre as research director, Ekos Research Consulting Associates as a research analyst, and the International Development Research Centre as a professional research assistant. Her Master's thesis, "An Empirical Analysis of Credit Terms to Female Entrepreneurs", was commissioned as a research project by the Canadian Federation of Independent Business in 1989. Her involvement in community development work featured a two-year term as treasurer on the Volunteer Board of Immigrant and Visible Minority Women Against Abuse (IVMWAA).

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by the previous housing legislations, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Steven J. Faughnan

Steven J. Faughnan received a Bachelor of Commerce degree from Concordia University and is a graduate of the National Law Program of McGill University, where he received degrees in both civil (BCL) and common law (LLB). After his call to the bar of Ontario, Mr. Faughnan practised civil litigation, represented clients at mediations and before administrative tribunals and appeared in civil and commercial cases at Ontario courts of all levels. In 1998, he was appointed to the Ontario Rental Housing Tribunal and adjudicates hearings in English and French.

Richard A. Feldman

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, he has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Charles Gascoyne

Mr. Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

John Goodchild

Mr. Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, then employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. He was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

Patricia Greenside

Patricia Greenside graduated from the University of Western Ontario with a Bachelor of Arts degree. She came to the housing field after working briefly with the Ministry of Education and Ministry of Training, Colleges and Universities. Ms. Greenside was hired by the Ministry of Housing and assumed the position of rent review administrator. For the last 10 years, Ms. Greenside has been adjudicating rent related issues under various legislation in both a part time and full time capacity.

David J. Gregory

David Gregory graduated from the University of Toronto where he received a Bachelor of Arts and Sciences degree in 1969 and a Bachelor of Laws degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court, has actively volunteered his time on his community's Committee of Adjustment, Regional Chamber of Commerce and Economic Development Board, and is a past president of his local law association.

Shawn Hayman

Ms. Hayman attended Fanshawe College, specializing in accounting principles and other business disciplines. She worked for 10 years in the financial sector before joining the Ministry of Housing in 1987. Ms. Hayman has spent the last 11 years involved in all aspects of the delivery of Rent Review Programs as an appeal analyst, financial consultant and board member with the Rent Review Hearings Board. Most recently, she served as a rent officer with Rent Control Programs.

Knox Henry (Part-Time Member)

Knox Henry was appointed as a part-time member to the Pesticides Appeal Board in 1975, which was merged with the Environmental Appeal Board in 1978. He was a part-time member until 1991 when he became full-time vice chair of the Environmental Appeal Board. Mr. Henry is one of Canada's leading horticulturalists. He has been a guest lecturer on propagation, management and environmental issues at various universities and colleges. Mr. Henry was cross-appointed as deputy mining and lands commissioner for the period 1995 to 1997 and cross-appointed as a member of the Ontario Rental Housing Tribunal in 1999.

David Horrox

Mr. Horrox graduated from York University with an Honours Bachelor of Arts degree and from the University of Toronto with a Master's degree in public administration. David Horrox served as an administrator in several departments in the federal government, including the Unemployment Insurance Commission, Canada Employment & Immigration Commission, Labour Canada, and Human Resources Development Canada. He was also a professor in the School of Business at Centennial College, and a four-term trustee and chairman of the Scarborough Board of Education. He is certified as an arbitrator by the Arbitration and Mediation Institute of Ontario Inc.

Richard Ittleman

Richard Ittleman has been a member of the Ontario Rental Housing Tribunal since its inception in 1998, and has been an active participant on various Tribunal committees. He holds an Honours Bachelor of Arts degree in history from York University and a Bachelor of Laws degree from the University of Windsor. Mr. Ittleman has been involved for several years in community volunteer work, where he has undertaken a number of fundraising and other projects. He currently sits on the managing council of a major community organization.

Linda Joss

Linda Joss began her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Mrs. Joss spent 10 years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. After this she joined Metro Toronto's Community Service Department as a manager of hostels. During her twenty five years with Community Services, Mrs. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time, Mrs. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Mrs. Joss' experience in emergency housing has provided her with an extensive knowledge of housing issues and the impact of evictions.

Braham T. Kapal

Braham Kapal's educational background includes an Honours Bachelor of Commerce and Bachelor of Laws degrees from Delhi University, and a Master's of Commerce from Meerut University. He received his CGA accounting designation in Canada in 1984. Mr. Kapal has 15 years experience in financial management in the private sector. Since 1983, Mr. Kapal has been involved in the management of adjudication, mediation and public information services in field offices of Rent Review Programs.

Laurie Koch

Laurie Koch received her Bachelor of Arts degree in history and literature from the University of Massachusetts at Amherst and has completed numerous paralegal courses in both the United States and Ontario. Ms. Koch achieved a Certificate in Alternative Dispute Resolution in 1996 from Seneca College. Her professional experience includes paralegal work in both the public and private sectors. Ms. Koch was most recently a rent officer and mediator with the Ministry of Municipal Affairs and Housing where she adjudicated rent control applications and provided dispute resolution services to the landlord and tenant community as a member of the ministry's pilot project mediation team.

Stephan M. Kozak

Stephan Kozak received his Bachelor of Arts degree in political science and sociology from the University of Toronto. Mr. Kozak has since served as a rent review administrator, rent officer and mediator with the Ministry of Municipal Affairs and Housing. In 1996, he received a Reach for Excellence Award from the ministry for his involvement in a landlord and tenant mediation pilot project.

Romuald Kwolek (*Part-Time Member*)

Romuald Kwolek graduated in 1981 from the University of Western Ontario with a Bachelor of Laws degree. He has practised law in the city of Sault Ste. Marie since 1983. He has carried on a general practice with Oraziotti & Kwolek since 1989, specializing in criminal and family law. Romuald Kwolek is currently a deputy judge of the Small Claims Court, and continues to be actively involved in community volunteer work.

Edward Lee (*Part-Time Member*)

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Paul Lummiss

Paul Lummiss studied structural engineering at Lakehead University and graduated as a certified engineering technologist. He has in-depth experience of heavy, commercial and residential construction. Mr. Lummiss is a former member of local government and is a member of the Society of Ontario Adjudicators and Regulators.

Ian MacInnis

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston.

Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He has also been active on several community boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Donald MacVicar

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario.

From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

J. Steven McCutcheon

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He has practised law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, he operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

Tom McDermott

Mr. McDermott received his Honours Bachelor of Arts degree in economics from York University. Tom McDermott has been adjudicating and resolving landlord and tenant disputes for over 10 years. He is a member of the Society of Ontario Adjudicators and Regulators. Mr. McDermott participated in a pilot project to mediate disputes at Landlord and Tenant Court, after completing training in alternative dispute resolution.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Brian L. Rodenhurst

Brian Rodenhurst graduated from the University of Guelph with an Honours Bachelor of Arts degree and from the University of Windsor with a Bachelor of Laws. He was in private law practice for 20 years. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, and vice chair of administration and finance.

Jeffrey Rogers

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

Nancy Savage

Nancy Savage attended the University of Western Ontario Law School, obtaining a Bachelor of Laws degree in 1975. She has experience in private practice and in the representation of a child protection agency as in-house counsel.

Sherry Ruth Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. Recently, as a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee, to name a few. Since the Tribunal's inception, Ms. Senis has been appointed team lead for the adjudicators dealing with operational review recommendations, and is a member of the Performance Management Committee and the Caseload Order Group Committee.

Catherine Skinner

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, she was legal counsel to the Ontario Assessment Review Board.

Cynthia Lynn Summers

Cynthia Summers is a graduate of McMaster University in 1988 with a Bachelor of Arts degree in Political Science, and in 1995 she received her Master's in Social Welfare Policy. Cynthia has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski (Part-Time Member)

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

David G. Timms

David Timms graduated from the University of Western Ontario in 1980 with a Bachelor of Arts degree, from the University of Windsor in 1983 with a Bachelor of Laws degree, and from Osgoode Hall Law School in 2000 with a Master's of Law degree. He has practised law in the areas of civil litigation and dispute resolution since his call to the bar in 1985. Mr. Timms is a member of the Canadian Bar Association, the Arbitration and Mediation Institute of Ontario, the Society of Ontario Adjudicators and Regulators and the Association of Trial Lawyers of America.

Diane L. Tinker

Diane L. Tinker is a graduate of McMaster University with a Bachelor of Arts degree and Queen's University at Kingston with a Bachelor of Laws degree. After her call to the bar in 1981, she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a deputy judge in Small Claims Court in both Kitchener and Cambridge for the past six years.

David Wright

David Wright is a graduate of Carleton University in Ottawa with a Bachelor of Arts degree in which he received first class honours in public administration. For the first 10 years of his career, Mr. Wright was a public housing property manager. For the next 11 years, he worked in various provincial rent regulation programs until his appointment to the Tribunal in June 1998. Mr. Wright is an active volunteer in his community, in such activities as coaching, Gloucester Public Library Board (chair), various school councils, and with the Kiwanis Club of Rideau (past member).

Karol Wronecki

Karol Wronecki's educational background includes an LL.M, a doctorate in law and public administration from the University of Wroclaw (Poland) and an M.A. in public administration from Queen's University. Until 1988 he taught constitutional law and government at several universities in Europe and Canada. Between 1983 and 1988, he adjudicated rent control applications as an Order-in-Council member of the Residential Tenancy Commission. Most recently, he managed field offices administering the previous rent review/rent control legislation.

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TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege
of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2000-
2001 fiscal year.

Respectfully submitted,

A stylized, handwritten signature in black ink, consisting of a large loop on the left and a series of overlapping strokes on the right.

John Gerretsen
Minister of Municipal Affairs

**Ontario Rental
Housing Tribunal**

Office of the Chair
777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la Président
777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Tél: (416) 585-7295
Télécopieur: (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2000/2001 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Chisanga Puta-Chekwe".

**Chisanga Puta-Chekwe
Chair,
Ontario Rental Housing Tribunal**

**Ontario Rental
Housing Tribunal**

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Toronto, Ontario M5G 2E5
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Chair's Message

This is the third Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2000 to March 31, 2001.

Our third year of operations has been a successful one. The recommendations received from our operational review in 1999 have been implemented and we are currently seeing the benefits of some of these improvements in the Tribunal's day to day work.

With respect to mediation, we have found it more beneficial to concentrate on "duty" mediation rather than "routine" mediation. Duty mediation occurs on the day of the hearing while routine mediation is conducted in advance of the hearing date. We have found clients to be more responsive to "duty" mediation. Our mediations have been successful in large urban areas and mediators are now being sent to more remote areas to help our clients in these areas.

Work on our call centre is almost complete and we are excited about the improvements that this can make in service quality to our clients. Our website continues to grow as our clients are using it more and more often as an alternative to telephone enquiries and personal visits.

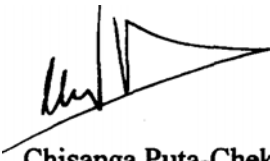
Above guideline increase applications have been a challenge. Although these applications make up less than 1% of our workload, they take up a disproportionate amount of time. We have spent a great deal of time improving our service in this area.

I am confident that next year, we will begin to see progress in resolving these applications in a timely manner.

For 98% of our work, we continue to operate with exceptional efficiency, with practically no backlog.

We have also improved the layout of our Notice of Hearing so that it provides more information in an easily understandable format for our clients. Our forms are under review in an attempt to ease the difficulties of data processing and lengthy waiting times as applications are received at the counter.

Sincerely,

A handwritten signature in black ink, appearing to read 'Chisanga Puta-Chekwe', with a long horizontal line extending to the right.

Chisanga Puta-Chekwe
Chair,
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

On June 17, 1998, the *Tenant Protection Act, 1997*, commonly known as the TPA, was proclaimed.

The TPA brought together six pieces of legislation that formerly governed the relationship between landlords and tenants. The result is a comprehensive package that balances the rights and obligations of tenants and landlords.

The four primary objectives of the TPA are:

- ▶ To simplify the relationship between landlords and tenants
- ▶ To balance the needs of landlords and tenants
- ▶ To create an efficient process that deals with disputes quickly
- ▶ To create a cost efficient process

Under previous legislation, disputes between landlords and tenants were settled through the provincial court system. The court system was formal and costly, and dispute resolution often took a long time.

As well, the previous legislation had a separate system, Rent Control Programs, that oversaw the regulation of rent increases and provided information resources for tenants and landlords.

The need to provide a one-window service to tenants and landlords was clear. As a result, the *Tenant Protection Act, 1997* consolidated the two systems and created an independent, quasi-judicial agency - the Ontario Rental Housing Tribunal - to resolve landlord and tenant disputes.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- ▶ Resolve tenant and landlord disputes through either adjudication or mediation
- ▶ Determine legal above guideline rent increases in residential rental accommodations
- ▶ Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more efficient than previous systems for resolving landlord and tenant issues.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between tenants and landlords. Under the adjudication process:

- ▶ Disputes are heard in public buildings rather than courthouses
- ▶ Tenants may choose to represent themselves and may consult an on-site legal aid representative
- ▶ The more conciliatory approach of mediation is encouraged before the hearing process begins or during the hearing if the adjudicator feels that the matter lends itself to mediation
- ▶ The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues. Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview and selection process.

The adjudicators meet formally twice a year to discuss issues and informally in their regions, on a more frequent basis. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to look at the order format, and other groups that gather opinions on specific issues. Many of the members' meetings also contain elements of training such as conduct of a hearing, natural justice, amendments to the TPA and to other legislation such as the *Statutory Powers Procedure Act*.

The Mediation Process

Mediation is offered under the Tribunal's legislation. It is often used to clarify issues and settle disputes so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use both their knowledge of rent regulation and their negotiation skills to assist landlords and tenants in resolving their applications and their concerns before the hearing.

Approximately 12% of the Tribunal's applications are successfully mediated. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications will have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus more of our mediation efforts on the more complex applications. We have had some success with mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

Locations

The Ontario Rental Housing Tribunal has eight regional offices and eleven client service across the province. Most of the Tribunal's hearings are held in its regional offices.

Hearings are held in the areas that are most convenient for tenants and landlords.

The regional offices are located in the following areas:

- ▶ London
- ▶ Hamilton
- ▶ Mississauga
- ▶ Toronto South (Downtown)
- ▶ Toronto North (North York)
- ▶ Toronto East (Scarborough)
- ▶ Ottawa
- ▶ Sudbury

At client service offices, landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings (when it is convenient for both parties to do so). The client services offices are located in the following areas:

- | | |
|-----------------|------------------|
| → Windsor | → North Bay |
| → Thunder Bay | → St. Catharines |
| → Kingston | → Peterborough |
| → Timmins | → Barrie |
| → Durham/Whitby | → Kitchener |
| → Owen Sound | |

The Tribunal has a network of filing centres across the province where tenants or landlords can file their applications and pick up information about the Tribunal. These filing centres are currently run by private issuers who handle other government documents in more remote areas of the province. We will be exploring ways in which to work as partners with the Government Information Centres across Ontario which have a presence in some of the more remote areas of the province during the next fiscal year.

Call Centre

The Tribunal has created a call centre for handling customer inquiries. This is a toll-free number (1-888-332-3234) which operates 24 hours a day, seven days a week.

Customer Service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions. This year, the Tribunal responded to approximately 850,000 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The Tribunal's web-site (orht.gov.on.ca) is visited almost 50,000 times each year. All forms are available on the Internet as well as through each regional and client service office.

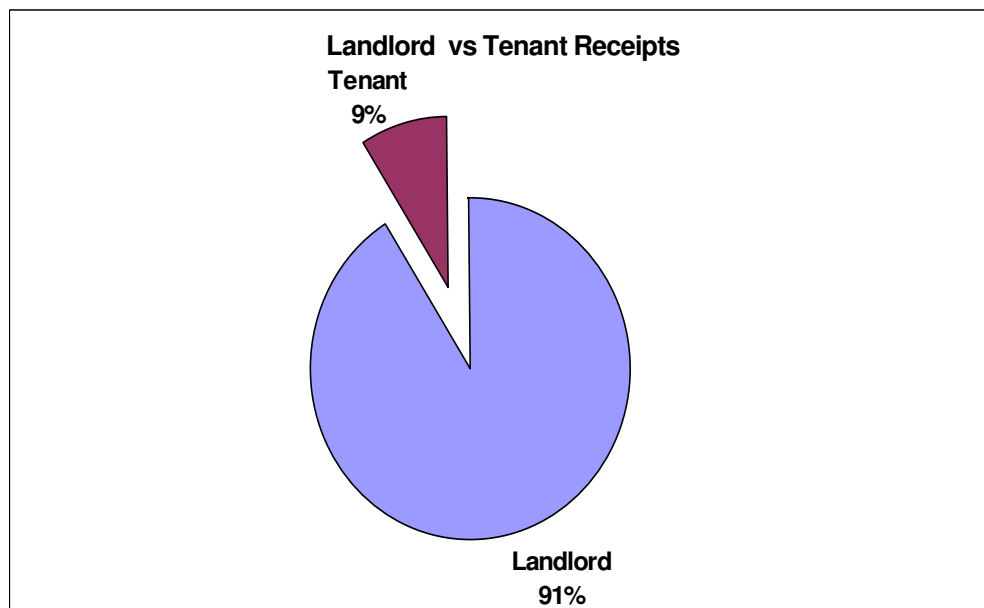
The Tribunal's telephone system will be updated in 2001 to improve our service to customers. The new equipment will allow our customer service representatives to respond to more calls and will allow more clients to get through on our 1-888 telephone line.

Statistical Information for the year 2000-2001

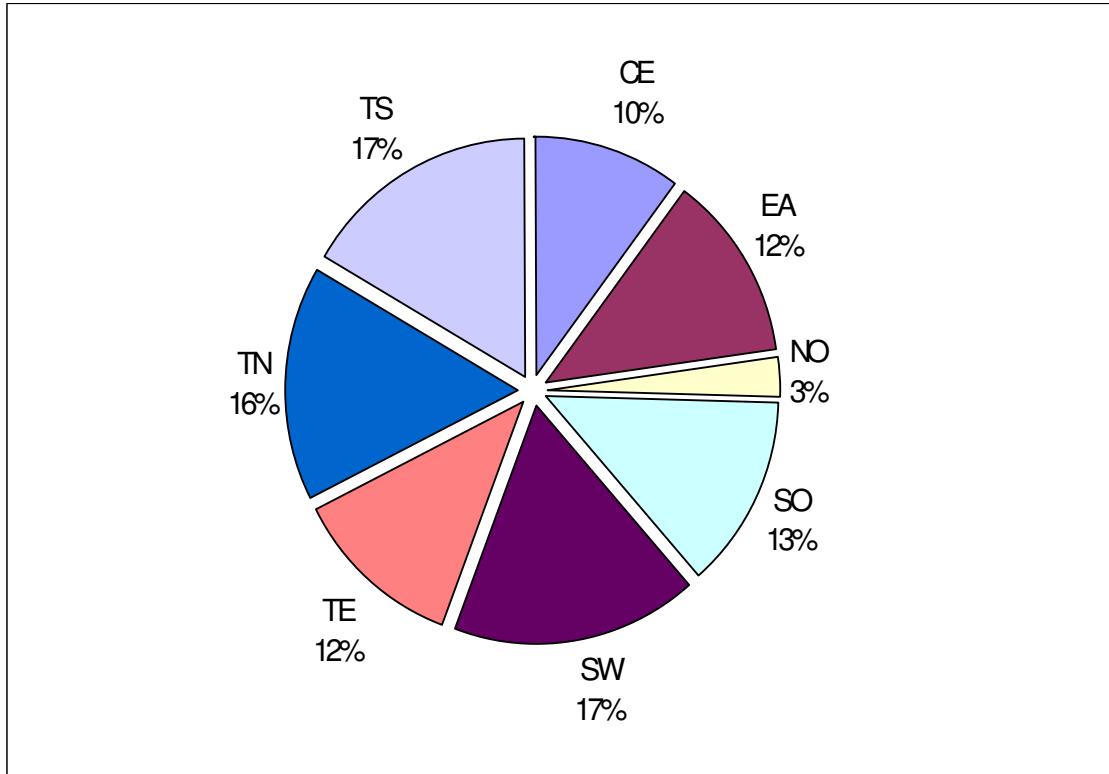
Applications

During the year, the Tribunal received 73,931 applications and resolved 76,946. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may be counted twice.) At the end of the fiscal year 3,536 applications were still in process.

The distribution of the receipts for the 2000-2001 fiscal year are reflected in the following profile:



The regional distribution of applications is as follows:



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Eviction applications have been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 71.40 per cent were for termination of tenancies because of arrears of rent. This is down slightly from 72.63 per cent last year. Tenant applications accounted for 7.10 per cent of the applications filed during this fiscal year. This is slightly up from 7.05 per cent last year.

Above Guideline Increase Applications

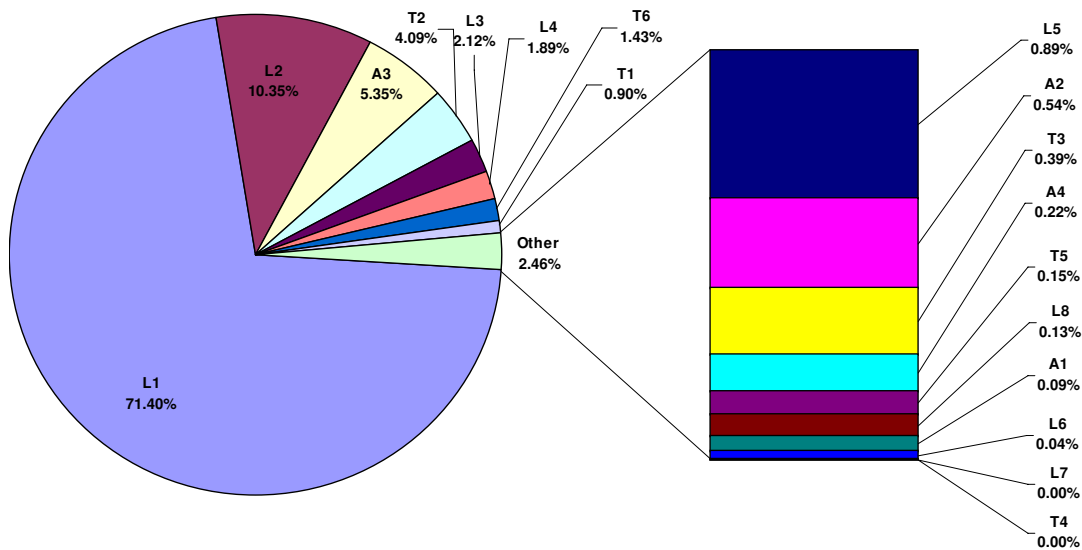
An average of 251 applications for above guideline increases were received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for above guideline increase were received. Although the number decreased to 388 during the 1999-2000 fiscal year, the number again rose to 608 during this fiscal year.

We are finding that these applications, combined with applications for tax increases and decreases, take a disproportionate amount of time both for staff and adjudicators. A study of the Tribunal's workload found that these applications which make up only one per cent of the Tribunal's workload, take 16 per cent of the Tribunal's time.

Although the Tribunal has found some ways to handle this difficult and time consuming workload, it remains a priority for us in the coming year. We have determined that mediation between represented parties to an above guideline increase application has been successful in easing this problem and we will continue to encourage resolutions through mediated settlements.

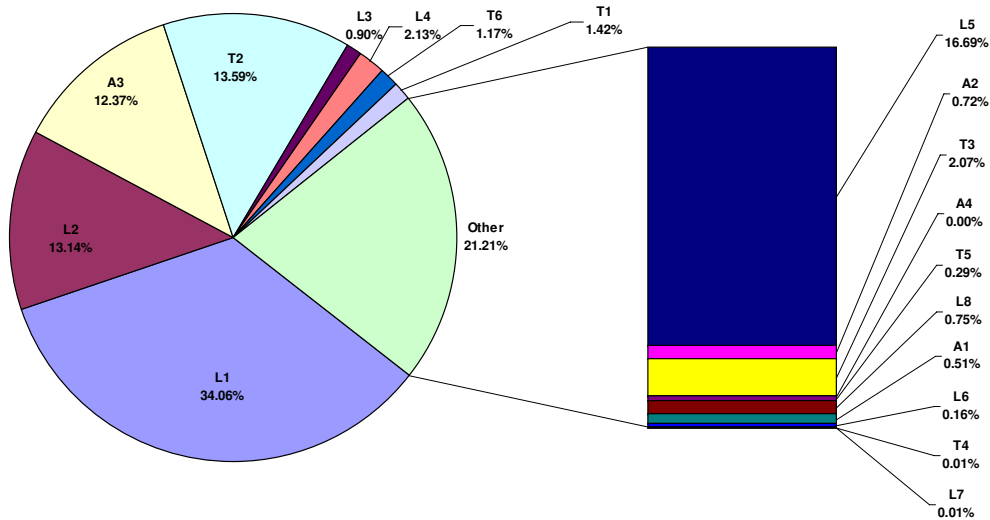
The charts on the following two page show the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing), as well as a distribution of application type by hearing time.

DISTRIBUTION OF APPLICATION RECEIPTS WORKLOAD FOR FISCAL 2000/2001



Case Type		# Cases	#Defaults	#Hearings
L1	Termination and Non-Payment of Rent	48,646	31,117	15,553
L2	Terminate Tenancy & Evict	7,052	1,969	4,000
A3	Combined Application	3,646	781	2,511
T2	Tenant Rights	2,788	1	2,068
L3	Termination - Tenant gave Notice	1,447	1,280	410
L4	Terminate Tenancy: Failed Settlement	1,288	1,173	433
T6	Maintenance	976	0	536
T1	Rebate	616	59	431
L5	Rent Increase above Guideline	608	2	635
A2	Sublet or Assignment	369	116	218
T3	Rent Reduction	269	0	315
A4	Vary Rent Reduction Amount	148	0	221
T5	Bad faith Notice of Termination	101	0	88
L8	Tenant Changed Locks	87	2	57
A1	Determine Whether Act Applies	61	0	77
L6	Review of Provincial Work Order	30	0	25
T4	Failed Rent Increase above Guideline	2	0	2
L7	Transfer Tenant to Care Home	0	0	1
		68,134	36,500	27581

DISTRIBUTION OF HEARING TIME WORKLOAD FOR FISCAL 2000/2001



Case Type	# Cases	# Defaults	# Hearings	Hearing Time (minutes)
L1 Termination and Non-Payment of	48,646	31,117	15,553	311,060
L2 Terminate Tenancy & Evict	7,052	1,969	4,000	120,000
A3 Combined Application	3,646	781	2,511	112,995
T2 Tenant Rights	2,788	1	2,068	124,080
L3 Termination - Tenant gave Notice	1,447	1,280	410	8,200
L4 Terminate Tenancy: Failed	1,288	1,173	433	19,485
T6 Maintenance	976	0	536	10,720
T1 Rebate	616	59	431	12,930
L5 Rent Increase above Guideline	608	2	635	152,400
A2 Sublet or Assignment	369	116	218	6,540
T3 Rent Reduction	269	0	315	18,900
A4 Vary Rent Reduction Amount	148	0	221	0
T5 Bad faith Notice of Termination	101	0	88	2,640
L8 Tenant Changed Locks	87	2	57	6,840
A1 Determine Whether Act Applies	61	0	77	4,620
L6 Review of Provincial Work Order	30	0	25	1,500
T4 Failed Rent Increase above Guideline	2	0	2	120
L7 Transfer Tenant to Care Home	0	0	1	120
	68,134	36,500	27,581	913,150

Harassment Applications

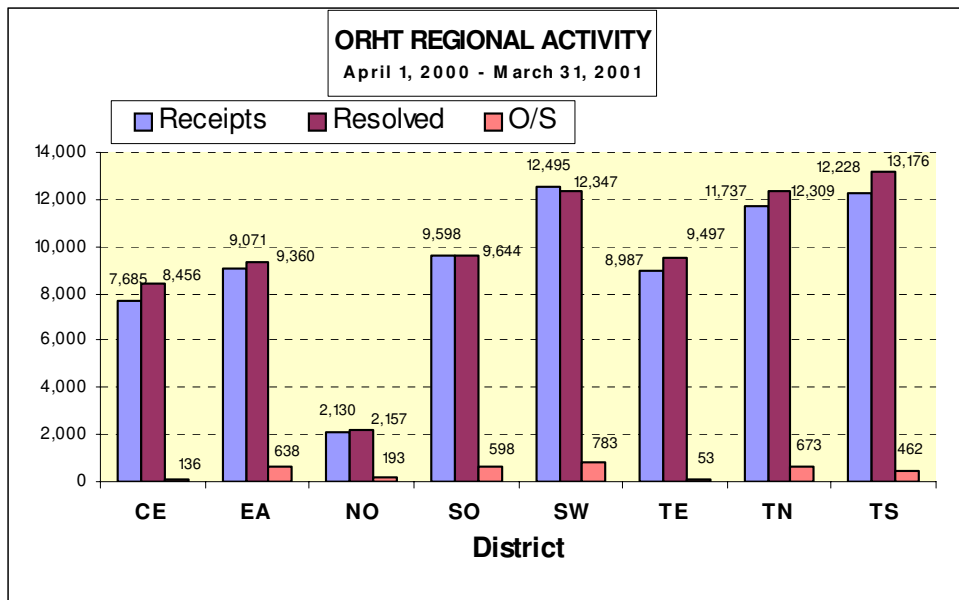
Tenants may apply to the Tribunal for relief, at no charge, if they believe that their landlord has been harassing them. The Tribunal received 2,788 applications relating to tenant rights as compared to 2,641 during the last fiscal year. Of the number received, 440 had yet to be resolved at the end of the fiscal year.

APPLICATION RESOLUTION

The Tribunal has been successful in resolving applications quickly. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 22 days of filing the application and even more complex orders were issued within 25 days.

The Tribunal continues however, to experience difficulty in processing above guideline increase applications as quickly and as efficiently as we would like. Finding ways of meeting this challenge will become an on-going project for the Tribunal over the coming months.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North and **TS** to Toronto South.

ORDER SUMMARIES

Ontario Rental Housing Tribunal adjudicators are responsible for hearing a wide variety of applications from both landlords and tenants. These applications address such issues as above guideline rent increases, evictions and orders for payment of arrears.

The following presents a sample of cases heard by the Tribunal during the 2000-2001 fiscal year.

Landlord Application

Section 34

The landlord applied to terminate the tenancy and evict the tenant, based on the tenant's alleged interference with the reasonable enjoyment of the premises by the landlord.

Both the landlord and the tenant attended the hearing. At the hearing, the landlord stated that she had served a Notice of Early Termination on the tenant as the tenant would not allow her access to show the unit to prospective buyers, even after she had served the tenant with a 24-hour written notice as required under section 21 of the Act. The landlord stated that she entered the rental unit, accompanied by a police officer, and took pictures and measurements. The landlord also stated that she served this notice of termination on the tenant which allowed the tenant to remedy the situation within seven days, failing which the notice would then become void. The landlord served the notice on the tenant on June 1, 2000. The landlord advised the tenant in writing that she would be entering the rented premises on June 12, 2000. The member found that subsection 64(3) of the *Tenant Protection Act, 1997* provides a seven-day remedy period and if the tenant, within seven days of receiving the notice, stops the conduct or remedies the situation the notice is then void. The member dismissed the application based on the fact that the landlord did not attempt to gain access to the rental unit within the required 7-day remedy period as required under subsection 64(3) of the Act.

The tenants applied for an order to determine if the landlord had harassed, obstructed, coerced, threatened or interfered with the tenants' reasonable enjoyment and/or withheld the reasonable supply of a vital service.

The hearing was held on February 16, 2001. All parties were present along with their legal representatives. At the start of the hearing, the landlord's legal representative raised a preliminary matter to determine if the Tribunal had jurisdiction to hear this application and moved for the application to be dismissed. The landlord's lawyer was relying on section 3(i) of the TPA, which states that the Act does not apply where the occupant is required to share a kitchen or bathroom facility with the owner who lives in the premises. There was no dispute that the owner lived in the residential unit. There also was no doubt that the parties originally intended to share the kitchen facilities between the owner and the occupants. Even though the tenants were using a separate area with a sink and had supplied their own microwave, the original intention was for these parties to share the kitchen facilities. The member found the Tribunal had no jurisdiction and dismissed the application as per section 3(i) of the TPA.

The landlord applied for an order to terminate the tenancy and evict the tenants as they had not paid the rent they owed. The tenants applied for an order determining that the landlord had substantially interfered with their reasonable enjoyment.

The landlord's application was originally scheduled to be heard on September 12, 2000. However, at the hearing the parties agreed to adjourn the hearing to allow the tenants to pay two months rent into the Tribunal and to file their own application about tenant rights. An Interim Consent order was issued by the Tribunal confirming the terms agreed to by the parties.

The two applications were heard in common. All parties were present. The landlord presented two witnesses. The tenants had one witness who was not called upon to give evidence. On the issue of the landlord's application for non-payment of rent, all parties agreed that there were no arrears owing at this time as the tenants had paid the full amount into the Tribunal as directed by the Interim Order.

The tenants' application was based on an unpainted door to their townhouse rental unit. In September 1999, the tenants' unit was broken into. The front door and frame were damaged as a result of this break-in, and further damage was caused by the police when they dusted for fingerprints.

On the evening of the break-in the landlord's staff carried out temporary repairs to ensure the unit was secure. The next day, the landlord's staff returned and replaced the door with a new one. The door was only painted with a primer coat, and there was no dispute between the parties that the door required painting. The tenants continued to contact the landlord and the landlord's staff requesting that the door be painted. In August 2000, the door was painted. The tenant explained that this unpainted door interfered with her reasonable enjoyment. Her testimony was that as long as door remained unpainted she was unable to put the trauma of the break-in behind her. As well, an unpainted door was a clear invitation to anyone else who may be interested in breaking into her home. After several calls to the landlord she stated that out of frustration she decided to withhold the rent for July and August 2000, until the door was painted. The landlord submitted a letter from the tenant stating that she had to leave her previous job due to medical reasons and was at this time unemployed. The landlord drew the attention of the member to this letter stating that nowhere in the letter did the tenant state that she was withholding rent because of the unpainted door.

The member preferred the evidence of the landlord, as it was clear and concise compared to that of the tenant which was contradictory and vague. The member also placed significant weight on the August 2, 2000 letter from the tenant as she did not use this opportunity to inform the landlord of the outstanding painting of the door and how it was impacting on her reasonable enjoyment of the premises, but chose only to address her financial situation.

The member dismissed the tenants' application due to a lack of evidence. The landlord's application was dismissed since the tenants had paid all arrears owing into the Tribunal. This was directed to be paid to the landlord. The tenants were then ordered to pay costs to the landlord in the amount of \$285.00. This represented \$225.00 for the tenants' unreasonable conduct and \$60.00 for the cost of the landlord's application.

Tenant Application

Section 144

The tenant applied for an order to determine if the landlord had collected or retained money illegally.

At the hearing, both parties were present and self-represented. The tenant claimed that there was damage caused to her personal belongings due to a flood in her apartment. She also requested a rent abatement for the damage this caused to the floor.

The tenant stated that in the early morning hours of January 22, 2000, a hot water pipe burst. This pipe supplied water to the units above her apartment. The burst pipe caused damage to several units, including the applicant's. The tenant had to move out since the unit was uninhabitable. She was able to re-occupy the unit in the middle of February 2000.

The tenant stated that the landlord should have taken precautions to avoid this situation as a similar situation had happened in 1997. The landlord argued that the two situations were not similar.

The member preferred the evidence of the landlord regarding the cause of the burst pipe. He did not believe that the water damage was the fault of the landlord caused by a lack of preventative maintenance, regular inspections, or any of the other reasons argued by the tenant. An abatement of rent was awarded to the tenant in the amount of \$320.00 for the half month that the tenant had to vacate the unit. As well an amount was awarded to the tenant for food that spoiled when the landlord's staff accidentally unplugged the refrigerator, plus an additional \$100.00 for sundry living and travelling expenses incurred by the tenant.

Tenant Application

Sections 32 and 35

The tenants applied for an order to determine if the landlord had interfered with their reasonable enjoyment of the rental unit.

The hearing was held on August 17, 2000. All parties were present, as was the landlord's solicitor. The basis of this case was that the tenants felt that the rental unit required painting and new carpeting. The landlord argued that he had a maintenance schedule in place for these items, and to vary from that would be problematic.

The main concern of the tenants was that the rental unit did not necessarily need painting or the carpet replaced, they merely wished permission to do the decorating for their own pleasure and at their own costs. The landlord would not consent to this. The member found that this was not necessarily harassment on the part of the landlord, but by refusing to give his consent to these upgrades it did interfere with the tenants' reasonable enjoyment of the rental unit. The member issued an order allowing a current abatement of rent in the amount of \$1.00 as a token to assume jurisdiction to award a future amount of an abatement on a conditional basis. The order allowed the tenants to paint the walls of the rental unit in a white or an off-white colour and to purchase and install residential quality carpet for any room of the apartment. This order allowed a further abatement of \$100.00 per month for each month the landlord refused his consent to allow these upgrades.

Landlord Application

Section 76

The landlords applied for an order to terminate the tenancy and evict the tenants as the tenants signed an agreement to terminate.

The landlord and both tenants were present at the hearing. The landlord claimed that the tenants had agreed to terminate the tenancy and vacate the rental unit. The member relied upon several sections of the Act in making his findings.

Pursuant to sub-section 76(1) of the *Tenant Protection Act, 1997*, a landlord may apply to the Tribunal for an order terminating the tenancy and evicting the tenant if the landlord and the tenant have entered into an agreement to terminate the tenancy or if the tenant has given notice of termination of the tenancy.

In sub-section 1(1) of the Act “tenant” is defined, in part, to include “a person who pays rent in return for the right to occupy a rental unit”, and “person” is defined, in part, to mean “an individual, sole proprietorship, partnership, limited partnership, trust or body corporate, or individual in his or her capacity as a trustee, executor, administrator or other legal representative.”

The member found the definitions of “tenant” and “person” do not include two people who are spouses of one another. Each of those spouses is an individual who has separate rights and obligations under the Act. The member found that since only one of the two tenants had signed the notice to terminate, the notice was not valid for both tenants and dismissed the landlord’s application.

Landlord Application

Subsection 138(6)

The landlord applied for an order allowing him to increase the rents for one or more of the rental units in the complex by more than the guideline amount. To support this claim the landlord submitted proof with the application that several capital expenditures had been incurred at the complex that warranted an increase that was greater than the guideline.

The application was heard on November 15, 2000. At the beginning of the hearing, the member raised a preliminary issue that the application was filed less than 90 days before the effective date of the first intended rent increase, contrary to the requirement of subsection 138(3) of the Act.

The member allowed the abridgement of time for filing this application as it was only filed two days late and any order would be contingent upon the landlord having properly served a Notice of Rent Increase. The member found no prejudice to the affected tenants in making the order sought by the landlord abridging time.

The next issue raised by the tenants was the capital expenditures claimed by the landlord. The landlord was claiming several large expenditures which the tenants did not feel met the definition of a capital expenditure as set out in the Act. The tenants submitted a prior case handled by the Tribunal in which the member did not allow capital expenditures for work done on the apartment corridors. This decision was upheld upon review and the tenants in this application were relying on the same interpretation. The member stated his view of section 138 as follows:

The landlord must, in any application, prove that a claimed expenditure is a capital expenditure as defined in subsection 15(1) of O.Reg. 194/98. If the Tribunal is satisfied that the expenditure is a capital expenditure and the landlord has also proven that this is captured by the limitations of subsection 138(8), the expenditure must be allowed.

The member allowed the expenditures claimed by the landlord and issued an order justifying an increase of 1.21% above the guideline.

Tenant Application

Section 35

The tenant applied for an order to determine if the landlord had interfered with her reasonable enjoyment of the rental unit.

The hearing was held on June 20, 2000 and on August 3, 2000. All parties were present along with the landlord's agent and counsel for the tenant. This application raises the difficult issue concerning the right of a tenant to invite guests to visit the residential premises and a right of a landlord to restrict entry by such persons.

The tenant was married to her guest and they had two children. The tenant and her guest divorced and the two children reside with their mother at the rental unit. The tenant's guest has a history of bad behaviour while he is present in the complex. The landlord stated that the tenant's guest has been verbally abusive to the landlord and to the landlord's staff in the past and the police had to intervene on three occasions in which temporary bans on being allowed to enter the complex were issued under the *Trespass to Property Act*, R.S.O. 1990, c.T.21.

The tenant's ex-husband has continued to assist the tenant in the raising of the children. Prior to the ban he attended at the tenant's unit, with her permission, to visit and or pick-up the children. As a result of the ban the tenant's ex-husband has been denied access to the complex making it difficult for him to visit his children. The tenant submits that, because of this, the landlord has seriously interfered with her and her children's reasonable enjoyment of the rented premises.

The member relied on section 26 of the TPA which states:

... the landlord shall not at anytime during a tenant's occupancy of a rental unit ... substantially interfere with the reasonable enjoyment of the rental unit or the residential complex in which it is located for all usual purposes by the tenant or members of his or her household.

The member also relied on the Court decision in the case *Cunningham v. Whitby Christian Non-Profit Housing Corp.*, (1997), 33 O.R (3d) 171. In that case, the landlord issued a Trespass Notice to the tenant's guest on the basis that the landlord had determined that the guest was occupying the rental unit illegally with the tenant.

The Court found that a tenant has the right to have guests over at any time throughout their tenancy.

The member took this into consideration and issued an order instructing the landlord to refrain from interfering with the tenant's reasonable enjoyment by refusing to grant access to the tenant's ex-husband or any guests in the future.

The landlord applied for an order to terminate the tenancy and evict the tenant as he had not paid the rent he owed.

The application was heard on March 30, 2000 and concluded on April 18, 2000. The landlord was represented by his property manager and the tenant was represented by an agent. The tenant entered into an agreement with the landlord that he would pay a market rent of \$791.00 per month. The landlord is a non-profit housing corporation and receives government funding to assist in providing accommodation to people who require financial assistance. The tenant's financial situation changed and he submitted an application for housing to The Community Housing Access Network (CHAN). CHAN is a government approved system of coordinated access to social housing in the Hamilton-Wentworth area.

The tenant requested several times to CHAN that his application be given priority over all others as he required a subsidy urgently. The directive of CHAN is that residents who pay market rent and who wish to receive a rent-geared-to-income subsidy are placed on a chronological waiting list. The tenant's agent argued that the landlord owed a fiduciary duty to the tenant and to evict the tenant would be a breach of this duty. He argued that this fiduciary duty arose because the landlord is in receipt of government funding to assist in the operation of its housing complexes and because the corporate objectives of the landlord include to "provide and maintain housing for low-income individuals and families" in the City of Hamilton. He argued that evicting the tenant would create a homeless person whereas the corporate objectives of the landlord imply that it was established to assist the homeless. He referred to *Hodgkinson v. Simms, (1994) 3 S.C.R. 377*.

The member rejected this argument and issued an order terminating the tenancy and evicting the tenant as there is nothing in the Act to suggest that a tenant waiting for a rent subsidy is exempt from eviction.

The tenants applied for an order to determine if the landlord failed to meet its maintenance obligations under the *Tenant Protection Act, 1997*.

The application was heard on September 29, 2000. The tenants were present and represented themselves. The landlord was represented by counsel.

The application related to the maintenance of a septic system in a land lease community.

On August 27, 1999 the tenants experienced a problem with the drainage from the dwelling to the septic system. The tenants were able to partially remedy the situation by digging up and removing the cover of the septic tank. Upon doing so, they discovered that the septic tank was overfilled and the inflow pipe was blocked. The tenants contacted the landlord on August 28, 1999 by telephone, and the landlord's property agent responded by e-mail on August 30, 1999. In this e-mail, the landlord's property agent stated to the tenants that the septic system was their responsibility and they would have to repair it as stated in their lease.

The tenants maintained the septic system for the next year until they found out that it was the landlord's responsibility under section 110 of the Act and decided to file this application.

The tenants allege that the landlord has breached its obligations under clause 110(1)(d) of the Act to maintain the sewage disposal system in a good state of repair.

As a preliminary issue, the member questioned whether the tenants had made their application within one year after the date the landlord breached the obligation. The evidence is that the problem with the septic system arose on August 27, 1999 and the application was filed on August 29, 2000, which would appear to be outside the one year limitation. The tenants faxed their application to the Tribunal on August 25, 2000, but a page was missing so the application was not accepted. The tenants were informed of this by the Tribunal on August 28, 2000, and the tenants then faxed in the missing page on August 29, 2000. The member's interpretation of subsection 110(2) of the Act would require the tenants, under normal circumstances, to file this application no later than August 27, 2000. August 27, 2000 was a Sunday, so the member relied on section 28(h) of the *Interpretation Act*, R.S.O. 1990, Chapter I-11 which provides that:

“where the time limited by an Act for proceeding or for the doing of anything under its provisions expires or falls on a holiday, the time so limited extends to and the thing may be done on the day next following that is not a holiday,”

The definition of holiday in the *Interpretation Act* includes a Sunday. The member found that the tenants had until August 28, 2000 to file their application. Since the tenants did not file their application till the day after, the member dismissed the application.

Landlord Application

Section 21.2 Review Order

The landlord applied for an order for compensation for damages caused by the tenants either negligently or willfully, and an order terminating the tenancy and evicting the tenants for the damage they have caused.

The application was heard on June 6, 2000, and was resolved by Order on June 14, 2000. On June 21, 2000, the tenants requested a review of this order. The review was granted and an Interim Order was issued on July 11, 2000. The review hearing was commenced on August 16, 2000 and concluded on September 21, 2000.

The landlord's application was brought on the basis that the tenant had caused damage to the building's garage door by trying to drive his truck into the underground garage without first resetting the garage door with his key. The member at the original hearing had requested documentation be given by the landlord pursuant to clause 187(1)(d) of the Act which provides as follows:

*187. (1) The Tribunal may, before, during or after a hearing,
(d) permit or direct a party to file additional evidence with the Tribunal which the Tribunal considers necessary to make its decision.*

The additional information was received on June 9, 2000 but the member did not inform the other parties so they could have an opportunity to explain or refute it. This is required under subsection 187(2) of the Act. Because of this, the reviewing member found a serious procedural error and granted the review. The reviewing member having considered all of the oral and documentary evidence and submissions made by both parties, made the following determinations:

The tenants had caused undue damage to the garage door at a cost of \$1,925.70, which will be paid to the landlord on the 21st of each month starting October 21, 2000 in the amount of \$300.00 per month. The reviewing member used his discretion under section 84 of the Act and did not award a termination, but allowed the landlord the right, if the tenant failed to make any of the payments for damage, to apply to the Tribunal under section 77 without notice to the tenant for an order granting the eviction.

BIOGRAPHIES

CHAIR

Chisanga Puta-Chekwe

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford.

Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994.

In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997.

He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000).

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

VICE CHAIRS

David Braund

David Braund is a graduate of the University of Western Ontario (Bachelor of Arts, 1971 and Bachelor of Laws, 1974). After his call to the bar in 1976, he practiced law for five years in London, Ontario. During that time he also served as chair of the London Committee of Adjustments which decided cases under the Planning Act. In 1981, he was appointed as a commissioner of the Residential Tenancy Commission, and later as appeal commissioner. From 1986 to 1998, Mr. Braund was the rent registrar for Ontario under the Rent Review and Rent Control Programs. He is a member of the executive of the Couchiching Institute of Public Affairs, and also co-chair of the Rules of Practice Committee of the Society of Ontario Adjudicators and Regulations.

Gilles Guénette

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette has recently practiced as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the vice chair of Ottawa-Carleton Housing Authority. He is a former president of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general. Ms. Holmes has been active in community service organizations such as Mission Services in London. She is a founding member of Teen Girls' Home, and the Brain Tumour Foundation of Canada (Gus Macher Tournament), and sits on the Advisory Committee of Collections for the London Historical Museums.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Ontario Adjudicators and Regulators Training and Education Committee.

Beverly Moore

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

ADJUDICATORS

Shehnaz Alidina (Part-Time Member)

Shehnaz Alidina has a Master's degree in Health Administration from the University of Ottawa and a Fellowship in Health Administration from the Juan de Fuca Hospitals in British Columbia. She has held a number of positions in health planning and administration in Ontario, Alberta and British Columbia, including five years as executive director of the Nipissing-Timiskaming District Health Council in Ontario. She now works as a private health consultant and has undertaken health reform projects in France, Kenya, Croatia and Tajikistan. She has published in health journals and has received a number of awards for academic excellence and community service.

Ashis Basu

Ashis Basu attended schools in England and India prior to obtaining his Bachelor of Science (Honours) in 1974 and Master of Business Administration (Distinction) in 1977 from Pune University in India. He started his career in the private sector in 1977 with one of the largest corporations in Kenya, becoming General Manager in 1983. He was also a Member of the Federation of Kenya Employers and was actively involved in negotiating and mediating many employment issues. In 1980, he served in Uganda as Member of the Project Team working with the World Bank and G7 countries responsible for economic and industrial reconstruction of the country after the restoration of democracy. Moving to Canada in 1988, he joined Citigroup, one of the world's largest financial services companies. He worked in various functions during his tenure, including administration, internal control, regulatory affairs, and business and systems planning. Prior to his appointment to the Tribunal he managed all acquisitions and contracts of the organisation in Canada.

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings to the Tribunal her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Chris Braney

Chris Braney has extensive experience in both the business community and in public service. Over the years, he has served as the vice president of the Centennial Community and Recreation Association, and director of the Variety Club Telethon. He is currently the president of West Hill Community Services, a volunteer board that caters to the needs of underprivileged members of the community. In 1994, he was elected to the Scarborough Board of Education, where he served as both a trustee and the vice chairman of the board overseeing an annual budget of \$525 million. As vice chairman, Chris chaired many hearings dealing with students who had broken the rules associated with the Scarborough Board of Education's zero tolerance to weapons and violence policy. Chris has also been the owner and operator of a successful health and safety products company, where he specialized in marketing and communications. Before joining the Tribunal, Chris was the director of marketing for a Toronto based aerospace company.

Jim Brown

Jim Brown graduated from Ryerson Polytechnical Institute in business administration in 1965. He then graduated with a Bachelor of Arts degree from York University in 1968. That same year, he graduated from the Certified General Accountant program. In 1971 he graduated from the Master of Business Administration program at York University. In 1971 he also graduated as a registered industrial accountant. Mr. Brown spent many years at the Toronto Telegram and was one of the founders of the Toronto Sun. Mr. Brown operated his own manufacturing company for 25 years before entering public service. He has lectured at Ryerson, Seneca College and the University of Toronto. He is also a former member of the Ontario Legislature.

Stanley Chapman (Part-Time Member)

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Worker's Compensation Appeals Tribunal.

Andreas von Cramon

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practiced law in Brockville, after his call to the Law Society of Upper Canada in 1991, until his appointment to the Ontario Rental Housing Tribunal. He is a past member of the Ontario Consent and Capacity Board.

Michael van Dusen (Part-Time Member)

Michael van Dusen is a graduate of the University of Ottawa (B. A. *cum laude*, 1982), LL.B. 1986). He practiced with the firm of Goldberg, Shinder, Gardner & Kronick until 1997 when he joined Messrs. Burke-Robertson. He continues to carry on an active practice with particular emphasis on insurance and commercial litigation. Mr. Van Dusen is directly involved in several local charities and continues to devote much of his spare time to community fundraising. He was appointed as a part-time member of the Ontario Rental Housing Tribunal on February 01, 2001, assigned to the Eastern Regional Office.

Susan Ellacott (Part-Time Member)

Susan Ellacott is a resident of the Ottawa region and served in the federal departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Lola Fabowalé

Lola Fabowalé graduated from Trent University in 1988 with a Bachelor's degree in administrative and policy studies. She also completed a Master's degree in management studies at Carleton University in 1991. Until her appointment to the Tribunal, Ms. Fabowalé coordinated the development of the policy and advocacy functions at Oxfam Canada.

She joined Oxfam Canada as programme development officer in 1995 and gradually accepted wider organizational responsibilities. Other organizations she had worked for include: the Public Interest Advocacy Centre as research director, Ekos Research Consulting Associates as a research analyst, and the International Development Research Centre as a professional research assistant. Her Master's thesis, "An Empirical Analysis of Credit Terms to Female Entrepreneurs", was commissioned as a research project by the Canadian Federation of Independent Business in 1989. Her involvement in community development work featured a two-year term as treasurer on the Volunteer Board of Immigrant and Visible Minority Women Against Abuse (IVMWAA).

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by the previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Steven J. Faughnan

Steven Faughnan received a Bachelor of Commerce degree from Concordia University and is a graduate of the National Law Program of McGill University, where he received degrees in both civil (BCL) and common law (LLB). After his call to the bar of Ontario, Mr. Faughnan practiced civil litigation, represented clients at mediation and before administrative tribunals, and appeared in civil and commercial cases at Ontario courts of all levels. In 1998, he was appointed to the Ontario Rental Housing Tribunal and adjudicates hearings in English and French.

Richard A. Feldman

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, he has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

Murray Wm. Graham

Murray Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practiced law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management, and environmental research and development industries.

David J. Gregory

David Gregory graduated from the University of Toronto, where he received a Bachelor of Applied Science degree in 1969 and a Juris Doctor degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court, has actively volunteered his time on his community's Committee of Adjustment, Regional Chamber of Commerce and Economic Development Board, and is a past president of his local law association.

John Goodchild

John Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, then employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. He was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Shawn Hayman

Shawn Hayman attended Fanshawe College, specializing in accounting principles and other business disciplines. She worked for ten years in the financial sector before joining the Ministry of Housing in 1987. Ms. Hayman has spent the last 11 years involved in all aspects of the delivery of Rent Review Programs as an appeal analyst, financial consultant and board member with the Rent Review Hearings Board. Most recently, she served as a rent officer with Rent Control Programs.

Knox Henry (Part-Time Member)

Knox Henry was appointed as a part-time member to the Pesticides Appeal Board in 1975, which was merged with the Environmental Appeal Board in 1978. He was a part-time member until 1991 when he became full-time vice chair of the Environmental Appeal Board. Mr. Henry is one of Canada's leading horticulturalists. He has been a guest lecturer on propagation, management and environmental issues at various universities and colleges. Mr. Henry was cross-appointed as deputy mining and lands commissioner for the period 1995 to 1997 and cross-appointed as a member of the Ontario Rental Housing Tribunal in 1999.

David Horrox

David Horrox graduated from York University with an Honours Bachelor of Arts degree and from the University of Toronto with a Master's degree in public administration. David Horrox served as an administrator in several departments in the federal government, including the Unemployment Insurance Commission, Canada Employment & Immigration Commission, Labour Canada, and Human Resources Development Canada. He was also a professor in the School of Business at Centennial College, and a four-term trustee and chairman of the Scarborough Board of Education. He is certified as an arbitrator by the Arbitration and Mediation Institute of Ontario Inc.

Richard Ittleman

Richard Ittleman has been a member of the Tribunal since its inception in 1998, and has been an active participant on various Tribunal committees. He holds an Honours Bachelor of Arts degree in history from York University and a Bachelor of Laws degree from the University of Windsor. Mr. Ittleman has been involved for several years in community volunteer work, where he has undertaken a number of fundraising and other projects. He currently sits on the managing council of a major community organization.

Linda Joss

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Mrs. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. After this she joined Metro Toronto's Community Service Department as a manager of hostels. During twenty five years with Community Services, Mrs. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time Mrs. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Mrs. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Catherine Keleher

Catherine Keleher started with the Tribunal as a part-time Member in July 2000, and became a full-time Member in February 2001. Catherine served for 13 years as Reeve of the Town of Palmerston. In that position, she served as a member of Wellington County Council and was elected Warden for 1994. Catherine has chaired the Town's Public Works, Administration Finance and Recreation, and Planning and Development committees as well as the County's Administration Finance and Personnel Committee, the Wellington-Guelph Joint Social Services Committee, and has co-chaired the Wellington-Guelph Waste Management Master Plan Steering Committee. She has been Vice-Chair of the Wellington County Library Board and a member of the Wellington County Police Services Board and the Wellington-Dufferin-Guelph Board of Health. Her community activities include two years as Vice-Chair of the Palmerston and District Hospital Board of Governors and ten years as a member of the Maitland Valley Conservation Authority and the Board of Family and Children's Services of Guelph and Wellington County.

Laurie Koch

Laurie Koch received her Bachelor of Arts degree in history and literature from the University of Massachusetts at Amherst and has completed numerous paralegal courses in both the United States and Ontario. Ms. Koch achieved a Certificate in Alternative Dispute Resolution in 1996 from Seneca College. Her professional experience includes paralegal work in both the public and private sectors. Ms. Koch was most recently a rent officer and mediator with the Ministry of Municipal Affairs and Housing where she adjudicated rent control applications and provided dispute resolution services to the landlord and tenant community as a member of the ministry's pilot project mediation team.

Stephen M. Kozak

Stephan Kozak received his Bachelor of Arts degree in political science and sociology from the University of Toronto. Mr. Kozak has since served as a rent review administrator, rent officer, and mediator with the Ministry of Municipal Affairs and Housing. In 1996, he received a Reach for Excellence Award from the ministry for his involvement in a landlord and tenant mediation pilot project.

Romuald Kwolek (Part-Time Member)

Romuald Kwolek graduated in 1981 from the University of Western Ontario with a Bachelor of Laws degree. He has practiced law in the city of Sault. Ste. Marie since 1983. He has carried on a general practice with Oraziotti & Kwolek since 1989, specializing in criminal and family law. Romuald Kwolek is currently a deputy judge of the Small Claims Court, and continues to be actively involved in community volunteer work.

Edward Lee

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practiced law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Paul Lummiss

Paul Lummiss studied structural engineering at Lakehead University and graduated as a certified engineering technologist. He has in-depth experience with heavy, commercial and residential construction. Mr. Lummiss is a former member of local government and is a member of the Society of Ontario Adjudicators and Regulators.

Ian MacInnis

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston. Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He has also been active on several community boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Donald MacVicar

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario. From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

Steven McCutcheon

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He has practiced law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, he operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

Tom McDermott

Mr. McDermott received his Honours Bachelor of Arts degree in economics from York University. Tom McDermott has been adjudicating and resolving landlord and tenant disputes for over 10 years. He is a member of the Society of Ontario Adjudicators and Regulators. Mr. McDermott participated in a pilot project to mediate disputes at Landlord and Tenant Court, after completing training in alternative dispute resolution.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board (SARB) in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Beverley J. Reade

Beverley J. Reade is a graduate of the University of Western Ontario (LL.B, 1978; history and English 1975) and the Law Society Bar Admission Course (1980). Ms. Reade practiced civil and criminal law from 1980 to 1986 as an associate in a St. Thomas (Ontario) practice, before becoming a sole practitioner, then associate in London (Ontario) between 1986 and 1995. Ms. Reade is a Deputy Small Claims Court judge and a Vice Chair at the Commercial Registration Appeal Tribunal.

Brian L. Rodenhurst

Brian Rodenhurst graduated from the University of Guelph with an Honours Bachelor of Arts degree and from the University of Windsor with a Bachelor of Laws. He was in private law practice for 20 years. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, and vice chair of administration and finance.

Jeffrey Rogers

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practiced extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

Nancy Savage

Nancy Savage attended the University of Western Ontario Law School, obtaining a Bachelor of Laws degree in 1975. She has experience in private practice and in the representation of a child protection agency as in-house counsel.

Sheryl Ruth Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. Recently, as a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee, to name a few. Since the Tribunal's inception, Ms. Senis has been appointed team lead for the adjudicators dealing with operational review recommendations, and is a member of the Performance Management Committee and the Caseload Order Group Committee.

Catherine Skinner (Part-Time Member)

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, she was legal counsel to the Ontario Assessment Review Board.

Peter Spadzinski (Part-Time Member)

Peter Spadzinski was an educator for over thirty years, serving as teacher, consultant and administrator in both elementary and secondary panels. A graduate of Laurentian University and the University of Waterloo (history, politics, French), Peter has been on municipal council for fifteen years, twelve of which he served as Reeve. During that time he was also member of the Parry Sound and Area Planning Board, serving as chair for three years. He has been involved in a variety of community organizations as a volunteer.

Cynthia Lynn Summers

Cynthia Summers is a graduate of McMaster University in 1988 with a Bachelor of Arts degree in political science, and in 1995 she received her Master's in social welfare policy. Cynthia has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and with mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski (Part-Time Member)

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

George Taylor (Part-Time Member)

George Taylor is a graduate of McMaster University and Osgoode Hall Law School. He has carried on a general law practice in Barrie since 1968. Mr. Taylor has served as a Deputy Judge of the Small Claims Court, and was a member of the Legislature of Ontario from 1977 to 1985. He is also qualified as an arbitrator and mediator. In addition, Mr. Taylor has been involved for many years in community service work and numerous professional organizations.

David G. Timms

David Timms graduated from the University of Western Ontario in 1980 with a Bachelor of Arts degree, from the University of Windsor in 1983 with a Bachelor of Laws degree, and from Osgoode Hall Law School in 2000 with a Master's of Law degree. He has practiced law in the areas of civil litigation and dispute resolution since his call to the bar in 1985.

Mr. Timms is a member of the Canadian Bar Association, the Arbitration and Mediation Institute of Ontario, the Society of Ontario Adjudicators and Regulations and the Association of Trial Lawyers of America.

Diane L. Tinker

Diane Tinker is a graduate of McMaster University with a Bachelor of Arts degree and Queen's University at Kingston with a Bachelor of Laws degree. After her call to the bar in 1981, she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a deputy judge in Small Claims Court in both Kitchener and Cambridge for the past six years.

David Wright

David Wright is a graduate of Carleton University in Ottawa with a Bachelor of Arts degree in which he received first class honours in public administration. For the first ten years of his career, Mr. Wright was a public housing property manager. For the next 11 years, he worked in various provincial rent regulation programs until his appointment to the Tribunal in June 1998. Mr. Wright is an active volunteer in his community, in such activities as coaching, Gloucester Public Library Board (chair), various school councils, and with the Kiwanis Club of Rideau (past member).

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**Minister of Municipal Affairs
and Housing**

Minister Responsible for Seniors

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000 Tél.
Fax (416) 585-6470
www.mah.gov.on.ca

**Ministre des Affaires municipales
et du Logement**

Ministre délégué aux Affaires des personnes âgées

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
(416) 585-7000
Téléc (416) 585-6470
www.mah.gov.on.ca



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege
of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2001-
2002 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to be "John Gerretsen".

Hon. John Gerretsen
Minister of Municipal Affairs

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la président

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Tél: (416) 585-7295
Télécopieur: (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2001-2002 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Chisanga Puta-Chekwe".

Chisanga Puta-Chekwe

Chair

Ontario Rental Housing Tribunal

**Ontario Rental
Housing Tribunal**

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Tribunal du logement
de l'Ontario**

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Tél: (416) 585-7295
Télécopieur: (416) 585-6363



Chair's Message

This is the fourth Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2001 to March 31, 2002.

Our fourth year of operation has been an excellent one for the Tribunal. We have implemented our call centre and it has exceeded our expectations in providing timely as well as excellent customer service to our clients. This year alone, the virtual call centre won the Public Sector Quality Fair Award, Gold Level and the Showcase Ontario Award of Excellence.

In general, the Tribunal continues to achieve high marks for its streamlined and efficient administration. During this year, the Tribunal was awarded the Capam Award for Innovation in Government and a Showcase Ontario Award of Excellence for the Teleform System. These administrative efficiencies provide both the Tribunal members and its clients, an atmosphere where sound and thoughtful decision-making can flourish and we applaud our staff for their dedication and commitment.

The Tribunal mediators have completed an extensive two-level training program in rights-based mediation and have been enthusiastic about this opportunity and its benefits. Mediation continues to be an integral part of the Tribunal's work with both of our stakeholder groups finding it to be a viable alternative to traditional adjudication.

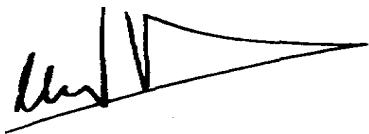
Members have been active in training sessions both in-house and externally through the Society of Ontario Adjudicators and Regulators. All members have been trained thoroughly on the changes to the *Tenant Protection Act* contained in Bill 119.

The Tribunal continues to operate without a significant backlog of cases. At no time during this fiscal year has the number of outstanding applications exceeded the number of applications received per month. We owe these excellent results to the dedication of our adjudicators and staff.

The *TELEform* version of Tribunal forms has been quite successful and has reduced the waiting time of our clients by about 80%. It is also proving to be an excellent tool in improving the accuracy of our data entry.

Above guideline increase applications continue to be a challenge. We have seen considerable progress over the year, but the resolution of these applications, which constitute only 1 per cent of the workload, but take up 16 per cent of our time, is still not as efficient as we would like it to be. We are, however, increasingly successful in resolving these cases by way of mediation. We are hopeful that the strategy of using both adjudication and mediation to resolve these applications will lead to a significant shortening of case resolution timelines.

Sincerely,

A handwritten signature in black ink, appearing to read 'Chisanga Puta-Chekwe', with a long horizontal line extending to the right.

Chisanga Puta-Chekwe, Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

The *Tenant Protection Act, 1997*, (TPA), was proclaimed on June 17, 1998.

The four primary objectives of the TPA are:

- ▶ To simplify the relationship between landlords and tenants
- ▶ To balance the needs of landlords and tenants
- ▶ To create an efficient process that deals with disputes quickly
- ▶ To create a cost-efficient process

The *Tenant Protection Act* provides a one-window service to landlords and tenants and offers a timely method for the resolution of disputes between landlords and tenants.

During this fiscal year, the TPA was amended by the *Red Tape Reduction Act*. Many of the amendments clarify existing rules and have little impact on our clients. For example, one of the amendments clarifies that a person who shares a unit with a tenant and pays that tenant rent, and who is not recognized by the landlord as a tenant, is not a subtenant as defined in the legislation. There are, however, some new rights recognized in this amending legislation.

New Rights for Tenants

Tenants are now able to apply for costs incurred as a result of being illegally locked out of an apartment. They are also able to apply for an order requiring their landlord to let that tenant back into their unit after being locked out illegally. As well, tenants who have received an eviction order due to nonpayment of rent, and who have paid the amounts required to void the order to the landlord are able to apply for an order confirming that these amounts have been paid.

New Rights for Landlords

Where a tenant is involved in certain types of illegal drug activity, the landlord is now able to give them a termination notice with shorter time frames, allowing for the application to be processed more quickly. As well, a landlord who owns four or more condominium units is now able to give a termination notice for purchaser's own use.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- ▶ Resolve tenant and landlord disputes through either adjudication or mediation
- ▶ Determine legal above guideline rent increases with respect to residential units
- ▶ Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more efficient than previous systems for resolving landlord and tenant matters.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between landlords and tenants. Under the adjudication process:

- ▶ Disputes are heard in public buildings rather than courtrooms
- ▶ Tenants may choose to represent themselves and may consult an on-site legal aid representative
- ▶ The more conciliatory approach of mediation is encouraged before the hearing process begins or during the hearing if the adjudicator feels that the matter lends itself to mediation
- ▶ The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues.
Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview and selection process.

Adjudicators from across the province meet formally twice a year to discuss issues. They also meet more frequently and informally in their regions. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, groups

to review the format of orders and other groups that gather opinions on specific issues. Members' meetings also contain elements of training such as conduct of a hearing, natural justice, amendments to the TPA and to other relevant legislation such as the *Statutory Powers Procedure Act*.

The Mediation Process

Mediation is offered under the Tribunal's legislation. It is often used to clarify issues and reduce areas of dispute so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use both their knowledge of rent regulation and their negotiation skills to assist landlords and tenants in resolving their applications and their concerns.

During the fiscal year of 2001/2002, approximately 13% of the Tribunal's applications were successfully mediated. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus our mediation on the more complex applications. Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues. We will be pursuing this resolution option more frequently in the coming year.

Locations

The Ontario Rental Housing Tribunal has eight regional offices and nine client service offices across the province. Most of the Tribunal's hearings are held in its regional offices.

Hearings are held in the areas that are most convenient for tenants and landlords.

The regional offices are located in the following areas:

- ▶ London
- ▶ Hamilton
- ▶ Mississauga
- ▶ Toronto South (Downtown)
- ▶ Toronto North (North York)
- ▶ Toronto East (Scarborough)
- ▶ Ottawa
- ▶ Sudbury

At client service offices, landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings (when it is convenient for both parties to do so). The client service offices are located in the following areas:

- | | |
|-----------------|----------------|
| → Windsor | → Thunder Bay |
| → Kingston | → Peterborough |
| → Durham/Whitby | → Kitchener |

Two of our offices are co-located with Government Information Centres where clients can speak with a customer service representative and file applications. These offices are:

- | | |
|------------------|----------|
| → St. Catharines | → Barrie |
|------------------|----------|

The Tribunal has a network of filing centres across the province where tenants or landlords can file their applications and pick up information about the Tribunal. These filing centres are currently run by private issuers who handle other government documents in more remote areas of the province. We will be joining with the Government Information Centres across Ontario to provide access across the province in the coming fiscal year.

Call Centre

The Tribunal has a virtual call centre for handling customer inquiries. There is a toll-free number for callers who live outside Toronto (1-888-332-3234); and, in the Greater Toronto area the number is 416-645-8080. Customer service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions. This year, the Tribunal responded to approximately 750,000 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The Tribunal's website (orht.gov.on.ca) is visited almost one million times each month. Clients can find information about the progress of their application, the date of the hearing and whether an order has been issued. As well, all Tribunal forms are available on the website as well as through each regional and client service office.

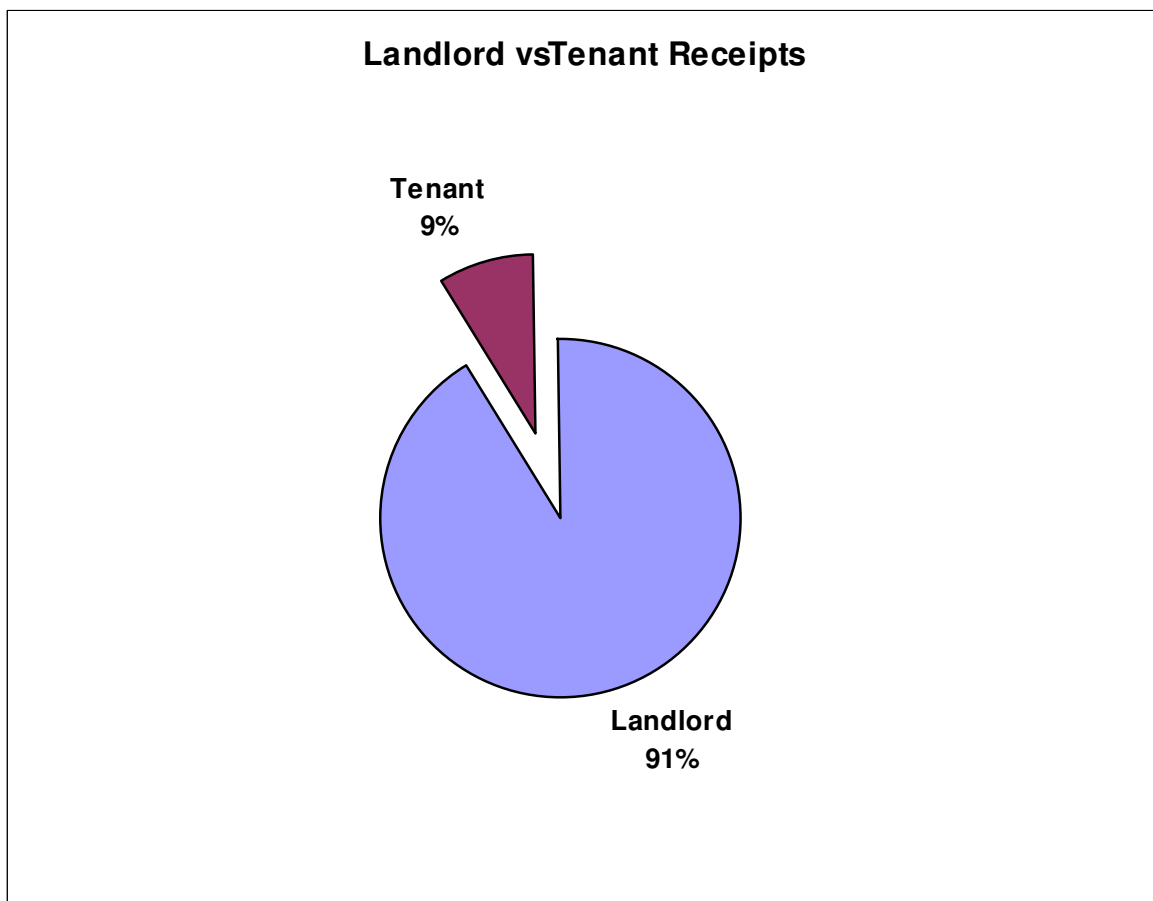
The Tribunal plans to develop an Internet application to allow clients to file applications electronically.

Statistical Information for the Fiscal Year 2001-2002

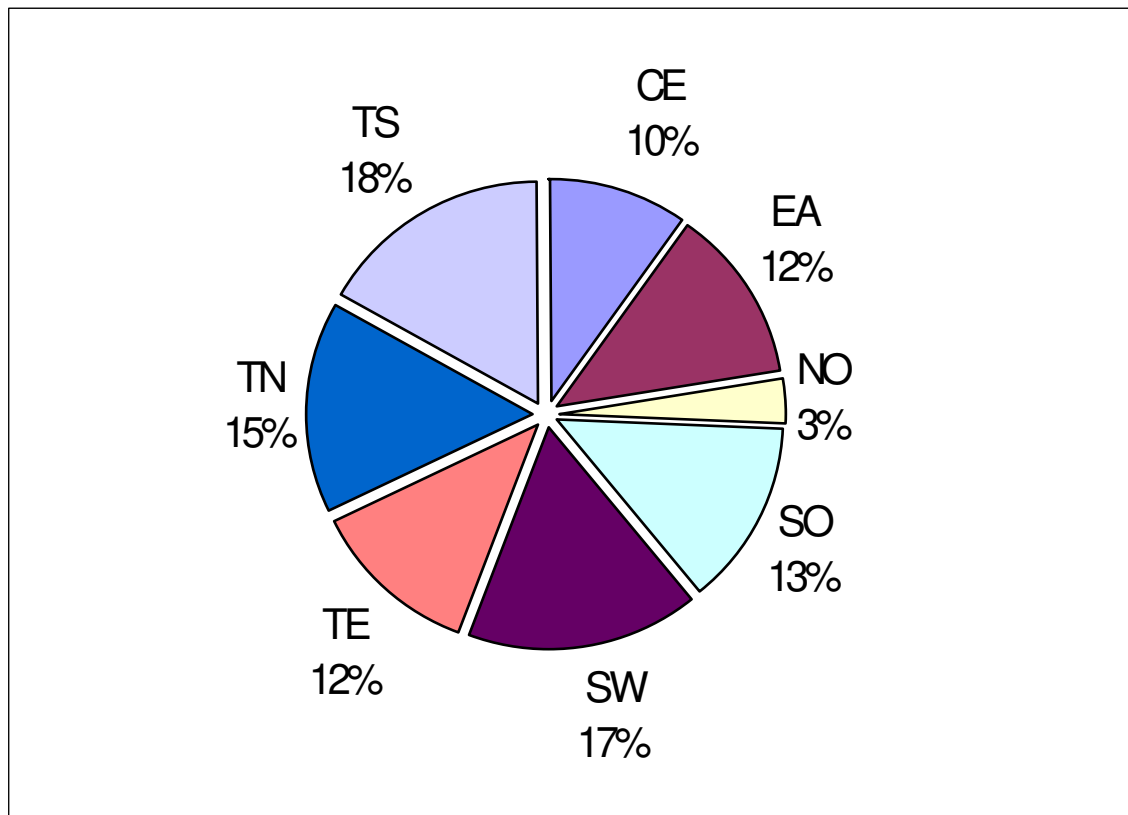
Applications

During the 2001-2002 fiscal year, the Tribunal received 77,104 applications and resolved 78,285. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may generate more than one resolution.) At the end of the fiscal year, 4,992 applications were still in progress.

The distribution of the receipts for the 2001-2002 fiscal year remains unchanged since the last fiscal period and are reflected in the following profile:



The regional distribution of applications is as follows:



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South.

Eviction applications have been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 69.5 per cent were for termination of tenancies because of arrears of rent. This is down from 71.40 per cent last year and down even further from 72.63 per cent the year before. Tenant applications accounted for 8.54 per cent of the applications filed during this fiscal year. This is up from 7.10 per cent last year.

Above Guideline Increase Applications

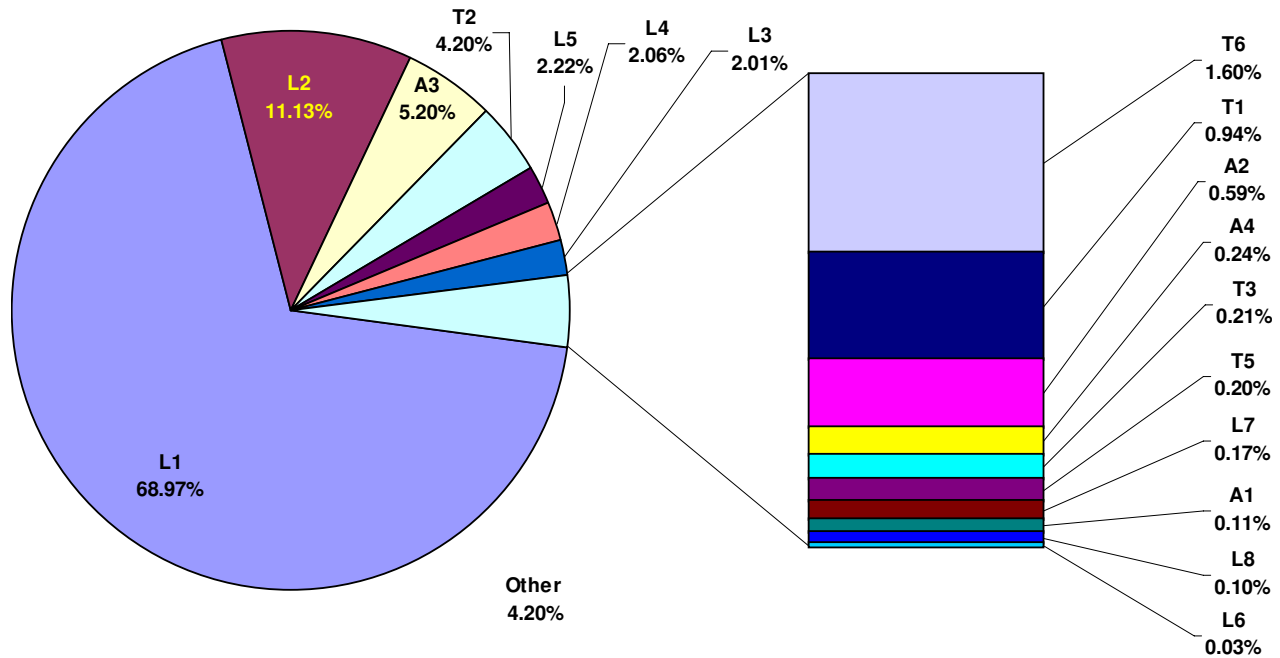
An average of 251 applications for above guideline increases were received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for above guideline increase were received. In the fiscal year 2000/01, 608 above guideline increase applications were received. During this year, 1,608 applications were received.

These applications continue to take a disproportionate amount of time both for adjudicators and staff. A study of the Tribunal's workload found that these applications which make up only one per cent of the Tribunal's workload, take 16 per cent of the Tribunal's time.

Mediation is helping us with this workload, although we continue to look for other ways to increase our efficiency and speed up the resolution process.

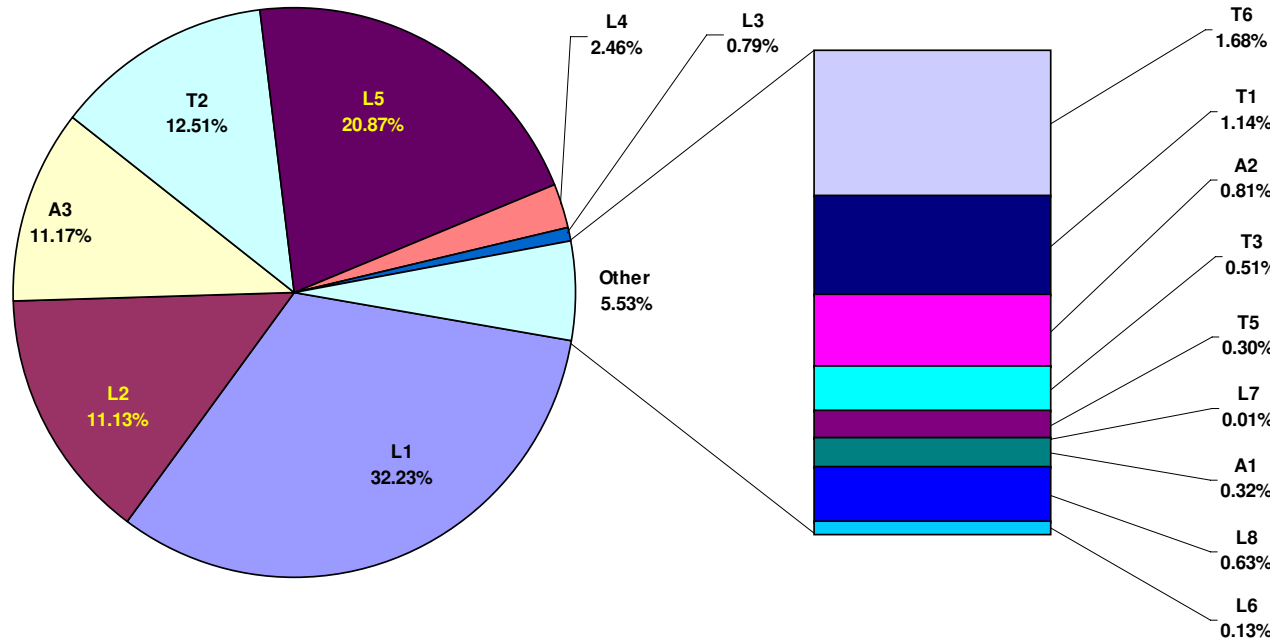
The charts on the following two pages show the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing), as well as a distribution of application type by hearing time.

WORKLOAD FOR FISCAL 2001-2002 **DISTRIBUTION OF APPLICATION RECEIPTS**



	Case Type	# Cases	#Defaults	#Hearings
L1	Termination and Non-Payment of Rent	49,590	29,358	16,807
L2	Terminate Tenancy & Evict	8,006	1,811	5,023
A3	Combined Application	3,740	669	2,589
T2	Tenant Rights	3,017	0	2,174
L5	Rent Increase above Guideline	1,599	1	907
L4	Terminate Tenancy: Failed Settlement	1,482	1,281	571
L3	L3 - Term, Tenant gave Notice	1,447	1,280	410
L6	Maintenance	1,153	0	875
T1	Rebate	677	57	396
A2	Sublet or Assignment	427	99	281
A4	Vary Rent Reduction Amount	174	0	17
T3	Rent Reduction	152	0	89
T5	Bad faith Notice of Termination	147	0	104
L7	Transfer Tenant to Care Home	120	0	1
A1	Determine Whether Act Applies	78	0	56
L8	Tenant Changed Locks	73	0	55
L6	Review of Pro. Work Order	22	0	23
		71,904	34,556	30,378

WORKLOAD FOR FISCAL 2001-2002 **DISTRIBUTION OF HEARING TIME**



Case Type		# Cases	#Defaults	#Hearings	Time/Hear (mins.)	Hear.Time (mins)
L1	Termination and Non-Payment of Rent	49590	29358	16807	20	336140
L2	Terminate Tenancy & Evict	8006	1811	5023	30	150690
A3	Combined Application	3740	669	2589	45	116505
T2	Tenant Rights	3017	0	2174	60	130440
L5	Rent Increase above Guideline	1599	1	907	240	217680
L4	Terminate Tenancy: Failed Settlement	1482	1281	571	45	25695
L3	L3 - Term. Tenant gave Notice	1447	1280	410	20	8200
T6	Maintenance	1153	0	875	20	17500
T1	Rebate	677	57	396	30	11880
A2	Sublet or Assignment	427	99	281	30	8430
A4	Vary Rent Reduction Amount	174	0	17	0	0
T3	Rent Reduction	152	0	89	60	5340
T5	Bad faith Notice of Termination	147	0	104	30	3120
L7	Transfer Tenant to Care Home	120	0	1	60	60
A1	Determine Whether Act Applies	78	0	56	60	3360
L8	Tenant Changed Locks	73	0	55	120	6600
L6	Review of Prov. Work Order	22	0	23	60	1380
		71,904	34,556	30,378		1,043,020

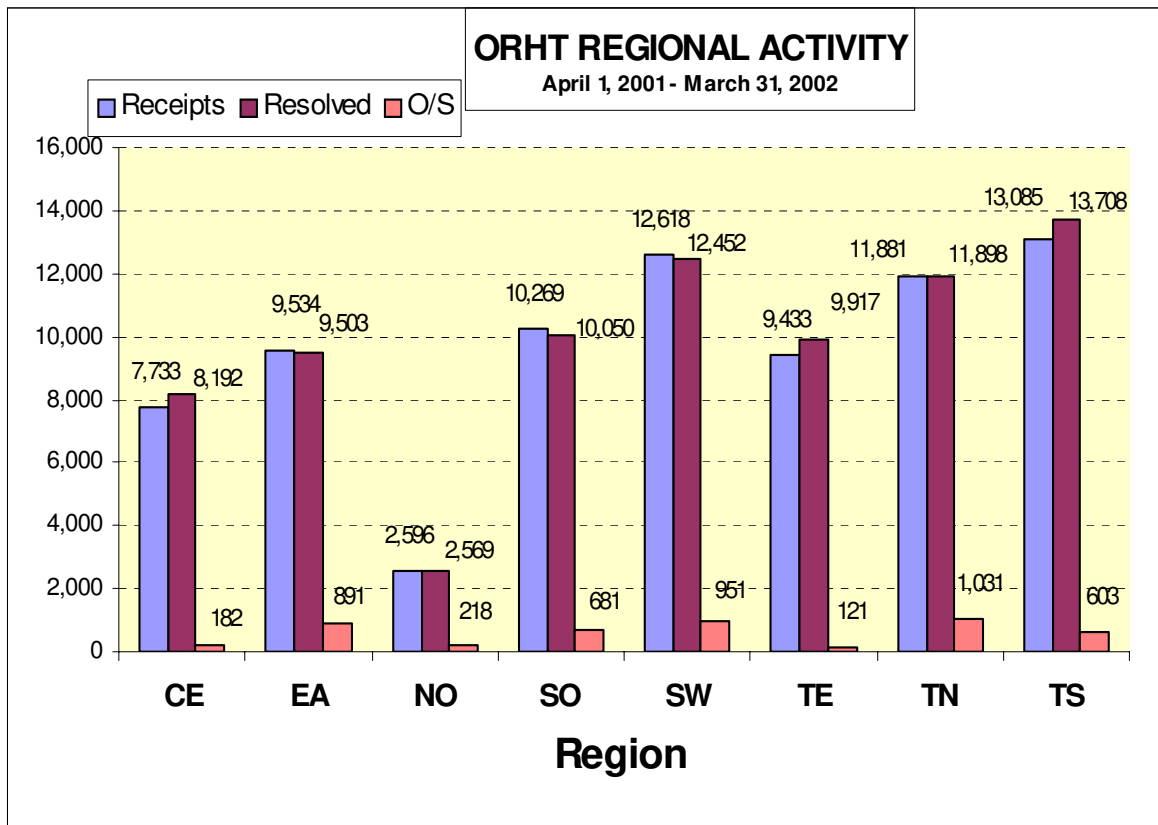
Harassment Applications

Tenants may apply to the Tribunal for relief, at no charge, if they believe that their landlord is harassing them. The Tribunal received 3,073 applications relating to tenants rights as compared to 2,788 during the last fiscal year. Of the number received, 2,830 have been resolved, leaving 243 unresolved by the end of the fiscal year.

APPLICATION RESOLUTION

The Tribunal has been successful in resolving applications quickly. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 20 days of filing the application and even more complex orders were issued within 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North and **TS** to Toronto South

ORDER SUMMARIES

Landlord Application

EAL-21801

Section 69

The landlord filed an application to terminate the tenancy and evict the tenant because the tenant had been persistently late in paying his rent.

The landlord had served the tenant the Notice to Terminate at the End of a Term (Form N8), and the box indicating “You have been persistently late in paying rent” was checked off as the “Reason for this Notice”. In the section of the form entitled “Explanation of the Reason”, the landlord entered “The tenant is persistently late with his payment of rent”.

The member found that the notice given by the landlord did not comply with the requirements of subsection 43(2) of the Act. This subsection states that “if the notice is given by a landlord, it shall also set out the reasons and details respecting the termination”. The member found that the landlord merely repeated the “Reasons” for the termination and did not set out any real or effective details. In the member’s opinion, the details cannot be interpreted as being the same as the “reasons”, otherwise why would the Act have set out the requirement for the landlords to include both in the Notice of Termination.

As a result, the member found that the notice of termination was void. The member also found that this defect was substantive and that the notice did not substantially comply with the requirements of the Act. As a result, the landlord’s application was dismissed.

The landlord applied for an order requiring the tenant to pay compensation for damages caused by him or a person he permitted in the residential complex.

The police had attended the tenant's unit with the proper warrants and obtained a key to the unit from the superintendent. Although the key opened the main lock on the door, the police could not enter the unit because there were other locking devices on the door. Since the tenant, who was in the unit, did not unlock the door, the police used a battering ram to gain entry. As a result, the front door of the unit was damaged. Once inside, two other doors were also damaged when the police had to gain entry into the rooms because they also had been locked by the tenant. The cost of repairing the damage was \$1,712.00 and the landlord applied to have the tenant compensate him for this amount.

The tenant referred to section 87 of the Act which allows a landlord to apply if the *“tenant or a person whom the tenant permits in the residential complex wilfully or negligently causes undue damage...”*. The tenant argued that since he did not do the damage and did not permit the police in the complex, the Tribunal had no jurisdiction to make the order that the landlord applied for.

However, the member found that the tenant did “cause” the damage since it was the tenant's installation of the unauthorized locks that led to the damage being done. The member ordered the tenant to pay the costs of repairing the damage.

The landlord applied for an order to terminate the tenancy and evict the tenant because he had committed an illegal act on the premises. The landlord's application was based

on the arrest of the tenant on charges of possession of cocaine, possession of cocaine for the purpose of trafficking, possession of marijuana and possession of the proceeds of crime. At the time of the hearing, the trial on these charges had not yet taken place.

Upon finding out about the charges, the landlord's agent immediately gave the tenant a notice of termination. However, the notice was defective. Another notice of termination on these grounds was given to the tenant five months later.

Based on the evidence of the parties, the member found that the tenant did not know that the baggies found in his unit contained cocaine. The member also found that the cash seized was not the proceeds of crime. As for the charge of possession of marijuana, the tenant did testify that he was in possession of marijuana. On this issue, the member stated that *"although the commission of any illegal act in the unit or the complex is technically a breach of the Tenant Protection Act, it is well established that discretion will be exercised to refuse to grant an eviction order unless the offence has the potential to affect the character of the premises, interfere with the lawful right of the landlord or disturb other tenants"*. The member found that there was no evidence that other tenants had been affected or were even aware of the drug use in the unit, and that the offence is not intrinsically dangerous or disruptive. The tenant had engaged in the consumption of small quantities of an illicit drug for medical reasons, without disturbing others. The member further stated that had there been a pressing problem, there would not have been a five month delay in serving a proper notice of termination. Based on this, the member was satisfied that it would not be unfair to refuse to grant the eviction order. The landlord's application was dismissed.

Landlord Application

EAL-22575

Section 69

The landlord applied for an order terminating the tenancy and evicting the tenants because the tenants had caused damage to the rental unit and had seriously interfered

with other tenants' reasonable enjoyment of the residential complex or substantially interfered with another lawful right, privilege or interest of the landlord or another tenant. The landlord gave this notice because the tenants had installed a satellite dish antenna without permission.

In the order, the member stated that the landlord has a substantial, lawful right and interest in assuring that any additions or alterations to the rental premises are properly performed and do not compromise the physical integrity of the building itself or present any hazard to any other tenants. Because the satellite dish antenna projected above the roofline, there were potential problems with drainage or snow removal. As well, the bottom of the mast supporting the satellite dish was unanchored and there was evidence to prove that the installation was not sound and could present a danger to people walking below. The member also found that the tenants caused damage to the exterior brickwork when they installed the satellite dish.

As a result, the member found that the tenants interfered with a substantial lawful right, privilege or interest of the landlord. However, the member used his discretion under section 84 of the Act and did not evict the tenants. The member ordered the tenants to remove the antenna system and pay the landlord the estimated cost of repairing the damage. If the tenants failed to comply with these terms, the member included a provision allowing the landlord to make an ex parte application under section 77 of the Act to terminate the tenancy and evict the tenants.

Landlord Application

TNL-26560

Section 69

The landlord applied to terminate the tenancy and evict the tenant because he did not pay the rent that he owes. In addition to the rent arrears claimed in the application, the landlord also included an amount to "top up" the last month's rent deposit.

The member found that the tenant was in arrears and ordered the tenant to pay the amount owing, and that the tenancy be terminated and the tenant evicted.

As for the issue of “topping up” the last month’s rent deposit, the landlord had argued that the tenant was required by operation of subsection 118(3) of the Act to pay the “top up” amount and this amount fell within the definition of rent set out in section 1 of the Act. Therefore, the landlord argued that if a tenant does not pay this amount, the tenant is in arrears of rent. The member did not agree. The member considered the Tribunal’s Interpretation Guideline (No. 11) and agreed with the approach set out. The member stated that not every amount owed by a tenant to a landlord constitutes “rent” within the meaning of the Act. The member stated that, in his opinion, the landlord is entitled to demand payment of the “top up” amount referred to in subsection 118(3) of the Act but, that amount is not rent (at least not until the last month of the tenancy). The member did not include this amount in his determination of the rent arrears.

Tenant Application

TET-02239

Section 34

The tenant applied to the Tribunal because the landlord failed to meet the landlord’s maintenance obligations under the Act or failed to comply with health, safety, housing or maintenance standards.

In the application, the tenant requested compensation for damage to their car which was caused by the overhead door coming down on the car when the tenant exited the underground parking. The landlord provided evidence showing a diligent inspection regimen with respect to the overhead door and satisfied the member that they promptly and responsibly respond when they discover the need to repair the overhead door.

Based on the evidence of the parties, the member found that the tenant did not prove that the landlord breached their maintenance obligations under section 24 of the Act. The member stated that the proof of a breach under section 24 of the Act is a statutory prerequisite to ordering any remedy under section 34 of the Act. As a result, the tenant's application was dismissed.

Tenant Application

SOT-01952

Section 7(2)

The tenant applied for an order determining whether the Act applies.

The tenant had resided in the same park since constructing his home in 1989. The tenant used his home as a permanent year round residence, although the majority of the park was used for seasonal trailers.

The member agreed with the landlord that the rental unit is not a land lease home nor is it located in a land lease community. According to the tenant's evidence, the structure needed only wheels to be moved and was built with the intention of being mobile.

The landlord argued that, as a result of Currie v. Highland Pines Campground Ltd. (a 1996 General Division court decision) in order for the structure to be a "mobile home", it must meet the general requirements established by the Canadian Standards Association. The member did not agree with the landlord's argument. That decision was made under previous legislation (the *Landlord and Tenant Act*) and the definition of "mobile home" was more restrictive than under this Act. As well, in the case before the member, the unit had year round hydro, water and sewage and was the tenant's only permanent residence, which was not the situation that was before the court in Currie et al. The member found that the tenant's dwelling is a mobile home as defined by the Act and that the Act applies.

The landlord requested a review of this order, claiming that there was a serious error. The reviewing member stated that a review is not an opportunity to have an application re-heard in the hope of having a different result from a different member. The Tribunal will not interfere with the proper exercise of discretion and reasonable interpretation and application of law by a member. The reviewing member was not satisfied that there was a serious error in the order or proceedings and, as a result, denied the landlord's request for review.

Tenant Application

TET-01996

Section 35

The tenant applied for an order determining that the landlords harassed, threatened or interfered with her, entered her unit illegally, and substantially interfered with the reasonable enjoyment of the rental unit by the tenant or by a member of her household.

The tenant failed to prove that the landlords, who lived in the unit above hers, intentionally made noise in their unit for the purpose of interfering with her reasonable enjoyment. The tenant did however, prove her claim with respect to the landlords entering the unit illegally. On several occasions, the landlords served the tenant with notices that they intended to take measurements in the unit, or carry out needed repairs. Although the landlords did enter the unit to take the measurements, no work was done. The member found that the notices were primarily intended to harass the tenants. The member also found that on another occasion, the initial entry by the landlord was lawful, but it became illegal as a result of the actions of the landlord while in the unit. Additionally, the member found that the landlords or their agent intentionally disrupted cable service to the tenant's unit. The member agreed with the tenant that the landlord's behaviour was threatening and harassing when, in an enraged state, one of the landlords ripped the screen on the storm door in order to serve the tenant with a document.

The member ordered an abatement of \$900.00. The tenant was allowed to recover this amount by offsetting the rent for one period (\$625.00) and the landlord was ordered to pay the balance of \$275.00. The member also stated that the actions of the landlords were deserving of a fine. However, because this issue was not raised at the hearing and the landlords were, therefore, not able to make a submission on it, the member felt it would be procedurally unfair to impose a fine.

Tenant Application

SWT-02965

Section 35

The tenant applied for an order determining that the landlord substantially interfered with the reasonable enjoyment of the rental unit by the tenant or by a member of his household.

The tenant complained to the landlord because of a strong chemical odour and irritant which emanated from the neighbour's unit. The neighbour was using a combination of moth balls, bleach and other agents to rid his unit of mice. This resulted in throat problems for the tenant and his children. After attending the hospital, they were advised by the doctor to wear masks when they were in the apartment. The tenant then decided to move from this unit. He rented another unit in the same complex. As a result, the tenant was applying for compensation for the costs associated with this move (moving costs, costs associated with loss of income, and cleaning), increased rent of \$70 per month, and damage to his personal property.

Although the member stated that the tenant took prudent and reasonable action by transferring to another unit, the member did not find that the landlord had substantially interfered with the tenant's reasonable enjoyment. The interference was as a result of the actions by the tenant residing next door. The landlord has an obligation to protect tenants from actions of other tenants that substantially interfere with a tenant's

reasonable enjoyment of their unit. However, in this case, the landlord took appropriate action and quickly dealt with this matter by following the steps required under the Act. As a result, the member found that the tenant did not prove that the landlord substantially interfered with the tenant's reasonable enjoyment. The tenant's application was dismissed.

Landlord Application

CEL-22484

Section 69

Tenant Application

CET-02477

Section 35

The landlord made an application to terminate the tenancy and the tenant applied for an order determining, among other things, that the landlord had entered the unit illegally and substantially interfered with her reasonable enjoyment of the unit. At the commencement of the hearing, the landlord made a motion that the applications should be dismissed because the Act does not apply to the unit. The landlord was relying on subsection 3(i) of the Act which provides that the Act does not apply with respect to living accommodation whose occupant is required to share a bathroom or kitchen facility with the owner, and the owner lives in the building.

The member found that the portion of the house that the tenant has exclusive possession of consists of a living/bedroom area with kitchen facilities. The bathroom used by the tenant is in a common area outside the area which the tenant can lock. Anyone in the house can use this bathroom. Even though the landlord has a separate bathroom in her exclusive portion of the house, the evidence indicated that the landlord and her guests do occasionally use the bathroom in question. Based on this, the member found that the tenant was required to share a bathroom with the owner and therefore, the Act did not apply. The applications were dismissed.

BIOGRAPHIES
Chisanga Puta-Chekwe
Chair

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford.

Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994.

In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997.

He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000).

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

VICE CHAIRS

Gilles Guénette

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette has recently practiced as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the vice chair of Ottawa-Carleton Housing Authority. He is a former president of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general. Ms. Holmes has been active in community service organizations such as Mission Services in London. She is a founding member of Teen Girls' Home, and the Brain Tumour Foundation of Canada (Gus Macher Tournament), and sits on the Advisory Committee of Collections for the London Historical Museums.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Ontario Adjudicators and Regulators Training and Education Committee.

Beverly Moore

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

Jeffrey Rogers

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

ADJUDICATORS

Ashis Basu

Ashis Basu attended schools in England and India prior to obtaining his Bachelor of Science (Honours) in 1974 and Master of Business Administration (Distinction) in 1977 from Pune University in India. He started his career in the private sector in 1977 with one of the largest corporations in Kenya, becoming General Manager in 1983. He was also a Member of the Federation of Kenya Employers and was actively involved in negotiating and mediating many employment issues. In 1980, he served in Uganda as Member of the Project Team working with the World Bank and G7 countries responsible for economic and industrial reconstruction of the country after the restoration of democracy. Moving to Canada in 1988, he joined Citigroup, one of the world's largest financial services companies. He worked in various functions during his tenure, including administration, internal control, regulatory affairs, and business and systems planning. Prior to his appointment to the Tribunal he managed all acquisitions and contracts of the organisation in Canada.

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings to the Tribunal her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Jim Brown

Jim Brown graduated from Ryerson Polytechnical Institute in business administration in 1965. He then graduated with a Bachelor of Arts degree from York University in 1968. That same year, he graduated from the Certified General Accountant program. In 1971 he graduated from the Master of Business Administration program at York University. In 1971 he also graduated as a registered industrial accountant. Mr. Brown spent many years at the Toronto Telegram and was one of the founders of the Toronto Sun. Mr. Brown operated his own manufacturing company for 25 years before entering public service. He has lectured at Ryerson, Seneca College and the University of Toronto. He is also a former member of the Ontario Legislature.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served 2 terms, and then to City of Toronto Council in 1998. Ms. Brown has served the community in many volunteer capacities for over 30 years, including library advocacy where she was a Trustee for 12 years, including 4 years as Chair of the Etobicoke Library Board.

Stanley Chapman (Part-Time Member)

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Worker's Compensation Appeals Tribunal.

Robert Côté

Robert Côté is a graduate of the University of Montreal (B.Sc.A. Chemical Engineering, 1962) and the Osgoode Hall Law School (LL.B. 1990). He has worked in the chemical, petrochemical and energy fields for over twenty five years. He was called to the Ontario Bar in 1992 and has been in private practice in the Ottawa area working primarily in the Immigration and Labour law fields.

Andreas von Cramon

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practiced law in Brockville, after his call to the Law Society of Upper Canada in 1991, until his appointment to the Ontario Rental Housing Tribunal. He is a past member of the Ontario Consent and Capacity Board.

Michael van Dusen (Part-Time Member)

Michael van Dusen is a graduate of the University of Ottawa (B. A. *cum laude*, 1982), LL.B. 1986). He practiced with the firm of Goldberg, Shinder, Gardner & Kronick until 1997 when he joined Messrs. Burke-Robertson. He continues to carry on an active practice with particular emphasis on insurance and commercial litigation. Mr. Van Dusen is directly involved in several local charities and continues to devote much of his spare time to community fundraising. He was appointed as a part-time member of the Ontario Rental Housing Tribunal on February 01, 2001, assigned to the Eastern Regional Office.

Susan Ellacott (Part-Time Member)

Susan Ellacott is a resident of the Ottawa region and served in the federal departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by the previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Richard A. Feldman

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, he has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Harry Fine

Harry Fine graduated from the University of Toronto (B.A. Hons.) in 1977. Following graduation, he entered his family's business full time, building the organization into one of the largest family entertainment companies in Ontario, and one of the most successful bowling companies in North America. As President of Bowlerama, Mr. Fine was active in raising money for many local and provincial charities including Big Brothers, the Valley Club of Ontario and Kids Help Phone. He was elected legislative, constitutional and business development chair for his industry's trade association over his 16 years of service. Mr. Fine was appointed to the Ontario Rental Housing Tribunal in 2001. Mr. Fine is also a member of both the Society of Ontario Adjudicators and Regulators, as well as the Council of Canadian Administrative Tribunals. In August of 2002, Mr. Fine was appointed to the Toronto committee of the Federal Judicial Appointments Advisory Committee by the Minister of Justice, the Honourable Martin Cauchon. In his spare time, he is an active volunteer with the Ontario Disabled Sailors Association.

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

John Goodchild

John Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, then employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. He was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Murray Wm. Graham

Murray Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practiced law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management, and environmental research and development industries.

David J. Gregory

David Gregory graduated from the University of Toronto, where he received a Bachelor of Applied Science degree in 1969 and a Juris Doctor degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court, has actively volunteered his time on his community's Committee of Adjustment, Regional Chamber of Commerce and Economic Development Board, and is a past president of his local law association.

Knox Henry (Part-Time Member)

Knox Henry was appointed as a part-time member to the Pesticides Appeal Board in 1975, which was merged with the Environmental Appeal Board in 1978. He was a part-time member until 1991 when he became full-time vice chair of the Environmental Appeal Board. Mr. Henry is one of Canada's leading horticulturalists. He has been a guest lecturer on propagation, management and environmental issues at various universities and colleges. Mr. Henry was cross-appointed as deputy mining and lands commissioner for the period 1995 to 1997 and cross-appointed as a member of the Ontario Rental Housing Tribunal in 1999.

Linda Joss

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Mrs. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. After this she joined Metro Toronto's Community Service Department as a manager of hostels. During twenty five years with Community Services, Mrs. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time Mrs. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Mrs. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Catherine Keleher

Catherine Keleher started with the Tribunal as a part-time Member in July 2000, and became a full-time Member in February 2001. Catherine served for 13 years as Reeve of the Town of Palmerston. In that position, she served as a member of Wellington County Council and was elected Warden for 1994. Catherine has chaired the Town's Public Works, Administration Finance and Recreation, and Planning and Development committees as well as the County's Administration Finance and Personnel Committee, the Wellington-Guelph Joint Social Services Committee, and has co-chaired the Wellington-Guelph Waste Management Master Plan Steering Committee. She has been Vice-Chair of the Wellington County Library Board and a member of the Wellington County Police Services Board and the Wellington-Dufferin-Guelph Board of Health. Her community activities include two years as Vice-Chair of the Palmerston and District Hospital Board of Governors and ten years as a member of the Maitland Valley Conservation Authority and the Board of Family and Children's Services of Guelph and Wellington County.

Romuald Kwolek (Part-Time Member)

Romuald Kwolek graduated in 1981 from the University of Western Ontario with a Bachelor of Laws degree. He has practiced law in the city of Sault Ste. Marie since 1983. He has carried on a general practice with Oraziotti & Kwolek since 1989, specializing in criminal and family law. Romuald Kwolek is currently a deputy judge of the Small Claims Court, and continues to be actively involved in community volunteer work.

Edward Lee

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Paul Lummiss

Paul Lummiss studied structural engineering at Lakehead University and graduated as a certified engineering technologist. He has in-depth experience with heavy, commercial and residential construction. Mr. Lummiss is a former member of local government and is a member of the Society of Ontario Adjudicators and Regulators.

Ian MacInnis

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston. Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He has also been active on several community boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Donald MacVicar

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario. From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

Steven McCutcheon

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He has practiced law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, he operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board (SARB) in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Dennis C. McKaig

Dennis McKaig is a graduate of Humber College in Toronto, (Funeral Service Education, 1980), and The University of Western Ontario (Bachelor of Science, 1988). Mr. McKaig worked in funeral service in Southwestern Ontario during most of the 1980's. He has been with the Ministry of Health (Emergency Health Services) in the communications field since 1989, and has also worked on a part-time basis as a paramedic.

Alan Mervin

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) From the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice. He has been involved for a number of years in community volunteer work where he has undertaken a number of projects.

Nicholas Pustina

Nicholas John Pustina, was called to the Bar in 1957 and appointed Queen's Counsel in 1971. His practice was largely in the field of real property, estates, municipal and administrative law and, in the past five years, he has restricted his field substantially to real property. He has also been heavily involved in charitable and volunteer work in Thunder Bay. He has recently been appointed a Deputy Small Claims Court Judge and has found the work to be most rewarding.

Brian L. Rodenhurst

Brian Rodenhurst graduated from the University of Guelph with an Honours Bachelor of Arts degree and from the University of Windsor with a Bachelor of Laws. He was in private law practice for 20 years. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, and vice chair of administration and finance.

Nancy Savage

Nancy Savage attended the University of Western Ontario Law School, obtaining a Bachelor of Laws degree in 1975. She has experience in private practice and in the representation of a child protection agency as in-house counsel.

Guy Savioe

Guy Savoie has held numerous Senior Management positions within both the Financial and Business sectors for the past 17 years. Since 1990 Guy has also been a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

Sheryl Ruth Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. Recently, as a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee, to name a few. Since the Tribunal's inception, Ms. Senis has been appointed team lead for the adjudicators dealing with operational review recommendations, and is a member of the Performance Management Committee and the Caseload Order Group Committee.

Catherine Skinner (Part-Time Member)

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, she was legal counsel to the Ontario Assessment Review Board.

Peter Spadzinski (Part-Time Member)

Peter Spadzinski was an educator for over thirty years, serving as teacher, consultant and administrator in both elementary and secondary panels. A graduate of Laurentian University and the University of Waterloo (history, politics, French), Peter has been on municipal council for fifteen years, twelve of which he served as Reeve. During that time he was also member of the Parry Sound and Area Planning Board, serving as chair for three years. He has been involved in a variety of community organizations as a volunteer.

Cynthia Lynn Summers

Cynthia Summers graduated from McMaster University in 1988 with a Bachelor of Arts degree in political science, and in 1995 she received her Master's degree in social welfare policy. Cynthia has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and with mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski (Part-Time Member)

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

George Taylor (Part-Time Member)

George Taylor is a graduate of McMaster University and Osgoode Hall Law School. He has carried on a general law practice in Barrie since 1968. Mr. Taylor has served as a Deputy Judge of the Small Claims Court, and was a member of the Legislature of Ontario from 1977 to 1985. He is also qualified as an arbitrator and mediator. In addition, Mr. Taylor has been involved for many years in community service work and numerous professional organizations.

Diane L. Tinker

Diane Tinker is a graduate of McMaster University with a Bachelor of Arts degree and Queen's University at Kingston with a Bachelor of Laws degree. After her call to the bar in 1981, she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a deputy judge in Small Claims Court in both Kitchener and Cambridge for the past six years.

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**Minister of Municipal Affairs
and Housing**

Minister Responsible for Seniors

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

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777, rue Bay, 17^e étage
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TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2002-2003 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "John Gerretsen", with a long horizontal stroke extending to the right.

Hon. John Gerretsen
Minister of Municipal Affairs and Housing

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto ON M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto ON M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2002-2003 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Beverly Moore'.

**Beverly Moore
Interim Chair
Ontario Rental Housing Tribunal**

**Ontario Rental
Housing Tribunal**

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

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777, rue Bay, 12^e étage
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Télécopieur : (416) 585-6363



Chair's Message

This is the fifth Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2002 to March 31, 2003.

Partnered with the Ministry of Consumer and Business Services, the Tribunal moved forward on an alternative service delivery strategy. The Tribunal has benefited through the affiliation with a service network that understands how government is organized and how it operates. The overall working relationships have been extremely positive for both organizations and for the public as well.

The Tribunal continues to win awards for its virtual call centre. Specifically, the Tribunal is the proud recipient of the Public Quality Fair 2002 Certificate of Excellence gold level; Showcase Ontario Award of Excellence 2002; and the most prestigious 2002 Amethyst award. In addition the Tribunal received recognition by the Premier and Secretary of Cabinet for significant contributions to OPS excellence and innovation.

The Tribunal has further enhanced its high quality of service by redesigning the website to meet the requirements of the *Ontarians with Disabilities Act, 2001*. Clients with a disability or visual impairment will notice an immediate improvement. The Tribunal will further enhance its high quality of customer service by introducing electronic filing capabilities in the near future.

Members have been active in training sessions both in-house and externally through the Society of Ontario Adjudicators and Regulators. All members have been trained thoroughly on the amendments to the *Tenant Protection Act, 1997* as the result of the *Government Efficiency Act, 2001*.

Sincerely,

A handwritten signature in cursive script, reading "Beverly Moore".

Beverly Moore, Interim Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

The *Tenant Protection Act, 1997, (TPA)*, was proclaimed on June 17, 1998.

The four primary objectives of the TPA are:

- To simplify the relationship between landlords and tenants
- To balance the needs of landlords and tenants
- To create an efficient process that deals with disputes quickly
- To create a cost-efficient process

The *Tenant Protection Act* provides a one-window service to landlords and tenants and offers a timely method for the resolution of disputes between landlords and tenants.

During this fiscal year, the TPA was amended by the Government Efficiency Act, 2001, with amendments taking effect on October 7, 2002. Many of the amendments clarify existing rules in the TPA, while other amendments have added new rights for landlords or tenants and change how the law applies.

Some of the amendments include:

- A prospective tenant can apply for a rebate if they paid a rent deposit for a unit, but the landlord never let them move in, and did not return the deposit. As a result of the amendment, it is also now an offence for the landlord to fail to return the deposit.
- It is now an offence if the landlord fails to allow an evicted tenant to reclaim their property within 48 hours, as required by the TPA.
- Landlords can claim NSF fees and related administration charges on applications for arrears.
- Landlords can claim arrears and NSF fees, and related administration charges, on an application to terminate a tenancy and evict a tenant where the tenant failed to comply with certain terms of an order or a mediated settlement.

- A landlord is entitled to and can apply for compensation from an overholding tenant who has terminated their tenancy by agreement with the landlord, or an unauthorized occupant who is being evicted.
- The Tribunal will have to apply the rules set out in a new regulation when deciding a tenant's application claiming that the landlord interfered with their reasonable enjoyment while doing maintenance, repairs or capital improvements at the complex. As well, the TPA has been amended to clarify that the offence provisions for harassment and interfering with reasonable enjoyment may not apply when the tenant's complaint is related to maintenance, repairs or capital improvements.
- The amendments have also given the Tribunal more flexibility in severing applications and conducting written hearings.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- Resolve tenant and landlord disputes through either adjudication or mediation
- Determine legal above guideline rent increases with respect to residential units
- Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more efficient than previous systems for resolving landlord and tenant matters.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between landlords and tenants. Under the adjudication process:

- Disputes are heard in public buildings rather than courtrooms
- Tenants may choose to represent themselves and may consult an on-site legal aid representative
- The more conciliatory approach of mediation is encouraged before the hearing process begins or on the day of the hearing if the adjudicator feels that the matter lends itself to mediation
- The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues. Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview and selection process.

Adjudicators from across the province meet formally twice a year to discuss issues. They also meet more frequently and informally in their regions. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to review the format of orders and other groups that gather opinions on specific issues. Members' meetings also contain elements of training such as conduct of a hearing, natural justice, and amendments to the TPA and to other relevant legislation such as the *Statutory Powers Procedure Act*.

The Mediation Process

Mediation is offered under the Tribunal's legislation. It is often used to clarify issues and reduce areas of dispute so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use both their knowledge of rent regulation and their negotiation skills to assist landlords and tenants in resolving their applications and their concerns.

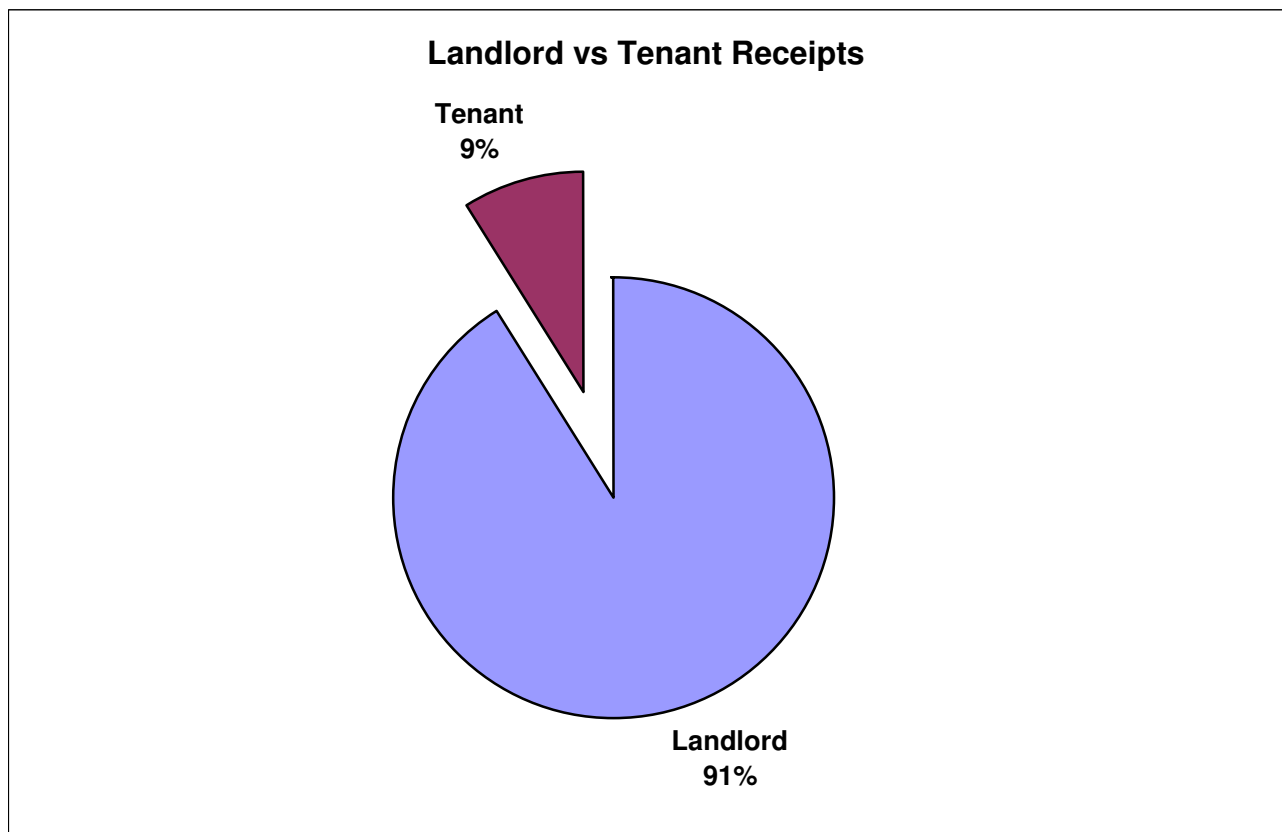
During the fiscal year of 2002/2003, approximately 14.4 per cent of the Tribunal's applications were successfully mediated. This is up from 13 percent last year. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus our mediation on the more complex applications. Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

Statistical Information for the Fiscal Year 2002-2003

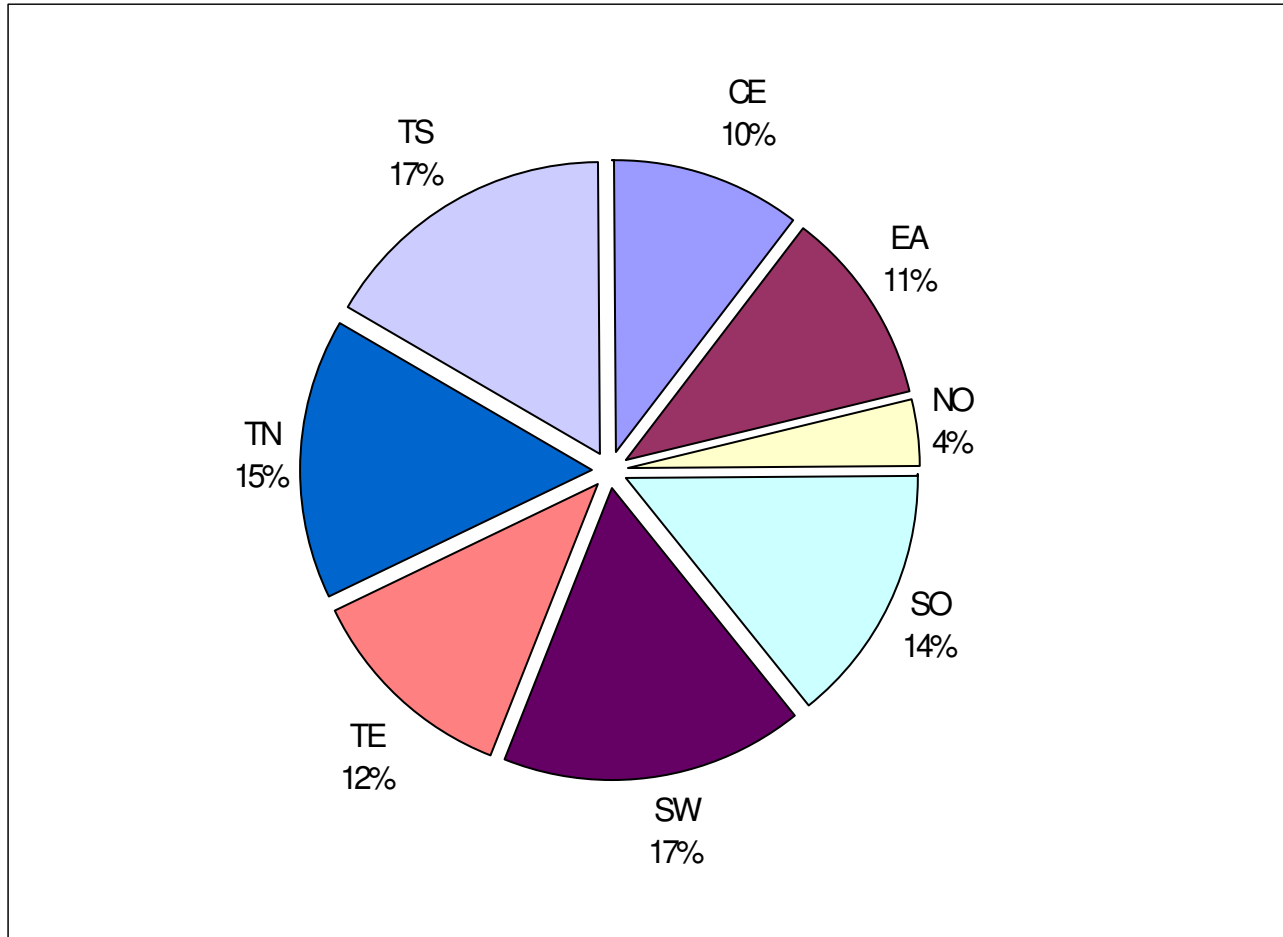
Applications

During the 2002-2003 fiscal year, the Tribunal received 68,118 applications and resolved 68,505. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may generate more than one resolution.) At the end of the fiscal year, 6314 applications were still in progress.

The distribution of application receipts for the 2002-2003 fiscal year remains unchanged from the last fiscal period and are in the following profile:



The regional distribution of applications is as follows:



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Eviction applications have been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 71.70 per cent were for termination of tenancies because of arrears of rent. This is slightly up from 69.5 per cent last year. Tenant applications accounted for 9.48 per cent of the applications filed during this fiscal year. This is up from 8.54 per cent last year.

Above Guideline Rent Increase Applications

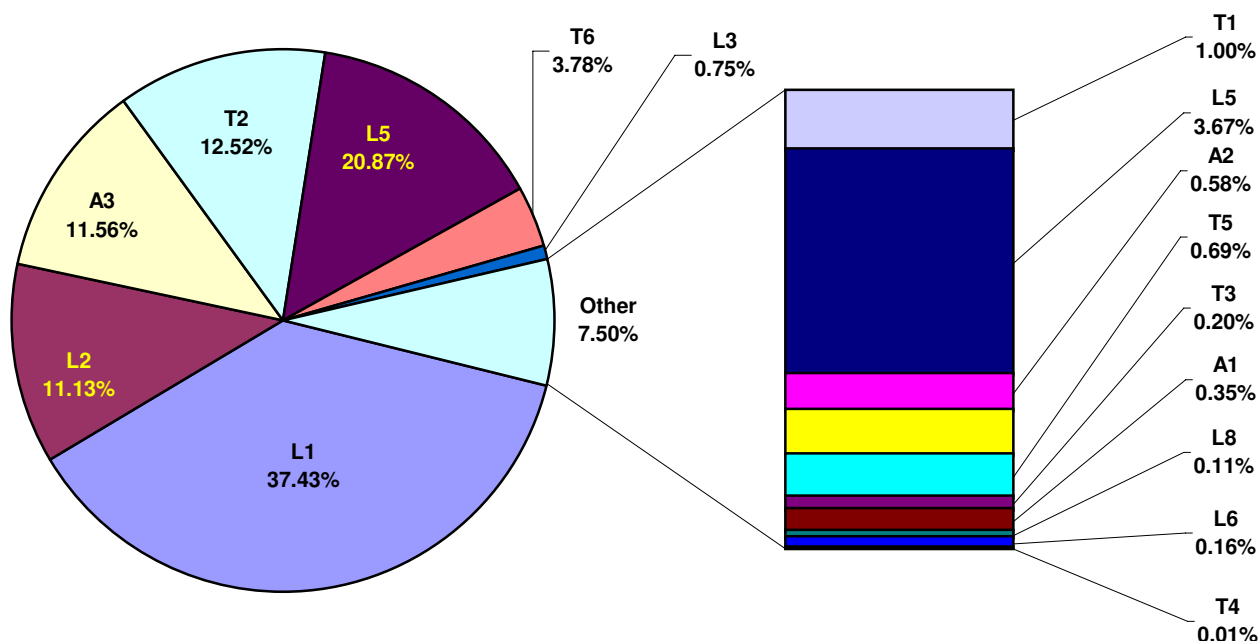
An average of 251 applications for above guideline rent increases were received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for above guideline rent increases were received. In the fiscal year 2000-2001, 608 applications were received. During this fiscal year, only 471 above guideline rent increase applications were received, a substantial decrease from last fiscal year 2001-2002, where the Tribunal received 1608. Last year's increase in above guideline rent increase application receipts was mainly the result of landlords experiencing an extraordinary increase in the cost of utilities, specifically a spike in gas prices.

Although the Tribunal received approximately 30 per cent fewer above guideline rent increase applications in comparison to the previous fiscal period, these applications continue to take a disproportionate amount of time both for adjudicators and staff. These applications make up less than 1 per cent of the total applications received, and account for 20.87 per cent of the Tribunal's time.

Mediation is helping us with this workload, although we continue to look for other ways to increase our efficiency and speed up the resolution process.

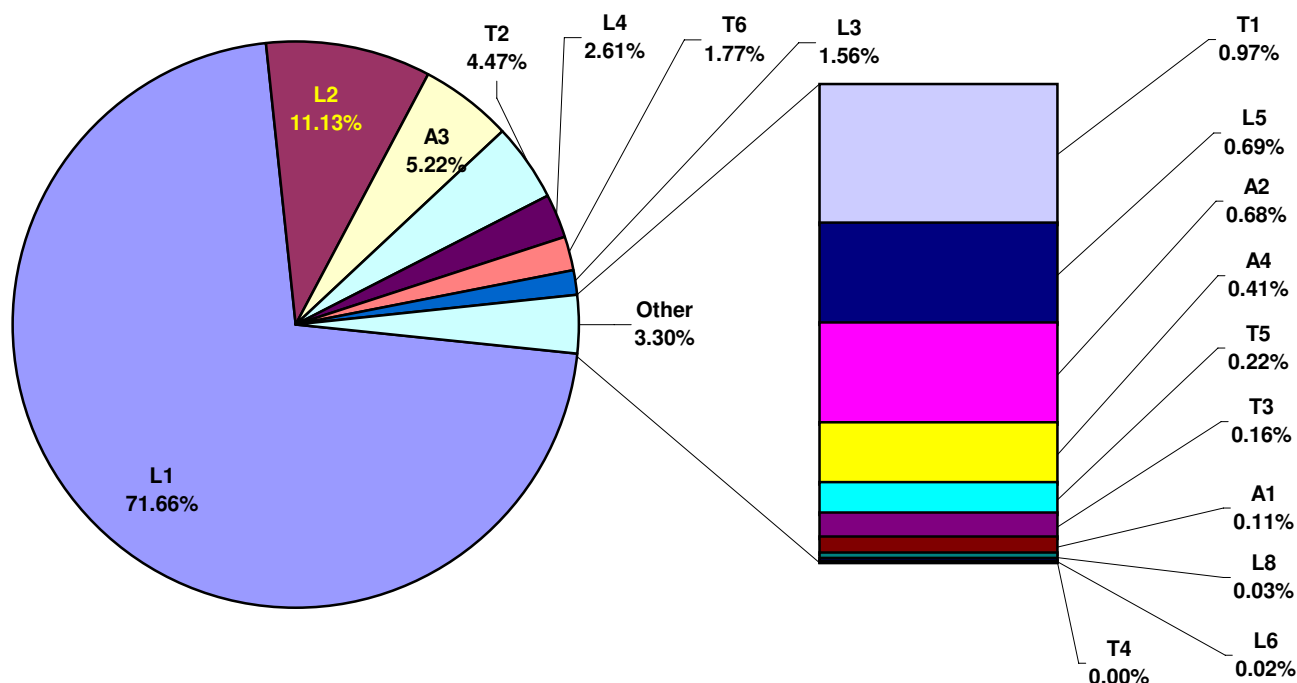
The charts on the following two pages show the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing), as well as a distribution of application type by hearing time.

Workload for Fiscal 2002/2003 Distribution of Hearing Time



Case Type		# Cases	# Defaults	# Hearings	Time/Hear (minutes)	Time/Hear (minutes)
L1	L1 - Termination & Non-Payment of Rent	48,816	26,766	19,181	20	383,620
L2	L2 - Terminate Tenancy & Evict	6,412	1,257	4,107	30	123,210
A3	A3 - Combined Application	3,558	530	2,632	45	118,440
T2	T2 - Tenant Rights	3,043	5	2,138	60	128,280
L4	L4 - Terminate Tenancy: Failed Settlement	1,775	1,512	617	240	148,080
T6	T6 - Maintenance	1,205	0	861	45	38,745
L3	L3 - Termination: Tenant Gave Notice	1,062	839	383	20	7,660
T1	T1 - Rebate	661	36	514	20	10,280
L5	L5 - Rent Increase Above Guideline	471	1	1,253	30	37,590
A2	A2 - Sublet or Assignment	465	62	199	30	5,970
A4	A4 - Vary Rent Reduction Amount	279	8	248	30	7,440
T5	T5 - Bad Faith Notice of Termination	149	0	118	60	7,080
T3	T3 - Rent Reduction	110	0	70	30	2,100
A1	A1 - Determine Whether Act Applies	74	0	60	60	3,600
L8	L8 - Tenant Changed Locks	23	0	18	60	1,080
L6	L6 - Review of Provincial Work Order	12	0	14	120	1,680
T4	T4 - Failed Rent Increase Above Guideline	3	0	1	60	60
		68,118	31,016	32,414		1,024,915

**Workload for Fiscal 2002/2003
Distribution of Application Receipts**

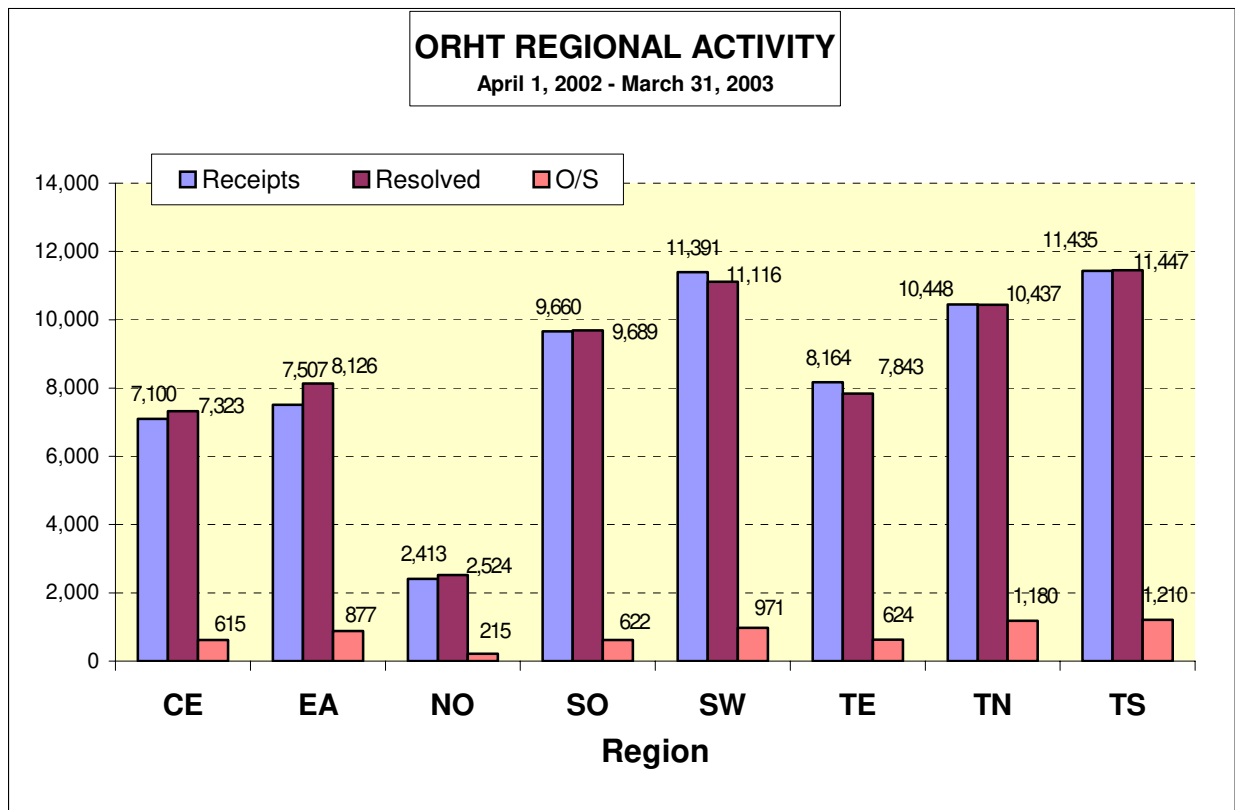


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T1	T1 - Rebate	661	36	514
L5	L5 - Rent Increase Above Guidelines	471	1	1,253
A2	A2 - Sublet or Assignment	465	62	199
A4	A4 - Vary Rent Reduction Amount	279	8	248
T5	T5 - Bad Faith Notice of Termination	149	0	118
T3	T3 - Rent Reduction	110	0	70
A1	A1 - Determine Whether Act Applies	74	0	60
L8	L8 - Tenant Changed Locks	23	0	18
L6	L6 - Review of Provincial Work Order	12	0	14
T4	T4 - Failed Rent Increase Above Guide	3	0	1
		68,118	31,016	32,414

Application Resolution

The Tribunal has been successful in resolving applications quickly. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 20 days of filing the application and even more complex orders are issued with 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Tribunal Locations

The Ontario Rental Housing Tribunal has eight regional offices and nine client service offices across the province where landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings.

Most of the Tribunal's hearings are held in its regional offices located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

In addition, hearings are also held in the client service office in Windsor.

Alternative Service Delivery

In October 2002, the Ontario Rental Housing Tribunal took initial steps towards implementing a recommendation originating from the operational review of the Tribunal conducted in 2000. The Tribunal, in partnership with the Ministry of Consumer and Business Services, moved forward on an alternative service delivery strategy. In the past, the Tribunal had a network of document filing centres across the province where tenants or landlords could file their applications and pick up information about the Tribunal. These filing centres run by private issuers handled other government documents in more remote areas of the province. The alternative service delivery strategy involved the transfer of application intake service from these low volume document filing centres to Government Information Centres; co-locating busy Tribunal Client Service Offices with Government Information Centres in the form of a service collaboration; and closure of low volume Tribunal Client Services Offices.

The overall working relationships have been extremely positive for the organizations and for the public as well. The Ontario Rental Housing Tribunal has benefited through the affiliation with a service network that understands how government is organized and how it operates. This has ensured that service levels and the provision of information to the public are consistent among all offices. Essentially, the successful integration of these operations benefits from the fact that the organizations are working towards a similar set of high level business goals: the achievement of providing the public with convenient access to government services and information.

At Ontario Rental Housing Tribunal/Government Information Centre Co-locations, landlords and tenants can file applications, and have their questions answered by a customer service representative. The co-locations are located in the following areas:

Barrie	Kingston
Kitchener	Owen Sound
Peterborough	St. Catharines
Thunder Bay	Whitby

At Government Information Centres, landlords and tenants can file applications and supporting documents. Staff of these centres cannot answer questions about the rights and obligations of tenants and landlords under the *Tenant Protection Act*; they can, however, accept applications on behalf of the Tribunal and provide access to information pamphlets and application forms.

The Tribunal uses the services of the following Government Information Centres:

Atikokan	Aurora	Bancroft	Barrie
Belleville	Blind River	Brampton	Brockville
Chapleau	Chatham	Cochrane	Cornwall
Dryden	Elliot Lake	Espanola	Fort Frances
Geraldton	Gore Bay	Guelph	Hawkesbury
Hearst	Huntsville	Ignace	Kapuskasing
Kenora	Kingston	Kirkland Lake	Kitchner
Lindsay	Marathon	Minden	Moosonee
New Liskeard	Nipigon	North Bay	Owen Sound
Parry Sound	Pembroke	Peterborough	Red Lake
Renfrew	Sarnia	Sault Ste. Marie	Simcoe
Sioux Lookout	St. Catharines	Stratford	Thunder Bay
Timmins	Whitby		

Call Centre

The Tribunal has a virtual call centre for handling customer inquiries. There is a toll-free number for callers who live outside Toronto (1-888-332-3234); and, in the Greater Toronto area the number is 416-645-8080. Customer service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions 24 hours a day, 7 days per week. This year, the Tribunal responded to approximately 700,000 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

Members of the Ontario Rental Housing Tribunal's Virtual Call Centre Team are the proud recipients of the Public Service Quality Fair 2002 Certificate of Excellence, gold level; Showcase Ontario Award of Excellence 2002; and the 2002 Amethyst award. In addition, Diana Macri, Director of Operations received recognition by the Premier and Secretary of Cabinet for significant contributions to OPS excellence and innovation.

As a result of the call centre transformation, the Tribunal was able to handle an increased volume of calls and helped issues get resolved fairly and quickly. Many provincial agencies, private sector companies and government agencies from other ministries now visit the call centre, which is considered a best practice. Recently, the OPS Ideas Campaign and the MAH Public Consultation Committee have called upon the Ontario Rental Housing Tribunal call centre to fulfill their needs for a state-of-the-art and efficient call centre.

E-government

This year, the redesign of the Ontario Rental Housing Tribunal website made it easier and faster for clients to find information. The website has been modified to ensure that it meets the requirements of the *Ontarians with Disabilities Act, 2001*. Making our website more accessible is an important way to ensure the total accessibility of our information to all of our clients. The Tribunal will further enhance its high quality service for clients by introducing electronic filing capabilities. This innovation would give landlords and tenants another way to file applications under the *Tenant Protection Act*.

The Tribunal's website (www.orht.gov.on.ca) is visited almost one million times each month. Clients can find information about the progress of their application, the date of the hearing and whether an order has been issued. As well, all Tribunal forms are available on the website and through each regional and client service office.

Information Sharing

The Ontario Rental Housing Tribunal, on behalf of the Ministry of Municipal Affairs and Housing, hosted a three-day conference in October of rent regulators and tenant bureau representatives from across Canada. Held every five years, the conference focuses on the exchange of information on common experiences and problems, their resolutions, and how each province tackles difficulties they encounter. The conference included such topics as mediation, enforcement, balancing workload pressures and the whole realm of public education. Information and knowledge sharing is the basis of valuable learning and program advancement. Such conferences set the stage for constant dialogue with our provincial counterparts.

ORDER SUMMARIES

Tenant Application Landlord Application

Sections 34 & 35 Section 69

The tenants applied for an order determining that the landlord had withheld a vital service and had failed to repair or maintain the rental unit. At the hearing location, just prior to the hearing, the landlord served the tenants with an application to terminate the tenancy because the tenants damaged the rental unit.

At the hearing, the landlord asked for, and was granted, permission to have both applications heard together. The tenants were given 20 minutes to prepare a response to the landlord's application. The initial order dismissed the tenants' application, found that the tenants caused the damage to the rental unit and required them to pay a substantial amount for the repair costs.

The tenants asked for a review of the order on the basis that they were denied natural justice because they were not asked whether they consented to the landlord's application being heard that day, nor were they asked to provide any submissions on the issue. The reviewing member agreed that there was a denial of natural justice, and a serious error in the initial order. Both applications were heard anew. The member dismissed the landlord's application on the basis that the landlord failed to prove the damage was caused by the tenant. The tenants received a modest abatement for some of the repair issues, but the member found that the tenants failed to prove other claims made in their application.

Landlord Application Tenant Application

Section 69 Sections 34 & 35

The landlords applied to terminate the tenancy and evict the tenant because they required possession of the unit for their own use. The tenants applied on various grounds, including failure to comply with health, safety, housing or maintenance standards.

Shortly after the tenants moved in, they complained about the maintenance standards and water quality in the rental unit. A work order was issued that required a variety of repairs, and

also that the water supply and quality be brought up to standard (water testing showed significant evidence of bacterial contamination). Soon after the work order was issued, the landlord served a notice of termination for personal use which was the basis of the application. Evidence was presented at the hearing that the landlords had been discussing how to “get rid” of the tenants before serving this notice of termination. After serving this notice, but before the landlords filed, the landlords’ house burned down. Fearing their application might not succeed, the landlords served a subsequent notice of termination, also based on personal use, that was the basis for application. In the meantime, the tenants had filed an application based on the water quality issues, among others.

The member determined that at the time the landlords served the first notice of termination, they did not have a genuine intention to occupy the rental unit. However, by the time they filed their application, their intention to occupy the unit was genuine (their house had by then burned down). The landlords submitted that the member should consider their intention at the time the application was filed, not their intention at the time the notice was served. The member disagreed, and dismissed the application on the basis that the notice of termination was given in bad faith.

The member determined that the landlords’ intention to occupy the rental unit was genuine at the time they served the second notice of termination. However, the member also considered whether the landlords’ application should be refused under section 84 because of a serious breach of the landlords’ obligations under the Act (the tenants had no potable water for several months). The member determined that subsection 84(2) requires the Tribunal to consider whether a serious breach exists at the time of the hearing and that although this breach had not been remedied at the time the landlords’ application was filed, it had been remedied by the time the hearing was held. As such, the member granted termination of tenancy, but delayed the eviction for a considerable period of time. The member also awarded an abatement of rent on the tenants’ application because of the problems with water quality.

Tenant Application

Subsection 7(2)

The tenants of a mobile home park applied to determine whether the sites they leased are covered by the *Tenant Protection Act*.

The park is located on Indian reserve lands. One of the main arguments put forth was that the landlord was in fact a corporation, and that a corporation operating on an Indian reserve should be considered exempt from the provisions of the *Indian Act*. The member considered whether the landlord was a corporation, or whether the landlords were four individuals. Each of the individuals had been issued Certificates of Possession for an undivided one-quarter interest in the land used for the park.

The member determined that although the four individuals referred to above had jointly registered a corporation, they had never transferred their interests in the land used for the park to the corporation. The corporation never held any interest in real property, including any interest in the Certificates of Possession for the mobile home park lands. The tenants did not make their rent payments to the corporation. The transfer of property rights to the corporation would have required a Band Council Resolution and a permit under the *Indian Act*, and this permission was never sought. The member considered the real substance of the activities related to the residential complex pursuant to section 188 of the *Tenant Protection Act*, and determined that the landlords were the four individuals and not the corporation.

Because the member found that the landlords were individuals, it was not necessary to consider the applicability of the *Tenant Protection Act* to a corporation operating on an Indian reserve. The member found that tenancy agreements for the mobile home park sites were between the landlords, who were Indian band members, and the tenants, who were not. The member determined that on the facts of this case, the *Tenant Protection Act* does not apply to the mobile home park leases in question.

Landlord Application

Section 81

The tenant of the rental unit had died, after which her daughter continued to occupy the rental unit. The daughter was not a tenant on the lease and the landlord filed the application to have her evicted as an unauthorized occupant.

The tenant's daughter submitted at the hearing that as the definition of tenant in section 1 of the Act includes heirs, she meets the definition of tenant and should be allowed to retain possession of the rental unit.

The member considered the definition of tenant in section 1 of the Act, which states that a tenant includes a person who pays rent in return for the right to occupy a rental unit and includes the tenant's heirs. The member also considered that the definition of heir in Black's Law Dictionary includes one who inherits property, whether real or personal. The member determined that a tenant's heir does not simply step into the shoes of the tenant with respect to the occupancy of the rental unit. The member also found that no arguments were presented that a tenancy could be considered real or personal property, in other words, something that could be inherited. The member found that "heir" was included in the definition of tenant so that the estate could perform such activities as recovering the rent deposit. The member found that the tenant's daughter could not be considered a tenant of the rental unit by virtue of being an heir to the deceased tenant, and ordered that the tenant's daughter be evicted.

Landlord Application

Section 69

The landlords filed an application to terminate the tenancy and evict the tenant because they required possession of the rental unit.

The person intending to move into the rental unit was the father of one of the landlords. He had recently separated and sold his home. The member was satisfied that the father in good faith intended to move into the rental unit. The tenant, however, argued that the adjudicator should apply section 84 in the circumstances, as termination of the tenancy would create a real hardship for her. The tenant had lived in the unit for 18 years and had a medical condition and a limited income that would make finding alternate accommodation very difficult. She submitted that her particular unit was chosen because she pays the lowest rent and because there are ill feelings between her and the landlords.

The member found that, having regard to all the circumstances of this application, including the extreme length of the tenant's occupation of the unit, and the availability of three other units in the complex, it was fair to refuse the application, and refused to terminate the tenancy pursuant to section 84 of the TPA.

Landlord Application

Section 69

The landlord applied to terminate the tenancy because the tenants caused damage to the rental unit and had substantially interfered with other tenants' reasonable enjoyment of the residential complex or substantially interfered with a lawful right, privilege or interest of the landlord or another tenant. The landlord gave this notice because the tenants had installed a satellite dish without permission.

In this situation, the satellite dish was safely installed on the tenants' rear patio and was mostly obscured from view by the surrounding fence. The wires that run from the dish to the receiver inside the rental unit were fed through a pipe that pre-existed the satellite installation.

The notice of termination was based on damage to the rental unit, but, the member found there was no evidence that the installation of the satellite dish damaged the unit in any way. The landlord submitted that the satellite dish contravened its rules and regulations; however, these rules deal with alterations and fixtures, and the member found that the dish was not a fixture. The landlord referred the member to other Tribunal decisions wherein members required tenants to remove satellite dishes, but the member found that those cases were distinguishable from the facts of this case as this tenant did not affix the dish to the building, or create a hole in the outside of the building to feed the wires through. The landlord further submitted that as the unit was located in a non-profit housing complex, it should be given special consideration in this matter. The member disagreed and found that the landlord was subject to the same provisions of the *Tenant Protection Act* as any other landlord and that it was not a function of the Tribunal to enforce the policy of this landlord. The landlord's application was dismissed.

Tenant Application

Section 144

The tenants applied for an order determining that the landlord had collected or retained money illegally. The tenants had paid the first month's rent and provided a last month's rent deposit and had been told by the landlord the unit would be cleaned and painted before they moved in. The tenants testified that when they went to move in, nothing had been done, and the unit was inhabitable.

The tenant signed an agreement to forfeit the first month's rent they had paid in exchange for the return of the last month's rent deposit. The tenants felt they had no choice but to sign the agreement, as they needed the money to rent another unit.

The member determined that the agreement signed by the parties was contrary to the Act and that, pursuant to subsection 2(1), the Act applies despite any agreement to the contrary. The member further determined that as the unit was uninhabitable, the landlord breached a material covenant pursuant to section 11 of the Act, which released the tenant from any obligation under the tenancy agreement. The member ordered the landlord to repay the tenants the first month's rent.

Landlord Application

Section 137

The landlord applied for an order to vary the percentage rent reduction set out in a Notice of Rent Reduction issued by the Municipality.

A landlord who makes this type of application is required by paragraph 3 of section 28.6 of O. Reg.194/98 to file evidence of the rents charged for the residential complex. In this case, the landlord provided information about the rents charged for the residential complex by filling out the appropriate part of the application form. The member determined that this was not evidence of the rents charged pursuant to the regulation, and directed the landlord to provide the required evidence by a specific date. The landlord never responded to the direction, and the member dismissed the application.

Tenant Application

Section 144

The tenant applied to the Tribunal for an order determining that the landlord retained money illegally.

The tenant moved out of the rental unit on September 30 and acknowledged at the hearing that he had provided insufficient notice of termination. The tenant paid the rent for September, and the landlord retained the last month's rent deposit. A new tenant moved into the rental unit on

October 1, and the foundation of the tenant's application was that as the unit was rented for October 1, the landlord had not suffered a loss, and should have returned the last month's rent deposit.

The landlord submitted that they may have suffered a loss, but provided no evidence to show this. The landlord argued that the onus was on the tenant to prove that the landlord had not suffered a loss. The member disagreed, stating that the evidence to show a loss could have easily been put forward by the landlord and inferred from the absence of any such evidence that the landlord did not suffer a loss. The member ordered the landlord to return the last month's rent deposit to the tenant.

Landlord Application

Section 138

The landlord applied for an order for an above guideline rent increase. The original application was dismissed because the expenditures were not incurred by the landlord, but by the co-ownership corporation in which the landlord owns shares. The landlord has exclusive control over two of the 53 units in the complex and those two units were the subjects of the application.

The landlord applied for a review of the decision to dismiss the application, which was granted. The reviewing member determined that section 138 of the Act does not require that a particular person incur the costs claimed, only that costs have been incurred respecting the complex. The member found that the evidence clearly showed that there was an extraordinary increase in utility costs during the relevant period and that capital expenditures were incurred respecting the complex. The member found that dismissing the application was a serious error, and cancelled the initial order. The member ordered a rent increase of 3% above the guideline.

Landlord Application

Section 69

The landlord applied to terminate the tenancy and evict the tenants because the tenants or someone they permitted in the residential complex interfered with other tenants' reasonable enjoyment of the complex. The tenants' son and his guests had been having frequent disruptive parties, which continued even after the application was filed.

At the hearing, the tenants admitted to one incident of partying at their rental unit, but took the position that they were not responsible for any incidents that occurred outside the rental unit. Based on evidence the landlord provided at the hearing, the found that persons the tenant permitted in the residential complex substantially interfered with other tenants' reasonable enjoyment of the complex.

The member decided it would be appropriate to consider section 84 even though the tenants had not raised the issue themselves. The member considered that the incidents had been fairly isolated, and that the tenants themselves had not been directly involved. The member also considered that the landlord had given the tenants opportunities to cure the problem before filing an application, and that the tenants had not done so. Finally, the member considered the tenants' cavalier attitude towards the rights of other tenants and their refusal to accept responsibility for the behaviour of their son and his guests in the residential complex. For these reasons, the member found that it would be unfair to refuse to grant an eviction order, but exercised his discretion to delay the eviction for a short period of time.

BIOGRAPHIES

CHAIR

Chisanga Puta-Chekwe

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford. Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994. In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997.

He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000). Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

VICE CHAIRS

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

Gilles Guénette

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette has recently practised as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the vice chair of Ottawa-Carleton Housing Authority. He is a former resident of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general. Ms. Holmes has been active in community service organizations such as Mission Services in London. She is a founding member of Teen Girls' Home, and the Brain Tumour Foundation of Canada (Gus Macher Tournament), and sits on the Advisory Committee of Collections for the London Historical Museums.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Ontario Adjudicators and Regulators Training and Education Committee.

Beverly Moore

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

Jeffrey Rogers

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

ADJUDICATORS

Ashis Basu

Ashis Basu attended schools in England and India prior to obtaining his Bachelor of Science (Honours) in 1974 and Master of Business Administration (Distinction) in 1977 from Pune University in India. He started his career in the private sector in 1977 with one of the largest corporations in Kenya, becoming General Manager in 1983. He was also a Member of the Federation of Kenya Employers and was actively involved in negotiating and mediating many employment issues. In 1980, he served in Uganda as Member of the Project Team working with the World Bank and G7 countries responsible for economic and industrial reconstruction of the country after the restoration of democracy. Moving to Canada in 1988, he joined Citigroup, one of the world's largest financial services companies. He worked in various functions during his tenure, including Administration, Internal Control, Regulatory affairs, and Business and Systems Planning. Prior to his appointment to the Tribunal he managed all acquisitions and contracts of the organization in Canada.

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of Law at Sheridan College and for the past 10 years has taught Business Law for Canadian General Accountants. Ms. Beckett brings with her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Jim Brown

Jim Brown graduated from Ryerson Polytechnical Institute in business administration in 1965. He then graduated with a Bachelor of Arts degree from York University in 1968. That same year, he graduated from the Certified General Accountant program. In 1971 he graduated from the Master of Business Administration program at York University. In 1971 he also graduated as a registered industrial accountant. Mr. Brown spent many years at the Toronto Telegram and was one of the founders of the Toronto Sun. Mr. Brown operated his own manufacturing company for 25 years before entering public service. He has lectured at Ryerson, Seneca College and the University of Toronto. He is also a former member of the Ontario Legislature.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served two terms, and then to City of Toronto Council in 1998. Ms. Brown has served the community in many volunteer capacities for over 30 years, including library advocacy where she was a Trustee for 12 years, including four years as Chair of the Etobicoke Library Board.

Stanley Chapman

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Workers' Compensation Appeals Tribunal.

Robert Côté

Robert Côté is a graduate of the University of Montreal (B.Sc.A. Chemical Engineering, 1962) and the Osgoode Hall Law School (LL.B.1990). He has worked in the chemical, petrochemical and energy fields for over 25 years. Mr. Côté was called to the Ontario Bar in 1992 and has been in private practice in the Ottawa area working primarily in the Immigration and Labour law fields.

Susan Ellacott

Susan Ellacott is a resident of the Ottawa region and served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, and received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Richard Feldman

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, Mr. Feldman has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Harry Fine

Harry Fine graduated from the University of Toronto (B.A. Hons.) in 1977. Following graduation, he entered his family's business full time, building the organization into one of the largest family entertainment companies in Ontario, and one of the most successful bowling companies in North America. As President of Bowlerama, Mr. Fine was active in raising money for many local and provincial charities including Big Brothers, the Variety Club of Ontario and Kids Help Phone. He was elected legislative, constitutional and business development chairs for his industry's trade association over his 16 years of service. Mr. Fine was appointed to the Ontario Rental Housing Tribunal in 2001. He is also a member of the Society of Ontario Adjudicators and Regulators as well as the Council of Canadian Administrative Tribunals. In August of 2002, Mr. Fine was appointed to the Toronto Committee of the Federal Judicial Appointments Advisory Committee by the Minister of Justice, the Honourable Martin Cauchon. In his spare time, he is an active volunteer with the Ontario Disabled Sailors Association.

Robert Gleeson

Before coming to the Tribunal, Robert Gleeson was Manager of Provincial Offences Courts and Prosecutions for the City of Kawartha Lakes and the County of Haliburton. He has experience in Municipal, Provincial, Federal, civil and criminal Courts. Mr. Gleeson is bilingual and a former Police Inspector and Commanding Officer of Police Operations from the Montreal area. Upon taking an early retirement he subsequently moved to Ontario and became Chief of Municipal Law Enforcement for the City of Vanier and was a Prosecutor for Provincial Offences and By-Law enforcement matters for seven years. Upon leaving the City of Vanier, he was under contract to the Ministry of the Attorney General and assigned to the Ontario Superior Court of Justice. He is past Vice President (2002) of the Municipal Court Managers' Association of Ontario and Director of the Central East Court Managers Judicial District, a former member of the Association of Canadian Court Administrators and the Prosecutors' Association of Ontario. Mr. Gleeson is the recipient of many academic honours, including many law enforcement related diplomas and attestations from police academies in Quebec and Ontario. He is also the recipient of the Canadian Governor General's Medal and Certificate for meritorious service to law enforcement in Canada and an Outstanding Employee Award from the Attorney General of the Province of Ontario. He has been active in community service organizations such as the United Way Campaign and is a past president of an Optimist Club. An avid boater, Mr. Gleeson is also a member of the Canadian Power Squadron.

John Goodchild

John Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, and later employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. Mr. Goodchild was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

David Gregory

David Gregory graduated from the University of Toronto where he received a Bachelor of Arts and Sciences degree in 1969 and a Bachelor of Laws degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court, has actively volunteered his time on his community's Committee of Adjustment, Regional Chamber of Commerce and Economic Development Board, and is a past president of his local law association.

Knox Henry

Knox Henry was appointed as a part-time member to the Pesticides Appeal Board in 1975, which was merged with the Environmental Appeal Board in 1978. He was a part-time member until 1991 when he became full-time vice chair of the Environmental Appeal Board. Mr. Henry is one of Canada's leading horticulturalists. He has been a guest lecturer on propagation, management and environmental issues at various universities and colleges. Mr. Henry was cross-appointed as deputy mining and lands commissioner for the period 1995 to 1997 and cross-appointed as a member of the Ontario Rental Housing Tribunal in 1999.

David Hutcheon

David Hutcheon served as Vice Chair of the Environmental Review Tribunal from 1999 to 2002. He is an experienced mediator. Prior to being an adjudicator, he spent ten years in provincial and municipal government during which time he served as Deputy Mayor, Budget-Chief, and executive council member on Toronto City Council. Mr. Hutcheon was a Commissioner on the Toronto Harbour Commission and a Director of the Runnymede Chronic Care Hospital. He has long been active in his community and is presently serving as a member of the Humber Watershed Alliance. He is a recipient of the Canadian Institute of Planners' S. George Rich 1998 award. The Commemorative Medal for the 125th Anniversary of the Confederation of Canada was conferred upon Mr. Hutcheon for outstanding and significant voluntary service to the community. Mr. Hutcheon has a Master of Public Administration degree from the University of Western Ontario and an Honours Bachelor of Arts degree in History from Rutgers University, New Jersey U.S.A. He is a Henry Rutgers Scholar.

Linda Joss

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Ms. Joss spent 10 years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. She later joined Metro Toronto's Community Service Department as a manager of hostels. During 25 years with Community Services, Ms. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time Ms. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Ms. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Catherine Keleher

Catherine Keleher started with the Tribunal as a part-time Member in July, 2000, and became a full-time Member in February, 2001. Ms. Keleher served 13 years as Reeve of the Town of Palmerston. In that position, she served as a member of Wellington County Council and was elected Warden for 1994. Ms. Keleher has chaired the Town's Public Works, Administration Finance and Recreation, and Planning and Development Committees as well as the County's Administration Finance and Personnel Committee, the Wellington-Guelph Joint Social Services Committee, and has Co-Chaired the Wellington-Guelph Waste Management Master Plan Steering Committee. She has been Vice-Chair of the Wellington County Library Board and a member of the Wellington County Police Services Board and the Wellington-Dufferin-Guelph Board of Health. Her community activities include two years as Vice-Chair of the Palmerston and District Hospital Board of Governors and 10 years as a member of the Maitland Valley Conservation Authority and the Board of Family and Children's Services of Guelph and Wellington County.

Edward Lee

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Paul Lummiss

Paul Lummiss studied structural engineering at Lakehead University and graduated as a certified engineering technologist. He has in-depth experience with heavy, commercial and residential construction. Mr. Lummiss is a former member of local government and is a member of the Society of Ontario Adjudicators and Regulators.

Janice MacGuigan

R. Janice MacGuigan is a graduate of The Institute of Law Clerks of Ontario. She practiced in the real estate field for 13 years, and later spent two years as a constituency correspondent. In addition, Ms. MacGuigan has been an active volunteer in her community as Chair and Vice Chair of her local school council, a leader with Girl Guides of Canada, and has undertaken a number of community fundraising projects.

Ian MacInnis

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston. Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He has also been active on several community boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Donald MacVicar

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario. From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

Steve McCutcheon

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He has practised law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, Mr. McCutcheon operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Dennis McKaig

Dennis McKaig is a graduate of Humber College in Toronto (Funeral Service Education, 1980) and The University of Western Ontario (Bachelor of Science, 1988). Mr. McKaig worked in funeral service in Southwestern Ontario during most of the 1980s. He has been with the Ministry of Health (Emergency Health Services) in the communications field since 1989, and has also worked on a part-time basis as a paramedic. Mr. McKaig previously has acted as a Board member and Committee Chair for Craigwood Youth Services, a children's mental health and young offender's agency. Mr. McKaig is President of London Canine Association, Inc., Canada's oldest dog club.

Alan Mervin

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) from the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice. He has been involved for a number of years in community volunteer work where he has undertaken a number of projects.

Christina Budweth Mingay

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws (LL.B.) from Queen's. Ms. Budweth Mingay was in private practice until 1991 with a focus on civil litigation. During the period 1991 to 2001, she practiced law with the Law Society of Upper Canada. She has been involved for a number of years in community volunteer work and has undertaken a number of fund-raising and other projects.

Brian Nicholson

Brian Nicholson joined the Tribunal following 15 years of public service, as Regional Councillor with the City of Oshawa and the Regional Municipality of Durham. As a Councillor, Mr. Nicholson served as chair and/or member of several committees and related organizations and has experience in managing all aspects of diversified public sector operation. Recently, as owner/chief consultant of a consulting firm, Mr. Nicholson has been involved in all aspects of policy development and governmental relations. He has been a guest lecturer in journalism and government relations at Durham College. Prior to his elected service, Mr. Nicholson spent five years as a Correctional Officer with the Ontario Ministry of Correctional Services.

Nicholas John Pustina

Nicholas John Pustina, was called to the Bar in 1957 and appointed Queen's Counsel in 1971. His practice was largely in the field of real property, estates, municipal and administrative law and, in the past five years, he has restricted his field substantially to real property. He has also been heavily involved in charitable and volunteer work in Thunder Bay. He has recently been appointed a Deputy Small Claims Court Judge and has found the work to be most rewarding.

Brian Rodenhurst

Brian Rodenhurst graduated from the University of Guelph with an Honours Bachelor of Arts degree and from the University of Windsor with a Bachelor of Laws. He was in private law practice for 20 years. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, and vice chair of administration and finance.

Pina Sauro

Pina Sauro graduated from Toronto's Ryerson University with a Bachelor of Social Work Degree and a Diploma in Human Psychology. Ms. Sauro has 17 years' experience in municipal government with the City of London. While there, Ms. Sauro held a variety of roles including policy and program development, training, communications, organizational development, financial assistance, and funding allocation. Ms. Sauro's focus has been in the field of community and social services for children, youth, families, and seniors, including social assistance, recreation and long-term care. Through her role in the allocation of provincial and municipal funding, Ms. Sauro had the opportunity to work with many community organizations to address community needs in areas such as child care, homelessness, mental health, diversity, and street youth services.

Guy Savoie

Guy Savoie has held numerous senior management positions within both the financial and business sectors for the past 17 years. Since 1990 Mr. Savoie is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

Sherry Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. Recently, as a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development

Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee. Since the Tribunal's inception, Ms. Senis has been appointed team lead for the adjudicators dealing with operational review recommendations, and is a member of the Performance Management Committee and the Caseload Order Group Committee.

Catherine Skinner

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, Ms. Skinner was legal counsel to the Ontario Assessment Review Board.

Peter Spadzinski

Peter Spadzinski was an educator for over 30 years, serving as teacher, consultant and administrator in both elementary and secondary panels. A graduate of Laurentian University and the University of Waterloo (History, Politics, French), Mr. Spadzinski has been on municipal council for 15 years, 12 as Reeve. During that time he was also member of the Parry Sound and Area Planning Board, serving as chair for three years. He has been involved in a variety of community organizations as a volunteer.

Cynthia Summers

Cynthia Summers is a graduate of McMaster University in 1988 with a Bachelor of Arts degree in Political Science, and in 1995 she received her Master's in Social Welfare Policy. Ms. Summers has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including Audit Programs for Colleges and Universities (1984) and The Decline of the Auto Repair Industry in Ontario (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

George Taylor

George Taylor is a graduate of McMaster University and Osgoode Hall Law School. He has carried on a general law practice in Barrie since 1968. Mr. Taylor has served as a Deputy Judge of the Small Claims Court, and was a member of the Legislature of Ontario from 1977 to 1985. He is also qualified as an arbitrator and mediator. In addition, Mr. Taylor has been involved for many years in community service work and numerous professional organizations.

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in the banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Diane Tinker

Diane L. Tinker is a graduate of McMaster University with a Bachelor of Arts degree and Queen's University at Kingston with a Bachelor of Laws degree. After her call to the bar in 1981,

she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a deputy judge in Small Claims Court in both Kitchener and Cambridge for the past six years.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, Mr. Trueman was elected to serve as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C. Mr. Trueman continues to participate as an advisor and volunteer with a number of community organizations in Haliburton County.

Michael van Dusen

Michael van Dusen is a graduate of the University of Ottawa (B.A. 1982 (cum laude), LL.B. 1986). He practised with the firm of Goldberg, Shinder, Gardner & Kronick until 1997 when he joined Messrs. Burke-Robertson. He continues to carry on an active practice with particular emphasis on insurance and commercial litigation. Mr. van Dusen is directly involved in several local charities and continues to devote much of his spare time to community fundraising. He was appointed as a part-time member of the Ontario Rental Housing Tribunal on February 1, 2001, assigned to the Eastern District Office.

Andreas von Cramon

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practised law in Brockville, after his call to the Law Society of Upper Canada in 1991, until his appointment to the Ontario Rental Housing Tribunal. He is a past member of the Ontario Consent and Capacity Board.

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**Minister of Municipal Affairs
and Housing**

Minister Responsible for Seniors

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

**Ministre des Affaires municipales
et du Logement**

Ministre délégué aux Affaires des personnes âgées

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. (416) 585-7000
Télec. (416) 585-6470
www.mah.gov.on.ca



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2003-2004 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to be "John Gerretsen", written over a faint, illegible stamp.

Hon. John Gerretsen
Minister of Municipal Affairs and Housing

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto ON M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto ON M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2003-2004 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Beverly Moore".

Beverly Moore
Interim Chair
Ontario Rental Housing Tribunal

**Ontario Rental
Housing Tribunal**

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
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Télécopieur : (416) 585-6363



Chair's Message

This is the sixth Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2003 to March 31, 2004.

Celebrating our fifth anniversary as a Tribunal we continue to be an active leader in the agency community. We continue to streamline our operations, with client service offices all successfully co-located with Government Information Centres. The Tribunal's co-located offices are considered cutting-edge examples of integrated public service delivery.

During this fiscal year the Tribunal saw the departure of many founding adjudicators as they moved on to greater challenges at the end of their terms. We welcomed many new adjudicators who have received extensive training both in-house and externally through the Society of Ontario Adjudicators and Regulators. Despite challenges of training many new members, adjudicators have been able to keep up with the workflow, with no significant delays in the issuance of orders.

On the technology front, the call centre continues to improve and to be an outstanding example of how technology transforms service delivery. So much so that the call centre was chosen to provide support to the Premier's OPS-wide consultations by handling telephone responses on their behalf.

The Tribunal continues to take a phased approach to comply with the Governments commitment to multi-channel service delivery. We are currently working towards electronic filing capabilities and hope to have this technology in place in the near future.

Sincerely,

A handwritten signature in cursive script, appearing to read "Beverly Moore".

Beverly Moore, Interim Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

The *Tenant Protection Act, 1997*, (TPA), was proclaimed on June 17, 1998.

The four primary objectives of the TPA are:

- To simplify the relationship between landlords and tenants
- To balance the needs of landlords and tenants
- To create an efficient process that deals with disputes quickly
- To create a cost-efficient process

The *Tenant Protection Act* provides a one-window service to landlords and tenants and offers a timely method for the resolution of disputes between landlords and tenants.

Under the previous legislation, disputes between landlords and tenants were settled through the provincial court system. The court system was formal and costly, and dispute resolution often took a long time.

As well, the previous legislation had a separate system: the Rent Control Program oversaw the regulation of rent increases and provided information resources for tenants and landlords.

The need to provide a one-window service to tenants and landlords was clear. As a result, the *Tenant Protection Act* consolidated the two systems and created an independent, quasi-judicial agency – the Ontario Rental Housing Tribunal.

Since proclamation, the *Tenant Protection Act* has been amended by the *Red Tape Reduction Act* in fiscal 2001-2002 and during the fiscal 2002-2003 by the *Government Efficiency Act*. Many of the amendments clarify existing rules in the TPA while other amendments have added new rights for landlords or tenants and change how the law applies.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- Resolve tenant and landlord disputes through either adjudication or mediation
- Determine legal above guideline rent increases with respect to residential units
- Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more efficient than previous systems for resolving landlord and tenant matters.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between landlords and tenants. Under the adjudication process:

- Disputes are heard in public buildings rather than courtrooms
- Tenants may choose to represent themselves and may consult an on-site legal aid representative
- The more conciliatory approach of mediation is encouraged before the hearing process begins or on the day of the hearing if the adjudicator feels that the matter lends itself to mediation
- The Tribunal's adjudicators are highly qualified professionals who have both the experience and the knowledge to deal quickly and fairly with the issues. Adjudicators are appointed to the Tribunal after undergoing a rigorous and competitive interview and selection process.

Adjudicators from across the province meet formally twice a year to discuss issues. They also meet more frequently and informally in their regions. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to review the format of orders and other groups that gather opinions on specific issues. Members' meetings also contain elements of training such as conduct of a hearing, natural justice, and amendments to the TPA and to other relevant legislation such as the *Statutory Powers Procedure Act*.

The Mediation Process

Mediation is offered under the Tribunal's legislation. It is often used to clarify issues and reduce areas of dispute so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use both their knowledge of rent regulation and their negotiation skills to assist landlords and tenants in resolving their applications and their concerns.

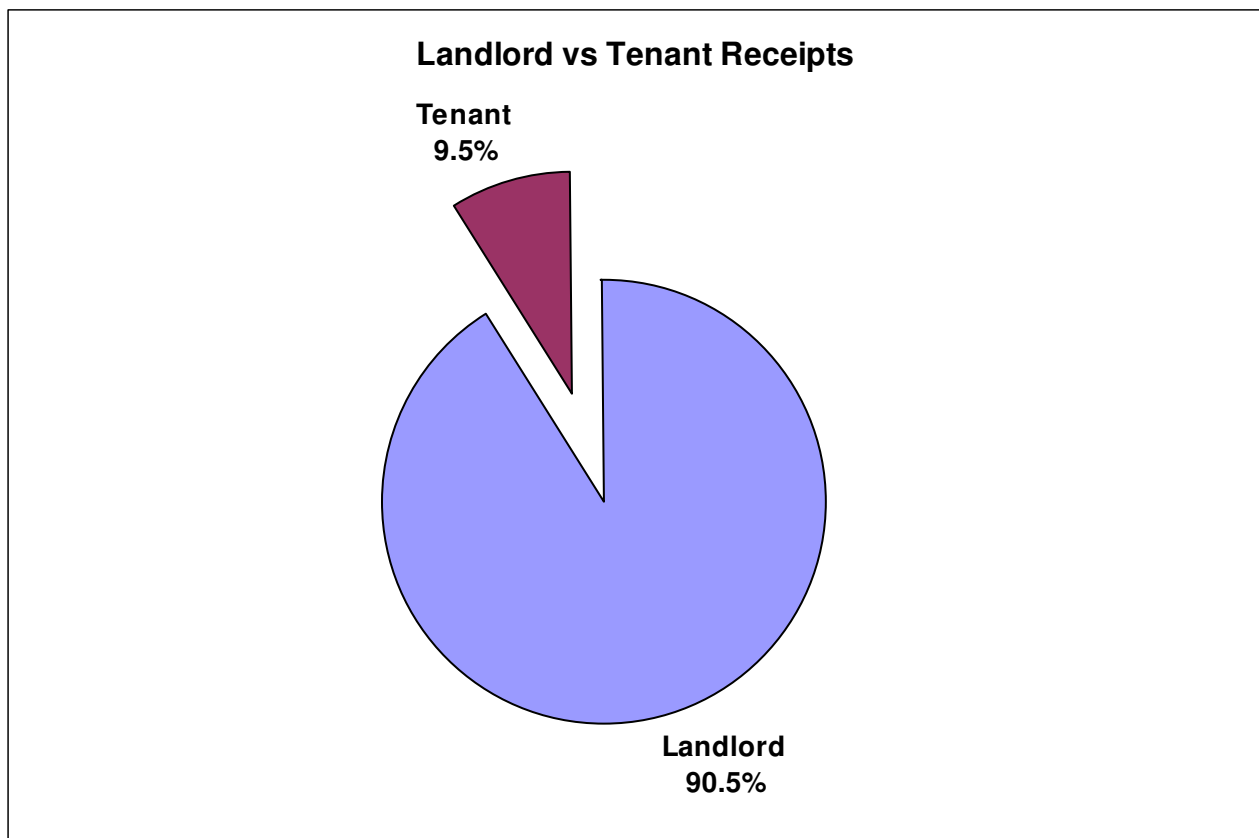
During the fiscal year of 2003/2004, approximately 15.6 per cent of the Tribunal's applications were successfully mediated. This is up from 14.4 percent last year. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus our mediation on the more complex applications. Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

Statistical Information for the Fiscal Year 2003-2004

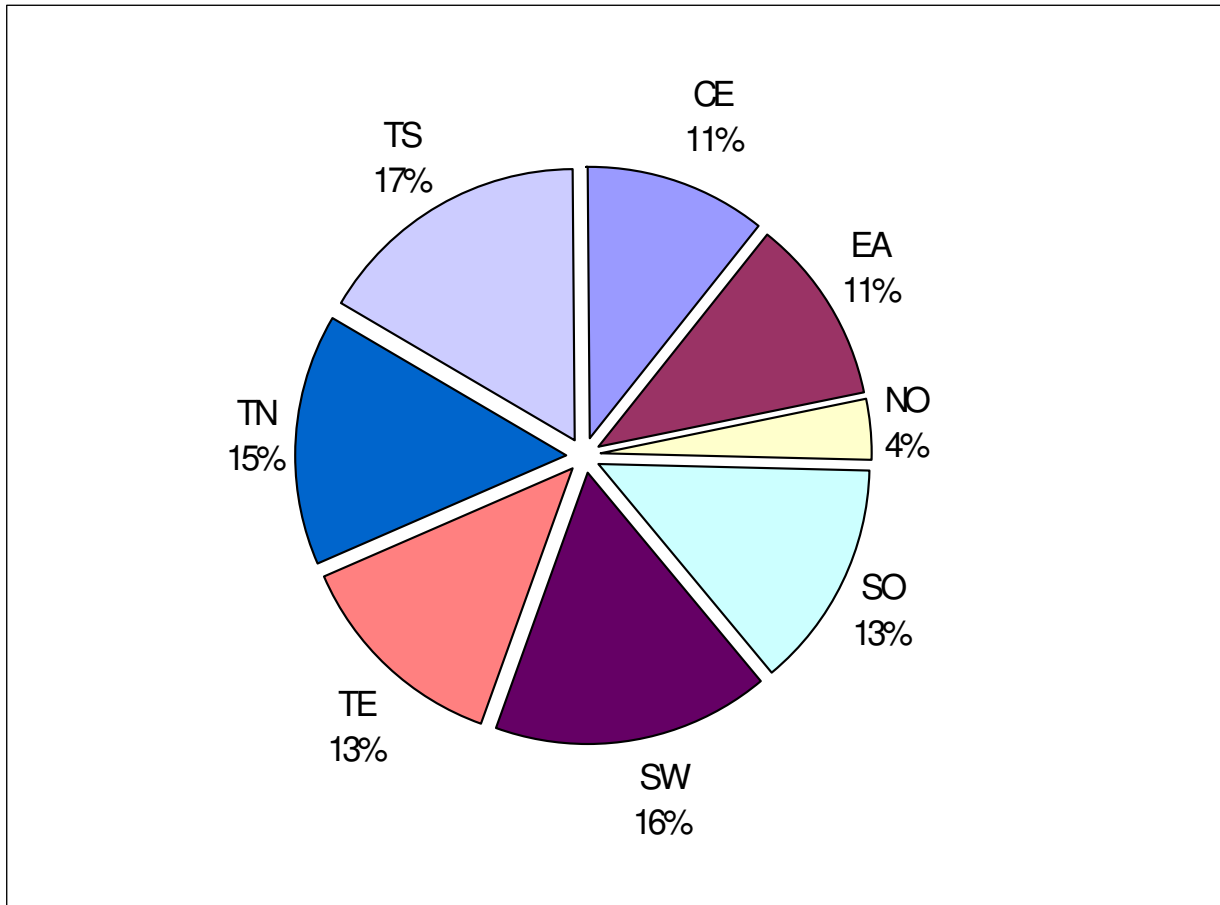
Applications

During the 2003-2004 fiscal year, the Tribunal received 70,004 applications and resolved 71,668. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may generate more than one resolution.) At the end of the fiscal year, 5789 applications were still in progress.

The distribution of application receipts for the 2003-2004 fiscal year remains unchanged from the last fiscal period and are in the following profile:



The regional distribution of applications is as follows:



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Eviction applications have been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 73.15 per cent were for termination of tenancies because of arrears of rent. This is slightly up from 71.70 per cent last year. Tenant applications accounted for 9.51 per cent of the applications filed during this fiscal year. This is up from 9.48 per cent last year. Although the increase is minimal, the Tribunal has seen an upward trend over the last couple of years.

Above Guideline Rent Increase Applications

An average of 251 applications for above guideline rent increases were received each year under the *Rent Control Act*. During the first year of Tribunal operations, 887 applications for above guideline rent increases were received. In the fiscal year 2000-2001, 608 applications were received. During fiscal year 2002-2003, only 471 above guideline rent increase applications were received, a substantial decrease from the previous fiscal year 2001-2002 where the Tribunal received 1608. The increase for fiscal 2001-2002 in above guideline rent increase application receipts was mainly the result of landlords experiencing an extraordinary increase in the cost of utilities, specifically a spike in gas prices. During this fiscal year, 292 applications were received.

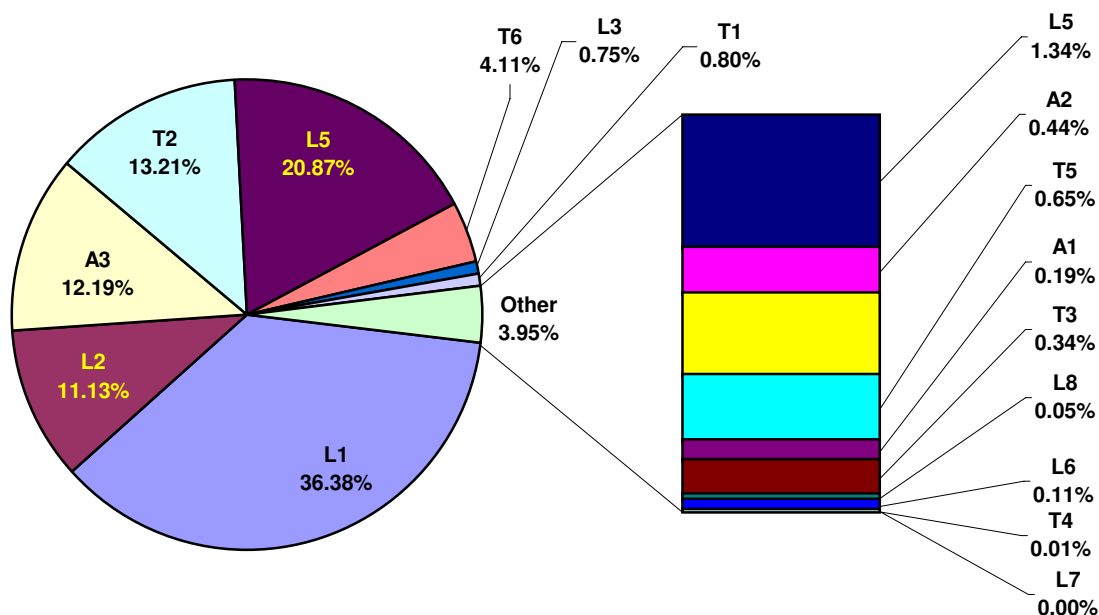
Although the Tribunal received approximately half as many above guideline rent increase applications in comparison to the previous fiscal period, these applications continue to take a disproportionate amount of time both for adjudicators and staff. These applications continue to make up less than 1 per cent of the total applications received, and account for 20.87 per cent of the Tribunal's time.

Mediation is helping us with this workload, although we continue to look for other ways to increase our efficiency and speed up the resolution process.

The charts on the following two pages show the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing), as well as a distribution of application type by hearing time.

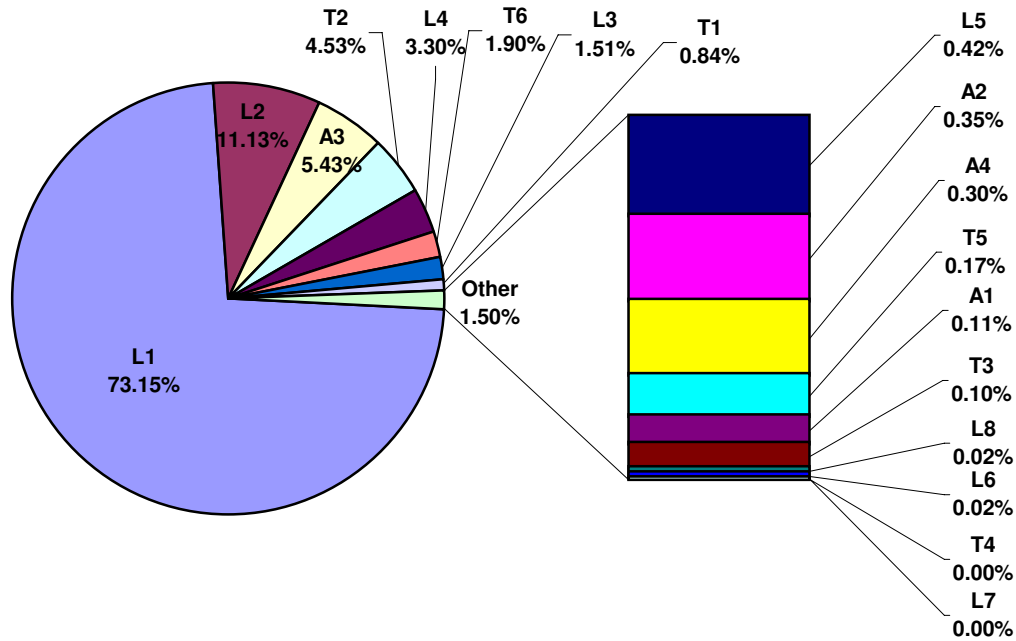
Workload for Fiscal 2003/2004

Distribution of Hearing Time



Case Type		# Cases	# Defaults	# Hearings	Time/Hear (minutes)	Time/Hear (minutes)
L1	L1 - Termination & Non-Payment of Rent	51,207	31,422	18,583	20	371,660
L2	L2 - Terminate Tenancy & Evict	5,495	1,109	3,598	30	107,940
A3	A3 - Combined Application	3,801	555	2,767	45	124,515
T2	T2 - Tenant Rights	3,168	0	2,250	60	135,000
L4	L4 - Terminate Tenancy: Failed Settlement	2,311	2,039	768	240	184,320
T6	T6 - Maintenance	1,331	0	932	45	41,940
L3	L3 - Termination: Tenant Gave Notice	1,054	798	385	20	7,700
T1	T1 - Rebate	589	43	411	20	8,220
L5	L5 - Rent Increase Above Guidelines	292	2	457	30	13,710
A2	A2 - Sublet or Assignment	244	50	151	30	4,530
A4	A4 - Vary Rent Reduction Amount	213	1	276	30	8,280
T5	T5 - Bad Faith Notice of Termination	119	0	111	60	6,660
A1	A1 - Determine Whether Act Applies	79	0	66	30	1,980
T3	T3 - Rent Reduction	69	0	58	60	3,480
L8	L8 - Tenant Changed Locks	15	0	9	60	540
L6	L6 - Review of Provincial Work Order	13	0	9	120	1,080
L7	L7 - Transfer Tenant to Care Home	2	0	0	120	0
T4	T4 - Failed Rent Increase Above Guide	2	0	1	60	60
		70,004	36,019	30,832		1,021,615

**Workload for Fiscal 2003/2004
Distribution of Application Receipts**

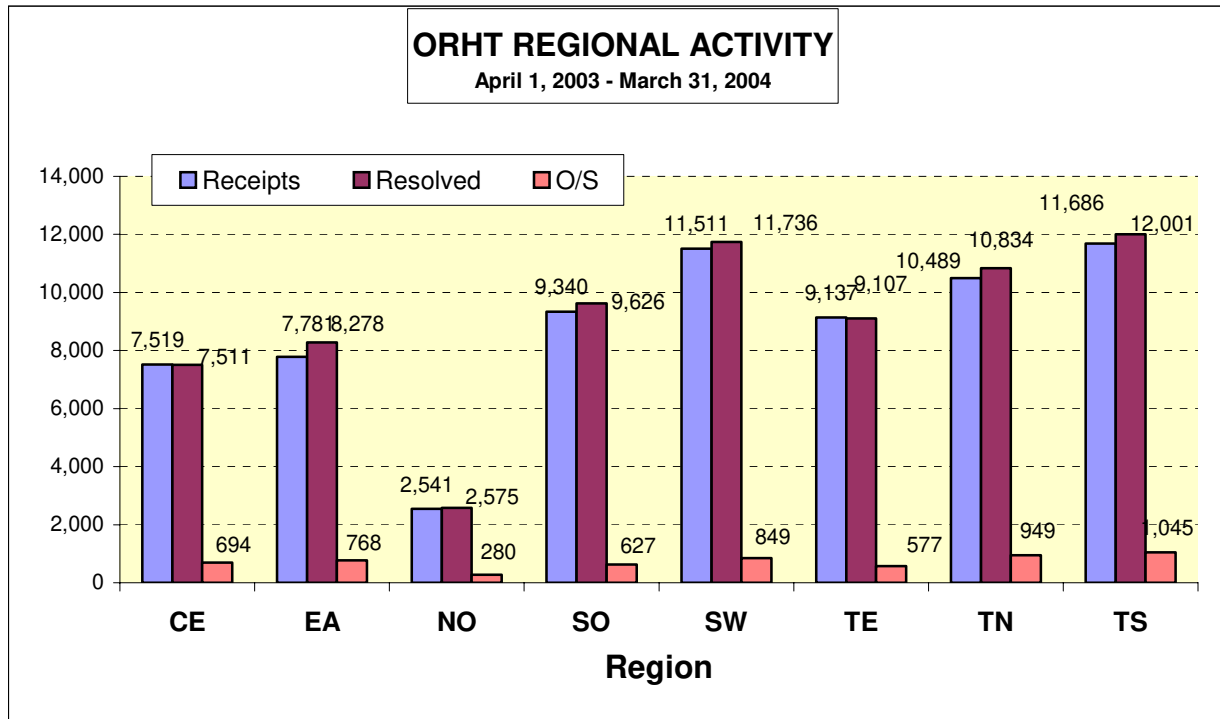


Case Type		# Cases	# Defaults	# Hearings
L1	L1 - Termination & Non-Payment of Rent	51,207	31,422	18,583
L2	L2 - Terminate Tenancy & Evict	5,495	1,109	3,598
A3	A3 - Combined Application	3,801	555	2,767
T2	T2 - Tenant Rights	3,168	0	2,250
L4	L4 - Terminate Tenancy: Failed Settlement	2,311	2,039	768
T6	T6 - Maintenance	1,331	0	932
L3	L3 - Termination: Tenant Gave Notice	1,054	798	385
T1	T1 - Rebate	589	43	411
L5	L5 - Rent Increase Above Guidelines	292	2	457
A2	A2 - Sublet or Assignment	244	50	151
A4	A4 - Vary Rent Reduction Amount	213	1	276
T5	T5 - Bad Faith Notice of Termination	119	0	111
A1	A1 - Determine Whether Act Applies	79	0	66
T3	T3 - Rent Reduction	69	0	58
L8	L8 - Tenant Changed Locks	15	0	9
L6	L6 - Review of Provincial Work Order	13	0	9
L7	L7 - Transfer Tenant to Care Home	2	0	0
T4	T4 - Failed Rent Increase Above Guide	2	0	1
		70,004	36,019	30,832

Application Resolution

The Tribunal has been successful in resolving applications quickly. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 20 days of filing the application and even more complex orders are issued with 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Tribunal Locations

The Ontario Rental Housing Tribunal has eight regional offices and nine client service offices across the province where landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings.

Most of the Tribunal's hearings are held in its regional offices located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

In addition, hearings are also held in the client service office in Windsor.

Alternative Service Delivery

The partnership of the Tribunal with the Ministry of Consumer and Business Services has proven to be extremely positive for both organizations and for the public as well. The Ontario Rental Housing Tribunal has benefited through the affiliation with a service network that understands how government is organized and how it operates.

This has ensured that service levels and the provision of information to the public is consistent among all offices. Essentially, the successful integration of these operations benefits from the fact that the organizations are working towards a similar set of high level business goals: the achievement of providing the public with convenient access to government services and information. In 2003, the Manager of Corporate Services for the Tribunal was awarded the Partnership Award from Ministry of Consumer and Business Services for integrating the Tribunal services and the Government Information Centres.

At Ontario Rental Housing Tribunal/Government Information Centre Co-locations, landlords and tenants can file applications, and have their questions answered by a customer service representative. The co-locations are located in the following areas:

Barrie	Kingston
Kitchener	Owen Sound
Peterborough	St. Catharines
Thunder Bay	Whitby

At Government Information Centres, landlords and tenants can file applications and supporting documents. Staff of these centres cannot answer questions about the rights and obligations of tenants and landlords under the *Tenant Protection Act*; they can, however, accept applications on behalf of the Tribunal and provide access to information pamphlets and application forms. The Tribunal uses the services of the following Government Information Centres:

Atikokan	Aurora	Bancroft	Barrie
Belleville	Blind River	Brampton	Brockville
Chapleau	Chatham	Cochrane	Cornwall
Dryden	Elliot Lake	Espanola	Fort Frances
Geraldton	Gore Bay	Guelph	Hawkesbury
Hearst	Huntsville	Ignace	Kapuskasing
Kenora	Kingston	Kirkland Lake	Kitchner
Lindsay	Marathon	Minden	Moosonee
New Liskeard	Nipigon	North Bay	Owen Sound
Parry Sound	Pembroke	Peterborough	Red Lake
Renfrew	Sarnia	Sault Ste. Marie	Simcoe
Sioux Lookout	St. Catharines	Stratford	Thunder Bay
Timmins	Whitby		

Statistically the Government Information Centre Processing Unit receives on average 220 applications per month in total from the above listed locations. These office locations provide our clients with convenient access to government services, particularly in Northern Ontario. The Tribunal has been able to reduce operating costs through the use of the full Government Information Centre Network.

Call Centre

The Tribunal has a virtual call centre for handling customer inquiries. There is a toll-free number for callers who live outside Toronto (1-888-332-3234); and, in the Greater Toronto area the number is 416-645-8080. Customer service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions 24 hours a day, 7 days a week. This year, the Tribunal responded to approximately 620,000 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The call centre continues to improve and to be an outstanding example of how technology transforms service delivery. Because of its excellence and the professional service provided by Tribunal client service representatives in the field, Cabinet Office chose the Tribunal's call centre over all others in government to handle telephone responses to the Premier's OPS-wide consultation in December through to January 2004.

E-government

The Tribunal's website (orht.gov.on.ca) is visited almost one million times each month. Making our website more accessible is an important way to ensure the total accessibility of our information to all of our clients. Clients can find information on our website about the progress of their application, the date of the hearing and whether an order has been issued. As well, all Tribunal forms are available on the website as well as through each regional and client service offices.

The Tribunal continues to take a phased approach to comply with the Government's commitment to multi-channel service delivery. The first phase allowed clients to inquire online on the status of their application; the second phase allowed for the scanning, interpretation and processing of applications; the third phase allowed for a large majority of applications to be processed through teleform. The Tribunal will further enhance its high quality service for clients by introducing electronic filing capabilities. This innovation would give landlords and tenants another way to file applications under the *Tenant Protection Act*.

ORDER SUMMARIES

Tenant Application

Section 144

The tenant received a notice for a 6.9% rent increase. The proposed increase was greater than the provincial guideline because the landlord had applied to the Tribunal for an above guideline increase (AGI). Pending the outcome of the landlord's application, the tenant paid the full amount of the increase.

The landlord subsequently sold the building and the new landlord continued the AGI application. The resulting AGI order granted an increase which was less than the amount the tenant had paid. The new landlord refused to repay the tenant for the amount paid in excess of the order. As a result, on April 4, 2003, the tenant filed an application with the Tribunal for an order determining that the landlord charged an illegal rent for the 12-month period from Sept 1, 2001 to Aug 31, 2002.

In dispute, the landlord argued that the tenant's application should fail because it was filed more than one year after the landlord collected or retained money in contravention of the Act. The landlord also argued that pursuant to section 141, the Tribunal should not consider the period before April 3, 2002. Section 141 provides that the rent charged one or more years earlier is deemed to be lawful unless an application, in which the lawfulness of the rent is an issue, is filed within one year of the rent first being charged.

The Member was not convinced by the landlord's arguments. The Member found that section 141 was not an obstacle because an AGI application is an application in which the lawfulness of rent is an issue. In addition, the Member reasoned that since the lawful rent is determined by the AGI order, the tenant has no way of knowing whether excess rent is paid until the order is issued. It is only once the AGI order is issued and the lawful rent determined that the landlord starts to retain money in contravention of the Act. The Member, therefore, found that the 12-month limitation starts from the date of the AGI order and not the date the tenant started paying the higher rent.

The Member determined that the landlord collected rent in excess of the amount allowed by the Act. The Member also ruled that the new landlord was liable for the overpayment made to the previous owner. The landlord was ordered to pay the tenant the excess rent plus the cost of filing the application.

Landlord Application

Section 76

The landlord applied to the Tribunal for an order to terminate the tenancy and evict the tenants because they gave a notice to terminate the tenancy.

The tenants, who are husband and wife, reside in a rental unit operated by a public non-profit housing agency. Both tenants signed a lease at the start of their tenancy, which provided that they were jointly and severally liable for the obligations under the lease. Recently, the couple decided to separate. As a result, the husband gave the landlord a hand-written note indicating his intention to vacate the unit and providing the landlord with his new address and phone number for use in the event of an emergency. The landlord treated this note as a Notice to Terminate.

Before deciding whether the note given by the husband would support an order for vacant possession, the Member considered two main issues. First, whether a joint tenant can give a notice to terminate that binds both parties, and second, whether the note signed by the husband was a notice of termination.

In considering the first issue, the Member noted that under the common law of contract, a contract could not be altered unless all parties to the contract are in agreement. The Member found that there was no specific term in the lease and no section of the *Tenant Protection Act* (TPA) or the *Social Housing Reform Act* that would put the tenancy outside the application of contract law.

In considering whether the husband's note was a Notice to Terminate under the Act, the Member observed that the husband never indicated that he wanted to terminate the tenancy, but merely indicated that he would be moving. By leaving his number in the event of an emergency, it seemed as though the husband contemplated that his family would be remaining

behind. On face value it appeared as though the husband was merely attempting to fulfil his obligation to notify the landlord of a change in the family composition.

In the order, the Member found that a joint tenant could not unilaterally terminate a tenancy of a matrimonial home. The Member also found that the note given by the husband was not intended to end the tenancy. In the alternative, however, even if the husband had intended to terminate the tenancy, the Member found that the note failed to substantially comply with the requirements of section 43 of the TPA as it failed to give 60 days notice prior to the end of the tenancy. The landlord's application was dismissed.

Landlord Application

Section 137(3)

The landlord applied for an order to vary the percentage rent reduction determined under section 136 of the *Tenant Protection Act*. The facts of the application were not in dispute. The main issue in dispute was the proper method for calculating the total annual rents for the rental units in the residential complex.

The landlord argued that it should be able to include 'potential' rental income when calculating the total annual rents. In other words, rent that the landlord could have received from rental units (based upon the last rent charged for those units), but which was not actually received because those units were vacant for all or part of the year. In addition, the landlord argued that it should be able to include income received from "sundries", such as interest on deposits and income derived from laundry facilities in the complex. The tenants argued against these amounts being included.

The Member found that not all charges levied to a tenant and not all revenue a landlord receives from a complex constitute *rent* for rental units in the complex. The Member was not satisfied that the additional charges should be considered rent. Similarly, although the laundry room forms part of the complex, the Member found that it does not meet the definition of a 'rental unit' and therefore any revenue derived from it, could not be considered to have been derived from a rental unit.

The Member noted that the applicable regulations do not speak of 'potential' income but of the total of the annual rent amounts that were actually received during the time the units were vacant. In the Member's view, had the intent been to permit the landlord to include rent that could have been charged had the complex not had any vacancies during that year, the Legislature would have used clear language to that effect.

In their application, the landlord calculated the total rent for the base year (calendar year 2002) by taking the rent attributed to December 2002 and multiplying it by 12. The Member found that by using this method to calculate the rent revenue, the landlord overstated the total rent revenue. Since the base year was completed at the time the application was filed, the Member concluded that there was no need for the landlord to estimate the total rent revenue.

Using the *actual* rent revenue figures, an order was issued reducing the rent charged for each of the rental units by 1.71%.

Tenant Application

Section 35

The tenant applied for an order determining that the landlord gave a notice of termination in bad faith.

According to the tenant, the landlord gave him two notices of termination. The main reason for termination cited in the notices was that the landlord wished to demolish the house.

Subsequent to receiving the notices, the tenant's unit was bombed. The unit was occupied by forensic investigators for 6 to 10 days, during which the tenant was absent. When the tenant returned to his unit, he received numerous threats by telephone. The tenant concluded that the unit was unsafe, moved out and placed his belongings into storage.

At the hearing, the tenant testified that when he walked by the unit around Thanksgiving, he saw two children playing in the back yard. The tenant did not go in and did not see anyone inside the house. The landlord disputed the tenant's testimony and argued that the tenant's unit had not been inhabited since the tenant vacated and could not be inhabited, as the roof leaked and the water had been cut off.

The Member concluded that it did not appear as though the tenant moved out because of the notices given to him by the landlord, but rather because the tenant felt insecure in his unit after the bombing. In addition, the tenant did not establish on a balance of probabilities that the landlord acted in bad faith when he gave the notices. Faced with the clear denial and contradictory evidence of the landlord, the Member did not feel that the tenant had sufficiently proved his case. The application was dismissed.

Landlord Application

Section 69

The landlord applied for an order to terminate the tenancy and evict the tenant because he substantially interfered with the landlord's reasonable enjoyment of the residential complex by smoking cigarettes in his unit.

The tenant rents the basement of a bungalow and the landlord lives on the main floor. Since moving in, the landlord has taken several measures to reduce the flow of smoke into her unit. Despite her efforts, the landlord continues to be concerned about the smell of smoke in her unit and its effect on her health. The landlord has been complaining of frequent headaches and sinus congestion, which her doctor found could be attributed to exposure to second hand smoke.

In dispute, the tenant argued that the doctor's opinion is inconclusive and that the tenant's symptoms could be attributable to a variety of other factors.

The Member accepted the tenant's submission that the landlord had failed to prove that her symptoms result from his smoking. In addition, the Member found that since there was nothing in the tenancy agreement or in the *Tenant Protection Act* or any other legislation that would prohibit the tenant from smoking in his rental unit, the tenant had a *prima facie* right to do so.

Despite this right, however, the Member also found that the landlord was reasonable in her concern that the tenant's smoking may be affecting her health. Given the well documented health risks associated with cigarette smoke, it was not necessary for the landlord to prove that the tenant's smoking caused her symptoms. In the Member's opinion, the landlord had the right to be free of the risks of smoking in her unit and it was not reasonable for the tenant to expect to

continue smoking where he shared the air with other occupants in the complex. The Member found that the tenant's smoking substantially interfered with the landlord's reasonable enjoyment. However, the Member exercised his discretion and refused to grant the eviction order provided that the tenant stopped smoking in the rental unit.

Landlord Application

Subsection 72(10)

The Tribunal issued an order terminating the tenancy because the tenant was in arrears of rent. The tenant paid the landlord everything required to void the eviction order, less 18 cents, and then filed a motion to void the order. The tenant's motion to void was granted upon a finding that the tenant was in "substantial compliance" with the order.

Subsequently, the landlord filed a motion to set-aside the order to void, arguing that the tenant had failed to make the entire payment required to void the order. The landlord argued that the granting of the landlord's motion to set aside the order to void was mandatory, as the Act requires that the order be set aside if the full amount set out in the order is not paid. The landlord also argued that there is nothing in the Act which allows the Member to consider substantial compliance when this type of motion is filed.

The agent for the tenant argued that this is a unique situation. This is a case about 18 cents and the Tribunal should take a common sense approach and take into account the purpose of the *Tenant Protection Act* itself, which is an Act remedial in its nature that was introduced to provide protection for tenants.

The Member was not prepared to grant the landlord's motion. The Member concluded that it was not the intent of the legislature to cause a result, whereby a tenant could be evicted from their home over a matter of pennies. The Member found that the payment made by the tenant complied with the requirements of the Act. In the alternative, however, the Member also considered the Tribunal's authority under the *Statutory Powers Procedure Act* to make such orders, as it considers proper to prevent abuse of its processes. The Member found that it was frivolous for the landlord to file a motion over a discrepancy of 18 cents and that this amounted to an abuse of process. The landlord's motion was therefore denied.

Tenant Application

Section 21.2 (SPPA)

The tenant applied for an order determining that the landlord substantially interfered with the reasonable enjoyment of the rental unit by the tenant or a member of his household. An order was issued dismissing the application on the grounds that the issues that were the subject of this application had already been considered in a previous application filed by the tenant.

The tenant filed a request for a review of the order. The main issue under consideration in the review was whether the application was barred by the principles of *res judicata* or abuse of process.

The tenant submitted that he should not be prevented from filing this second application because, even though the facts were the same, this second application was made on different grounds. While the tenant conceded that he could have filed both applications at the same time, he argued that there is no requirement that he must do so. The tenant further argued that to hold a layperson to such a technical standard would be unfair.

The landlord on the other hand argued that the principle of cause of action estoppel requires that an applicant must bring forward the whole case relating to the cause of action at one time. The landlord further argued that any lack of knowledge on the tenant's part should not be used to override the landlord's right to a final decision in the first application. In the alternative, that landlord submitted that the application should be dismissed as an abuse in process.

The Member found that the second application was barred by the principles of *res judicata*. In the alternative, the Member would apply the discretionary principle of abuse of process. The Member found that the tenant, having failed in the original application, simply filed another application alleging the same facts, hoping for a different result. The tenant could have and should have filed the second application at the same time as he filed the first. The tenant's request for review of the order was dismissed and the original hearing order confirmed.

Landlord Application

Section 192

The landlord applied for an order to terminate the tenancy and evict the tenant because she was in arrears of rent. Because the tenant did not file a dispute, a default order was issued terminating the tenancy. Subsequently, the tenant filed a motion to set aside the order.

At the set-aside hearing, the tenant argued that she was not able to participate in the processing of the landlord's application because she was unaware of the proceedings as she was not a 'tenant'. The tenant claimed that her father had signed the rental application form, which named her as a tenant, and she had never taken possession of the rental unit. She further claimed that her father had undertaken all the negotiations with regard to the tenancy on behalf of a family friend. The application was made in the tenant's name because the landlord would not have approved the person who was really the intended tenant.

After considering the evidence presented by both parties, the Member found that the tenant was fully aware of all the negotiations being conducted in her name with the landlord concerning the tenancy. As a result of the negotiations, the landlord in good faith entered into an agreement with the tenant, which gave her the right to occupy the rental unit. The Member considered the definitions of 'tenancy agreement' and 'tenant' under the Act, and concluded that even though the tenant did not occupy the unit, she was still the person who had the right to occupy the unit and therefore, she was the tenant.

The Member did not accept the tenant's argument that she was not reasonably able to participate in the resolution of the landlord's application. The tenant's motion to set aside the default order was denied.

Landlord Application

Subsection 72(5)

The landlord applied for an order to terminate the tenancy and evict the tenants because they failed to pay the rent that they owe. The Tribunal issued an eviction order which provided that the tenants could void the order if they paid \$2005 to the landlord or the Tribunal on or before April 20, 2003.

On April 17th, the tenants gave the landlord a cheque in the amount of \$2004.50 plus the cash sum of 50 cents. The landlord refused to accept the payment on the grounds that the cheque was not certified. The tenants had the cheque certified and tendered the certified cheque and cash of 50 cents to the landlord on April 21st. The landlord refused to accept the payment on the grounds that the tenants were out of time. The tenants delivered the certified cheque and cash to the Tribunal and filed a motion to void the eviction order.

The Member found that the tenants had tendered the required amount to the landlord in accordance with subsection 72(4) of the Act. As a result of the payment, the eviction order was void. The Member issued a notice under subsection 72(5), acknowledging that the eviction order was void. The landlord was directed to retrieve the certified cheque and cash from the Tribunal office.

Tenant Application

Section 35

The tenant and a potential party applied to the Tribunal for an order determining that the landlord had harassed, obstructed, or interfered with them and substantially interfered with their reasonable enjoyment.

The landlord rejected the potential party as a prospective tenant due to a poor credit rating. Subsequently, the potential party enlisted the help of a friend to apply to the same landlord for an apartment. The friend applied and was accepted as the tenant. The potential party prepared to move into the apartment, but the unit was not ready for occupancy on the agreed date. As a result, an argument ensued between the landlord and the potential party concerning occupancy, after which the landlord rejected its agreement with the tenant and returned first and last month's rent to the potential party.

In the application, the tenant and the potential party attempted to claim their lost moving expenses, storage fees and cost incurred for cable and telephone hook-up.

In making a decision, the member considered the intentions of the "tenant" and found that the tenant never intended to move into the rental unit. The tenant was merely acting as a front person for the potential party. The Member found that the potential party did not have the status

of a “tenant” and therefore, any costs, which the potential party incurred, could not be considered by the Tribunal. Since all the costs were incurred by the potential party and not by the tenant, the application was dismissed.

Landlord Application

Section 69

The tenants have occupied the rental unit for over 21 years and were residing in the unit when it was converted to a condominium under the *Condominium Act, 1996*. At the time of registration, the three corporate owners entered into an agreement with the tenants, which provided that they would be guaranteed continued tenancy for a period of 10 years. Despite this agreement, one of the principle shareholders applied for an order to terminate the tenancy and evict the tenants because he required possession of the rental unit for his son. The applicant argued that since he was the person permitting occupancy, he met the definition of landlord and could therefore serve a notice of termination for landlord’s personal use.

Although the applicant satisfied the definition of landlord, the Member could not ignore the fact that three corporations owned the unit. The Member concluded that the actions of the applicant to permit occupancy and serve notice were done on behalf of the corporate owners and not on the applicant’s own behalf. Citing relevant case law, the Member was satisfied that a corporation could not give notice for landlord’s own use under section 51 because this section only applies to occupation by a living person. The Member noted that even if he had agreed with the landlord’s arguments, it would not be unfair in this case to refuse the eviction on the grounds that the corporate owners had guaranteed that the tenants could continue the tenancy for 10 years. The landlord’s application was dismissed.

Tenant Application

Section 35

The tenant applied for an order determining that the landlords had given a notice of termination in bad faith.

The tenant moved into the unit 5 years ago under previous ownership. The former landlord recently sold the property and served the tenant with notice of termination for the reason that the purchaser required possession of the unit for her child. The tenant, although unhappy

about the notice, moved out. A few weeks later, the tenant found out that the new landlord was advertising the rental unit.

The landlord testified that her son did intend to move into the unit, but subsequently changed his mind after deciding to move to Switzerland to be with his girlfriend. The son testified that it did not make sense for him to sign a lease with his parents when he would have to break the lease and put his parents in the difficult position of finding new tenants. In addition, the landlord's son needed to save money for the move so he couldn't see paying \$1000 a month to his parents, which is what he thought his parents would charge. Instead, the son decided to move in with his girlfriend's parents, where he paid no rent. The plan to move to Switzerland later fell through.

In making a decision, the Member had to decide whether, when the notice was served, the landlord's son *intended* to move into the unit. The decision turned on the credibility of the evidence given by the landlord and her son. Although there was no direct evidence to contradict the son's stated intention, the Member found that the son's stated plan did not pass the test of plausibility.

The Member found that the landlord's son did not intend to move into the unit when the notice was served and therefore the notice was given in bad faith. The Member ordered the landlord to pay the tenant \$8,400.00 which represented the increase in rent for a period of one year.

BIOGRAPHIES

CHAIR

Chisanga Puta-Chekwe

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford. Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994. In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997. He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000).

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

VICE CHAIRS

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

Gilles Guénette

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette has recently practised as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. Mr. Guénette was, until his appointment to the Tribunal, a member of the Advisory Committee of the Neighbourhood Coalition for Conflict Resolution, and the vice chair of Ottawa-Carleton Housing Authority. He is a former resident of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general. Ms. Holmes has been active in community service organizations such as Mission Services in London. She is a founding member of Teen Girls' Home, and the Brain Tumour Foundation of Canada (Gus Macher Tournament), and sits on the Advisory Committee of Collections for the London Historical Museums.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board leading the Board through a complete reorganization of its administrative processes. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit. Ms. Lee is an active member of the Society of Ontario Adjudicators and Regulators Training and Education Committee.

Beverly Moore

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

Jeffrey Rogers

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

ADJUDICATORS

Ashis Basu

Ashis Basu attended schools in England and India prior to obtaining his Bachelor of Science (Honours) in 1974 and Master of Business Administration (Distinction) in 1977 from Pune University in India. He started his career in the private sector in 1977 with one of the largest corporations in Kenya, becoming General Manager in 1983. He was also a Member of the Federation of Kenya Employers and was actively involved in negotiating and mediating many employment issues. In 1980, he served in Uganda as Member of the Project Team working with the World Bank and G7 countries responsible for economic and industrial reconstruction of the country after the restoration of democracy. Moving to Canada in 1988, he joined Citigroup, one of the world's largest financial services companies. He worked in various functions during his tenure, including Administration, Internal Control, Regulatory affairs, and Business and Systems Planning. Prior to his appointment to the Tribunal he managed all acquisitions and contracts of the organization in Canada.

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of Law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings with her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Jim Brown

Jim Brown graduated from Ryerson Polytechnical Institute in business administration in 1965. He then graduated with a Bachelor of Arts degree from York University in 1968. That same year, he graduated from the Certified General Accountant program. In 1971 he graduated from the Master of Business Administration program at York University. In 1971 he also graduated as a registered industrial accountant. Mr. Brown spent many years at the Toronto Telegram and was one of the founders of the Toronto Sun. Mr. Brown operated his own manufacturing company for 25 years before entering public service. He has lectured at Ryerson, Seneca College and the University of Toronto. He is also a former member of the Ontario Legislature.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served two terms, and then to City of Toronto Council in 1998. Ms. Brown has served the community in many volunteer capacities for over 30 years, including library advocacy where she was a Trustee for 12 years, including four years as Chair of the Etobicoke Library Board.

Richard Cantin

Richard Cantin served Canada Post Corporation in progressively responsible positions over a 19-year period. He was appointed Trustee with the Carleton R.C. School Board in January 1985. In November 1985, he was elected to Gloucester and Ottawa-Carleton Regional Councils. On retirement from municipal politics in December 2000, he had chaired the Regional Health and Transportation Committee, as well as the Teaching Health Unit Liaison and Home

Care Review Committees. He served on the Management Committee of the Ottawa Tourism Authority, the Gloucester Police Services Board and the Gloucester Non-Profit Housing Corporation, among others. The Association of Local Official Health Authorities was restructured during his tenure on the Management Committee and as its President.

Mr. Cantin was the Founding President of the Gloucester-Cumberland Chapter of the Heart and Stroke Foundation, an active leader and Assistant Commissioner with l'Association des Scouts du Canada and helped numerous local organizations. He recently helped create the Tweed Chamber of Commerce, serving as Secretary-Treasurer and representative on the Quinte Tourist Council. The *Richelieu Club International* recognized his many years of service to the community by awarding him the Cercle Horace Viau decoration.

A graduate of Brookfield High School in Ottawa, he received undergraduate education in Social Sciences and Labour Law at Carleton University and the University of Ottawa.

Stanley Chapman

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Workers' Compensation Appeals Tribunal.

Robert Côté

Robert Côté is a graduate of the University of Montreal (B.Sc.A. Chemical Engineering, 1962) and the Osgoode Hall Law School (LL.B.1990). He has worked in the chemical, petrochemical and energy fields for over 25 years. Mr. Côté was called to the Ontario Bar in 1992 and has been in private practice in the Ottawa area working primarily in the Immigration and Labour law fields.

Susan Ellacott

Susan Ellacott is a resident of the Ottawa region and served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office.

In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Richard Feldman

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, Mr. Feldman has acted on behalf of landlords and tenants in residential and commercial tenancy disputes and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Harry Fine

Harry Fine graduated from the University of Toronto (B.A. Hons.) in 1977. Following graduation, he entered his family's business full time, building the organization into one of the largest family entertainment companies in Ontario, and one of the most successful bowling companies in North America. As President of Bowlerama, Mr. Fine was active in raising money for many local and provincial charities including Big Brothers, the Variety Club of Ontario and Kids Help Phone. He was elected legislative, constitutional and business development chairs for his industry's trade association over his 16 years of service. Mr. Fine was appointed to the Ontario Rental Housing Tribunal in 2001. He is also a member of the Society of Ontario Adjudicators and

Regulators as well as the Council of Canadian Administrative Tribunals. In August of 2002, Mr. Fine was appointed to the Toronto Committee of the Federal Judicial Appointments Advisory Committee by the Minister of Justice, the Honourable Martin Cauchon. In his spare time, he is an active volunteer with the Ontario Disabled Sailors Association.

Robert Gleeson

Before coming to the Tribunal, Robert Gleeson was Manager of Provincial Offences Courts and Prosecutions for the City of Kawartha Lakes and the County of Haliburton. He has experience in Municipal, Provincial, Federal, civil and criminal Courts. Mr. Gleeson is bilingual and a former Police Inspector and Commanding Officer of Police Operations from the Montreal area. Upon taking an early retirement he subsequently moved to Ontario and became Chief of Municipal Law Enforcement for the City of Vanier and was a Prosecutor for Provincial Offences and By-Law enforcement matters for seven years. Upon leaving the City of Vanier, he was under contract to the Ministry of the Attorney General and assigned to the Ontario Superior Court of Justice. He is past Vice President (2002) of the Municipal Court Managers Association of Ontario and Director of the Central East Court Managers Judicial District, a former member of the Association of Canadian Court Administrators and the Prosecutor's Association of Ontario. Mr. Gleeson is the recipient of many academic honours, including many law enforcement related diplomas and attestations from police academies in Quebec and Ontario. He is also the recipient of the Canadian Governor General's Medal and Certificate for meritorious service to law enforcement in Canada and an Outstanding Employee Award from the Attorney General of the Province of Ontario. He has been active in community service organizations such as the United Way Campaign and is a past president of an Optimist Club. An avid boater, Mr. Gleeson is also a member of the Canadian Power Squadron.

John Goodchild

John Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, later employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. Mr. Goodchild was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

David Gregory

David Gregory graduated from the University of Toronto where he received a Bachelor of Arts and Sciences degree in 1969 and a Bachelor of Laws degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court, has actively volunteered his time on his community's Committee of Adjustment, Regional Chamber of Commerce and Economic Development Board, and is a past president of his local law association.

Knox Henry

Knox Henry was appointed as a part-time member to the Pesticides Appeal Board in 1975, which was merged with the Environmental Appeal Board in 1978. He was a part-time member until 1991 when he became full-time vice chair of the Environmental Appeal Board. Mr. Henry is one of Canada's leading horticulturalists. He has been a guest lecturer on propagation, management and environmental issues at various universities and colleges. Mr. Henry was cross-appointed as deputy mining and lands commissioner for the period 1995 to 1997 and cross-appointed as a member of the Ontario Rental Housing Tribunal in 1999.

David Hutcheon

David Hutcheon served as Vice Chair of the Environmental Review Tribunal from 1999 to 2002. He is an experienced mediator. Prior to being an adjudicator, he spent ten years in provincial and municipal government during which time he served as Deputy Mayor, Budget-Chief, and executive council member on Toronto City Council. Mr. Hutcheon was a Commissioner on the Toronto Harbour Commission and a Director of the Runnymede Chronic Care Hospital.

He has long been active in his community and is presently serving as a member of the Humber Watershed Alliance. He is a recipient of the Canadian Institute of Planners' S. George Rich 1998 award. The Commemorative Medal for the 125th Anniversary of the Confederation of Canada was conferred upon Mr. Hutcheon for outstanding and significant voluntary service to the community. Mr. Hutcheon has a Master of Public Administration degree from the University of Western Ontario and an Honours Bachelor of Arts degree in History from Rutgers University, New Jersey U.S.A. He is a Henry Rutgers Scholar.

Linda Joss

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Ms. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. She later joined Metro Toronto's Community Service Department as a manager of hostels. During 25 years with Community Services, Ms. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time Ms. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Ms. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Catherine Keleher

Catherine Keleher started with the Tribunal as a part-time Member in July, 2000, and became a full-time Member in February, 2001. Ms. Keleher served 13 years as Reeve of the Town of Palmerston. In that position, she served as a member of Wellington County Council and was elected Warden for 1994. Ms. Keleher has chaired the Town's Public Works, Administration Finance and Recreation, and Planning and Development Committees as well as the County's Administration Finance and Personnel Committee, the Wellington-Guelph Joint Social Services Committee, and has Co-Chaired the Wellington-Guelph Waste Management Master Plan Steering Committee. She has been Vice-Chair of the Wellington County Library Board and a member of the Wellington County Police Services Board and the Wellington-Dufferin-Guelph Board of Health. Her community activities include 2 years as Vice-Chair of the Palmerston and District Hospital Board of Governors and 10 years as a member of the Maitland Valley

Conservation Authority and the Board of Family and Children's Services of Guelph and Wellington County.

Edward Lee

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Janice MacGuigan

R. Janice MacGuigan is a graduate of The Institute of Law Clerks of Ontario. She practiced in the real estate field for 13 years, and later spent two years as a constituency correspondent. In addition, Ms. MacGuigan has been an active volunteer in her community as Chair and Vice Chair of her local school council, a leader with Girl Guides of Canada and undertaken a number of community fundraising projects.

Ian MacInnis

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston. Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He has also been active on several community

boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Donald MacVicar

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario. From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

Steve McCutcheon

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He has practised law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario. In between, Mr. McCutcheon operated his own business importing parts for British sports cars and also found time to serve with the Peel Regional Police for a short period of time.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Dennis McKaig

Dennis McKaig is a graduate of Humber College in Toronto, (Funeral Service Education, 1980), and The University of Western Ontario (Bachelor of Science, 1988). Mr. McKaig worked in funeral service in Southwestern Ontario during most of the 1980s. He has been with the

Ministry of Health (Emergency Health Services) in the communications field since 1989, and has also worked on a part-time basis as a paramedic. Mr. McKaig previously has acted as a Board member and Committee Chair for Craigwood Youth Services, a children's mental health and young offender's agency. Mr. McKaig is President of London Canine Association, Inc., Canada's oldest dog club.

Brian McKee

Brian McKee graduated from Algonquin College, Management major, School of Business, in 1972. He has held senior management positions in the private sector over the past twenty-five years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002. Mr. McKee is a member of the board of directors of the Ottawa Congress Centre.

Alan Mervin

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) from the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice. He has been involved for a number of years in community volunteer work where he has undertaken a number of projects.

Beatrice Metzler

Beatrice Metzler is a graduate of Lakehead University, specializing in Education. She went on to obtain her accreditation in Association Management. Beatrice held the positions of General Manager of the Thunder Bay Chamber of Commerce and then Executive Director of the Thunder Bay area Industrial Training Organization. Following her career in association management, she established her own Project Management business. She has been an active director on several business, professional and community boards, both locally and provincially. She is a Trustee with the Lakehead District School Board where she serves as Chair of Audit, Budget and Policy.

Christina Budweth Mingay

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws (LL.B.) from Queen's. Ms. Budweth Mingay was in private practice until 1991 with a focus on civil litigation. During the period 1991 to 2001, she practiced law with the Law Society of Upper Canada. She has been involved for a number of years in community volunteer work and has undertaken a number of fund-raising and other projects.

Brian Nicholson

Brian Nicholson joined the Tribunal following 15 years of public service, as Regional Councillor with the City of Oshawa and the Regional Municipality of Durham. As a Councillor, Mr. Nicholson served as chair and/or member of several committees and related organizations and has experience in managing all aspects of diversified public sector operation. Recently, as owner/chief consultant of a consulting firm, Mr. Nicholson has been involved in all aspects of policy development and governmental relations. He has been a guest lecturer in journalism and government relations at Durham College. Prior to his elected service, Mr. Nicholson spent five years as a Correctional Officer with the Ontario Ministry of Correctional Services.

Brian Rodenhurst

Brian Rodenhurst graduated from the University of Guelph with an Honours Bachelor of Arts degree and from the University of Windsor with a Bachelor of Laws. He was in private law practice for 20 years. Mr. Rodenhurst is the former mayor of the Town of Ingersoll, and chair of Ingersoll Police Services. He is a former member of the County Council, County of Oxford, and vice chair of administration and finance.

Pina Sauro

Pina Sauro graduated from Toronto's Ryerson University with a Bachelor of Social Work Degree and a Diploma in Human Psychology. Ms. Sauro has 17 years' experience in municipal government with the City of London. While there, Ms. Sauro held a variety of roles including policy and program development, training, communications, organizational development, financial assistance, and funding allocation. Ms. Sauro's focus has been in the field of community and social services for children, youth, families, and seniors, including social

assistance, recreation and long-term care. Through her role in the allocation of provincial and municipal funding, Ms. Sauro had the opportunity to work with many community organizations to address community needs in areas such as child care, homelessness, mental health, diversity, and street youth services.

Guy Savoie

Guy Savoie has held numerous senior management positions within both the financial and business sectors for the past 17 years. Since 1990 Mr. Savoie is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

Sherry Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995.

Recently, as a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee. Since the Tribunal's inception, Ms. Senis has been appointed team lead for the adjudicators dealing with operational review recommendations, and is a member of the Performance Management Committee and the Caseload Order Group Committee.

Catherine Skinner

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, Ms. Skinner was legal counsel to the Ontario Assessment Review Board.

Peter Spadzinski

Peter Spadzinski was an educator for over 30 years, serving as teacher, consultant and administrator in both elementary and secondary panels. A graduate of Laurentian University and the University of Waterloo (History, Politics, French) Mr. Spadzinski has been on municipal council for 15 years, 12 as Reeve. During that time he was also member of the Parry Sound and Area Planning Board, serving as chair for three years. He has been involved in a variety of community organizations as a volunteer.

Cynthia Summers

Cynthia Summers is a graduate of McMaster University in 1988 with a Bachelor of Arts degree in Political Science, and in 1995 she received her Master's in Social Welfare Policy. Ms. Summers has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

George Taylor

George Taylor is a graduate of McMaster University and Osgoode Hall Law School. He has carried on a general law practice in Barrie since 1968. Mr. Taylor has served as a Deputy Judge of the Small Claims Court, and was a member of the Legislature of Ontario from 1977 to 1985. He is also qualified as an arbitrator and mediator. In addition, Mr. Taylor has been involved for many years in community service work and numerous professional organizations.

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Diane Tinker

Diane L. Tinker is a graduate of McMaster University with a Bachelor of Arts degree and Queen's University at Kingston with a Bachelor of Laws degree. After her call to the bar in 1981, she was in private practice for two years and then became in-house counsel for 14 years. Ms. Tinker has been a deputy judge in Small Claims Court in both Kitchener and Cambridge for the past six years.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, Mr. Trueman was elected to serve as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C. Mr. Trueman continues to participate as an advisor and volunteer with a number of community organizations in Haliburton County.

Michael van Dusen

Michael van Dusen is a graduate of the University of Ottawa (B.A.1982(*cum laude*), LL.B. 1986). He practised with the firm of Goldberg, Shinder, Gardner & Kronick until 1997 when he joined Messrs. Burke-Robertson. He continues to carry on an active practice with particular emphasis on insurance and commercial litigation. Mr. van Dusen is directly involved in several local charities and continues to devote much of his spare time to community fundraising. He was appointed as a part-time member of the Ontario Rental Housing Tribunal on February 01, 2001, assigned to the Eastern District Office.

Andreas von Cramon

Andreas von Cramon is a graduate of Osgoode Hall Law School. He practised law in Brockville, after his call to the Law Society of Upper Canada in 1991, until his appointment to the Ontario Rental Housing Tribunal. He is a past member of the Ontario Consent and Capacity Board.

Rosa Votta

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the *Employment Standards Act*. Ms Votta has been actively involved, as a volunteer, with various organizations participating in a number of community fundraising activities and projects.

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**Minister of Municipal Affairs
and Housing**

Minister Responsible for Seniors

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

**Ministre des Affaires municipales
et du Logement**

Ministre délégué aux Affaires des personnes âgées

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. (416) 585-7000
Télec. (416) 585-6470
www.mah.gov.on.ca



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2004-2005 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, consisting of a large, stylized 'J' followed by a horizontal line and a small flourish.

Hon. John Gerretsen
Minister of Municipal Affairs and Housing

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto ON M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto ON M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2004-2005 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "L. Ma".

Dr. Lilian Ma
Chair
Ontario Rental Housing Tribunal



**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363

Chair's Message

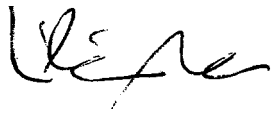
This is the seventh Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2004 to March 31, 2005.

The Ontario Rental Housing Tribunal provides services to our clients, the landlords and tenants of residential premises of Ontario as well as community groups and interest groups who provide special services to their constituencies. During this fiscal year the Tribunal saw the departure of the first Chair of the Tribunal, Chisanga Puta-Chekwe, as well other Adjudicators as they moved on to other challenges at the end of their terms. We welcomed many new members to join us in our day to day task of dispute resolution for the people of Ontario. We acknowledge the work done by the existing members and Beverly Moore, who served as interim chair during the period September 1, 2004 to June 1, 2005. During the transition period, existing members not only increased hearing blocks but also provided mentoring and support to the new members.

The call centre continues to be an important part for our dissemination of information to the public. New technology helped in the transformation of our service delivery. The Call Centre was also called upon to provide call centre technology for the Ministry's Residential Tenancies consultation; the Greenbelt consultation; the COMRIFF fund of Rural Affairs; and the Ministry of Labour new temporary help line for new inspectors. We have received many valuable feedbacks from our landlord and tenant clients. It would appear from these feedbacks that the call centre provided much needed and timely service in the past year.

The Tribunal remains dedicated to providing fair and effective service to all our clients. To that end, the Tribunal is committed to developing plans and programs on a continuing basis to fulfill our mission in the best possible ways.

Sincerely,

A handwritten signature in black ink, appearing to read 'L. Ma', with a stylized, cursive script.

Dr. Lilian Ma, Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

The *Tenant Protection Act, 1997*, (the TPA), was proclaimed on June 17, 1998 and applies to rental units in residential complexes.

Prior to the creation of the TPA, disputes between landlords and tenants were settled through the provincial court system. The court system was formal and costly, and dispute resolution often took a long time.

As well, previous legislation had a separate system for the Rent Control Program which oversaw the regulation of rent increases and provided information resources for tenants and landlords.

The need to provide a unified service to tenants and landlords led to the enactment of the *Tenant Protection Act, 1997* which consolidated the two systems and created an independent, quasi-judicial agency – the Ontario Rental Housing Tribunal, to administer the two prongs: dispute resolution and rent control, in relation to residential renting housing in Ontario.

The TPA set out the rights and obligations of landlords and tenants and created a process that was meant to deal with disputes resolution expeditiously and be accessible to the public who may not have legal representation.

Since proclamation, the *Tenant Protection Act, 1997* has been amended by the *Red Tape Reduction Act* in the fiscal year of 2001-2002 and, in the fiscal year of 2002-2003, by the *Government Efficiency Act*. Many of the amendments clarify existing rules in the TPA while other amendments have added new rights for landlords or tenants and change how the law applies. Each year, according to the Act a new rent increase guideline is announced. The annual rent increase guideline for 2005 was announced in August and is 1.5%.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- Resolve tenant and landlord disputes through either adjudication and/or mediation
- Determine legal above guideline rent increases with respect to residential units
- Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more effective than previous systems for resolving landlord and tenant matters.

The Adjudication Process

The Tribunal was designed to create a fair but less formal environment than that in the courts for the resolution of disputes between landlords and tenants. Under the adjudication process:

- Disputes are heard in public buildings rather than courtrooms
- Tenants may choose to represent themselves and may consult an on-site legal aid representative
- The more conciliatory approach of mediation is provided by the Tribunal before the hearing process begins or on the day of the hearing. It is provided to the parties in a “without prejudice” manner so that the matter can still go to adjudication if mediation fails.
- The Tribunal’s adjudicators are trained to deal fairly and effectively with the issues. Adjudicators appointed to the Tribunal are selected from a structured interview.

Adjudicators from across the province meet formally twice a year to discuss issues. They also meet more frequently and informally in their regions. Some of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to review the format of orders and other groups that gather opinions on specific issues. Members’ meetings also contain elements of on going professional development to update members on emerging issues such as amendments to the TPA and new case law, and to provide forums for members to discuss decision-making and other matters.

The Mediation Process

Mediation is offered under the *Tenant Protection Act*. It is often used to clarify issues and reduce areas of dispute so that the hearing may proceed more expeditiously. It can also lead to a resolution of the matter without a hearing. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use their expertise on the *Tenant Protection Act* and their negotiation skills to assist landlords and tenants in mediating their disputes and concerns. Mediators are available at all our hearing locations and provide a valuable service in narrowing the issues, focusing the clients on the most important issues and often resolving many of the peripheral issues before the hearing begins.

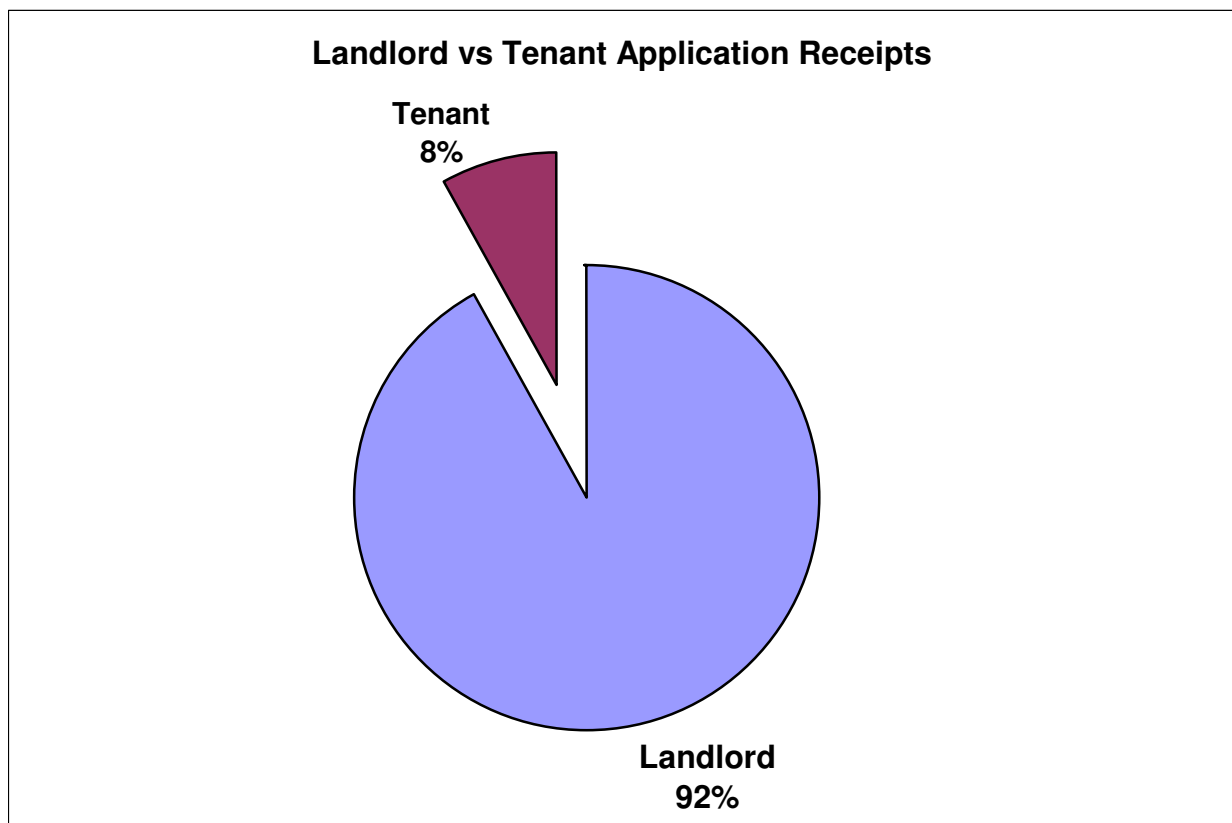
During the fiscal year 2004-2005, approximately 15.1 per cent of the Tribunal's applications were successfully mediated without the adjudication process. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation. We are trying to focus our mediation on the more complex applications. Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

Statistical Information for the 2004-2005 Fiscal Year

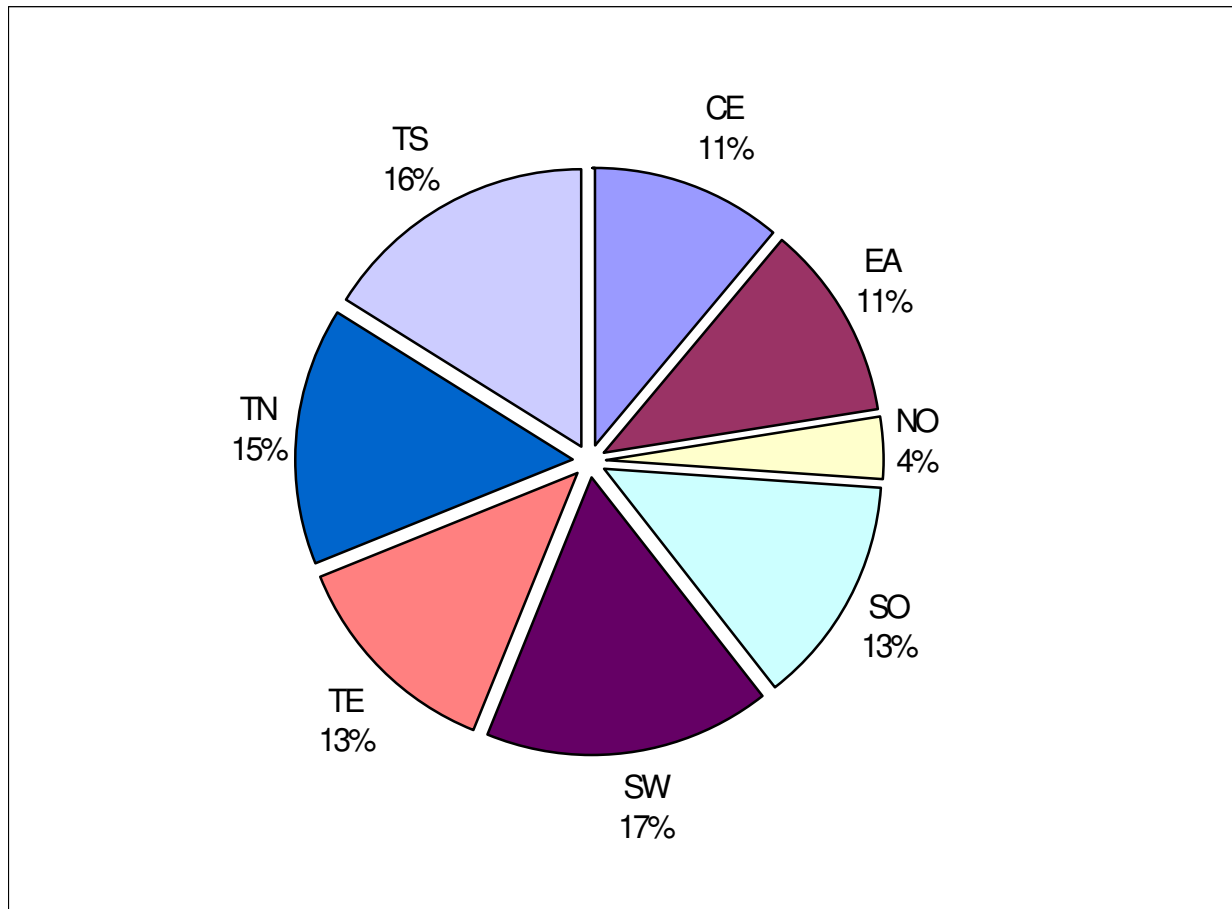
Applications

During the 2004-2005 fiscal year, the Tribunal received 74,867 applications and resolved 70,527. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may generate more than one resolution.) At the end of the fiscal year, 10,404 applications were still in progress.

The distribution of application receipts for the 2004-2005 fiscal year are reflected in the following profile:



The regional distribution of applications is as follows:



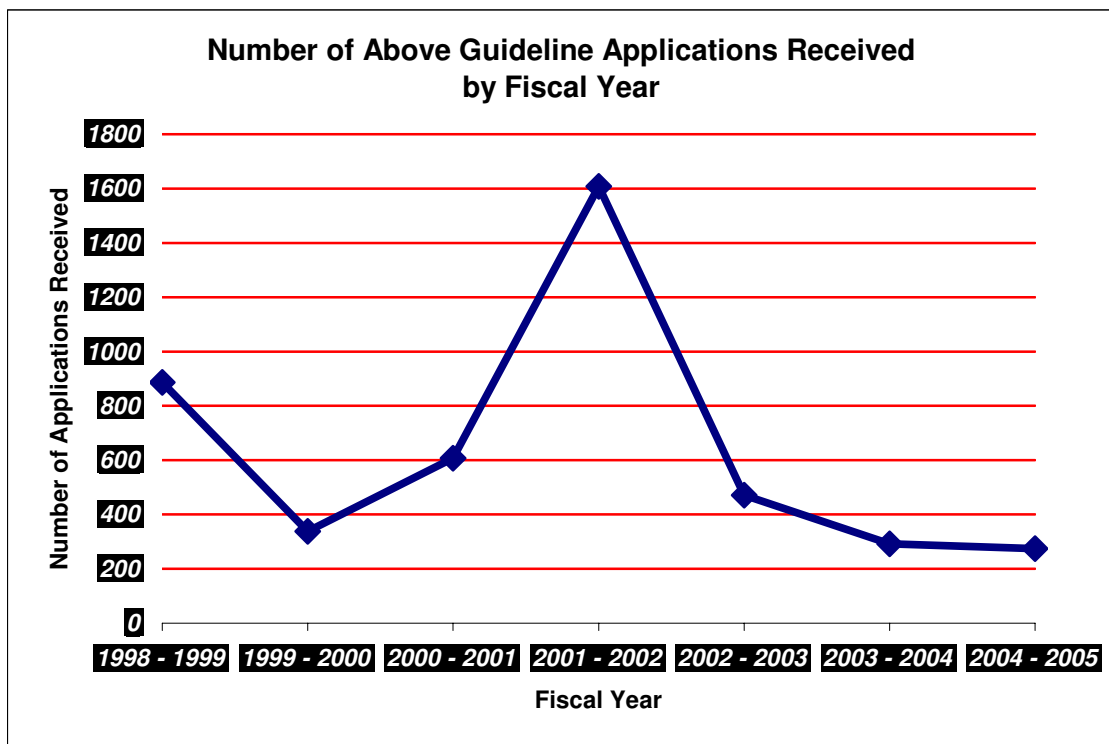
CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Eviction applications have been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 74.64 per cent were for termination of tenancies because of arrears of rent. This is slightly up from 73.15 per cent last year. Tenant applications accounted for 8 per cent of the applications filed during this fiscal year. This is down from 9.51 per cent last year.

Above Guideline Rent Increase Applications

An average of 251 applications for above guideline rent increases were received each year under the *Rent Control Act*. Under the *Tenant Protection Act*, during the first year of Tribunal operations, 887 applications for above guideline rent increases were received. In the fiscal year 2000-2001, 608 applications were received. During fiscal year 2002-2003, only 471 above guideline rent increase applications were received, a substantial decrease from the previous fiscal year 2001-2002 where the Tribunal received 1608. The increase for fiscal 2001-2002 in above guideline rent increase application receipts was mainly the result of landlords experiencing an extraordinary increase in the cost of utilities, specifically a spike in gas prices. During the fiscal year 2004-2005, 274 applications were received, slightly down from fiscal 2003-2004 where the Tribunal received 292 applications.

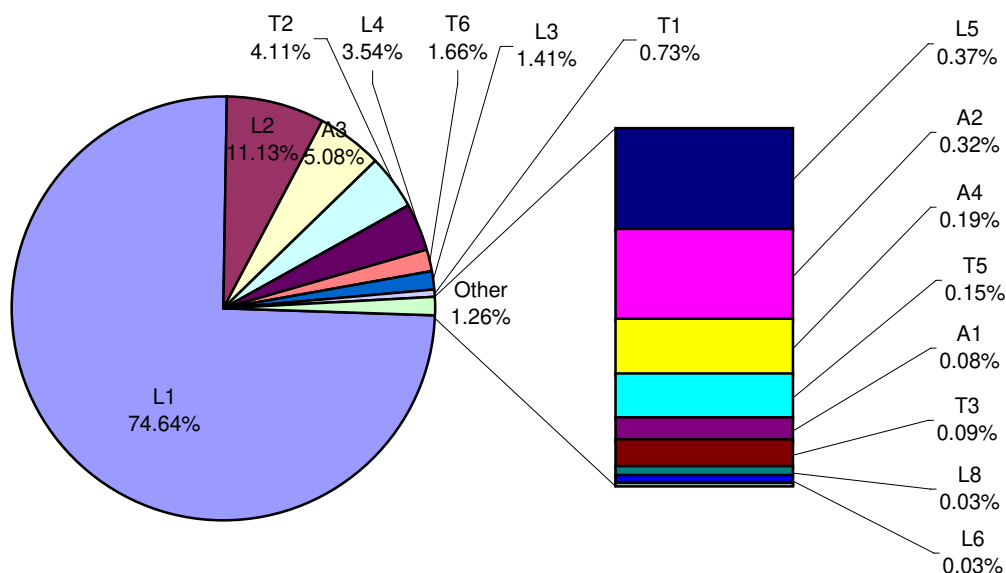
Above guideline rent increase applications continue to take a disproportionate amount of time both for adjudicators and staff. These applications continue to make up less than 1 per cent of the total applications received, and account for 20 per cent of the Tribunal's time.



Mediation is helping us with this workload, although we continue to look for other ways to increase our efficiency and speed up the resolution process.

The chart on the following page shows the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing).

Workload for Fiscal 2004/2005 Distribution of Application Receipts

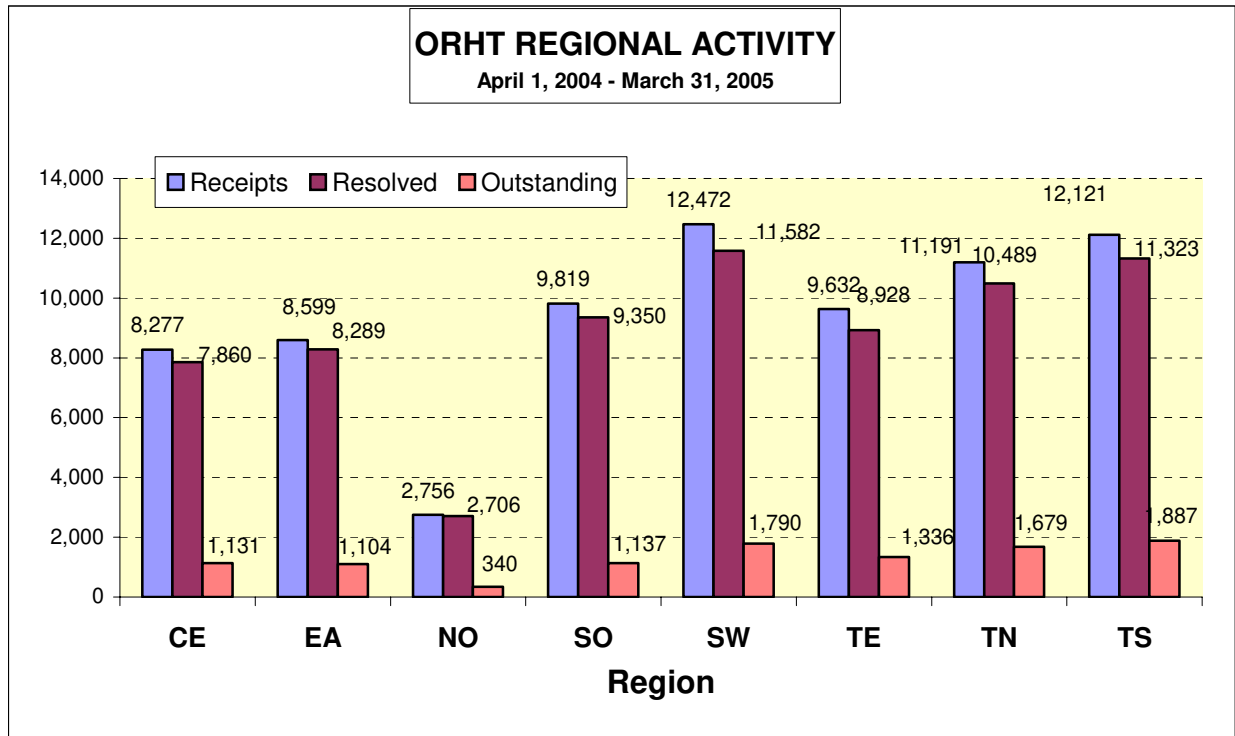


Case Type		# Cases	#Defaults	#Hearings
L1	L1 – Termination and Non-Payment of Rent	55,877	31,590	18,024
L2	L2 - Terminate Tenancy & Evict	5,671	1,185	3,409
A3	A3 - Combined Application	3,801	551	2,630
T2	T2 - Tenant Rights	3,075	0	2,226
L4	L4 - Terminate Tenancy: Failed Settlement	2,648	2,236	803
T6	T6 - Maintenance	1,245	0	874
L3	L3 -Termination: Tenant Gave Notice	1,059	766	383
T1	T1 - Rebate	545	31	369
L5	L5 - Rent Increase Above Guideline	274	0	251
A2	A2 - Sublet or Assignment	237	62	134
A4	A4 - Vary Rent Reduction Amount	144	0	181
T5	T5 - Bad Faith Notice of Termination	114	0	80
A1	A1 - Determine Whether Act Applies	60	0	46
T3	T3 - Rent Reduction	71	0	48
L8	L8 - Tenant Changed Locks	23	0	16
L6	L6 - Review of Provincial Work Order	19	0	18
L7	L7 - Transfer of Tenant to Care Home	2	0	1
T4	T4 - Failed Rent Increase Above Guideline	2	0	3
		74,867	36,421	29,496

Application Resolution

The Tribunal strives to resolve applications expeditiously. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 20 days of filing the application and more complex orders are issued within 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Tribunal Locations

The Ontario Rental Housing Tribunal has eight regional offices and nine client service offices across the province where landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings.

Most of the Tribunal's hearings are held in its regional offices located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

In addition, hearings are also held in the client service office in Windsor.

Alternative Service Delivery

The partnership with other governmental bodies such as the one with the Ministry of Consumer and Business Services to deliver services to the public proves to be very positive. This way, the public is provided with convenient access to government services and information. The Ontario Rental Housing Tribunal has also benefited through the affiliation with a service network to serve its clients in less populated areas.

At Ontario Rental Housing Tribunal/Government Information Centre Co-locations, landlords and tenants can file applications, and have their questions answered by a customer service representative. The co-locations are located in the following areas:

Barrie	Kingston
Kitchener	Owen Sound
Peterborough	St. Catharines
Thunder Bay	Whitby

At Government Information Centres, landlords and tenants can file applications and supporting documents. Staff of these centres cannot answer questions about the rights and obligations of tenants and landlords under the *Tenant Protection Act*; they can, however, accept applications on behalf of the Tribunal and provide access to information pamphlets and application forms. The Tribunal uses the services of the following Government Information Centres:

Atikokan	Aurora	Bancroft	Barrie
Belleville	Blind River	Brampton	Brockville
Chapleau	Chatham	Cochrane	Cornwall
Dryden	Elliot Lake	Espanola	Fort Frances
Geraldton	Gore Bay	Guelph	Hawkesbury
Hearst	Huntsville	Ignace	Kapuskasing
Kenora	Kingston	Kirkland Lake	Kitchner
Lindsay	Marathon	Minden	Moosonee
New Liskeard	Nipigon	North Bay	Oakville
Owen Sound	Parry Sound	Pembroke	Peterborough
Red Lake	Renfrew	Sarnia	Sault Ste. MarieSimcoe
Sioux Lookout	St. Catharines	Stratford	Thunder Bay
Timmins	Wawa	Whitby	

Statistically the Government Information Centre Processing Unit receives on average 173 applications per month in total from the above listed locations. These office locations provide our clients with convenient access to government services, particularly in Northern Ontario. The Tribunal has been able to reduce operating costs through the use of the full Government Information Centre Network.

Call Centre

The Tribunal has a virtual call centre for handling customer inquiries. There is a toll-free number for callers who live outside Toronto (1-888-332-3234); and, in the Greater Toronto area the number is 416-645-8080. Customer service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions 24 hours a day, 7 days a week. This year, the Tribunal responded to approximately 545,600 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The call centre employs the appropriate technology which improved province-wide service delivery. The call centre of the Ontario Rental Housing Tribunal, apart from serving the public was also chosen to help the Government in handling telephone responses in other consultations (for example, in the Ministry's Residential Tenancies consultation; the Greenbelt consultation; the COMRIFF fund of Rural Affairs; and the Ministry of Labour new temporary help line for new inspectors).

E-government

The Tribunal's website (orht.gov.on.ca) is visited almost one million times each month. Our website is easily accessible to disseminate information to all of our clients. Clients can find information on our website about the progress of their application, the date of the hearing and whether an order has been issued. As well, all Tribunal forms and pamphlets, information on members, complaint procedures, relevant legislation, and rules and guidelines can be retrieved on line.

The Tribunal continues to take a phased approach to comply with the Government's commitment to multi-channel service delivery. The first phase allowed clients to inquire online on the status of their application; the second phase allowed for the scanning, interpretation and processing of applications; and the third phase allowed for a large majority of applications to be processed through teleform. The Tribunal continues to work towards enhancing its quality service for clients.

French Language Services

The Tribunal is committed to providing services in both official languages in accordance with the *French Language Services Act*. In designated areas, a completely fluent adjudicator will provide French hearings and orders will be translated where requested. All offices in designated areas have bilingual staff available for our French-speaking clients and staff are available at Government Information counters who are able to provide services in each of the official languages.

ORDER SUMMARIES

Landlord Application

CEL-36643 Section 69

The landlord filed an application to the Tribunal to terminate the tenancy and evict the tenant because she damaged the rental unit, interfered with the landlord's lawful rights and impaired the safety of other tenants.

The tenant caused a fire within the rental unit when she left a frying pan with oil unattended on the stove. Upon discovering the fire, the tenant collected her children and ran to a neighbour's unit. The neighbour extinguished the fire.

The landlord claimed that the tenant impaired the safety of herself, her children and the other tenants by causing the fire and by failing to take immediate steps to put out the fire once she had discovered it. The landlord also claimed damages to the rental unit in excess of \$4000 and argued that the tenant seriously interfered with the interests of the landlord and other tenants by failing to hold a valid insurance policy as required by the tenancy agreement.

In her defence, the tenant claimed that the fire was an unfortunate accident and that once she was aware of the fire, she took reasonable steps to ensure the safety of her children and the other tenants by approaching her neighbour for assistance. The tenant pointed out that she cooperated fully with the landlord and contacted security and the fire department in a timely manner.

The Member found that the fire was preventable and the tenant was negligent in leaving the pan unattended. The tenant's actions, although not willful or premeditated, resulted in a potentially dangerous fire that seriously impaired her own safety and the safety of others. Since this was a single occurrence, however, the Member found that the tenant's continued presence in the rental unit did not pose an ongoing threat. The Member also concluded that the tenant's failure to acquire insurance did not amount to substantial interference of the landlord's rights, as the landlord had allowed the tenancy to begin without receiving evidence from the tenant that she had complied with this condition of the tenancy agreement.

The Member issued an order requiring the tenant to pay the landlord \$4228.18 for the damage to the rental unit, at a rate of \$50 per month. The tenant was also ordered to pay her rent in

guaranteed funds on the first of every month and to refrain from any activity that would cause any further damage or that would impair the safety of any other person in the complex. The Member granted the tenant relief from eviction provided that the tenant obeyed the conditions set out in the order. If the tenant failed to comply with any of the terms in the order, the landlord could apply to the Tribunal, without notice to the tenant, for an eviction order.

Tenant Application

CET-04190 Section 35

The tenants applied for an order determining that the landlord gave a notice of termination in bad faith.

The landlord had served the tenants with a notice of termination because the landlord needed to complete extensive repairs to the rental unit. The tenants vacated the unit in compliance with the notice and informed the landlord in writing that they wanted the right of first refusal to occupy their unit when the renovations were completed. During the renovations, the tenants kept in contact with the landlord and informed the landlord of their whereabouts and of their continuing desire to return to the unit.

The landlord completed the renovations but instead of offering the unit to the tenants, the landlord re-rented the unit to another party. In her defence, the landlord explained that when she initially entered the unit to effect the repairs, she discovered that the tenants had damaged the property and therefore, the landlord did not want the tenants to return to the unit.

In making her determinations, the Member considered whether by not giving the tenants the right of first refusal, the landlord had given notice in bad faith. According to the Member, since section 53(3) states that the notice shall inform the tenant of the right of first refusal, it is implied that the landlord must make the unit available to the tenant, otherwise the right of the tenant, in section 56(3), to re-rent the unit at the same rent is meaningless. The Member concluded that by not making the unit available to the tenant and therefore not allowing the tenant to exercise the right of first refusal as is required by the legislation, the landlord did not act in good faith.

The landlord was ordered to pay the tenants \$2,023.32 for the increased rent the tenants had incurred or would incur during the 12 month period after the tenant moved out of the unit.

The Member did not allow any reimbursement to the tenant for the increased utility costs or moving expenses claimed, as the tenant failed to provide proof of these costs.

Tenant Application

EAT-05480 Section 35

The tenants applied for an order determining that the landlord substantially interfered with their reasonable enjoyment of the rental premises.

The tenants have been living in unit 3 of the residential complex for the past twenty-one years. A young married couple with two small children occupy the unit immediately above the tenants (unit 7). The tenants complained to the landlord on multiple occasions about noise from unit 7. According to the tenants, the children in unit 7 play with toys that they drag or ride on, and this produces a high level of noise on the hardwood floors. The tenants claim that the couple in unit 7 has made no effort to control the “noise-producing” conduct of their children. In support of their application, the tenants provided a copy of complaint reports that they filed with the city by-law office. Their son also testified that he heard the noise on many occasions when he visited his parents’ apartment.

The landlord argued that the noises being produced by the children in unit 7 were simply normal household noises and it was the tenants who were being unreasonable. The couple in unit 7 testified that their children were in bed by 7:30 pm every night and that the tenants would come to her apartment and scream complaints through the door.

The Member determined that on a balance of probabilities, the tenants had shown that the noise produced by the children in unit 7 was excessive, and that this substantially interfered with the tenants’ reasonable enjoyment of the premises. The Member noted that the *Tenant Protection Act* does not allow a tenant to file an application against another tenant and the landlord has an obligation to control or take action against an offending tenant.

The Member found that the landlord had substantially interfered with the tenants’ reasonable enjoyment by not taking action against the occupants of unit 7 and by ignoring the tenants’ complaints. The landlord was ordered to pay the tenants a lump sum abatement of \$652.66, plus costs and related expenses in the amount of \$399.48. The landlord was also ordered to install carpeting and under pad in unit 7 in order to reduce the noise transfer to the tenants’ unit.

Landlord Application

NOL-12104 Section 69

The landlord applied for an order to terminate the tenancy because the tenant had seriously impaired the safety of others.

The landlord, in the process of upgrading the electrical system in the building, installed 'fuse rejecters' into the electrical panel in the tenant's unit. This work was done with the tenant's permission and the tenant was present during the installation. The function of the fuse rejecters is to prevent larger fuses from being installed in the electrical panel, which may overload the system. Once installed, the fuse rejecters cannot be removed. The landlord provided the tenant with three replacement fuses that were the appropriate size for the panel.

On July 1, 2004, the landlord received a call from the tenant complaining that he had no power to his unit. The landlord went to the apartment and discovered that the tenant had attempted to remove a fuse rejecter with a screwdriver, causing a short in the system that cut off the power to the tenant's unit and several common areas. The landlord was concerned that the tenant's actions, if ever repeated, could jeopardize the safety of others and possibly cause a fire.

At the hearing, the tenant freely admitted that he tried to remove a fuse rejecter. The tenant explained that he was trying to use several electrical appliances at once and the power went off. The tenant replaced the fuse three times only to have the fuse blow again. The tenant used up all the fuses the landlord had given him and since it was a holiday, he was unable to purchase new fuses. The tenant found a spare fuse that was larger than the ones provided by the landlord and attempted to remove the rejecter so that he could install the larger fuse.

While the Member found that the landlord demonstrated admirable concern for the safety of his other tenants, the Member also found that the tenant had considerable remorse for his actions. Since the tenant had been living in the unit since 1998 without any previous problems with his tenancy and since the tenant promised not to take similar action in the future, the Member concluded that this solitary incident did not justify evicting the tenant. The landlord's application was dismissed.

Landlord Application

SWL-66940 Section 69

The landlord applied for an order to terminate the tenancy and evict the tenant because the tenant committed an illegal act or was carrying on an illegal business on the premises.

The police raided the tenant's unit and discovered that the tenant had about 50 marijuana plants growing in his apartment, as well as several bags of dried marijuana. The landlord alleged that the tenant was producing and trafficking an illegal drug. In support of his allegations, the landlord noted that the tenant had many guests visiting the apartment and that the tenant was charged with this offence by the police.

The tenant freely admitted to having the plants and bags of marijuana but disputed the allegation that they were meant for trafficking. The tenant explained that he suffers from a medical condition and requires the marijuana for medical purposes.

The tenant argued that the 50 plants and the equipment he used to grow the drug were not adequate to produce the quantity required for commercial use. The tenant further explained that the dried bags found in the unit were obtained from an organization in Toronto that supplies marijuana to patients who have the appropriate documentation from their doctor. The tenant did not dispute the landlord's claim that he has a number of friends who visit him, but the tenant denied that the purpose of their visits was to purchase drugs. The tenant testified that he was recently prescribed a synthetic pill form of marijuana and that he therefore has a medical alternative to growing marijuana.

The Member found that the landlord did not prove on a balance of probabilities that the tenant's possession and production of marijuana was for the purpose of trafficking. The tenant's explanation adequately explained the quantity and use of the drug. While under normal circumstances, termination of the tenancy would be granted in cases where production of this volume were proven, the Member found that the mitigating factors in this case justified conditional relief from eviction. The tenant was ordered not to grow, cultivate or produce marijuana in the rental unit. If the tenant failed to comply with this provision in the order, the landlord could apply to the Tribunal, without further notice to the tenant, for an order terminating the tenancy.

Landlord Application

TEL-44155 Section 69

The landlord applied for an order to terminate the tenancy and evict the tenant because the landlord required possession of the rental unit. The rental unit is located in a two-unit house. The tenant occupied the upper apartment and the unit on the ground floor was vacant.

The landlord claimed that he required possession of the tenant's unit for his son who would be moving back from the United States for a period of at least three months to look for employment in Ontario. There was no evidence that the son would be permanently residing in the rental unit, nor any evidence in the son's affidavit indicating why the son required this particular unit.

The landlord indicated that he and his wife would also be moving into the property. The landlord claimed that he and his wife had nowhere to live because they had sold their residence and this was the reason they had served notice of termination to the tenant. The evidence, however, showed that the landlord listed the property for sale after he had given the tenant notice. The landlord's wife further submitted that another son was going to have to stay in the rental unit while the roof of his dwelling was removed for renovation. The landlord argued that they could not move into the vacant unit on the ground floor because it was not fit for habitation.

The tenant submitted as evidence a copy of a letter the landlord had given him attempting to terminate the tenancy for the purpose of completing extensive repairs. The landlord, when questioned, was unable to provide evidence to prove that the dwelling was uninhabitable, such as quotes, reports, orders, inspections or permits.

The Member concluded that the landlord did not require the rental unit for his own use or for the use of a family member. The Member found that the landlord's testimony was filled with contradictions as to the future plans for the building and concluded that the ultimate aim of the landlord was to renovate the house so it could be sold or to demolish it. These reasons, according to the Member, did not constitute a good faith application for landlord's own use. The landlord's application was dismissed.

Landlord Application

TNL-08147-RV/RV & TNL-08149-RV/RV Section 21.2

The landlord applied for an order terminating the tenancy and evicting the tenants because they knowingly misrepresented their income with respect to a “rent geared to income” unit and because they failed to pay the rent that they owe. These applications were resolved by two orders issued in July 1999.

The tenants filed a request for review of the orders and in October 1999, a review order was issued, again terminating the tenancy. The review order provided that the Sheriff could enforce the eviction on or after October 12, 1999. The tenants filed a second request for review and an appeal to the Divisional Court, both of which were dismissed.

The landlord made no attempt to enforce the review order until December 2004, at which time the tenants filed another request for review. The tenants alleged that the landlord’s attempt to enforce the review order at this late date was an abuse of process and that, because of discussions between the landlord and the tenants regarding the tenancy and the payment of rent owing, a new tenancy had been created. In response, the landlord argued that it had been attempting to give the tenants an opportunity to pay the rent owing and that the landlord had the right to enforce the order.

The Member considered section 83.1 of the *Tenant Protection Act*, which provides that an order of the Tribunal evicting a person expires six months after the order takes effect if it is not filed with the Sheriff within those six months. Although this section did not come into effect until the year 2000, the evidence indicated that the landlord did in fact file the review order with the Sheriff within the required six months.

The Member then considered whether the actions of the landlord from the date of the appeal decision to the date of the hearing created a new tenancy. Taking into consideration sections 45(1) & (2) of the Act, the Member found that there was nothing to support a finding that a new tenancy was created. The Member also found that discussions regarding the payment of rent and standard dealings with a tenant prior to the enforcement of an order for termination do not by their mere existence establish a new tenancy and the fact that the landlord did not execute the order in a timely manner did not mean that a new tenancy had been created.

The final issue considered by the Member was whether there is a time limit for the enforcement of a Tribunal order that was filed with the Sheriff and whether the Tribunal has any jurisdiction in this regard. The Member considered the relevant sections of the Act and the Court's Rules of Civil Procedure. The Member noted that any order evicting a tenant issued by the Tribunal and properly filed with the Sheriff, is to be enforced in the same manner as a writ of possession. Pursuant to Rule 60.10(3) of the Rules of Civil Procedure, the eviction order would expire if not enforced within one year from the date of the order authorizing the eviction (a writ of possession), unless it was renewed by an order of the court. There was no evidence as to whether or not the landlord had obtained such a renewal order.

The Member found that although there may be merit to the tenants' challenge of the landlord's right to enforce the review order, the authority and responsibility for the enforcement of Tribunal orders rests with the Sheriff, subject to the Rules of Civil Procedure. Therefore, if a party has an issue with regard to the enforcement procedures of a Tribunal order, jurisdiction rests with a court of competent jurisdiction. The tenants' request for review was denied.

Tenant Application

TNT-03746 Section 35

The occupants of a house applied for an order determining that the Ministry of the Attorney General/Office of the Public Guardian and Trustee and the owner's son had interfered with their reasonable enjoyment of the rental unit.

The owner of the house currently lives in a nursing home. She had formally lived in the house with her husband and son. In 2002, the husband died. The son continued to reside in the home.

The Public Guardian and Trustee is the statutory guardian of the owner of the house pursuant to section 15 of the *Substitute Decisions Act, 1992*. The Public Guardian and Trustee determined that it was necessary to sell the house in order to pay for the owner's nursing home expenses. The Public Guardian and Trustee informed the son that he had no authority to occupy the property and that it intended to sell the house. The son refused to vacate and without notifying the Public Guardian and Trustee, the son rented the house to four people (the occupants).

The Public Guardian and Trustee filed an application to the courts to recover possession of the property from the owner's son. The court ordered that the Public Guardian and Trustee was entitled to possession of the property and a writ of possession was issued. The Public Guardian and Trustee informed the son by means of a letter of its intention to enforce the writ of possession. Shortly thereafter, the occupants of the house contacted the Public Guardian and Trustee. The occupants explained that they were tenants of the son and that they had signed an agreement, which permitted them to live in the house for a period of one year. The Public Guardian and Trustee proceeded with the enforcement of the writ of possession as scheduled and the occupants moved out.

The Member found that when the son entered into the tenancy agreement with the occupants, he clearly had no authority to occupy the unit himself and therefore had no right to permit occupancy to anyone else. The fact that the occupants considered themselves to be tenants did not create a tenancy. Two aspects of a tenancy must exist. In addition to the requirement that the person or persons who wish to occupy the unit must pay rent for the right to occupy the rental unit, the person acting as the landlord must also have the right to permit occupancy. The Member found that the only person that had the right to permit occupancy was the Public Guardian and Trustee. The application was therefore dismissed.

Landlord Application

TSL-67475 Section 80

The landlord terminated the superintendents' employment on November 22, 2004. The superintendents did not vacate within one week from this date, so the landlord applied for an order to terminate the tenancy and evict the superintendents because their employment ended.

The superintendents disputed the daily rental rate of \$36.44 claimed in the landlord's application. This daily rate is used to calculate the total compensation that the superintendents owe the landlord for each day that they remain in the apartment after their employment was terminated.

The landlord explained at the hearing that he based the daily rent on a monthly rent of \$1,100, which is the rent he expected to be able to charge for the unit when it was re-rented. The superintendents argued that the calculation of the daily rate should be based on the rate set at

the time they made the contract with the landlord and not on market rent. Based on their contractual agreement with the landlord, the superintendents calculated the daily rate to be \$21.11.

The Member found the approach taken by the superintendents to determine the daily compensation owed to the landlord was reasonable and consistent with the *Tenant Protection Act*. The Member noted that the Act is not designed to give the landlord a “windfall gain” by overcharging the superintendents after the landlord has terminated the employment contract. The Member found that the daily compensation the superintendents should be paying is \$21.11.

At the hearing, the superintendents stated that they found a new residence for January 1, 2005 and it would be harsh to put them and their child out of their home during the holiday season. The Member exercised his discretion under section 84(1) to postpone the eviction date. The Member terminated the tenancy and ordered the superintendents to vacate on or before January 1, 2005. In view of the fact that the Member found in favour of the superintendents regarding the daily compensation rate, the Member did not award the landlord the \$150 cost of filing the application.

BIOGRAPHIES

CHAIR

Chisanga Puta-Chekwe *(June 17, 1998 - August 31, 2004)*

Chisanga Puta-Chekwe attended Sir William Borlase School in Marlow, Buckinghamshire, before studying law at the University of Birmingham in England. A Rhodes scholar, he received graduate degrees in law from the University of London, and in philosophy, politics and economics from the University of Oxford. Mr. Puta-Chekwe was a partner in the firm Lloyd, Jones and Collins in Zambia from 1980 to 1986, and litigated a number of human rights cases, some of which became landmark decisions.

From 1986 until 1989, he was vice president of Meridien International Bank in London, England. He then worked as an international development consultant, mostly with the Canadian International Development Agency in Ottawa from 1989 until 1994. In 1994, he served as adjudication officer and United Nations observer support officer monitoring the South African election, and in 1996 served as election supervisor in Bosnia and Herzegovina.

He spent six years with the Ontario Criminal Injuries Compensation Board, serving as a part-time board member from 1991 until 1994, and as chair of the Board from 1994 until 1997. He served as executive director of Oxfam Canada between 1997 and 1998. He also served as co-chair of the Conference of Ontario Boards and Agencies (COBA 2000).

Mr. Puta-Chekwe is a Solicitor of the Supreme Court (England and Wales), and an Advocate of the High Court for Zambia.

INTERIM CHAIR

Beverly Moore *(September 1, 2004 – June 1, 2005)*

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

VICE CHAIRS

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of Law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings with her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association.

Gilles Guénette *(term ended June 16, 2004)*

Gilles Guénette graduated from the University of Ottawa, Faculty of Law where he later lectured in civil procedure. He worked as a general practitioner for more than 30 years and also acted as ad hoc hearing counsel for the RCMP Public Complaints Commission. Mr. Guénette recently practised as an arbitrator and mediator, and lectured in alternative dispute resolution at the Law Society of Upper Canada Bar Admission Course. He is a former resident of L'Association des juristes d'expression française de l'Ontario.

Connie Holmes

Connie Holmes has a long history with the Ministry of the Attorney General. She has served as registrar of the Divisional Court, Southwest Region; hearings officer for Small Claims Court pre-trials; registrar for Landlord and Tenant Hearings, and counter services manager in London; court services manager in Stratford and Goderich; assistant to the regional senior judge for the Southwest Region, and special advisor to the assistant deputy attorney general.

Mary Lee

Before coming to the Tribunal, Mary Lee served for three years as registrar and chief administration officer of the Criminal Injuries Compensation Board. Prior to that, Ms. Lee was extensively involved in training and staff development with the Ontario Provincial Police for over eight years. She also served in the Premier's Office, Correspondence Unit.

Jeffrey Rogers *(term ended June 16, 2004)*

Jeffrey Rogers graduated with a Bachelor of Arts degree in English from the University of Toronto and with a Bachelor of Laws from the University of Windsor. After his call to the Bar he entered practice as a sole practitioner and practised extensively in the areas of civil litigation and real estate. In 1992, Mr. Rogers was appointed a deputy judge of the Toronto Small Claims Court and continued to adjudicate on all matters within the jurisdiction of that court until his appointment to the Tribunal.

Guy Savoie

Guy Savoie has held numerous senior management positions within both the financial and business sectors for the past 17 years. Since 1990 Mr. Savoie was a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

ADJUDICATORS

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served two terms, and then to City of Toronto Council in 1998.

Enza Buffa

Vicenzina Buffa of Toronto served as a Customer Relationship Management Reporting Analyst in the private sector for a world-class call center whose client is primarily Ford Motor Company. Ms. Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with many internal and external clients. She is a certified internal ISO auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

Kim Bugby

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts Degree in Psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms. Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Most recently, Ms. Bugby was employed as a Community Support Coordinator providing services to persons diagnosed with a serious mental illness.

Richard Cantin *(term ended August 20, 2004)*

Richard Cantin served Canada Post Corporation in progressively responsible positions over a 19-year period. Mr. Cantin was the Founding President of the Gloucester-Cumberland Chapter of the Heart and Stroke Foundation and an active leader and Assistant Commissioner with l'Association des Scouts du Canada. A graduate of Brookfield High School in Ottawa, he received undergraduate education in Social Sciences and Labour Law at Carleton University and the University of Ottawa.

Stanley Chapman *(term ended October 31, 2004)*

Stanley Chapman was educated in Scotland and has experience with municipal and provincial governments in a number of capacities. Prior to joining the Ontario Rental Housing Tribunal, Mr. Chapman served for seven years as an adjudicator with the Workers' Compensation Appeals Tribunal.

Richard Corcelli

Richard Corcelli spent many years with 3M Canada in sales and management before moving to Muskoka 30 years ago where he operated his own automotive/industrial supplies business for 14 years. Following that, he worked as a sales and parts counterman trainer for both DuPont Canada and Georgian College. He was an elected Councillor for the Town of Gravenhurst where he chaired the Development Services Committee and the District of Muskoka where he chaired the Public Works and Engineering.

Robert Côté *(term ended March 19, 2005)*

Robert Côté is a graduate of the University of Montreal (B.Sc.A. Chemical Engineering, 1962) and the Osgoode Hall Law School (LL.B. 1990). He has worked in the chemical, petrochemical and energy fields for over 25 years. Mr. Côté was called to the Ontario Bar in 1992 and was in private practice in the Ottawa area working primarily in the Immigration and Labour law fields.

Paul De Buono

Paul De Buono obtained a master's degree in 1994 from Texas A&M University and a law degree in 1999 from Osgoode Hall Law School of York University. He worked for the Toronto District School Board and recently with the Durham Children's Aid Society, including a private practice focused mainly on family law.

Susan Ellacott

Susan Ellacott is a resident of the Ottawa region and served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren (Part-Time)

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Richard Feldman *(term ended June 16, 2004)*

Richard Feldman holds Bachelor of Arts, Bachelor of Laws and Bachelor of Education degrees. He is the recipient of many academic honours, including the Arnold Balins Award from the University of Toronto. He received this award for his high academic standing, his demonstrated concern for others, his perseverance, and for his leadership qualities. As a lawyer, Mr. Feldman had acted on behalf of landlords and tenants in residential and commercial tenancy disputes

and rent review applications. He has experience in administrative law, civil litigation and residential real estate transactions.

Eli Fellman

Eli Fellman holds an Honours Degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws Degree (LL.B.) at the University of Ottawa. Prior to his appointment to the Tribunal as an adjudicator, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario bar in 2002, he practiced international trade and customs law in Toronto.

Harry Fine *(term ended November 20, 2004)*

Harry Fine graduated from the University of Toronto (B.A. Hons.) in 1977. Mr. Fine was active in raising money for many local and provincial charities including Big Brothers, the Variety Club of Ontario and Kids Help Phone. He was elected legislative, constitutional and business development chairs for his industry's trade association over his 16 years of service. Mr. Fine was appointed to the Ontario Rental Housing Tribunal in 2001. In August of 2002, Mr. Fine was appointed to the Toronto Committee of the Federal Judicial Appointments Advisory Committee by the Minister of Justice, the Honourable Martin Cauchon.

Régent Gagnon

Régent Gagnon is a graduate of Le Moyne College in Syracuse, N.Y. (B. Sc. Humanities, 1963). He worked in public and private sector organizations in all facets of Human Resources Management until 1985 when he founded his own Human Resources consulting firm. As a recognized expert in Human Resources, Mr. Gagnon was invited to teach Human Resources courses at Carleton and Ryerson Universities. Prior to his appointment to the Ontario Rental Housing Tribunal, Mr. Gagnon served as a part-time member of the Assessment Review Board from 1993 to 1999. In addition, he was a member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton.

Robert Gleeson *(term ended June 23, 2004)*

Before coming to the Tribunal, Robert Gleeson was Manager of Provincial Offences Courts and Prosecutions for the City of Kawartha Lakes and the County of Haliburton. Mr. Gleeson is bilingual and a former Police Inspector and Commanding Officer of Police Operations from the

Montreal area. Upon taking an early retirement he subsequently moved to Ontario and became Chief of Municipal Law Enforcement for the City of Vanier and was a Prosecutor for Provincial Offences and By-Law enforcement matters for seven years. He is the recipient of the Canadian Governor General's Medal and Certificate for meritorious service to law enforcement in Canada and an Outstanding Employee Award from the Attorney General of the Province of Ontario

John Goodchild *(term ended February 2, 2005)*

John Goodchild graduated from Queen's University in 1977 with a Bachelor of Laws degree and was called to the Ontario bar in 1979. He was engaged in private practice in both Ottawa and Kingston until 1993, later employed by the Information and Privacy Commissioner of Ontario from 1993 to 1996. Mr. Goodchild was also engaged in private practice in the United States for two years and employed by the Information Commissioner of Canada before his appointment to the Ontario Rental Housing Tribunal.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

David Gregory

David Gregory graduated from the University of Toronto where he received a Bachelor of Arts and Sciences degree in 1969 and a Bachelor of Laws degree in 1972. Mr. Gregory carried on a general law practice from 1974 until his appointment as a member of the Ontario Rental Housing Tribunal in 1998. Mr. Gregory has served as a deputy judge of the Small Claims Court.

Sean Henry

Sean Henry is a graduate of the University of Toronto (B.A. Honours), York University (M.B.A.) and Queen's University (LL.B.). Mr. Henry carried on a criminal and family law practice before becoming an adjudicator with the Social Benefits Tribunal. Mr. Henry then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing.

David Hutcheon

David Hutcheon served as Vice Chair of the Environmental Review Tribunal from 1999 to 2002 and spent ten years in provincial and municipal government during which time he served as Deputy Mayor, Budget-Chief, and executive council member on Toronto City Council. Mr. Hutcheon was a Commissioner on the Toronto Harbour Commission and a Director of the Runnymede Chronic Care Hospital. He is a recipient of the Canadian Institute of Planners' S. George Rich 1998 award, and the Commemorative Medal for the 125th Anniversary of the Confederation of Canada. Mr. Hutcheon has a Master of Public Administration degree from the University of Western Ontario and an Honours Bachelor of Arts degree in History from Rutgers University, New Jersey U.S.A. He is a Henry Rutgers Scholar.

Linda Joss (Part-Time)

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Ms. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. She later joined Metro Toronto's Community Service Department as a manager of hostels. During 25 years with Community Services, Ms. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. Ms. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Catherine Keleher *(term ended May 24, 2004)*

Catherine Keleher started with the Tribunal as a part-time Member in July 2000, and became a full-time Member in February 2001. Ms. Keleher served 13 years as Reeve of the Town of Palmerston, where she served as a member of Wellington County Council and was elected Warden for 1994. Ms. Keleher chaired many committees of the Town of Wellington. She was Vice-Chair of the Wellington County Library Board and a member of the Wellington County Police Services Board and the Wellington-Dufferin-Guelph Board of Health.

Caroline King

Caroline A. A. King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained her Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the Tribunal, she practiced law for a number of years, and was active in her local community.

Edward Lee *(term ended August 16, 2004)*

Edward Lee graduated from McGill University where he received his Bachelor of Science degree, as well as degrees in both civil (BCL) and common law (LLB), and has practised law in both Quebec and Ontario. He has also previously adjudicated with the Adjudication Directorate of Canada Immigration.

Elizabeth Leighton

Elizabeth Leighton graduated from the University of Western Ontario with an Honours degree in English & History, then attained her Master of Library Science and Bachelor of Laws degrees. Before her appointment to the Tribunal, she practiced law for a number of years, and was active in her local community.

Sonia Light

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Janice MacGuigan

R. Janice MacGuigan is a graduate of The Institute of Law Clerks of Ontario. She practiced in the real estate field for 13 years, and later spent two years as a constituency correspondent. In addition, Ms. MacGuigan was an active volunteer in her community as Chair and Vice Chair of her local school council and a leader with Girl Guides of Canada.

Ian MacInnis *(term ended June 16, 2004)*

Ian MacInnis graduated with a Bachelor of Arts degree from the University of Waterloo. He has served with the Manitoba Police Commission, the Alberta Correctional Service, the Ontario Board of Parole, and as a councillor and deputy mayor for the City of Kingston. Prior to joining the Tribunal, Mr. MacInnis was in private practice as a court agent, representing clients in Small Claims Court and out-of-court settlements. He was active on several community boards and committees, including the City Revenue Committee, Kingston Access Bus, Kingston Planning

and Development Committee, Community Economic Advisory Committee, and the Rwandan Orphans' Relief Fundraising Committee.

Wayne MacKinnon

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the faculty of Arts and Science (Social Sciences), and then went on to do some graduate work in Boston, Massachusetts USA. Before his appointment to the Tribunal he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada at various levels and in various departments. Mr. MacKinnon was a Member of the Mayor's Advisory Committee on Race Relations and a voluntary Member of Bell Canada's Consumer Advisory Panel.

Donald MacVicar *(term ended June 16, 2004)*

Donald MacVicar graduated from Acadia University in Wolfville, Nova Scotia with a Bachelor of Business Administration degree. He continued his education at Dalhousie University in Halifax, Nova Scotia, where he obtained his Bachelor of Laws and Master of Business Administration degrees. He was called to the bar in Nova Scotia and Ontario. From 1988 to 1998, Mr. MacVicar was in private practice in the Toronto area. Since June of 1998, he has been a full-time member of the Tribunal, in Toronto.

Ieva Martin

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that she was a small business owner and a member of the Board of the Clarkson Business Improvement Association. She was the President of the Latvian Canadian Cultural Centre. Ms. Martin obtained a Bachelor of Arts (B.A. Hons.) in French and Canadian Studies from the University of Toronto. She also studied Science at McGill University.

Steve McCutcheon *(term ended June 16, 2004)*

Steve McCutcheon graduated from Queen's University in 1979 with a Bachelor of Arts degree, and the University of Windsor in 1985 with a Bachelor of Laws degree. He was called to the bar of Ontario in 1987. He practised law with Gardiner, Roberts in Toronto and later with smaller firms in Milton, Ontario.

Donna McGavin

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Dennis McKaig

Dennis McKaig is a graduate of Humber College in Toronto, (Funeral Service Education, 1980), and The University of Western Ontario (Bachelor of Science, 1988). Mr. McKaig worked in funeral service in Southwestern Ontario during most of the 1980s. He was with the Ministry of Health (Emergency Health Services) in the communications field since 1989, and has also worked on a part-time basis as a paramedic. Mr. McKaig previously has acted as a Board member and Committee Chair for Craigwood Youth Services, a children's mental health and young offender's agency.

Brian McKee (Part-Time)

Brian McKee graduated from Algonquin College, Management major, School of Business, in 1972. He has held senior management positions in the private sector over the past twenty-five years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

Angela McReelis

Angela McReelis is a graduate of Sir Sandford Fleming College, Law and Justice Program. Ms. McReelis has furthered her studies in obtaining the following certificates: Law Clerks of Ontario, and Alternative Dispute Resolution techniques. Before joining the Tribunal, Ms. McReelis was a Complaints Resolution Officer at the Law Society of Upper Canada and prior to that she was an Application/Assessment Officer at Legal Aid Ontario.

Alan Mervin

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) from the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Beatrice Metzler (Part-Time)

Beatrice Metzler is a graduate of Lakehead University, specializing in Education. She went on to obtain her accreditation in Association Management. Beatrice held the positions of General Manager of the Thunder Bay Chamber of Commerce and then Executive Director of the Thunder Bay area Industrial Training Organization. Following her career in association management, she established her own Project Management business. She has been an active director on several business, professional and community boards, both locally and provincially.

Christina Budweth Mingay

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws (LL.B.) from Queen's. Ms. Budweth Mingay was in private practice until 1991 with a focus on civil litigation. During the period 1991 to 2001, she practiced law with the Law Society of Upper Canada.

Gerald Naud

Gerald Naud graduated from the University of Ottawa with a degree in civil law. Following graduation he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for numerous years. Most recently he held the position of Director of Business Development for CCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil (Part-Time)

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in psychology and criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor Law School. Ms. Neil had worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programmes in various ministries. Since her retirement she has been engaged part-time in consulting work, specializing in human resource management.

Babatunde Olokun

Babatunde M. Olokun is a graduate of the University of Tuskegee, Alabama (B.Sc.1978), John Marshall Law School, Atlanta, U.S.A (JD. Law 1983) and The Nigerian Law School, (B.L. 1986). He carried on a general law practice in Nigeria from 1986 to 1999 until his appointment

to the Nigeria Federal House of Representatives, where he served until 2003. Mr. Olokun was a volunteer Community Legal Worker with the Rexdale Community Legal Clinic until his appointment in 2004 with the Ontario Rental Housing Tribunal.

Pina Sauro

Pina Sauro graduated from Toronto's Ryerson University with a Bachelor of Social Work Degree and a Diploma in Human Psychology. Ms. Sauro has 17 years' experience in municipal government with the City of London. While there, Ms. Sauro held a variety of roles including policy and program development, training, communications, organizational development, financial assistance, and funding allocation. Ms. Sauro's focus has been in the field of community and social services for children, youth, families, and seniors, including social assistance, recreation and long-term care. Through her role in the allocation of provincial and municipal funding, Ms. Sauro had the opportunity to work with many community organizations to address community needs in areas such as child care, homelessness, mental health, diversity, and street youth services.

Sherry Senis

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. As a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee.

Freda Shamatutu

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia obtained in 1981. She practiced law in Zambia for 20 years before migrating to Canada. Ms. Shamatutu has spent most of her professional career at senior management level working for various organisations, including as Chief Legal Advisor and Legal Counsel for the Zambian national airline, as Board Secretary and Director Support Services for Zambia Revenue Authority and as Executive Director for the Advanced Legal Training Institute in Zambia (the Institute trains law graduates in bar admission courses and also provides lawyers with continuing legal education).

Before her appointment as an adjudicator with the Tribunal, Ms. Shamatutu was employed as Office Manager for a law firm in Toronto.

Catherine Skinner *(term ended October 20, 2004)*

Catherine Skinner is a graduate of the University of Toronto, Faculty of Law and the University of Winnipeg, where she received a Bachelor of Arts Honours degree in French and classics. She is a member of the Law Society of British Columbia and the Law Society of Upper Canada. Prior to joining the Ontario Rental Housing Tribunal, Ms. Skinner was legal counsel to the Ontario Assessment Review Board.

Peter Spadzinski *(term ended June 23, 2004)*

Peter Spadzinski was an educator for over 30 years, serving as teacher, consultant and administrator in both elementary and secondary panels. A graduate of Laurentian University and the University of Waterloo (History, Politics, French), Mr. Spadzinski has been on municipal council for 15 years, 12 as Reeve. During that time he was also member of the Parry Sound and Area Planning Board, serving as chair for three years.

Valarie Steele

Valarie Steele worked for several years in the financial (stockbrokerage) industry, specializing in the syndication of new issues. An experienced Human Resources consultant, she owned and operated a placement agency that supplied staff for the office environment primarily in the financial sector. Ms. Steele has volunteered extensively in the community for over three decades where she has been involved in a number of projects that benefited the community. She is past president of the Jamaican Canadian Association and Chairperson of the Community Police Liaison Committee at Division 13.

Cynthia Summers

Cynthia Summers is a graduate of McMaster University in 1988 with a Bachelor of Arts degree in Political Science, and in 1995 she received her Master's in Social Welfare Policy. Ms. Summers has extensive experience in the social service field and in working with a diverse clientele. She has worked with social assistance recipients, and mentally and physically challenged children and adults. Her experience includes representing the Ministry of Community and Social Services as a case presenting officer before the Social Assistance

Review Board. Most recently, she was a professor in the School of Community Services at Sheridan College.

Julius Suraski (Part-Time)

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

Najibullah Tahiri

For over 20 years, Najib Tahiri has been involved in the community and social justice issues affecting new Canadians. In the 1980s, he served as the President of the Afghan Association on Ontario, a non-profit organization responding to the needs and aspirations of Afghan-Canadians in Ontario. Between 1992 and 2003, he served as a Member of the Immigration and Refugee Board, the largest Canadian tribunal making decisions on immigration and refugee matters. Mr. Tahiri was a volunteer member at various community-based organizations including the North York Cross-Cultural Committee, North York Inter-Agency and Community Council, and Canadian Council for Refugees. He holds a Bachelor of Science degree in Mechanical Engineering from Kabul University in Afghanistan.

George Taylor *(term ended May 25, 2004)*

George Taylor is a graduate of McMaster University and Osgoode Hall Law School. He has carried on a general law practice in Barrie since 1968. Mr. Taylor has served as a Deputy Judge of the Small Claims Court, and was a member of the Legislature of Ontario from 1977 to 1985. He is also qualified as an arbitrator and mediator. In addition, Mr. Taylor was involved for many years in community service work and numerous professional organizations.

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, Mr. Trueman was elected to serve as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C.

Jonelle Van Delft

Jonelle Van Delft graduated from Queen's University with an Honours degree in History, a Special Field Concentration in Women's Studies and a Bachelor of Laws degree. Before her appointment to the Tribunal, she practiced Clinic Law under the Ontario Legal Aid Plan.

Michael van Dusen (Part-Time) *term ended June 2, 2004)*

Michael van Dusen is a graduate of the University of Ottawa (B.A.1982 (*cum laude*), LL.B. 1986). He practised with the firm of Goldberg, Shinder, Gardner & Kronick until 1997 when he joined Messrs. Burke-Robertson. He continues to carry on an active practice with particular emphasis on insurance and commercial litigation. Mr. van Dusen is directly involved in several local charities and continues to devote much of his spare time to community fundraising. He was appointed as a part-time member of the Ontario Rental Housing Tribunal on February 1, 2001, assigned to the Eastern Regional Office.

Rosa Votta

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour,

namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the *Employment Standards Act*.

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**Ministry of Municipal
Affairs and Housing**

Minister Responsible for Seniors

777 Bay Street, 12th Floor
Toronto ON M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Ministère des Affaires
municipales et du Logement**

Ministre délégué aux Affaires des personnes âgées

777, rue Bay, 12^e étage
Toronto ON M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Ontario Rental Housing Tribunal for the 2005-2006 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to be "John Gerretsen".

Hon. John Gerretsen
Minister of Municipal Affairs and Housing

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto ON M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto ON M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Ontario Rental Housing Tribunal's Annual Report for the 2005-2006 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "L. Ma".

Dr. Lilian Ma
Chair
Ontario Rental Housing Tribunal

**Ontario Rental
Housing Tribunal**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Telephone: (416) 585-7295
Facsimile: (416) 585-6363

**Tribunal du logement
de l'Ontario**

Bureau de la présidente

777, rue Bay, 12^e étage
Toronto, Ontario M5G 2E5
Téléphone : (416) 585-7295
Télécopieur : (416) 585-6363



Chair's Message

This is the eighth Annual Report of the Ontario Rental Housing Tribunal. Our Annual Reports coincide with the government's fiscal year; therefore, this Report will cover the period from April 1, 2005 to March 31, 2006. Ms. Bev Moore was the interim Chair until May 31, 2005. I assumed the position of Chair as of June 1, 2005.

Realizing the important task of the Tribunal in providing services to our clients, the landlords and tenants of residential premises of Ontario as well as community groups and interest groups who provide special services to their constituencies, we have formulated an Action Plan in June 2005 to address Member issues, operational/administrative support, an increase in Legal services support and duties, and to seek consultation with our stakeholders. The Action Plan is posted and updated on our website.

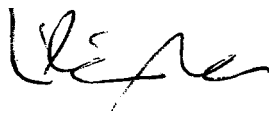
I appreciate the hardwork of the Vice Chairs and Members, the Director of Operations Diana Macri and all the administrative staff and as well the Director of Legal Services Branch Suzanne Graves and legal counsel thereof throughout the year and their devotion and professionalism in the fulfillment of our legislative mandate. The volume of work completed without backlog in the past year speaks for itself. We also thank our stakeholders both from the landlord and tenant groups in meeting with us and giving input to the amendment of our Rules and Guidelines.

Throughout this year, as the Tribunal's workload had increased, Vice Chairs and Members not only handled increased hearing blocks but also provided mentoring and support to the new members. Mediators have also been an important component to our dispute resolution strategy and they have engaged in meetings to better prepare themselves to meet the needs of our clients.

The call centre continues to be an important part for our dissemination of information to the public. Oftentimes disputes can be resolved at the earliest stage possible when the rights and obligations of each party are made known clearly. The call centre continues to provide much needed and timely service in the past year as in previous years. Our waiting times in answering phone calls involve only between one and two minutes for assistance from a Customer Service Representative and our abandoned calls are less than 1%.

The Tribunal remains dedicated to providing fair and effective service to all our clients. To that end, the Tribunal is committed to developing plans and programs on a continuing basis to fulfill our mission in the best possible ways.

Sincerely,

A handwritten signature in black ink, appearing to read 'L. Ma', with a stylized flourish at the end.

Dr. Lilian Ma, Chair
Ontario Rental Housing Tribunal

THE TENANT PROTECTION ACT

The *Tenant Protection Act, 1997*, (the TPA), was proclaimed on June 17, 1998 and applies to rental units in residential complexes.

Prior to the creation of the TPA, disputes between landlords and tenants were settled through the provincial court system. The court system was formal and costly, and dispute resolution often took a long time.

As well, previous legislation had a separate system for the Rent Control Program which oversaw the regulation of rent increases and provided information resources for tenants and landlords.

The need to provide a unified service to tenants and landlords led to the enactment of the *Tenant Protection Act, 1997* which consolidated the two systems and created an independent, quasi-judicial agency – the Ontario Rental Housing Tribunal, to administer the two prongs: dispute resolution and rent control, in relation to residential rental housing in Ontario.

The TPA set out the rights and obligations of landlords and tenants and created a process that was meant to deal with dispute resolution expeditiously and be accessible to the public who may not have legal representation.

Since proclamation, the *Tenant Protection Act, 1997* has been amended by the *Red Tape Reduction Act* in the fiscal year of 2001-2002 and, in the fiscal year of 2002-2003, by the *Government Efficiency Act*. Many of the amendments clarify existing rules in the TPA while other amendments have added new rights for landlords or tenants and change how the law applies. Each year, according to the Act a new rent increase guideline is announced. The annual rent increase guideline for 2006 was announced in August and is 2.1%.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL

The role of the Tribunal is to:

- Resolve tenant and landlord disputes through either adjudication and/or mediation
- Determine legal above guideline rent increases with respect to residential units
- Provide landlords and tenants with information about their rights and obligations

The Tribunal focuses solely on residential rental accommodation issues and offers a process that is more effective than previous systems for resolving landlord and tenant matters.

The Adjudication Process

The Tribunal was designed to create a fair but less formal environment than that in the courts for the resolution of disputes between landlords and tenants. Under the adjudication process:

- Disputes are heard in public buildings rather than courtrooms
- Tenants may choose to represent themselves and may consult an on-site legal aid representative
- The more conciliatory approach of mediation is provided by the Tribunal before the hearing process begins or on the day of the hearing. It is provided to the parties in a “without prejudice” manner so that the matter can still go to adjudication if mediation fails.
- The Tribunal’s adjudicators are trained to deal fairly and effectively with the issues. Adjudicators are Members, appointed to the Tribunal by Order In – Council. Candidates apply to the Public Appointments Secretariat and are referred to and partake in a structured interview with the Tribunal. The qualified candidates are recommended to the Minister for consideration.

Adjudicators from across the province meet formally four days a year to discuss issues. They also meet more frequently and informally in their regions. Some of them sit on committees and working groups such as the Rules and Guidelines Committee, groups to review the format of orders and other groups that gather opinions on specific issues. Members’ meetings also contain elements of on going professional development to update members on emerging issues

such as amendments to the TPA and new case law, and to provide forums for members to discuss decision-making and other matters.

This year we started a series of roundtable discussions with our Vice Chairs and Members to discuss issues of importance to adjudication. As well, each region now has its own Vice Chair who is dedicated to helping the Members in their region and to manage the processes associated with quality assurance and Member training.

The Mediation Process

Mediation is offered under the *Tenant Protection Act*. It is often used to clarify issues and narrow the areas of dispute so that the hearing may proceed more expeditiously. It can also lead to a resolution of the matter without a hearing. Mediated settlements are more flexible in their content than Tribunal orders. This often assists parties in reaching a satisfactory conclusion to their difficulties. Mediators use their expertise on the *Tenant Protection Act* and their negotiation skills to assist landlords and tenants in mediating their disputes and concerns. Mediators are available most of the time at all our hearing locations.

We are trying to focus our mediation on the more complex applications. Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which saves all parties lengthy hearings and provides a quicker resolution of the issues.

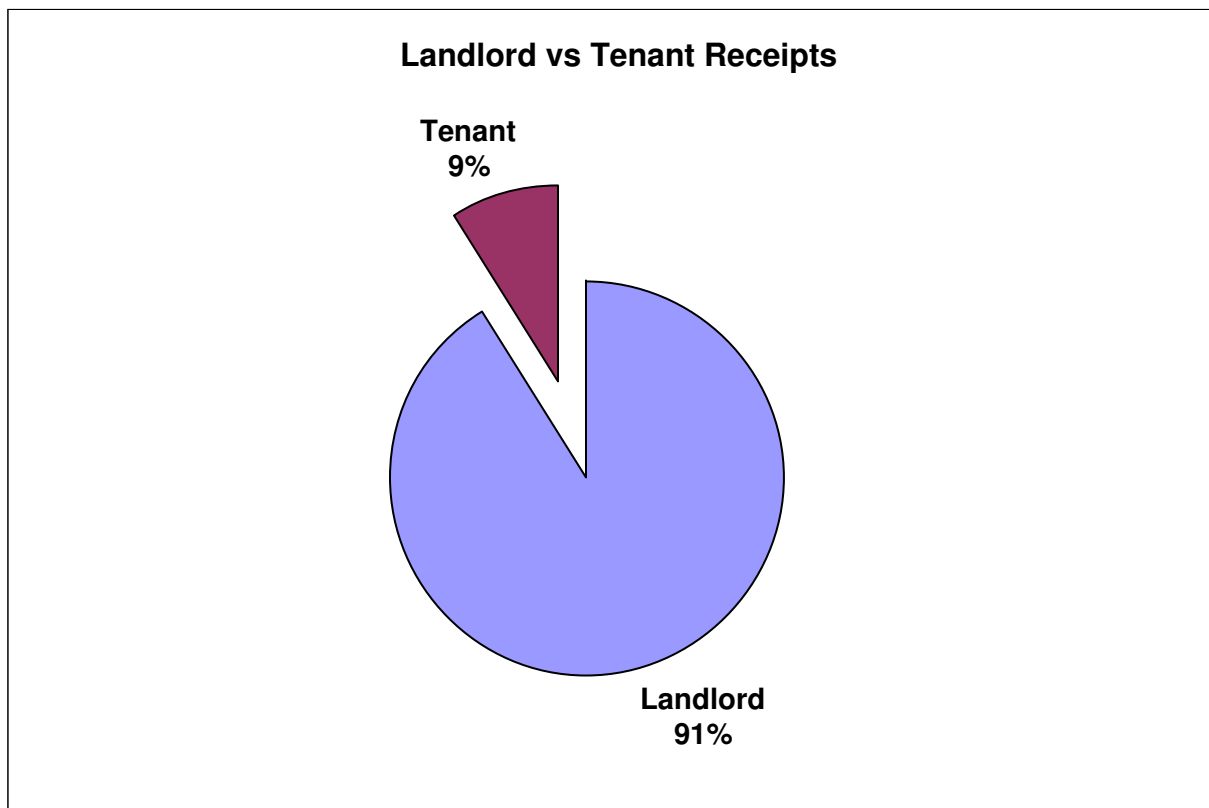
During the fiscal year 2005-2006, approximately 15 per cent of the Tribunal's applications were successfully mediated without the adjudication process. More difficult to quantify is the benefit of resolving only some of the issues in an application. Although these applications still have to be heard, the hearing takes a much shorter time because many of the issues have already been resolved through mediation.

Statistical Information for the 2005-2006 Fiscal Year

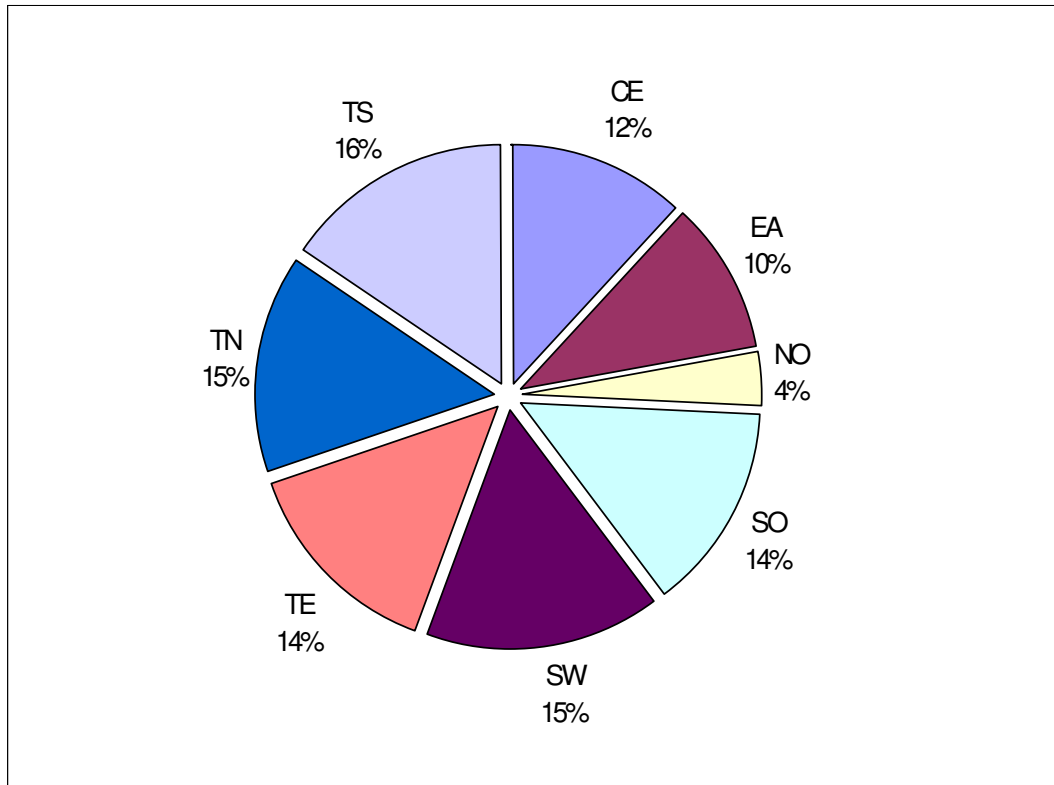
Applications

During the 2005-2006 fiscal year, the Tribunal received 81,000 applications and resolved 87,977. (Because the Tribunal resolves re-opened mediation and set-asides, some applications may generate more than one resolution.)

The distribution of application receipts for the 2005-2006 fiscal year, are reflected in the following profile:



The regional distribution of applications is as follows:



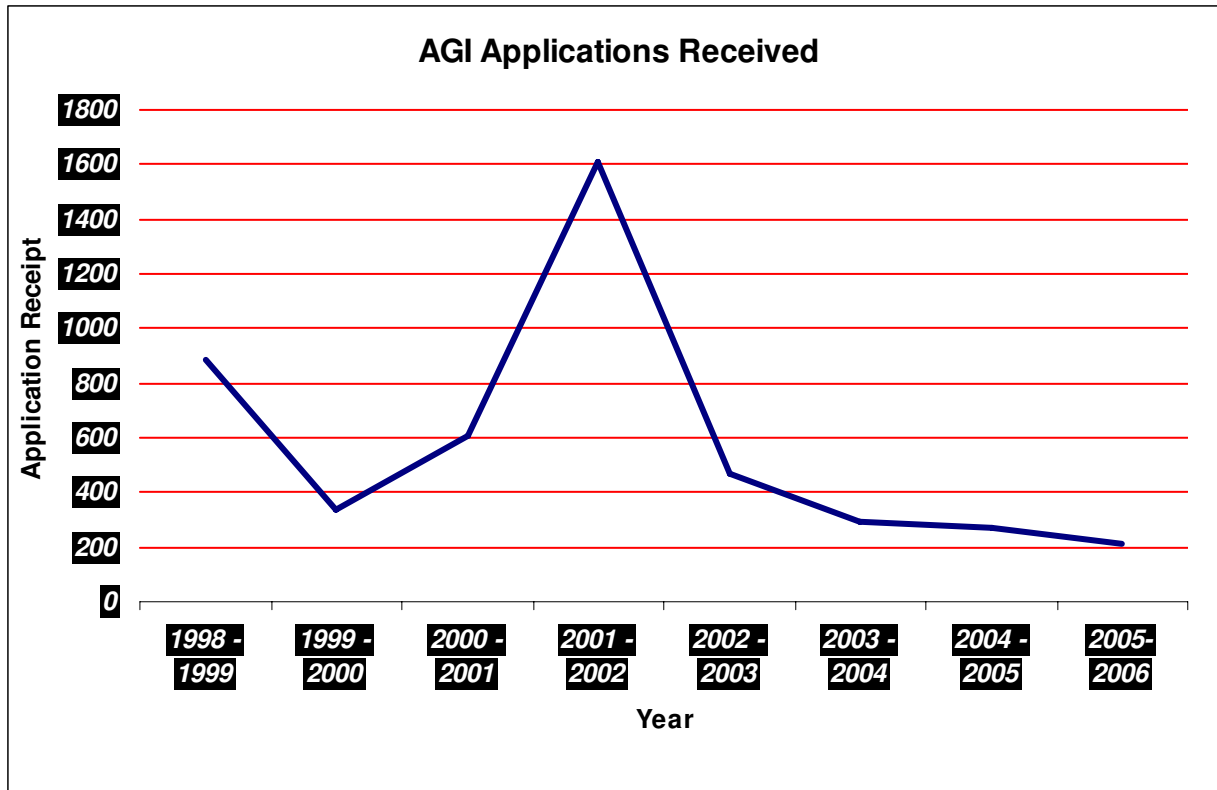
CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Eviction applications have by far been in the majority since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 82 per cent were for termination of tenancies because of arrears of rent. This is slightly up from 74.64 per cent last year. Tenant applications accounted for 9 per cent of the applications filed during this fiscal year. This is up very slightly from 8 per cent last year.

Above Guideline Rent Increase Applications

An average of 251 applications for above guideline rent increases were received each year under the *Rent Control Act*. Under the *Tenant Protection Act*, during the first year of Tribunal operations, 887 applications for above guideline rent increases were received. In the fiscal year 2000-2001, 608 applications were received. During fiscal year 2002-2003, only 471 above guideline rent increase applications were received, a substantial decrease from the previous fiscal year 2001-2002 where the Tribunal received 1608. The increase for fiscal 2001-2002 in above guideline rent increase application receipts was mainly the result of landlords experiencing an extraordinary increase in the cost of utilities, specifically a spike in gas prices. During the fiscal year 2004-2005, 274 applications were received, slightly down from fiscal 2003-2004 where the Tribunal received 292 applications. During the fiscal year, 2005-2006, 209 applications for Above Guideline Increases were received which continues this downward trend.

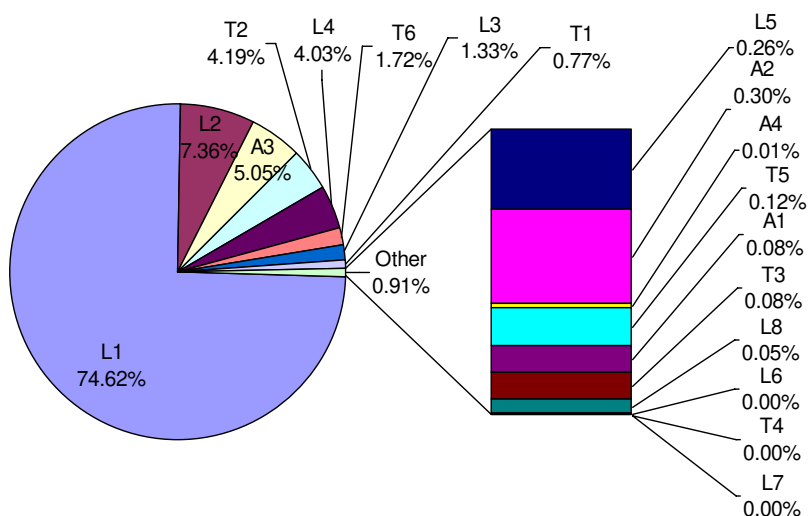
Above guideline rent increase applications continue to take a disproportionate amount of time both for adjudicators and staff. These applications continue to make up less than 1 per cent of the total applications received, and account for 20 per cent of the Tribunal's time.



Mediation is helping us with this workload, although we continue to look for other ways to increase our efficiency and speed up the resolution process.

The chart on the following page shows the distribution of the Tribunal's workload, by type of application and disposition method (default or hearing). This does not include mediated settlements.

Workload for Fiscal 2005/2006 Distribution of Application Receipts

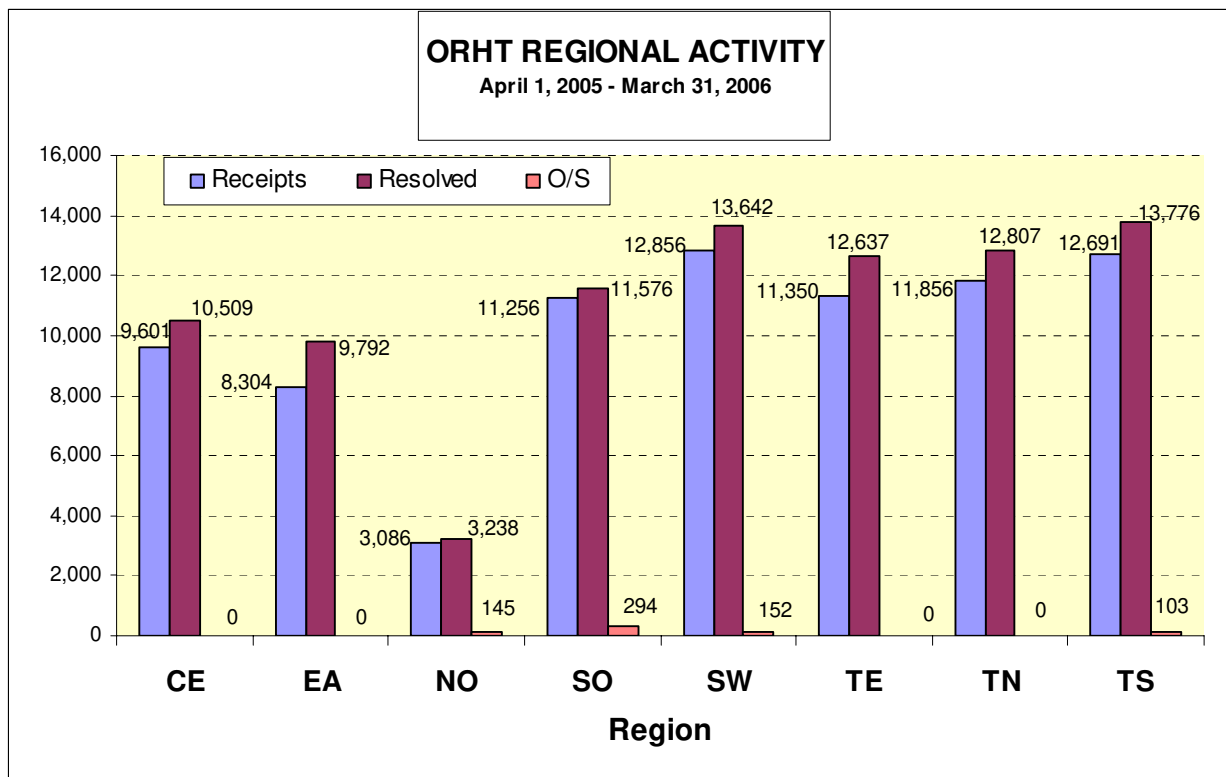


Case Type		# Cases	#Defaults	#Hearings
L1	L1 - Term. and Non-Payment of Rent	60,446	29,697	22,170
L2	L2 - Terminate Tenancy & Evict	5,969	852	3,678
A3	A3 - Combined Application	4,094	402	2,977
T2	T2 - Tenant Rights	3,391	1	2,442
L4	L4 - Term. Tenancy: Failed Sttlmnt.	3,268	2,672	1,080
T6	T6 - Maintenance	1,397	0	948
L3	L3 - Term. Tenant. gave Notice	1,077	733	394
T1	T1 - Rebate	620	30	399
L5	L5 - Rent Increase above Guidelines	209	0	229
A2	A2 - Sublet or Assignment	245	31	174
A4	A4 - Vary Rent Reduction Amount	9	0	75
T5	T5 - Bad faith Notice of Term.	99	0	99
A1	A1 - Determine Whether Act Applies	67	0	45
T3	T3 - Rent Reduction	68	0	46
L8	L8 - Tenant Changed Locks	38	0	29
L6	L6 - Review of Prov. Work Order	3	0	5
L7	L7 - Tranfer Tenant to Care Home	0	0	0
T4	T4 - Failed Rent Incr above Guide.	0	0	0
		81,000	34,418	34,790

Application Resolution

The Tribunal strives to resolve applications expeditiously. The Tribunal's goal is to maintain only one month's receipts as open files. Once again this fiscal year, we have been successful in achieving this goal. Most orders are issued within 20 days of filing the application and more complex orders are issued within 25 days.

The chart below indicates that receipts and resolutions remained constant during the year.



CE refers to Central; **EA** to Eastern; **NO** to Northern; **SO** to Southern; **SW** to Southwestern; **TE** to Toronto East; **TN** to Toronto North; and **TS** to Toronto South

Tribunal Locations

The Ontario Rental Housing Tribunal has eight regional offices which do a full range of business across the province where landlords and tenants can file applications, have their questions answered by a customer service representative, and attend hearings.

Most of the Tribunal's hearings are held in regional offices located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

The Tribunal also held hearings at our Client Service Office in the city of Windsor. However in spring of 2006 the Windsor office moved to a new location joining our Service Ontario partners. The Windsor office has now become a Co-locate. (Please see the following page for more information regarding Co-locations).

Alternative Service Delivery

The partnership with other governmental bodies such as the one with the Ministry of Consumer and Business Services to deliver services to the public proves to be very positive. This way, the public is provided with convenient access to government services and information. The Ontario Rental Housing Tribunal has also benefited through the affiliation with a service network to serve its clients in less populated areas.

At Ontario Rental Housing Tribunal Service Ontario/Government Information Centre Co-locations, landlords and tenants can file applications, and have their questions answered by a customer service representative. The co-locations are located in the following areas:

Barrie	Kingston	Thunder Bay
Kitchener	Owen Sound	Whitby
Peterborough	St. Catharines	Windsor

At Service Ontario/Government Information Centres, landlords and tenants can file applications and supporting documents. Staff of these centres cannot answer questions about the rights and obligations of tenants and landlords under the *Tenant Protection Act*; they can, however, accept applications on behalf of the Tribunal and provide access to information pamphlets and application forms. The Tribunal uses the services of the following Service Ontario/Government Information Centres:

Atikokan	Aurora	Bancroft	Barrie
Belleville	Blind River	Brampton	Brockville
Chapleau	Chatham	Cochrane	Cornwall
Downsview	Dryden	Elliot Lake	Espanola
Fort Frances	Geraldton	Gore Bay	Guelph
Hawkesbury	Hearst	Huntsville	Ignace
Iroquois Falls	Kapuskasing	Kenora	Kingston
Kirkland Lake	Kitchener	Lindsay	Marathon
Minden	Moosonee	New Liskeard	Nipigon
North Bay	Oakville	Owen Sound	Parry Sound
Pembroke	Peterborough	Rainy River	Red Lake
Renfrew	Sarnia	Sault Ste. Marie	Simcoe
Sioux Lookout	St. Catharines	Stratford	Sturgeon Falls
Thunder Bay	Timmins	Wawa	Whitby

Statistically the Service Ontario/Government Information Centre Processing Unit receives on average 230 applications per month in total from the above listed locations. These office locations provide our clients with convenient access to government services, particularly in Northern Ontario. The Tribunal has been able to reduce operating costs through the use of the full Service Ontario/Government Information Centre Network.

Call Centre

The Tribunal has a virtual call centre for handling customer inquiries. There is a toll-free number for callers who live outside Toronto (1-888-332-3234); and, in the Greater Toronto area the number is 416-645-8080. Customer service representatives are available during normal business hours. An extensive telephone script answers frequently asked questions 24 hours a day, 7 days a week. This year, the Tribunal responded to approximately 552,965 telephone calls. After hours and on weekends, a toll-free number is also available for faxing time sensitive documents and for ordering any of the Tribunal's public education brochures. These brochures are available in English and French. Selected brochures on the most important topics are available in seven other languages: Portuguese, Italian, Chinese, Punjabi, Polish, Tamil and Spanish.

The call centre employs the appropriate technology which has improved province-wide service delivery. The call centre of the Ontario Rental Housing Tribunal, apart from serving the public was also chosen to help the Government in handling telephone responses in other consultations (for example, in the Ministry's Residential Tenancies consultation; the Greenbelt consultation; the COMRIFF fund of Rural Affairs; and the Ministry of Labour new temporary help line for new inspectors).

E-government

The Tribunal's website (orht.gov.on.ca) is visited almost one million times each month. Our website is easily accessible to disseminate information to all of our clients. Clients can find information on our website about the progress of their application, the date of the hearing and whether an order has been issued. As well, all Tribunal forms and pamphlets, information on members, complaint procedures, relevant legislation, and rules and guidelines can be retrieved on line.

The Tribunal continues to take a phased approach to comply with the Government's commitment to multi-channel service delivery. The first phase allowed clients to inquire online on the status of their application; the second phase allowed for the scanning, interpretation and processing of applications; and the third phase allowed for a large majority of applications to be

processed through teleform. The Tribunal continues to work towards enhancing its quality service for clients.

French Language Services

The Tribunal is committed to providing services in both official languages in accordance with the *French Language Services Act*. In designated areas, a completely fluent adjudicator will provide French hearings and orders will be translated where requested. All offices in designated areas have bilingual staff available for our French-speaking clients and staff are available at Service Ontario/Government Information counters who are able to provide services in each of the official languages.

ORDER SUMMARIES

Landlord Application

Subsection 138(6)

The landlord applied for an order to increase the rent charged by more than the guideline because they had done capital expenditure work in the residential complex.

In the application, the landlord claimed four capital expenditure items totalling \$64,385.69:

1. Parking lot replacement in the amount of \$38,092
2. Fire alarm retrofit in the amount of \$18,955.05
3. Replacement of the garbage envelope in the amount of \$6,199.09, and
4. Landscaping work in the amount of \$1,139.55.

After considering the evidence and submissions, the Tribunal allowed the landlord's claims for the parking lot replacement and fire alarm retrofit, but not for the replacement of the garbage envelope or the landscape work.

In order to be considered in an application, a capital expenditure item must be completed within the 18-month period that ends 90 days before the first effective date of the first intended rent increase applied for in the application. The 18-month period for this application was from November 3, 2003 to May 3, 2005. Since the contractor's invoice indicated that the replacement of the garbage envelope was completed on October 3, 2003, the Tribunal found that this capital expenditure item could not be considered. With respect to the landscaping work, the Tribunal found that the work claimed was "maintenance work" and did not qualify as a capital expenditure item.

Based on the two allowed capital expenditure items, the landlord justified an increase of 0.84%. An order was issued permitting the landlord to increase the rent charged by 0.84% above the guideline.

Tenant Application

Section 35

The tenant applied for an order determining that the landlord harassed him, entered the rental unit illegally, changed the locking system for the unit without providing the tenant with a replacement key and interfered with the tenant's reasonable enjoyment.

The tenant moved into a basement unit in a house. After a while, the tenant began to suspect that the landlord was entering the rental unit while he was at school. To address the situation, the tenant posted a note on an internal door within the tenant's unit asking the landlord to stop entering the apartment uninvited. Upon discovering the note, the landlord became angry and gave the tenant notice to move out. The tenant agreed to move out at the end of January 2006.

The tenant found a new apartment in the area and gradually started moving his belongings to the new location. On January 30th, 2006, the tenant went to the rental unit to remove the last of his possessions. When he arrived, however, the tenant discovered that the screen door was locked. The tenant was unable to access his unit because the door to which the tenant had a key was behind the screen door. The tenant returned to the unit to recover his property on February 1st, 2nd and 3rd but was unsuccessful, as the screen door remained locked. On February 6th, the tenant attended the premises with the police; the landlord refused to cooperate with the officers and refused to return the tenant's property.

At the hearing, the landlord claimed that the tenant was lying. The landlord stated that he did not change the locks to the rental unit until early February, and that he did not start locking the screen door until February 1st. The landlord denied having kept any of the tenant's personal belongings.

After considering the evidence of both parties, the Tribunal found the tenant's case was more persuasive. The tenant and his witnesses were sincere and straightforward. The tenant had submitted pictures that showed his belongings were in the landlord's possession well after the end of the tenancy. In contrast, the Tribunal found the landlord's testimony evasive. The landlord's credibility was further undermined by his lack of cooperation with the police.

The Tribunal found that the landlord changed the locking system, by locking the screen door prior to the end of the tenancy. An order was issued requiring the landlord to pay the tenant \$1,934 to compensate the tenant for his lost belongings, plus an additional \$200 for the tenant's reasonable out of pocket expenses.

Tenant Application

Section 35

The tenants applied to the Tribunal for an order determining that the landlord gave a notice of termination in bad faith.

The tenants rented a single-family detached home from the landlord. During the tenancy, the landlord approached the tenants and inquired whether it would be possible for his son to move into the basement and in exchange, the landlord would reduce the tenants' rent. The tenants were not comfortable with this arrangement, and refused. Subsequently, the landlord served the tenants with written notice that he wished to terminate the tenancy because his son would be moving into the rental unit when the lease expired. The tenants made arrangements to move to another home, two doors away.

In support of their application, the tenants submitted evidence to show that shortly after they made arrangements to move, the landlord began placing ads in the newspaper to rent the home. After the tenants moved out, the upper floor of the home was rented to two women. As of the hearing date, more than 21 months had passed since the landlord served the tenants with notice, and the landlord's son still had not occupied any part of the home. In dispute of the tenants' application, the landlord argued that his son still had every intention of moving into the basement.

The Tribunal found that the "rental unit" was the *entire* home and the landlord could not give notice for personal use for just part of the rental unit. The Tribunal also found that the landlord's son failed to occupy the rental unit within a reasonable period of time after termination. For these reasons, the Tribunal concluded that the landlord served a notice of termination in bad faith. An order was issued requiring the landlord to pay the tenants a total of \$1,670.50 for their increased rent, moving expenses, and legal fees.

Tenant Application

Section 144

The tenant applied to the Tribunal for an order determining that the landlord unlawfully retained the money she had paid for November's rent.

The tenant was renting the apartment on a monthly basis. On October 3, 2005, the tenant gave the landlord written notice that she would be vacating on November 15th. Both parties acknowledged that the tenant's notice did not comply with the legislative requirements in that it

did not give the landlord 60 days notice. The tenant moved out of the unit on October 29th and returned the keys to the landlord on November 1st.

On or about November 3, 2005, the landlord re-rented the tenant's unit to a family whose home had been damaged or destroyed in a recent fire. The tenant argued that since the unit was re-rented, the landlord should return the \$500 that she had paid for November's rent. In dispute, the landlord claimed that he should not have to repay the tenant because the arrangement he had made with this family was a short-term arrangement. In addition, there were three other vacant units in the complex that the landlord could have rented to the family.

The Tribunal found that although the tenant's notice was insufficient, the landlord had a responsibility to mitigate his losses by re-renting the unit as quickly as possible. Since the landlord received rent from another family for the tenant's unit, the tenant was relieved of her obligation to pay for November's rent. The tenant could not be required to continue to pay rent for a rental unit that was lawfully rented to someone else. An order was issued requiring the landlord to reimburse the tenant \$500.

Tenant Application

Section 35

The tenant owned a mobile home and rented a site in the landlord's mobile home park. The tenant applied for an order determining that the landlord illegally entered the tenant's unit, that being the mobile home site, for the purpose of disposing of the tenant's property.

The tenant's son lived in the mobile home until it was destroyed by a fire in December 2004. In July 2005, the landlord sent the tenant a notice by registered mail. The notice informed the tenant that the landlord would be hiring a contractor to remove the debris left by the fire from the site. The landlord claimed that the debris posed a threat to public health and safety, especially to any children living in the immediate area. On September 13, 2005, a contractor came and removed the remains of the mobile home.

At the hearing, the tenant confirmed that he received the written notice from the landlord. The tenant explained that he did not take any steps to remove his property, because he felt the landlord would not proceed since the landlord had not complied with section 111 of the *Tenant Protection Act* (the Act). This section requires that before disposing of an abandoned mobile

home, a landlord must notify the tenant of his intention to do so *and must publish a notice in the local newspaper*. Since the landlord did not publish a notice in the local paper, the tenant argued the landlord was not entitled to dispose of the mobile home.

In considering the evidence, the Tribunal noted that section 111 only applies if the tenant has vacated as a result of: a notice of termination, an agreement to terminate the tenancy, or an order from the Tribunal terminating a tenancy. Since the tenant did not vacate the mobile home for any of these reasons, the Tribunal found that section 111 of the Act did not apply to this situation.

The Tribunal found that the landlord disposed of the debris from a fire that the tenant refused to deal with, even after being given a formal request to do so. The tenant had from July 8, 2005 to September 13, 2005 to salvage anything of value from the site, but the tenant did not do so. The Tribunal found that the landlord's motivation to protect the general public from a health and safety hazard was not a breach of the Act. The tenant's application was dismissed.

Landlord Application

Subsection 86(1)

The landlord applied for an order to terminate the tenancy because the tenant did not pay the rent that she was required to pay for the period from July 1, 2005 to September 30, 2005.

The tenant disputed the application on the grounds that the landlord was in serious breach of its maintenance obligations. The tenant and the tenant's common-law spouse had informed the landlord of outstanding maintenance issues starting in June of 2005. Children's Aid also wrote to the landlord's agent about the outstanding maintenance issues. The Protection Worker indicated that the lack of repair was so severe that it created a dangerous situation for the tenant's two children.

After considering the evidence, the Tribunal found that the landlord was in serious breach of its responsibilities and as a result, refused to terminate the tenancy despite the fact that the tenant was in arrears of rent. An order was issued requiring the tenant to pay the landlord the arrears of rent owing up to September 30, 2005.

Landlord Application

Section 81

The landlord applied for an order to evict the unauthorized occupants who were living in the rental unit, and for compensation for the use of the unit.

The landlord claimed that the tenant vacated the rental unit on or about September 7, 2005. Two days later, the landlord discovered two occupants living in the rental unit. When the occupants refused to leave, the landlord called the police. The landlord could not, however, recall the exact date that the call was made.

The occupants testified that the landlord showed them the rental unit on or about September 2, 2005 and agreed to enter into a tenancy agreement with them starting September 15th. The occupants paid the landlord a deposit in the amount of \$100, for which they had a receipt that was signed by the landlord. The occupants further testified that they gave the landlord another \$350 on September 13th, after which the landlord gave them the keys to the rental unit. On September 17th, the landlord discovered that the occupants had dogs living with them in the rental unit. Upon making this discovery, the landlord became upset and called the police.

The Tribunal found that the landlord failed to establish, on a balance of probabilities, that the occupants were not authorized to live in the residential unit. The evidence, including the receipt, indicated that the landlord and the occupants had entered into a tenancy agreement with respect to the rental unit. Since the parties had entered into a tenancy agreement, the 'occupants' were, in fact, 'tenants' within the meaning of the Act. An order was issued dismissing the landlord's application.

Landlord Application

Section 69

The landlord applied for an order to terminate the tenancy and evict the tenants because they committed an illegal act on the premises. The tenants reside in a residential complex which consists of two buildings.

There are three tenants named on the lease. Tenant A was charged and convicted with being in possession of an unlicensed 9mm handgun and assaulting a police officer. The illegal acts did not occur in the building where the tenants lived, but in the second building that also forms part of the residential complex.

At the time of the hearing, the only tenant continuing to reside in the rental unit was Tenant B. Tenant C had vacated and Tenant A had a probation order against him which prevented him from accessing the building.

The lawyer for Tenant B argued that since the illegal act was committed by Tenant A and there was no evidence that Tenant B participated in the illegal acts, the application should be dismissed. The landlord counter-argued that the tenants as a group constituted the tenancy and that they could not be separated.

The Tribunal found that the tenancy consisted of three tenants. Since there was one lease for all three parties, the three could not be separated into individual tenancies. On a balance of probabilities, the Tribunal concluded that a tenant of the rental unit committed an illegal act in the residential complex. An order was issued terminating the tenancy. Taking into consideration the fact that Tenant B had two young children and would need time to relocate the Tribunal ordered that the eviction should be delayed.

Landlord Application

Subsection 72(10)

The landlords applied to the Tribunal for an order terminating the tenancy because the tenants were in arrears of rent. An eviction order was issued, with a provision that allowed the tenants to void the order by paying \$3,577 on or before January 31, 2006.

The tenants filed a motion to void the eviction order, claiming that they had made the necessary payments. As a result, an order voiding the eviction order was issued, without notice to the landlords and without holding a hearing. Subsequently, the landlords filed a motion to set-aside the order to void, claiming that they did not receive full payment by January 31, 2006.

At the hearing, the landlords testified that as of January 31, there was still \$1,500 owing. The landlords checked their mailbox several times on that day but no further payments were received. Mid-morning on February 1, 2006, the landlords discovered that the tenants had placed an envelope in their mailbox. The envelope contained a money order in the amount of \$1,000 and a cheque in the amount of \$500. Documentary evidence showed that the cheque cleared the bank on February 10, 2006.

The tenants argued that they placed the envelope in the landlords' mailbox on January 31, 2006. In the event that the landlords' motion was to be allowed, however, the tenants asked the Tribunal to grant them relief from eviction due to the fact that the tenants have five children, and their only source of income was from disability and support payments.

Based on the balance of probabilities, the Tribunal found that the tenants did not put the envelope in the mailbox until February 1, 2006 and that the cheque did not clear the bank until February 10th. Because the payment was not made in full by January 31, 2005, the Tribunal concluded that the tenants did not make the payments required to void the order. With respect to the tenants request for relief from eviction, the Tribunal found that it did not have the authority to consider granting relief from eviction in this case. Since the tenants did not make the required payments, the original eviction order stands. The Member who issued the original eviction order already considered the question of relief from eviction, and had granted the tenants a further two-month grace period to come up with the arrears. The Tribunal could not revisit this issue again.

The landlords' motion to set aside the order to void was granted. The original eviction order was returned to full force and effect.

Tenant Application

Subsection 7(2)

The tenants applied for an order to determine whether the Act applies to their rental unit. Since 1969, the tenants have been renting a two-storey farmhouse on 70 acres of land. From 1969 to 1996, the tenants used this land to farm horses and cattle and to crop hay. From 1998 to 2004, the tenants leased the land to local farmers at the same rate as the tenants paid to the landlord.

The tenants had signed a lease with the landlord which provided that they would pay a yearly rent for each acre of leased land, plus an aggregate annual rent for the buildings located on the land. The lease stated that it was deemed not to be a residential lease and therefore was not subject to the *Landlord and Tenant Act* or any successor Acts. The lease further stated that the use of the premises was for the purpose of the operation of a farm.

The Tribunal found that the premises have been occupied predominately for agricultural purposes with living accommodation attached. The occupancy for both purposes was under a single lease and the same person occupied the premises and the living accommodation. The Tribunal found that the relationship between the landlord and tenants was exempt pursuant to section 3(j) and therefore, was not covered by the *Tenant Protection Act*.

Landlord Application

Section 69

The landlord applied for an order to terminate the tenancy because the tenant had been persistently late in paying the rent from November 1, 2004 to April 1, 2005.

The tenant lived in the rental unit for over 31 years. The tenant did not dispute the fact that rent payments were made late during the period claimed by the landlord. The tenant pointed out, however, that there were no arrears owing. In his defence, the tenant explained that he suffers from a neurological disorder which weakens his nerves and muscles and that he suffered from this disorder more notably during the period claimed in the application. The tenant submitted that his lateness in paying rent was attributable to this disorder.

The Tribunal found that the tenant was persistently late in paying his rent to a level that, if no other relevant factors existed, would normally lead to an order granting the landlord's application. In this case, however, the tenant suffered from a neurological disorder which contributed to his persistent lateness. Where a tenant suffers from a disability, the Tribunal has an obligation to consider the *Human Rights Code* (the Code). Under the Code, the duty not to discriminate includes an obligation to accommodate people with a disability, unless this would cause undue hardship. The landlord did not provide any evidence to suggest that it would be an undue hardship for the landlord to permit periods of lateness, given the tenant's disability. Even if the Code was not a factor in its decision, the Tribunal found that it would not have granted the landlord's application, given the unfairness of terminating a 31-year tenancy for a relatively brief period of lateness. An order was issued dismissing the landlord's application.

Tenant Application

Section 34

The tenant applied for an order determining that the landlord failed to meet his maintenance obligations.

The tenant claimed that the water supply to the rental unit was inadequate and intermittent from December 2004 to July 2005. Although there were times when the water supply was sufficient, there were many occasions where the tenant was unable to use the kitchen and bathroom facilities. The tenant informed the landlord of the water supply problem in December 2004, and provided additional verbal notices in the months that followed. The landlord failed to address the problem, so the tenant contacted the municipal property standards department. Upon an

inspection of the rental unit by a Property Standards Officer, the landlord was ordered to improve the supply of potable water to the rental unit.

In his defence, the landlord explained that he inspected the rental unit on three occasions in January and February. During the inspections, the supply of water appeared to be adequate. In addition, the landlord had not received any complaints about the supply of water from any other tenant in the complex. Not believing that a problem existed, the landlord did not take any steps to correct the problem until he received the work order from the city. The repairs to the water supply were completed in July 2005.

The Tribunal found that the landlord failed to meet his obligations to maintain the rental unit by failing to provide the tenants with an adequate supply of water from December 2004 to July 2005. An order was issued requiring the landlord to pay the tenant a rent abatement of \$1,300.

BIOGRAPHIES

CHAIR

Dr. Lilian Ma. *June 1, 2005*

Dr. Lilian Ma, was a member of the Refugee Protection Division of the Immigration and Refugee Board of Canada from 1994 – 2005. Her 18-year public sector career includes a variety of prestigious positions: member of the Liquor Licence Board of Ontario; chief of the Public Education Division of the Race Relations Directorate of Multiculturalism Canada of the Secretary of State from 1988 to 1989; and commissioner for the Ontario Human Rights Commission from 1986 to 1988.

Dr. Ma earned a law degree from the University of Toronto (1992), a Doctorate in Chemistry from Simon Fraser University (1971) and a Bachelor of Science degree from the University of Hong Kong (1967). She has published widely in science and law.

Dr. Ma is a member of the Law Society of Upper Canada and the Canadian Bar Association and sat on its Racial Equality Implementation Committee from 2000 to 2004. She was a founding director and held several board positions on the Chinese Canadian National Council from 1980 to 1994, and was a founding director of the National Organization of the Immigrant and Visible Minority Women of Canada from 1986 to 1988. She is also a member of the Board of Directors of the Council of Canadian Administrative Tribunals and was the conference co-chair for its 22nd annual conference in Ottawa, June 2006.

INTERIM CHAIR

Beverly Moore *(September 1, 2004 – May 31, 2005)*

Beverly Moore graduated from Sir Wilfred Laurier University with a Bachelor of Arts degree. She later graduated from the law clerk program at Fanshawe College. Ms. Moore spent 12 years working in community legal clinics. Before coming to the Tribunal, Ms. Moore served as a vice chair with the Social Assistance Review Board.

VICE CHAIRS

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the Ontario Rental Housing Tribunal she was a part-time professor of Law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings with her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Eli Fellman

Eli Fellman holds an Honours Degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws Degree (LL.B.) at the University of Ottawa. Prior to his appointment to the Tribunal as an adjudicator, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario bar in 2002, he practiced international trade and customs law in Toronto.

Régent Gagnon

Mr. Gagnon is a graduate of Le Moyne College in Syracuse, N.Y. (B. Sc. Humanities, 1963). He worked in public and private sector organizations in all facets of Human Resources Management until 1985 when he founded his own HR consulting firm. As a recognized expert in HR, Mr. Gagnon was invited to teach HR courses at Carleton and Ryerson Universities. Prior to his appointment to the Ontario Rental Housing Tribunal, Mr. Gagnon served as a part-time member of the Assessment Review Board from 1993 to 1999. In addition, he was a member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton.

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

Guy Savoie

Guy Savoie has held numerous Senior Management positions within both the Financial and Business sectors for the past 17 years. Since 1990 Guy is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

ADJUDICATORS

Joseph A. Berkovits

Joseph A. Berkovits graduated from York University with an Honours B.A. majoring in History and English, and an M.A. and a Ph.D. in History from the University of Toronto. He received a law degree from the University of Toronto, articulated at the Ontario Ministry of the Attorney General and in 2004 was called to the Bar of Ontario.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served two terms, and then to City of Toronto Council in 1998.

Enza Buffa

Vicenzina Buffa of Toronto served as a Customer Relationship Management Reporting Analyst in the private sector for a world-class call center whose client is primarily Ford Motor Company. Ms. Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with many internal and external

clients. She is a certified internal ISO auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

Kim Bugby

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts Degree in Psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms. Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Most recently, Ms. Bugby was employed as a Community Support Coordinator providing services to persons diagnosed with a serious mental illness.

William Burke

William Burke was employed for 17 plus years in the Municipal sector before joining the Tribunal. Mr. Burke was involved in aspects of Municipal Standards, Building Inspections and Law Enforcement during those years. He continues to be a member of the Ontario Association of Property Standards Officers and served on the Board of Directors of that Association from 2003 –2006 which post he resigned shortly after joining the Tribunal.

Richard Corcelli *(resigned April 1, 2005)*

Richard Corcelli spent many years with 3M Canada in sales and management before moving to Muskoka 30 years ago where he operated his own automotive/industrial supplies business for 14 years. Following that, he worked as a sales and parts counterman trainer for both DuPont Canada and Georgian College. He was an elected Councillor for the Town of Gravenhurst where he chaired the Development Services Committee and the District of Muskoka where he chaired the Public Works and Engineering.

Paul De Buono *(resigned January 12, 2006)*

Paul De Buono obtained a master's degree in 1994 from Texas A&M University and a law degree in 1999 from Osgoode Hall Law School of York University. He worked for the Toronto District School Board and recently with the Durham Children's Aid Society, including a private practice focused mainly on family law.

Susan Ellacott

Susan Ellacott is a resident of the Ottawa region and served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren

Nancy Fahlgren comes to the Tribunal with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Suzy Franklyn (Part-Time)

Ms. Franklyn graduated from Cambrian College of Applied Arts and Technology, Law Clerk program in 1991. Ms. Franklyn has been in private practice, specializing in Real Property Law and Conveyancing since 1991. Suzy recently served as Property Administrator with the City of Greater Sudbury and has held various administrative positions in the past.

Ms. Franklyn graduated from York/Laurentian University's Alternative Dispute Resolution program in 1998, with a specialization in Family Mediation. As an accredited mediator and a recognized expert in the field of A.D.R., Suzy has achieved accreditation status from both the Ontario Association of Family Mediation and Family Mediation Canada.

Dan Helsberg (Part-Time)

Henry Daniel Helsberg, of Lively, is a self-employed financial consultant. Prior to this, Mr. Helsberg was a real estate salesperson for seven years, selling residential and commercial properties in the Sudbury area. Mr. Helsberg has a Master of Arts, Economics from the University of Guelph and has completed Ph.D. course work in Urban and Regional Planning at the University of Waterloo.

Sean Henry

Sean Henry is a graduate of the University of Toronto (B.A. Honours), York University (M.B.A.) and Queen's University (LL.B). Mr. Henry carried on a criminal and family law practice before becoming an adjudicator with the Social Benefits Tribunal. Mr. Henry then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing.

Elke Homs

Elke Homs is an experienced adjudicator, who served as a member of the Immigration & Refugee Board for over 11 years before being appointed to the Ontario Rental Housing Tribunal. Elke was educated in Germany and immigrated to Canada in 1968.

David Hutcheon *(term ended February 16, 2006)*

David Hutcheon served as Vice Chair of the Environmental Review Tribunal from 1999 to 2002 and spent ten years in provincial and municipal government during which time he served as Deputy Mayor, Budget-Chief, and executive council member on Toronto City Council. Mr. Hutcheon was a Commissioner on the Toronto Harbour Commission and a Director of the Runnymede Chronic Care Hospital. He is a recipient of the Canadian Institute of Planners' S. George Rich 1998 award, and the Commemorative Medal for the 125th Anniversary of the Confederation of Canada. Mr. Hutcheon has a Master of Public Administration degree from the University of Western Ontario and an Honours Bachelor of Arts degree in History from Rutgers University, New Jersey U.S.A. He is a Henry Rutgers Scholar.

Linda Joss (Part-Time)

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Mrs. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. After this she joined Metro Toronto's Community Service Department as a manager of hostels. During twenty five years with Community Services, Mrs. Joss managed and developed programs in Metro's four major hostels, including the opening of two new large facilities. During this time Mrs. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Mrs. Joss' experience in

emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Greg Joy

Greg Joy won an Olympic Silver medal in high jump at the 1976 Montreal Olympic Games. That same year he was selected to carry the Canadian flag during the closing ceremonies at the Olympic Games, was chosen as Canada's athlete of the year and received the Governor General's Award. In 1978 he broke the world record with a leap of 2.31 metres and is a recipient of the Queen's Golden Jubilee Medal for his work in his community.

Greg has worked as a sport and fitness consultant for the government of Ontario, a teacher and has coached several national and international champion athletes. Greg spent six years helping to feed the less fortunate of his community as Executive Director of the Ottawa Food Bank and for six years was the principle partner of a successful corporate training company. For 25 years Greg has provided volunteer support to several charities and has been a member of numerous boards.

Greg is a graduate of the University of Toronto and has a post graduate certificate in financial analysis from the University of Western Ontario.

Caroline King

Caroline A. A. King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained her Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the Tribunal, she practiced law for a number of years, and was active in her local community.

Elizabeth Leighton

Elizabeth Leighton graduated from the University of Western Ontario with an Honours degree in English & History, then attained her Master of Library Science and Bachelor of Laws degrees. Before her appointment to the Tribunal, she practiced law for a number of years, and was active in her local community.

Sonia Light *(term ended June 16, 2005)*

Sonia Light graduated with distinction from McGill University in 1980 where she received her Bachelor of Arts degree in geography (urban systems). She graduated from Osgoode Hall Law

School in 1983 and was called to the Ontario Bar in 1985. In 1986 and 1987 she was a solicitor in the City Solicitor's office for the City of Hamilton. In 1988 she acted as legal counsel to the then Ministry of Housing's Buildings Branch. From 1989 to 1998 she was employed by the former City of North York and the new City of Toronto as a solicitor.

Janice MacGuigan *(term ended January 22, 2006)*

R. Janice MacGuigan is a graduate of The Institute of Law Clerks of Ontario. She practiced in the real estate field for 13 years, and later spent two years as a constituency correspondent. In addition, Ms. MacGuigan was an active volunteer in her community as Chair and Vice Chair of her local school council and a leader with Girl Guides of Canada.

Wayne MacKinnon

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the faculty of Arts and Science (Social Sciences), and then went on to do some graduate work in Boston, Massachusetts USA. Before his appointment to the Tribunal he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada at various levels and in various departments. Mr. MacKinnon was a Member of the Mayor's Advisory Committee on Race Relations and a voluntary Member of Bell Canada's Consumer Advisory Panel.

Ieva Martin

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that she was a small business owner and a member of the Board of the Clarkson Business Improvement Association. She was the President of the Latvian Canadian Cultural Centre. Ms. Martin obtained a Bachelor of Arts (B.A. Hons.) in French and Canadian Studies from the University of Toronto. She also studied Science at McGill University.

Debra Mattina

Debra Mattina is a graduate of Mohawk College in Hamilton (Business Accounting, 1972 and Medical Radiological Technology, 1985) and worked as a medical radiation technologist for 20 years. In 2003 Debra was awarded the Queen's Golden Jubilee Medal recognizing her volunteer efforts in her community over her lifetime.

Donna McGavin *(term ended September 16, 2005)*

Donna McGavin was a member of the Rent Review Hearings Board from 1987 until 1994. She became a vice chair of the Social Assistance Review Board in 1995 and remained at SARB until 1998. In June 1999, Ms. McGavin was appointed as a member of the Ontario Rental Housing Tribunal.

Dennis McKaig *(term ended September 9, 2005)*

Dennis McKaig is a graduate of Humber College in Toronto, (Funeral Service Education, 1980), and The University of Western Ontario (Bachelor of Science, 1988). Mr. McKaig worked in funeral service in Southwestern Ontario during most of the 1980s. He was with the Ministry of Health (Emergency Health Services) in the communications field since 1989, and has also worked on a part-time basis as a paramedic. Mr. McKaig previously has acted as a Board member and Committee Chair for Craigwood Youth Services, a children's mental health and young offender's agency.

Brian McKee (Part-Time)

Brian McKee graduated from Algonquin College, Management major, School of Business, in 1972. He has held senior management positions in the private sector over the past twenty-five years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

Jim McMaster (Part-Time)

Jim McMaster has been an active member of his community for over 20 years including having been on Ajax council for 12 years and holding the positions of Deputy Mayor, Region of Durham Finance Chairman and Budget Chief and Vice Chair of the Toronto and Regions Conservation Authority just to name a few. He owns a transportation consulting business.

Angela McReelis *(resigned June 2, 2005)*

Angela McReelis is a graduate of Sir Sandford Fleming College, Law and Justice Program. Ms. McReelis has furthered her studies in obtaining the following certificates: Law Clerks of Ontario, and Alternative Dispute Resolution techniques. Before joining the Tribunal, Ms. McReelis was a Complaints Resolution Officer at the Law Society of Upper Canada and prior to that she was an Application/Assessment Officer at Legal Aid Ontario.

Alan Mervin

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) from the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Beatrice Metzler (Part-Time)

Beatrice Metzler is a graduate of Lakehead University, specializing in Education. She went on to obtain her accreditation in Association Management. Beatrice held the positions of General Manager of the Thunder Bay Chamber of Commerce and then Executive Director of the Thunder Bay area Industrial Training Organization. Following her career in association management, she established her own Project Management business. She has been an active director on several business, professional and community boards, both locally and provincially.

Christina Budweth Mingay (Part-Time)

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws (LL.B.) from Queen's. Ms. Budweth Mingay was in private practice until 1991 with a focus on civil litigation. During the period 1991 to 2001, she practiced law with the Law Society of Upper Canada.

Gerald Naud

Gerald Naud graduated from the University of Ottawa with a degree in civil law. Following graduation he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for numerous years. Most recently he held the position of Director of Business Development for CCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil (Part-Time)

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in psychology and criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor Law School. Ms. Neil had worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programmes in

various ministries. Since her retirement she has been engaged part-time in consulting work, specializing in human resource management.

Patrice C. Noé (Part-Time)

Patrice C. Noé has been called to the bars of the Provinces of Ontario and Alberta and the State of New York. She served as Solicitor for Hamilton and York and Edmonton, among her vast experience working with Municipalities. She had also been a member of the local property standards committee and the committee of adjustment. She has had numerous community involvements. She was Rule of Law Liaison in Armenia for the American Bar Association and Project Director for IFES in Ukraine.

Babatunde Olokun

Babatunde M. Olokun is a graduate of the University of Tuskegee, Alabama (B.Sc.1978), John Marshall Law School, Atlanta, U.S.A (JD. Law 1983) and the Nigerian Law School, (B.L. 1986). He carried on a general law practice in Nigeria from 1986 to 1999 until his appointment to the Nigeria Federal House of Representatives, where he served until 2003. Mr. Olokun was a volunteer Community Legal Worker with the Rexdale Community Legal Clinic until his appointment in 2004 with the Ontario Rental Housing Tribunal.

Pina Sauro *(term ended September 8, 2005)*

Pina Sauro graduated from Toronto's Ryerson University with a Bachelor of Social Work Degree and a Diploma in Human Psychology. Ms. Sauro has 17 years' experience in municipal government with the City of London. While there, Ms. Sauro held a variety of roles including policy and program development, training, communications, organizational development, financial assistance, and funding allocation. Ms. Sauro's focus has been in the field of community and social services for children, youth, families, and seniors, including social assistance, recreation and long-term care. Through her role in the allocation of provincial and municipal funding, Ms. Sauro had the opportunity to work with many community organizations to address community needs in areas such as child care, homelessness, mental health, diversity, and street youth services.

Sherry Senis *(term ended June 22, 2005)*

Sherry Senis has 12 years experience managing all aspects of a diversified business portfolio. As a former owner/broker of a real estate firm, she managed human resources, liability

management, company structuring and business planning. As well as receiving her certificates in business administration, mortgage financing, property law and appraisal, she obtained her designation as a market value appraiser (MVA) in 1995. As a municipal councillor, Ms. Senis served as chair and/or member of several committees; director of the Social Development Council; vice chair of the Pickering Hydro Liaison Committee; and member of the Personnel and Performance Appraisal Committee.

Freda Shamatutu

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia obtained in 1981. She practiced law in Zambia for 20 years before migrating to Canada. Ms. Shamatutu has spent most of her professional career at senior management level working for various organisations, including as Chief Legal Advisor and Legal Counsel for the Zambian national airline, as Board Secretary and Director Support Services for Zambia Revenue Authority and as Executive Director for the Advanced Legal Training Institute in Zambia (the Institute trains law graduates in bar admission courses and also provides lawyers with continuing legal education). Before her appointment as an adjudicator with the Tribunal, Ms. Shamatutu was employed as Office Manager for a law firm in Toronto.

Andi Shi

Andi Shi has a diverse range of professional experience. He studied Biology and Biochemistry. He has worked as a researcher in community policing, a business manager, the executive director of a non-profit organization and a multidisciplinary consultant. He has been on the boards of a number of charitable/non-profit organizations as well. Prior to his appointment to the Tribunal, he served as a Member of the Council of the College of Opticians of Ontario. Mr. Shi holds a Bachelor of Science degree from Eastern China Normal University and a Master of Science degree from the University of Regina.

Valarie Steele

Valarie Steele worked for several years in the financial (stockbrokerage) industry, specializing in the syndication of new issues. An experienced Human Resources consultant, she owned and operated a placement agency that supplied staff for the office environment primarily in the financial sector. Ms. Steele has volunteered extensively in the community for over three decades where she has been involved in a number of projects that benefited the community.

She is past president of the Jamaican Canadian Association and Chairperson of the Community Police Liaison Committee at Division 13.

Julius Suraski (Part-Time) *(term ended November 9, 2005)*

Julius Suraski is a practicing insurance broker with an extensive background in accounting, claims management and dispute resolution. Mr. Suraski is a graduate of the University of Toronto (Bachelor of Commerce degree in 1972), the Canadian Institute of Chartered Accountants in 1974, and York University in 1998, holding a Certificate in Dispute Resolution. He is a member of the Arbitration and Mediation Institute of Ontario. Mr. Suraski is a co-founder of the Collision Industry Standards Council of Ontario and an industry spokesperson, promoting consumer protection through the implementation of safe repair standards and ethical business practices. He has published several works including *Audit Programs for Colleges and Universities* (1984) and *The Decline of the Auto Repair Industry in Ontario* (1997). He is a frequent contributor to various insurance trade publications. Mr. Suraski is committed to community service and has contributed in excess of 4,000 hours of volunteer service at the Baycrest Centre for Geriatric Care in Toronto.

Najibullah Tahiri

For over 20 years, Najib Tahiri has been involved in the community and social justice issues affecting new Canadians. In the 1980s, he served as the President of the Afghan Association on Ontario, a non-profit organization responding to the needs and aspirations of Afghan-Canadians in Ontario. Between 1992 and 2003, he served as a Member of the Immigration and Refugee Board, the largest Canadian tribunal making decisions on immigration and refugee matters. Mr. Tahiri was a volunteer member at various community-based organizations including the North York Cross-Cultural Committee, North York Inter-Agency and Community Council, and Canadian Council for Refugees. He holds a Bachelor of Science degree in Mechanical Engineering from Kabul University in Afghanistan.

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, Mr. Trueman was elected to serve as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C.

Elizabeth Usprich

Elizabeth Usprich attended the University of Western Ontario and earned degrees in Psychology (B.A.) and Law (LL.B.). In addition to practicing as a lawyer, Ms. Usprich has also taught law at the College level. She was actively involved in the London community and has sat on several Boards of Directors.

Jonelle Van Delft

Jonelle Van Delft graduated from Queen's University with an Honours degree in History, a Special Field Concentration in Women's Studies and a Bachelor of Laws degree. Before her appointment to the Tribunal, she practiced Clinic Law under the Ontario Legal Aid Plan.

Rosa Votta

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the *Employment Standards Act*.

Brad Wallace

Brad J. Wallace is a graduate of the University of Western Ontario (B.A. (Hons.) Politics, 1996) and the University of Windsor (LL.B, 2001). Before his appointment to the Ontario Rental Housing Tribunal, Mr. Wallace practiced primarily in the areas of insurance defense, plaintiff personal injury, social assistance and landlord-tenant law. Brad Wallace is a former member of the Board of Directors of the London and Area Food Bank, and a past member of the Board for the London Training Centre.

Mike Welsh (Part-Time)

Graduate of the University of Waterloo in Environmental Studies, (B.E.S.) 1980. Operations Manager, FedEx Logistics, at the John Deere Welland Works, Welland Ontario, 1995-2004. Currently, Mr. Welsh is a transportation consultant and planner. Vice Chairman, Niagara On The Lake Committee Of Adjustment, 1997-2004. Member of Niagara on The Lake Irrigation Committee, 1994-1997. Member of Niagara on the Lake Fence Arbitration Committee, 1991-1994. Member, Niagara on The Lake Traffic and Parking Committee, 1988-1990.

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ANNUAL REPORT 2006-2007

Landlord and Tenant Board

**(Formerly, the Ontario Rental
Housing Tribunal)**



**Ministry of
Municipal Affairs
and Housing**

Office of the Minister
777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. 416 585 7000
Fax 416 585 6470
www.mah.gov.on.ca

**Ministère des
Affaires municipales
et du Logement**

Bureau du ministre
777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. 416 585 7000
Téléc. 416 585 6470
www.mah.gov.on.ca



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Landlord and Tenant Board for the 2006-2007 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'J. Watson'.

Hon. Jim Watson

Minister of Municipal Affairs and Housing

**Landlord and
Tenant Board**

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Commission de la
location immobilière**

777, rue Bay, 12^e étage
Toronto (Ontario) M5G 2E5
Tel: 416-585-7295
Telec: 416-585-6363



TO THE HONOURABLE JOHN GERRETSEN
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Landlord and Tenant Board's Annual Report for the
2006-2007 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Lilian Ma".

Dr. Lilian Ma
Chair
Landlord and Tenant Board

Chair's Message

This is the ninth Annual Report of the Ontario Rental Housing Tribunal (the Tribunal) and the first Annual Report of the Landlord and Tenant Board (the Board). On January 31, 2007, the *Residential Tenancies Act, 2006* (the RTA) was proclaimed. The RTA provides that the Tribunal, created under the *Tenant Protection Act, 1997* (the TPA), is continued under the name Landlord and Tenant Board.

The new Act, the RTA, includes some significant changes from the TPA. The default process is no longer law in Ontario which means that all applications are now scheduled for hearings. Furthermore, if a landlord files an application to terminate the tenancy and evict the tenant for non-payment of rent and/or an application to collect rent the tenant owes, the tenant can now, during the hearing of that application, raise any issues, such as maintenance, that they could have raised, previously, only by filing their own application. This new right is found in sections 82 and 87 of the RTA.

Another significant change is in the area of above guideline rent increases. To obtain a rent increase above the guideline, the landlord must now prove that the capital expenditure is necessary. Once a capital expenditure is completely paid for, the amount of the rent increase attributable to the capital expenditure should be removed from the tenant's rent.

The RTA also encourages landlords and tenants to attempt to resolve their difficulties. Section 206 allows tenants and landlords to agree to a payment plan and submit their plan to the Board to be included in a Board order without having to hold a hearing.

The mission of the Board is to inform landlords and tenants about their rights and responsibilities under the RTA and provide balanced and timely dispute resolution services in accordance with the law. Board Members and staff are dedicated to providing services to all of our clients, in keeping with the principles of timeliness, accessibility,

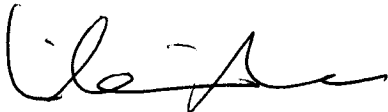
fairness and customer focus. Training and professional development provide the foundation for the Board to deliver the goals set out in the Board's mission statement.

Much of last year was spent preparing for the implementation of the new Act. Our activities included extensive stakeholder consultation on the revised forms, Rules of Practice and Interpretation Guidelines. We developed new procedures and enhanced staff and Member training. At the same time, we continued administering the TPA.

While this report details our activities from April 1, 2006 to March 31, 2007, the data on RTA cases are insufficient to provide any meaningful conclusions at the time of writing, as applications filed under the RTA were not heard until sometime in March 2007. Thus, the statistical analysis and graphs included in this report are based on data collected about applications filed under the TPA.

We look forward to continuing our new duties under the RTA. This has been an exciting and challenging year of change and learning. We are committed to continuing to effectively implement the new legislation.

Sincerely,

A handwritten signature in black ink, appearing to read 'Lilian Ma', with a stylized flourish at the end.

Dr. Lilian Ma

Chair

Landlord and Tenant Board

A TRANSITIONAL YEAR

The 2006-2007 fiscal year has been a period of transition for our organization. From April 1, 2006 to January 30, 2007, we were operating as the Ontario Rental Housing Tribunal (the ORHT) and were governed by the *Tenant Protection Act, 1997* (the TPA).

On January 31, 2007, the government proclaimed the *Residential Tenancies Act, 2006* (the RTA) which replaced the TPA and formed the Landlord and Tenant Board (the LTB), replacing the ORHT.

The transition to the LTB has been a very smooth one, which is due in large part to the efforts of our staff and Members to accomplish a significant amount of work in a relatively short period of time. In less than eight months and in consultation with our stakeholders, we revised our Rules of Practice, Interpretation Guidelines and our existing forms, and developed new material as required by the RTA. We also revised most of our public literature and developed new ones (including one multi-language overview brochure), posted a new website for the Board, made the necessary systems changes and trained our staff and Members.

In planning for the implementation of the new Act, we sought and received approval from the Ministry of Municipal Affairs and Housing for 15 additional full-time Member equivalents to handle the increased number of hearings and the potential increase in hearing length, resulting from the legislative changes (see **Legislative Changes in the Enabling Act** below).

Over the past year, we have also developed a number of policy documents to guide adjudicators and staff in the transition of our practice from the TPA to the RTA. For example, we developed an Adjudicative Strategy to ensure the effective operation of the Board, based on the following four principles: timeliness, accessibility, fairness and customer focus. Another example is our Written Reasons Policy, which was developed to

assist Members in determining when written reasons for a decision/order must or should be given and how and in what form those written reasons should be given.

In preparing to implement the RTA, the senior management of the Tribunal also met to develop the following mission statement for the new Board:

The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

The focus of this report will be on our business under the TPA as this was our enabling legislation for most of the fiscal year. We have been working under the RTA for only two months (February and March 2007); therefore, the scope of our experience with that legislation is limited in this report. However, the following paragraphs highlight the changes envisaged by the legislation.

LEGISLATIVE CHANGES IN THE ENABLING ACT

Some of the legislative changes from the TPA to the RTA which we expect to have the greatest impact include:

- Removal of the default process and sending all applications to hearing
- Allowing tenants to raise maintenance and other issues allowed under the RTA, during the hearing of the landlord's application for eviction due to non-payment of rent and/or for arrears of rent, without having to file their own application, as was required under the TPA
- Changes to the above guideline increase process including a "costs-no-longer-borne" clause and a "necessary" provision

- Shorter termination of tenancy times for serious health and safety issues, including illegal acts that are drug related

For a more detailed look at the changes to the legislation, consult our brochure, “A Guide to the Residential Tenancies Act” which is available on our new website at www.LTB.gov.on.ca.

THE ROLE OF THE ONTARIO RENTAL HOUSING TRIBUNAL AND THE ROLE OF THE LANDLORD AND TENANT BOARD

The role of the Tribunal has been to:

- Resolve tenant and landlord disputes through either adjudication or mediation
- Determine the legal above guideline rent increases with respect to residential units
- Provide landlords and tenants with information about their rights and obligations

The Tribunal/Board offers a process that is more efficient than previous systems for resolving landlord and tenant matters.

Section 1 of the RTA sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

The newly created Landlord and Tenant Board (the LTB) derives its mandate from the RTA and has a similar role to that of the Ontario Rental Housing Tribunal (the ORHT) under the TPA.

The Adjudication Process

The Tribunal was designed to create a more informal environment for the resolution of disputes between landlords and tenants. The same holds true for the Board. Like the Tribunal, the Board is also designed to handle a large volume of cases given the high percentage of renters in Ontario (approximately 32% of the population). Thus, the application resolution process is designed to be timely, while ensuring the necessary attention to the quality of our services and decisions.

Under the adjudication process:

- Disputes are heard in public buildings rather than courtrooms;
- Tenants may choose to represent themselves and may consult an on-site legal aid representative provided by Legal Aid Ontario;
- The more conciliatory approach of voluntary mediation is encouraged before the hearing process begins or on the day of the hearing if the matter lends itself to mediation.

Members of the Tribunal/Board are adjudicators. They receive legal and other training from the Board. Adjudicators have the experience and knowledge to deal fairly and effectively with the issues that come before them. Members are appointed by Order-in-Council after recommendation by the Tribunal/Board, based on a rigorous and competitive interview and selection process. Most Members work full-time but there are also part-time Members. They are located in different geographical areas of the province.

Members from across the province meet formally two or three times a year for professional development. They also meet more frequently and informally in their regions. Many of them sit on committees and working groups such as the Rules and Guidelines Committee, the CaseLoad Order Group (to review the format of our orders), the Selected Decisions Committee, the Adjudicative Best Practices Committee and other groups that gather opinions on specific issues. Meetings of our Members also contain elements of training such as order and reason writing, the conduct of a hearing, natural justice and any emerging issues.

Rule and Guidelines making is an important task for the Tribunal/Board in order to achieve consistency and coherence in our decision-making. Last year, we started a series of roundtable discussions with our Vice Chairs and Members to discuss issues of importance to adjudication. This year, we have continued this process. When there is consensus or a preferred position is reached with respect to policy and interpretation of the legislation, matters are referred to the Rules and Guidelines Committee. Before new or proposed changes to Rules and Guidelines are finalized, they are vetted through stakeholders prior to being released to the public and posted on our website.

The Mediation Process

Mediation has been offered under the TPA and continues to be offered under the new RTA. It is often used to clarify issues and reduce areas of dispute so that the hearing may proceed more expeditiously. Mediated settlements are more flexible in their content than orders of the Tribunal/Board. This allows parties to participate fully in shaping and reaching a satisfactory resolution of their difficulties. Mediators use both their knowledge of the law and their negotiation skills to assist landlords and tenants in resolving their applications and their concerns.

During the fiscal year 2006/07, approximately 17% of the Tribunal's applications were successfully mediated. We are trying to focus mediation on more complex applications.

Many tenant applications benefit greatly from mediation and we concentrate much of our resources on these. We have had success in mediating Above Guideline Increase applications, which avoids lengthy hearings and provides a quicker resolution of the issues.

Last year, we initiated a program review of our Mediation service to help us raise the profile of mediation and enhance its place within our program, to identify the training needs of our mediators and to produce a set of best practices and professional standards for mediation. This project will continue into the coming year.

Tribunal/Board Locations

There are eight Regional Offices where landlords and tenants can file applications, have their questions answered by a customer service representative and attend hearings.

Most hearings are held in these Regional Offices located in the following areas:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

In addition, there are many off-site hearing locations to which our Members and mediators travel to conduct hearings on a regular basis. These include: Barrie, Belleville, Bracebridge, Brantford, Brockville, Burlington, Chatham-Kent, Cobourg, Cornwall, Goderich, Guelph, Hawkesbury, Kingston, Kitchener, Lindsay, Newmarket, North Bay, Orangeville, Owen Sound, Pembroke, Perth, Peterborough, Port Elgin, Sarnia, Sault Ste.

Marie, Simcoe, St. Catharines, St. Thomas, Stratford, Timmins, Thunder Bay, Windsor, Woodstock, Whitby and Woodstock.

The Board/Tribunal has partnered with ServiceOntario to provide services in approximately 90 locations across Ontario where applications can be received. To find the addresses of these ServiceOntario Centres, please visit our website at www.LTB.gov.on.ca, or contact our call centre at 416-645-8080 or 1-888-332-3234.

We have strived to make our services more accessible to Ontarians across the province.

Customer Service

Both the TPA and the RTA include a mandate for the Tribunal/Board to provide information to landlords and tenants about their rights and obligations under the legislation. In fulfilling this mandate, the Tribunal/Board's virtual Call Centre handles customer inquiries through toll free lines. In the Greater Toronto Area, the phone number is 416-645-8080; outside Toronto the number is 1-888-332-3234. Customer service representatives are available during regular business hours. An automated telephone service answers frequently asked questions 24 hours a day, 7 days a week. This year, the Tribunal responded to approximately 500,000 telephone calls. Members of the public can sometimes resolve their disputes after being informed of the law. Also, if they have filed applications with us, they can inquire about the status of their case via telephone.

E-Government

The need to redesign the website to explain and offer information about the new law presented an opportunity for the Tribunal/Board to make significant changes to the website. The improved website has enhanced accessibility by making it easier and faster for clients to find information.

The Board's website, www.LTB.gov.on.ca, is visited almost one million times each month. Clients can find information about the progress of their application, the date of their hearing and whether an order has been issued. As well, all Board forms and brochures, the Rules of Practice, Interpretation Guidelines and complaint procedures are available on the website.

The Board will be implementing a new case management system early next year. This will allow us to explore electronic filing, redact orders so that they can be posted on the Internet while protecting individual privacy, and move to a workflow model that ensures a smooth and effective work environment.

French Language Services

The Tribunal/Board provides service in both official languages in accordance with the *French Language Services Act* (the FLSA). All offices in areas designated by the FLSA have bilingual staff available to assist our French-speaking clients. In 2006, the Tribunal adopted a Rule of Practice to set out its policy concerning the provision of French language services. Where a party is entitled to and has requested French language service, the Tribunal/Board attempts to schedule a French-speaking Member to hear the case. Where this is not possible within a reasonable period of time, the Tribunal/Board will schedule the matter before an English-speaking Member and will ensure that an interpreter is present. All correspondence and decisions of the Tribunal/Board are provided in French to a party who has requested and is entitled to French language services.

Budget and Revenues

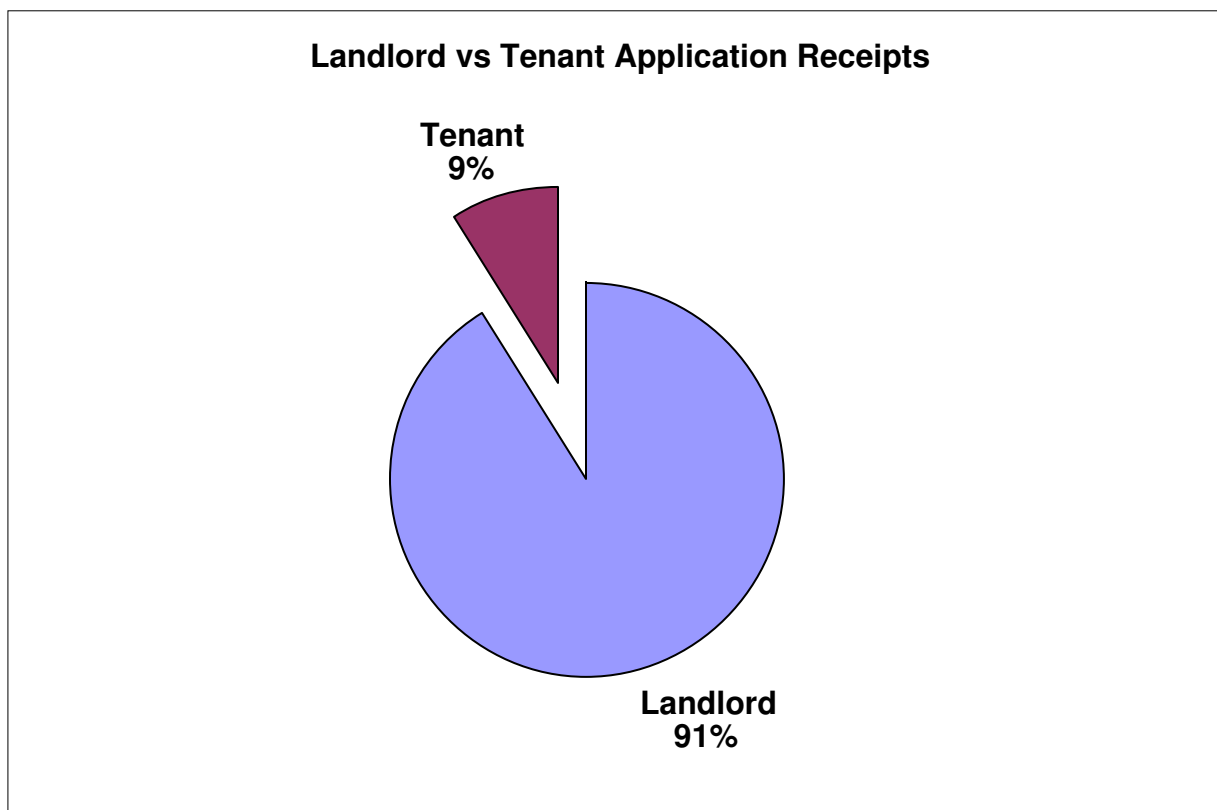
The budget expenditures for the Tribunal/Board for 2006-2007 were \$25.7M. Of this, \$17.7M was for salaries and wages and the remaining \$8M can be attributed to other direct operating expenses. The Tribunal/Board brings in over \$10M in revenue.

Statistical Information for Applications filed under the TPA

Application Receipts

From April 1, 2006 to January 30, 2007, the Tribunal received 68,123 TPA applications. From January 31, 2007 to March 31, 2007, the Board received 11,578 applications under the RTA.

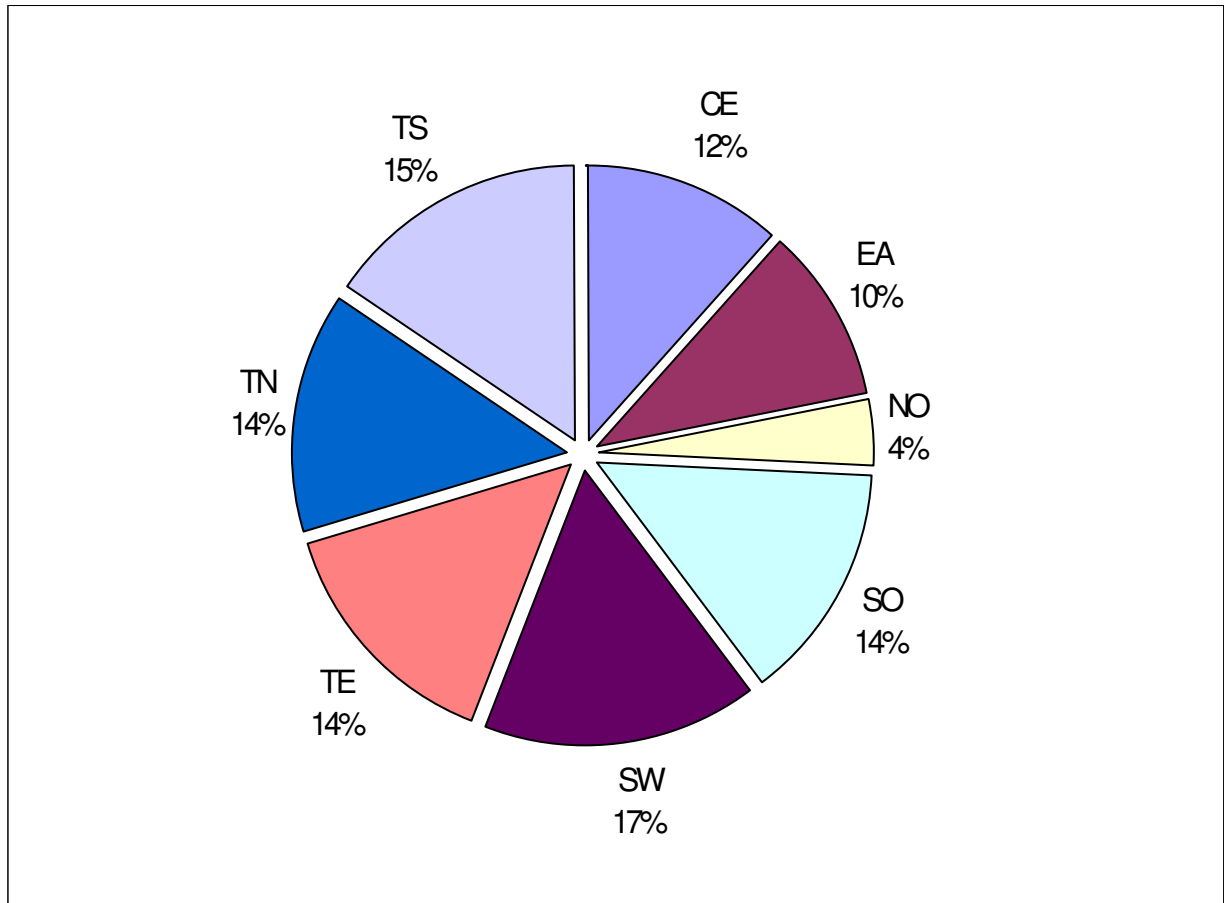
The distribution of application receipts for the 2006-07 fiscal year (including those filed under the RTA) has remained more or less the same from 2001 and are in the following profile:



The regional distribution of applications filed under the TPA is as follows:

(Note: The regional distribution of applications filed under the RTA, based on the data collected up to March 2007, is not significantly different, with no more than a 4% fluctuation per region.)

REGIONAL DISTRIBUTION OF TPA APPLICATIONS



CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwest; TE to Toronto East; TN to Toronto North; and TS to Toronto South

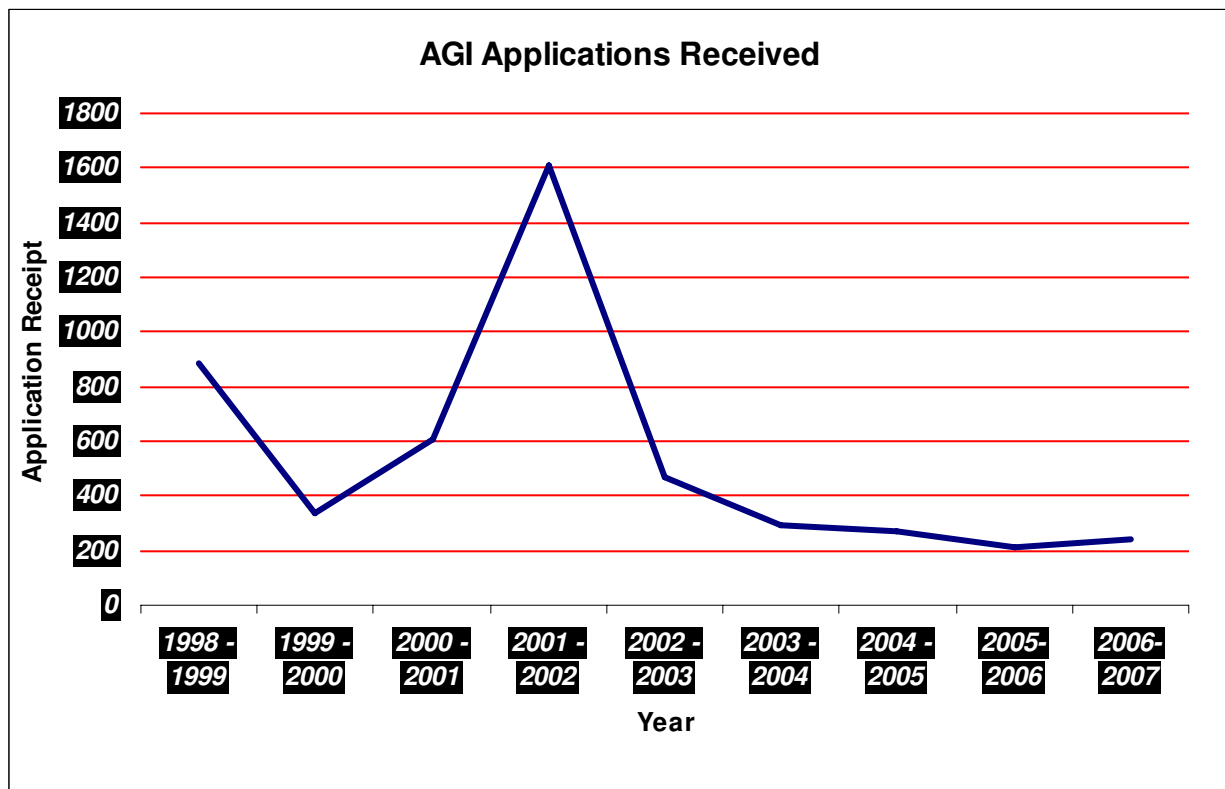
Eviction applications have been the bulk of the Tribunal's workload since the Tribunal began in 1998. This year, the trend has continued. Of the total applications received by the Tribunal, 74.4% were for termination of tenancies because of arrears of rent. Tenant applications accounted for approximately 9% of all applications filed.

Above Guideline Rent Increase Applications

Since 2001 the number of applications for rent increase above the guideline has been decreasing. This year is no exception to that trend, with only 242 applications of this type received by the Tribunal. (Note: from January 31 to March 31, 2007, the Board received 22 applications of this type under the RTA.)

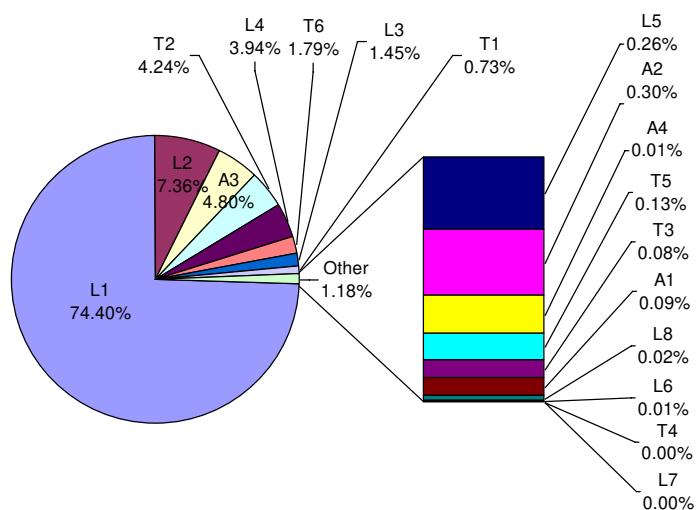
While the number of above guideline rent increase applications make up less than 1% of all applications received, these applications account for 21% of the Tribunal's file preparation and hearing time for staff and Members.

Mediation is helping us with the workload on above guideline rent increase applications, and we continue to look for other ways to increase our efficiency and speed up the resolution process.



Workload for Fiscal 2006/2007 Distribution of TPA Application Receipts

The charts below show the distribution of the Tribunal's TPA workload, by type of application and disposition method (default or hearing), up to January 30, 2007.



Case Type		#Cases	#Defaults	#Hearings
L1	L1 - Term. and Non-Payment of Rent	50,683	24,779	21,661
L2	L2 - Terminate Tenancy & Evict	5,089	661	3,677
A3	A3 - Combined Application	3,268	267	2,669
T2	T2 - Tenant Rights	2,887	0	2,330
L4	L4 - Term. Tenancy: Failed Settlement	2,683	2,186	984
T6	T6 - Maintenance	1,217	1	966
L3	L3 - Term. Tenant. gave Notice	991	657	416
T1	T1 - Rebate	498	27	396
L5	L5 - Rent Increase above Guidelines	242	0	245
A2	A2 - Sublet or Assignment	216	33	167
A4	A4 - Vary Rent Reduction Amount	125	6	87
T5	T5 - Bad faith Notice of Term.	88	0	69
T3	T3 - Rent Reduction	57	0	46
A1	A1 - Determine Whether Act Applies	58	0	52
L8	L8 - Tenant Changed Locks	16	0	12
L6	L6 - Review of Provincial Work Order	5	0	4
L7	L7 - Transfer Tenant to Care Home	0	0	0
T4	T4 - Failed Rent Incr above Guideline	0	0	0
		68,123	28,617	33,781

Application Resolution

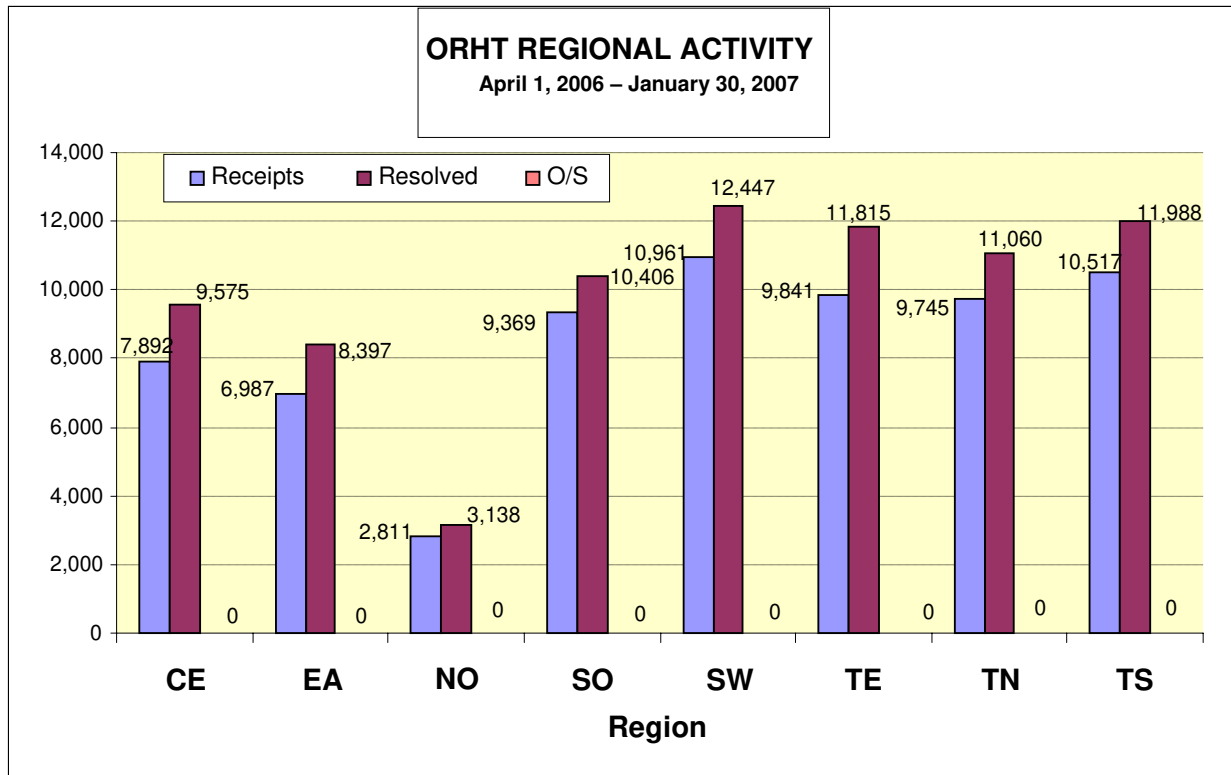
The Tribunal has been successful in resolving applications quickly. On average, the Tribunal maintains only one month's receipts as open files. Most orders are issued within 20 days of filing the application and even more complex orders are issued within 25 days. This year, less than 4,500 TPA applications remained unresolved as of March 31, 2007.

From April 1, 2006 to January 30, 2007, the Tribunal received 68,123 TPA applications and resolved 78,826. (Some applications may generate more than one resolution because of the re-opening, set aside and internal review processes.) From February 1, 2007 to March 31, 2007, an additional 6,036 TPA applications were resolved. Also, from January 31, 2007 to March 31, 2007, the Board received 11,578 applications under the RTA and resolved 6,414.

In total, for the fiscal year 2006-2007, we received 79,701 applications and resolved 91,276 applications.

The following chart indicates that TPA receipts and resolutions from April 1, 2006 to January 30, 2007 remained constant:

TPA APPLICATION RESOLUTION



CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwest; TE to Toronto East; TN to Toronto North; and TS to Toronto South

ORDER SUMMARIES

Landlord Application SWL-81146-SA Sections 69 & 86(1), TPA

The landlord applied to evict the tenant for failing to pay the rent. The tenant did not file a dispute on time, so a default order was issued terminating the tenancy. The tenant filed a motion to set-aside the default order.

At the hearing, the parties asked the Tribunal to issue a consent order requiring the tenant to make certain payments by specific dates, failing which the tenancy would terminate automatically (the day after the missed payment was due) and the landlord could apply to the Sheriff for eviction.

The Tribunal refused to issue the consent order as requested by the parties because in the event of a dispute about payment, there would be no opportunity for the tenant to prove that payments were made as required by the order. In addition, this would circumvent the process in section 77 of the TPA that: i) requires the landlord to prove to the Tribunal that the tenant breached the order and, ii) allows a tenant to file a set aside motion.

Although parties are free to reach whatever agreements they wish through mediation, the Tribunal found that if parties wish to have their agreement included in a “consent order”, the Tribunal is bound by the provisions in the legislation. Apart from section 77, there is no authority for an order with more than one possible termination date.

Landlord Application TSL-84285 Sections 51 & 69, TPA

The landlord applied for an order evicting the tenant because the landlord required possession of the rental unit for the purpose of residential occupation.

The landlord owned a two-storey, four bedroom family home. The landlord's family lived on the second floor. The tenant occupied the main floor and ran an in-home day care in her unit. The tenant argued that the TPA did not apply to her rental unit, as she occupied the rental unit primarily for business purposes.

In making a decision, the Tribunal considered the exemption in subsection 3(j) of the TPA which provides that the TPA does not apply to a rental unit occupied for business or agricultural purposes with living accommodation attached, if the occupancy is under a single lease.

The Tribunal found that the exemption in clause 3(j) did not apply to this situation, because the residence and the in-home daycare formed a single unit, there was no separation between them, and the nature of the business itself was indicative of the residential character of the complex.

The Tribunal had jurisdiction to deal with the landlord's application. The Tribunal found that the landlord in good faith required possession of the rental unit for personal occupation by his family. An order was issued terminating the tenancy and evicting the tenant.

Landlord Application

SWL-81881-VO

Sections 72(6), TPA

The Tribunal issued an order terminating the tenancy and evicting the tenant because she failed to pay the rent. The tenant filed a motion to void the order because before the order became enforceable, the tenant paid the amount required to void the order under subsection 72(4) of the TPA.

The tenant filed an affidavit setting out the payments that she had made to the landlord and copies of her rent receipts as proof of those payments. The tenant pointed out that on the June 29th receipt, the landlord indicated that the balance owing was \$86.00. The next

receipt, dated July 6th, indicated that the tenant had paid the outstanding amount of \$86.00

In order to void the order, the tenant had to pay \$1761 before July 7, 2006. When all the tenant's receipts were added together, it appeared that the tenant only paid \$1711. The tenant was \$50 short.

The Tribunal found that the landlord's representation to the tenant that the amount owing was \$86 as of June 29th, caused the tenant to only pay \$86 and resulted in the \$50 shortfall. Although the tenant did not pay the full amount owing, the Tribunal found that under the principles of equity it would be unfair to let the landlord go back on the representation he made on the receipt. An order was issued voiding the eviction order.

Tenant Application NOT-02386 Sections 32(1)5, 32(1)6 & 35, TPA

The tenant applied for an order determining that the landlord substantially interfered with the tenant's reasonable enjoyment and deliberately interfered with the supply of a vital service because the city shut off her water for two hours.

According to the landlord, the tenant signed an application to rent the apartment that included the terms "+ gas, hydro and water" after the "monthly rent". The landlord claimed to have explained to the tenant that the gas and hydro had to be transferred into the tenant's own name, but there was no need to change the water account because the city sends the bills directly to the "occupant" of the rental unit.

The tenant claimed that she was unaware that her tenancy agreement provided that she was responsible for paying the city for the cost of water, nor could she recall a discussion with the landlord about water costs.

Based on the documentary evidence and the landlord's historical pattern of renting out the units with utilities paid separately, the Tribunal preferred the testimony of the landlord. The Tribunal found that the tenancy agreement required the tenant to pay the gas, water and hydro costs directly to the utility companies; the tenant's failure to pay the water bill caused the city to shut off the water service; and the landlord could not be blamed for the tenant's inconvenience.

Landlord Application SOL-46391 Sections 64, 69, 86(1), TPA

The landlord applied to evict the tenants of a site in a mobile home park because the tenants failed to pay the rent and substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the landlord.

The application for arrears of rent was based on a notice of termination for failing to pay rent and membership fees. The Tribunal found that "membership fees" do not meet the definition of rent as set out in the *Tenant Protection Act* (the TPA) and therefore, the notice of termination for non-payment of rent was invalid.

There were two issues at the heart of the substantial interference application: the tenants' failure to pay for property taxes and the tenants' failure to pay water testing charges.

The landlord claimed that the tenants were responsible for paying the property taxes on both the land and the tenants' structure. The Tribunal, however, found that the land portion of the taxes was included in the tenants' rent and that the tenants were *only* responsible for paying the property taxes for the assessed value of the structure in which they live. The tenants failed to pay even the lesser amount and the Tribunal found that this constituted interference with an interest of the landlord. The landlord was asked to reassess the tenants' property taxes in accordance with the order and inform the tenants of the correct amount owing.

Although the water testing charges claimed by the landlord were reasonable, the Tribunal found that the landlord's formula for apportioning 80% of the charges to the *permanent* residents and only 20% of the charges to the corporation was unreasonable. Given the number of seasonal occupants and weekend visitors, as well as the extensive commercial operations, the Tribunal found that it was likely that the permanent residents would consume no more than 50% of the water. Based on a 50% consumption rate, the permanent residents should be charged no more than 50% of the cost for water testing. Since the water testing costs apportioned to the tenants were not reasonable, the Tribunal found that the tenants' failure to pay those costs did not amount to substantial interference.

Landlord Application TEL-62456 Sections 51, 69 & 86(1) TPA

The landlord applied to evict the tenants because the landlord required possession of the rental unit and because the tenants did not pay the rent.

The landlord gave the tenants a notice increasing the tenants' rent by 2.5% effective January 1, 2005. The tenants, however, refused to pay the increase because it exceeded the annual guideline amount of 1.5%. The Tribunal found that the notice of rent increase was defective because it increased the rent by more than the guideline amount and therefore, the landlord could not collect the increase. The Tribunal found that the tenants were not in arrears of rent.

The landlord also gave the tenants a notice of termination for personal use but failed to specify who would be moving into the unit. In response to the notice, the tenants wrote a letter to the landlord's lawyer pointing out that the notice was incomplete and asking for clarification as to who would be moving into the rental unit. The agent failed to respond to the tenants' letter. It wasn't until the day of the hearing that the landlord clarified that the other part owner of the property would be moving into the unit with her daughters.

The Tribunal found that the notice of termination was defective because it did not identify both landlords and did not specify the identity of the persons who intended to occupy the rental unit.

Tenant Application

SOT-05733

Sections 32(1)6 & 35, TPA

The tenant applied for an order determining that the landlord substantially interfered with the tenant's reasonable enjoyment by charging her more for parking than other tenants in building. The tenant alleged that the landlord was discriminating against her because she was on social assistance.

Out of 120 units in the building, approximately ten parties paid a lower parking rate than the tenant. The tenant paid the same parking rate since the start of her tenancy eleven years ago.

Since the landlord established that numerous other tenants paid the same parking rate, the Tribunal was not convinced that the landlord was engaging in discrimination against the tenant. The Tribunal found that the landlord did not interfere with the tenant's reasonable enjoyment by charging her more for parking than some other tenants, nor did the landlord discriminate against the tenant because she receives social assistance.

Landlord Application

TEL-61885

Sections 62 & 69, TPA

The landlord applied for an order evicting the tenant because the tenant committed an illegal act involving drug trafficking.

The landlord provided evidence to show that the tenant had pleaded guilty to two offences: possession of hashish and possession of hashish for the purpose of trafficking. The landlord also provided evidence of complaints from other residents in the complex

about the number of people who visited the tenant's unit, and the fact that these people did not live in the complex. The other residents in the complex expressed concern for their children's safety.

The tenant admitted selling drugs in the complex but asked for relief from eviction. The tenant lived in the residential complex for 17 years and suffered from many illnesses. The tenant's representative argued that the tenant's offence was a one-time occurrence and the tenant had been punished for her illegal act by the courts. The representative also suggested that the tenant would not re-offend.

The Tribunal found that the tenant committed an illegal act at the residential complex.

The Tribunal refused to grant the tenant relief from eviction because the landlord and the Tribunal have the duty to protect the other residents in the complex. The Tribunal did, however, delay the eviction date to give the tenant an opportunity to find alternate living accommodation.

Landlord Application

TEL-64464

Section 80 TPA

The landlord applied for an order to evict the superintendents because their employment had ended.

The landlord terminated the superintendents' employment and informed them that they could remain in the unit for one week after the termination date free of charge, as stipulated by the TPA. The superintendents asked the landlord to allow them to live in the unit for several additional weeks in order to give them sufficient time to find alternate accommodation.

The landlord agreed to allow the superintendents to stay an extra few weeks on compassionate grounds. The landlord accepted “compensation” for these additional weeks but refused the superintendents’ later request to become tenants of the rental unit.

The superintendents claimed that by accepting payments for the additional weeks, a new tenancy was created.

In reaching a decision, the Tribunal considered section 45 of the TPA which allows a landlord to collect compensation for the use and occupation of a rental unit by a person who is an unauthorized occupant, or a tenant who does not vacate the unit after the tenancy has been terminated by notice, order or agreement.

The Tribunal determined that although section 45 does not specifically apply to the facts of this case, since the tenancy was not terminated by order, notice or agreement, it does recognize that there are situations where the payment of rent does not create a tenancy. The Tribunal found that the balance of the evidence rebuts any presumption that a new tenancy was created by virtue of the landlord’s acceptance of two payments. An order was issued terminating the tenancy and evicting the superintendents.

Landlord Application TNL-79397-SA Sections 69 & 86(1), TPA

The landlord applied to evict the tenants for non-payment of rent. The tenants did not file a dispute on time and as a result, a default order was issued terminating the tenancy.

The tenants filed a motion to set-aside the default order, claiming that they were unable to participate because they received the notice of hearing late and as a result did not have five days to file a dispute.

Although the legislation provides that when a document is mailed, it is deemed to be received five days after mailing, the Tribunal found that the deeming can be disputed

where there is evidence that the documents were received later. The Tribunal found that the intent of the legislation is to allow tenants five days to prepare and file a dispute. In situations where there is evidence that the tenants intended to dispute the application but they had less than five days, the tenants should be allowed to have a hearing. The set aside motion was granted and the default order was set-aside.

The landlord's application was heard on its merits. The Tribunal found that the tenants failed to pay the rent they owed. An order was issued terminating the tenancy and evicting the tenants.

Tenant Application

TST-08544-RV

Section 21.2, SPPA

The tenant applied for an order determining that the landlord gave a notice of termination for purchaser's personal use in bad faith.

The Tribunal issued an order finding that the landlord had given the tenant notice in bad faith on behalf of the purchaser. The landlord filed a request for review of this order. The landlord claimed the Tribunal erred in finding that the landlord served a bad faith notice on the tenants when there is no requirement in the TPA that a landlord must ensure that the purchaser's intentions are bona fide when giving a notice for purchaser's own use.

Upon review, the Tribunal found that the landlord is not required to ensure that a notice given on behalf of a purchaser is given in good faith. The appropriate test is whether the person requiring possession has a real and genuine desire to occupy the unit. If the purchaser acts in bad faith or fails to occupy the rental unit within a reasonable time, the tenant's claim for compensation is against the purchaser.

The Tribunal found that the purchaser falls within the definition of a landlord as a successor in title to the owner by virtue of the purchase and sale agreement. Based on the

evidence, the Tribunal was satisfied that the purchaser had a notice served on his behalf upon the tenants. The landlord's name was removed from the order and the liability and compensation were ordered exclusively against the purchaser.

Tenant Application

TET-00001

Section 57, RTA

The tenant applied for an order determining that the landlord gave a notice of termination in bad faith.

The rental unit was one of two units in the basement of a house. The landlord lived on the main floor with his wife and children. The landlord gave the tenant a notice to terminate the tenancy because his wife required the rental unit for personal occupation. After the tenant moved out of the rental unit, the tenant discovered that the unit had been rented out.

The landlord explained that when he gave the notice, he and his wife were experiencing marital problems, and in order to comply with a separation agreement and requirements of the children's aid society, his wife needed to move into a separate rental unit. After the tenant moved out, however, circumstances changed. The landlord's wife agreed to accept treatment for a medical disorder and as a result, the wife was no longer required to move into a separate unit.

The Board found that it was the landlord's genuine intent that his wife would move into the rental unit. The fact that the landlord has since rented the unit does not indicate that the notice was given in bad faith at the time it was served. In addition, the fact that the landlord allowed the tenant to reside in the rental unit past the date set out in the notice supported a conclusion the landlord intended no ill will. The Board concluded that the notice was not given in bad faith.

Tenant Application

SOL-00078

Sections 29(1)(6) & 31, RTA

The tenant applied for an order determining that the superintendent had entered the rental unit illegally.

The superintendent, who was new to the building, unlocked the door of the tenant's rental unit to place a parcel inside. The parcel arrived while the superintendent was removing snow. When no one was home to take delivery of the parcel, the postal delivery person was going to take the parcel back to the office to have the tenant retrieve it at a later date. When the superintendent realized this, he opened the door of the rental unit, placed the package inside and relocked the unit. The superintendent believed that he was being helpful, saving the tenant the time of retrieving the parcel later.

When he opened the door, the superintendent set off a silent alarm in the tenant's unit. Both the tenant and the police responded to the alarm. The tenant, a protected refugee, testified that he had endured unpleasant events in his life and that the incident sparked memories of things he had been trying to forget and this made him feel insecure. As a result, the tenant requested that the Board terminate the tenancy.

The Board determined that although the superintendent did enter the unit illegally, the superintendent's actions, under normal circumstances, would not justify termination of the tenancy. However, considering the personal circumstances of the tenant, termination was justified in this case. The Board also determined that it was not appropriate to fine the landlord because there was no intent to injure, nor was it appropriate to require the landlord to pay for the moving truck rental because the landlord was not responsible for the events in the tenant's life. The Board ordered that the tenancy be terminated.

Landlord Application

TEL-00091

Section 64 & 69 RTA

The landlord applied for an order evicting the tenant for substantially interfering with the reasonable enjoyment of other tenants in the residential complex. Specifically, the landlord received complaints from other tenants about excessive noise coming from the rental unit.

At the hearing, the tenant testified that she was willing to take measures to reduce the volume of noise. The tenant's 16 year-old daughter used a wheel chair and as a result, it would be difficult for the tenant to find appropriate accommodation.

Based on the testimony of the building superintendent, letters from the upstairs tenant and the fact that the police attended the unit in response to noise complaints, the Board was satisfied that the tenant or another occupant of the rental unit substantially interfered with the reasonable enjoyment of other tenants in the complex by making excessive noise. The Board granted the tenant relief from eviction because of the tenant's commitment to reducing the level of noise and the difficulty the tenant may have in finding suitable alternative accommodation.

The Board ordered that, for the next six months, the tenant must ensure that there is no excessive noise; where the landlord receives a complaint, the landlord shall make the tenant or other occupants of rental unit aware of the concern; and the tenant or occupant shall immediately take steps to reduce the noise level to a reasonable level. If the tenant breached the conditions in the order, the landlord would be able to apply to the Board under section 78 for an ex parte order terminating the tenancy.

Tenant Application

SOT-00022

Sections 29(1)3 & 31, RTA

The tenant applied for an order determining that the landlord had substantially interfered with the reasonable enjoyment of the rental unit by the tenant or a member of the tenant's household.

The tenant recently became engaged to be married. The tenant intended to live in the rental unit with his wife, although he did not intend to have his wife added to the tenancy agreement as a tenant. The tenancy agreement provided that the fiancée was required to complete an "application for permission to reside." The fiancée completed and submitted the application but it was rejected because of a poor credit history. The landlord informed the tenant that if his wife moved in, the landlord would apply to terminate the tenancy.

At the hearing, the tenant asked the Board to find that the landlord had unlawfully refused to allow his fiancée to move into the rental unit and unlawfully threatened to evict him. The tenant also asked for an order that the landlord stop the activity which prevents his new wife from moving into the rental unit.

The landlord argued that because there are new provisions in the RTA that allow a tenant's spouse to automatically become a tenant in the event that the tenant dies or abandons the rental unit, the tenant's wife was a "prospective tenant". The landlord therefore had the right to refuse the tenant's wife because she did not meet his selection criteria for prospective tenants.

The Board disagreed with the landlord's position. The Board noted that the legislation does not allow landlords to screen *future* prospective tenants, since contrary to the position of the landlord, a future potential tenant is not a "prospective tenant". The Board found that a prospective tenant is someone who is applying to be a tenant, not someone who may, in the future, have the right to become a tenant if certain things happen.

The Board found that the landlord's actions had the effect of substantially interfering with the tenant's reasonable enjoyment of the rental unit, as reasonable enjoyment is the contractual right to have full use of the rental unit for all usual purposes and the tenant was not acting unlawfully. The landlord was ordered to refrain from refusing to allow the tenant's fiancée to move into the rental unit and from threatening eviction.

BIOGRAPHIES

CHAIR

Dr. Lilian Ma, B.Sc., Ph.D., LL.B.

Dr. Lilian Ma, B.Sc., Ph.D., LL.B., came to the ORHT/LTB in 2005 from the Refugee Protection Division of the Immigration and Refugee Board of Canada where she was a Member since 1994. Her 18-year public sector career includes experience in various sectors: member of the Liquor Licence Board of Ontario; Chief of the Public Education Division of the Race Relations Directorate of Multiculturalism Canada of the Secretary of State from 1988 to 1989; and commissioner for the Ontario Human Rights Commission from 1986 to 1988.

Dr. Ma has earned a law degree from the University of Toronto (1992), a doctorate in chemistry from Simon Fraser University (1971) and a Bachelor of Science degree from the University of Hong Kong (1967).

Dr. Ma is a member of the Canadian Bar Association and sat on its Racial Equality Implementation Committee from 2000 to 2004. She was a founding director and held several board positions on the Chinese Canadian National Council from 1980 to 1994, and was a founding director of the National Organization of the Immigrant and Visible Minority Women of Canada from 1986 to 1988. She is also on the Board of Directors on the Council of Canadian Administrative Tribunals and the Society of Ontario Adjudicators and Regulators.

VICE CHAIRS

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the ORHT/LTB she was a part-time professor of Law at Sheridan College and for the past ten years has taught Business Law for Canadian General Accountants. Ms. Beckett brings with her experience gained as an adjudicator to the Boards of Inquiry for the Human Rights Commission.

Eli Fellman

Eli Fellman holds an Honours Degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws Degree (LL.B.) at the University of Ottawa. Prior to his appointment to the ORHT/LTB as an adjudicator, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario bar in 2002, he practiced international trade and customs law in Toronto.

Régent Gagnon

Mr. Gagnon is a graduate of Le Moyne College in Syracuse, N.Y. (B. Sc. Humanities, 1963). He worked in public and private sector organizations in all facets of Human Resources Management until 1985 when he founded his own HR consulting firm. As a recognized expert in HR, Mr. Gagnon was invited to teach HR courses at Carleton and Ryerson Universities. Prior to his appointment to the ORHT/LTB, Mr. Gagnon served as a part-time member of the Assessment Review Board from 1993 to 1999. In addition, he

was a member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton.

Charles Gascoyne

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree in 1983 and a Bachelor of Laws degree in 1986. Mr. Gascoyne is a member of the board of directors of the Essex Law Association and a number of other local community groups.

Murray Wm. Graham

Murray Wm. Graham graduated from York University in 1970 with a Bachelor of Arts degree and from Osgoode Hall Law School in 1973 with a Bachelor of Laws degree. After his call to the Bar in 1975, he practised law in the City of Toronto until 1989. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries.

Sean Henry

Sean Henry is a graduate of the University of Toronto (B.A. Honours), York University (M.B.A.) and Queen's University (LL.B). Mr. Henry carried on a criminal and family law practice before becoming an adjudicator with the Social Benefits Tribunal. Mr. Henry then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing. Mr. Henry was appointed Vice Chair on December 14, 2006.

Guy Savoie

Guy Savoie has held numerous Senior Management positions within both the Financial and Business sectors for the past 17 years. Since 1990 Guy is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post diploma business and marketing programs.

ADJUDICATORS

Joseph A. Berkovits

Joseph A. Berkovits graduated from York University with an Honours B.A. majoring in History and English, and an M.A. and a Ph.D. in History from the University of Toronto. He received a law degree from the University of Toronto, articulated at the Ontario Ministry of the Attorney General and in 2004 was called to the Bar of Ontario.

Louis Bourgon

Louis Bourgon graduated from the University of Ottawa with a Bachelor of Arts (B.A. 1992) and a Bachelor of Laws (LL.B. 1995). He was called to the Ontario bar in 1998. Mr. Bourgon also holds a certificate in Alternative Dispute Resolution from the University of Windsor Faculty of Law.

Before his appointment to the ORHT/LTB, he worked for seven years as legal counsel in the Law Society of Upper Canada's Professional Regulation Division. He also previously served as legal counsel to the Children's Aid Society of Ottawa.

Mr. Bourgon has been an invited speaker at law schools and legal conferences on matters of professional responsibility and discipline.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991 where she served two terms, and then to City of Toronto Council in 1998.

Enza Buffa

Vicenzina Buffa of Toronto served as a Customer Relationship Management Reporting Analyst in the private sector for a world-class call center whose client is primarily Ford Motor Company. Ms. Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with many internal and external clients. She is a certified internal ISO auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

Kim Bugby

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts Degree in Psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms. Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Most recently, Ms. Bugby was employed as a

Community Support Coordinator providing services to persons diagnosed with a serious mental illness.

William Burke

William Burke was employed for 17 plus years in the municipal sector before joining the ORHT/LTB. Mr. Burke was involved in aspects of Municipal Standards, Building Inspections and Law Enforcement during those years. He continues to be a member of the Ontario Association of Property Standards Officers. He served on the Board of Directors of that Association from 2003 –2006, which post he resigned shortly after joining the ORHT/LTB.

Ruth Carey

Ruth Carey holds a Bachelor of Laws (LL.B.) degree from the University of Ottawa, as well as a Bachelor of Arts in Women's Studies and a Bachelor of Science in Forestry (B.Sc.F) from the University of Toronto. She was called to the Bar of Ontario in 1993. From 1996 to 2006 she was the Executive Director of the HIV & AIDS Legal Clinic (Ontario). In the past, she has been a member of the Boards of Directors of a number of community based or charitable organizations including the Northumberland Social Planning Council, Pro Bono Law Ontario, and the Canadian HIV/AIDS Legal Network.

Vincent Ching

Vincent Ching joined the ORHT/LTB after serving for four years as a member of the Social Benefits Tribunal. Prior to that, he held senior positions with the provincial and municipal government for nearly thirty years. He graduated from the University of Toronto with a Masters in Social Work and more recently with a Masters in Theological Studies. He had in-depth knowledge of the voluntary sector and has extensive volunteer

experience in the community, including serving as a board member of the Ontario Trillium Foundation and Agincourt Community Services Association.

Brian Cormier

Brian Cormier has diverse management background attained through a 30-year career at Bell Canada. His last position at Bell was Human Resources Generalist for Ontario Provincial District. His responsibilities included employee development, employee performance review boards, industrial relations support, disability management, and health and safety. Mr. Cormier has studied at Laurentian University, Queen's University Leadership Development, MICA Leadership Effectiveness, and the Bell Institute for Professional Development. Mr. Cormier has been an active community volunteer for over 25 years.

Susan Ellacott

Susan Ellacott is a resident of the Ottawa region and served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. In addition, she completed the Executive Leadership Course at the Canadian Centre for Management Development, received the Canada 125 Award for contributing to the community, and the federal public service Distinctive Service Award in recognition of support to the science and technology community. Ms. Ellacott graduated from Brookfield High School and received her diploma in Business Administration from Algonquin College.

Nancy Fahlgren

Nancy Fahlgren comes to the ORHT/LTB with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as acting chief rent officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Cathryn Forbes

Cathryn Forbes has an extensive adjudication background with the Immigration and Refugee Board and the Ontario Board of Parole. She has received vast specialized training in adjudication and tribunal practices and has a management history within the criminal justice system. Cathryn has volunteered actively in her community with various Boards and organizations and is a graduate of Sheridan and Mohawk Colleges.

Suzy Franklyn

(Part-time; Resigned August 21, 2006)

Ms. Franklyn graduated from Cambrian College of Applied Arts and Technology, Law Clerk program in 1991. Ms. Franklyn has been in private practice, specializing in Real Property Law and Conveyancing since 1991. Suzy recently served as Property Administrator with the City of Greater Sudbury and has held various administrative positions in the past.

Ms. Franklyn graduated from York/Laurentian University's Alternative Dispute Resolution program in 1998, with a specialization in Family Mediation. As an accredited mediator and a recognized expert in the field of A.D.R., Suzy has achieved accreditation

status from both the Ontario Association of Family Mediation and Family Mediation Canada.

Pearl Gréwal

(Part-time)

For the past 31 years, Pearl Grewal has held various roles of increasing and wide ranging responsibility in the Province's various residential tenancies regulatory schemes. From 1998 to 2007, she was a Mediator with the ORHT/LTB. From 1992 to 1998 as a Rent Officer, she adjudicated disputes under the Rent Control Act. From 1987 to 1992, as a Rent Review Administrator, she adjudicated disputes under the *Residential Rent Regulation Act*. These roles have given her in-depth knowledge of residential tenancy law as well as extensive practical experience with quasi-judicial dispute resolution.

Dan Helsberg

(Part-time to Full-time)

Henry Daniel Helsberg, of Lively, is a self-employed financial consultant. Prior to this, Mr. Helsberg was a real estate salesperson for seven years, selling residential and commercial properties in the Sudbury area. Mr. Helsberg has a Master of Arts, Economics from the University of Guelph and has completed Ph.D. course work in Urban and Regional Planning at the University of Waterloo.

Brenna Homeniuk

Brenna Homeniuk is a graduate of the University of Waterloo (B.Sc., 1992; BA., 1996; M.A (Psychology 1998) and the University of Western Ontario (LL.B., 2001).

Ms. Homeniuk was called to the Bar in 2002. Before her appointment to the ORHT/LTB, Ms. Homeniuk practised in the areas of Criminal Law, Family Law, Social Assistance and Landlord-Tenant Law in Southwestern Ontario.

Elki Homs

Elke Homs is an experienced adjudicator, who served as a member of the Immigration & Refugee Board for over 11 years before being appointed to the ORHT/LTB. Elke was educated in Germany and immigrated to Canada in 1968.

Judy Ireland

(Part-time)

Judy Ireland attended the University of Toronto obtaining a Bachelor of Arts (B.A. Hons.) in History in 1964 and a Master of Arts in Education in 1973. Judy was a Vice-Chair of the Social Assistance Review Board from 1992-1998 and a member of the Immigration and Refugee Board of Canada from 1998 to 2006. She has been a volunteer for many years in community organizations.

Linda Joss

(Part-time)

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital in 1961. Mrs. Joss spent ten years in the child care field, supervising programmes for emotionally disturbed children, and working for the Children's Aid Society. After this she joined Metro Toronto's Community Service Department as a manager of hostels. During twenty five years with Community Services, Mrs. Joss managed and developed programs in Metro's four major hostels, including the

opening of two new large facilities. During this time Mrs. Joss was a long term member and chair of the Centennial College Social Service Worker Advisory Board and an Advisory Board member participating in the creation of a new management course for social service staff at George Brown College. Mrs. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Greg Joy

Greg Joy won an Olympic Silver medal in high jump at the 1976 Montreal Olympic Games. That same year he was selected to carry the Canadian flag during the closing ceremonies at the Olympic Games, was chosen as Canada's athlete of the year and received the Governor General's Award. In 1978 he broke the world record with a leap of 2.31 metres and is a recipient of the Queen's Golden Jubilee Medal for his work in his community.

Greg has worked as a sport and fitness consultant for the government of Ontario, a teacher and has coached several national and international champion athletes. Greg spent six years helping to feed the less fortunate of his community as Executive Director of the Ottawa Food Bank and for six years was the principle partner of a successful corporate training company. For 25 years Greg has provided volunteer support to several charities and has been a member of numerous boards.

Greg is a graduate of the University of Toronto and has a post graduate certificate in financial analysis from the University of Western Ontario.

Caroline King

Caroline A. A. King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained her

Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the ORHT/LTB, she practiced law for a number of years, and was active in her local community.

Jessica Kowalski

Jessica Kowalski earned her law degree at Osgoode Hall Law School and was called to the Ontario bar in 1996. She practiced family law before leaving Toronto to work overseas. After working in the US, the Caribbean, Central America and Bermuda, Jessica returned to private practice in Toronto with a focus on civil litigation, including commercial and estates litigation. Prior to her appointment as a Member of the ORHT/LTB, Jessica was a legal Counsel at the Law Society of Upper Canada.

Elizabeth Leighton

(Resigned June 23, 2006)

Elizabeth Leighton graduated from the University of Western Ontario with an Honours degree in English & History, then attained her Master of Library Science and Bachelor of Laws degrees. Before her appointment to the ORHT/LTB, she practiced law for a number of years, and was active in her local community.

Claudette Leslie

Claudette Leslie attended the University of Toronto, obtaining a Bachelor of Arts (B.A.) Degree in English, and received a Diploma in Journalism from Centennial College. Claudette is an experienced Communications and Public Relations professional who has worked in various roles including corporate and marketing communications and as a freelance writer. She has been involved in community volunteer work for more than two decades.

Michelle M. Lomazzo

(Part-time; Resigned September 15, 2006)

Michelle M. Lomazzo obtained her Bachelor of Arts degree from the University of Windsor. Prior to joining the ORHT/LTB, Ms. Lomazzo has owned and operated a Worker's Compensation consulting firm representing injured workers in their appeals before the Appeals Resolution Officer and the Workplace Safety & Insurance Appeals Tribunal. She is active in her local community as a volunteer working with various charity groups.

Olga Luftig

Olga Luftig graduated from the University of Toronto with an Honours B.A. in History and Political Science, and a Bachelor of Education. She attained a Bachelor of Laws at the University of Windsor. Before her appointment to the Board as an adjudicator, Olga practised law both as a private practitioner and as the in-house Properties Lawyer for a corporation.

Wayne MacKinnon

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the faculty of Arts and Science (Social Sciences), and then went on to do some graduate work in Boston, Massachusetts USA. Before his appointment to the ORHT/LTB he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada at various levels and in various departments. Mr. MacKinnon was a Member of the Mayor's

Advisory Committee on Race Relations and a voluntary Member of Bell Canada's Consumer Advisory Panel.

Ina Maher

(Part-time)

Ina Maher is a graduate of the University of Hong Kong (B.A. (Hons.), Dip. Ed., M.A.). Ina Maher taught for twelve years before joining the H.K. Civil Service where she served in various departments until she took early retirement to immigrate to Canada in 1990. Here she enrolled in Osgoode Hall Law School, obtaining her LL.B. in 1994. Ina Maher worked for several years in the Ministry of Transportation before retiring again and becoming more involved in volunteer work.

Ieva Martin

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that she was a small business owner and a member of the Board of the Clarkson Business Improvement Association. She was the President of the Latvian Canadian Cultural Centre. Ms. Martin obtained a Bachelor of Arts (B.A. Hons.) in French and Canadian Studies from the University of Toronto. She also studied Science at McGill University.

Debra Mattina

Debra Mattina is a graduate of Mohawk College in Hamilton (Business Accounting, 1972 and Medical Radiological Technology, 1985) and worked as a medical radiation

technologist for 20 years. In 2003 Debra was awarded the Queen's Golden Jubilee Medal recognizing her volunteer efforts in her community over her lifetime.

Brian McKee

Brian McKee graduated from Algonquin College, Management major, School of Business, in 1972. He has held senior management positions in the private sector over the past twenty-five years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

Jim McMaster

Jim McMaster has been an active member of his community for over 20 years including having been on Ajax council for 12 years and holding the positions of Deputy Mayor, Region of Durham Finance Chairman and Budget Chief and Vice Chair of the Toronto and Regions Conservation Authority just to name a few. He owns a transportation consulting business.

Alan Mervin

(Part-time)

Alan Mervin attended York University, obtaining a Bachelor of Arts Degree in Sociology in 1971, and received a Bachelor of Laws (LL.B.) from the University of Windsor in 1974. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Beatrice Metzler

(Part-time)

Beatrice Metzler is a graduate of Lakehead University, specializing in Education. She went on to obtain her accreditation in Association Management. Beatrice held the positions of General Manager of the Thunder Bay Chamber of Commerce and then Executive Director of the Thunder Bay area Industrial Training Organization. Following her career in association management, she established her own Project Management business. She has been an active director on several business, professional and community boards, both locally and provincially.

Christina Budweth Mingay

(Part-time)

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws (LL.B.) from Queen's. Ms. Budweth Mingay was in private practice until 1991 with a focus on civil litigation. During the period 1991 to 2001, she practiced law with the Law Society of Upper Canada.

Gerald Naud

Gerald Naud graduated from the University of Ottawa with a degree in civil law. Following graduation he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for numerous years. Most recently he held the position of Director of Business Development for CCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil

(Part-time)

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in psychology and criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor Law School. Ms. Neil had worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programmes in various ministries. Since her retirement she has been engaged part-time in consulting work, specializing in human resource management.

Patrice C. Noé

(Part-time to Full-time)

Patrice C. Noé has been called to the bars of the Provinces of Ontario and Alberta and the State of New York. She served as Solicitor for Hamilton and York and Edmonton, among her vast experience working with Municipalities. She had also been a member of the local property standards committee and the committee of adjustment. She had many community involvements. She was Rule of Law Liaison in Armenia for the American Bar Association and Project Director for IFES in Ukraine.

John Nolan

(Part-time)

John attended McGill University, obtaining a Bachelor of Arts in Economics and Political Science in 1977, and received a Bachelor of Civil Laws (LL.L) from the University of Ottawa in 1981. John returned to the University of Ottawa in 1992 to obtain a Teaching diploma. John has devoted the past 25 years to working with troubled youth until his appointment in December 2006 as a part time member to the ORHT/LTB.

Babatunde Olokun

Babatunde M. Olokun is a graduate of the University of Tuskegee, Alabama (B.Sc.1978), John Marshall Law School, Atlanta, U.S.A (JD. Law 1983) and The Nigerian Law School, (B.L. 1986). He carried on a general law practice in Nigeria from 1986 to 1999 until his appointment to the Nigeria Federal House of Representatives, where he served until 2003. Mr. Olokun was a volunteer Community Legal Worker with the Rexdale Community Legal Clinic until his appointment in 2004 with the ORHT/LTB.

Jean-Paul Pilon

(Part-time)

Jean-Paul Pilon is a lawyer and has practised law in Kitchener, Ontario since 1997. He holds a Bachelor of Arts (Honours) degree in political science and urban studies from Concordia University in Montreal and a law degree from the University of Windsor. From 1998 until his appointment to the ORHT/LTB, Jean-Paul Pilon acted as duty counsel at Tribunal hearings in Kitchener. He previously taught law as an Adjunct Professor at the University of Waterloo School of Optometry. Jean-Paul Pilon is a member of the Canadian Bar Association and the Waterloo Law Association.

Lloyd Phillipps

Lloyd Phillipps is a graduate of Carleton University (B.A in Law) and Loyalist College (Diploma in Paralegal Studies).

Mr. Phillipps career background includes teaching business courses at the Community College level as well as 15 years of public service.

He was employed with the Ontario Ministry of Health, Emergency Health Services Branch, the Ministry of the Attorney General where he was a Provincial Prosecutor and the Ministry of the Environment. While with the Ministry of the Environment, he was the recipient of awards for Innovation and Environmental Protection.

Jana Rozehnal

Jana Rozehnal is a graduate of the Faculty of Law of Jan Evangelista Purkyně (now known as Masaryk University) in Brno, Czech Republic, where she earned her Doctorate of Law (JUDr.). Subsequently she graduated from the Faculty of Law of the University of Toronto (LLB.). Prior to her appointment to the ORHT/LTB, Ms. Rozehnal was in private practice with focus on family law.

Egya Sangmuah

Egya Sangmuah is a graduate of the University of Toronto (Ph.D in History), McGill Law School (LL.B.), Osgoode Hall Law School (LL.M.), and the University of Ghana (B.A. Hons.). He was a member of the Immigration Appeal Division of the Immigration and Refugee Board (IRB) from 1999 to 2006 and the Convention Refugee Determination Division of the IRB from 1996 to 1998. Prior to joining the IRB, Mr. Sangmuah was Counsel to the Ontario Ministry of Citizenship, Culture and Recreation, as well as a part-time Member of the Liquor Licence Board of Ontario. He was also a Law Clerk to the justices of the Ontario Court of Appeal.

Freda Shamatutu

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia obtained in 1981. She practiced law in Zambia for 20 years before migrating to Canada. Ms. Shamatutu has spent most of her professional career at senior management level working for various organizations, including as Chief Legal Advisor and Legal Counsel

for the Zambian national airline, as Board Secretary and Director Support Services for Zambia Revenue Authority and as Executive Director for the Advanced Legal Training Institute in Zambia (the Institute trains law graduates in bar admission courses and also provides lawyers with continuing legal education). Before her appointment as an adjudicator with the ORHT/LTB, Ms. Shamatutu was employed as Office Manager for a law firm in Toronto.

Andi Shi

Andi Shi has a very diverse range of professional experience. He has taught at universities, and worked as a researcher in community policing, a business manager, the executive director of a non-profit organization and a multidisciplinary consultant. He has been on the boards of a number of charitable/non-profit organizations as well. Prior to his appointment to the ORHT/LTB, he served as a Member of the Council of the College of Opticians of Ontario. Mr. Shi pursued studies in the School of Human Justice at University of Regina and holds a Bachelor of Science degree from Eastern China Normal University and a Master of Science degree from the University of Regina.

Yasmeen Siddiqui

Yasmeen Siddiqui is an experienced adjudicator having served on the Immigration and Refugee Board from 1996 to 2006 as a Member, Co-ordinating Member and Acting Assistant Deputy Chair. She is a Member of the International Refugee Law Judges Association and a Member of UNHCR's International Roster of Refugee Status Determination Professionals.

Prior to coming to the ORHT/LTB, Yasmeen was an anti-bias education trainer and consultant. She has a Bachelor of Arts degree from India and has studied mediation and negotiation at the University of Toronto.

Michael G. Soo

(Part-time)

Michael G. Soo is a graduate of the University of Victoria, obtaining a Bachelor of Arts (B.A.) in History in 1996, and received a Bachelor of Laws (LL.B.) from the University of Western Ontario in 2000. Michael has practiced law in Kitchener since 2002, with a focus on criminal, family and civil litigation. Michael is also a part-time instructor in law-related continuing education courses at Fanshawe College in London, as well as at Conestoga College in Kitchener.

Nina Stanwick

Nina Stanwick holds a Bachelor of Laws (LL.B.) degree from the University of Windsor, as well as a Bachelor of Arts (Honours) degree in Mathematics from the University of Guelph and a Bachelor of Education degree from the University of Toronto. She was called to the Ontario Bar in 1982. From 1984 to 1986, she was a Commissioner with the Residential Tenancies Commission; from 1987 to 1994, she was a Member of the Rent Review Hearings Board; from 1994 to 1996, she was a Rent Officer under the Rent Control Program; and from 1997 until her appointment to the ORHT/LTB, she was a Member of the Immigration and Refugee Board

Valarie Steele

Valarie Steele worked for several years in the financial (stockbrokerage) industry, specializing in the syndication of new issues. An experienced Human Resources consultant, she owned and operated a placement agency that supplied staff for the office environment primarily in the financial sector. Ms. Steele has volunteered extensively in the community for over three decades where she has been involved in a number of

projects that benefited the community. She is past president of the Jamaican Canadian Association and Chairperson of the Community Police Liaison Committee at Division 13.

Najibullah Tahiri

(Resigned November 6, 2006)

For over 20 years, Najib Tahiri has been involved in the community and social justice issues affecting new Canadians. In the 1980s, he served as the President of the Afghan Association of Ontario, a non-profit organization responding to the needs and aspirations of Afghan-Canadians in Ontario. Between 1992 and 2003, he served as a Member of the Immigration and Refugee Board, the largest Canadian tribunal making decisions on immigration and refugee matters. Mr. Tahiri was a volunteer member at various community-based organizations including the North York Cross-Cultural Committee, North York Inter-Agency and Community Council, and Canadian Council for Refugees. He holds a Bachelor of Science degree in Mechanical Engineering from Kabul University in Afghanistan.

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, Mr. Trueman was elected to serve as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C.

Jeanie Theoharis

Jeanie Theoharis graduated from the University of Toronto having attained a Bachelors of Arts degree, in commerce, economics and actuarial science, in 1993. She studied law at State University of New York and University of Toronto where she received a Juris Doctorate in Law (J.D. 1996) and Bachelor of Laws degree (LL.B. 1997). She is called to the bars of New York and Ontario. Before her appointment to the ORHT/LTB she practiced commercial litigation, construction lien law and commercial real estate at a firm in downtown Toronto.

Elizabeth Usprich

Elizabeth Usprich attended the University of Western Ontario and earned degrees in Psychology (B.A.) and Law (LL.B.). In addition to practicing as a lawyer, Ms. Usprich has also taught law at the College level. She was actively involved in the London community and has sat on several Boards of Directors.

Jonelle van Delft

Jonelle Van Delft graduated from Queen's University with an Honours degree in History, a Special Field Concentration in Women's Studies and a Bachelor of Laws degree. Before her appointment to the ORHT/LTB, she practiced Clinic Law under the Ontario Legal Aid Plan.

Rosa Votta

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the *Employment Standards Act*.

Brad Wallace

Brad J. Wallace is a graduate of the University of Western Ontario (B.A. (Hons.) Politics, 1996) and the University of Windsor (LL.B, 2001). Before his appointment to the ORHT/LTB, Mr. Wallace practised primarily in the areas of insurance defence, plaintiff personal injury, social assistance and landlord-tenant law. Brad Wallace is a former member of the Board of Directors of the London and Area Food Bank, and a past member of the Board for the London Training Centre.

Karen Wallace

Karen Wallace graduated from Osgoode Hall Law School with a Bachelor of Laws degree in 1991. She articulated with the Ministry of the Attorney General. After her call to

the Ontario Bar in 1994, Ms. Wallace had her own family law practice in Toronto. From 1998 to 2006 Karen Wallace was employed by Legal Aid Ontario.

William Weissglas

(Part-time)

William Weissglas graduated from Sir George Williams (Concordia) University with a BA. Degree Honours in Psychology and from Osgoode Hall Law School with a Bachelor of Laws degree. After his call to the Bar in 1975, he practiced law in the City of Toronto until 2000. In 2000 Mr. Weissglas earned a Master of Laws Degree in Alternate Dispute Resolution and in 2002 he was designated a Charter Mediator by the ADR Institute of Canada. Mr. Weissglas has held the position of Senior Legal Counsel to the Real Estate Council of Ontario. He is currently CEO of a mediation firm and is a part-time professor at Seneca College. Mr. Weissglas has also served as Chair of the City of Toronto Licensing Tribunal and is an instructor in the Law Society of Upper Canada's Skills & Professional Responsibility Program.

Mike Welsh

(Part-time to Full-time)

Graduate of the University of Waterloo in Environmental Studies, (B.E.S.) 1980. Operations Manager, FedEx Logistics, at the John Deere Welland Works, Welland Ontario, 1995-2004. Currently transportation consultant and planner. Former Vice Chair, Niagara on the Lake Committee Of Adjustment, 1997-2004. Former Member of Niagara on the Lake Irrigation Committee, 1994-1997. Former Member of Niagara on the Lake Fence Arbitration Committee, 1991-1994. Former Member, Niagara on the Lake Traffic and Parking Committee, 1988-1990.

Karol Wronecki

(Part-time)

Dr. Karol Wronecki has degrees in law and public administration from universities in Poland and Canada. After teaching constitutional law at the University of Wroclaw and at York University in Ontario, he joined the Ontario government in 1982. For 24 years he worked in the administrative justice system as an adjudicator and a civil servant. He adjudicated in and managed programs dealing with rent control and landlord and tenant legislation. Until December 2006 when he retired, Mr. Wronecki was the manager of Central Region of the ORHT/LTB.

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Landlord
and
Tenant Board

A stylized, colorful illustration of a landscape with rolling hills, trees, and a building, rendered in a soft, painterly style with a light green and blue color palette.

ANNUAL REPORT

2007 - 2008



777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. (416) 585-7000
Télec. (416) 585-6470
www.mah.gov.on.ca

TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Landlord and Tenant Board for the 2007-2008 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'JW' or 'Jim Watson'.

Hon. Jim Watson
Minister of Municipal Affairs and Housing

**Landlord and
Tenant Board**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Commission de la
location immobilière**

Bureau du Président

777, rue Bay, 12^e étage
Toronto (Ontario) M5G 2E5
Tel: 416-585-7295
Telec: 416-585-6363



June 30, 2008

TO THE HONOURABLE JIM WATSON
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Landlord and Tenant Board Annual Report for the
2007-2008 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "L. Ma".

Dr. Lilian Ma
Chair
Landlord and Tenant Board

Contents



Chair's Message	
Year in Review	1
Our Role	5
The Adjudication Process	7
The Mediation Process	10
Office & Hearing Locations	12
Customer Service	14
E-government	15
French Language Services	16
Budget and Revenues	17
Statistical Information:	
Application Receipts	18
Regional Distribution	19
Applications by Type	20
Above Guideline Rent Increase Applications	25
Application Resolution	26
Reviews & Appeals	27
Sample Order Summaries	28
Biographies:	
Chair	43
Vice Chairs	44
Board Members	47

Chair's Message

The Members and staff of the Landlord and Tenant Board (the LTB) have accomplished a great deal of work over the past year. This was our first full fiscal year implementing the *Residential Tenancies Act, 2006* (the RTA), proclaimed January 31, 2007.

The Board's mandate under the legislation is two-fold. We provide information to the public through the call centre, our Internet website as well as outreach activities to community groups. We also provide dispute resolution through mediation and adjudication.

While we have been very focused on administering the new law and monitoring its impact on our work, we have also made progress on a number of important initiatives to improve the quality and timeliness of our work. The LTB workload continues to be formidable.

Our call centre and website provide a valuable service to parties requesting information. They deal with a significant number of information requests. In many cases, the Board, by merely providing information to parties in a neutral manner, can help parties resolve their disputes without making an application to the Board.

On the other hand, the statistics in this report demonstrate our continued effective management of our business in dispute resolution. Despite changes brought in by the RTA, such as the elimination of the default process, resulting in more hearings and the statutory right of tenants to raise maintenance and other issues during eviction hearings, the Board was able to resolve disputes



Chair's Message

between landlords and tenant in an expedient manner without any backlog and to maintain the customary level of service.

Our success in meeting our mandate is due to the efforts of Members and staff working together closely as a team. I am grateful for the diligent efforts of Board Vice Chairs and Members for issuing decisions in keeping with the principles of timeliness, accessibility, fairness and customer focus. The Vice Chairs also play an important role in leading various committees and in the policy work they do for the Board. My acknowledgement and thanks go to Murray Graham, Eli Fellman, Régent Gagnon, Sean Henry, Guy Savoie and Jonelle van Delft.

I also extend my appreciation to administrative and legal staff –in particular, Diana Macri, Director of Operations, and Dianne Dougall, Director of Legal Services –for the high quality of service they provide in support of the Board's quasi-judicial mandate. I also wish to acknowledge the invaluable support of my Executive Assistant, Suzanne Evans, and my Administrative Assistant, Sue Woodland.

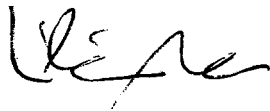
Finally, I wish to acknowledge the valuable feedback and input of stakeholders from the tenant and landlord communities. The on-going dialogue between the Board and these stakeholder representatives ensures that the views of both landlord and tenant groups are given the necessary attention as we develop our procedures, forms, Rules of Practice and Interpretation Guidelines.



Chair's Message

On behalf of the LTB, I look forward to continuing to provide these important services to the people of Ontario.

Sincerely,

A handwritten signature in black ink, appearing to read "Lilian Ma".

Lilian Ma, Ph.D., LL.B.

Chair

Landlord and Tenant Board

The Year in Review



At the onset of the 2007-2008 fiscal year, the Landlord and Tenant Board had just started to implement the *Residential Tenancies Act, 2006* (the RTA), which was proclaimed on January 31, 2007. During the 2007-2008 fiscal year, the Board's primary objective was to effectively implement the RTA. To do so, we had to monitor the impact of the legislative changes brought about by the RTA and to make necessary adjustments in a timely manner to the Board's procedures and scheduling practices, as well as its rules and guidelines.

The Board has been largely successful in managing the 80,552 applications received during the 2007-2008 fiscal year, without any backlog, despite the increase in the number of applications sent to a hearing (due to the elimination of the default process) as well as the opportunity, under section 82 of the RTA, for tenants' rights issues to be raised during eviction hearings. The Board continuously monitors and, where appropriate, has adjusted its scheduling practices to ensure timely service to clients.

The Board has also strengthened the continuing professional development of Board Members and staff by instituting a professional development committee to oversee training needs and implementing a training program for Mediators.

In addition to the changes brought about by the RTA, the Board was also impacted –as were other Ontario tribunals–by the regulation of paralegals by the Law Society of Upper Canada (LSUC). Paralegals frequently represent parties in Board applications. As a result of the LSUC's new rules regulating paralegals, as of November 1, 2007, Board Members and Mediators have inquired concerning the status of persons who seek to act as representatives

The Year in Review



for parties. Representatives may be asked whether they are licensed, unlicensed, have applied for a license and have a registration number, or, are exempt from the LSJC's regulations. The representative's status may have an impact on whether a hearing can proceed or if the representative will be permitted to appear before the Board.

On October 31, 2007, the Board began posting summaries of its selected decisions on the Board's website. These decisions were selected by the Board because they:

- interpret or explain an area of law;
- provide a clear analysis of a point of law;
- apply or distinguish decisions of a court of competent jurisdiction, including the Divisional Court;
- apply an Interpretation Guideline of the Board or provide clear reasons for not applying an Interpretation Guideline; and/ or
- raise new or interesting issues.

Selected decisions are examples of the types of decisions the Board makes. These decisions are not binding on Members of the Board. Nor are they intended to reflect the official position of the Board on how to interpret or apply the RTA, the *Statutory Powers Procedure Act* (SPPA) or any other law.

The Year in Review



Posting selected decisions is in response to the public's request to have Board decisions available on the Board's website. In addition, the Board is moving towards the second phase of this initiative, namely to have redacted orders for contested hearings posted on our website in the next fiscal year. Pursuant to orders of the Information and Privacy Commissioner, posted Board orders must protect personal information.

In its Action Plan for 2007-2008, the Board included a new Human Rights Strategy to address the Board's obligations under the *Human Rights Code*. The work involved in implementing this strategy has begun and will continue to take shape in the next fiscal year. In conjunction with this new strategy, a committee was also formed to consider how the Board might better serve clients with mental health challenges. Furthermore, all Board Members and staff have taken training in a program called "How May I Help You?" offered online by the Accessibility Secretariat of Ontario.

In view of the Board's obligation and continued commitment to safeguard personally identifiable information contained in Board files, an interim Privacy Directive was issued to all Board Members, setting out best practices concerning the handling of paper files and electronic devices. All Board Members also participated in training on privacy, provided through the Office of the Information and Privacy Commissioner. The Privacy Directive is an interim step in the Board's action plan to develop an organizational Privacy Posture over the next fiscal year.

The Year in Review

This past year, we also said good-bye to two people who contributed significantly to the success of the Board. On March 31, 2008, Carol Kiley retired from her public service career. As Manager of Program Development, Carol was a key player in establishing stakeholder relations and in the development of the Board's procedures, forms and brochures as well as the rules and guidelines of the Board. On February 16, 2008, Vice Chair Charles Gascoyne left the Board. Mr. Gascoyne was a founding member of the Board's predecessor, the Ontario Rental Housing Tribunal, and he served as Vice Chair for five years.

Our Role

The Landlord and Tenant Board (the LTB) derives its mandate from the *Residential Tenancies Act, 2006* (the RTA). Section 1 of the RTA sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

The mandate of the Board is two-fold. Firstly, the Board exercises a quasi-judicial function under subsection 168(2), which provides that the Board has jurisdiction to determine all applications under the RTA, and section 174, which provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act. Second, pursuant to section 177 of the RTA, the Board is required to give information to landlords and tenant about their rights and obligations.

The Board strives to provide, pursuant to section 183 of the RTA, the most expeditious method of determining the questions arising in a proceeding and to



Our Role

provide parties an adequate opportunity to know the issues and to be heard on the matter. Thus the Board has adopted the following as its Mission Statement:

The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

The Adjudication Process



The Board provides an informal environment for the resolution of disputes that can arise between landlords and tenants. The Board handles a large volume of cases, resulting from the high percentage of renters in Ontario (approximately 29% of Ontario's households¹). The Board's application resolution process is designed to be efficient, while ensuring a high quality of services. The Board takes care in providing information to the public and issuing decisions on the matters that come before us.

Over the past year, on average, the length of time from the filing of an application to the scheduling of the initial hearing date for an L1 application² was 19.79 days; for a T2 application³ was 27.07 days; and, for an L5 application⁴ was 80.78 days. The average length of time from the date of the hearing to the issuance of an order was: on an L1 application, 1.71 days; on a T2 application, 5.46 days; and, on an L5 application, 13.82 days. These statistics on timelines generally correspond to the complexity of the application types.

When an application is filed with the Board, it will most likely result in a decision from a Board Member, also known as an adjudicator. Board Members are appointed by Order-in-Council. They are selected from a list of qualified candidates who have applied to the Public Appointments Secretariat. They undergo a rigorous and competitive interview and selection process, by the

¹ 2006 Census data obtained from Statistics Canada.

² L1 is an application to terminate the tenancy and evict the tenant for non-payment of rent and to collect arrears of rent

³ T2 is a tenant rights application, dealing with such issues as harassment and interference with reasonable enjoyment of the rental unit

⁴ L5 is an application for an above-guideline rent increase which often involve multiple tenants

The Adjudication Process



Chair, and the Chair will make an appointment recommendation to the Minister. Once Members are appointed to the Board, they receive legal and program-related training from the Board. The initial training period, which spans a number of weeks, incorporates classroom instruction, hearing room observation and mentoring. Member training, augmented by their previous experience and knowledge, prepares them to deal fairly and effectively with the issues that come before them. Most Members work full-time but there are some part-time Members. All Members report to the Chair of the Board, through a regional Vice Chair. They are located in different geographical areas of the province.

Members from across the province meet together once or twice a year for professional development. They also meet more frequently in their regions. Meetings of our Members also contain elements of training and may address any emerging issues, such as new case law or legislation that may have a direct impact on their decision-making. A minimum of four days are set aside each year for Members' continuing professional development. A professional development committee headed by a Vice Chair oversees ongoing educational opportunities for the Members.

Over the past fiscal year, two of the Board's Vice Chairs travelled to each regional office of the Board to conduct hands-on training sessions for all Members on the Board's new Written Reasons Policy. This policy was developed to assist Members in determining when written reasons for a decision or order must or should be given and how and in what form those written reasons should be given.

The Adjudication Process



The Board continues to monitor the quality of its decisions through an Order Quality Assurance Program. Although Board Members are independent decision makers, the Board has an interest in achieving consistency and coherence in decision making. Issues that are identified through the Quality Assistance Program, from discussions held at regional Members' meetings or through other sources, are often discussed first at "roundtables" of Vice Chairs. When there is consensus or a preferred position is reached with respect to an interpretation of the legislation, the matter may be referred to the Rules and Guidelines Committee for the development of a new or revised Rule or Guideline. Then, before new or proposed changes to the Rules and Guidelines are finalized, they are vetted through stakeholders prior to being released to the public and posted on the Board's website.

Many Board Members, including Vice Chairs, sit on committees and working groups such as the Rules and Guidelines Committee, the CaseLoad Order Group (to review the format of Board orders), the Selected Decisions Committee, the Adjudicative Best Practices Committee, the Capacity Committee and other groups that gather opinions on specific issues. Committee work is an important aspect of the work of the Board, as the Board seeks to identify and address important legal and procedural issues.

The Mediation Process



The Board employs 24 Mediators throughout the province to provide voluntary mediation services to parties involved in applications before the Board. An application can be resolved through adjudication, mediated agreement or a consent order.

In adjudication, the outcome is decided by a Board Member, within the limits of the provisions of the legislation, having regard to all the evidence and circumstances elicited at the hearing. In mediation, however, the parties voluntarily work with a Board Mediator to achieve a desired outcome for the parties, which may sometimes be outside the limits provided by the legislation. Disputes may be resolved through a mediated agreement signed by the parties, copies of which are not kept by the Board. Furthermore, parties having gone through mediation may come before a Board Member to obtain a consent order, which is enforceable under the RTA.

During the last fiscal year, the Board continued to respond to client needs and develop our professional and effective alternative dispute resolution service for landlord and tenant disputes.

An independent review of the mediation program was completed in November 2007 and the resulting recommendations are currently being addressed through the Mediation Project. The Mediation Project is focussing on meeting the Board's mandate to increase the number of applications resolved by mediation, through the development of the Mediators' skills and professionalism, increasing public awareness of the benefits of mediation and improving the public profile and perception of the mediation program.

The Mediation Process



The Mediation Project will continue to make improvements to the program during the 2008-2009 fiscal year. We anticipate the creation of a senior Mediator position at Head Office to be responsible for overseeing the management and performance of the Mediators at a provincial level, establishing a preferred mediation model, developing protocols and developing mediator performance measures and standards. Standardized mediation statistical reporting is also being reviewed and additional measures are being developed to quantify and qualify the impact and value mediation can, and does have, on the effectiveness of the Board.

During the 2007-2008 fiscal year, approximately 45% of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/ or resulted in consent orders. Mediation continues to be an important and effective non-adversarial method of resolving disputes, helping to save tenancies and reduce social costs, while strengthening the relationships between landlords and tenants.

Office & Hearing Locations



The Board strives to make its services accessible to Ontarians across the province. There are eight Regional Board Offices where landlords and tenants can file applications and obtain information from one of the Board's customer service representatives about their rights and obligations under the law.

Most hearings are held in these eight Regional Offices located in:

- London
- Hamilton
- Mississauga
- Toronto South (Downtown area)
- Toronto North (North York area)
- Toronto East (Scarborough area)
- Ottawa
- Sudbury

In addition, there are 33 “off-site” hearing locations to which our Members and Mediators travel for hearings on a regular basis. These are: Barrie, Belleville, Bracebridge, Brantford, Brockville, Burlington, Chatham, Cobourg, Cornwall, Goderich, Guelph, Hawkesbury, Kingston, Kitchener, Lindsay, Newmarket, North Bay, Orangeville, Owen Sound, Pembroke, Perth, Peterborough, Port Elgin, Sarnia, Sault Ste. Marie, Simcoe, St. Catharines, St. Thomas, Stratford, Thunder Bay, Whitby, Windsor and Woodstock.

There are also a number of locations, particularly in the northern parts of the province, where the Board holds hearings by video-conference and teleconference.



Office & Hearing Locations

The Board has also partnered with ServiceOntario in approximately 60 locations across the province, to receive applications on behalf of the Board. A list of the addresses of these ServiceOntario Centres is found on the Board's website at www.LTB.gov.on.ca.



Customer Service

Section 177 of the RTA includes a mandate for the Board to provide information to landlords and tenants about their rights and obligations under the legislation. In fulfilling this mandate, the Board's virtual Call Centre handles customer inquiries, in both English and French, through toll free lines. In the Greater Toronto Area, the phone number is 416.645.8080; outside Toronto the number is 1.888.332.3234. Customer service representatives are available during regular business hours. An automated telephone service answers frequently asked questions 24 hours a day, 7 days a week. This year, the Board responded to approximately 400,000 telephone calls.

Landlords and tenants can sometimes resolve their disputes once they have been informed about the law. Also, if a landlord or tenant has filed an application with us, they can inquire about the status of their case via the telephone.

E-government

The Board's website, www.LTB.gov.on.ca, is visited more than one million times each month. All Board forms and brochures, the Rules of Practice, Interpretation Guidelines and the Board's complaint procedures are available on the website, in both English and French. Also available on our website is a *Guide to the Residential Tenancies Act* in multiple languages. This Guide is available in Arabic, Chinese, Farsi (Persian), Korean, Punjabi, Russian, Spanish, Tamil, Urdu and Vietnamese⁵, as well as in English and French. Apart from this Guide, there are 30 brochures posted on the website providing information on all major aspects of the RTA and the Board's services. Topics include the rent increase guideline, care homes, how to file an application, ending a tenancy, illegal lockouts, Board fees, information about a hearing and information for new tenants. Clients can also find information about the progress of their application, the date of their hearing and whether an order has been issued.

The Board is developing a new case management system employing Sebel software which is expected to be implemented later this year. This will allow us to move to a workflow model that ensures a smooth and effective work environment. The current Evans Caseload system continues to serve our needs. Working on the new case management system has placed a heavy demand on our administrative resources this fiscal year. We are also working on an initiative to redact orders so that they can be posted on the Board's website while protecting individual privacy. In addition, we started to overhaul our existing forms, which are posted on the website.

⁵ These are the eight most spoken languages in Ontario according to 2001 Census data obtained from Statistics Canada.

French Language Services



The Board provides service to the public in both official languages in accordance with the *French Language Services Act* (the FLSA). All offices in areas designated by the FLSA have bilingual staff available to assist our French-speaking clients. The Board's policy concerning the provision of French language services is set out in its Rules of Practice.

Where a party is entitled to and has requested French language service, the Board attempts to schedule a French-speaking Member to hear the case. Where this is not possible within a reasonable period of time, the Board will schedule the matter before an English-speaking Member and will ensure that an interpreter is present.

About 10% of our Board Members can conduct hearings in French, and 8% of our Mediators can provide mediation service in French.

All correspondence and decisions of the Board are provided in French to a party who has requested and is entitled to French language services.

Budget and Revenues



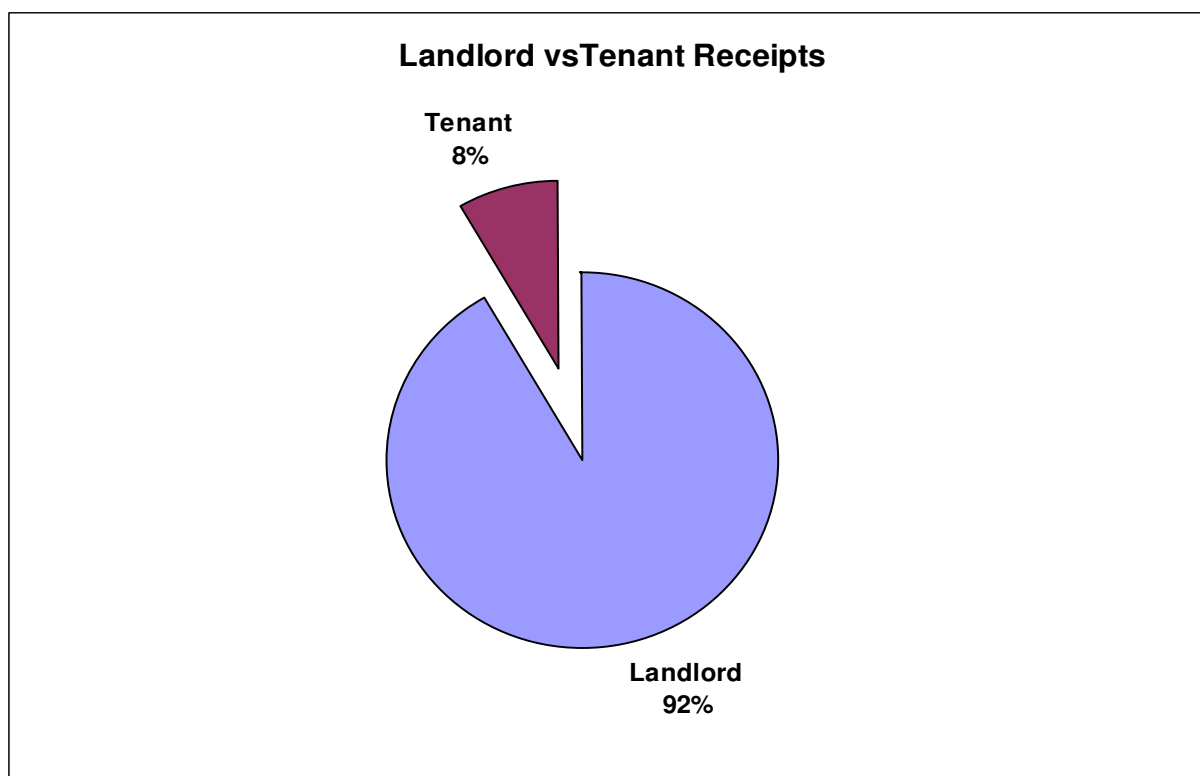
The budget expenditures for the Board for 2007-2008 were \$24.9M. Of this, \$19.3M was for salaries, wages and benefits and the remaining \$5.5M can be attributed to other direct operating expenses. The Board brings in over \$10M in revenue.

In late 2007, at the request of the Deputy Minister, the consulting group KPMG conducted an Administrative Review of the Board. The emphasis of the Review was on management processes, structure, governance and accountabilities in order to identify long term efficiencies and opportunities for savings.

Statistical Information: Application Receipts

From April 1, 2007 to March 31, 2008, the Board received 80,552 applications under the RTA.

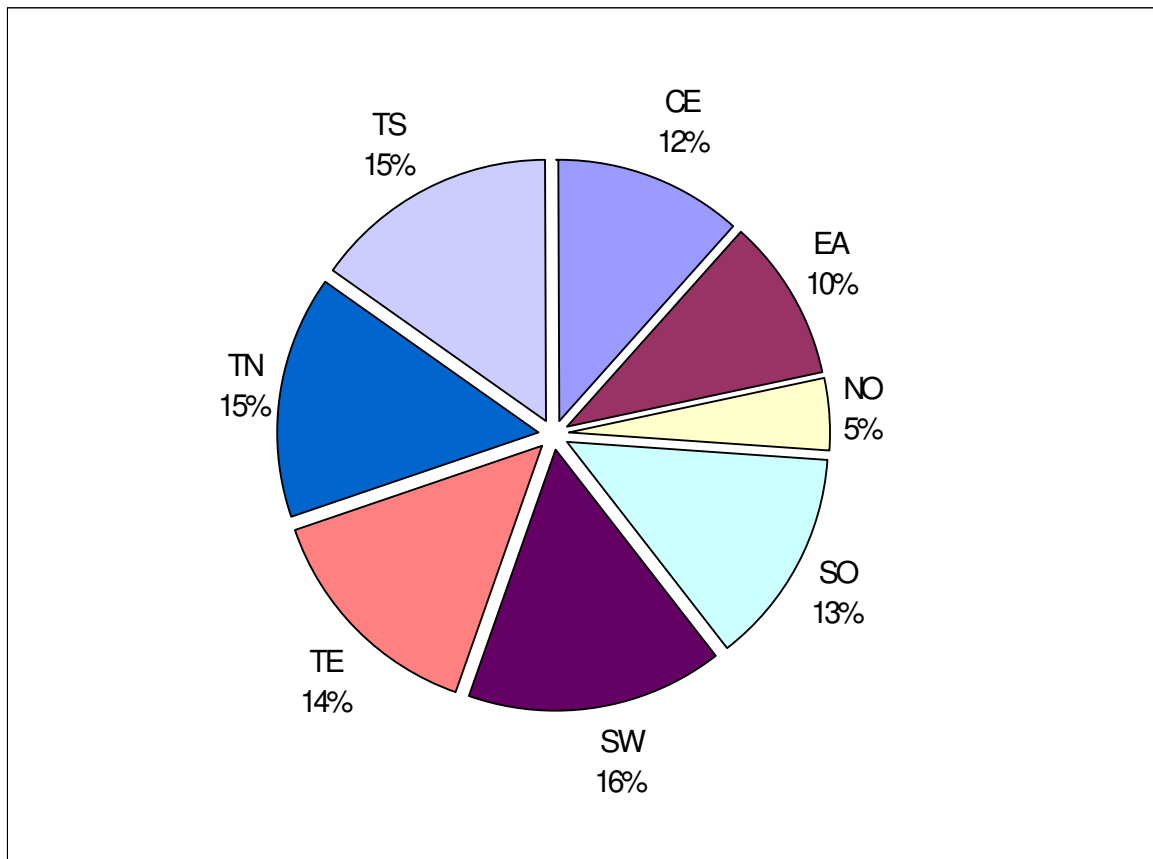
The distribution of application receipts remained relatively constant from 2001 to 2007, with 91% filed by landlords and 9% filed by tenants. As illustrated below, statistics concerning the 2007-2008 fiscal year have showed a very slight decrease in the number of applications filed by tenants. This slight decrease may be due to section 82 of the RTA which allows a tenant to raise issues in response to the landlord's application, without having to file their own application.



Regional Distribution of Applications

The regional distribution of applications filed under the RTA is as follows:

REGIONAL DISTRIBUTION OF APPLICATIONS

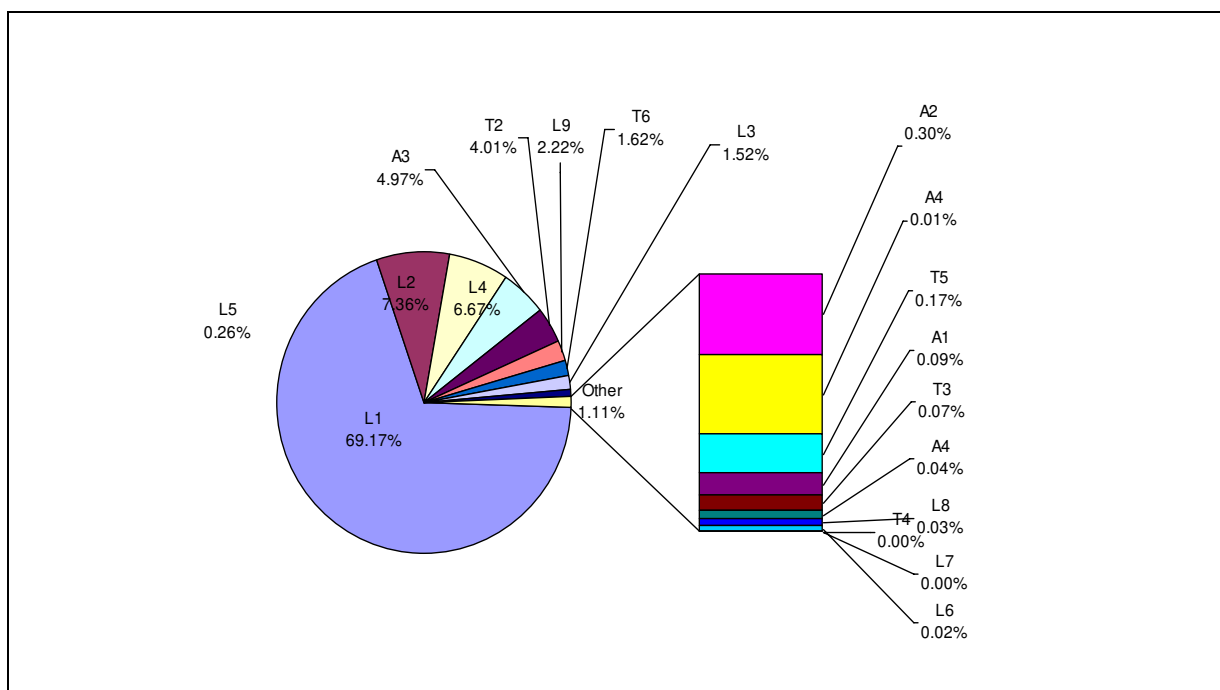


CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwest; TE to Toronto East; TN to Toronto North; and TS to Toronto South

Applications by Type

Eviction applications represent the bulk of the Board's workload, just as they were for the previous nine years under the Ontario Rental Housing Tribunal (the ORHT). Of the total applications received by the Board, 69% were for termination of tenancies because of arrears of rent. The following charts show the distribution of the Board's workload, by type of application for the 2007-2008 fiscal year.

Case type	Application description	# of Cases
L1	Terminate & Evict for Non-Payment of Rent	55,719
L2	Terminate for other reasons & Evict	6,441
L4	Terminate the Tenancy: Failed Settlement	5,374
A3	Combined Application	4,005
T2	Tenant Rights	3,228
L9	Application to Collect Rent	1,790
T6	Maintenance	1,302
L3	Termination Tenant gave Notice or Agreed	1,225
T1	Rent Rebate (e.g. illegal rent)	574
A2	Sublet or Assignment	285
L5	Rent Increase above the Guideline	274
T5	Bad faith Notice of Termination	133
A1	Determine whether the Act Applies	75
T3	Rent Reduction	54
A4	Vary Rent Reduction Amount	29
L8	Tenant Changed Locks	24
L6	Review of Provincial. Work Order	20
L7	Transfer Tenant to Care Home	0
T4	Failed Rent Increase above Guideline	0
		80,552



Applications by Type

The Board's last annual report covered the period April 1, 2006 to March 31, 2007. We reported, at that time, on the total number of applications received under the RTA, from January 31, 2007 to March 31, 2007, but we did not show the distribution by application type, as the focus of last year's report was on the TPA. The following table shows the distribution of those RTA applications between January 31 and March 31, 2007:

Case type	Application description	# of Cases
L1	Terminate & Evict for Non-Payment of Rent	8607
L2	Terminate for other reasons & Evict	838
L4	Terminate the Tenancy: Failed Settlement	595
T2	Tenant Rights	545
A3	Combined Application (L or T)	511
L9	Application to Collect Rent	242
T6	Maintenance	199
L3	Termination: Tenant gave Notice or Agreed	151
T1	Rent Rebate (e.g. illegal rent)	88
A4	Vary Rent Reduction Amount	87
A2	Sublet or Assignment	32
L5	Rent Increase above the Guideline	23
A1	Determine whether the Act Applies	12
T5	Bad faith Notice of Termination	10
T3	Rent Reduction	8
L8	Tenant Changed Locks	5
L7	Transfer Tenant to Care Home	1
L6	Review of Provincial. Work Order	0
T4	Failed Rent Increase above Guideline	0
		11,954⁶

⁶ In last year's annual report, we showed a total of 11,578 applications received from January 31, 2007 to March 31, 2007; we have since verified the total to be 11,954.

Applications by Type (TPA)

TPA APPLICATIONS

During the 2007-2008 fiscal year, in addition to our RTA workload, the Board also resolved applications that had been filed under the TPA, but remained unresolved on January 31, 2007 when the RTA was proclaimed. These applications were resolved pursuant to the TPA, but with regard to certain transitional rules brought in by the RTA. For example, a default order could not be issued on a TPA application if it was not resolved by January 31, 2007. Also, a Member hearing a TPA eviction application was now required to review all the circumstances of the application and to always consider delaying or refusing to grant a tenant's eviction. The following table shows the distribution of these TPA applications:

Case type	Application description	# of Cases
L1	Terminate & Evict for Non-Payment of Rent	435
A4	Vary Rent Reduction Amount	213
T2	Tenant Rights	165
A3	Combined Application (L or T)	134
L5	Rent Increase above the Guideline	122
L2	Terminate & Evict for other reasons	114
T6	Maintenance	80
L4	Terminate the Tenancy: Failed Settlement	23
T3	Rent Reduction	7
A2	Sublet or Assignment	5
L3	Termination: Tenant gave Notice or Agreed	4
T1	Rent Rebate (e.g. illegal rent)	4
T5	Bad faith Notice of Termination	4
A1	Determine whether the Act Applies	2
L8	Tenant Changed Locks	1
L6	Review of Provincial. Work Order	1
L7	Transfer Tenant to Care Home	0
T4	Failed Rent Increase above Guideline	0
		1314

Applications by Type (TPA)

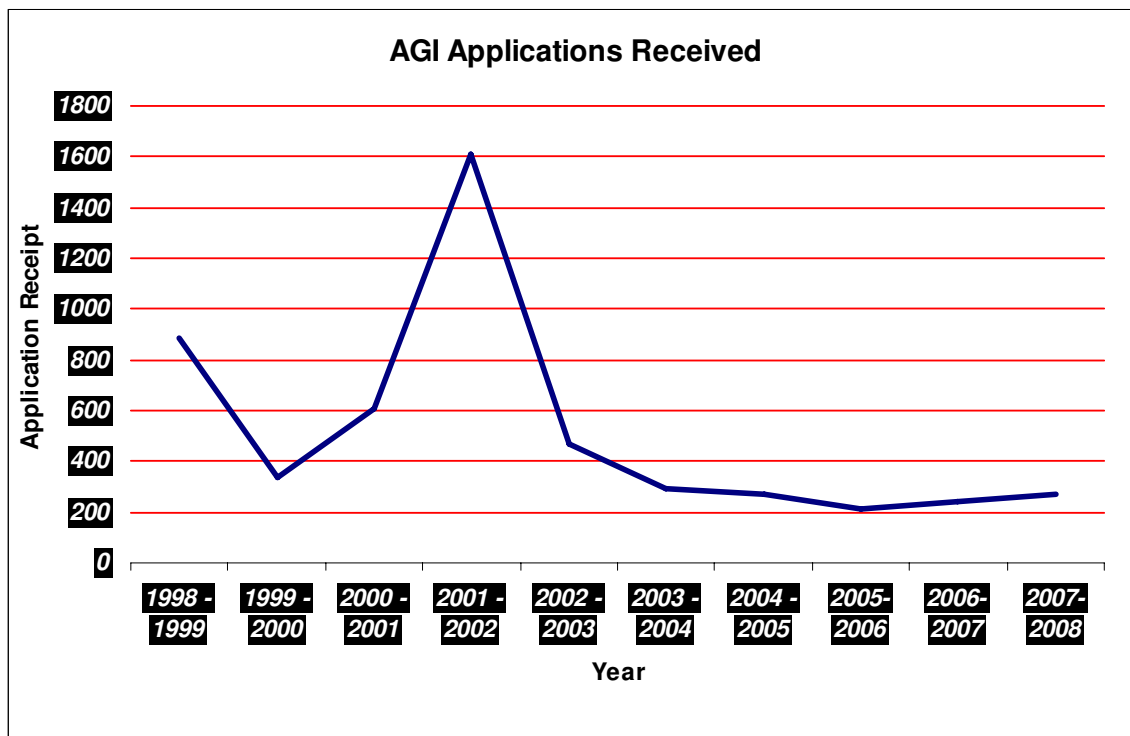


As of March 31, 2008, the Board still had 125 TPA applications awaiting resolution. It is important to note that this number may increase slightly as a party to a TPA application may, for example, still file a request to review an order and this would be added to our TPA workload.

Above Guideline Rent Increase Applications

As the table below demonstrates, the number of applications for rent increase above the guideline has been decreasing since 2001. This past year showed a very slight increase over last year, with 274 applications of this type received by the Board, compared to 242 for the 2006-2007 fiscal year.

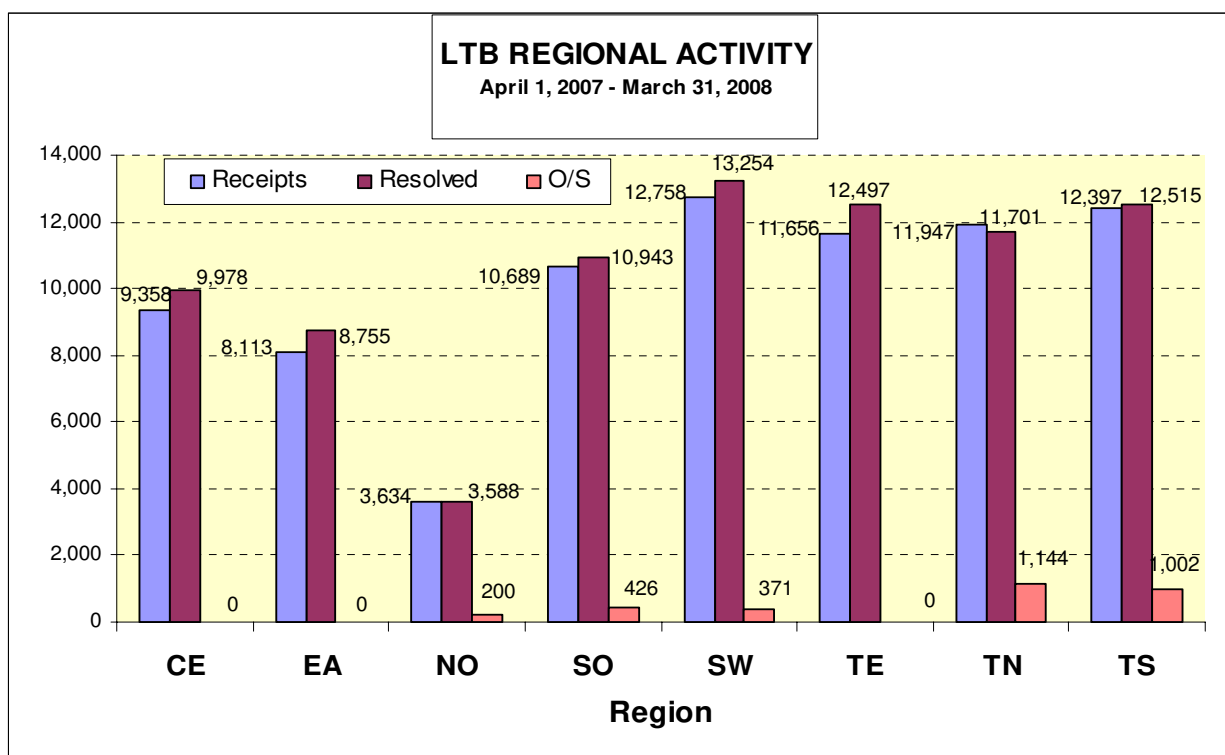
While the number of above guideline rent increase applications make up less than 1% of all applications received, these applications account for 21% of the Tribunal's file preparation and hearing time for staff and Members. Mediation continues to help manage the workload for these applications, and we continue to look for other ways to increase our efficiency and speed up the resolution process.



Application Resolution

Over the past year, the Board has maintained only one month's receipts as open files. Most orders are issued within 20 days of the receipt of the application and even more complex orders are usually issued within 30 days. This year, 2,750 RTA applications remained unresolved as of March 31, 2007.

In total, for the fiscal year 2007-2008, we received 80,552 applications and resolved 83,231 applications. (Some applications may generate more than one resolution because of the re-opening and review processes.) The following chart shows RTA receipts and resolutions from April 1, 2007 to March 31, 2008:



CE refers to Central; EA to Eastern; NO to Northern; SO to Southern; SW to Southwest; TE to Toronto East; TN to Toronto North; and TS to Toronto South



Reviews & Appeals

A party to an application may ask for a review of a Board order if they believe that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding. The authority for requesting a review comes from section 21.2 of the SPPA, subsection 209(2) of the RTA, and Rule 29 of the Board's Rules of Practice. The Rules also allow a Vice Chair of the Board to initiate a review.

Reviews are decided by a Member other than the Member who heard the application. Upon receipt of a review request, a Member conducts a preliminary review, without holding a hearing, to determine whether or not the order may contain a serious error or a serious error may have occurred in the proceedings. Where the Member determines that there is a possibility of a serious error affecting the result of the case, a review hearing will be held. Otherwise, the Member will dismiss the request for review.

Over the 2007-2008 fiscal year, the Board received 668 requests for review.

Section 210 of the RTA also provides that any person affected by a Board order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law.

Over the 2007-2008 fiscal year, 151 Notices of Appeal of Board orders were received by the Board.

Sample Order Summaries

TEL-07722 – *s. 66 – termination for cause, act seriously impairs safety- s. 83, relief from eviction*

The residential complex was a rooming house and the Tenant carried on an illegal tattooing business from his rental unit. In the conduct of that business, the Tenant did not comply with the minimum operational and equipment requirements for personal service providers, including tattoo studios. The Member found that the Tenant's failure to meet health department standards for proper infection control placed clients, other tenants and guests at serious risk of harm. The Member also found that the Tenant's assurances that he had stopped all tattooing activity only went to the issue of granting discretionary relief from eviction, and, in this case, the evidence was that the Tenant had continued that activity. The Member did not grant relief from eviction.

TSL-07526 – *s. 59 – arrears of rent - s. 111 – lawful rent – duress, undue influence*

The Tenant and the Landlord had entered into a signed lease agreement that provided that the monthly rent for the rental unit was \$500.00 while the Tenant was employed by the Landlord and \$1325.00 if the Tenant ceased to be employed by the Landlord. Under the Landlord's policies, the Tenant did not qualify financially to rent a unit with a monthly rent of \$1,325.00.

The Landlord had demanded that the Tenant provide the Landlord with the signed lease before the Landlord would meet with the Tenant. The Tenant provided the signed lease and, having done so, the Tenant met with the President of the Landlord. One week after the meeting, the Tenant's

Sample Order Summaries



employment was terminated by the Landlord. Approximately, six months later the Tenant vacated the rental unit.

The Member, in finding that the lawful rent was \$500.00 and that the tenancy terminated on the date that the Tenant vacated the rental unit, considered and applied the common law relating to rescission of a contract on the basis of duress and undue influence. The Member found that the Landlord exercised duress and undue influence on the Tenant by making the signing of the lease a condition precedent for the meeting and withholding material information from the Tenant relating to the Landlord's financial requirements for a lease at the higher amount and that the Tenant's employment with the Landlord was at risk at the time the lease was signed.

SOT-00248-IN(2) – s. 22, reasonable interference – s. 21(1), vital service

The Tenants applied for an order determining that the Landlords substantially interfered with the reasonable enjoyment of the Tenants and withheld or deliberately interfered with the reasonable supply of a vital service.

At an emergency hearing held to determine whether the Landlords complied with a prior interim order in this matter, the Member found that the Landlords breached the provisions of that order by: imposing conditions on the utility company when it attended the unit to enforce the vital services bylaw; failing to reinstate the utility; and failing to provide a power unit for the Tenants' Continuous Positive Airway Pressure (CPAP) machine in a reasonably timely way.

Sample Order Summaries



The Member issued an interim order requiring the Landlords to provide the utility company and the municipality unrestricted access to the unit and complex for the purpose of restoring the power to the unit and enforcing the vital services bylaw; that the Tenants may terminate the tenancy on 48 hours written notice within 60 days of the order; the suspension of rent during the period of non-compliance; the Landlords to ensure that power is continuously supplied to the Tenants' CPAP machine; the Landlords to pay to the Board a daily administrative fine of \$500.00 until the Landlords restore power to the unit or until the Tenants vacate the unit.

CEL-02248 – s.49 (3), notice, purchaser personally requires unit – period of notice.

The Landlord, a mortgagee in possession, applied for an order terminating the tenancy and evicting the Tenant because the Landlord had entered into an agreement of purchase and sale of the rental unit and the purchaser required possession of the unit for the purpose of residential occupation.

The Landlord used the Board-approved Notice to terminate the tenancy form, however that form did not contain specific reference to the fact that, if the Tenant vacated the rental unit by the termination date, the tenancy would end on that date. The form in question has since been replaced by the Board. The Member found that the old form of notice substantially complied with section 43 of the *RTA* because it: (1) effectively informed the Tenant that, if the Tenant vacated the rental unit in accordance with the Notice, the tenancy terminated on the date on which it was to terminate; and (2) informed the

Sample Order Summaries



Tenant that, if the Landlord applied for an order from the Board, the Tenant was entitled to dispute the application.

The Notice to terminate the tenancy, which was served on April 30, 2007, specified a termination date of June 30, 2007. The Tenants submitted that they had a valid written lease providing for a one-year fixed tenancy for the period of December 1, 2006 up to and including December 1, 2007. The Landlord submitted that the written tenancy agreement was fraudulently entered into and should be ignored, resulting in a monthly tenancy.

The Member considered the conflict between subsection 53 (4) of the *Mortgages Act* (termination date to be sixty days from date the Notice is served regardless of a fixed term tenancy agreement) and subsection 49 (3) of the *RTA*. The Member found that pursuant to subsection 3 (4) of the *RTA*, the *RTA* prevails. Accordingly, there was a fixed term tenancy and, because the termination date on the Notice was not at the end of the term, the Notice was void.

Sample Order Summaries



SOL-02104 – *s. 59 arrears – work done by Tenant and loans and advances to Tenant – s. 2 (1) elements constituting “rent”*

The Landlord applied for an order terminating the tenancy because the Tenant did not pay the rent owing.

During the tenancy, the Landlord had hired the Tenant to do maintenance work and drywalling at the residential complex and had advanced money to the Tenant for the purchase by the Tenant of tools and other supplies.

The Landlord argued that the Tenant’s work should be viewed independently from the tenancy agreement and that the “loans and advances” from the Landlord to the Tenant should be considered as arrears of rent.

The Member found that the work became an integral part of the tenancy agreement and that the definition of “rent” in the *RTA* permitted the Board to determine that the work was consideration paid by the tenant. The Member also found that the “loans and advances” did not meet the definition of “rent” in the *RTA*, and therefore, could not be used in the computation of the arrears of rent.

Sample Order Summaries

TEL-03366-RV – s. 3 (4) *RTA* – *RTA* to prevail over other Act; s. 49 (3) *RTA* – s. 49 (3) period of notice where purchaser requires unit; s. 48 (1) *Mortgages Act* – possession of rental unit obtained only in accordance with the *RTA*; s. 49 (3)

The Tenant had entered into a lease for a term of five years with the former Landlord and the mortgagee in possession sought to terminate the tenancy on the basis that the purchaser required possession.

The mortgagee in possession submitted that the Board should not rely on the decision of the Ontario Court of Appeal in *Canada Trustco Mortgage Co. v. Park* as that case had been decided under the provisions of the *TPA*. The Member found that *Canada Trustco* applies as the *RTA* provision is the same as that in the *TPA*.

In denying the Landlord's request to review the hearing order, the Member found that the provisions of the *RTA* prevail over the conflicting sections of the *Mortgages Act*.

In this case, the Notice of termination did not meet the requirements of the *RTA* as the Notice did not specify a termination date that was the last day of the term of the tenancy.

Sample Order Summaries



SOT-00660 – s. 22, *Landlord not to interfere with reasonable enjoyment* –
O. Reg. 516/06, s. 8, *reasonable enjoyment during repairs* –*Notice to be given*

Repairs at the residential complex involved the ongoing use of jackhammers between the hours of 8:00 a.m. and 5:00 p.m. The Member found that the work was necessary, and, therefore, reasonable.

The Tenant had vacated the unit having given the Landlord eight days notice and the Landlord rented the unit to another tenant three weeks after the Tenant had vacated. The Tenant had paid the rent for the period after she had vacated to the date the rental unit was rented to the other tenant.

The Member found that the Landlord gave the Tenant only five days' notice of the repairs and not the 60 days' notice required by subsection 8 (4) of O. Reg. 516/06.

The Member dismissed the Tenant's claim for increased rent as the Tenant failed to provide evidence to support her claim relating to the rent of a two-bedroom apartment in her new building. The Member dismissed the Tenant's claim for moving costs as the Tenant had moved on very short notice and did not provide sufficient evidence of the moving costs allegedly incurred.

The Member found that, while the Tenant did not give proper notice to terminate the tenancy, the Landlord also did not give proper notice of the repairs. The Member allowed the Tenant's claim for termination of the tenancy, ordered an abatement of rent for the three weeks' rent paid after the

Sample Order Summaries

Tenant had vacated the rental unit, but dismissed the Tenant's claim for a further abatement of rent of 25% as the work done was done in a reasonable manner.

SOT-00795 – *Human Rights Code – disability – duty to accommodate, Statutory Powers Procedure Act – s. 23 – exclusion of representatives – eligibility of paralegal*

The Tenant's representative had not filed a completed application for licensing as a paralegal with the Law Society of Upper Canada by the last date for doing so, October 31, 2007, and, was not exempt from licensing. The Member excluded the representative.

The Tenant had a disability, Multiple Sclerosis (MS), and used a scooter. It was difficult for the Tenant to access the rental unit in the absence of a device being provided by the Landlord that would facilitate the Tenant's ability to go through the door to the rental unit. The Member found that the poor access to the rental unit resulted in a restriction on the Tenant as a result of a disability.

The Member found that the Landlord had a duty to accommodate the needs of the Tenant, to the point of undue hardship. However, that obligation did not require the Landlord to provide automatic access to the rental unit; a less expensive option such as a door stop, wedge or similar device to hold the door open would be sufficient to satisfy the Landlord's duty to accommodate the Tenant in this case.

Sample Order Summaries

SWT-00135 – *s. 2 – definitions - s. 3 – application of RTA - s. 5 – exemptions from RTA*

The complex was a membership-owned four-season campground. A non-profit corporation owned the land and the members (who paid dues) owned what was on their site. The Member reviewed the corporation's letters patent and by-laws in detail with respect to determining the nature of the relationship existing between the members of the corporation and the corporation.

The Member considered the application in the context of section 202 of the *RTA* (real substance of all transactions) and found that the relationship between the members of the corporation and the corporation was similar to that of a shareholder in a share capital corporation with the exception that the members do not benefit financially from the relationship. The Member found that there was no landlord-tenant relationship between the parties because the main purpose and activity of the corporation was to provide recreational facilities, not residential premises, to the members.

As there was no landlord-tenant relationship, the Board did not have jurisdiction and the Tenant's application was dismissed.

Sample Order Summaries



TEL-06892 – s. 93, termination of tenancy, superintendent's premises – s. 2 (1) definition of "superintendent's premises" – s. 202, real substance of all transactions and activities

The residential complex consisted of a house and a barn. The Tenant had sold the residential complex to the Landlord and the parties had entered into a tenancy agreement entitled, "superintendent's tenancy agreement". The Landlord advised the Tenant that the Tenant's employment was terminated and the Landlord applied for an order terminating the tenancy and evicting the Tenant.

The Member, in dismissing the Landlord's application, examined the true substance of the agreement entered into by the parties and found that there was no indication of employment in this case; instead, the tenancy agreement attempted to circumvent the operation of the *RTA* by naming the Tenant a "superintendent" as a matter of convenience.

Sample Order Summaries



TEL-09610 – s. 2 (1) – definition of “tenant” - “co-ownership” - s. 202 – real substance of all transactions

The Applicant applied for a Board order with respect to alleged arrears of rent and persistent late payment of rent. The Respondent submitted that the Board did not have jurisdiction to consider the application as the residential complex was co-owned by the Landlord and Tenant pursuant to a trust agreement.

Title to the property was registered in the Applicant’s name and after the purchase of the property the parties had entered into a trust agreement that provided for co-ownership of the property and the manner in which mortgage and utility payments would be made. After default by the Respondent in the payment of mortgage and utility arrears, the parties signed a “temporary” lease agreement in order to “protect everyone’s interests”.

The Member, in finding that the Board did not have jurisdiction, considered the definition of “tenant” in subsection 2 (1) of the *RTA* which precludes a co-owner of the residential complex from being a “tenant”. The Member also applied section 202 of the *RTA* and found that, particularly in the absence of a modification or revocation of the trust agreement, the lease agreement was in essence an accounting vehicle for the future potential purchase of the property by the Respondent and not a tenancy agreement for residential premises.

Sample Order Summaries

TNL-06006-SA – s. 74 (11) – *non payment of rent, payment after order becomes enforceable.*

The Tenants filed a motion to set aside an eviction order and submitted that they had paid all outstanding amounts to the Landlord after the eviction order was enforceable but before it was executed.

The Member found that at the time the Tenants' affidavit was sworn stating that payment had been made; no payment had actually been made by the Tenants. In addition, a cheque subsequently delivered to the Landlord on behalf of the Tenants was a personal cheque, was not certified and had not cleared the bank as of the date of the motion. The Member, in dismissing the motion, found that it was incumbent on the Tenants, in attempting to void the eviction order, to ensure that payment was actually made.

Sample Order Summaries



TSL-06975-RV – s. 37 (2) – termination of tenancy by notice, s. 45 – notice of termination, non-waiver by payment of arrears of rent – s. 106 – rent deposit

The Tenant had given the Landlord a Notice of Termination to be effective on September 30, 2007. The Tenant had not vacated the rental unit and the Landlord obtained a Board order terminating the tenancy as of October 14, 2007. The Tenant motioned to set the order aside on the basis that the Landlord had accepted rent in November, 2007 for November, 2007, and, in so doing, had waived the Notice of Termination.

The Member considered that subsection 106 (1) of the *RTA* was determinative of the issue. A rent deposit is to be applied for the last rent period before the tenancy terminates. In this case, the tenancy did not terminate on the date specified in the notice (September 30, 2007), and the Board's order had the effect of terminating the tenancy on October 14, 2007. The rent the Landlord accepted in November was correctly applied to the rent for October, 2007.

The Member found that the rent the Landlord had accepted was, therefore, for arrears of rent and not for future rent.

Sample Order Summaries

TST-01025 – *s. 74(2) – discontinuance of application, s. 134 – additional charges prohibited, O. Reg. 516/06, section 17, paragraph 6 – payments exempt from s. 134 of the RTA, s. 135 – money collected or retained illegally, s. 106 – interest on rent deposit – transition provisions*

The Tenants raised a preliminary issue relating to their contention that the Landlord had charged the Tenants illegal rent in the form of filing fees related to two previous applications by the Landlord for arrears of rent. The Member found that the payment of the filing fees by the Tenants was in settlement of the two applications before the Board which resulted in the discontinuance of the Landlord's applications against the Tenants. The Member found that such payments were exempt from section 134 of the *RTA* by virtue of paragraph 6 of section 17 of O. Reg. 516/06 made under the *RTA*.

The Tenants also submitted that the Landlord had failed to pay interest to them on the last month's rent deposit as required by the *RTA*. The Landlord had paid interest on the rent deposit in 2006, but, not in 2007. The Member found that, pursuant to subsection 106 (7) of the *RTA*, the Landlord was entitled to allocate a portion of the interest due to the deposit to top up the deposit so that the deposit continues to equal the monthly rent, however, in this case, the amount of interest required to top up the deposit was less than the total interest owing by the Landlord.

The Member also reviewed the application of subsection 106 (8) of the *RTA* to situations where interest is owing for a period that spans the operation of both the *TPA* (6% per annum) and the *RTA* (guideline increase – section 120 of the *RTA*).

Sample Order Summaries



SOL-01945 – s.69 arrears – s.62 damage to unit – *res judicata* – s.83 relief from eviction

The Landlord applied to terminate the tenancy because the Tenant did not pay the rent that the Tenant owes for March, April and May 2007 and because the Tenant wilfully or negligently caused undue damage by spreading top soil next to the house which prevents run-off water from flowing away from the house.

While the Tenant did claim that she had paid her rent for these months by leaving money orders in the Landlord's mailbox, the Member did not find that claim credible. The Tenant could not tell, even at the hearing, whether the money orders had been cashed. It is also not plausible that the Tenant would have left the May 2007 rent in the Landlord's unlocked mailbox while she also claimed to be aware of the Landlord's denial of receiving the March and April 2007 rent. Nevertheless, after considering all circumstances, such as the length of the tenancy and the Tenant's economic situation, the Member exercised her discretion under s. 83(2) of the RTA to delay eviction by three weeks.

With respect to the damage claim, the Member determined that this matter had been adjudicated upon at a prior hearing. The Landlord attempted to distinguish the present application from the previous application because, at the prior hearing, the full extent of the damage was not known. The Member relied on the principle of *res judicata* to deny the damage claim. While the Landlord may have pre-maturely raised the issue in the prior proceeding, having done so, he cannot be allowed "another kick at the can" in the present application.

Chair – Dr. Lilian Ma

Dr. Lilian Ma, B.Sc., Ph.D., LL.B.

Dr. Lilian Ma joined the ORHT⁷/LTB as the Chair and CEO in June 2005. She has extensive experience in the public sector and was a member of the Refugee Protection Division of the Immigration and Refugee Board of Canada, the Liquor Licence Board of Ontario, the Ontario Human Rights Commission and the Drug Quality and Therapeutics Committee in Ontario. She also worked as Chief of the Public Education Division of the Race Relations Directorate of Multiculturalism Canada.

Dr. Ma earned a law degree from the University of Toronto, a Doctorate in chemistry from Simon Fraser University, and a Bachelor of Science degree from the University of Hong Kong.

Dr. Ma is a member of the Law Society of Upper Canada and the Canadian Bar Association and sat on its Racial Equality Implementation Committee from 2000 to 2004. She sits on the Board of Directors of the Canadian Council of Administrative Tribunals and the Society of Ontario Adjudicators and Regulators. Prior to joining full time public service, she was an active volunteer in the ethno-cultural community and sat on a number of boards.

⁷ The Ontario Rental Housing Tribunal became the Landlord and Tenant Board on January 31, 2007 with the proclamation of the *Residential Tenancies Act, 2006*.

Vice Chairs

Eli Fellman

Eli Fellman has an Honours degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws degree at the University of Ottawa. Prior to his appointment to the ORHT/ LTB as a Member, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario bar in 2002, he practiced international trade and customs law in Toronto. Mr. Fellman joined the ORHT/ LTB as a Member on December 15, 2004 and was appointed as Vice Chair on December 15, 2005.

Régent Gagnon

Régent Gagnon graduated from Le Moyne College in Syracuse, N.Y. with a Bachelor of Science in Humanities. He worked in public and private sector organizations in all facets of Human Resources Management and then he founded his own HR consulting firm. As a recognized expert in HR, Mr. Gagnon was invited to teach HR courses at Carleton and Ryerson Universities. Prior to his appointment to the ORHT/ LTB, Mr. Gagnon served as a part-time member of the Assessment Review Board for six years. In addition, he was a member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton. Mr. Gagnon joined the ORHT/ LTB as a Member on July 5, 2004 and was appointed Vice Chair on September 1, 2005.

Vice Chairs

Charles Gascoyne (*expired February 16, 2008*)

Charles Gascoyne graduated from the University of Windsor with a Bachelor of Arts degree and a Bachelor of Laws degree. Mr. Gascoyne has been active in the Essex Law Association and a number of other local community groups. Mr. Gascoyne joined the ORHT/ LTB as a Member on June 17, 1998, was appointed Vice Chair on February 17, 2003.

Murray Wm. Graham

Murray Wm. Graham graduated from York University with a Bachelor of Arts degree and from Osgoode Hall Law School with a Bachelor of Laws degree. After his call to the Ontario Bar, he practised law in the City of Toronto. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries. Mr. Graham joined the ORHT/ LTB in 1998 as a Member and was appointed Vice Chair on December 7, 2005.

Sean Henry

Sean Henry graduated from the University of Toronto with a Bachelor of Arts degree, from York University with a Masters in Business Administration and from Queen's University with a Bachelor of Laws degree. Mr. Henry carried on a criminal and family law practice before becoming a member with the Social Benefits Tribunal. He then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing. Mr. Henry joined the ORHT/ LTB on March 31, 2004 as a Member and was appointed Vice Chair on December 13, 2006.

Vice Chairs

Guy Savoie

Guy Savoie has held numerous senior management positions within both the financial and business sectors for the past 17 years. Since 1990, he is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post-diploma business and marketing programs. Mr. Savoie joined the ORHT/ LTB on May 16, 2001 as a Member and was appointed Vice Chair on March 24, 2004.

Jonelle van Delft

Jonelle van Delft graduated from Queen's University with an Honours degree in history, a Special Field Concentration in women's studies and a Bachelor of Laws degree. Before her appointment to the ORHT/ LTB, she practiced Clinic Law under the Ontario Legal Aid Plan. Ms. van Delft joined the ORHT/ LTB as a Member on November 12, 2004 and was appointed Vice Chair on June 13, 2007.

Board Members

Elizabeth Beckett

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the ORHT/ LTB she was a part-time professor of Law at Sheridan College and taught Business Law for Canadian General Accountants. She brings with her experience gained as a Member of the Boards of Inquiry for the Human Rights Commission. Ms Beckett was an ORHT/ LTB Vice Chair from April 7, 2004 to April 6, 2007; on April 7, 2007 she resumed her position as a Member of the LTB.

Joseph A. Berkovits

Joseph Berkovits graduated from York University with a Bachelor of Arts (Honours) degree in history and English, and a Masters and Doctorate in history from the University of Toronto. He received a law degree from the University of Toronto, articulated at the Ontario Ministry of the Attorney General and in 2004 was called to the Ontario Bar.

Board Members

Louis Bourgon

Louis Bourgon graduated from the University of Ottawa with a Bachelor of Arts and a Bachelor of Laws. He was called to the Ontario bar in 1998. Mr. Bourgon also holds a certificate in Alternative Dispute Resolution from the University of Windsor, Faculty of Law. Before his appointment to the OLTB/ LTB, he worked for seven years as legal counsel in the Law Society of Upper Canada's Professional Regulation Division. He also previously served as legal counsel to the Children's Aid Society of Ottawa. Mr. Bourgon has been an invited speaker at law schools and legal conferences on matters of professional responsibility and discipline.

Elizabeth Brown

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991, where she served two terms, and then to City of Toronto Council in 1998.

Board Members

Enza Buffa

Vicenzina Buffa served as a Customer Relationship Management Reporting Analyst in the private sector for a world-wide call center whose client is primarily Ford Motor Company. Ms Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with internal and external clients. She is a certified internal ISO (International Organization for Standards) auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

Kim Bugby

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts in psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Ms Bugby was also a Community Support Coordinator, providing services to persons diagnosed with a serious mental illness.

Board Members

William Burke

William Burke was employed for more than 17 years in the municipal sector before joining the ORHT/ LTB. Mr. Burke was involved in aspects of municipal standards, building inspections and law enforcement during those years. He is a member of the Ontario Association of Property Standards Officers and served on the Board of Directors of that association previously.

Ruth Carey

Ruth Carey holds a Bachelor of Laws degree from the University of Ottawa, as well as a Bachelor of Arts in Women's Studies and a Bachelor of Science in Forestry from the University of Toronto. She was called to the Ontario Bar in 1993. She was the Executive Director of the HIV & AIDS Legal Clinic (Ontario). She has been a member of the boards of directors of a number of community based or charitable organizations including the Northumberland Social Planning Council, Pro Bono Law Ontario, and the Canadian HIV/ AIDS Legal Network.

Vincent Ching

Vincent Ching joined the ORHT/ LTB after serving for four years as a member of the Social Benefits Tribunal. Prior to that, he held senior positions with the provincial and municipal governments for nearly thirty years. He graduated from the University of Toronto with a Masters in Social Work and more recently with a Masters in Theological Studies. He has extensive volunteer experience in the community, including serving as a board member of the Ontario Trillium Foundation and Agincourt Community Services Association.

Board Members

Brian Cormier

Brian Cormier has a diverse management background attained through a 30-year career at Bell Canada. His last position at Bell was Human Resources Generalist for Ontario Provincial District. His responsibilities included employee development, employee performance review boards, industrial relations support, disability management, and health and safety. Mr. Cormier has studied at Laurentian University, Queen's University Leadership Development and the Bell Institute for Professional Development. Mr. Cormier has been an active community volunteer for over 25 years.

Susan Ellacott *(expired August 20, 2007)*

Susan Ellacott served in the departments of International Trade, Consumer and Corporate Affairs, Natural Resources, and the Prime Minister's Office. She also completed the Executive Leadership Course at the Canadian Centre for Management Development, and received the Canada 125 Award for contributing to the community and the federal Public Service Distinctive Service Award in recognition of support to the science and technology community.

Board Members

Nancy Fahlgren

Nancy Fahlgren came to the ORHT/ LTB with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as Acting Chief Rent Officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Cathryn Forbes

Cathryn Forbes has an extensive adjudication background with the Immigration and Refugee Board and the Ontario Board of Parole. She has received vast specialized training in adjudication and tribunal practices and has a management history within the criminal justice system. Ms Forbes has volunteered actively in her community with various boards and organizations and is a graduate of Sheridan and Mohawk Colleges.

Bittu George *(Part-Time Member)*

Bittu George graduated from Queen's University with a Bachelor of Arts (Honours) in Political Studies, and a Bachelor of Laws. He was called to the Ontario Bar in 2002, and has been in private practice, with a focus on immigration law. Mr. George has also worked at the Ontario Ministry of Transportation and a Kingston law firm in the areas of planning, municipal and real estate law. An active member of the Kingston community for many years, Mr. George has served as a City Councillor and Deputy Mayor.

Board Members

Suparna Ghosh (*Part-Time Member*)

Prior to joining the LTB, Ms Ghosh spent ten years at the Immigration and Refugee Board, two years at the Social Assistance Review Board and six years with the former Rent Review Hearings Board of the Ministry of Housing, as well as Rent Control Programs. Ms Ghosh holds a Masters degree in Mathematics and a Bachelor of Arts (Honours) in mathematics, English and economics from Delhi University in India.

Pearl Gréwal (*Part-Time Member*)

For the past 31 years, Pearl Gréwal has held various roles of increasing and wide ranging responsibility in the Province's various residential tenancies regulatory schemes. From 1998 to 2007, she was a Mediator with the ORHT. From 1992 to 1998, she adjudicated disputes under the *Rent Control Act*. From 1987 to 1992, she adjudicated disputes under the *Residential Rent Regulation Act*. These roles have given her in-depth knowledge of residential tenancy law as well as extensive practical experience with quasi-judicial dispute resolution.

Dan Helsberg

Henry Daniel Helsberg is a self-employed financial consultant. Prior to this, Mr. Helsberg was a real estate salesperson for seven years, selling residential and commercial properties in the Sudbury area. Mr. Helsberg has a Master of Arts, Economics from the University of Guelph and has completed Ph.D. course work in Urban and Regional Planning at the University of Waterloo.

Board Members

Brenna Homeniuk

Brenna Homeniuk graduated from the University of Waterloo with a Bachelor of Science, Bachelor of Arts and a Master of Arts (Psychology) and from the University of Western Ontario with a Bachelor of Laws. She was called to the Ontario Bar in 2002. Before her appointment to the ORHT/ LTB, Ms Homeniuk practised in the areas of criminal law, family law, social assistance and landlord-tenant law in south-western Ontario.

Elke Homs

Elke Homs is an experienced adjudicator, who served as a member of the Immigration & Refugee Board for over 11 years before being appointed to the ORHT/ LTB. Ms Homs was educated in Germany and immigrated to Canada in the late 60's.

Judy Ireland *(Part-Time Member)*

Judy Ireland received a Bachelor of Arts (Honours) in history and a Master of Arts in education from the University of Toronto. Ms Ireland was a Vice-Chair of the Social Assistance Review Board from 1992-1998 and a member of the Immigration and Refugee Board of Canada from 1998 to 2006. She has been a volunteer for many years in community organizations.

Board Members

Kenneth Jepson

Kenneth Jepson received a Bachelor of Arts (Honours) and Bachelor of Education from the University of Western Ontario. After teaching at the elementary and secondary school levels, Mr. Jepson obtained his law degree from the University of Toronto, Faculty of Law. He practised civil litigation and then served as Associate Counsel to the Chair for the Workplace Safety and Insurance Appeals Tribunal. Mr. Jepson has also been a member of the License Appeal Tribunal. Most recently, Mr. Jepson developed continuing legal education programs for Osgoode Hall Law School.

Linda Joss *(Part-Time Member; expired July 17, 2007)*

Linda Joss commenced her career in the pioneer days of child care work, graduating from Thistletown Hospital. Mrs. Joss worked for the Children's Aid Society, and Metro Toronto's Community Service Department. She was a long term member and chair of the Centennial College Social Service Worker Advisory Board. Mrs. Joss' experience in emergency housing has offered her a depth of knowledge of housing issues and the impact of evictions.

Board Members

Greg Joy

Greg Joy was the Olympic Silver medalist in high jump at the 1976 Montreal Olympic Games. He was Canada's athlete of the year and received the Governor General's Award. In 1978 he broke the world record with a leap of 2.31 metres. He is also a recipient of the Queen's Golden Jubilee Medal for his work in his community. He worked as a sport and fitness consultant for the government of Ontario and as a teacher, and has coached several national and international champion athletes. He was also the Executive Director of the Ottawa Food Bank and was the principle partner of a successful corporate training company. He supported several charities and has been a member of numerous boards. He graduated from the University of Toronto and has a post graduate certificate in financial analysis from the University of Western Ontario.

Caroline King

Caroline A. A. King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained a Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the ORHT/ LTB, she practiced law for a number of years, and was active in her local community.

Board Members

Jessica Kowalski

Jessica Kowalski earned a law degree at Osgoode Hall Law School and was called to the Ontario bar in 1996. She practiced family law before leaving Toronto to work overseas. After working in the US, the Caribbean, Central America and Bermuda, Ms Kowalski returned to private practice in Toronto with a focus on civil litigation, including commercial and estates litigation. Prior to her appointment as a Member of the ORHT/ LTB, she was legal counsel at the Law Society of Upper Canada.

Claudette Leslie

Claudette Leslie graduated from the University of Toronto with a Bachelor of Arts in English and from Centennial College with a Diploma in Journalism. Ms Leslie is an experienced Communications and Public Relations professional who has worked in various roles including corporate and marketing communications and as a freelance writer. She has been involved in community volunteer work for more than two decades.

Olga Luftig

Olga Luftig graduated from the University of Toronto with a Bachelor of Arts (Honours) in history and political science, and a Bachelor of Education. She attained a Bachelor of Laws degree at the University of Windsor. Before her appointment to the ORHT/ LTB, Ms Luftig practised law both as a private practitioner and as the in-house Properties Lawyer for a corporation.

Board Members

Wayne MacKinnon

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the faculty of Arts and Science (Social Sciences), and then went on to do graduate work in Boston, Massachusetts. Before his appointment to the OLT/ LTB he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada. Mr. MacKinnon was a Member of the Mayor's Advisory Committee on Visible Minorities in Ottawa and a voluntary Member of Bell Canada's Consumer Advisory Panel. He was also Chair of the Police/ Community Relations Committee in Ottawa.

Ina Maher *(Part-Time Member)*

Ina Maher is a graduate of the University of Hong Kong (Bachelor of Arts (Honours), Diploma in Education and Master of Arts). Ms Maher taught for twelve years before joining the Hong Kong Civil Service where she served in various departments until she took early retirement to immigrate to Canada in 1990. Here, she enrolled in Osgoode Hall Law School, obtaining a Bachelor of Laws degree in 1994. Ms Maher worked for several years in the Ministry of Transportation before retiring again and becoming more involved in volunteer work.

Board Members

Ieva Martin

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that, she was a small business owner and a member of the Board of the Clarkson Business Improvement Association. Ms Martin was the President of the Latvian Canadian Cultural Centre. She obtained a Bachelor of Arts (Honours) in French and Canadian Studies from the University of Toronto.

Debra Mattina

Debra Mattina is a graduate of Mohawk College in Hamilton (Business Accounting and Medical Radiological Technology) and worked as a medical radiation technologist for 20 years. In 2003, Ms Mattina was awarded the Queen's Golden Jubilee Medal recognizing her volunteer efforts in her community over her lifetime.

Brian McKee

Brian McKee graduated from Algonquin College, School of Business. He has held senior management positions in the private sector over the past 25 years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

Board Members

Jim McMaster

Jim McMaster has been an active member of his community for over 20 years. He was a Member of the Ajax council for 12 years, where he also served as the Deputy Mayor; he was the Region of Durham Finance Chairman and Budget Chief; and, he was the Vice Chair of the Toronto and Region Conservation Authority.

Alan Mervin *(Part-Time Member)*

Alan Mervin attended York University, obtaining a Bachelor of Arts in sociology, and received a Bachelor of Laws from the University of Windsor. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Beatrice Metzler *(Part-Time Member)*

Beatrice Metzler is a graduate of Lakehead University, specializing in Education. She went on to obtain her accreditation in Association Management. Ms Metzler held the positions of General Manager of the Thunder Bay Chamber of Commerce and then Executive Director of the Thunder Bay area Industrial Training Organization. Following her career in association management, she established her own project management business. She has been an active director on several business, professional and community boards, both locally and provincially. Ms Metzler resigned on September 30, 2007.

Board Members

Christina Budweth Mingay *(Part-Time Member)*

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws from Queen's University. She was in private practice until 1991 with a focus on civil litigation. From 1991 to 2001, she worked with the Law Society of Upper Canada.

Gerald Naud

Gerald Naud graduated from the University of Ottawa with a degree in civil law. Following graduation, he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for numerous years. He held the position of Director of Business Development for CCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil *(Part-Time Member)*

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in psychology and criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor Law School. Ms Neil worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programs in various ministries. Since her retirement she has been engaged, part-time, in consulting work, specializing in human resource management.

Board Members

Patrice C. Noé *(Part-Time Member)*

Patrice Noé has been called to the bars of the provinces of Ontario and Alberta and the state of New York. She served as Solicitor for Hamilton, York and Edmonton, among her vast experience working with municipalities. She had also been a member of the local property standards committee and the committee of adjustment. Ms Noé has had much community involvement. She was Rule of Law Liaison in Armenia for the American Bar Association and Project Director for IFES in Ukraine. Ms Noé was a full-time Member of the ORHT/ LTB up to May 29, 2007; effective May 30, 2007 she became a part-time Member.

John Nolan *(Part-Time Member)*

John Nolan attended McGill University, obtaining a Bachelor of Arts in economics and political science, and received a Bachelor of Civil Laws and a teaching diploma from the University of Ottawa. Mr. Nolan has devoted over 25 years to working with troubled youth.

Babatunde Olokun *(expired November 15, 2007)*

Babatunde M. Olokun graduated from the University of Tuskegee, Alabama with a Bachelor of Science, from the John Marshall Law School, Atlanta, U.S.A with a Doctorate of Law and from the Nigerian Law School with a Bachelor of Laws. He carried on a general law practice in Nigeria from 1986 to 1999 until his appointment to the Nigeria Federal House of Representatives, where he served until 2003. Mr. Olokun was a volunteer Community Legal Worker with the Rexdale Community Legal Clinic until his appointment to the ORHT/ LTB.

Board Members

Jean-Paul Pilon

Jean-Paul Pilon is a lawyer and has practised law in Kitchener, Ontario since 1997. He holds a Bachelor of Arts (Honours) in political science and urban studies from Concordia University in Montreal and a law degree from the University of Windsor. He acted as duty counsel at ORHT hearings in Kitchener. He previously taught law as an Adjunct Professor at the University of Waterloo School of Optometry. Mr. Pilon is a member of the Canadian Bar Association and the Waterloo Law Association.

Lloyd Phillipps

Lloyd Phillipps graduated from Carleton University with a Bachelor of Arts in law and from Loyalist College with a Diploma in paralegal studies. He taught business courses at the Community College level. He was employed with the Ontario Ministry of Health, Emergency Health Services Branch, with the Ministry of the Attorney General, where he was a Provincial Prosecutor, and with the Ministry of the Environment. While with the Ministry of the Environment, he was the recipient of awards for Innovation and Environmental Protection.

Board Members

Jana Rozehnal

Jana Rozehnal is a graduate of the Faculty of Law of Jan Evangelista Purkyně (now known as Masaryk University) in Brno, Czech Republic, where she earned a Doctor of Law. Subsequently she graduated from the University of Toronto with a Bachelor of Laws. Prior to her appointment to the OLT/LTB Ms. Rozehnal was in private practice with focus on family law.

Egya Sangmuah

Egya Sangmuah graduated from the University of Toronto with a Doctorate in history, from the McGill Law School with a Bachelor of Laws, from Osgoode Hall Law School with a Master of Laws and from the University of Ghana with a Bachelor of Arts (Honours). He was a member of the Immigration Appeal Division of the Immigration and Refugee Board (IRB) from 1999 to 2006 and the Convention Refugee Determination Division of the IRB from 1996 to 1998. Prior to joining the IRB, Mr. Sangmuah was Counsel to the Ontario Ministry of Citizenship, Culture and Recreation, as well as a part-time Member of the Liquor Licence Board of Ontario. He was also a Law Clerk to the justices of the Ontario Court of Appeal.

Board Members

Freda Shamatutu

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia. She practiced law in Zambia for 20 years before immigrating to Canada. Ms Shamatutu has spent most of her professional career working for various organizations at the senior management level, including as Chief Legal Advisor and Legal Counsel for the Zambian national airline, Board Secretary and Director Support Services for Zambia Revenue Authority and Executive Director for the Advanced Legal Training Institute in Zambia (the Institute trains law graduates in bar admission courses and also provides lawyers with continuing legal education). Before her appointment as a Member to the ORHT/ LTB, Ms Shamatutu was employed as office manager for a law firm in Toronto.

Andi Shi

Andi Shi has worked in different areas. He has been a teacher, a researcher in community policing, a business manager, the executive director of a non-profit organization and a multidisciplinary consultant. He has been on the boards of a number of charitable/ non-profit organizations as well. Prior to his appointment to the ORHT/ LTB, he served as a Member of the Council of the College of Opticians of Ontario. He holds a Bachelor of Science from Eastern China Normal University and a Master of Science degree from the University of Regina.

Board Members

Yasmeen Siddiqui *(Part-Time Member)*

Yasmeen Siddiqui served on the Immigration and Refugee Board from 1996 to 2006 as a Member, Co-ordinating Member and Acting Assistant Deputy Chair. She is a Member of the International Refugee Law Judges Association and a Member of UNHCR's International Roster of Refugee Status Determination Professionals. Ms Siddiqui was also an anti-bias education trainer and consultant. She has a Bachelor of Arts degree from India and has studied mediation and negotiation at the University of Toronto.

Michael G. Soo *(Part-Time Member)*

Michael G. Soo graduated from the University of Victoria with a Bachelor of Arts in history and from the University of Western Ontario with a Bachelor of Laws. Mr. Soo has practiced law in Kitchener since 2002, with a focus on criminal, family and civil litigation. He is also a part-time instructor in law-related continuing education courses at Fanshawe College in London, as well as at Conestoga College in Kitchener.

Board Members

Nina Stanwick

Nina Stanwick has a Bachelor of Laws from the University of Windsor, as well as a Bachelor of Arts (Honours) in mathematics from the University of Guelph and a Bachelor of Education from the University of Toronto. She was called to the Ontario Bar in 1982. She was a Commissioner with the Residential Tenancies Commission, a Member of the Rent Review Hearings Board and a Rent Officer under the Rent Control Program. She was also a Member of the Immigration and Refugee Board prior to joining the ORHT/ LTB.

Valarie Steele (*expired July 4, 2007*)

Valarie Steele worked for several years in the financial (stockbrokerage) industry, specializing in the syndication of new issues. An experienced human resources consultant, she owned and operated a placement agency that supplied staff for the office environment primarily in the financial sector. Ms. Steele volunteered extensively in the community for over three decades where she was involved in a number of projects that benefited the community. She is past president of the Jamaican Canadian Association and Chairperson of the Community Police Liaison Committee at Division 13.

Board Members

Gerald Taylor

Gerald Taylor has many years of administrative background, having worked in the banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Christopher Trueman

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, he was elected as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C.

Board Members

Jeanie Theoharis

Jeanie Theoharis graduated from the University of Toronto having attained a Bachelor of Arts in commerce, economics and actuarial science. She studied law at State University of New York and University of Toronto where she received a Juris Doctorate in Law and a Bachelor of Laws. She is called to the bars of New York and Ontario. Before her appointment to the ORHT/ LTB, she practiced commercial litigation, construction lien law and commercial real estate at a firm in downtown Toronto.

Elizabeth Usprich

Elizabeth Usprich attended the University of Western Ontario where she earned a Bachelor of Arts in psychology and a Bachelor of Laws. In addition to practicing as a lawyer, Ms. Usprich has also taught law at the college level. She was actively involved in the London community and has sat on several boards of directors.

Rosa Votta

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the *Employment Standards Act*.

Board Members

Brad J. Wallace

Brad Wallace is a graduate of the University of Western Ontario, with a Bachelor of Arts (Honours) in politics, and the University of Windsor with a Bachelor of Laws. Before his appointment to the ORHT/ LTB, Mr. Wallace practised primarily in the areas of insurance defence, plaintiff personal injury, social assistance and landlord-tenant law. Mr. Wallace is a former member of the Board of Directors of the London and Area Food Bank, and a past member of the Board for the London Training Centre.

Karen Wallace

Karen Wallace graduated from Osgoode Hall Law School with a Bachelor of Laws. She articulated with the Ministry of the Attorney General. After her call to the Ontario Bar in 1994, Ms. Wallace had her own family law practice in Toronto. From 1998 to 2006 Karen Wallace was employed by Legal Aid Ontario.

Board Members

William Weissglas *(Part-Time Member)*

William Weissglas graduated from St George Williams (Concordia) University with a Bachelor of Arts (Honours) in psychology and from Osgoode Hall Law School with a Bachelor of Laws. After his call to the Ontario Bar in 1975, he practiced law in the City of Toronto until 2000. In 2000 Mr. Weissglas earned a Master of Laws Degree in Alternate Dispute Resolution and, in 2002, he was designated a Charter Mediator by the ADR Institute of Canada. Mr. Weissglas has held the position of Senior Legal Counsel to the Real Estate Council of Ontario. He is currently CEO of a mediation firm and is a part-time professor at Seneca College. Mr. Weissglas has also served as Chair of the City of Toronto Licensing Tribunal and is an instructor in the Law Society of Upper Canada's Skills & Professional Responsibility Program.

Mike Welsh

Mike Welsh is a graduate of the University of Waterloo with a Bachelor in Environmental Studies. He was Operations Manager, FedEx Logistics, at the John Deere Welland Works from 1995 to 2004. Mr. Welsh also worked as a transportation consultant and planner. He has also served as: Vice Chairman, Niagara-on-the-Lake Committee of Adjustment; Member, Niagara-on-the-Lake Irrigation Committee; Member, Niagara-on-the-Lake Fence Arbitration Committee; and, Member, Niagara-on-the-Lake Traffic and Parking Committee.

Board Members

Karol Wronecki *(Part-Time Member)*

Dr. Karol Wronecki has degrees in law and public administration from universities in Poland and Canada. After teaching constitutional law at the University of Wroclaw and at York University in Ontario, he joined the Ontario government in 1982. For 24 years, he worked in the administrative justice system as an adjudicator and a civil servant. He adjudicated in and managed programs dealing with rent control and landlord-tenant legislation. Until December 2006 when he retired, Mr. Wronecki was the manager of Central Region of the ORHT.

Additional Copies



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Landlord and Tenant Board Annual Report 2008-2009



**Minister of Municipal Affairs
and Housing**

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

**Ministre des Affaires municipales
et du Logement**

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. (416) 585-7000
Télec. (416) 585-6470
www.mah.gov.on.ca



Ontario

TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Landlord and Tenant Board for the 2008-2009 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jim Watson".

Hon. Jim Watson

Minister of Municipal Affairs and Housing

Landlord and

Tenant Board

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5

Tel: (416) 585-7295
Fax: (416) 585-6363

Commission de la

location immobilière

Bureau du Président

777, rue Bay, 12^e étage
Toronto (Ontario) M5G 2E5

Tel: 416-585-7295
Telec: 416-585-6363



Ontario

June 29, 2009

TO THE HONOURABLE JIM WATSON
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Landlord and Tenant Board Annual Report for the 2008-2009 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Lilian Ma'.

Dr. Lilian Ma
Chair
Landlord and Tenant Board

Table of Contents

Chair's Message	1
Year in Review	2
The Role of the Board	5
The Adjudication Process	6
The Mediation Process	9
Office and Hearing Locations	10
Customer Service Through the Call Centre	12
eGovernment	13
French Language Services	14
Budget and Revenues	15
Statistical Information	16
Decision Summaries	23
Biographies	30



CHAIR'S MESSAGE

I am pleased to report that over the past year, the Landlord and Tenant Board (the Board, the LTB) succeeded in resolving disputes between landlords and tenants in an expedient manner without any backlog. This, despite the fact that the Board's application receipts increased by approximately 6.5% over last year.

The Board has made progress over the past year on a number of important initiatives which will enable it to improve the quality and timeliness of its work as well as service to its clients. These initiatives include: electronic hearing pilot projects; a "Case Manager" pilot project; publication of redacted orders on the Board's website; release of an internal administrative policy on privacy and access to information; development of a human rights strategy and progress on a new case management system, Cmore (pronounced See-more). For more information about these initiatives, please refer to the "Year in Review" section of this report.

I wish to acknowledge the valuable feedback and input of stakeholders from the tenant and landlord communities. The on-going dialogue between the Board and these stakeholder representatives ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

I am grateful to the Members and staff of the Board who work together closely as a team to fulfill the LTB's dual mandate of providing information to landlords and tenants on their rights and obligations and providing dispute resolution through mediation and adjudication.

I appreciate the diligent efforts of Board Vice Chairs and Members in issuing decisions in keeping with the principles of timeliness, accessibility, fairness and customer focus. Together these principles underscore the effectiveness of the Board. The focus of the Board is to ensure that these principles are incorporated at every step in the execution of its mandate without fettering the independent decision-making power of the Board Members.

The Vice Chairs also play an important role in leading various committees and in the policy work they do for the Board. My appreciation and thanks go to Murray Graham, Kim Bugby, Eli Fellman, Régent Gagnon, Sean Henry, Guy Savoie and Jonelle van Delft.

I also acknowledge and thank the Board's administrative and legal staff – in particular, Diana Macri, Director of Operations and Anne McChesney, Director of Legal Services – for the leadership and high quality of service they provide in support of the Board's quasi-judicial mandate. I also wish to acknowledge the valuable support of my Executive Assistant, Suzanne Evans, and my Administrative Assistant, Sue Woodland.

This past year, the Board said good-bye to two people who contributed significantly to its success. In June 2008, Rick Hennessy, the Regional Manager of the Board's Toronto North regional office left to take up the position of Registrar at the new Human Rights Tribunal of Ontario. Rick participated in five major changes in landlord/tenant legislation. In January 2009, Dianne Dougall said good-bye to public service and retired from her position as Legal Director at the Board. Dianne has made an immense contribution throughout her 24-year career at the Ministry of the Attorney General.

Sincerely,

Lilian Ma, Ph.D., LL.B.
Chair
Landlord and Tenant Board



YEAR IN REVIEW

At the onset of the 2008-2009 fiscal year, the Board had just completed its first full year of implementing the *Residential Tenancies Act, 2006* (the RTA). That year, 2007-2008, the Board achieved a period of stability in its administration of the RTA, following a smooth transition on January 31, 2007.

In 2008-2009, the Board turned its attention to opportunities for enhancing its service delivery – such as the development of a new case management system, the publication of redacted orders, the monitoring and adjusting of its case management practices to improve accessibility and timely service to its clients, as well as the effective use of its resources.

Electronic Hearings Pilot Project

In January 2009, the LTB introduced a six-month pilot project expanding the use of telephone and videoconference technologies for mediation and hearings in a few locations across the province. The Board has used teleconference and videoconference hearings widely in northern Ontario for a number of years, therefore it was anticipated that this initiative would allow the Board to provide more timely service in the pilot areas and improve accessibility. The areas in which the pilot projects were implemented were the counties of Bruce, Grey, Haldimand/ Norfolk and Huron for telephone hearings. Face-to-face hearings were held where telephone hearings were not appropriate.

Initial results of the pilot projects show that telephone hearings work well where applications are uncontested. In the district of Thunder Bay, the Board introduced videoconferencing augmented by teleconferencing for hearings.

Case Manager Pilot Project

In its busy urban offices, the LTB normally conducts hearings in more than one hearing room simultaneously. However, each hearing block contains 40-50 cases, many of which are uncontested on the day of the hearing.

In March 2009, the LTB's Toronto North regional office began a "Case Manager" pilot project to seek ways to improve the handling of cases on the hearing day. The goal of the pilot project was to explore options for disposing of simple matters quickly (such as requests for withdrawals, adjournments and uncontested cases), thus allowing

the Member(s) sufficient time to deal with more complex cases. As a result, the idea of having a Case Manager to triage the cases on the day of hearing evolved.

In the first model explored, the role of the Case Manager was to triage the cases that appear on the hearing docket. Contested matters were sent to the Hearing Member(s) or the Mediator(s),

Highlights:

- *Electronic Hearings Pilot Project*
- *Case Manager Pilot Project*
- *Redacted Orders*
- *Administrative Policy on Privacy and Access to Information*
- *Human Rights Guideline*
- *New Case Management System*



YEAR IN REVIEW

depending on the interests of the parties and/ or the suitability of the issues. Uncontested matters, withdrawal requests, consent and straightforward adjournment requests and consent orders were handled by the Case Manager who is also a Board Member.

In the second model, all straightforward cases were sent from the Hearing Member(s) to the Case Manager.

At the end of the 2008-2009 fiscal year, the LTB is examining a third model in which all parties on their first appearance for a case go before the Case Manager, while second appearances go straight to a Hearing Member. In this model, the scheduling of cases will also be changed to achieve the optimal result. The results of these projects will be evaluated in 2009-10.

During the next year, the Board will continue to explore the practicality of the Case Manager role as well as the potential benefit of further changes to scheduling practices and standards to facilitate hearing day management.

Redacted Orders

Also in March 2009, to provide the public with transparency of its decisions, the Board began posting redacted orders on its website. Redacted orders are orders from which information has been removed to protect the privacy of individuals named in the order, having regard to the provisions of the *Freedom of Information and Protection of Privacy Act*.

The orders being redacted are those that result from contested applications. The work involved

in redacting orders is a joint effort of Board Members and staff. Members write their decisions in a “pre-redaction” format which facilitates the transfer and organization of orders on the Board’s website, by application type, month and region.

The Board continues to post summaries of its selected decisions. Selected decisions are decisions chosen by a committee of the Board. These decisions are not binding on Members of the Board, nor are they intended to reflect the official position of the Board on how to interpret or apply the law. The criteria that are applied in choosing selected decisions are set out on the Board’s website.

Administrative Policy on Privacy and Access to Information

In April 2009, an Administrative Policy on Privacy and Access to Information was issued to all Board staff and Members. The policy sets out the Board’s policy and procedures related to access to Board information by the public. It also sets out measures the Board has taken to protect the privacy of individuals whose personal information is in the Board’s possession. The policy incorporates best practices concerning the handling of paper files and electronic devices.



YEAR IN REVIEW

Human Rights Guideline

Over the course of the fiscal year, the Board's Rules and Guidelines committee developed a Human Rights Guideline as part of the Board's overall Human Rights Strategy to address its obligations under the *Human Rights Code* (the Code). The Board consulted with members of the Stakeholder Advisory Committee and the Ontario Human Rights Commission on its draft Guideline.

The Guideline, which addresses the various Code issues that may arise in a Board proceeding, is expected to be released in the summer 2009.

In conjunction with the development of the Human Rights Guideline, the Board has been developing tools and training to assist Board Members and staff in ensuring that the Board continues to meet its obligations under the Code.

New Case Management System

The Board's increased workload over the past fiscal year has represented a challenge, particularly as the Board has been managing budgetary pressures through vacancy management.

Since the fall of 2008, the Board has also been diverting call centre resources to assist in testing its new case management system, Omore, which was launched shortly after the end of the fiscal year covered by this report.¹ The patience and understanding of the Board's clients who have coped with longer than usual wait-times on the call centre and at the front counters is very much appreciated.

The work the Board has done over the past year has laid the foundation for its future success in meeting the needs of the landlord and tenant community in Ontario. The Board is committed to working with its stakeholders to achieve service excellence.

¹ Omore was launched successfully on April 27, 2009.



THE ROLE OF THE BOARD

Section 1 of the *Residential Tenancies Act, 2006* (the RTA) sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

The RTA, which establishes the Landlord and Tenant Board, confers a dual mandate on the Board.

Firstly, the LTB exercises a quasi-judicial function under subsection 168(2) of the RTA, which provides that the Board has jurisdiction to determine all applications under the RTA, and section 174, which provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act.

Second, pursuant to section 177 of the RTA, the LTB is required to give information to landlords and tenants about their rights and obligations.

Mission Statement

Thus the Board has adopted the following Mission Statement: The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

The Board strives to provide, pursuant to section 183 of the RTA, the most expeditious method of determining the questions arising in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

“ The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the Residential Tenancies Act and provide balanced and timely dispute resolution in accordance with the law” .



THE ADJUDICATION PROCESS

The LTB handles a large volume of cases, resulting from the significant number of renters in Ontario (approximately 29% of Ontario's households²). The Board strives to ensure that its application resolution process meets both efficiency and quality service objectives. LTB adjudication is a final method used to resolve disputes between landlords and tenants. It consists of a hearing where the two parties appear before a Board Member who hears the case and makes a decision in accordance with the law.

Application Types

The work of the Board can be divided on a "case type" basis (see page 18, *Applications by Type*). The bulk of the Board's workload consists of applications from landlords to terminate the tenancy and evict for non-payment of rent and to collect arrears of rent (Form L1). The most common tenant application is an application about tenant rights (Form T2), dealing with such issues as illegal entry and interference with reasonable enjoyment of the rental unit. Another type of application the Board handles is a landlord's application for an above-guideline rent increase (Form L5), which often involves multiple tenants.

Average Processing Times

The following table illustrates the average length of time from the filing of an application to the initial hearing date for these applications, and the average time from the final hearing date to the date the order is issued. These statistics on timelines generally correspond to the complexity of the application types:

Application Type	Average time from application filing date to initial hearing date	Average time from hearing date to order issuance date
Form L1	21.5 days	1.56 days
Form T2	33.09 days	5.78 days
Form L5	89.55 days	14.5 days

Board Member Appointments

When an application is filed with the Board, it will most likely result in a decision from a Board Member. Board Members, appointed by Order-in-Council, perform the function of adjudicators of the applications. They are selected from a list of qualified candidates who have applied to the Public Appointments Secretariat. They undergo a rigorous and competitive interview and selection process and, based on the results of the interview process, the Chair will make recommendations to the Minister in regard to their appointment. The Minister makes a recommendation to the Cabinet who decides on the appointment.

² 2006 Census data obtained from Statistics Canada. The population of Ontario was approximately 12 million at the time of the 2006 Census.



THE ADJUDICATION PROCESS

Board Member Appointments (*Cont'd*)

Once Members are appointed to the Board, they receive the necessary training from the Board to become adjudicators. The initial training period, which spans a number of weeks, incorporates classroom instruction, hearing room observation and simulation and mentoring. The training provided by the Board, augmented by their previous experience and knowledge, prepares the Members to deal fairly and effectively with the issues that come before them.

Most Members are on full-time appointments; there are also some part-time Members. The Members report to the Chair of the Board, through a regional Vice Chair, and are located in different areas of the province as there are 8 regional offices to facilitate regional representation and service delivery.

Professional Development

Members from across the province meet together once a year for professional development. They also meet more frequently in their regions. These meetings provide on-going training and address any emerging issues. New case law or legislation that has a direct impact on their decision-making are summarized in legal memos by the Board's Legal Services Branch and distributed to Members. A minimum of four days are set aside each year for Members' continuing professional development. At times, Members also use on-line training to facilitate access. A professional development committee headed by a Vice Chair oversees ongoing educational opportunities for the Members.

Rule and Guideline Making

Although Board Members are independent decision-makers, the Board has an interest in achieving consistency and coherence in decision making. Rule and Guideline-making are mandated legislatively (section 176 of the RTA).

The Board has adopted the following process as a means of elevating an issue to the point of requiring rule or guideline-making. Issues that are identified from discussions held at regional Members' meetings, or by the Board's Legal Services Branch (LSB) or Program Development Unit (PDU), or from discussions with stakeholders, are first presented and discussed at "roundtables" of Vice Chairs.

When there is consensus or a preferred position is reached with respect to an interpretation of the legislation by the Vice Chairs, with the input of LSB and PDU, the matter may be referred to the Rules and Guidelines Committee for the development of a new or revised Rule or Guideline. Then, before new or proposed changes to the Rules and Guidelines are finalized, they are sent to members of the Board's Stakeholder Advisory Committee for consultation prior to being adopted by the Board and posted on the Board's website for the public.

Guidelines are not binding on Members in their decision-making, but they should generally be followed unless there is reason not to do so. The guidelines are available to the public so that parties know what to expect when they come before the Board.



THE ADJUDICATION PROCESS

Committee Work

Many Board Members, including Vice Chairs, sit on committees and working groups such as the Rules and Guidelines Committee, the CaseLoad Order Group (to review the format of Board orders), the Selected Decisions Committee, the Adjudicative Best Practices Committee, the Capacity Committee and other groups that gather opinions on specific issues. Vice Chairs often lead these committees which are constituted of Board Members, staff and legal services. Committee work is an important aspect of the work of the Board, as the Board seeks to identify and address important legal and procedural issues.



THE MEDIATION PROCESS

The Landlord and Tenant Board employs 25 Mediators throughout the province to provide voluntary mediation services to parties involved in applications before the Board. An application can be resolved through:

- adjudication (an order is signed by a Board Member),
- mediation (an agreement is signed by the parties only), or
- a consent order (an order based on an agreement between the parties is signed by a Member).

How Mediation Works

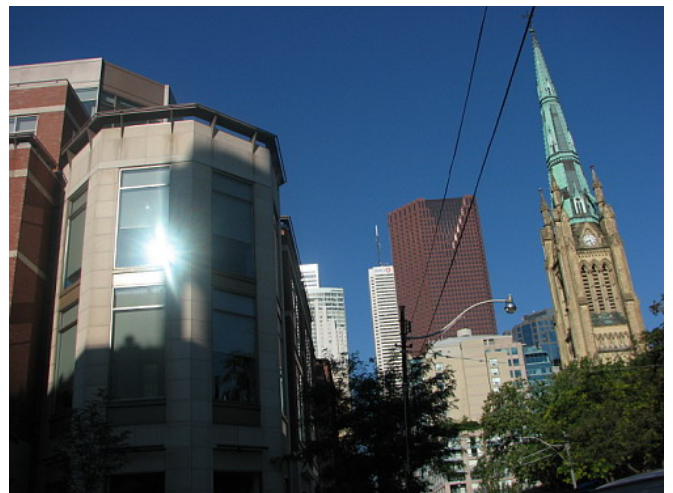
In adjudication, the outcome is decided by a Board Member, within the limits of the provisions of the legislation, having regard to all the evidence and circumstances elicited at the hearing. In mediation, however, the parties voluntarily work with a Board Mediator to achieve a desired outcome for the parties, which may contain terms outside the limits provided by the legislation. If successful, they will resolve their disputes through a mediated agreement signed by the parties, copies of which are not kept by the Board. Sometimes, parties choose, after mediation, to come before a Board Member to obtain a consent order which is enforceable under the RTA.

Mediation is a valuable tool in the daily work of the Board. Next year, the Board anticipates the recruitment of a Mediator Manager to oversee the management and performance of the Mediators at a provincial level. The Manager will establish a preferred approach to mediation, finalize the mediation best practices, and

develop protocols, standards and performance measures.

Benefits of Mediation

During the 2008-2009 fiscal year, approximately 43% of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/ or resulted in consent orders. Mediation continues to be an important and effective non-adversarial method of resolving disputes, helping to save tenancies and reduce social costs, while strengthening the relationships between landlords and tenants.





OFFICE & HEARING LOCATIONS

The Board strives to make its services accessible to Ontarians across the province. There are eight Regional Board Offices which offer full services to clients. Landlords and tenants can file applications and obtain information from one of the Board's customer service representatives about their rights and obligations under the law, as well as attend hearings and participate in mediation.

Regional Offices

Approximately 65% of LTB hearings are held in these eight Regional Offices located in:

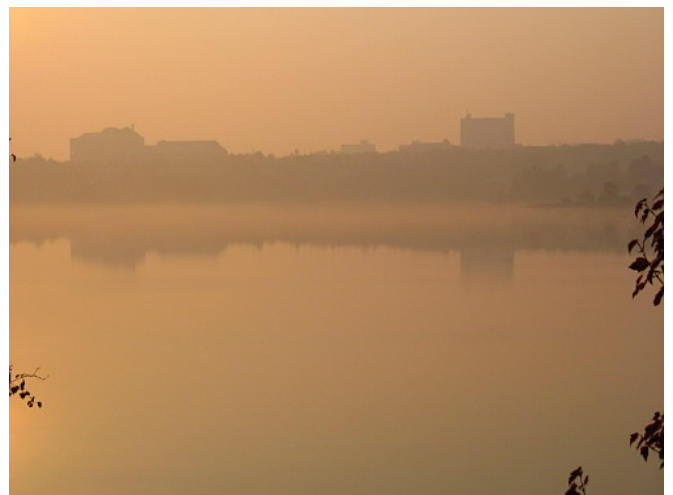
- Hamilton (Southern Region)
- London (Southwest Region)
- Mississauga (Central Region)
- Ottawa (Eastern Region)
- Sudbury (Northern Region)
- Toronto East - Scarborough area (Toronto East/ Durham Region)
- Toronto North - North York area (Toronto North Region)
- Toronto South - Downtown area (Toronto South Region)

Off -site Hearing Locations

There are 36 "off-site" hearing locations to which Board Members and Mediators travel for hearings on a regular basis. These are: Barrie, Belleville, Bracebridge, Brantford, Brockville, Burlington, Chatham, Cobourg, Cornwall, Dryden, Elliott Lake, Goderich, Guelph, Hawkesbury, Kingston, Kitchener, Lindsay, Newmarket, North Bay, Orangeville, Owen Sound, Pembroke, Perth, Peterborough, Port Elgin, Sarnia, Sault Ste. Marie, Simcoe, St. Catharines, St. Thomas, Stratford, Thunder Bay, Timmins, Whitby, Windsor and Woodstock.

Electronic Hearings Pilot Project

There are also a number of locations, particularly in the northern parts of the province, where the Board holds hearings by videoconference and teleconference. In late 2008, the Board began considering how technology can help deliver services in a more timely and accessible manner. To that end, in early 2009, a pilot project was initiated to test the expanded use of telephone and videoconference technologies for mediation and hearings in a few locations across the province. The areas affected are the counties of Bruce, Grey, Haldimand / Norfolk and Huron where telephone hearings were piloted, as well as the district of Thunder Bay where videoconference hearings were piloted.



Sudbury Ontario



OFFICE & HEARING LOCATIONS

ServiceOntario Partnership

The Board has also partnered with ServiceOntario in over 70 locations across the province, to distribute forms and brochures, and to receive applications and other documents on behalf of the Board. This move helps to improve front-counter accessibility for clients throughout the province.

In the fall of 2008, the Board successfully transferred the responsibility for providing front-counter services from satellite offices in nine locations to ServiceOntario. The locations are: Kingston, Peterborough, Whitby, Barrie, Owen Sound, Kitchener, St. Catharines, Windsor and Thunder Bay. This initiative ensures that landlords and tenants have access to consistent and predictable Board services across Ontario outside the regional offices. The transfer is consistent with the government's goal of developing a "one-stop shopping" model to access government programs and services through ServiceOntario.

Boundary Changes

In the spring of 2009, the Board is making further adjustments to its structure by implementing some changes to its regional boundaries. These changes are brought forward to align the way the Board designates its regional boundaries with those established by the Ontario Public Service. These adjustments will not result in any changes to the staffing in Board offices, nor to any of its hearing locations. A list of the affected counties is set out in the following table:

The County of ...	Previously in Region	Has moved to ...
Bruce	Central	Southwest
Grey	Central	Southwest
Dufferin	Central	Southern
Parry Sound	Central	Northern
Halton	Southern	Central
Kawartha Lakes	Toronto East	Eastern
Haliburton	Toronto East	Eastern
Peterborough	Toronto East	Eastern
Northumberland	Toronto East	Eastern
Hastings	Toronto East	Eastern
Prince Edward	Toronto East	Eastern



CUSTOMER SERVICE THROUGH THE CALL CENTRE

Section 177 of the RTA sets out the Board's mandate to provide information to landlords and tenants about their rights and obligations under the legislation. In fulfilling this mandate, the Board's virtual Call Centre handles customer inquiries, in both English and French, through toll free lines. In the Greater Toronto Area, the phone number is (416) 645-8080; outside Toronto the number is 1-888-332-3234. Customer service representatives are available during regular business hours. An automated telephone service answers frequently asked questions 24 hours a day, 7 days a week. This year, the Board responded to over 500,000 telephone calls.

Landlords and tenants can sometimes resolve their disputes once they have been informed about the law. Also, if a landlord or tenant has filed an application with us, they can inquire about the status of their case via the telephone.





E^{GOVERNMENT}

The Board's website, www.LTB.gov.on.ca, is visited more than one million times each month. All Board forms and brochures, the Rules of Practice, Interpretation Guidelines and the Board's complaint procedures are available on the website, in both English and French.

Brochures

Also available on the website is a *Guide to the Residential Tenancies Act* in Arabic, Chinese, Farsi (Persian), Korean, Punjabi, Russian, Spanish, Tamil, Urdu and Vietnamese³, as well as in English and French. Apart from this Guide, there are over 30 brochures posted on the website providing information on all major aspects of the RTA and the Board's services. Topics include the rent increase guideline, care homes, how to file an application, ending a tenancy, illegal lockouts, Board fees, information about a hearing and information for new tenants.

Clients can also find information on the website about the progress of their application, the date of their hearing and whether an order has been issued.

Case Management System

Following an extensive period of development, testing and training during the fiscal year covered by this report, the Board will begin phasing in its new case management system, Cmore in Spring 2009. Work on Cmore placed a tremendous demand on the Board's administrative resources this past fiscal year and continues to remain a priority for Head Office staff as it is implemented.

Cmore is being rolled out gradually to minimize any disruption to service for clients and is expected to be fully implemented by mid-July 2009. Along with Cmore come changes to the Board's file numbers – two digits reflecting the year an application was filed will now appear at the end of the file number. Once Cmore is fully implemented the Board will begin work on eFiling which is expected to be implemented sometime late in 2010.



The Cmore 'logo'

³ These are the ten most spoken languages, in addition to English and French, in Ontario according to 2001 Census data obtained from Statistics Canada.



FRENCH LANGUAGE SERVICES

The Board provides service to the public in both official languages in accordance with the *French Language Services Act* (the FLSA). All offices in areas designated by the FLSA have bilingual staff available to assist French-speaking clients. The Board's policy concerning the provision of French language services is set out in its Rules of Practice.

Services at Board Hearings

Where a party is entitled to and has requested French language service, the Board attempts to schedule a French-speaking Member to hear the case. Where this is not possible within a reasonable period of time, the Board will schedule the matter before an English-speaking Member and will ensure that an interpreter is present.

About 10% of Board Members can conduct hearings in French, and 8% of its Mediators can provide mediation service in French. Less than 0.5% of Board hearings were conducted in French over the past fiscal year.

All correspondence and decisions of the Board are provided in French to a party who has requested and is entitled to French language services.



Rideau Canal, Ottawa Ontario



BUDGET AND REVENUES

The following table shows the Expenditures and Revenues of the LTB (and its predecessor, the Ontario Rental Housing Tribunal) for the 2008-09 and previous two fiscal years.

	2006-07* (\$)	2007-08* (\$)	2008-09 ** (\$)
<u>Expenditure</u>			
Salaries	15,440,770.00	16,930,722.00	16,302,172.00
Benefits	2,303,653.00	2,406,678.00	2,460,798.00
Travel & Communications	1,625,171.00	1,523,562.00	1,278,264.00
Services	8,167,452.00	5,525,919.00	8,010,036.00
Supplies & Equipment	840,758.00	499,692.00	395,243.00
Total	28,377,804.00	26,886,573.00	28,446,513.00
<u>Revenue</u>	10,266,175.00	10,430,094.00	10,892,563.00

*Source of Data: Public Accounts

**Fiscal 2008-09: Draft pending publication.

Note:

The Public Accounts reflect consolidated numbers for the LTB and IEU (the Investigations and Enforcement Unit of the Ministry of Municipal Affairs and Housing). Accordingly, to arrive at LTB numbers, Public Account numbers have been adjusted to remove IEU numbers. The Public Accounts also include office lease costs that were not included in the numbers reported in the 2006-07 and 2007-08 annual reports.

Administrative Review

In late 2007, at the request of the Deputy Minister, the consulting group KPMG conducted an Administrative Review of the Board. The emphasis of the Review was on management processes, structure, governance and accountabilities in order to identify long-term efficiencies and opportunities for savings.

Phase 1 of the Administrative Review was successfully implemented October 1, 2008 and has already achieved some efficiencies and savings. In Phase 1, the Board transferred the responsibility for providing its services from its counters in nine locations (in Thunder Bay, Barrie, Kitchener, Windsor, Owen Sound, St. Catharines, Whitby, Peterborough and Kingston) to ServiceOntario. It also clarified its internal management systems to facilitate operational efficiency.

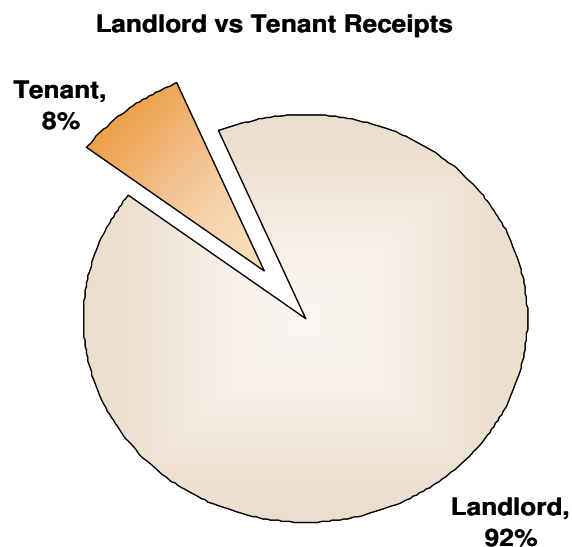


STATISTICAL INFORMATION

Landlord vs Tenant Receipts

From April 1, 2008 to March 31, 2009, the Board received 85,840 applications filed under the RTA. This represents a substantial increase of 5,288 more applications over last year's workload, approximately 6.5%. The increase may be attributable, at least in part, to the difficult economic climate experienced by Ontarians in the past year.

The distribution of application receipts has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the Board's predecessor, the Ontario Rental Housing Tribunal. This past year was no exception, with 92% of applications filed by landlords and 8% filed by tenants.

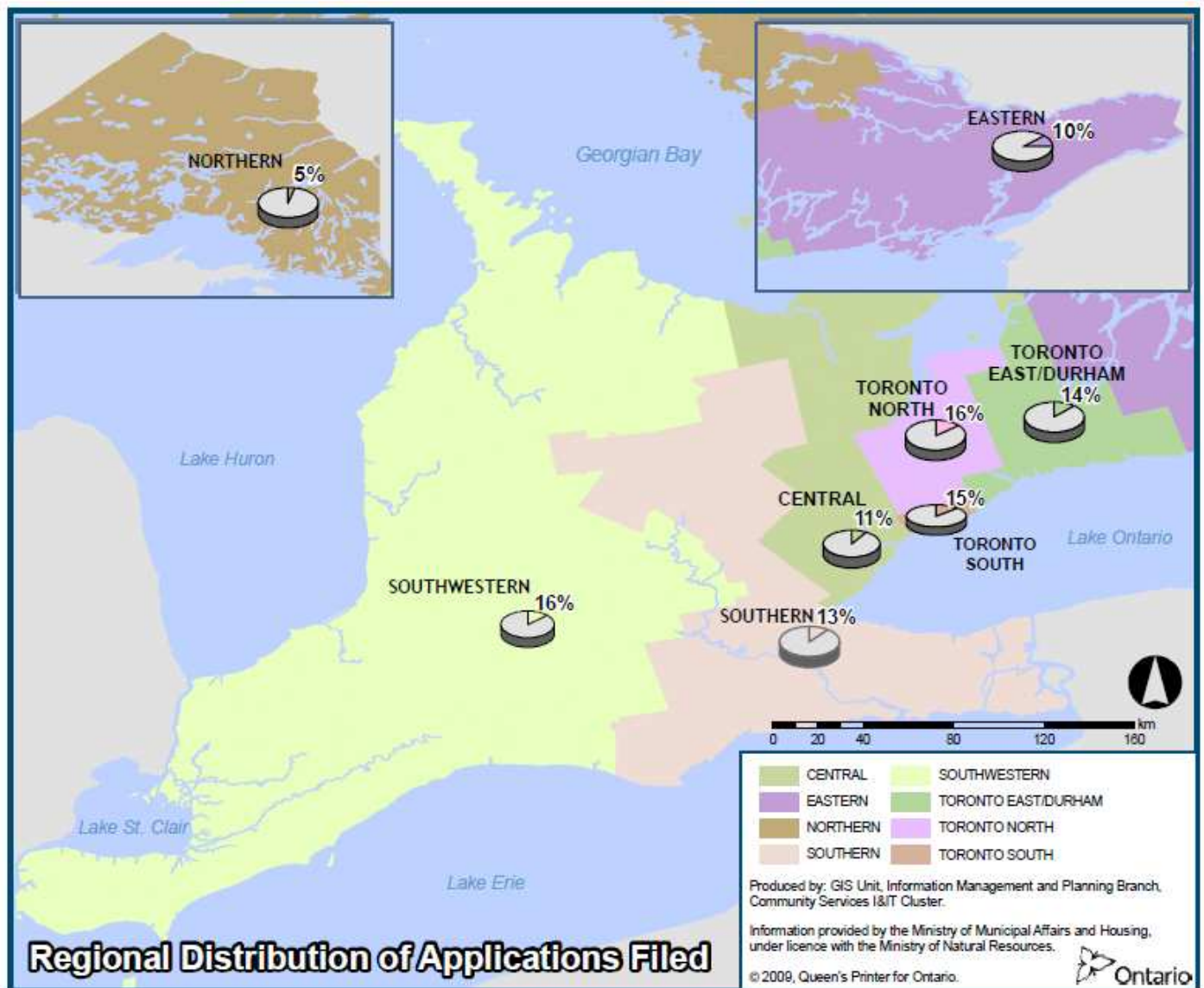




STATISTICAL INFORMATION

Regional Distribution of Applications

The regional distribution of applications filed with the Board is as follows:



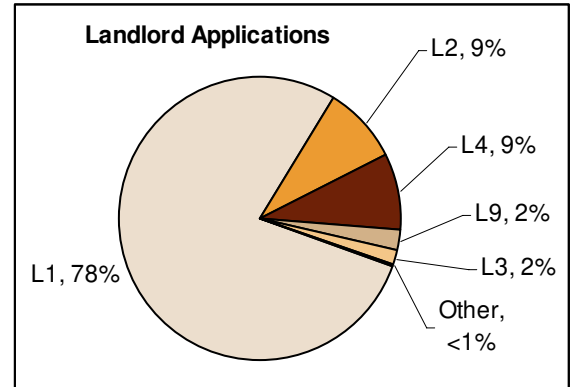


STATISTICAL INFORMATION

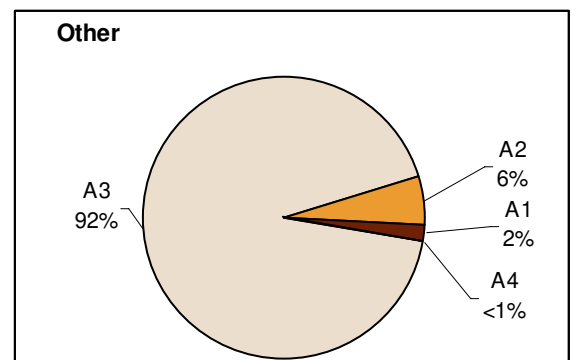
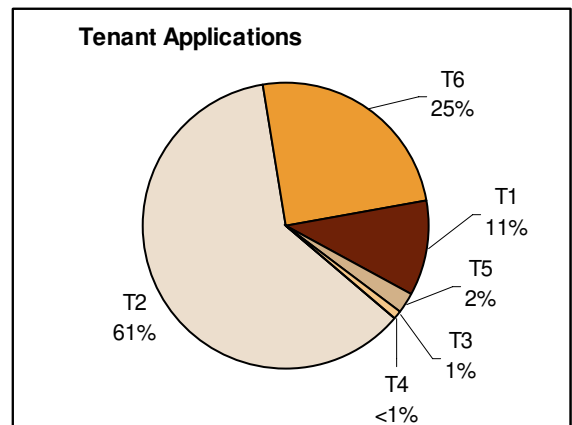
Applications By Type

Termination of tenancy and eviction applications continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 68.8% were for termination of tenancy because of arrears of rent.

The following charts show the distribution of the Board's workload, by type of application for the 2008-2009 fiscal year.



Case Type	Application description	# of Cases
L1	Terminate & Evict for Non-Payment of Rent	59,053
L2	Terminate for Other Reasons & Evict	6,535
L4	Terminate the Tenancy: Failed Settlement	6,510
A3	Combined Application	4,255
T2	Tenant Rights	3,632
L9	Application to Collect Rent	1,692
T6	Maintenance	1,462
L3	Termination Tenant Gave Notice or Agreed	1,263
T1	Rent Rebate (e.g. illegal rent)	654
A2	Sublet or Assignment	254
L5	Rent Increase Above the Guideline	228
T5	Bad Faith Notice of Termination	129
A1	Determine Whether the Act Applies	89
T3	Rent Reduction	47
A4	Vary Rent Reduction Amount	5
L8	Tenant Changed Locks	20
L6	Review of Provincial Work Order	10
L7	Transfer Tenant to Care Home	1
T4	Failed Rent Increase Above Guideline	1
Total		85,840





STATISTICAL INFORMATION

Applications by Type (TPA)

During the 2008-2009 fiscal year, in addition to its RTA workload, the Board continued to resolve applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), but remained unresolved on January 31, 2007 when the RTA was proclaimed. The TPA was the legislation in effect prior to the implementation of the RTA on January 31, 2007.

Pending TPA Applications

At the beginning of this fiscal year, 125 TPA applications were still active. Between April 1, 2008 and March 31, 2009, the Board resolved 73 of those applications, leaving 66 TPA applications awaiting resolution. (The number of unresolved TPA applications may increase slightly as a party to a TPA application may, for example, still file a request to review a TPA order and this would be added to the TPA workload.)

Transitional Rules

Applications filed under the TPA continue to be resolved pursuant to the TPA, but with regard to certain transitional rules brought in by the RTA. For example, the Board cannot issue a default order on a TPA application if it was not resolved by January 31, 2007. Also, a Member hearing a TPA eviction application is now *required* to review all the circumstances of the application under section 83 of the RTA and to always consider delaying or refusing to grant a tenant's eviction. This is different from the *discretionary* provision that existed under a similar provision (section 84) in the TPA.

The following table shows the distribution of the TPA applications resolved this past year:

Case type	Application description	# of Cases
L1	Terminate & Evict for Non-Payment of Rent	22
T2	Tenant Rights	13
A3	Combined Application (L or T)	20
L5	Rent Increase above the Guideline	3
L2	Terminate & Evict for other reasons	10
T6	Maintenance	2
L4	Terminate the Tenancy: Failed Settlement	1
A2	Sublet or Assignment	2
	Total	73



STATISTICAL INFORMATION

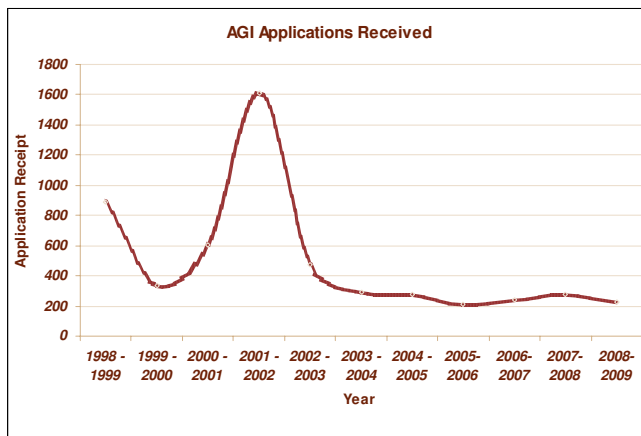
Above Guideline Rent Increase Applications

As the following table demonstrates, the number of applications for rent increase above the guideline has been decreasing since 2001. This past year also showed a decrease over last year, with 228 applications of this type received by the Board, compared to 274 for the 2007-2008 fiscal year.

While the number of above guideline rent increase applications (AGIs) make up less than 1% of all applications received at the Board, these applications account for a relatively significant amount of preparation and hearing time for the Board's staff and Members. The Board continues to rely on mediation to help manage the workload for these applications.

Amended Applications Form (L5)

The Form L5 used by landlords to make this type of application to the Board was amended in November 2008, requiring landlords to provide the "useful life" of each capital expenditure item claimed, in order to facilitate the mediation of these applications. The amended form also required landlords to provide the file number for any previous AGI order to eliminate the possibility of double-counting, where a landlord previously applied for and obtained a rent increase for a particular item.





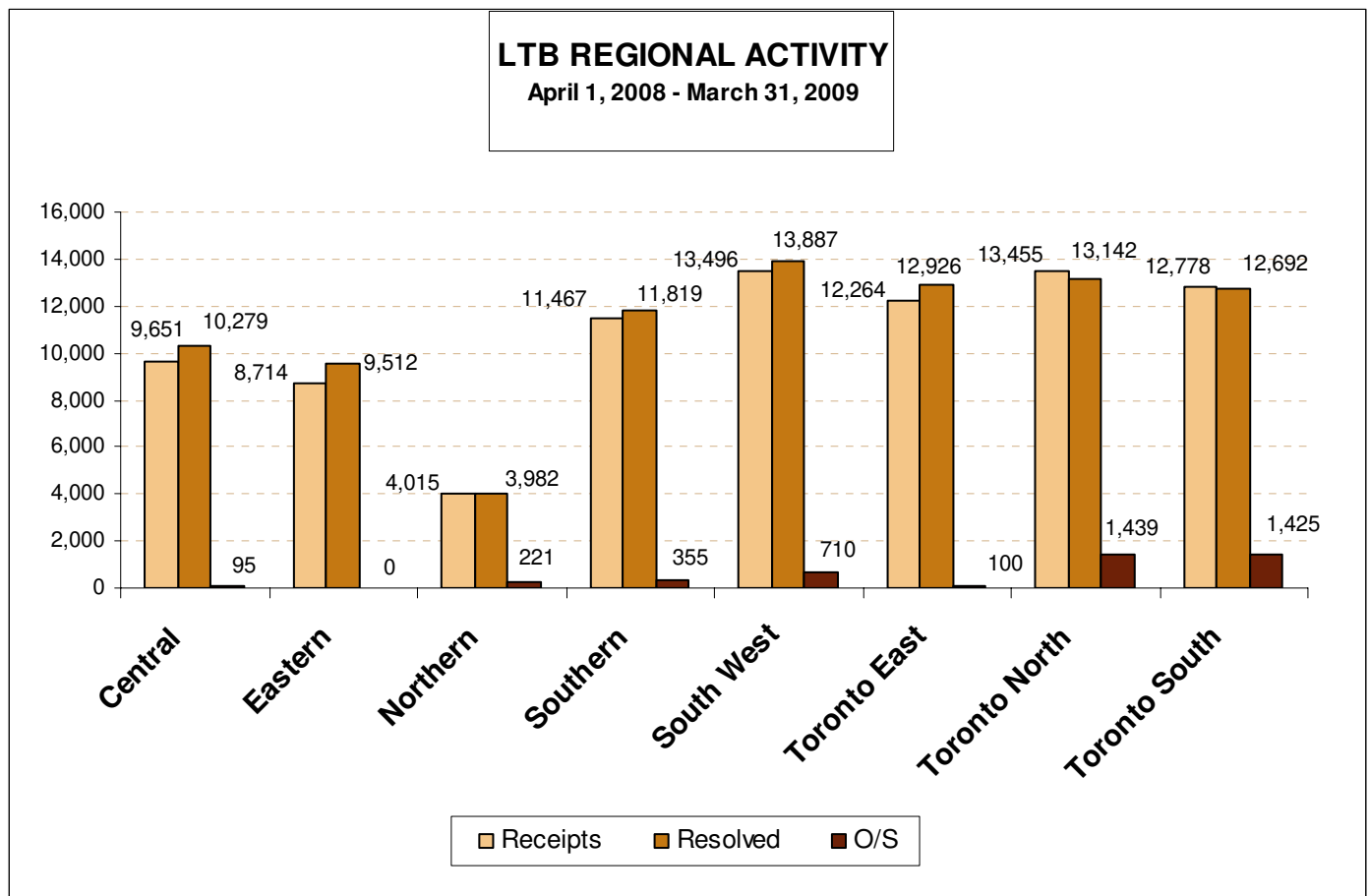
STATISTICAL INFORMATION

Application Resolution

Over the past year, the Board has continued to resolve applications without creating a backlog, despite the challenge of an increased workload. The Board has maintained only one month's receipts as open files. Most orders are issued within 20 days of the receipt of the application and even more complex orders are usually issued within 30 days. This year, 4,074 RTA applications remained unresolved as of March 31, 2009. This number represents less than one month's average work at the Board.

For the fiscal year 2008-2009, the Board received a total of 85,840 applications and resolved 88,239 applications. Some applications may generate more than one resolution because of the re-opening and review processes.

The following chart shows how application receipts and resolutions have remained relatively constant during the year.





STATISTICAL INFORMATION

Reviews and Appeals

A party to an application may ask for a review of a Board order if they believe that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding. The authority for requesting a review comes from section 21.2 of the Statutory Powers Procedure Act (the SPPA), subsection 209(2) of the RTA, and Rule 29 of the Board's Rules of Practice. The Rules also allow a Vice Chair of the Board to initiate a review.

The Review Process

A review of a Board order is decided by a Member other than the Member who heard the application and issued the order. Upon receipt of a review request, a Member conducts a preliminary review, without holding a hearing, to determine whether or not the order may contain a serious error or a serious error may have occurred in the proceedings. Where the Member determines that there is a possibility of a serious error affecting the result of the case, a review hearing will be held. Otherwise, the Member will dismiss the request for review.

Over the 2008-2009 fiscal year, the Board received 1,759 requests for review, of which approximately 65% were sent to a hearing. Please note that, in its 2007-2008 annual report, the Board incorrectly reported the number of requests for review received as 668; the correct number of requests received for that period was approximately 1,410.

Appeal to Divisional Court

Section 210 of the RTA also provides that any person affected by a Board order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law.

Over the 2008-2009 fiscal year, 161 Notices of Appeal of Board orders were received by the Board.



DECISION SUMMARIES

CEL-11709

–s. 27 –entry into rental unit with notice - s. 35 –changing locks - s. 64 –termination for cause, reasonable enjoyment

The Landlord had given the Tenant notice that the Landlord intended to enter into the Tenant's rental unit between the hours of 11 a.m. and 8 p.m. to inspect the rental unit to determine if it was in a good state of repair and fit for habitation. The Tenant refused entry to the Landlord. The Landlord also claimed that the Tenant had installed a form of pad lock on a chain which, in an emergency, would block the Landlord from having access to the rental unit. The Landlord did not have a key to the pad lock and had not authorized its use by the Tenant.

The Member dismissed the application relating to the issue of entry into the rental unit on the basis that the notice of entry did not comply with subsection 27 (3) of the RTA as it did not specify a time of entry within the twelve hour window (8 a.m. to 8 p.m.) set out in that provision of the RTA. The Member found that the Landlord did not have to be as specific as to set out the exact hour and minute of entry, but that a nine hour period does not comply with the RTA.

The Member found that the intent of section 35 of the Act is to ensure that a landlord has access to a rental unit in an emergency and ordered the Tenant to provide the Landlord with a key to the door and locking mechanism.

CEL-11712

–s 18 –covenants running with the land –s. 105 –security deposits, limitation –s. 106 (2) – amount of rent deposit –Mortgages Act s. 47 –person deemed to be landlord

Pursuant to the *Mortgages Act* a mortgagee in possession is deemed to be the Landlord. The Tenant had voluntarily prepaid rent to the prior Landlord. The tenancy agreement between the Tenant and the prior Landlord did not contain a term providing for prepaid rent in an amount greater than one month's rent. The prepayment of rent occurred after the tenancy agreement had been entered into between the prior Landlord and the Tenant.

The Member, in allowing the current Landlord's application for arrears of rent and termination, found that the lease did not provide for the Tenant to prepay rent for a particular period and, therefore, the prepayment of rent was not a covenant intended to run with the land. The Member noted that in *Royal Bank of Canada v. Boutis*, the court characterized prepayment of rent as security deposits and, that "... the requirements of the Act dealing with such security deposits prevail over any agreement to the contrary between the parties." The Member concluded, "Clearly, the amount paid by the Tenant to the Prior Landlord is not in accordance with the Act and therefore, not legal ...As such, the Tenant is not entitled to a credit for the funds prepaid to the Prior Landlord and the Landlord is not responsible to make the Tenant's circumstances right."

SOL-12512

–s. 59 –non-payment of rent –law of agency –superintendent having apparent authority to bind the landlord

During a hearing, the Tenant disputed the amount of monthly rent being claimed by the Landlord. In February 2007, the Tenant had received a notice that raised the rent to \$846.00 per month. The superintendent of the residential complex, however, advised the Tenant that the Tenant was required to pay only the rent in effect prior to the increase, that is, \$825.00 per month. Another year passed and in 2008, the Landlord gave another rent increase notice raising the rent to \$867.00 and the Tenant then paid \$846.00 per month following that notice.

The Member found that the Tenant reasonably relied upon the superintendent's apparent authority as an agent for the Landlord to bind the Landlord and to permit the Tenant to pay the lower rent of \$825.00 for the year 2007-08 and the increase of the rent in February, 2008 was found to be the guideline amount (1.4%) applied to the \$825.00 per month rent (\$836.55 per month).

SOL-14390

- clause 63 (1) (b) –termination for cause –shorter notice period - use of rental unit in a manner that is inconsistent with its use as a residential premises –significant damage

The Landlord sought termination of the tenancy and eviction on the basis that the Tenant parked his motorcycle in the rental unit, kept live chickens at the rental unit and modified the shed on the property to house live chickens. The Tenant agreed that he had three live chickens on the property that he kept in the shed and that he removed a brick from the shed to provide access to his chickens. The Tenant acknowledged that he once had a young chicken inside the rental unit but that chicken had died and submitted that the alleged motorcycle was, in fact, an electric bike that he kept in the rental unit because of his concerns about theft.

The Member, in dismissing the application, found that, to succeed in an application based on clause 63 (1)(b) of the RTA, the Landlord was required to prove (i) that the use of the rental unit was inconsistent with its use as residential premises, (ii) that the inconsistent use can be reasonably expected to cause damage or has caused damage and, (iii) that the amount of the damage is significantly greater than the amount that would be required to give the Tenant a Notice to Terminate the tenancy for damage under subsection 62 (1) or clause 63 (1)(a) of the RTA. In this case, the Member found that the damage occasioned by the removal of a brick in the shed did not meet the third part of the test and the inconsistent use of the rental unit relating to the storage of the motorcycle or electric bike did not occasion damage.

SWL-13073

–s. 6 (2) –exemptions –rules relating to rent –s. 87 –application for an order for payment of arrears- s. 116 –notice of rent increase

The Landlord gave the Tenant a Notice of Rent Increase in 2007. The Tenant submitted that she was not required to pay the increased rent as, in 1996, the Landlord's property manager had given the Tenant a letter that purported to provide that as long as the Tenant remained in the rental unit, the rent for that unit would remain at the 1996 amount.

The Member relied upon and applied the Divisional Court's decision in *Barber v. 1086891 Ontario Inc.*, and found that the Landlord was not estopped from increasing the rent despite the letter indicating otherwise.

The Member also found that, in accordance with clause 6 (2) (c) of the RTA, as the rental unit was part of a building that was constructed in 1994, and, therefore not occupied for residential purposes prior to November 1, 1991, the rent for the rental unit was not subject to guideline increases, and the Landlord was entitled to impose a greater than guideline increase.

SWL-16920

–s. 78 –application based on mediated settlement –order terminating tenancy –motion to set aside order –s. 69.3, Bankruptcy and Insolvency Act (Canada) –automatic stay of proceedings

The Landlords had filed an application with the Board seeking termination of the tenancy and eviction on the basis of arrears of rent. The application was filed two weeks before the Tenant filed an assignment in bankruptcy and was scheduled to be heard one day after the filing of that assignment. On the hearing date, the Landlord and Tenant entered into a mediated settlement that encompassed the period of three months before the assignment into bankruptcy and one month after it and provided for payment of the arrears. Four weeks after the date of the mediated settlement, the Landlords filed a proof of claim in the bankruptcy. Later, the Landlords, pursuant to section 78 of the RTA, obtained an *ex parte* order for arrears and for termination and eviction from the Board which the Tenant moved to set aside.

The issue before the Board on the return of the Tenant's motion was whether the Board had the jurisdiction to make the order terminating the tenancy and evicting the Tenant.

In setting aside the order the Landlord's had obtained *ex parte*, the Member considered and applied the Divisional Court's decisions in *Forestwood Co-operative Homes Inc. v. Pritz* and in *Peel Housing Corporation v. Sewnarine*, and found that the case before her was consistent with *Forestwood* insofar as the Landlords had applied for both arrears and termination of the tenancy in the same application to the Board and the termination and arrears were inextricably linked and formed part of a claim provable in bankruptcy. The Member found that all amounts claimed in the Landlord's original application before the Board were stayed by virtue of the bankruptcy and that any new arrears that may have arisen subsequent to the period provided for in the mediated settlement could possibly be sought by the Landlords in a new proceeding. The Member, therefore, dismissed the Landlord's application for an order of the Board terminating the tenancy and evicting the tenant.

SWL-21457

–s. 126 –application for above guideline increase –s. 129 –capital expenditures –Ontario Regulation 516/06 –Schedule –Useful Life of Work Done or Thing Purchased

The Landlord applied for an order permitting an above guideline increase. The Member found that the Landlord had justified an above guideline increase because of capital expenditures in relation to window replacement and renovations in the common areas of the buildings.

Single pane-windows which had outlived their useful life were replaced with double-glazed aluminium windows in all the rental units. The Member found that the window replacement was an eligible capital expenditure.

The Landlord made a number of common area renovations to the main lobby, hallways, the laundry room and elevators, including, replacement of the flooring, change of the lighting, merging a cleaning supply room and old mail room to create a social room for the Tenants, replacement of carpeting in the corridors and replacement of the flooring and interior skin in the elevators. The Tenants contended that the common area renovation work was substantially cosmetic in nature, designed to enhance the level of prestige or luxury in the building and did not meet the definition of “capital expenditure” in s. 18 (1) of O. Reg. 516/06. The Tenants particularly contested the eligibility of the expenditure related to the social room.

The Member found that the Landlord did not establish, on a balance of probabilities, that the social room met any of the eligibility tests in s. 126 (7) of the RTA or any of the exceptions in s. 126 (8) of the RTA. The Member severed the expense for the social room from the balance of the Landlord’s claim. The Member allowed the balance of the claim relating to the common area expenses and found that, although there is a cosmetic aspect to any new installation, the renovations were not substantially cosmetic in this case.

The Member also found that the RTA does not permit the Board to consider the potential tax deductions the Landlord may be able to take for capital expenditures that are incurred and also found that the ordinary guideline increase is designed to take into account increases in a landlord’s building maintenance and operating costs, but not extraordinary expenses such as eligible capital expenditures.

TEL-09609

–s. 61 –termination for cause, illegal act –s. 83 –powers of Board, eviction –Human Rights Code (Ontario) s. 17 –duty to accommodate

A tenant who lived in a residential complex that adjoined the Tenant’s residential complex had been unable to park her car in the parking lot as a result of the Tenant having positioned his car in a manner that blocked the neighbouring tenant. The Tenant, in response to the neighbouring tenant’s attempt to cause the Tenant to move his car, assaulted his neighbour and, in doing so, caused minor injuries to her. The Tenant was charged with and pleaded guilty to assault.

Prior to the incident in question, the Tenant lived in another property controlled by the same Landlord. While a tenant at the other property, the Tenant had been arrested and charged with making threats, criminal harassment and mischief relating to another tenant. As a result of that arrest, the Tenant had been required to stay at least 100 meters away from the victim tenant. In order to permit the Tenant to

comply with the Court's order, the Landlord moved the Tenant to the Tenant's current rental unit in August 2007.

There was evidence that the Tenant's criminal conduct was linked to his mental illness. The parties agreed that the Tenant had a disability within the meaning of the Human Rights Code.

The Member applied the Divisional Court's decision in *Walmer Developments v. Wolch* in determining whether to exercise the Member's discretion to grant relief from eviction. The Member found that the Landlord had accommodated the Tenant's disability to the point of undue hardship, and found that there was a real possibility that the Tenant may engage in further illegal activity if the Tenant were to remain in the rental unit. Accordingly, the Member did not give the Tenant relief from eviction, but delayed the eviction to give the tenant more time to secure appropriate alternative accommodation where he could have regular access to support services.

TNL-09252-RV

–s. 209 (2) RTA; s. 21.2 Statutory Powers Procedure Act –review –Rule 29 –Guideline 8

On an application by the Landlord, the Board had terminated the tenancy of the Tenant. The Tenant filed a request to review the Board's order, and, in that review request filed a four-page letter, new documents that had not been filed at the original hearing and raised a number of other objections.

The Member, in dismissing the review request, set out the Board's review process with particular reference to the fact that only an issue deemed on its face to raise a potentially serious error in the original order or proceedings will be referred to a review hearing.

The Member found that it is not sufficient for a party requesting a review to simply file new documents and expect the Board to determine that the new documents reveal some error in the decision. The Member found that, particularly given that the review consideration proceeds initially on an *ex parte* basis, unless the party who filed the new documents on the review provides evidence as to why the Board should even consider the new documents at the review stage, it is improper for the Board to review those documents.

The Member found that, in addition to the issue of the documents filed with the review request, the Tenant did not provide particulars of the errors in the original proceedings that the Tenant alleged.

TST-00935-RV

–s. 13 (2) –commencement of tenancy –actual entry not required - s. 107 –rent deposit - prospective tenant - s. 135 –money collected or retained illegally

On October 1, 2007, the Tenant paid a rent deposit of \$750.00 and signed an application form for a rental unit with the tenancy commencing on November 1, 2007. The application form contained a provision that read, "the landlord's acceptance of the deposit does not constitute a tenancy agreement". On October 25, 2007, the prospective Tenant advised the Landlord's employee that he did not wish to move into the rental unit and requested the return of the deposit. The Landlord did not return the rent deposit and re-rented the unit for December 1, 2007. The Tenant applied to the Board to seek return of the rent deposit.

The Member found that the applicant was not a Tenant for the purposes of the RTA and therefore the Board had no jurisdiction to deal with the matter. The Tenant filed a request to review that decision. The Reviewing Member found that the initial decision contained an error of law, in view of section 135 and subsection 107(1) of the RTA.

The Reviewing Member found that, when the prospective Tenant paid the deposit and signed the application form, the prospective Tenant intended to be bound and that a tenancy agreement arose on the Landlord's acceptance of the application form and the deposit. The Reviewing Member considered, applied and distinguished the Divisional Court's decision in *Benedetto v. Dineen*.

In *Benedetto v. Dineen*, the Landlord had obtained a rent deposit from prospective tenants, advised the prospective Tenants that the rent deposit was non-refundable and demanded that they obtain a guarantor. The prospective Tenants were unable to obtain a guarantor and no lease was signed. The prospective Tenants asked for a refund of their rent deposit and the Landlord refused to refund that deposit.

The Ontario Rental Housing Tribunal found that section 118.1 of the TPA (section 107 of the RTA) applied in these circumstances and since vacant possession of the rental unit was not given to the prospective Tenants, the rent deposit had to be refunded. The Tribunal also found that the Landlord's assertion that the deposit was non-refundable was wrong by virtue of section 16 of the TPA (s. 4 of the RTA) insofar as a provision in a tenancy agreement that was inconsistent with the TPA was void. The Landlord appealed to the Divisional Court and argued that the Tribunal's interpretation of section 118.1 of the TPA was incorrect as the Landlord was willing and able to give vacant possession of the rental unit, but the prospective Tenants refused to accept his offer. The Divisional Court dismissed the Landlord's appeal and held that the Tribunal's decision was correct.

The Reviewing Member, in dismissing the prospective Tenant's application, found that, in this case, unlike the case in *Benedetto*, the prospective Tenant clearly entered into a binding tenancy agreement with the Landlord. The Member applied subsection 13 (2) of the RTA that provides that a tenancy agreement takes effect when the tenant is entitled to occupy the rental unit whether or not the tenant actually occupies it. The Member found that the tenancy existed for the month of November 2007 and the deposit was applied by the Landlord for the last month of the tenancy, that is, November 2007.

TST-01514

–s. 2 –interpretation, “landlord” –s. 57- former tenant's application where notice given in bad faith –s. 187 (2) –add or remove parties

The Tenant had resided at the rental unit for nearly 25 years and had a good relationship with “Landlord 1” who operated a business on the main floor below the rental unit. The Tenant vacated the unit after having received a second Notice of Termination from Landlord 1 for the purchaser's (Landlord 2) own use.

The Tenant claimed that he became aware that no one had moved into the rental unit within a reasonable period after he had moved.

Landlord 1 testified that he relied on the real estate agent retained by both Landlords 1 and 2 who had told Landlord 1 that Landlord 2 required vacant possession of the entire building and that Landlord 2 intended to live in the rental unit.

Although Landlord 2 did not want to be a party to the former Tenant's application, the Member found that it was appropriate that Landlord 2 be added as a party as the definition of "Landlord" in section 2 of the RTA includes successors in title.

Landlord 2 testified that she had not told the real estate agent that she required vacant possession of the rental unit and that she had no contact with Landlord 1 throughout the purchase and sale of the property.

The Member, in applying clause 57 (1)(b) of the RTA found that Landlord 1 relied on the agent's assurances about the intention of Landlord 2 to occupy the rental unit, and also found that Landlord 2 had never indicated that she intended to occupy the rental unit. The Member found that "bad faith" is "not 'simply bad judgment or negligence, but rather it implies the conscious doing of a wrong because of a dishonest purpose..." and further found that the fact that Landlord 2 did not move in did not, on its own, demonstrate bad faith.

The Member dismissed the former Tenant's application. The Member found that, if anyone was at fault, it was the real estate agent, and, that neither Landlord 1 nor Landlord 2 had acted in bad faith.

TSL-16589

—s. 66 –termination for cause, act impairs safety s. 78 –application based on previous order – s.83 - power of Board, eviction –Human Rights Code –s. 10 –disability - s. 17 - duty to accommodate

The residential complex housed persons who have mental illnesses. The Tenant, who had a disability because of mental illness, had assaulted other tenants in the residential complex.

The Member found that the Tenant's conduct seriously impaired the safety of other tenants in the residential complex. The Member found, however, that there had been no further incidents for two months prior to the hearing, the assaults were at the lower end of the spectrum, the Tenant was remorseful and, to the date of the hearing, the Landlord's attempts at accommodation within the meaning of the Human Rights Code were minimal.

The Member found that the Tenant's actions resulted from the Tenant's disability. Having considered the Landlord's duty to accommodate to the point of undue hardship, the Member issued a conditional order continuing the tenancy and requiring the Tenant to refrain from assaulting anyone in the residential complex for twelve months. In the event of a future assault by the Tenant within the twelve month period from the date of the order, the Landlord could apply to the Board under section 78 of the RTA for termination and eviction.



BIOGRAPHIES

CHAIR

Dr. Lilian Ma, B.Sc., Ph.D., LL.B.

Tenure: 01-JUN-2005 - 31-MAY-2013

Dr. Lilian Ma joined the ORHT⁴/ LTB as the Chair and CEO in June 2005. She has extensive experience in the public sector and was a Member of the Refugee Protection Division of the Immigration and Refugee Board of Canada, the Liquor Licence Board of Ontario, the Ontario Human Rights Commission and the Drug Quality and Therapeutics Committee in Ontario. She also worked as Chief of the Public Education Division of the Race Relations Directorate of Multiculturalism Canada.

Dr. Ma earned a law degree from the University of Toronto, a Doctorate in chemistry from Simon Fraser University, and a Bachelor of Science degree from the University of Hong Kong.

Dr. Ma is a member of the Law Society of Upper Canada and the Canadian Bar Association and sat on the Bar Association's Racial Equality Implementation Committee from 2000 to 2004. She sits on the Board of Directors of the Canadian Council of Administrative Tribunals and the Society of Ontario Adjudicators and Regulators. Prior to joining full-time public service, she was an active volunteer in the community and sat on a number of boards.

⁴ The Ontario Rental Housing Tribunal became the Landlord and Tenant Board on January 31, 2007 with the proclamation of the *Residential Tenancies Act, 2006*.

VICE CHAIRS

Kim Bugby

Tenure: 08-SEP-2004 - 27-NOV-2009

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts in psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms. Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Ms. Bugby was also a Community Support Coordinator, providing services to persons diagnosed with a serious mental illness. Ms. Bugby joined the ORHT/ LTB as a Member on September 6, 2004 and was appointed as Vice Chair on May 28, 2008.

Eli Fellman

Tenure: 15-DEC-2004 - 14-DEC-2013

Eli Fellman has an Honours degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws degree at the University of Ottawa. Prior to his appointment to the ORHT/ LTB as a Member, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario bar in 2002, he practiced international trade and customs law in Toronto. Mr. Fellman joined the ORHT/ LTB as a Member on December 15, 2004 and was appointed Vice Chair on December 15, 2005.

Régent Gagnon

Tenure: 05-JUL-2004 - 31-AUG-2013

Régent Gagnon graduated from Le Moyne College in Syracuse, N.Y. with a Bachelor of Science in Humanities. He worked in public and private sector organizations in all facets of Human Resources Management and then he founded his own HR consulting firm. As a recognized expert in HR, Mr. Gagnon was invited to teach HR courses at Carleton and Ryerson Universities. Prior to his appointment to the ORHT/ LTB, Mr. Gagnon served as a part-time member of the Assessment Review Board for six years. In addition, he was a member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton. Mr. Gagnon joined the ORHT/ LTB as a Member on July 5, 2004 and was appointed Vice Chair on September 1, 2005.

Murray Wm. Graham

Tenure: 17-JUN-1998 - 15-JUN-2012

Murray Wm. Graham graduated from York University with a Bachelor of Arts degree and from Osgoode Hall Law School with a Bachelor of Laws degree. After his call to the Ontario Bar, he practised law in the City of Toronto. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries. Mr. Graham joined the ORHT/ LTB in 1998 as a Member and was appointed Vice Chair on December 7, 2005.

Sean Henry

Tenure: 31-MAR-2004 - 12-DEC-2011

Sean Henry graduated from the University of Toronto with a Bachelor of Arts degree, from York University with a Masters in Business Administration and from Queen's University with a Bachelor of Laws degree. Mr. Henry carried on a criminal and family law practice before becoming a member with the Social Benefits Tribunal. He then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing. Mr. Henry joined the ORHT/ LTB on March 31, 2004 as a Member and was appointed Vice Chair on December 13, 2006.

Guy Savoie

Tenure: 16-MAY-2001 - 06-APR-2012

Guy Savoie has held numerous senior management positions within both the financial and business sectors for the past 17 years. Since 1990, he is also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post-diploma business and marketing programs. Mr. Savoie joined the ORHT/ LTB on May 16, 2001 as a Member and was appointed Vice Chair on March 24, 2004.

Jonelle van Delft

Tenure: 12-NOV-2004 - 12-JUN-2012

Jonelle van Delft graduated from Queen's University with an Honours degree in history, a Special Field Concentration in women's studies and a Bachelor of Laws degree. Before her appointment to the ORHT/ LTB, she practiced Clinic Law under the Ontario Legal Aid Plan. Ms. van Delft joined the ORHT/ LTB as a Member on November 12, 2004 and was appointed Vice Chair on June 13, 2007.

MEMBERS

Elizabeth Beckett

Tenure: 07-FEB-2001 - 06-APR-2012

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the ORHT/ LTB she was a part-time professor of Law at Sheridan College and taught Business Law for Canadian General Accountants. She brings with her experience gained as a Member of the Boards of Inquiry for the Human Rights Commission. Ms. Beckett was an ORHT/ LTB Vice Chair from April 7, 2004 to April 6, 2007; on April 7, 2007 she resumed her position as a Member of the LTB.

Joseph A. Berkovits

Tenure: 22-JUN-2005 - 21-JUL-2009

Joseph Berkovits graduated from York University with a Bachelor of Arts (Honours) degree in history and English, and a Masters and Doctorate in history from the University of Toronto. He received a law degree from the University of Toronto, articulated at the Ontario Ministry of the Attorney General and in 2004 was called to the Ontario Bar.

Louis Bourgon

Tenure: 13-DEC-2006 - 12-DEC-2011

Louis Bourgon graduated from the University of Ottawa with a Bachelor of Arts and a Bachelor of Laws. He was called to the Ontario bar in 1998. Mr. Bourgon also holds a certificate in Alternative Dispute Resolution from the University of Windsor, Faculty of Law. Before his appointment to the ORHT/ LTB, he worked for seven years as legal counsel in the Law Society of Upper Canada's Professional Regulation Division. He also previously served as legal counsel to the Children's Aid Society of Ottawa. Mr. Bourgon has been an invited speaker at law schools and legal conferences on matters of professional responsibility and discipline.

Elizabeth Brown

OIC expired October 30, 2008

Elizabeth Brown is an Honours graduate of Humber College in Business Administration. Ms. Brown was a small business owner for a number of years before being elected first to City of Etobicoke Council in 1991, where she served two terms, and then to City of Toronto Council in 1998.

Enza Buffa

Tenure: 05-MAY-2004 - 04-MAY-2012

Vicenzina Buffa served as a Customer Relationship Management Reporting Analyst in the private sector for a world-wide call center whose client is primarily Ford Motor Company. Ms. Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with internal and external clients. She is a certified internal ISO (International Organization for Standards) auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

William Burke

Tenure: 18-OCT-2005 - 17-OCT-2013

William Burke was employed for more than 17 years in the municipal sector before joining the ORHT/ LTB. Mr. Burke was involved in aspects of municipal standards, building inspections and law enforcement during those years. He is a member of the Ontario Association of Property Standards Officers and served on the Board of Directors of that association previously.

Ruth Carey

Tenure: 13-DEC-2006 - 12-DEC-2011

Ruth Carey holds a Bachelor of Laws degree from the University of Ottawa, as well as a Bachelor of Arts in Women's Studies and a Bachelor of Science in Forestry from the University of Toronto. She was called to the Ontario Bar in 1993. She was the Executive Director of the HIV & AIDS Legal Clinic (Ontario). She has been a member of the boards of directors of a number of community based or charitable organizations including the Northumberland Social Planning Council, Pro Bono Law Ontario, and the Canadian HIV/ AIDS Legal Network.

Vincent Ching

Tenure: 19-APR-2006 - 18-APR-2014

Vincent Ching joined the ORHT/ LTB after serving for four years as a member of the Social Benefits Tribunal. Prior to that, he held senior positions with the provincial and municipal governments for nearly 30 years. He graduated from the University of Toronto with a Masters in Social Work and more recently with a Masters in Theological Studies. He has extensive volunteer experience in the community, including serving as a board member of the Ontario Trillium Foundation and Agincourt Community Services Association.

Brian Cormier

Tenure: 19-APR-2006 - 18-MAY-2012

Brian Cormier has a diverse management background attained through a 30-year career at Bell Canada. His last position at Bell was Human Resources Generalist for Ontario Provincial District. His responsibilities included employee development, employee performance review boards, industrial relations support, disability management, and health and safety. Mr. Cormier has studied at Laurentian University, Queen's University Leadership Development and the Bell Institute for Professional Development. Mr. Cormier has been an active community volunteer for over 25 years.

Nancy Fahlgren

Tenure: 17-JUN-1998 - 15-JUN-2012

Nancy Fahlgren came to the ORHT/ LTB with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as Acting Chief Rent Officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Cathryn Forbes

Resigned April 25, 2008

Cathryn Forbes has an extensive adjudication background with the Immigration and Refugee Board and the Ontario Board of Parole. She has received vast specialized training in adjudication and tribunal practices and has a management history within the criminal justice system. Ms. Forbes has volunteered actively in her community with various boards and organizations and is a graduate of Sheridan and Mohawk Colleges.

Bittu George (Part-Time Member)

Tenure: 02-MAY-2007 - 01-MAY-2011

Bittu George graduated from Queen's University with a Bachelor of Arts (Honours) in Political Studies, and a Bachelor of Laws. He was called to the Ontario Bar in 2002, and has been in private practice, with a focus on immigration law. Mr. George has also worked at the Ontario Ministry of Transportation and a Kingston law firm in the areas of planning, municipal and real estate law. An active member of the Kingston community for many years, Mr. George has served as a City Councillor and Deputy Mayor.

Suparna Ghosh (Part-Time Member)

Tenure: 20-JUN-2007 - 19-JUN-2009

Prior to joining the LTB, Ms. Ghosh spent ten years at the Immigration and Refugee Board, two years at the Social Assistance Review Board and six years with the former Rent Review Hearings Board of the Ministry of Housing, as well as Rent Control Programs. Ms. Ghosh holds a Masters degree in Mathematics and a Bachelor of Arts (Honours) in mathematics, English and economics from Delhi University in India.

Pearl Gréwal (Part-Time Member)

OIC expired March 6, 2009

For the past 31 years, Pearl Gréwal has held various roles of increasing and wide ranging responsibility in the Province's various residential tenancies regulatory schemes. From 1998 to 2007, she was a Mediator with the ORHT. From 1992 to 1998, she adjudicated disputes under the Rent Control Act. From 1987 to 1992, she adjudicated disputes under the Residential Rent Regulation Act. These roles have given her in-depth knowledge of residential tenancy law as well as extensive practical experience with quasi-judicial dispute resolution.

Dan Helsberg

Tenure: November 30, 2005 - May 20, 2009

Henry Daniel Helsberg is a self-employed financial consultant. Prior to this, Mr. Helsberg was a real estate salesperson for seven years, selling residential and commercial properties in the Sudbury area. Mr. Helsberg has a Master of Arts, Economics from the University of Guelph and has completed Ph.D. course work in Urban and Regional Planning at the University of Waterloo.

Brenna Homeniuk

Tenure: 13-DEC-2006 - 12-DEC-2011

Brenna Homeniuk graduated from the University of Waterloo with a Bachelor of Science, Bachelor of Arts and a Master of Arts (Psychology) and from the University of Western Ontario with a Bachelor of Laws. She was called to the Ontario Bar in 2002. Before her appointment to the ORHT/ LTB, Ms. Homeniuk practised in the areas of criminal law, family law, social assistance and landlord-tenant law in south-western Ontario.

Elke Homs

Tenure: 01-MAR-2006 - 28-FEB-2014

Elke Homs is an experienced adjudicator, who served as a member of the Immigration and Refugee Board for over 11 years before being appointed to the ORHT/ LTB. Ms. Homs was educated in Germany and immigrated to Canada in the late 60's.

Judy Ireland (Part-Time Member)

Tenure: 07-MAR-2007 - 06-MAR-2012

Judy Ireland received a Bachelor of Arts (Honours) in history and a Master of Arts in education from the University of Toronto. Ms. Ireland was a Vice-Chair of the Social Assistance Review Board from 1992 to 1998 and a member of the Immigration and Refugee Board of Canada from 1998 to 2006. She has been a volunteer for many years in community organizations.

Kenneth Jepson

Tenure: April 4, 2007 - April 3, 2009

Kenneth Jepson received a Bachelor of Arts (Honours) and Bachelor of Education from the University of Western Ontario. After teaching at the elementary and secondary school levels, Mr. Jepson obtained his law degree from the University of Toronto, Faculty of Law. He practised civil litigation and then served as Associate Counsel to the Chair for the Workplace Safety and Insurance Appeals Tribunal. Mr. Jepson has also been a member of the License Appeal Tribunal. Most recently, Mr. Jepson developed continuing legal education programs for Osgoode Hall Law School.

Greg Joy

Tenure: 08-JUN-2005 - 07-JUN-2013

Greg Joy was the Olympic Silver medalist in high jump at the 1976 Montreal Olympic Games. He was Canada's athlete of the year and received the Governor General's Award. In 1978 he broke the world record with a leap of 2.31 metres. He is also a recipient of the Queen's Golden Jubilee Medal for his work in his community. He worked as a sport and fitness consultant for the government of Ontario and as a teacher, and has coached several national and international champion athletes. He was also the Executive Director of the Ottawa Food Bank and was the principle partner of a successful corporate training company. He supported several charities and has been a member of numerous boards. He graduated from the University of Toronto and has a post graduate certificate in financial analysis from the University of Western Ontario.

Caroline King

Tenure: 07-OCT-2004 - 06-OCT-2012

Caroline A. A. King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained a Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the ORHT/ LTB, she practiced law for a number of years, and was active in her local community.

Jessica Kowalski

Resigned January 11, 2009

Jessica Kowalski earned a law degree at Osgoode Hall Law School and was called to the Ontario bar in 1996. She practiced family law before leaving Toronto to work overseas. After working in the US, the Caribbean, Central America and Bermuda, Ms. Kowalski returned to private practice in Toronto with a focus on civil litigation, including commercial and estates litigation. Prior to her appointment as a Member of the ORHT/ LTB, she was legal counsel at the Law Society of Upper Canada.

Claudette Leslie

Tenure: 26-APR-2006 - 25-APR-2014

Claudette Leslie graduated from the University of Toronto with a Bachelor of Arts in English and from Centennial College with a Diploma in Journalism. Ms. Leslie is an experienced Communications and Public Relations professional who has worked in various roles including corporate and marketing communications and as a freelance writer. She has been involved in community volunteer work for more than two decades.

Olga Luftig

OIC expired March 6, 2009

Olga Luftig graduated from the University of Toronto with a Bachelor of Arts (Honours) in history and political science, and a Bachelor of Education. She attained a Bachelor of Laws degree at the University of Windsor. Before her appointment to the ORHT/ LTB, Ms. Luftig practised law both as a private practitioner and as the in-house Properties Lawyer for a corporation.

Wayne MacKinnon

Tenure: 08-DEC-2004 - 07-JAN-2014

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the faculty of Arts and Science (Social Sciences), and then went on to do graduate work in Boston, Massachusetts. Before his appointment to the ORHT/ LTB he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada. Mr. MacKinnon was a Member of the Mayor's Advisory Committee on Visible Minorities in Ottawa and a voluntary Member of Bell Canada's Consumer Advisory Panel. He was also Chair of the Police/ Community Relations Committee in Ottawa.

Ina Maher (*Part-Time Member*)

Tenure: 11-APR-2006 - 10-OCT-2009

Ina Maher is a graduate of the University of Hong Kong (Bachelor of Arts (Honours), Diploma in Education and Master of Arts). Ms. Maher taught for 12 years before joining the Hong Kong Civil Service where she served in various departments until she took early retirement to immigrate to Canada in 1990. Here, she enrolled in Osgoode Hall Law School, obtaining a Bachelor of Laws degree in 1994. Ms. Maher worked for several years in the Ministry of Transportation before retiring again and becoming more involved in volunteer work.

Ieva Martin

Tenure: 23-JUN-2004 - 22-JUN-2012

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that, she was a small business owner and a member of the Board of the Clarkson Business Improvement Association. Ms. Martin was the President of the Latvian Canadian Cultural Centre. She obtained a Bachelor of Arts (Honours) in French and Canadian Studies from the University of Toronto.

Debra Mattina

Tenure: 11-MAY-2005 - 10-NOV-2009

Debra Mattina is a graduate of Mohawk College in Hamilton (Business Accounting and Medical Radiological Technology) and worked as a medical radiation technologist for 20 years. In 2003, Ms. Mattina was awarded the Queen's Golden Jubilee Medal recognizing her volunteer efforts in her community over her lifetime.

Brian McKee

Tenure: April 2, 2003 - April 1, 2009

Brian McKee graduated from Algonquin College, School of Business. He has held senior management positions in the private sector over the past 25 years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

Jim McMaster

Tenure: 26-OCT-2005 - 15-NOV-2011

Jim McMaster has been an active member of his community for over 20 years. He was a Member of the Ajax council for 12 years, where he also served as the Deputy Mayor; he was the Region of Durham Finance Chairman and Budget Chief; and, he was the Vice Chair of the Toronto and Region Conservation Authority.

Alan Mervin (Part-Time Member)

Tenure: 24-OCT-2001 - 17-JUL-2013

Alan Mervin attended York University, obtaining a Bachelor of Arts in sociology, and received a Bachelor of Laws from the University of Windsor. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Christina Budweth Mingay (Part-Time Member)

Tenure: 02-OCT-2002 - 01-OCT-2010

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts and Bachelor of Laws from Queen's University. She was in private practice until 1991 with a focus on civil litigation. From 1991 to 2001, she worked with the Law Society of Upper Canada.

Gerald Naud

Tenure: 07-OCT-2004 - 06-OCT-2012

Gerald Naud graduated from the University of Ottawa with a degree in civil law. Following graduation, he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for numerous years. He held the position of Director of Business Development for OCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil (Part-Time Member)

Tenure: 21-APR-2004 - 20-APR-2012

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in psychology and criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor Law School. Ms. Neil worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programs in various ministries. Since her retirement she has been engaged, part-time, in consulting work, specializing in human resource management.

Patrice C. Noé (Part-Time Member)

OIC expired November 14, 2008

Patrice Noé has been called to the bars of the provinces of Ontario and Alberta and the state of New York. She served as Solicitor for Hamilton, York and Edmonton, among her vast experience working with municipalities. She had also been a member of the local property standards committee and the committee of adjustment. Ms. Noé has had much community involvement. She was Rule of Law Liaison in Armenia for the American Bar Association and Project Director for IFES in Ukraine. Ms. Noé was a full-time Member of the ORHT/ LTB up to May 29, 2007; effective May 30, 2007 she became a part-time Member.

John Nolan (*Part-Time Member*)

Tenure: 29-NOV-2006 - 26-MAY-2011

John Nolan attended McGill University, obtaining a Bachelor of Arts in economics and political science, and received a Bachelor of Civil Laws and a teaching diploma from the University of Ottawa. Mr. Nolan has devoted over 25 years to working with troubled youth.

Jean-Paul Pilon

Tenure: 24-AUG-2006 - 20-FEB-2012

Jean-Paul Pilon is a lawyer and has practised law in Kitchener, Ontario since 1997. He holds a Bachelor of Arts (Honours) in political science and urban studies from Concordia University in Montreal and a law degree from the University of Windsor. He acted as duty counsel at ORHT hearings in Kitchener. He previously taught law as an Adjunct Professor at the University of Waterloo School of Optometry. Mr. Pilon is a member of the Canadian Bar Association and the Waterloo Law Association. Although he was a part-time Member for most of the 2007-08 fiscal year, Mr. Pilon became a full-time Member on February 21, 2007.

Lloyd Phillipps

Tenure: 15-JAN-2007 - 14-JAN-2012

Lloyd Phillipps graduated from Carleton University with a Bachelor of Arts in law and from Loyalist College with a Diploma in paralegal studies. He taught business courses at the Community College level. He was employed with the Ontario Ministry of Health, Emergency Health Services Branch, with the Ministry of the Attorney General, where he was a Provincial Prosecutor, and with the Ministry of the Environment. While with the Ministry of the Environment, he was the recipient of awards for Innovation and Environmental Protection.

Jana Rozehnal

Tenure: 26-APR-2006 - 25-APR-2014

Jana Rozehnal is a graduate of the Faculty of Law of Jan Evangelista Purkyně (now known as Masaryk University) in Brno, Czech Republic, where she earned a Doctor of Law. Subsequently she graduated from the University of Toronto with a Bachelor of Laws. Prior to her appointment to the ORHT/ LTB, Ms. Rozehnal was in private practice with focus on family law.

Egya Sangmuah

Tenure: 15-JAN-2007 - 14-JAN-2012

Egya Sangmuah graduated from the University of Toronto with a Doctorate in history, from the McGill Law School with a Bachelor of Laws, from Osgoode Hall Law School with a Master of Laws and from the University of Ghana with a Bachelor of Arts (Honours). He was a member of the Immigration Appeal Division of the Immigration and Refugee Board (IRB) from 1999 to 2006 and the Convention Refugee Determination Division of the IRB from 1996 to 1998. Prior to joining the IRB, Mr. Sangmuah was Counsel to the Ontario Ministry of Citizenship, Culture and Recreation, as well as a part-time Member of the Liquor Licence Board of Ontario. He was also a Law Clerk to the justices of the Ontario Court of Appeal.

Freda Shamatutu

Tenure: 21-APR-2004 - 20-APR-2012

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia. She practiced law in Zambia for 20 years before immigrating to Canada. Ms. Shamatutu has spent most of her professional career working for various organizations at the senior management level, including as Chief Legal Advisor and Legal Counsel for the Zambian national airline, Board Secretary and Director Support Services for Zambia Revenue Authority and Executive Director for the Advanced Legal Training Institute in Zambia (the Institute trains law graduates in bar admission courses and also provides lawyers with continuing legal education). Before her appointment as a Member to the ORHT/ LTB, Ms. Shamatutu was employed as office manager for a law firm in Toronto.

Andi Shi

OIC expired October 31, 2008

Andi Shi has worked in different areas. He has been a teacher, a researcher in community policing, a business manager, the executive director of a non-profit organization and a multidisciplinary consultant. He has been on the boards of a number of charitable/ non-profit organizations as well. Prior to his appointment to the ORHT/ LTB, he served as a Member of the Council of the College of Opticians of Ontario. He holds a Bachelor of Science from Eastern China Normal University and a Master of Science degree from the University of Regina.

Yasmeen Siddiqui (Part-Time Member)

OIC expired November 21, 2008

Yasmeen Siddiqui served on the Immigration and Refugee Board from 1996 to 2006 as a Member, Coordinating Member and Acting Assistant Deputy Chair. She is a Member of the International Refugee Law Judges Association and a Member of UNHCR's International Roster of Refugee Status Determination Professionals. Ms. Siddiqui was also an anti-bias education trainer and consultant. She has a Bachelor of Arts degree from India and has studied mediation and negotiation at the University of Toronto.

Michael G. Soo (Part-Time Member)

Tenure: 15-JAN-2007 - 14-JAN-2012

Michael G. Soo graduated from the University of Victoria with a Bachelor of Arts in history and from the University of Western Ontario with a Bachelor of Laws. Mr. Soo has practiced law in Kitchener since 2002, with a focus on criminal, family and civil litigation. He is also a part-time instructor in law-related continuing education courses at Fanshawe College in London, as well as at Conestoga College in Kitchener.

Nina Stanwick (*Part-Time Member effective January 15, 2009*)

Tenure: 15-JAN-2007 - 14-JAN-2011

Nina Stanwick has a Bachelor of Laws from the University of Windsor, as well as a Bachelor of Arts (Honours) in mathematics from the University of Guelph and a Bachelor of Education from the University of Toronto. She was called to the Ontario Bar in 1982. She was a Commissioner with the Residential Tenancies Commission, a Member of the Rent Review Hearings Board and a Rent Officer under the Rent Control Program. She was also a Member of the Immigration and Refugee Board prior to joining the ORHT/ LTB.

Gerald Taylor

Tenure: 26-SEP-2001 - 25-SEP-2012

Gerald Taylor has many years of administrative background, having worked in the banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision-making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Jeanie Theoharis

Tenure: 13-DEC-2006 - 12-DEC-2011

Jeanie Theoharis graduated from the University of Toronto having attained a Bachelor of Arts in commerce, economics and actuarial science. She studied law at State University of New York and University of Toronto where she received a Juris Doctorate in Law and a Bachelor of Laws. She is called to the bars of New York and Ontario. Before her appointment to the ORHT/ LTB, she practised commercial litigation, construction lien law and commercial real estate at a firm in downtown Toronto.

Christopher Trueman

Tenure: January 20, 2003 - April 22, 2009

Christopher Trueman has been actively involved in both the public and private sectors. In 1994, he was elected as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He is a former member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C.

Elizabeth Usprich

Tenure: 01-MAR-2006 - 28-FEB-2014

Elizabeth Usprich attended the University of Western Ontario where she earned a Bachelor of Arts in psychology and a Bachelor of Laws. In addition to practising as a lawyer, Ms. Usprich has also taught law at the college level. She was actively involved in the London community and has sat on several boards of directors.

Rosa Votta

Tenure: 21-AUG-2003 - 20-AUG-2009

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the Employment Standards Act.

Brad J. Wallace

Tenure: 15-DEC-2005 - 14-DEC-2013

Brad Wallace is a graduate of the University of Western Ontario, with a Bachelor of Arts (Honours) in politics, and the University of Windsor with a Bachelor of Laws. Before his appointment to the ORHT/ LTB, Mr. Wallace practised primarily in the areas of insurance defence, plaintiff personal injury, social assistance and landlord-tenant law. Mr. Wallace is a former member of the Board of Directors of the London and Area Food Bank, and a past member of the Board for the London Training Centre.

Karen Wallace

Tenure: 13-DEC-2006 - 13-DEC-2011

Karen Wallace graduated from Osgoode Hall Law School with a Bachelor of Laws. She articulated with the Ministry of the Attorney General. After her call to the Ontario Bar in 1994, Ms. Wallace had her own family law practice in Toronto. From 1998 to 2006 Karen Wallace was employed by Legal Aid Ontario.

William Weissglas (Part-Time Member)

Resigned April 18, 2008

William Weissglas graduated from Sir George Williams (Concordia) University with a Bachelor of Arts (Honours) in psychology and from Osgoode Hall Law School with a Bachelor of Laws. After his call to the Ontario Bar in 1975, he practised law in the City of Toronto until 2000. In 2000 Mr. Weissglas earned a Master of Laws Degree in Alternate Dispute Resolution and, in 2002, he was designated a Charter Mediator by the ADR Institute of Canada. Mr. Weissglas has held the position of Senior Legal Counsel to the Real Estate Council of Ontario. He is currently CEO of a mediation firm and is a part-time professor at Seneca College. Mr. Weissglas has also served as Chair of the City of Toronto Licensing Tribunal and is an instructor in the Law Society of Upper Canada's Skills & Professional Responsibility Program.

Mike Welsh

Tenure: 08-JUN-2005 - 14-NOV-2009

Mike Welsh is a graduate of the University of Waterloo with a Bachelor in Environmental Studies. He was Operations Manager, FedEx Logistics, at the John Deere Welland Works from 1995 to 2004. Mr. Welsh also worked as a transportation consultant and planner. He has also served as: Vice Chairman, Niagara-on-the-Lake Committee of Adjustment; Member, Niagara-on-the-Lake Irrigation Committee; Member, Niagara-on-the-Lake Fence Arbitration Committee; and, Member, Niagara-on-the-Lake Traffic and Parking Committee.

Karol Wronecki (*Part-Time Member*)

Tenure: 15-JAN-2007 - 14-JAN-2012

Dr. Karol Wronecki has degrees in law and public administration from universities in Poland and Canada. After teaching constitutional law at the University of Wroclaw and at York University in Ontario, he joined the Ontario government in 1982. For 24 years, he worked in the administrative justice system as an adjudicator and a civil servant. He adjudicated in and managed programs dealing with rent control and landlord-tenant legislation. Until December 2006 when he retired, Mr. Wronecki was the manager of Central Region of the ORHT.



Landlord
And
Tenant Board

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Landlord and Tenant Board



Annual Report 2009-2010

**Minister of Municipal Affairs
and Housing**

777 Bay Street, 17th Floor
Toronto ON M5G 2E5
Tel. (416) 585-7000
Fax (416) 585-6470
www.mah.gov.on.ca

**Ministre des Affaires municipales
et du Logement**

777, rue Bay, 17^e étage
Toronto ON M5G 2E5
Tél. (416) 585-7000
Télec. (416) 585-6470
www.mah.gov.on.ca



TO THE LIEUTENANT GOVERNOR
OF THE PROVINCE OF ONTARIO

MAY IT PLEASE YOUR HONOUR:

For the information of Your Honour and the Legislative Assembly, we have the privilege of presenting the Annual Report of the Landlord and Tenant Board for the 2009-2010 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, reading "Jim Bradley".

Hon. Jim Bradley
Minister of Municipal Affairs and Housing

**Landlord and
Tenant Board**

Office of the Chair

777 Bay Street, 12th Floor
Toronto, Ontario M5G 2E5
Tel: (416) 585-7295
Fax: (416) 585-6363

**Commission de la
location immobilière**

Bureau du Président

777, rue Bay, 12^e étage
Toronto (Ontario) M5G 2E5
Tel: 416-585-7295
Telec: 416-585-6363



June 29, 2010

TO THE HONOURABLE JIM BRADLEY
MINISTER OF MUNICIPAL AFFAIRS AND HOUSING

MINISTER:

I have the honour to submit the Landlord and Tenant Board Annual Report for the 2009-2010 fiscal year.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "L. Ma".

Dr. Lilian Ma
Chair
Landlord and Tenant Board

Table of Contents

Chair's Message	1
Year in Review	2
The Role of the Board	5
The Adjudication Process	6
The Mediation Process	10
Office and Hearing Locations	11
Customer Service Through the Call Centre	12
eGovernment	13
French Language Services	14
Budget and Revenues	15
Statistical Information	16
Decision Summaries	21
Biographies	26



CHAIR'S MESSAGE

I am pleased to report that over the past year, the Landlord and Tenant Board (the Board) has continued to function well as an adjudicative tribunal.

I am grateful to the Board Members and staff who work together closely as a team in fulfilling the LTB's dual mandate of providing information to landlords and tenants about their rights and obligations and providing dispute resolution through mediation and adjudication, in a manner consistent with the Board service principles of fairness, accessibility, customer focus and timeliness. Together these principles underscore the effectiveness of the Board. The focus of the Board is to ensure that these principles are incorporated at every step in the execution of its mandate without fettering the independent decision-making power of the Board Members.

Last year we saw the departure of Diana Macri, our Director of Operations. We are grateful to her contribution to the Board for the past 10 years. We welcomed Laura Bryce, our first Chief Operating Officer, who joined the Board on August 31, 2009. A strategic planning session was held in November 2009 which resulted in the development of a three-year Operational Plan, thanks to Laura's leadership and vision. The plan sets out three operational goals that the Board will work toward: service excellence, organizational excellence, as well as agency accountability and fiscal integrity.

The Board accomplished a number of important initiatives last year, aimed at enhancing service to its clients. These initiatives include: strategies to improve the handling of cases on the hearing day; electronic hearing pilot project; implementation of a new case management system (Cmore); implementation of the Human Rights Strategy with the development of a policy on Accessibility and Human Rights and the release of an Interpretation Guideline on Human Rights; and online publication of redacted orders by the Canadian Legal Information Institute (CanLII) as well as on the Board's website. For more information about these initiatives, please refer to the "Year in Review" section of this report.

My appreciation and thanks go to the Board's Vice Chairs, Regional Managers, the Program Development Unit and Legal Services Branch. They played an important role in various committees and in the policy and training work they do for the Board.

I also acknowledge the valuable support of my Executive Assistant, Suzanne Evans, and my Administrative Assistant, Sue Woodland, for the excellent coordination of the many tasks of the Chair's office.

I sincerely thank stakeholders from the landlord and tenant communities for their valuable feedback and input. The on-going dialogue between the Board and stakeholder representatives at our Stakeholder Advisory Committee meetings ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

In closing, I acknowledge the valuable contribution of two Board Members who passed away last year. The Board was saddened by the death of Christopher (Chip) Trueman on April 22, 2009 and Dan Helsberg on May 20, 2009.

Sincerely,

Lilian Ma, Ph.D., LL.B
Chair and CEO
Landlord and Tenant Board



YEAR IN REVIEW

In 2009-2010, the Board continued to deliver its services to Ontario landlords and tenants by providing information on their respective rights and obligations and resolving disputes filed as applications to the Board. To deal with the volume of applications, the Board focussed its attention on opportunities for enhancing service delivery, particularly with regard to its case management practices. Also during the past year, a significant portion of the Board's resources was dedicated to the implementation of Cmore, the new case management system, first launched in April 2009.

Case Management Strategies

In the Board's busy urban offices, hearings are conducted simultaneously in more than one hearing room. While there are regional variations, and some hearing blocks are devoted to hearing previously-adjourned or complex matters, a typical 3-hour hearing block can contain 20-30 cases, many of which are uncontested on the day of the hearing. Members have generally managed the blocks by dealing with simple matters first, such as requests for withdrawals, adjournments, consent or uncontested cases. However, this can result in longer wait-times for parties who are ready to be heard. At times, this can lead to adjournments for those cases heard later in the block.

Highlights:

- *Case Management Strategies*
- *Electronic Hearings Pilot Project*
- *New Case Management System*
- *New Chief Operating Officer*
- *Accessibility and Human Rights at the Board*
- *Redacted Board Orders*

Over the past year, the Board experimented with various approaches to scheduling hearings and managing hearing blocks in those offices that handle the higher volume and more complex cases, namely, in the Toronto North and Toronto South offices. The goal of the exercise was to triage the cases for efficiency, thus allowing the Members sufficient time to deal with more complex cases. In the latest approach that has been adopted, all L1 and L9¹ applications are scheduled to be heard in one hearing room while other more complex matters are scheduled in another.

The Board has received positive feedback from stakeholders about their hearing day experience as a result of these changes. In the coming year, the Board will continue to explore the potential benefit of further changes to scheduling practices to facilitate better hearing day management.

Electronic Hearings Pilot Project

In 2009, the LTB introduced a six-month pilot project to test the expanded use of telephone and videoconference technologies for mediation and hearings in a few locations across the province. The Board has used teleconference and videoconference hearings widely in northern Ontario for a number of years; therefore it was anticipated that this initiative would allow the Board to provide more timely service in the pilot areas and improve accessibility.

¹ L1 is a landlord's application to terminate a tenancy and evict a tenant for non-payment of rent; L9 is a landlord's application for payment of rent arrears.



YEAR IN REVIEW

The areas in which the pilot projects were implemented were the counties of Bruce, Grey, Haldimand/ Norfolk and Huron for telephone hearings. Face-to-face hearings were held where telephone hearings were not appropriate. Videoconference hearings were piloted in the district of Thunder Bay.

The Board is in the process of reviewing the result of these pilots and the feedback from stakeholders, and will be deciding how electronic hearings can best be used as an effective tool for the Board in achieving its service principles of fairness, accessibility, customer focus and timeliness.

New Case Management System

In late April 2009, the Board launched Cmore, a new Oracle Siebel case management system, for all applications (except for Above Guideline Increase (AGI) applications) to replace the Evans CaseLoad system, in order to assist in managing the Board's workload. The Board used a phased approach to implement Cmore, running Cmore and CaseLoad concurrently, and gradually processed an increased number of applications with the new system.

Early in 2010, the initial transitional issues had been largely overcome. The Board completed its transition to Cmore on March 31, 2010 with no backlog situation. The patience and understanding of the Board's clients who had coped with longer than usual wait-times at front counters during the transition is very much appreciated. The Board will continue to leverage this new technology to serve its clients better.

New Chief Operating Officer

Effective August 31, 2009, Laura Bryce became the first Chief Operating Officer for the Board. Ms Bryce has a proven track record over the last 30 years with the Ontario Public Service including a number of strategic leadership and business transformation roles that will serve the Board well.

Accessibility and Human Rights at the Board

The Board provides its services in accordance with the Ontario *Human Rights Code* (the Code), the *Ontarians with Disabilities Act, 2001* (the ODA) and the *Accessibility for Ontarians with Disabilities Act, 2005* (the AODA).

The Board is fully compliant with the Customer Service Standard established under the AODA. The Customer Service Standard includes ensuring that policies, practices and procedures are in place with regard to providing Board services to people with disabilities, having a feedback mechanism about the accessibility of Board services and ensuring that Board staff and Members receive training about providing services to people with disabilities.

In October 2009, the Board published its Human Rights Guideline as part of the Board's overall Human Rights Strategy to address its obligations under the *Human Rights Code* (the Code). The Guideline addresses various Code issues that may arise in a Board proceeding. The Board consulted with members of the Stakeholder Advisory Committee and the Ontario Human Rights Commission in developing the Guideline.



YEAR IN REVIEW

In November 2009, the Board launched its Policy on Accessibility and Human Rights. The Policy sets out what the Board has done to ensure clients can access its services without barriers, how clients can make a request for accommodation in regards to their needs under the Code, how clients can give feedback on the Board's provision of services, and how the Board will train staff and Members on the obligations arising from the Code and the AODA.

Redacted Board Orders

As reported in the 2008-2009 annual report, the Board has been posting redacted orders on its website to provide the public with transparency of its decisions. Redacted orders are orders from which information has been removed to protect the privacy of individuals named in the order, having regard to the provisions of the *Freedom of Information and Protection of Privacy Act*.

Furthermore, the Canadian Legal Information Institute (CanLII) has established an online database for redacted Landlord and Tenant Board orders. CanLII has already posted a number of Board orders issued starting in September 2009, and will continue to add new orders to its database at the rate of 200 orders per month. The CanLII website is at www.canlii.org.

Summaries of Board selected decisions will continue to be posted on the LTB website. Selected decisions are decisions chosen by a committee of the Board. These decisions are not binding on Members of the Board, nor are they intended to reflect the official position of the Board on how to interpret or apply the law. These decisions are also sent to CanLII and Quicklaw for posting. In general, only contested orders are chosen for posting.



THE ROLE OF THE BOARD

Section 1 of the *Residential Tenancies Act, 2006* (the RTA) sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

The RTA, which establishes the Landlord and Tenant Board, confers a dual mandate on the Board.

First, the LTB exercises a quasi-judicial function under subsection 168(2) of the RTA, which provides that the Board has jurisdiction to determine all applications under the RTA, and section 174, which provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the RTA.

Second, pursuant to section 177 of the RTA, the LTB is required to give information to landlords and tenants about their rights and obligations.

Mission Statement

The Board has adopted the following Mission Statement: The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

Section 183 of the RTA mandates the Board to adopt the most expeditious method of determining the questions arising in a proceeding which affords parties an adequate opportunity to know the issues and to be heard on the matter.

“ The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the Residential Tenancies Act and provide balanced and timely dispute resolution in accordance with the law” .



THE ADJUDICATION PROCESS

The LTB handles a large volume of cases, resulting from the significant number of renters in Ontario (approximately 29% of Ontario's households²). The Board strives to ensure that its application resolution process meets both efficiency and quality service objectives. When the LTB receives an application, the parties are entitled to a hearing before a Board Member who will decide the outcome in accordance with the law.

Application Types

Applications filed with the Board are classified on a "case type" basis. (Applications by Type are listed on page 17.) The bulk of the Board's workload consists of applications from landlords to terminate the tenancy and evict the tenant for non-payment of rent and to collect arrears of rent (Application Form L1). The most common tenant application is an application about tenant rights (Application Form T2), dealing with such issues as illegal entry and interference with reasonable enjoyment of the rental unit. Another type of application the Board handles is a landlord's application for an above-guideline rent increase (Application Form L5), which often involves multiple tenants.

Average Processing Times

The Board tracks the length of time from the filing of an application to the initial hearing date for these applications, and the time from the final hearing date to the date the order is issued.

These statistics on timelines generally correspond to the complexity of the application types.

On average, L1 applications will have their hearing scheduled within four to five weeks of their filing date, and will have an order issued within three days of the final hearing. T2 applications, which tend to be more complex, will typically be heard within six to eight weeks of their filing date, and will have an order issued within seven days of the final hearing. L5 applications (for above-guideline rent increases) generally involve the lengthiest processes and as a result tend to be heard 20 to 22 weeks after their application was filed, and have an order issued within three weeks after the hearing.

Board Decisions

All Board Members are independent decision-makers who have the exclusive authority to make decisions in accordance with the *Residential Tenancies Act, 2006* (the RTA) and the *Statutory Powers Procedure Act* (the SPPA), an Act that governs the practice and procedures at the Board. A decision can only be changed by way of review filed under the Board's Rules of Practice, or by way of appeal on a question of law to the Superior Court of Justice (Divisional Court).

² The population of Ontario was approximately 12 million at the time of the 2006 Census (Statistics Canada).



THE ADJUDICATION PROCESS

Reviews and Appeals

A party to an application may ask for a review of a Board order if they believe that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding.

The authority for requesting a review comes from section 21.2 of the SPPA, subsection 209(2) of the RTA, and Rule 29 of the Board's Rules of Practice. The Rules also allow a Vice Chair of the Board to initiate a review.

A review of a Board order is decided by a Member other than the Member who heard the application and issued the order. When a review request is filed with the Board, a Member conducts a preliminary review without holding a hearing, to determine whether or not the order may contain a serious error or a serious error may have occurred in the proceedings. Where the Member determines that there is a possibility of a serious error affecting the result of the case, a review hearing will be held. Otherwise, the Member will dismiss the request for review.

Section 210 of the RTA also provides that any person affected by a Board order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law.

Board Member Appointments

Board Members, appointed by Orders-in-Council, perform the function of adjudicators of applications filed with the LTB.

Members are selected from a list of qualified candidates who have applied to the Public Appointments Secretariat. They undergo a rigorous and competitive interview and selection process and, based on the results of the interview process, the Chair will make recommendations to the Minister in regard to their appointments. The Minister makes a recommendation to the Cabinet who decides on the appointment.

Once Members are appointed to the Board, they receive training from the Board to become adjudicators. The initial training period, which spans a number of weeks, incorporates classroom instruction, hearing room observation, participation in mock hearings and mentoring from an experienced Member or Vice Chair. New Members are also paired up with other experienced Members in their early hearing room assignments. The training provided by the Board, augmented by the Members' previous experience and knowledge, prepares them to deal proficiently with the issues that come before them.

While most Members are on full-time appointments, there are also some part-time Members. All Members report to the Chair of the Board through a regional Vice Chair, and are located in different areas of the province as the Board has eight offices to facilitate regional representation and service delivery.



THE ADJUDICATION PROCESS

Professional Development

Members from across the province meet once a year for professional development. They also meet more frequently in their regions. These meetings provide on-going training and address any emerging issues. The Board's Legal Services Branch also summarizes new case law or legislation that has a direct impact on Members' decision-making and disseminates this information to Members, in the form of legal memos.

A minimum of four days are set aside each year for Members' continuing professional development.

For example, a number of Board Members were able to attend the November 2009 Conference of Ontario Boards and Agencies (COBA), the major annual conference on administrative justice, organized by the Society of Ontario Adjudicators and Regulators (SOAR).

At times, Members participate in on-line training to facilitate access. For example, E-learning modules, developed by the Ontario Public Service, Centre for Leadership and Learning, to assist staff and Members in interacting with people with disabilities, were completed by all Board Members in 2009-2010. A professional development committee headed by a Vice Chair oversees ongoing educational opportunities for the Members.

Rule and Guideline Making

Rule and Guideline-making are mandated by section 176 of the RTA. Although Board Members are independent decision-makers, the Board has an interest in achieving consistency and coherence in decision-making. To encourage this, the Board has codified a general interpretation of some aspects of the RTA in its Interpretation Guidelines and its procedures into Rules of Practice.

Rules of Practice set out procedural rules that must be followed. While a Member may waive certain rules in appropriate circumstances, some rules have a non-waiver provision. Interpretation Guidelines, on the other hand, are not binding on Members in their decision-making, but they should generally be followed unless there is valid reason not to do so. Members must provide reasons for waiving a rule or not following a guideline. The LTB's Rules and Guidelines are available to the public so that parties know what to expect when they come before the Board.

The Board has adopted the following process as a means of elevating an issue to the point of requiring rule or guideline-making. Issues may be identified from discussions held at regional Members' meetings, or by the Board's Legal Services Branch (LSB) or Program Development Unit (PDU), or from discussions with stakeholders. These issues are first presented and discussed at "roundtables" of Vice Chairs. In many cases, the Vice Chairs elicit feedback from their Members before coming to the roundtable forum, to ensure the Members' opinions can be taken into consideration.



THE ADJUDICATION PROCESS

When there is consensus or a preferred position is reached with respect to an issue by the Vice Chairs, with the input of LSB and PDU, the matter may be referred to the Rules and Guidelines Committee for the development of a new or revised Rule or Guideline. Then, before new or revised Rules and Guidelines are finalized, they are sent to members of the Board's Stakeholder Advisory Committee for consultation before finally being adopted by the Rules and Guidelines committee. Finally, once the Rule or Guideline is adopted by the Board, it is posted on the Board's website for the public.

Committee work

Committee work is an important aspect of the work of the board, as it seeks to identify and address important legal and procedural issues in adjudication. Vice Chairs often lead these committees which are constituted of Board Members, staff and counsel from the LSB. Examples of Board committees are: the Rules and Guidelines Committee, the Order Production Group (which facilitates the production of board orders), the Selected Decisions Committee, the Adjudicative Best Practices Committee and the Capacity Committee.





THE MEDIATION PROCESS

The Landlord and Tenant Board employs 21 Mediators throughout the province to provide voluntary mediation services to parties involved in applications before the Board. An application can be resolved through:

- adjudication (an order is signed by a Board Member),
- mediation (an agreement is signed by the parties only), or
- a consent order (an order based on an agreement between the parties is signed by a Member).

How Mediation Works

In mediation, the parties voluntarily work with a Board Mediator to achieve a desired outcome for the parties. An agreement reached by the parties may contain terms outside the limits provided by the legislation. In adjudication, however, the outcome is decided by a Board Member, within the limits of the legislation, based on the evidence and circumstances elicited at the hearing.

If the parties are successful in resolving their dispute through mediation, the Board Mediator will prepare a mediated settlement based on the terms of the parties' agreement. The agreement will be signed by the parties, copies of which are kept by the parties only. The Board does not keep a copy of the agreement. At times, after mediation, parties may choose to come before a Board Member to obtain a consent order based on the terms of their agreement.

Mediation is a valuable tool in the daily work of the Board. The Board anticipates naming a Mediation Team Lead in the near future, to oversee the management and performance of the Mediators at a provincial level. The Team Lead develop protocols, standards and performance measures.

Benefits of Mediation

During the 2009-2010 fiscal year, approximately 48% of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/ or resulted in consent orders. Mediation continues to be an important and effective non-adversarial method of resolving disputes, helping to save tenancies and reduce social costs, while strengthening the relationships between landlords and tenants.





OFFICE & HEARING LOCATIONS

The Board strives to make its services accessible to Ontarians across the province. The Board has eight offices that offer full services to clients. At those offices, landlords and tenants can file applications and obtain information from one of the Board's Customer Service Officers about their rights and obligations under the law, as well as attend hearings and participate in mediation.

Board Offices

Approximately 70% of Board hearings are held in these eight offices located in:

- Downtown Toronto - (Toronto South Region)
- North York, Toronto (Toronto North Region)
- Scarborough, Toronto (Toronto East-Durham Region)
- Mississauga (Central Region)
- London (Southwest Region)
- Hamilton (Southern Region)
- Ottawa (Eastern Region)
- Sudbury (Northern Region)

Off-site Hearing Locations

There are 33 off-site hearing locations to which Board Members and Mediators travel for hearings on a regular basis. These are: Barrie, Belleville, Bracebridge, Brantford, Brockville, Burlington, Chatham, Cobourg, Cornwall, Goderich, Guelph, Hawkesbury, Kingston, Lindsay, Newmarket, North Bay, Orangeville, Owen Sound, Pembroke, Perth, Peterborough, Port Elgin, Sarnia, Sault Ste. Marie, Simcoe, St. Catharines, St. Thomas, Stratford, Thunder Bay, Waterloo, Whitby, Windsor and Woodstock.

Electronic Hearings

There are also a number of locations in the northern parts of the province where the Board regularly holds hearings electronically. For example, in Timmins, hearings can be held by video-conference; in Dryden and Elliot Lake, hearings are held by telephone. The Board can also schedule electronic hearings upon party request where circumstances permit.



ServiceOntario Partnership

The Board has partnered with ServiceOntario in over 70 locations across the province, to distribute forms and brochures, and to receive applications and other documents on behalf of the Board. This partnership helps to improve front counter accessibility for clients throughout the province.



CUSTOMER SERVICE THROUGH THE CALL CENTRE

Early resolution of disputes is important to achieve the Board's Mission. Landlords and tenants can sometimes resolve their disputes once they have been informed about the law.

Section 177 of the RTA sets out the Board's mandate to provide information to landlords and tenants about their rights and obligations under the legislation. In fulfilling this mandate, the Board's virtual Call Centre handles customer inquiries, in both English and French, through toll free lines. In the Greater Toronto Area, the phone number is (416) 645-8080; outside Toronto the number is 1-888-332-3234. Customer Service Officers are available during regular business hours. An automated telephone service answers frequently-asked questions 24 hours a day, 7 days a week. This year, the Board responded to approximately 500,000 telephone calls.

Also, if a landlord or tenant has filed an application with the Board, they can inquire about the status of their case via the telephone.





E^GOVERNMENT

The Board's website, www.LTB.gov.on.ca, receives approximately 2.5 million hits each month. All Board forms, the Rules of Practice, Interpretation Guidelines and the Board's complaint procedures are available on the website, in both English and French. The Board's Policy on Accessibility and Human Rights is also available on the website.

Also available on the website is a *Guide to the Residential Tenancies Act* in Arabic, Chinese, Farsi (Persian), Korean, Punjabi, Russian, Spanish, Tamil, Urdu and Vietnamese³, as well as in English and French. Apart from this Guide, there are over 30 brochures posted on the website providing information on all major aspects of the RTA and the Board's services. Topics include the rent increase guideline, care homes, how to file an application, ending a tenancy, illegal lockouts, Board fees, information about a hearing and information for new tenants.

At the beginning of the fiscal year covered by this report, the Board began phasing in its new case management system, Cmore. After the implementation of Cmore, the Board is now in a position to explore further use of additional functionality in the system as well as eFiling to better meet our client's needs.



The Cmore 'logo'

³ These are the ten most spoken languages, in addition to English and French, in Ontario according to 2001 Census data obtained from Statistics Canada.



FRENCH LANGUAGE SERVICES

The Board provides service to the public in both official languages in accordance with the *French Language Services Act* (the FLSA). All offices in areas designated by the FLSA have bilingual staff available. The Board's policy concerning the provision of French language services is set out in its Rules of Practice.

Services at Board Hearings

Where a party is entitled to and has requested French language service, the Board attempts to schedule a French-speaking Member to hear the case. Where this is not possible within a reasonable period of time, the Board will schedule the matter before an English-speaking Member and will ensure that an interpreter is present.

About 10% of Board Members can conduct hearings in French, and 5% of its Mediators can provide mediation service in French. Less than 0.4% of Board hearings were conducted in French over the past fiscal year.

All correspondence and decisions of the Board are provided in French to a party who has requested and is entitled to French language services.





BUDGET AND REVENUES

The following table shows the Expenditures and Revenues of the LTB for 2009-10 including actual results, budget and variances.

Vote & Item 1904-03 Residential Tenancy	Budget (\$)	Actual (\$)	Variance Savings/ (Over-Expenditure) (\$)
Operating Expenditure	27,997,521	27,870,772	126,749
Revenue	Not Applicable	11,750,665	Not Applicable

Source of Data: 2009-10 Draft Public Accounts

Note:

The Public Accounts reflect consolidated numbers for the LTB and IEU (the Investigations and Enforcement Unit of the Ministry of Municipal Affairs and Housing). Accordingly, to arrive at LTB numbers, Public Account numbers have been adjusted to remove IEU numbers.

The expenditures for the Board for 2009-10 were \$27.87M. Of this, \$16.56M was for salaries and wages, \$2.40M was for benefits and the remaining \$8.91M can be attributed to Other Direct Operating Expenses.

In 2009-10 the LTB successfully met its service delivery performance standards and key deliverables while being able to achieve a savings of \$126,749 from its operating expenditure budget.

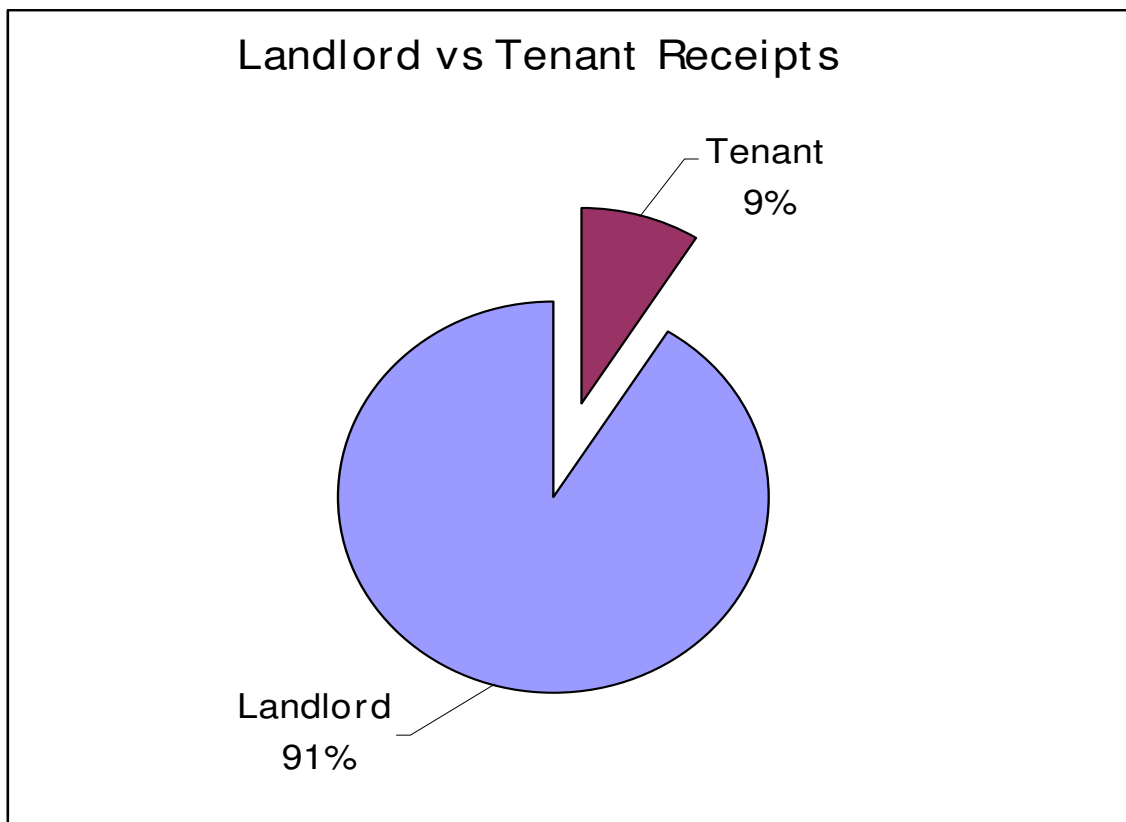


STATISTICAL INFORMATION

Landlord vs Tenant Receipts

From April 1, 2009 to March 31, 2010, the Board received 78,072 applications filed under the RTA. This represents a decrease of 7,768 applications, which is approximately 9% compared to the 2008-2009 workload. The decrease appears to correlate with the recent trend toward economic stabilization and recovery in Ontario.

The distribution of application receipts has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the Board's predecessor, the Ontario Rental Housing Tribunal. This past year was no exception, with 91% of applications filed by landlords and 9% filed by tenants.

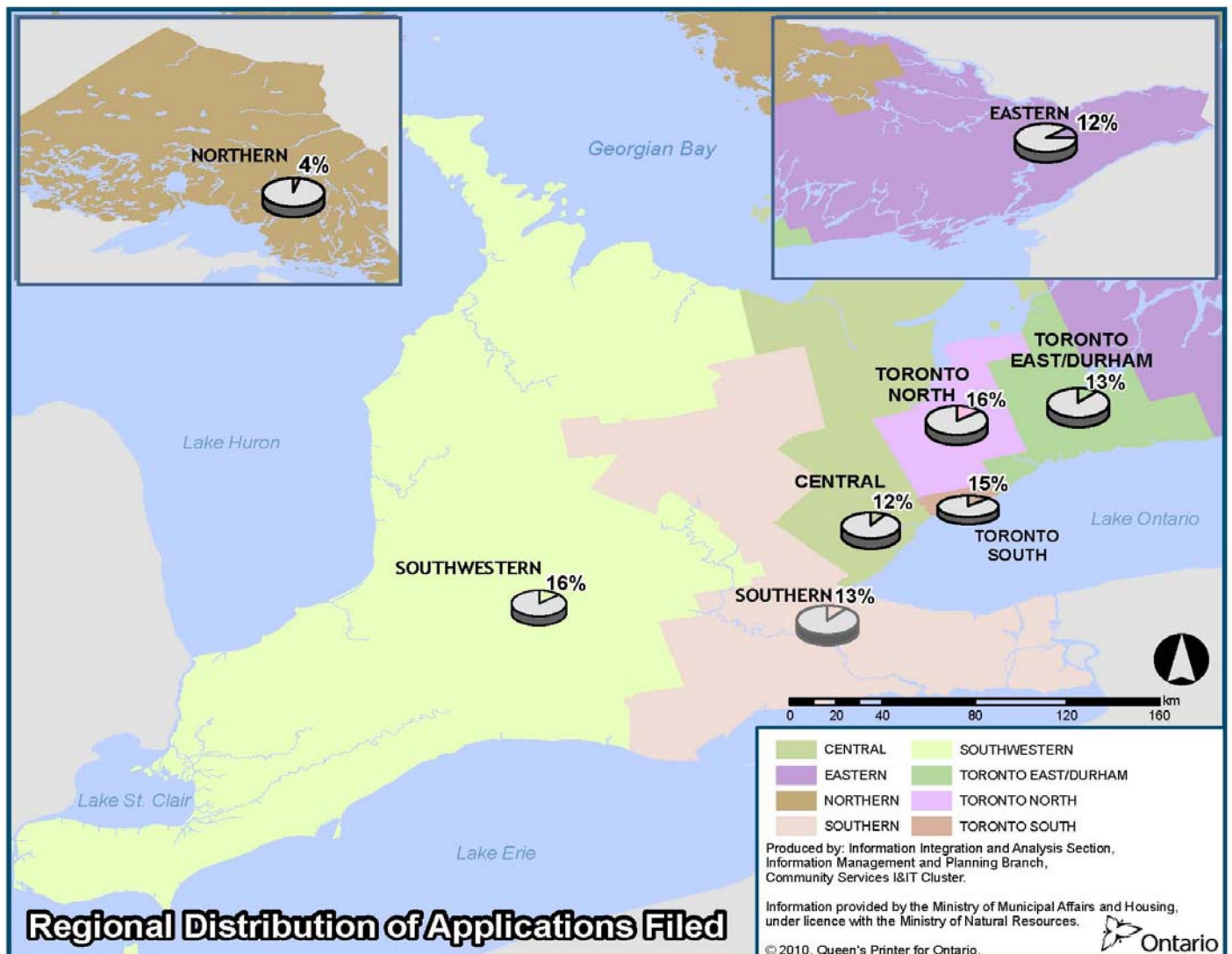




STATISTICAL INFORMATION

Regional Distribution of Applications

The regional distribution of applications filed with the Board is as follows:





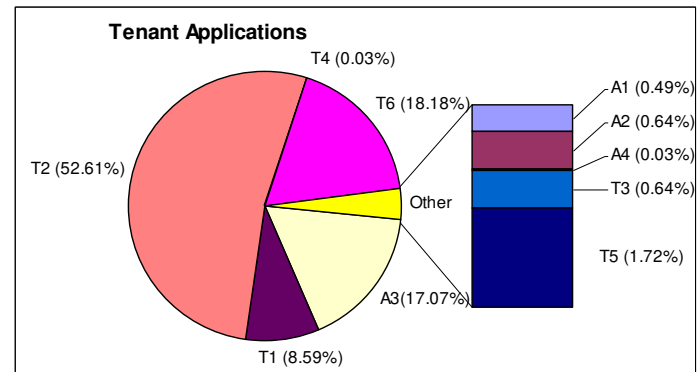
STATISTICAL INFORMATION

Applications By Type

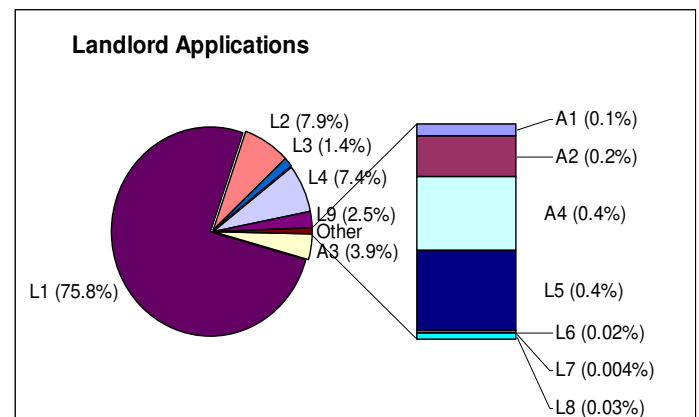
Termination of tenancy and eviction applications continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 69.3% were for termination of tenancy because of arrears of rent.

The following charts show the distribution of the Board's workload, by type of application for the 2009-2010 fiscal year.

Case Type	Application description	# of Cases
A1	Determine Whether the Act Applies	49
A2	Sublet or Assignment	153
A3	Combined Application	2,796
A4	Vary Rent Reduction Amount	275
L1	Terminate & Evict for Non-Payment of Rent	54,109
L2	Terminate & Evict for Other Reasons	5,628
L3	Termination Tenant Gave Notice or Agreed	991
L4	Terminate the Tenancy: Failed Settlement	5,301
L5	Rent Increase Above the Guideline	294
L6	Review of Provincial Work Order	12
L7	Transfer Tenant to Care Home	3
L8	Tenant Changed Locks	22
L9	Application to Collect Rent	1,754
Landlord	Total	71,387



Case Type	Application description	# of Cases
A1	Determine Whether the Act Applies	33
A2	Sublet or Assignment	43
A3	Combined Application	1,141
A4	Vary Rent Reduction Amount	2
T1	Rent Rebate (e.g. illegal rent)	574
T2	Tenant Rights	3,517
T3	Rent Reduction	43
T4	Failed Rent Increase Above Guideline	2
T5	Bad Faith Notice of Termination	115
T6	Maintenance	1,215
Tenant	Total	6,685





STATISTICAL INFORMATION

Applications filed under the TPA

During the 2009-2010 fiscal year, in addition to its RTA workload, the Board continued to resolve applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), but remained unresolved on January 31, 2007 when the RTA was proclaimed. The TPA was the legislation in effect prior to the implementation of the RTA on January 31, 2007.

Transitional Rules

Applications filed under the TPA continue to be resolved pursuant to the TPA, but with regard to certain transitional rules brought in by the RTA. For example, the Board cannot issue a default order on a TPA application if it was not resolved by January 31, 2007. Also, a Member hearing a TPA eviction application is now *required* to review all the circumstances of the application under section 83 of the RTA and to always consider delaying or refusing to grant a tenant's eviction. This is different from the *discretionary* provision that existed under a similar provision (section 84) in the TPA.

Pending TPA Applications

At the beginning of this fiscal year, 66 TPA applications were still active. Between April 1, 2009 and March 31, 2010, the Board resolved 57 of those applications, leaving 9 TPA applications awaiting resolution. (The number of unresolved TPA applications may increase slightly as a party to a TPA application may, for example, still file a request to review a TPA order and this would be added to the TPA workload.)



STATISTICAL INFORMATION

Application Resolution

Over the past year, the Board has continued to resolve applications without creating a backlog, despite the challenge of implementing a new case management system. As of March 31, 2010, the number of unresolved RTA applications is 8,166. This number represents approximately five weeks' work at the Board, which is the workload appropriate to warrant smooth and continuous operation for the Board.

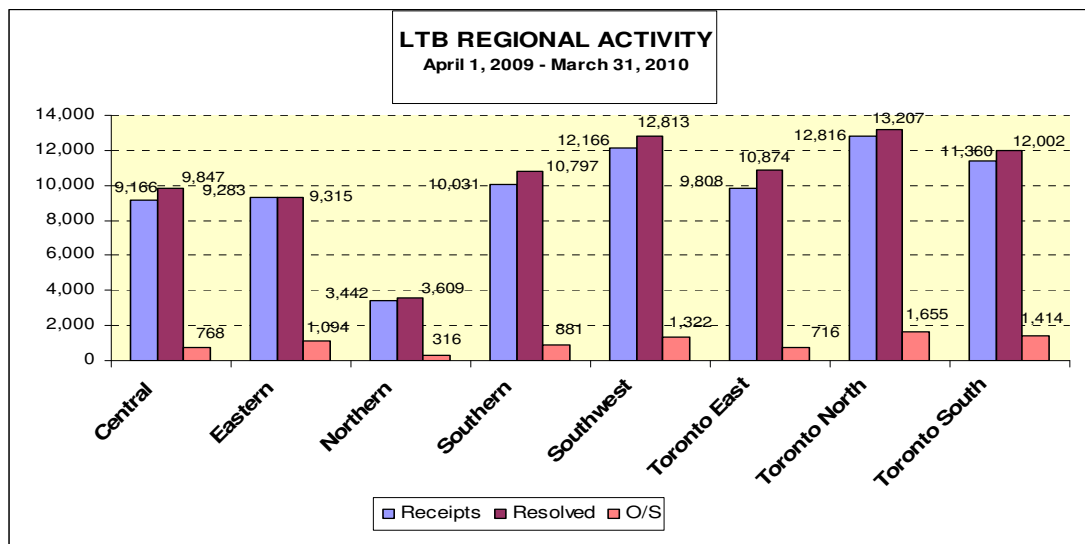
For the fiscal year 2009-2010, the Board received a total of 78,072 applications and resolved 82,464 applications. Some applications may generate more than one resolution because of the re-opening and review processes.

The following chart shows how application receipts and resolutions have remained relatively constant during the year.

Review and Appeal Statistics

Over the 2009-2010 fiscal year, the Board received 1,755 requests for review, of which approximately 63% were sent to a hearing.

Also during the 2009-2010 fiscal year, 200 Notices of Appeal of Board orders were received by the Board.





DECISION SUMMARIES

TNL-22811 (July 10, 2009) – s. 6(2)(a), exemption from some ‘rent controls’ – s. 126, above guideline increase in rent

The Landlord applied for an above guideline increase in rent. The rental unit is a condominium unit located in a complex that was first occupied on May 15, 2007. Section 6(2)(a) of the RTA states that a rental unit is exempt from certain rent control provisions if it has not been occupied for any purpose before June 17, 1998. The rental unit falls within this exemption.

While Landlords are still required to give a 90-day written notice (section 116) and can only increase the rent once every twelve months (section 119), the provisions of the RTA that would limit a rent increase to the guideline amount (section 120) or allow a rent increase above the guideline (section 126) do not apply. In this case, this meant that the landlord could increase the rent above the guideline without making an application to the LTB. The Landlord’s application was dismissed.

SWL-28812 (August 19, 2009) – s. 48, Landlord’s own use – s. 187(2), adding parties – joint landlords not acting in unison

FJ applied for an order terminating the tenancy for his own occupation. FJ owns half the property and the other half is owned by his mother, AJ. In a previous application against this Tenant, both were named as Landlords. As well, although only AJ signed the lease, the Member found there was an implied agreement between AJ and FJ that the property be rented out. Therefore AJ and FJ were Landlords as they both permitted occupancy of the unit. Accordingly, AJ was added as a party to the application.

At the hearing, AJ opposed FJ’s application. The Member held that the Landlords must act in unison because, from the Tenant’s point of view, they are a single entity. The Landlords’ application was dismissed.

TST-02463 / TST-02741 (August 27, 2009) – s. 57, bad faith – s. 48(2), void notice

The Tenants moved out of the rental unit because the Landlord gave them an N12 notice claiming that the Landlord’s daughter intended to move into the unit. The N12 was void because the termination date in the notice was not the last day of a rental period as required by subsection 48(2) of the RTA. The Tenants did not know that the notice was void and moved out by the termination date.

The Member determined that the Landlord’s daughter did not move into the rental unit within a reasonable time, nor did she have any intention of doing so. The Landlord took the position that because the N12 was defective, the Tenants’ T5 application should fail. The Landlord argued that a void notice could not have been given in bad faith as it was not in fact a notice.

The Member held that it was inconceivable that a Landlord could escape liability in a T5 because the N12 upon which it is based is void. Such a finding would mean that a Landlord could serve faulty notices in the hope that the Tenant would vacate, as the Member found happened here. Moreover, subsection 57(1) of the RTA makes no reference to valid or invalid notices. Even defective notices can be given in bad faith. The Landlord's preliminary motion to dismiss the application was therefore dismissed.

TNL-29278-SA (October 5, 2009) –s. 78(11)(b), not unfair to set aside order

The Landlord applied for an order to evict the Tenant because she failed to meet a condition specified in a previous order. The order was granted. The Tenant filed a motion to set it aside.

The Member found that there existed extenuating circumstances for the tenant's failure to meet a condition in the original order. The Tenant had deposited sufficient funds into her bank account to cover the August rent. The Tenant was not aware that her cash deposit on July 30 would be placed on hold pending verification of the funds. This resulted in the August rent cheque not being honoured by the bank, and the cheque was returned to the Landlord due to non-sufficient funds. Upon discovering that the Landlord had obtained an eviction order, the Tenant attended at the Landlord's office and paid the August rent by way of a bank draft.

In considering relief from eviction, the Member determined that she could only consider circumstances that have arisen since the original order was issued. The Tenant's previous persistently late rent payments or the fact that she had five children were not relevant. The Member was satisfied that the Tenant had made a genuine effort to ensure that sufficient funds were in her bank account to cover the August rent. As well, she had paid the September rent and at the hearing she committed to making future rent payments in guaranteed funds. Applying section 78(11)(b), the Member determined that it would not be unfair to grant the Tenant's motion to set aside the order.

TET-01161-09 (October 29, 2009) –s. 135, money collected illegally –smart meters, *Electricity Act* and *Ontario Energy Board Act*

The Tenant applied for an order determining that the Landlord has collected or retained money illegally.

The tenancy agreement provided that the Tenant is not responsible for electricity costs. Effective January 1, 2009 the condominium building installed smart meters in each of the units. The Landlord required the Tenant to pay the electricity charges and did not decrease the rent in exchange for the Tenant assuming responsibility for these payments.

The Tenant has paid the electricity provider \$690 since the smart meter was installed, and his electricity was shut off several times due to non-payment of the electrical bill.

The Member determined that the Landlord has interfered with the supply of a vital service and interfered with the Tenant's enjoyment by failing to continue to pay the cost of electricity for the rental unit. The Tenant requested reimbursement of the costs and the Member so ordered.

The Member also observed that, although the Ontario Energy Board (OEB) Order EB-2009-0111 issued on August 13, 2009 is not binding on him, the Landlord is likely in contravention of the *Electricity Act, 1998* and the *Ontario Energy Board Act, 1998* because there was no evidence that the Landlord had complied with the stringent conditions for installing smart meters set out in the OEB Order. These conditions include obtaining a third-party energy audit and the written consent of the affected tenants.

SOL-25190 (November 10, 2009) – *s. 62, undue damage to rental unit –Human Rights Code, duty to accommodate –s. 83, relief from eviction –s. 204, conditional order*

The Landlord gave the Tenant an N5 notice for causing damage to the rental unit. The Tenant has caused damage to the ceiling of the rental unit below as a result of prolonged water leakage caused by the Tenant not making proper use of his shower curtain. In addition, the Tenant has a disability that causes urinary incontinence. The unit became unhygienic because of his incontinence and the smell of urine pervaded the building.

Citing *Ball v. Metro Capital*, the Tenant argued that the N5 notice was defective because it failed to set out sufficient details about the times and dates and conduct that led to the notice. The Member held that the issue is not whether there are dates and times but whether the N5 notice is descriptive enough for the Tenant to know the case to be met. The notice given by the Landlord described the problem with enough detail that the Tenant could have remedied the problem or disputed the notice.

The Member determined that the Tenant has a disability and therefore the Landlord has a duty to accommodate him in accordance with the *Human Rights Code*. However, applying *Eskritt v. MacKay*, the Member determined that accommodation is not relevant in a claim for damages even when the damages are related to a disability.

The Member made a conditional order allowing the tenancy to continue if the Tenant made payments of \$50 a month until the damages are paid.

CET-01027-09 (November 25, 2009) – *s. 6, Substitute Decisions Act –Public Guardian and Trustee*

The Tenant filed an application claiming that the Landlord's actions in obtaining an ex parte order terminating the tenancy interfered with his reasonable enjoyment. Tenant's counsel argued that the Tenant has the capacity to give instructions to counsel and provide evidence, even though the Public Guardian and Trustee (PGT) had been appointed to manage the Tenant's property and related legal affairs.

First, the Member determined that the application relates to the Tenant's property because it involves termination of his tenancy. Second, the PGT is the only person authorized by law to deal with the Tenant's financial and related legal affairs. This decision was made after the Tenant's capacity was assessed and it was determined that he is incapable of managing his property pursuant to section 6 of the *Substitute Decisions Act*.

The Member held that she is not willing to proceed with the application without the involvement of the PGT or new evidence showing that the Tenant is legally capable of managing his property and related legal affairs. The Tenant's application was dismissed.

TSL-18156-RV (December 24, 2009) – *s. 202, real substance –Rule 16, amend application*

The Landlord applied to evict the Tenants because they did not pay the rent. The order was granted. A person directly affected by the order requested a review.

When the Tenant entered into the tenancy agreement, he used his sister's name instead of his own. The Landlord's L1 application named the sister and the order was issued against her. The sister was directly affected by the order because a lien was placed on her condominium as a result of the order. As she did

not receive notice of the hearing, she did not have a reasonable opportunity to participate in the hearing. The review was granted.

The Member determined that the proper remedy would be to amend the application, and to vary the order to reflect the true names of the Tenants. The Tenant who used his sister's name will suffer no prejudice because he attended the hearing and consented to the order, and the Landlord will not have to initiate new proceedings to recover arrears of rent.

CET-02485 (January 19, 2010) –s. 20(1)(f), amending application –s. 20(1), duty to repair –s. 30, abatement of rent

The Tenants filed a T1 application after a fire broke out in the unit below and their unit was filled with dense smoke and soot. The Tenants had to vacate for about one month while their unit was being restored. The Tenants' insurance company arranged for the restoration of the Tenants' belongings, and the condo property management company arranged for the unit to be restored, but the Tenants also wanted an abatement of rent. The correct application to address the situation is a T6. At the hearing, the parties consented to amend the T1 application to a T6 application.

The Landlord argued that she was not responsible for the fire or the amount of time it took to restore the unit and therefore should not have to pay rent abatement. The Member noted that subsection 20(1) of the RTA does not contain a fault element. That means the reason for a landlord's breach is not relevant. The Member acknowledged there was no wrongdoing by the Landlord, but there was no dispute that the Tenants did not get what they paid for. They paid the full rent for the period of time they were unable to live in the unit. The Landlord, through no fault of her own, was unable to provide a rental unit that was in a good state of repair and fit for habitation and was therefore in breach of section 20.

The Member determined that the Tenants were entitled to a 90%rent abatement for the one month they could not live in the unit. The Tenants requested 100%but it was reduced in recognition of the services and facilities they continued to receive during the month they did not live in the unit.

CEL-22280 (January 20, 2010) –s. 2, "rent" –s. 59(3), notice void if rent paid

The tenancy agreement required the Tenant to pay the Landlord for utilities. The Tenant failed to pay for the utilities so the Landlord sent him a letter stating that any future rent payments will be applied toward the debt for utilities. When the Tenant failed to pay the next month's rent, the Landlord gave him an N4 notice of termination for non-payment of rent. The Tenant then paid the rent for that month.

The Landlord argued that his letter informing the Tenant of the Landlord's intended treatment of any monies paid gives him the authority to apply rent payments toward utilities first.

The Member held that the Landlord cannot unilaterally allocate the rent payment towards the utilities. There was no evidence that the Tenant had indicated to the Landlord that the payment was to be applied to anything other than rent. The amount of payment and the timing of payment were consistent with the Tenant's practice of paying the rent. As such, it was reasonable to conclude that the Tenant intended the payment to be rent, and therefore the N4 notice had been voided by the Tenant's payment. The Landlord's application was dismissed.

TEL-27316-RV (February 18, 2010) – *s. 2, landlord – s. 48, good faith – s. 168 & 174, exclusive jurisdiction*

The Landlord applied to evict the Tenant because the Landlord wants the rental unit for his own use. A previous similar L2 application had been dismissed because the Member determined that the Landlord did not genuinely intend to occupy the rental unit. In the second application, the Member concluded that the Landlord's circumstances had changed significantly since the previous application, and granted the application.

On review, the Tenant argued that: 1) the Landlord did not meet the definition of "landlord" in s. 2 of the RTA; 2) the Landlord lacked good faith; 3) the Board had no jurisdiction to hear the application because of pending litigation about the property in the Superior Court.

On the first ground of review, the Review Member noted that the Board had found in the previous application that the Landlord did meet the definition of "landlord" in the RTA. Neither party reviewed or appealed that order. As well, the Landlord had previously filed an L1 application which ordered that the Tenant be evicted (subject to his right to void the order). In addition, the Landlord issues rent receipts to the Tenant and pays the mortgage, home insurance and maintenance costs for the residential complex. The Landlord also met the definition of "landlord" in his role as the personal representative of the Estate of his father who previously owned the property.

On the second ground of review, the Review Member agreed with the first Member that the Landlord had experienced a significant change in circumstances and that he genuinely intends to occupy the complex for his own use.

On the third ground of review, the Review Member considered sections 168 and 174 of the RTA and determined that, given the undisputed existence of a landlord and tenant relationship in this matter, the Board clearly has jurisdiction over the application despite the pending estate litigation.

The Tenant has filed an application for judicial review of the Board's review decision.

SWL-29357-SA (February 23, 2010) – *s. 78, no breach of mediated agreement*

The Landlord obtained an order under s. 78 of the RTA that evicted the Tenants for breaching the mediated settlement. The sole issue at the set aside hearing was whether the Tenants had paid \$100 on or before October 15, 2009, as required by the mediated settlement. The Tenants claimed that they made the payment early on October 1, 2009 and produced a receipt from the Landlord in that regard. The Landlord claimed that the receipted payment was for the September 15, 2009 which the Tenants had made late. The Tenants did not have a receipt for the September 15, 2009 payment but claimed they made it to the on-site superintendent.

The Landlord was given an opportunity to call the superintendent as a witness either at the hearing or have the matter adjourned so that the witness could attend. The Landlord declined those opportunities. The Member found the Tenant's testimony on this point was forthright, direct and credible. The Member determined that no money was in arrears under the mediated agreement and allowed the Tenants' motion to set aside the eviction order. The Landlord's L4 was dismissed.



BIOGRAPHIES

CHAIR

Dr. Lilian Yan Yan Ma, B.Sc., Ph.D., LL.B.

Tenure: 01-JUN-2005 - 31-MAY-2013

Dr. Lilian Ma joined the ORHT⁴/LTB as the Chair and CEO in June 2005. She has extensive experience in the public sector and was a Member of the Refugee Protection Division of the Immigration and Refugee Board of Canada, the Liquor Licence Board of Ontario, the Ontario Human Rights Commission and the Drug Quality and Therapeutics Committee in Ontario. She also worked as Chief of the Public Education Division of the Race Relations Directorate of Multiculturalism Canada.

Dr. Ma earned a Bachelor of Laws degree from the University of Toronto, a Ph.D. in Chemistry from Simon Fraser University, and a Bachelor of Science degree from the University of Hong Kong.

Dr. Ma is a member of the Law Society of Upper Canada and the Canadian Bar Association and sat on the Bar Association's Racial Equality Implementation Committee from 2000 to 2004. She sits on the Board of Directors of the Council of Canadian Administrative Tribunals and the Society of Ontario Adjudicators and Regulators. Prior to joining full-time public service, she was an active volunteer in the community and sat on a number of boards.

⁴ The Ontario Rental Housing Tribunal became the Landlord and Tenant Board on January 31, 2007 with the proclamation of the *Residential Tenancies Act, 2006*.

VICE CHAIRS

Kim E. Bugby

Tenure: 08-SEP-2004 - 28-MAY-2013

Kim Bugby graduated from the University of Western Ontario with a Bachelor of Arts degree in Psychology as well as from Loyalist College with a Diploma in Developmental Services. Ms. Bugby has extensive experience in community and social services for children, youth and adults including social assistance, housing, education and rehabilitative case management. Ms. Bugby was also a Community Support Coordinator, providing services to persons diagnosed with a serious mental illness. Ms. Bugby joined the ORHT/ LTB as a Member on September 8, 2004 and was appointed as Vice Chair on May 28, 2008.

Eli Fellman

Tenure: 15-DEC-2004 - 14-DEC-2013

Eli Fellman has an Honours degree in Political Science from Trent University, pursued graduate studies at Carleton University and attained a Bachelor of Laws degree at the University of Ottawa. Prior to his appointment to the ORHT/ LTB as a Member, he was a policy analyst at the federal Department of International Trade in Ottawa. Subsequent to his call to the Ontario Bar in 2002, he practiced international trade and customs law in Toronto. Mr. Fellman joined the ORHT/ LTB as a Member on December 15, 2004 and was appointed Vice Chair on December 15, 2005.

Régent P. Gagnon

Tenure: 05-JUL-2004 - 31-AUG-2013

Régent Gagnon graduated from Le Moyne College in Syracuse, N.Y. with a Bachelor of Science degree in Humanities. He worked in public and private sector organizations in all facets of Human Resources Management and then he founded his own HR consulting firm. As a recognized expert in HR, Mr. Gagnon was invited to teach HR courses at Carleton and Ryerson Universities. Prior to his appointment to the ORHT/ LTB, Mr. Gagnon served as a part-time Member of the Assessment Review Board for six years. In addition, he was a Member of the Planning Advisory Committee for Clarence Township and of the Board of Directors of the Ottawa Personnel Association and the Big Sisters of Ottawa-Carleton. Mr. Gagnon joined the ORHT/ LTB as a Member on July 5, 2004 and was appointed Vice Chair on September 1, 2005.

Murray William Graham

Tenure: 17-JUN-1998 - 15-JUN-2012

Murray Graham graduated from York University with a Bachelor of Arts degree and from Osgoode Hall Law School with a Bachelor of Laws degree. After his call to the Ontario Bar, he practised law in Toronto. From 1990 to 1998, Mr. Graham was a legal and administrative consultant to corporations in the transportation, waste management and environmental research and development industries. Mr. Graham joined the ORHT/ LTB in 1998 as a Member and was appointed Vice Chair on December 7, 2005.

Sean Henry

Tenure: 31-MAR-2004 - 12-DEC-2011

Sean Henry graduated from the University of Toronto with a Bachelor of Arts degree, from York University with a Master of Business Administration degree and from Queen's University with a Bachelor of Laws degree. Mr. Henry carried on a criminal and family law practice before becoming a Member with the Social Benefits Tribunal. He then worked as a senior policy analyst with the OMERS Pension Plan and after that as a policy advisor of the Ministry of Municipal Affairs and Housing. Mr. Henry joined the ORHT/ LTB on March 31, 2004 as a Member and was appointed Vice Chair on December 13, 2006.

Guy William Savoie

Tenure: 16-MAY-2001 - 06-APR-2012

Guy Savoie has held a number of senior management positions within both the financial and business sectors for the past 17 years. He was also a Professor at Seneca College teaching a diverse business subject portfolio within the undergraduate and post-diploma business and marketing programs. Mr. Savoie joined the ORHT/ LTB on May 16, 2001 as a Member and was appointed Vice Chair on March 24, 2004.

Jonelle Elizabeth van Delft

Tenure: 12-NOV-2004 - 12-JUN-2012

Jonelle van Delft graduated from Queen's University with an Honours degree in History, a Special Field Concentration in Women's Studies and a Bachelor of Laws degree. Before her appointment to the ORHT/ LTB, she practiced in a Legal Clinic under the Ontario Legal Aid Plan. Ms. van Delft joined the ORHT/ LTB as a Member on November 12, 2004 and was appointed Vice Chair on June 13, 2007.

MEMBERS

Elizabeth Beckett

Tenure: 07-FEB-2001 - 06-APR-2012

Elizabeth Beckett, a graduate of Osgoode Hall Law School, has spent much of her professional life in the teaching profession. Prior to taking up her position at the ORHT/ LTB she was a part-time Professor of Law at Sheridan College and taught Business Law for Canadian General Accountants. She brings with her experience gained as a Member of the Boards of Inquiry for the Human Rights Commission. Ms. Beckett was an ORHT/ LTB Vice Chair from April 7, 2004 to April 6, 2007; on April 7, 2007 she resumed her position as a Member of the LTB.

Joseph A. Berkovits

Tenure: 22-JUN-2005 - 21-JUL-2014

Joseph Berkovits graduated from York University with a Bachelor of Arts (Honours) degree in History and English, and a Master and Doctorate in History from the University of Toronto. He received a Bachelor of Laws degree from the University of Toronto, articulated at the Ontario Ministry of the Attorney General and in 2004 was called to the Ontario Bar.

Louis Bourgon

Tenure: 13-DEC-2006 - 12-DEC-2011

Louis Bourgon graduated from the University of Ottawa with a Bachelor of Arts degree and a Bachelor of Laws degree. He was called to the Ontario Bar in 1998. Mr. Bourgon also holds a certificate in Alternative Dispute Resolution from the University of Windsor, Faculty of Law. Before his appointment to the ORHT/ LTB, he worked for seven years as legal counsel in the Law Society of Upper Canada's Professional Regulation Division. He also previously served as legal counsel to the Children's Aid Society of Ottawa. Mr. Bourgon has been an invited speaker at law schools and legal conferences on matters of professional responsibility and discipline.

Vincenza (Enza) Buffa

Tenure: 05-MAY-2004 - 04-MAY-2012

Enza Buffa served as a Customer Relationship Management Reporting Analyst in the private sector for a world-wide call center whose client is primarily Ford Motor Company. Ms. Buffa was dedicated to this company for six years where she used her communication and conflict resolution skills on a daily basis with internal and external clients. She is a certified internal ISO (International Organization for Standards) auditor and has also held various positions during her term, such as Workforce Planning and Management and Payroll Administrator.

William Burke

Tenure: 18-OCT-2005 - 17-OCT-2013

William Burke was employed for more than 17 years in the municipal sector before joining the ORHT/ LTB. Mr. Burke was involved in aspects of municipal standards, building inspections and law enforcement during those years. He is a member of the Ontario Association of Property Standards Officers and served on the Board of Directors of that association previously.

Ruth Carey

Tenure: 13-DEC-2006 - 12-DEC-2011

Ruth Carey holds a Bachelor of Laws degree from the University of Ottawa, as well as a Bachelor of Arts degree in Women's Studies and a Bachelor of Science degree in Forestry from the University of Toronto. She was called to the Ontario Bar in 1993. She was the Executive Director of the HIV & AIDS Legal Clinic (Ontario). She has been a Member of the boards of directors of a number of community based or charitable organizations including the Northumberland Social Planning Council, Pro Bono Law Ontario, and the Canadian HIV/ AIDS Legal Network.

Vincent Ching

Tenure: 19-APR-2006 - 18-APR-2014

Vincent Ching joined the ORHT/ LTB after serving for four years as a Member of the Social Benefits Tribunal. Prior to that, he held senior positions with the provincial and municipal governments for nearly 30 years. He graduated from the University of Toronto with a Master in Social Work and more recently with a Master in Theological Studies. He has extensive volunteer experience in the community, including serving as a board member of the Ontario Trillium Foundation and Agincourt Community Services Association.

Shirley Jean Collins

Tenure: 19-Nov--2009 - 18-Nov-2011

Shirley Collins was a Member of the Immigration Appeal Division of the Immigration and Refugee Board of Canada from 2003 to 2006, and worked as a Senior Professional Development Advisor in the Learning and Professional Development Department of that tribunal. Prior to 2003 she owned and operated her own business for more than ten years. She was also an elected official at the municipal and provincial governments and a community leader and volunteer in Hamilton for many years.

Brian A. Cormier

Tenure: 19-APR-2006 - 18-MAY-2012

Brian Cormier has a diverse management background attained through a 30-year career at Bell Canada. His last position at Bell was Human Resources Generalist for Ontario Provincial District. His responsibilities included employee development, employee performance review boards, industrial relations support, disability management, and health and safety. Mr. Cormier has studied at Laurentian University, Queen's University Leadership Development and the Bell Institute for Professional Development. Mr. Cormier has been an active community volunteer for over 25 years.

Nancy Fahlgren

Tenure: 17-JUN-1998 - 15-JUN-2012

Nancy Fahlgren came to the ORHT/ LTB with over 10 years experience in administering rental housing legislation. Professional highlights include: serving as Acting Chief Rent Officer under Rent Control Programs, adjudicating issues governed by previous housing legislation, and mediating landlord and tenant rental matters. Ms. Fahlgren studied science and languages at Nipissing University and the University of Toronto.

Bittu Kurian George

Tenure: 02-MAY-2007 - 01-MAY-2011

Bittu George graduated from Queen's University with a Bachelor of Arts (Honours) degree in Political Studies, and a Bachelor of Laws degree. He was called to the Ontario Bar in 2002, and has been in private practice, with a focus on immigration law. Mr. George has also worked at the Ontario Ministry of Transportation and a Kingston law firm in the areas of planning, municipal and real estate law. An active member of the Kingston community for many years, Mr. George has served as a City Councillor and Deputy Mayor.

Suparna Ghosh (Part-Time Member)

Tenure: 20-JUN-2007 - 19-JUN-2009

Prior to joining the LTB, Ms. Ghosh spent ten years at the Immigration and Refugee Board, two years at the Social Assistance Review Board and six years with the former Rent Review Hearings Board of the Ministry of Housing, as well as Rent Control Programs. Ms. Ghosh holds a Master in Mathematics and a Bachelor of Arts (Honours) degree in Mathematics, English and Economics from Delhi University in India.

Petar Guzina

Tenure: 16-NOV-2009 – 15-NOV-2011

Petar Guzina graduated from Osgoode Hall Law School with a Bachelor of Laws degree and from York University with a Bachelor of Arts (Honours) degree in Political Science. Before his appointment to the LTB, he practiced law in a general private practice which included representing landlords before the Ontario Rental Housing Tribunal. He had also practiced at a legal clinic which included representing tenants as clinic lawyer and as duty counsel. Mr. Guzina also serves as a volunteer board member of a local Children's Aid Society.

Dan Helsberg

Tenure: November 30, 2005 - May 20, 2009

Henry Daniel Helsberg was a self-employed financial consultant. Prior to this, Mr. Helsberg was a real estate salesperson for seven years, selling residential and commercial properties in the Sudbury area. Mr. Helsberg received a Master of Arts (Economics) from the University of Guelph and completed Ph.D. course work in Urban and Regional Planning at the University of Waterloo. Sadly, Mr. Helsberg passed away during his tenure with the LTB.

Brenna Homeniuk

Tenure: 13-DEC-2006 - 12-DEC-2011

Brenna Homeniuk graduated from the University of Waterloo with a Bachelor of Science degree, Bachelor of Arts degree and a Master of Arts (Psychology) and from the University of Western Ontario with a Bachelor of Laws degree. She was called to the Ontario Bar in 2002. Before her appointment to the ORHT/ LTB, Ms. Homeniuk practised in the areas of criminal law, family law, social assistance and landlord-tenant law in south-western Ontario.

Elke Homs

Tenure: 01-MAR-2006 - 28-FEB-2014

Elke Homs is an experienced adjudicator, who served as a Member of the Immigration and Refugee Board for over 11 years before being appointed to the ORHT/ LTB. Ms. Homs was educated in Germany and immigrated to Canada in the late 60's.

Anita Louse Horton

Tenure: 08-JUN-009 - 07-JUN-2011

Louise Horton holds a Bachelor of Laws degree and a Bachelor of Arts degree in Sociology from the University of Toronto. Following her call to the Bar in 2000, she worked as a labour and employment lawyer and then as legal counsel in the Professional Regulation division of the Law Society of Upper Canada.

Judy Ireland (Part-Time Member)

Tenure: 07-MAR-2007 - 06-MAR-2012

Judy Ireland received a Bachelor of Arts (Honours) degree in History and a Master of Arts in Education from the University of Toronto. Ms. Ireland was a Vice-Chair of the Social Assistance Review Board from 1992 to 1998 and a Member of the Immigration and Refugee Board of Canada from 1998 to 2006. She has been a volunteer for many years in community organizations.

Kenneth Jepson

Tenure: April 4, 2007 - April 3, 2009

Kenneth Jepson received a Bachelor of Arts (Honours) degree and Bachelor of Education degree from the University of Western Ontario. After teaching at the elementary and secondary school levels, Mr. Jepson obtained a Bachelor of Laws degree from the University of Toronto, Faculty of Law. He practised civil litigation and then served as Associate Counsel to the Chair for the Workplace Safety and Insurance Appeals Tribunal. Mr. Jepson has also been a Member of the Licence Appeal Tribunal. Mr. Jepson also developed continuing legal education programs for Osgoode Hall Law School.

Greg Joy

Tenure: 08-JUN-2005 - 07-JUN-2013

Greg Joy was the Olympic Silver medalist in high jump at the 1976 Montreal Olympic Games. He was Canada's athlete of the year and received the Governor General's Award. In 1978 he broke the world record with a leap of 2.31 metres. He is also a recipient of the Queen's Golden Jubilee Medal for his work in his community. He worked as a sport and fitness consultant for the government of Ontario and as a teacher, and has coached several national and international champion athletes. He was also the Executive Director of the Ottawa Food Bank and was the principle partner of a successful corporate training company. He supported several charities and has been a member of numerous boards. He graduated from the University of Toronto and has a post graduate certificate in financial analysis from the University of Western Ontario.

Caroline A. A. King

Tenure: 07-OCT-2004 - 06-OCT-2012

Caroline King graduated from Glendon College, York University (bilingual stream) with an Honours degree in Canadian Studies and Political Science, then attained a Bachelor of Laws degree from the University of Western Ontario. Before her appointment to the ORHT/ LTB, she practiced law for a number of years, and was active in her local community.

Claudette Leslie

Tenure: 26-APR-2006 - 25-APR-2014

Claudette Leslie graduated from the University of Toronto with a Bachelor of Arts degree in English and from Centennial College with a Diploma in Journalism. Ms. Leslie is an experienced Communications and Public Relations professional who has worked in various roles including corporate and marketing communications and as a freelance writer. She has been involved in community volunteer work for more than two decades.

Vernon Wayne MacKinnon

Tenure: 08-DEC-2004 - 07-JAN-2014

Wayne MacKinnon attended the University of King's College and Dalhousie University in Halifax, Nova Scotia, where he studied in the Faculty of Arts and Science (Social Sciences), and then went on to do graduate work in Boston, Massachusetts. Before his appointment to the ORHT/ LTB he worked for many years with the Municipality of Ottawa-Carleton and, after that, with the Government of Canada. Mr. MacKinnon was a Member of the Mayor's Advisory Committee on Visible Minorities in Ottawa and a voluntary Member of Bell Canada's Consumer Advisory Panel. He was also Chair of the Police/ Community Relations Committee in Ottawa.

Ina Maher (Part-Time Member)

Tenure: 11-APR-2006 - 10-OCT-2009

Ina Maher graduated from the University of Hong Kong with a Bachelor of Arts (Honours) degree, a Diploma in Education and a Master of Arts. Ms. Maher taught for 12 years before joining the Hong Kong Civil Service where she served in various departments until she took early retirement to immigrate to Canada in 1990. Here, she enrolled in Osgoode Hall Law School, obtaining a Bachelor of Laws degree in 1994. Ms. Maher worked for several years in the Ministry of Transportation before retiring again and becoming more involved in volunteer work.

Ieva Martin

Tenure: 23-JUN-2004 - 22-JUN-2012

Ieva Martin served as Chair of the Board of Referees, the appeal tribunal for the Employment (formerly Unemployment) Insurance Commission, from 1995 to 2004. Prior to that, she was a small business owner and a Member of the Board of the Clarkson Business Improvement Association. Ms. Martin was the President of the Latvian Canadian Cultural Centre. She obtained a Bachelor of Arts (Honours) degree in French and Canadian Studies from the University of Toronto.

Debra Mattina

Tenure: 11-MAY-2005 - 10-NOV-2009

Debra Mattina is a graduate of Mohawk College in Hamilton (Business Accounting and Medical Radiological Technology) and worked as a medical radiation technologist for 20 years. In 2003, Ms. Mattina was awarded the Queen's Golden Jubilee Medal recognizing her volunteer efforts in her community over her lifetime.

Brian McKee

Tenure: April 2, 2003 - April 1, 2009

Brian McKee graduated from Algonquin College, School of Business. He has held senior management positions in the private sector over the past 25 years. He also worked as a management consultant to several large corporations and privately owned businesses from 1989 to 2002.

James Grant (Jim) McMaster

Tenure: 26-OCT-2005 - 15-NOV-2011

Jim McMaster has been an active member of his community for over 20 years. He was a Member of the Ajax council for 12 years, where he also served as the Deputy Mayor. He was the Region of Durham Finance Chairman and Budget Chief and the Vice Chair of the Toronto and Region Conservation Authority.

Alan B. Mervin (Part-Time Member)

Tenure: 24-OCT-2001 - 17-JUL-2013

Alan Mervin attended York University, obtaining a Bachelor of Arts degree in Sociology, and received a Bachelor of Laws degree from the University of Windsor. Mr. Mervin joined the Ontario Legal Aid Plan, now Legal Aid Ontario, where he served as a staff lawyer in a number of capacities. Mr. Mervin left Legal Aid in 1980, to enter the private practice of law with a focus on Criminal Trial Practice.

Christina Budweth Mingay (Part-Time Member)

Tenure: 02-OCT-2002 - 01-OCT-2010

Christina Budweth Mingay graduated from McMaster University with a Bachelor of Arts degree and Bachelor of Laws degree from Queen's University. She was in private practice until 1991 with a focus on civil litigation. From 1991 to 2001, she worked with the Law Society of Upper Canada.

Gerald Naud

Tenure: 07-OCT-2004 - 06-OCT-2012

Gerald Naud graduated from the University of Ottawa with a Bachelor of Civil Laws degree. Following graduation, he maintained a private practice prior to taking a position with the Government of Canada in the compliance department of Transport Canada. Mr. Naud was also involved in a successful private business for many years. He held the position of Director of Business Development for CCH Canadian Limited, one of Canada's leading publishers.

Lynn Neil (Part-Time Member)

Tenure: 21-APR-2004 - 20-APR-2012

Lynn Neil is a graduate of Andrews University and the University of Ottawa with degrees in Psychology and Criminology. She also has diplomas in Advanced Human Resource Management from the University of Toronto, and Alternative Dispute Resolution from the University of Windsor, Faculty of Law. Ms. Neil worked for 28 years for the Ontario government, during which time she directed a number of large enforcement programs in various ministries. Since her retirement she has been engaged, part-time, in consulting work, specializing in human resource management.

John Patrick Nolan (Full Time Member effective 27-MAY-2009)

Tenure: 29-NOV-2006 – 26-MAY-2011

John Nolan attended McGill University, obtaining a Bachelor of Arts degree in Economics and Political Science, and received a Bachelor of Civil Laws degree and a teaching diploma from the University of Ottawa. Mr. Nolan has devoted over 25 years to working with troubled youth.

Lloyd Phillipps

Tenure: 15-JAN-2007 - 14-JAN-2012

Lloyd Phillipps graduated from Carleton University with a Bachelor of Arts degree in Law and from Loyalist College with a Diploma in Paralegal Studies. He taught business courses at the Community College level. He was employed with the Ontario Ministry of Health, Emergency Health Services Branch, with the Ministry of the Attorney General, where he was a Provincial Prosecutor, and with the Ministry of the Environment. While with the Ministry of the Environment, he was the recipient of awards for Innovation and Environmental Protection.

Jean-Paul Pilon

Tenure: 24-AUG-2006 - 20-FEB-2012

Jean-Paul Pilon is a lawyer and has practised law in Kitchener, Ontario since 1997. He holds a Bachelor of Arts (Honours) degree in Political Science and Urban Studies from Concordia University in Montreal and a Bachelor of Laws degree from the University of Windsor. He acted as duty counsel at ORHT hearings in Kitchener. He previously taught law as an Adjunct Professor at the University of Waterloo School of Optometry. Mr. Pilon is a member of the Canadian Bar Association and the Waterloo Law Association.

Jana Rozehnal

Tenure: 26-APR-2006 - 25-APR-2014

Jana Rozehnal is a graduate of the Faculty of Law of Jan Evangelista Purkyne (now known as Masaryk University) in Brno, Czech Republic, where she earned a Doctor of Law. Subsequently she graduated from the University of Toronto with a Bachelor of Laws degree. Prior to her appointment to the ORHT/ LTB, Ms. Rozehnal was in private practice with focus on family law.

Egya Ndayinanse Sangmuah

Tenure: 15-JAN-2007 - 14-JAN-2012

Egya Sangmuah graduated from the University of Toronto with a Doctorate in History, from the McGill Law School with a Bachelor of Laws degree, from Osgoode Hall Law School with a Master of Laws and from the University of Ghana with a Bachelor of Arts (Honours) degree. He was a Member of the Immigration Appeal Division of the Immigration and Refugee Board (IRB) from 1999 to 2006 and the Convention Refugee Determination Division of the IRB from 1996 to 1998. Prior to that, Mr. Sangmuah was Counsel to the Ontario Ministry of Citizenship, Culture and Recreation, as well as a part-time Member of the Liquor Licence Board of Ontario. He was also a Law Clerk to the justices of the Ontario Court of Appeal.

Freda Shamatutu

Tenure: 21-APR-2004 - 20-APR-2012

Freda Shamatutu holds a Bachelor of Laws degree from the University of Zambia. She practiced law in Zambia for 20 years before immigrating to Canada. Ms. Shamatutu has spent most of her professional career working for various organizations at the senior management level, including as Chief Legal Advisor and Legal Counsel for the Zambian national airline, Board Secretary and Director Support Services for Zambia Revenue Authority and Executive Director for the Advanced Legal Training Institute in Zambia. Before her appointment as a Member to the ORHT/ LTB, Ms. Shamatutu was employed as office manager for a law firm in Toronto.

Michael Soo (*Part-Time Member*)

Tenure: 15-JAN-2007 - 14-JAN-2012

Michael Soo graduated from the University of Victoria with a Bachelor of Arts degree in History and from the University of Western Ontario with a Bachelor of Laws degree. Mr. Soo has practiced law in Kitchener since 2002, with a focus on criminal, family and civil litigation. He is also a part-time instructor in law-related continuing education courses at Fanshawe College in London, as well as at Conestoga College in Kitchener.

Nina Stanwick (*Part-Time Member effective January 15, 2009*)

Tenure: 15-JAN-2007 - 14-JAN-2011

Nina Stanwick has a Bachelor of Laws degree from the University of Windsor, as well as a Bachelor of Arts (Honours) degree in Mathematics from the University of Guelph and a Bachelor of Education degree from the University of Toronto. She was called to the Ontario Bar in 1982. She was a Commissioner with the Residential Tenancies Commission, a Member of the Rent Review Hearings Board and a Rent Officer under the Rent Control Program. She was also a Member of the Immigration and Refugee Board prior to joining the ORHT/ LTB.

Lisa M. Stevens

Tenure: 16-NOV-2009 – 15-NOV-2011

Lisa Stevens graduated from the University of Toronto with a Bachelor of Arts degree and then attained her Bachelor of Laws degree from Queens University. Before her appointment to the LTB she practiced law for over thirty years and was active in her community. She was an Executive Member of her local Law Association as well as President. She was a Chair person of the Review Tribunal for the Canada Pension Plan and Old Age Security and served as a Deputy Judge of the Small Claims Court. .

Gerald Douglas Taylor

Tenure: 26-SEP-2001 - 25-SEP-2012

Gerald Taylor has many years of administrative experience, having worked in the banking, automotive and information technology industries. During his career Mr. Taylor held positions of significant responsibility and decision-making. He also dedicated considerable time to community activities such as Junior Achievement, United Way, Local and Ontario Chambers of Commerce and Durham Enterprise Centre for small business.

Jeanie Theoharis

Tenure: 13-DEC-2006 - 12-DEC-2011

Jeanie Theoharis graduated from the University of Toronto having attained a Bachelor of Arts degree in Commerce, Economics and Actuarial Science. She studied law at State University of New York and University of Toronto where she received a Juris Doctorate in Law and a Bachelor of Laws degree. She is called to the Bars of New York and Ontario. Before her appointment to the ORHT/ LTB, she practised commercial litigation, construction lien law and commercial real estate at a firm in downtown Toronto.

Christopher Trueman

Tenure: January 20, 2003 - April 22, 2009

Christopher Trueman was actively involved in both the public and private sectors. In 1994, he was elected as a school board trustee with the Haliburton County Board of Education. Mr. Trueman spent many years in the private sector as the owner of an equipment leasing company. In 2001, after completing studies through the University of Waterloo and Osgoode Hall Law School, he established a private practice in the field of Alternative Dispute Resolution. He was a Member of the ADR Institute of Ontario and the Association for Conflict Resolution in Washington D.C. Sadly, Mr. Trueman passed away during his tenure.

Marian Elizabeth Usprich

Tenure: 01-MAR-2006 - 28-FEB-2014

Elizabeth Usprich attended the University of Western Ontario where she earned a Bachelor of Arts degree in Psychology and a Bachelor of Laws degree. In addition to practising as a lawyer, Ms. Usprich has also taught law at the college level. She was actively involved in the London community and has sat on several boards of directors.

Rosa Votta

Tenure: 21-AUG-2003 - 20-AUG-2009

Rosa Votta has worked in various departments of the provincial government, including Health, Citizenship, Culture (Tourism) and Recreation and several branches of the Ministry of Labour, namely the Health and Safety Branch and most recently the Employment Standards Branch, as an Employment Standards Officer, administering and enforcing the Employment Standards Act.

Brad J. Wallace

Tenure: 15-DEC-2005 - 14-DEC-2013

Brad J. Wallace is a graduate of the University of Western Ontario, with a Bachelor of Arts (Honours) degree in Politics, and the University of Windsor with a Bachelor of Laws degree. Before his appointment to the ORHT/ LTB, Mr. Wallace practised primarily in the areas of insurance defence, plaintiff personal injury, social assistance and landlord-tenant law. Mr. Wallace is a former Member of the Board of Directors of the London and Area Food Bank, and a past Member of the Board for the London Training Centre.

Karen Wallace

Tenure: 13-DEC-2006 - 12-DEC-2011

Karen Wallace graduated from Osgoode Hall Law School with a Bachelor of Laws degree. She articulated with the Ministry of the Attorney General. After her call to the Ontario Bar in 1994, Ms. Wallace established her own family law practice in Toronto. From 1998 to 2006 Ms. Wallace was employed by Legal Aid Ontario.

Sylvia Nancy Watson

Tenure: 08-JUN-2009 – 07-JUN-2011

Sylvia Watson was called to the Ontario Bar in 1981, after having graduated from York University with a Bachelor of Arts degree and from Osgoode Hall Law School with a Bachelor of Laws degree. She had practiced law in the private sector, specialising in litigation until 1986 when she became Corporate Counsel at Wellesley Hospital. In 1991 she joined the legal department of the City of Toronto, serving as Director of Litigation until 1996, City Solicitor until 1998, and Corporation Counsel until 2002. Ms. Watson was elected as City Councillor for Parkdale-High Park in Toronto in 2003. She has served on the Boards of a number of arts, business, long term care, and community service not-for-profit organisations for many years.

Mike Welsh

Tenure: 08-JUN-2005 - 14-NOV-2009

Mike Welsh is a graduate of the University of Waterloo with a Bachelor degree in Environmental Studies. He was Operations Manager, FedEx Logistics, at the John Deere Welland Works from 1995 to 2004. Mr. Welsh also worked as a transportation consultant and planner. He has also served as: Vice Chairman, Niagara-on-the-Lake Committee of Adjustment; Member, Niagara-on-the-Lake Irrigation Committee; Member, Niagara-on-the-Lake Fence Arbitration Committee; and, Member, Niagara-on-the-Lake Traffic and Parking Committee.

Karol Wronecki (*Part-Time Member*)

Tenure: 15-JAN-2007 – 14-JAN-2012

Karol Wronecki has degrees in Law and Public Administration from universities in Poland and Canada. After teaching constitutional law at the University of Wroclaw and at York University in Ontario, he joined the Ontario government in 1982. For 24 years, he worked in the administrative justice system as an adjudicator and a civil servant. He adjudicated in and managed programs dealing with rent control and landlord-tenant legislation. Until December 2006 when he retired, he was the manager of Central Region of the ORHT.

Landlord and Tenant Board

For more information, visit www.ltb.gov.on.ca

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The Tribunal held that the incident of alleged discrimination was the issuance of the Trespass Notice in July 2004, rejecting the argument that the continuing effects of an act of alleged discrimination constitute further acts of discrimination. The Tribunal concluded that the applicant had failed to establish "good faith" within the meaning of the legislation. Therefore, the application was dismissed.

tribunalsontario.ca/hrto

LANDLORD AND TENANT BOARD

Associate Chair's Message

Lilian Ma, Associate Chair **Alternate Executive Chair**
Landlord and Tenant Board *Social Justice Tribunals Ontario*

I am pleased to report that over the past year, the Landlord and Tenant Board has continued to function well in fulfilling its dual mandate: providing information to landlords and tenants about their rights and obligations and providing dispute resolution through adjudication and mediation. I am grateful to the Board Members and staff who work together so effectively as a team in delivering these important services to tenants and landlords.

My appreciation and thanks also go to Laura Bryce, Chief Operating Officer, and the senior management team of the Board, including Vice Chairs, Regional Managers and Managers of Customer Service, as well as the Legal Services Branch and Program Development Unit, who all play important roles in the management, policy, training and committee work they do for the Board.

I sincerely thank stakeholders from the landlord and tenant communities for their valuable feedback and input by way of regular meetings, correspondence and consultation. Our on-going dialogue ensures that both landlord and tenant groups have a voice in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

I also acknowledge the valuable support of my Executive Assistant, Suzanne Evans, and my Administrative Assistant, Sue Woodland, for the excellent coordination of the many tasks of the Associate Chair's office.

The highlight of the past year for the Board occurred on January 25, 2011, when the LTB became part of Social Justice Tribunals Ontario. We are looking forward to opportunities to work with our other tribunal partners in a cluster setting, sharing our knowledge, expertise and resources, and working together to be even more effective for our clients.

As a result of the cluster initiative, in March 2011, we transitioned from the Ministry of Municipal Affairs and Housing (MMAH), the LTB's host ministry for many years, to the Ministry of the Attorney General. I would like to express my sincere appreciation to MMAH for its valuable corporate support to the Board throughout the years.

The key initiatives of the Board over the past year include a regional realignment of its offices, stabilizing and enhancing the Board's case management system (Cmore), and achieving Level 1 certification from the National Quality Institute. For information about these initiatives, please refer to the "Year in Review" section of this report.

Role of the Board

Section 1 of the *Residential Tenancies Act, 2006* (the RTA) sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

The RTA, which establishes the Landlord and Tenant Board (LTB), confers a dual mandate on the Board.

Dispute Resolution

First, the LTB has a mandate to resolve disputes between landlords and tenants. The RTA confers the LTB with the power to exercise a quasi-judicial function under subsection 168(2) of the RTA, which provides that the Board has jurisdiction to determine all applications under the RTA, and section 174, which provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the RTA.

The RTA also anticipates the role of mediators to augment the quasi-judicial function of adjudication.

From April 1, 2010, to March 31, 2011, the Board received 77,393 applications filed under the RTA.

When landlords and tenants are unable to resolve disputes on their own, they may choose to come to the LTB to have it resolved. Parties to an application are entitled to a hearing before a Board Member.

At the hearing, the parties present their evidence and arguments and the Member decides the outcome by applying the law to the evidence that is relevant to the issues in the dispute.

The decision is in the form of a written order that can be enforced through the court system. Thus, an order of the Board for eviction is enforced through the Sheriff's office; an order for the payment of money is enforced through the Small Claims Court.

Provision of Information

Second, pursuant to section 177 of the RTA, the LTB is required to give information to landlords and tenants about their rights and obligations. In fulfilling this mandate, the Board's Call Centre handles customer inquiries, in both English and French, through toll free lines.

In the Greater Toronto Area, the phone number is (416) 645-8080; outside Toronto the number is 1-888-332-3234. Customer Service Officers are available during regular business hours. An automated telephone service answers frequently-asked questions 24 hours a day, seven days a week. This year, the Board responded to approximately 500,000 telephone calls.

The Board has eight offices that offer full service to clients. At those offices, landlords and tenants can file applications and obtain information, as well as attend hearings and participate in mediation.

The Board also has 33 off-site hearing locations to which Board Members and mediators travel for hearings on a regular basis. There are also a number of locations in the northern parts of the province where the Board regularly holds hearings electronically.

Mission Statement

The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

The Year in Review

In 2010-2011, the Landlord and Tenant Board continued to deliver its services to Ontario landlords and tenants by providing information on their respective rights and obligations and resolving disputes filed as applications to the Board. The Board strives to improve service delivery to its clients. Over the past year, this has been demonstrated through a regional realignment, NQI certification, eGovernment initiatives and amendments to the Board's Rules and Guidelines. This section also looks at application processing trends over the past year.

Regional realignment

Effective July 1, 2010, the Board implemented a regional realignment as part of modernizing the LTB's regional office structure and focused on streamlining business processes to improve service levels. The new office structure enables the Board to make the best use of existing resources to achieve stability in the organization and remain responsive to stakeholder needs. These changes include merging the Toronto East, Toronto North and Toronto South regions into one Greater Toronto Region, reporting to a single Toronto Regional Manager. The three existing Toronto regional offices have been renamed as District Offices. The Board also created a centralized unit with the expertise needed to improve consistency and quality in the processing of applications for above-guideline rent increases (AGIs) and automatic rent reductions (A4s).

NQI Certification

On April 27, 2010, Dr. Lilian Ma, Associate Chair, and Laura Bryce, Chief Operating Officer, accepted the Level 1 certificate from the National Quality Institute (NQI) on behalf of the Landlord and Tenant Board. NQI is Canada's authority on organizational excellence. Founded in 1992 by Industry Canada, it is an independent, not-for-profit organization committed to advancing organizational excellence across Canada (www.nqi.ca).

eGovernment

The Board's bilingual website, tribunalsontario.ca/lrb, received approximately 1.5 million hits each month over the past fiscal year. All Board forms, Rules of Practice, Interpretation Guidelines, complaint procedures, Policy on Accessibility and Human Rights, and Selected Decisions are available on the website.

The Board has been developing five public education videos to improve accessibility to information about the Board's processes. These videos will be posted on the Board's website in English and French. Captioned versions will also be played in the waiting areas of the Board's offices.

In April 2009, the Board began phasing in its new case management system. At the beginning of the fiscal year covered by this report, the Board transitioned to the new system, and work began on improving its functionality and exploring opportunities for developing additional eServices for application filing. This work will continue throughout the next fiscal year.

Rules and Guidelines

Section 176 of the RTA provides that the LTB can make rules of procedure and nonbinding Interpretation Guidelines. While a Member may waive certain Rules in appropriate circumstances, some Rules have a non-waiver provision. Interpretation Guidelines, on the other hand, while not binding on Members in their decisionmaking, are generally to be followed unless there is valid reason not to do so.

On January 4, 2011, the Rules and Guidelines committee released revised versions of a number of rules and guidelines. These newly revised rules and guidelines can be identified by the release date on the Board's website. At the same time, two new Interpretation Guidelines were released: #18, "Restricting Public Access to InPerson and Electronic Hearings," and #19, "The Landlord's Right of Entry Into a Rental Unit."

Application Processing - Statistical Information

The following section provides statistical details about applications filed with the Board from April 1, 2010, to March 31, 2011, showing the distribution of applications by application type and by region, the number of applications filed and resolved, as well as the number of reviews and appeals.

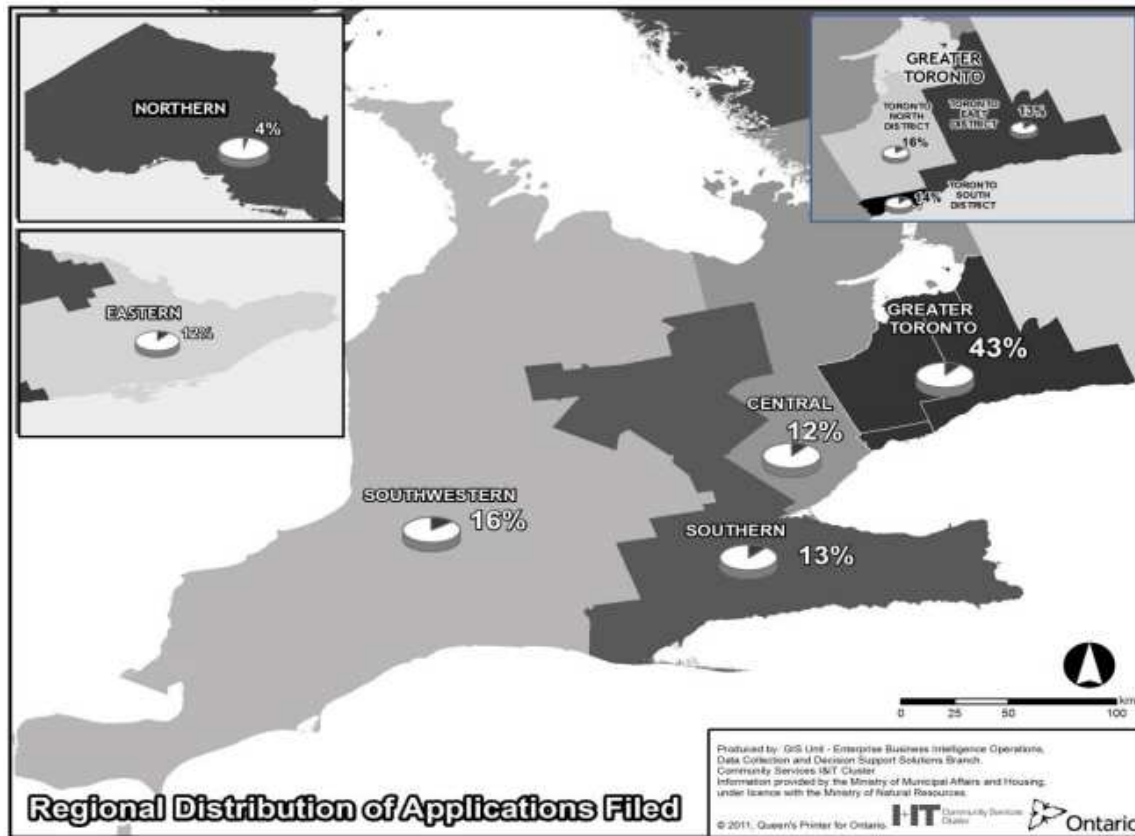
Landlord vs. Tenant Receipts

As mentioned earlier, the Board received 77,393 applications this fiscal year, which represents a decrease of 678 applications (0.9%) from the 2009-2010 workload. The distribution of application receipts has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the Board's predecessor, the Ontario Rental Housing Tribunal. This past year was no exception.

Landlords filed 91% of the applications, and tenants filed 9%.

Regional Distribution of Applications

The regional distribution of applications filed with the Board is as follows:



Applications by Type

Terminations of tenancy and eviction applications continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 71.8% were for termination of tenancy because of arrears of rent. The following charts show the distribution of the Board's workload, by type of application, for the 2010-11 fiscal year.

Landlord Applications by Type

Case Type	Application description	# of Cases
A1 (0.1%)	Determine Whether the Act Applies	48
A2 (0.3%)	Sublet or Assignment	199
A3 (4.3%)	Combined Application	3,066
A4 (0.3%)	Vary Rent Reduction Amount	182
L1 (75.3%)	Terminate & Evict for Non-Payment of Rent	53,182
L2 (8.7%)	Terminate for Other Reasons & Evict	6,158
L3 (1.5%)	Termination Tenant Gave Notice or Agreed	1,075

L4 (6.8%)	Terminate the Tenancy: Failed Settlement	4,805
L5 (0.6%)	Rent Increase Above the Guideline	391
L6 (0.01%)	Review of Provincial Work Order	7
L7 (0.001%)	Transfer Tenant to Care Home	1
L8 (0.04%)	Tenant Changed Locks	26
L9 (2.1%)	Application to Collect Rent	1,499
Total		70,639

Tenant Applications by Type

Case Type	Application description	# of Cases
A1 (0.44%)	Determine Whether the Act Applies	30
A2 (0.73%)	Sublet or Assignment	49
A3 (18.12%)	Combined Application	1,224
A4 (0.00%)	Vary Rent Reduction Amount	0
T1 (7.70%)	Rent Rebate (e.g. illegal rent)	520
T2 (53.10%)	Tenant Rights	3,587
T3 (0.64%)	Rent Reduction	43
T4 (0.01%)	Failed Rent Increase Above Guideline	1
T5 (1.89%)	Bad Faith Notice of Termination	128
T6 (17.34%)	Maintenance	1,171
T7 (0.01%)	Suite Meters	1
Total		6,754

Applications filed under the TPA

During the 2010-2011 fiscal year, in addition to its RTA workload, the Board continued to resolve applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), the legislation in effect prior to the implementation of the RTA, but which remained unresolved on January 31, 2007, when the RTA was proclaimed. As of March 31, 2011, only three TPA applications are still outstanding. One case is being reheard as a result of a previous appeal to the Divisional Court, one case has been adjourned sine die and the remaining case is still being heard.

Performance Targets

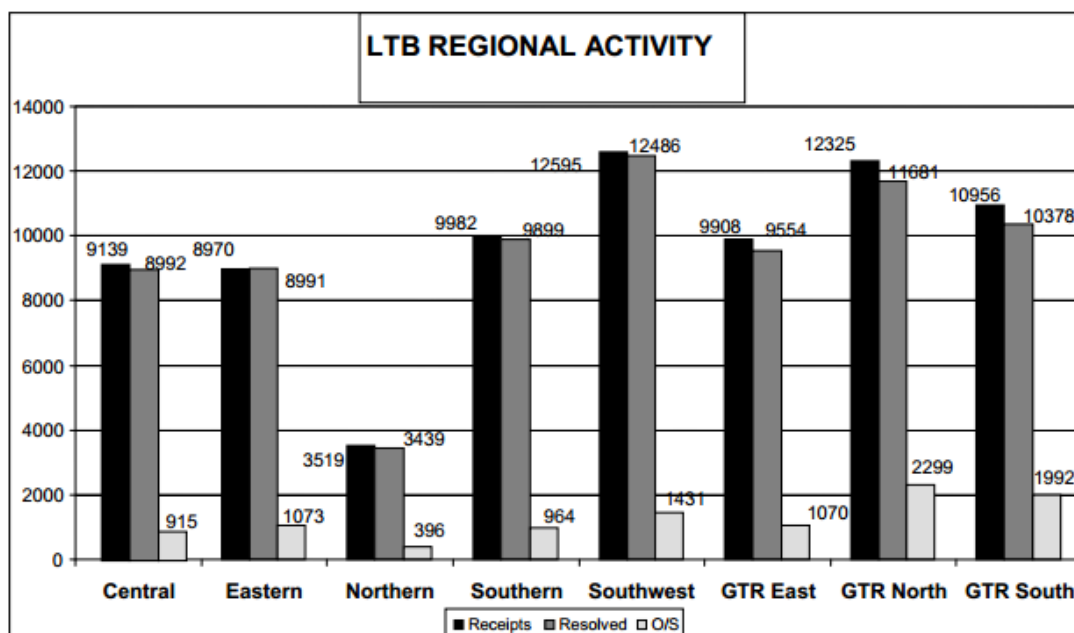
The Board has begun preliminary work to develop performance targets for various aspects of service delivery to

its clients. As a starting point the Board continues to track statistics on a number of its processes with consideration being given to the measures that can be put in place. This work will inform the development of both Board-specific and cluster wide service standards in the coming year.

Application Resolution

At the end of the last fiscal year, the Board had 8,166 pending applications. During the 2010-2011 fiscal year, the Board received a total of 77,393 applications and resolved 75,420 applications. As a result, on March 31, 2011, the number of unresolved RTA applications was 10,140. This number represents approximately seven weeks work at the Board, which is the workload appropriate to warrant smooth and continuous operation for the Board. The following chart shows how application receipts and resolutions have remained relatively constant during the year.

For the 2010-2011 fiscal year, the Board received 2,082 requests for review. Of the reviews resolved during this time period, approximately 65% were sent to a hearing. The Board also received 160 Notices of Appeal of Board orders.



Average Processing Times

The Board tracks the length of time from the date an application is filed to the initial hearing date that is scheduled, and the length of time from the final hearing date to the date the order is issued. While most cases are resolved during the initially scheduled hearing, some require more than one hearing appearance. A number of factors, some of which are beyond the Board's control (such as the availability of parties or their representatives, or the re-scheduling of matters that parties have consented to because they wish to continue their negotiations) can affect the length of time between the initial hearing date and the final hearing date.

The processing times generally correspond to the complexity of the application types. Over the past fiscal year, on average, hearings for L1 applications (evictions for non-payment of rent) were scheduled within approximately five weeks of the date they were filed, and the orders were issued within three days of the final hearings. L5 applications filed by landlords (for above-guideline rent increases) generally involve the lengthiest processes. As a result they were heard, on average, 26 weeks after the application was filed, and the orders were generally issued within three weeks after the hearing. T2 applications (about tenant rights), which tend to be more complex, were heard, on average, within six weeks of their filing date, and the orders were generally issued within six days of the final hearing.

Mediation

The Landlord and Tenant Board employs 21 mediators throughout the province to provide voluntary mediation services to parties involved in applications before the Board. In the 2010-2011 fiscal year, approximately 40% (11,548) of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

Decisions

The following summaries are a sample of the decisions made on different types of applications filed with the Landlord and Tenant Board in various regions during the 2010-2011 fiscal year. The Board posts a number of decisions on its website at tribunalsontario.ca/lrb. These and other decisions are also available on the website of the Canadian Legal Information Institute (CANLII) at www.canlii.org/en/on/onlrb/index/html.

TSL-28199

(April 13, 2010) - s. 61, illegal act - s. 66, impaired safety - s. 83, relief from eviction denied

The landlord applied to evict the tenant for committing an illegal act in the residential complex and seriously impairing the safety of others. The complex provides transitional housing for homeless people.

On several occasions the tenant was in a rage and threatened to kill the manager and blow up the complex. The police were called and the tenant was charged with uttering death threats and prohibited from being near the complex.

The Board found that the death threats are illegal acts and that the tenant's volatile and violent conduct impaired the safety of others. These acts have affected the character of the premises.

The Board also found that the tenant's death threats were not the result of a mental disorder, and therefore the landlord had no duty to accommodate him. The tenant was given six days to vacate.

TET-06241-10

(August 19, 2010) - s. 31, vital service - s. 12, address for service - s. 191(2), deemed service

The tenants applied for an order determining that the landlord withheld the supply of a vital service. As a preliminary matter, the Board determined that the landlord had not provided the tenants with an address for service, and tried to evade service of the application and notice of hearing after the tenants telephoned the landlord to ask where she could be served. The Board determined that the landlord was aware of the hearing and chose not to attend. The hearing proceeded in her absence.

The Board found that the gas to the rooming house was shut off because the landlord did not pay the bill. The tenants were without gas for 12 days. The Board determined that the landlord had withheld the supply of a vital service and ordered a 50% abatement of rent for the 12-day period of \$198 per tenant, and an additional \$100 for the inconvenience and mental suffering they endured.

EAL-05724-10

(April 28, 2010) - s. 64, interference with lawful right or interest

The landlord and tenants entered into a tenancy agreement that required the tenants to put the water bill for the rental unit in their name and pay for their water use. The tenants failed to do that. Because the water account remained in the landlord's name, the municipality sent the landlord numerous invoices and letters threatening to cut off the water supply unless he paid the water bills. The landlord eventually paid the outstanding amount of \$1342. The landlord applied to the Board to evict the tenants.

The Board determined that the tenants failed to comply with the term in the tenancy agreement requiring them to pay for their water use. This conduct substantially interfered with the landlord's lawful right or interest. The Board ordered the tenants' eviction.

SWT-08650-10-AM

- s. 135, money retained illegally - s. 19, *Frustrated Contracts Act* applies - s. 3 of FCA, sums paid before discharge are recoverable

The tenant applied for an order determining that the landlord collected or retained money illegally.

On September 13, 2009, the rental unit was destroyed by fire. In accordance with the *Frustrated Contracts Act* (FCA), the Board found that the parties were discharged from performance of the tenancy agreement after that date. Applying section 3 of the FCA, the Board determined that the landlord was permitted to retain a pro-rated portion of the rent for the period September 1 to 13; however, the landlord was not entitled to retain the balance of the September rent or the rent deposit.

The Board determined that the landlord had retained money illegally and ordered it to be paid to the tenant.

CEL-03708-10

(May 28, 2010) - s. 82, adjournment - s. 183, Board to adopt most expeditious method of proceeding - Guideline 1, adjournment considerations

At the hearing of the landlord's L1 application, the tenant raised issues under section 82 of the RTA. The tenant then requested an adjournment to prepare for the hearing of the section 82 issues.

The Board denied the adjournment request because the tenant should have been prepared to present his evidence. The Board found that to merely raise issues and then seek an adjournment to gather evidence in support of the issues is not the purpose of section 82. The Board noted that the Notice of Hearing states that parties should be ready to present their evidence and that if "you want to raise any issues that are not in the landlord's application, it is important to bring evidence to this hearing to support your claims."

The Board also considered Guideline 1 and section 183 of the RTA which provide that the Board shall adopt the most expeditious method of determining the questions arising in a proceeding that affords all persons affected an adequate opportunity to know the issues and be heard on the matter. The tenant had been given the opportunity to know the issues for both the landlord's application and under section 82, and should have been prepared to present evidence in support of the issues. After the adjournment was denied, the tenant elected to proceed with the issues raised under section 82.

SWT-09793-10

(September 7, 2010) - s. 52, notice of conversion to nonresidential use - s. 52, compensation - s. 3, waiver or agreement contrary to Act

The tenants applied for an order determining that the landlords collected or retained money illegally.

The landlords had given the tenants a notice of termination for conversion of the rental unit to non-residential use. The notice was void because the termination date in the notice was not the last day of the rental period as required by section 50(2) of the RTA. The tenants vacated based on the notice.

The landlords contended that they had an agreement with the tenants that would allow them to occupy the rental unit beyond the termination date in exchange for the tenants' waiving their right to compensation in an amount equal to three months rent, in accordance with section 52 of the RTA. The Board was not satisfied that there was an agreement because the terms were never settled and there was no specific offer and acceptance. Even if there was an agreement, it was contrary to section 3 of the RTA and the Divisional Court ruling in *1086891 Ontario Ltd. v. Barber*, preventing a landlord and tenant from bargaining away their statutory rights whatever the circumstances. In the result, the landlords were ordered to pay the tenants compensation.

SWL-15272-10

(November 10, 2010) - s. 78, landlord not entitled to apply for ex parte eviction order after mediated settlement satisfied

The settlement mediated by the Board provided that the tenant would pay the outstanding arrears and the regular monthly rent in instalments continuing up to February 2011. The tenant satisfied the mediated settlement by paying the full amount outstanding by September 2010. When the tenant failed to pay the rent for November 2010 the landlord applied ex parte for an order under section 78 of the RTA to evict her.

The Board determined that the tenant's early payment of the full amount satisfied the conditions imposed in the mediated settlement and ended the landlord's right to apply under section 78. The Board noted that this approach is consistent with section 74(2) of the RTA which requires that an application for eviction based on arrears be discontinued if, before an eviction order is issued, the tenant pays the full amount of rent that would have been due under the tenancy agreement. The Board stated that the landlord will have to give a new notice of termination and file a new application for any new arrears that arose after the mediated settlement was satisfied. The landlord's application was dismissed.

TNT-03488-10

(September 30, 2010) - *s. 107, collected money illegally - s. 135, refund*

The tenant applied for an order determining that the landlord retained money illegally.

The tenant had applied for a rental unit in the residential complex. The landlord gave him an application form that required the tenant to provide five items of information and a rent deposit. The tenant provided four items but was not able to provide an employment letter from his employer. Instead, he obtained a letter from the employer's trustee in bankruptcy, but it was not acceptable to the landlord. The tenant then advised the landlord that he would not continue with the application process, and requested a return of his rent deposit. The landlord offered to return the deposit if the tenant paid the landlord a \$250 fee for doing the paper work associated with the application process.

The Board considered the Divisional Court decisions in *Opara v. Cook*, *Drewlo Holdings v. Custidio and Benedetto v. Dineen*. In the Opara and Drewlo cases, the tenant had entered into a tenancy agreement and therefore was not entitled to a refund of the rent deposit. In *Benedetto*, it was determined that the tenants had not entered into a tenancy agreement and the landlord was ordered to refund the deposit. The Board determined that, as in *Benedetto*, the tenant had not entered into a tenancy agreement because the prerequisites in the application had not been met, and ordered the landlord to refund the deposit.

TEL-27008

(April 7, 2010) - *s. 126, above guideline increase - s. 2, municipal taxes and charges - s. 2, utilities - s. 202, real substance*

In 2009 the City of Toronto removed the cost of garbage collection from the landlord's tax bill and placed it on the landlord's "Utility Bill." The landlord applied for an above guideline increase in rent to recover the increased amounts it is now paying for garbage collection because of the change to a user-pay system. The tenants argued that the garbage collection fee is not a municipal tax and charge as defined in section 2 of the RTA and therefore should be disallowed as an extraordinary increase.

The Board determined that, despite the term "utility bill" used to describe the new charges, the charges fall within the definition of "municipal taxes and charges" in section 2 because they are "charges levied on a landlord by a municipality." They are not utilities which are defined as meaning "heat, electricity and water."

The Board determined that the garbage collection fee is properly recognized as a municipal charge and the landlord will receive the rent increase it applied for based on this expenditure.

SOT-08159-10

(December 21, 2010) - *s. 31, interference with enjoyment - tenants' association - administrative fine*

The tenant filed an application for an order determining that the landlord interfered with his enjoyment of the rental unit by interfering with his attempts to form a tenants' association. The tenant posted a recruitment note on

the bulletin board in the lobby for the purpose of forming a tenants' association. The following events then occurred: the tenant received a notice of entry; the tenants' association sent a letter to the landlord requesting repairs; the tenants' association filed a complaint with the city; the landlord gave the tenant a notice of termination because the tenant had a washing machine, dryer and freezer in his unit; the landlord removed from the lobby the bulletin board on which the tenants' association notice was posted.

The Board determined that the notice of termination was given as a reaction to the formation of the tenants' association, and that it substantially interfered with the tenant's enjoyment of the rental unit.

By analogy to section 83(3) of the RTA, which directs the Board to refuse an application for eviction if the reason for the application is that the tenant is attempting to form a tenants' association, the Board held that the RTA is meant to protect tenants who participate in such associations. The Board ordered an abatement equal to one month's rent and an administrative fine of \$500.

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ONTARIO SPECIAL EDUCATION (ENGLISH) TRIBUNAL ONTARIO SPECIAL EDUCATION (FRENCH) TRIBUNAL

Associate Chairs' Messages

Marilyn Thain, Associate Chair

Ontario Special Education (English) Tribunal

As Associate Chair, I am proud of the Special Education English Tribunal's accomplishments and confident that as a member of the Social Justice Tribunals Ontario, we will continue to build on its current foundation and work hard to continue to provide a high standard of adjudicative excellence.

The English Tribunal adjudicates disputes between a parent and a school board concerning the identification and/or special education placement of an exceptional student. The establishment of an expert administrative tribunal to adjudicate such disputes is given curial deference by the courts and is unique to Ontario.

In 2010-2011, the English Tribunal welcomed one new part-time member, reviewed and revised the Tribunal's policies and procedural documents, responded in a timely way to inquiries from parents, school boards, and stakeholder organizations, and continued to keep up-to-date with legislation, policy change and judicial decisions that affect special education in Ontario. We remain informed of issues related to special education to assist in fulfilling our mandate.

Two members successfully completed training in mediation. As a result, the English Tribunal now has eight members who are qualified to offer alternative dispute resolution services to parents and school boards. All parties are offered an opportunity to participate in mediation prior to proceeding to a hearing. The Tribunal's experience with mediation has been successful in resolving and simplifying some of the disputes.

The Tribunal has 11 part-time members; in spite of this small membership, two important documents were developed to enhance agency accountability: a member accountability framework which includes role descriptions for all members and positions, and a merit-based appointment process, which includes a telephone interview, a face-to-face interview and a written assessment component. The appointment process was implemented during 2010 and resulted in a recommendation to appoint one new member from the thirteen applications made to the Public Appointments Secretariat.

During the past few years, many of the appeals to the English Tribunal relate to the special education placement of students who have been identified with autism. Data about the number of appeals, the number of successful mediations and the number and outcome of hearings follows in this report.

• Paralegal • HRLSC • Other • Self-represented	4% 11% 4% 55%	6% 13% 4% 50%
Respondents with a Representative • Lawyer • Paralegal • Other • Self-represented	83% 1% 2% 14%	77% 1% 5% 17%

Hearings and Decisions:

Type of Decision	2011-2012	2010-2011	2009-2010
Final decision on the merits	95	104	75
Discrimination found	40	41	29
Discrimination not found	55	63	46
Dismissal on a preliminary basis*	786	562	301
Deferrals	229	233	147
Withdrawals**	3	38	212
Other procedural issues	355	570	931
Reconsideration	140	103	66
Breach of settlement decision	12	7	8
TOTAL DECISIONS	1,620	1,617	1,740

* This includes cases dismissed under the HRTO's new summary hearing procedure based on a finding that the application had "no reasonable prospect of success."

**The HRTO no longer prepares a decision for each withdrawal, and most withdrawals are now confirmed by letter.

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LANDLORD AND TENANT BOARD

Associate Chair's Message

Lilian Ma, Associate Chair **Alternate Executive Chair**
Landlord and Tenant Board *Social Justice Tribunals Ontario*

This has been a busy year at the Board as we focused our efforts on increasing the efficiency of the Board's

scheduling model for hearings. We have made changes to the way we schedule those application types that make up the bulk of the LTB's workload, the landlord's application to terminate the tenancy and evict the tenant because of rent arrears (L1) and to collect rent arrears (L9). The changes to the scheduling model have freed more time to hear contested/complex applications that generally take longer to adjudicate, and they have improved our time to hearing for all applications. For more information, please see the Operational Highlights section of this report.

I am grateful for the input from Members and staff as well as the Board's regular "users" at three focus groups held in London, Toronto and Ottawa. The ongoing dialogue between the Board and its Stakeholder Advisory Committee* also ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

The Board's Rules and Guidelines Committee continues to play a valuable role in amending existing rules of practice and interpretation guidelines, and developing new ones where the need is identified by Board Members, staff and stakeholders. The Board's Rules and Guidelines promote consistency in the application of the legislation and the Board's processes.

I also wish to thank the Board Members and staff who work together as a team in delivering services to tenants and landlords. In addition to their ongoing commitment to the effective and efficient operation of the Board, they also provided valuable input into the Board's new scheduling model. My appreciation and thanks go to the Board's Vice Chairs, the Director, Case Management/Registrar, Regional Managers and Managers of Customer Service, as well as the SJTO Legal Services and Program Development Unit. They all play an important role in the management, training and policy work they do for the Board.

I look forward to the coming year as the Board undertakes new initiatives to implement legislative changes with a view to facilitating access to justice for Ontario landlords and tenants.

* Representatives from the Advocacy Centre for Tenants Ontario (ACTO) and the Federation of Rental-Housing Providers of Ontario (FRPO) participate in the Stakeholder Advisory Committee.

Legislative Authority

The Landlord and Tenant Board (LTB) draws its legislative authority from the *Residential Tenancies Act, 2006* (the RTA or the Act), which in section 1 sets out the following purposes for the Board:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

Resolving disputes

- Adjudication

In the Act, section 168(2) provides that the Board has jurisdiction to determine all applications under the RTA, while section 174 provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act. Pursuant to section 183 of the Act, the Board strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

- Mediation

Section 194 of the Act allows the Board to mediate disputes, if both parties agree to try this approach. Board Mediators are available to meet with parties to try to help them reach a workable agreement that is acceptable to both sides.

Providing information

The LTB, under section 177 of the Act, is required to give information to landlords and tenants about their rights and obligations. It fulfills this mandate through various means:

- A virtual Call Centre handles customer inquiries, in both English and French, through toll free lines. Customer Service Officers are available during regular business hours. An automated telephone service answers frequently-asked questions 24 hours a day, seven days a week. This year, the Board responded to over 500,000 telephone calls.
- Eight offices that offer in-person service to clients. At those offices, landlords and tenants can obtain information from one of the Board's Customer Service Officers about their rights and obligations under the law, as well as file applications, attend hearings and participate in mediation.
- A bilingual website, tribunalsontario.ca/ltb, which received approximately 1.2 million hits each month over the past fiscal year. The website provides access to all Board forms, brochures, Rules of Practice, Interpretation Guidelines, the Board's complaint procedures and its Policy on Accessibility and Human Rights.

Amendments to the RTA

Effective January 1, 2012, the RTA was amended by Bill 140 as part of the Long Term Affordable Housing Strategy of the Ministry of Housing. Section 206.1 was added to the RTA, permitting the Board to designate staff to hold a hearing and make an order related to an uncontested application or an application specified in the Board's Rules of Practice. In the coming year the Board, in consultation with its stakeholders, will consider how implementing this change might enhance the effectiveness and efficiency of the Board's service to its clients. On January 1, 2013, we anticipate the implementation of other Bill 140 amendments, such as section 189, which will require the Board to serve the notice of hearing and application to the respondent unless the Board, in the circumstances set out in its Rules, orders the applicant to do so.

Operational Highlights

The Landlord and Tenant Board (LTB) is a high-volume tribunal with a mandate to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and be heard on the matter (see section 183 of the *Residential Tenancies Act*, 2006, (the RTA).

During the 2011-2012 fiscal year, the Board focused its efforts on improving the way it schedules landlord applications to terminate a tenancy and evict based on non-payment of rent and to collect rent arrears, as improvements in this area would have the greatest impact.

L1/L9 scheduling

In November 2011, the LTB implemented a new scheduling model to optimize the use of hearing time and resources with a view to improving service to the landlords and tenants of Ontario. The new model consists of scheduling L1 and L9 applications on specific days of the week in each regional office. This change has not been implemented in off-site hearing locations as the number of L1/L9 applications does not generally warrant such an approach. Hearing blocks still have a mix of application types to ensure equal access for landlord and tenant applications in off-site locations.

Grouping L1 and L9 applications together in one hearing block has resulted in more focussed and effective hearings and has led to reduced time to hearing for all application types, including tenant applications. The Board is also able to schedule adjourned matters more quickly. Feedback from the Board's stakeholders about these changes has been positive.

L1/L9 update form

As part of the scheduling changes the Board introduced during this fiscal year, landlords or their representatives are now asked to update the status of the L1 or L9 application in writing, as of the hearing date, and to submit this update to the presiding Member.

The Board has developed a form for landlords and their representatives to use to update the information. The *L1/L9 - Information Update as of Hearing Day* form is available at all Board offices and in the Other Forms section of the website.

Rules and Guidelines changes

Effective January 6, 2012, the Board revised a number of its Rules of Practice and Interpretation Guidelines. As well, one new Rule and two new Guidelines were released. These new documents are Rule 32, "Legal Representatives Acting as Advocates and Witnesses in the Same Proceeding"; Interpretation Guideline 20, "Parties, Agents and Representatives"; and Interpretation Guideline 21, "Landlords, Tenants, Occupants and Residential Tenancies." All of the Board's Rules and Guidelines are available on its website.

Public education videos

The Board has developed five public education videos to make information about the law and the Board's processes more accessible. These videos are posted on the Board's website (with voice over and captioning). Captioned versions are also played in the waiting areas of the Board's offices.

Statistics/Commentary

Applications Filed

From April 1, 2011, to March 31, 2012, the Board received 81,084 applications. This is an increase of 3,690 applications, or approximately five per cent, compared to the 2010-2011 caseload.

Landlord vs Tenant Applications

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to an adjudicative tribunal. This past year was no exception, with 91 per cent of applications filed by landlords and 9 per cent filed by tenants.

Applications by Type

Applications for termination of tenancy and eviction continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 72.2 per cent were for termination of tenancy because of arrears of rent. The following table shows the number of each application type filed by landlords for the 2011-2012 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by landlords.

Landlord Applications by Type

Case type	Application Description	2011-2012	2010-2011	2009-2010
A1	Determine Whether the Act Applies	50 (0.07%)	48 (0.07%)	49 (0.07%)
A2	Sublet or Assignment	234 (0.32%)	199 (0.28%)	153 (0.21%)
A3	Combined Application (usually includes an L1)	3,736 (5.05%)	3,066 (4.34%)	2,796 (3.92%)
A4	Vary Rent Reduction Amount	106 (0.14%)	182 (0.26%)	275 (0.39%)
L1	Terminate & Evict for Non-Payment of Rent	54,847 (74.16%)	53,182 (75.29%)	54,109 (75.80%)

L2	Terminate for Other Reasons & Evict	6,867 (9.28%)	6,158 (8.72%)	5,628 (7.88%)
L3	Termination - Tenant Gave Notice or Agreed	1,263 (1.71%)	1,075 (1.52%)	991 (1.39%)
L4	Terminate the Tenancy - Failed Settlement	4,905 (6.63%)	4,805 (6.80%)	5,301 (7.43%)
L5	Rent Increase Above the Guideline	252 (0.34%)	391 (0.55%)	294 (0.41%)
L6	Review of Provincial Work Order	13 (0.02%)	7 (0.01%)	12(0.02%)
L7	Transfer Tenant to Care Home	1 (0.00%)	1 (0.00%)	3 (0.00%)
L8	Tenant Changed Locks	21 (0.03%)	26 (0.04%)	22 (0.03%)
L9	Application to Collect Rent	1,664 (2.25%)	1,499 (2.12%)	1,754 (2.46%)
Total		73,959	70,639	71,387

The following table shows the number of each application type filed by tenants for the 2011-2012 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by tenants.

Tenant Applications By Type

Case type	Application Description	2011-2012	2010-2011	2009-2010
A1	Determine Whether the Act Applies	36 (0.51%)	30 (0.44%)	33 (0.49%)
A2	Sublet or Assignment	57 (0.80%)	49 (0.73%)	43 (0.64%)
A3	Combined Application	1,435 (20.14%)	1,224 (18.12%)	1,141 (17.07%)
A4	Vary Rent Reduction Amount	1 (0.01%)	0 (0.00%)	2 (0.03%)
T1	Rent Rebate (e.g. illegal rent)	578 (8.11%)	520 (7.70%)	574 (8.59%)
T2	Tenant Rights	3,548 (49.80%)	3,587 (53.10%)	3,517 (52.61%)
T3	Rent Reduction	65 (0.91%)	43 (0.64%)	43 (0.64%)
T4	Failed Rent Increase Above Guideline	1 (0.01%)	1 (0.01%)	2 (0.03%)
T5	Bad Faith Notice of Termination	139 (1.95%)	128 (1.89%)	115 (1.72%)

T6	Maintenance	1,264 (17.74%)	1,171 (17.34%)	1,215 (18.18%)
T7	Suite Meters	1 (0.01%)	2 (0.03%)	N/A
Total		7,125	6,755	6,685

Pending TPA Applications

At the beginning of the 2011-2012 fiscal year, only three applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), were still active. The TPA was the legislation in effect prior to the implementation of the RTA in 2007. The Board is responsible for resolving these applications in addition to its RTA workload. Between April 1, 2011, and March 31, 2012, the Board resolved two TPA applications, leaving one TPA application awaiting resolution.

Application Resolution

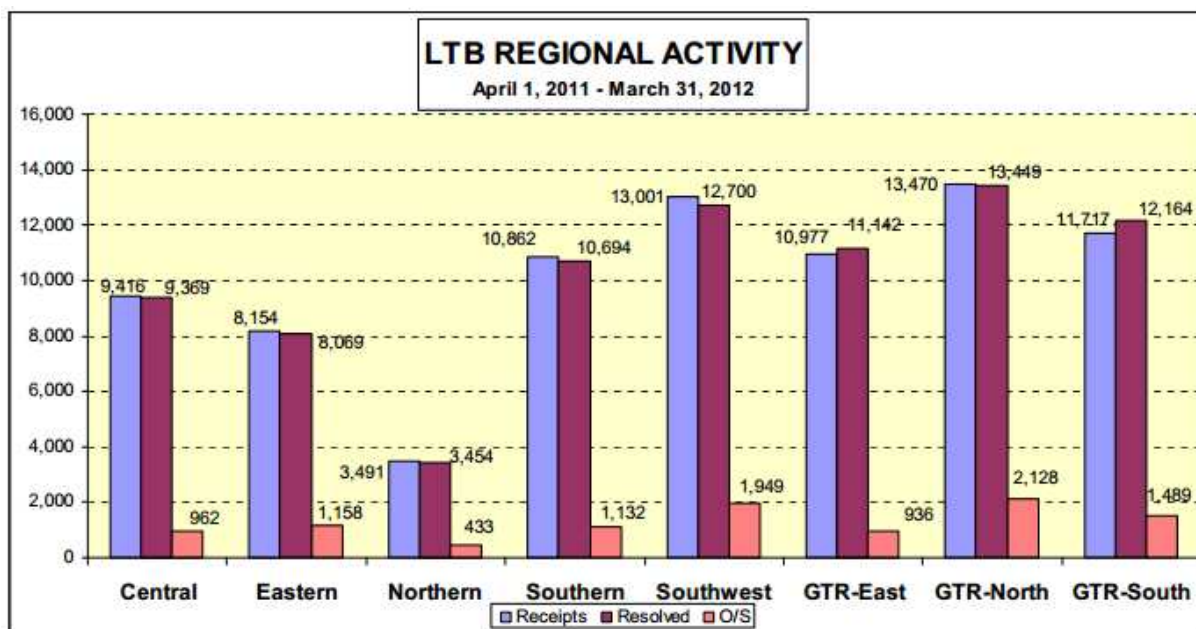
For the fiscal year 2011-2012, the Board received 81,084 applications and resolved 81,032 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2012, the number of unresolved RTA applications is 10,187. This number represents approximately seven weeks' work at the Board, which is the workload appropriate to warrant smooth and continuous operation for the Board.

The following table shows the total number of applications received, resolved and outstanding at the end of the fiscal year, for 2011-2012 and the two previous years.

Application Receipts and Resolutions

	2011-2012	2010-2011	2009-2010
Applications received	81,084	77,394	78,072
Applications resolved	81,032	75,420	82,464
Outstanding at year end	10,187	10,140	8,166

The following chart shows how applications and resolutions are relatively constant across regions and also illustrates the regional distribution of applications filed with the Board.



Review and Appeal Statistics

A party to an application may ask for a review of a Board order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding. The authority for requesting a review comes from section 21.2 of the *Statutory Powers Procedure Act*, subsection 209(2) of the RTA, and Rule 29 of the Board's Rules of Practice.

When a review request is filed with the Board, a Member conducts a preliminary review, without holding a hearing, to determine whether or not the order may contain a serious error or a serious error may have occurred in the proceedings. When the Member determines that there is a possibility of a serious error affecting the result of the case, a review hearing will be held. Otherwise, the Member will dismiss the request for review.

Over the 2011-2012 fiscal year, the Board received 2,200 requests for review, 2.7 per cent of the total number of applications received. Of the review requests received, 1,028 (1.26 per cent) were sent to hearing.

Section 210 of the RTA also provides that any person affected by a Board order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law. Over the 2011-2012 fiscal year, the Board received 134 Notices of Appeal of Board orders. This number represents 0.17 per cent of the total number of applications resolved by the Board.

Average Processing Times

The Board tracks the length of time from the date an application is filed to the initial hearing date that is scheduled, and the length of time from the final hearing date to the date the order is issued. While most cases are resolved during the initially scheduled hearing, some require more than one hearing appearance. A number of factors, such as the availability of parties or their representatives, can affect the length of time between the initial hearing date and the final hearing date.

The processing times generally correspond to the complexity of the application types. On average for the 2011-2012 fiscal year, hearings of L1 applications (to end the tenancy and evict the tenant for rent arrears) were scheduled within 25 business days of the date the applications were filed, and the order issued within four business days of the final hearing. L5 applications filed by landlords (for above-guideline rent increases) generally involve the lengthiest processes and as a result tend to be heard 145 to 155 business days after the application was filed, and have an order issued within 15 business days after the hearing. T2 and T6 (tenant rights and maintenance) applications, which tend to be more complex, were typically heard within 25 business days of their filing date, and the order issued within eight business days of the final hearing.

Mediation

The Landlord and Tenant Board employs 21 mediators throughout the province to provide mediation services where both parties involved in an application are interested in mediating a resolution of the issues in dispute. In the 2011-2012 fiscal year, approximately 38 per cent of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

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ONTARIO SPECIAL EDUCATION TRIBUNALS

Associate Chair's Messages

Céline T. Allard, Associate Chair

Ontario Special Education (French) Tribunal

On behalf of the French and English Ontario Special Education Tribunals, I am pleased to provide the following report on the work of both tribunals.

One of the unique features of the 1980 *Education Amendment Act*, which guaranteed universal access to public education for all students, "exceptionality notwithstanding," was that it provided parents with the right to appeal the placement of exceptional students without having to go to court. The right of appeal to an independent adjudicative body, whose members have a high level of expertise in special education legislation and the ability to determine what is in the best interest of students with exceptionalities regarding programs, services and accommodation in an educational setting, continues to be an integral part of Ontario's unique approach to providing natural justice and due process to these students, their families and the education system.

Adjudicating these complex cases requires extensive knowledge, sensitivity and understanding of exceptional children and the education system in relation to the legal framework, as well as knowledge of teaching and learning strategies. Expert witnesses often appear before the Tribunal and give opinions on key facts relating to a broad array of exceptionalities. The expertise of the Tribunal in these areas is evident in the background of the appointees and has been recognized and acknowledged by all levels of courts.

Geographical representation across Ontario is also important when members are appointed. Hearing panels are always made up of three members, and hearings are held in a location that is convenient for both parties.

Special education is a constantly evolving field. While legislation may remain the same, there are many new research findings that inform the identification of exceptionalities and the determination of what is in the best interest of an identified exceptional student. OSET members must ensure that they are well-informed about such matters, since their mandate is more complex than the simple application of the statute. Therefore, they regularly participate in ongoing professional development activities related to their role as adjudicators and work independently as well as collectively to maintain their level of special education expertise.

As neutral adjudicators, and experts in special education, OSET members must always strive to reach a decision consistent with the best interests of the student based on the facts and evidence presented. I would like to thank all members of both tribunals for their continuing service in the interests of Ontario's exceptional students.

Legislative Authority

The legislative mandate of the Ontario Special Education Tribunals (OSET) is found in section 57 of the *Education Act*, R.S.O. 1990, c. E. 2. Their primary role is to adjudicate appeals initiated by parents regarding identification and/or placement decisions made by school boards with respect to students with special needs (exceptional pupils), and to make decisions that are in the best interest of these pupils.

LANDLORD AND TENANT BOARD

Associate Chair's Message

Lilian Ma, Associate Chair <i>Landlord and Tenant Board</i>	Alternate Executive Chair <i>Social Justice Tribunals Ontario</i>
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Last year, the Landlord and Tenant Board (LTB) made great strides on a number of initiatives to help us achieve our mission to provide fair, effective, timely and accessible dispute resolution for the residential rental housing sector in Ontario.

In November 2011, as a result of client feedback, the Board implemented a new scheduling model for those application types that make up the majority of the applications submitted. This initiative has proven to be successful in increasing the predictability of our scheduling and reducing time to hearing for both landlord and tenant applications.

We appreciate the input of stakeholders who participated in our first online consultation this past fiscal year about proposed changes to the rules of practice, L1/L9 hearing day update form and request for consent form. This online consultation enabled us to reach broader and different audiences offering us the ability to improve access to justice.

As part of its overall efficiencies exercise, LTB is also streamlining the processing of the L5 application for above the guideline rent increases and the A4 application to vary the rent reduction.

E-filing is an exciting initiative for the Landlord and Tenant Board. Although it is in the initial phases, this system will offer secure and simple filing and will allow individuals to file applications online quickly, at any time and from anywhere. I appreciate the ongoing commitment of members and staff in delivering the Board's important services and to tenants and landlords and for their valuable input into the Board's initiatives.

Legislative Authority

The Landlord and Tenant Board (LTB) draws its legislative authority from the *Residential Tenancies Act*, 2006 (the RTA or the Act), which sets out, in section 1, the following purposes for the Board:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants and;
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Resolving disputes

Adjudication

Subsection 168(2) of the RTA provides that the Board has exclusive jurisdiction to determine all applications under the Act, while section 174 provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act.

Pursuant to section 183 of the Act, the Board strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

Hearings are held at the LTB's eight regional offices as well as at a number of other locations across the

province.

Mediation

Section 194 of the Act allows the Board to mediate disputes, if both parties agree to try this approach. Board Mediators are available to meet with parties to try to help them reach a workable agreement that is acceptable to both sides.

Providing Information

Section 177 of the RTA requires the LTB to give information to landlords and tenants about their rights and obligations. The LTB fulfills this mandate by providing counter-service in its offices across the province, and through a website and a virtual call centre. LTB received 502,321 telephone calls in 2012-2013.

Amendments to the RTA

Effective January 1, 2012, the RTA was amended by Bill 140 as part of the Long Term Affordable Housing Strategy of the Ministry of Housing. Bill 140 includes an amendment to the RTA that will require the Board to serve the notice of hearing and application to the respondent unless the Board, as set out in its Rules, orders the applicant to do so. A proclamation date for this provision has yet to be announced. The LTB is preparing to implement the changes required by this amendment and will consult with its stakeholders.

Operational Highlights

Orientation to LTB for cross-appointees and new appointees

The LTB welcomed a number of cross-appointments from other SJTO tribunals as well as new LTB members. They were provided with training on the RTA to prepare them for LTB hearings.

Stakeholder engagement

During this fiscal year, the LTB met with the Stakeholder Advisory Committee (SAC), which consists of representatives from the Advocacy Centre for Tenants Ontario (ACTO), the Federation of Rental Housing Providers of Ontario (FRPO) and the Ontario Non-Profit Housing Association (ONPHA). The on-going dialogue between the Board and stakeholder representatives ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines. The SAC meetings are also an important forum for providing progress updates on LTB initiatives as well as responding to the concerns from landlord and tenant groups.

Statistics/ Commentary

From April 1, 2012 to March 31, 2013, the LTB received 82,192 applications. This is an increase of 1,108 applications compared to the 2011-2012 caseload. Over the last three years, there has been an increase of more than six per cent in applications filed with the Board.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to an adjudicative tribunal. This past year was no exception, with 91 per cent of applications filed by landlords and nine per cent filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, 66.65 per cent were for termination of tenancy because of arrears of rent.

Landlord Applications

The following table shows the number of each application type filed by landlords for the 2012-2013 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by landlords.

Landlord Applications by Type

Case type	Application Description	2012-2013	2011-2012	2010-2011
A1	Determine Whether the Act Applies	62 (0.08%)	50 (0.07%)	48 (0.07%)
A2	Sublet or Assignment	237 (0.32%)	234 (0.32%)	199 (0.28%)
A3	Combined Application (usually includes an L1)	3,936 (5.24%)	3,736 (5.05%)	3,066 (4.34%)
A4	Vary Rent Reduction Amount	209 (0.28%)	106 (0.14%)	182 (0.26%)
L1	Terminate & Evict for Non-Payment of Rent	54,777 (72.97%)	54,847 (74.16%)	53,182 (75.29%)
L2	Terminate for Other Reasons & Evict	7,102 (9.46%)	6,867 (9.28%)	6,158 (8.72%)
L3	Termination – Tenant Gave Notice or Agreed	1,225 (1.63%)	1,263 (1.71%)	1,075 (1.52%)
L4	Terminate the Tenancy – Failed Settlement	5,549 (7.39%)	4,905 (6.63%)	4,805 (6.80%)
L5	Rent Increase Above the Guideline	296 (0.39%)	252 (0.34%)	391 (0.55%)
L6	Review of Provincial Work Order	11 (0.01%)	13 (0.02%)	7 (0.01%)
L7	Transfer Tenant to Care Home	0 (0.00%)	1 (0.00%)	1 (0.00%)
L8	Tenant Changed Locks	45 (0.06%)	21 (0.03%)	26 (0.04%)
L9	Application to Collect Rent	1,620 (2.15%)	1,664 (2.25%)	1,499 (2.12%)
Total		75,069	73,959	70,639

L1 applications were scheduled, on average, within 20.7 business days of the date the applications were filed, and the order issued, on average, within 3.4 business days of the final hearing.

Tenant Applications

The following table shows the number of each application type filed by tenants for the 2012-2013 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by tenants.

Tenant Applications By Type

Case type	Application Description	2012-2013	2011-2012	2010-2011
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A1	Determine Whether the Act Applies	30 (0.42%)	36 (0.51%)	30 (0.44%)
A2	Sublet or Assignment	45 (0.63%)	57 (0.80%)	49 (0.73%)
A3	Combined Application	1,342 (18.84%)	1,435 (20.14%)	1,224 (18.12%)
A4	Vary Rent Reduction Amount	1 (0.01%)	1 (0.01%)	0 (0.00%)
T1	Rent Rebate (e.g. illegal rent)	618 (8.68%)	578 (8.11%)	520 (7.70%)
T2	Tenant Rights	3,676 (51.61%)	3,548 (49.80%)	3,587 (53.10%)
T3	Rent Reduction	58 (0.81%)	65 (0.91%)	43 (0.64%)
T4	Failed Rent Increase Above Guideline	1 (0.01%)	1 (0.01%)	1 (0.01%)
T5	Bad Faith Notice of Termination	152 (2.13%)	139 (1.95%)	128 (1.89%)
T6	Maintenance	1,198 (16.82%)	1,264 (17.74%)	1,171 (17.34%)
T7	Suite Meters	2 (0.03%)	1 (0.01%)	2 (0.03%)
Total		7,123	7,125	6,755

Tenant applications were heard, on average, within 20.2 business days of their filing date, and the order issued, on average, within eight business days of the final hearing.

Application Resolution

For the fiscal year 2012-2013, the LTB received 82,192 applications and resolved 80,261 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2012 the number of unresolved RTA applications is 9,580.

The following table shows the total number of applications received, resolved and outstanding at the end of the fiscal year, for 2012-2013 and the two previous years.

Application Receipts and Resolutions*

	2012-2013	2011-2012	2010-2011
Applications received	82,192	81,084	77,394
Applications resolved	80,261	81,032	75,420
Outstanding at end of fiscal year	9,580	10,187	10,140

*For fiscal 2012-2013 the LTB statistics are those reported by its case management system. For previous years, the LTB calculated these statistics manually.

The following chart shows how applications and resolution are relatively constant across regions and also illustrates the regional distribution of applications filed with the board.

[INSERT IMAGE HERE]

Review and Appeal Statistics

A party to an application may ask for a review of a Board order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding.

Over the 2012-2013 fiscal year the LTB received 2,162 requests for review, 2.6 per cent of the total number of applications received. Of the review requests received, 1,337 (1.6 per cent) were sent to hearing.

Section 210 of the RTA also provides that any person affected by a LTB order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law. Over the 2012-2013 fiscal year the LTB received 151 Notices of Appeal of Board orders. This number represents 0.2 per cent of the total number of applications resolved by the LTB.

Mediation

The Landlord and Tenant Board employs mediators throughout the province to provide mediation services where both parties involved in an application are interested in working together to resolve the issues in dispute. In the 2012-2013 fiscal year approximately 37 per cent of all applications where both parties attended the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

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ONTARIO SPECIAL EDUCATION TRIBUNALS

Vice-Chair's Message

David A. Wright, Vice-Chair

Ontario Special Education (English) and (French) Tribunals

I am pleased to present the OSET (English and French) section of the SJTO annual report.

This has been a year of significant change at the OSETs. The operations of both special education tribunals were brought within the administrative structure of the Human Rights Tribunal of Ontario (HRTO). The Registrar of the HRTO, is now OSET Secretary. In addition to my responsibilities as Associate Chair of HRTO, I have now been appointed Vice-Chair and lead of the OSETs by the SJTO Executive Chair.

I am excited about the advantages for parents and school boards that the ties with HRTO and other SJTO tribunals provide. Applications regarding the provision of special education arise frequently at HRTO, and we are building a dedicated group of adjudicators with expertise in the resolution of these cases, and others involving children, across the tribunals. These changes will enhance the ability of our stakeholders to have their disputes involving special education services resolved in a manner tailored to the nature of the dispute, by adjudicators with expertise in the substance of special education and dispute resolution in this context.

The Ontario Special Education (French) Tribunal is an important institution for franco-Ontarians and Ontario's French-language education system. We are committed to ensuring the highest quality of French-language services for individuals for francophone stakeholders when they bring a dispute about special education before the Tribunal.

I am proud of the strong foundation that previous chairs, vice-chairs and members of the OSETs have established for mediating and adjudicating special education disputes. I look forward to hearing feedback from those who use our services as we now work to continue to improve our services with the resources and expertise available in SJTO.

Legislative Authority

The legislative mandate of the OSETs is found in section 57 of the *Education Act, R.S.O. 1990*, c. E. 2. Their

Discrimination found	56	47	40
Discrimination not found	87	87	55
Dismissal on a preliminary basis (including following summary hearings)	871	699	786
Deferrals	191	252	229
*Other procedural issues	525	424	358
Reconsideration	151	142	140
Breach of settlement decision	24	5	12

*Includes instances such as jurisdictional issues, where the matter was dealt with by another court, the granting or denying of adjournments or no response was filed.

The HRTO also issued 1,794 Case Assessment Directions dealing with various procedural issues.

Transitional Applications and Commission Referred Complaints

June 2008 amendments to the *Code* established the new human rights system and included a mechanism for dealing with complaints still pending at the Ontario Human Rights Commission. For a period of one year, the complainant could bring the complaint to the HRTO by filing an application under section 53 of the *Code*. The HRTO received almost 2,000 such applications. As well, the Commission continued to refer complaints to the HRTO until December 31, 2008.

Most of the Transition Applications and Commission Referred Complaints have been resolved. At the end of fiscal 2013-2014, the open caseload was:

Transitional Applications

16 open cases:

- 2 were pending final decision
- 12 were deferred pending the outcome of some other process
- 1 was at the hearing stage
- 1 was combined with s.34 applications

Commission Referred Complaints

2 open cases:

- 1 for monitoring
- 1 group of cases being case managed for outstanding issues (special diet files processed as one case)

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LANDLORD AND TENANT BOARD

Legislative Authority: LTB

The Landlord and Tenant Board (LTB) is established under the *Residential Tenancies Act (RTA)* to hear and decide applications relating to residential tenancies. Mediation of disputes is provided with the consent of the parties.

The LTB also provides information to landlords and tenants about their rights and obligations under the RTA.

Resolving disputes

- **Adjudication**

Subsection 168(2) of the RTA provides that the LTB has exclusive jurisdiction to determine all applications under the act, while section 174 provides the LTB with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction.

Pursuant to section 183 of the RTA, the LTB strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

Hearings are held at the LTB's eight offices as well as at a number of other locations across the province.

- **Mediation**

Section 194 of the RTA allows the LTB to mediate disputes, if both parties agree. LTB mediators are available to meet with parties to try to help them reach an agreement.

Providing Information

Section 177 of the RTA requires the LTB to give information to landlords and tenants about their rights and obligations. The LTB fulfills this mandate by providing counter-service in its offices across the province, and through a website and a call centre. LTB handled 293,351 telephone calls in 2013-2014.

Operational Highlights: LTB

The LTB developed and implemented several initiatives to support the provision of fair, effective, timely and accessible dispute resolution for the residential housing sector in Ontario. LTB initiatives focused on the areas of tribunal modernization, dispute resolution and external service delivery.

Tribunal Modernization

LTB is expecting the proclamation of Bill 140 in 2014/15. With a few exceptions, the bill requires LTB to serve the Notice of Hearing package on the parties. Although the bill is not yet law, the LTB is preparing by updating its rules and procedures and application forms.

Dispute Resolution

Bill 14, which was passed by the Legislature on September 26, 2013, provides for most co-op eviction disputes to be dealt with by the LTB. Bill 14 also introduced "fee waivers" which permit the LTB to waive or defer fees for low-income individuals. In anticipation of the bill being proclaimed in spring 2014, the LTB is developing new rules, practice directions, forms and procedures.

The LTB has continued to deal with most landlord applications for non-payment of rent (L1s and L9s) on specific days at each office. As a result, time to hearing has decreased and application scheduling has become more predictable.

External Service Delivery

LTB is developing an electronic filing system that will provide clients with a new, secure and simple online filing solution. It will allow clients to file applications more quickly, at any time and from anywhere. Implementation is anticipated for early 2015.

The LTB renewed its focus on stakeholder engagement and finalized the terms of reference for the newly-formed Practice Advisory Committee (PAC) which includes representatives from the Advocacy Centre for Tenants Ontario, the Federation of Rental Housing Providers of Ontario, the Ontario Non-Profit Housing Association, and

the Co-operative Housing Federation. The PAC will allow stakeholders to chair and direct the discussion.

Service Standards: LTB

All applications, except those dealing with an above guideline increase (AGIs) and an application to vary the amount of the reduction (A4s), will have a hearing scheduled within 25 business days 80% of the time.*

Result: 90%

Orders for all applications, except those dealing with an above guideline increase (AGIs) and an application to vary the amount of the reduction (A4s) will be issued within 5 business days 80% of the time.*

Result: 88%

***Note:** LTB's case management system reports in business days.

Statistics/ Commentary: LTB

In 2013-14, the LTB received 81,748 applications. This is a decrease of 443 applications compared to 2012-2013.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 91 per cent of applications filed by landlords and nine per cent filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, 64.6 per cent were for termination of tenancy because of arrears of rent.

Application Resolution

For the fiscal year 2013-2014, the LTB received 81,748 applications and resolved 82,126 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2014 the number of unresolved RTA applications was 8,497.

Application Receipts and Resolutions	2013-2014	2012-2013	2011-2012
Applications received	81,748	82,192	81,084
Applications resolved	82,126	80,261	81,032
Outstanding at end of fiscal year	8,497	9,580	10,187

Landlord Applications by Type

Case Type	Application Description	2013-2014	2012-2013	2011-2012
A1	Determine Whether the Act Applies	69 (0.1%)	62 (0.1%)	50 (0.1%)
A2	Sublet or Assignment	241 (0.3%)	237 (0.3%)	234 (0.3%)

A3	Combined Application (usually includes an L1)	4,209 (5.7%)	3,936 (5.2%)	3,736 (5.1%)
A4	Vary Rent Reduction Amount	134 (0.2%)	209 (0.3%)	106 (0.1%)
L1	Terminate & Evict for Non-Payment of Rent	52,832 (71.2%)	54,777 (73.0%)	54,847 (74.2%)
L2	Terminate for Other Reasons & Evict	7,312 (9.9%)	7,102 (9.5%)	6,867 (9.3%)
L3	Termination - Tenant Gave Notice or Agreed	1,179 (1.6%)	1,225 (1.6%)	1,263 (1.7%)
L4	Terminate the Tenancy - Failed Settlement	5,955 (8.0%)	5,549 (7.4%)	4,905 (6.6%)
L5	Rent Increase Above the Guideline	438 (0.6%)	296 (0.4%)	252 (0.3%)
L6	Review of Provincial Work Order	3 (0.0%)	11 (0.0%)	13 (0.0%)
L7	Transfer Tenant to Care Home	4 (0.0%)	0 (0.0%)	1 (0.0%)
L8	Tenant Changed Locks	21 (0.0%)	45 (0.0%)	21 (0.0%)
L9	Application to Collect Rent	1,800 (2.4%)	1,620 (2.2%)	1,664 (2.3%)
Total		74,197	75,069	73,959

Tenant Applications by Type

Case Type	Application Description	2013-2014	2012-2013	2011-2012
A1	Determine Whether the Act Applies	23 (0.3%)	30 (0.4%)	36 (0.5%)
A2	Sublet or Assignment	46 (0.6%)	45 (0.6%)	57 (0.8%)
A3	Combined Application	1,680 (22.3%)	1,342 (18.9%)	1,435 (20.2%)
A4	Vary Rent Reduction Amount	1 (0.0%)	1 (0.0%)	1 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	663 (8.8%)	618 (8.7%)	578 (8.1%)
T2	Tenant Rights	3,600 (47.7%)	3,676 (51.6%)	3,548 (49.8%)
T3	Rent Reduction	51 (0.7%)	58 (0.8%)	65 (0.9%)

T4	Failed Rent Increase Above Guideline	4 (0.0%)	1 (0.0%)	1 (0.0%)
T5	Bad Faith Notice of Termination	156 (2.1%)	152 (2.2%)	139 (2.0%)
T6	Maintenance	1,318 (17.5%)	1,198 (16.8%)	1,264 (17.7%)
T7	Suite Meters	9 (0.0%)	2 (0.0%)	1 (0.0%)
Total		7,551	7,123	7,125

LTB Regional Activity

	Central	East	North	South	South-west	GTR East	GTR North	GTR South
Received	8,820	8,329	3,713	11,392	13,488	11,191	13,112	11,703
Resolved	8,904	8,267	3,720	11,346	13,146	11,509	13,225	12,009
Outstanding	867	875	360	960	1,482	1,071	1,470	1,412

Mediation

The LTB employs mediators throughout the province to provide mediation services where both parties involved in an application are interested in working together to resolve the issues in dispute. In the 2013-2014 fiscal year, approximately 36 per cent of all applications where both parties attended the hearing were successfully resolved through mediated agreements and/or consent orders* arrived at during mediation.

*Like a mediated agreement, both parties agree to the terms of consent orders. Unlike mediated agreements, however, the terms of a consent order are limited to the scope of the application and they are enforceable in the same way as any other LTB order for eviction or money owed.

Review and Appeal Statistics

A party to an application may ask for a review of an LTB order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings. This includes circumstances where a party was not reasonably able to participate in the proceeding.

In 2013-2014, the LTB received 2,376 requests for review, three per cent of the total number of applications received. Of the review requests received, 881 were sent to hearing.

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ONTARIO SPECIAL EDUCATION TRIBUNALS

Legislative Authority: OSETs

The legislative mandate of the Ontario Special Education Tribunals (OSETs) is found in section 57 of the

The HRTO issued 1,553 Case Assessment Directions in 2014-15. Case Assessment Directions deal with procedural issues.

Service Standards

The goal is to meet the service standard 80% of the time.

Hearings and Mediations	% of time service standard is met	Average number of days
The first mediation date offered to parties will be scheduled to take place within 150 calendar days from the date the parties agree to mediation	83%	129
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing	62%	170

Decisions	% of time service standard is met	Average number of days
Decisions for hearings which take 3 days or less will be issued within 90 calendar days	82%	68
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days	39%	230

tribunalsontario.ca/hrto

[Return to Table of Contents](#)

Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolve eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the *RTA*
- provide information about LTB's practices and procedures

Legislative Authority

The Landlord and Tenant Board is established under the [*Residential Tenancies Act \(RTA\)*](#).

Operational Highlights

Non-profit Housing Co-op Eviction Applications

On June 1, 2014, non-profit housing co-operatives ("co-ops") began filing applications for eviction with the LTB instead of the courts.

The change was made as a result of the [*Non-profit Housing Co-operatives Statute Law Amendment Act*](#) which amends parts of the *RTA*.

Because the LTB anticipated receiving only about 500 co-op eviction applications annually, it decided to pilot new processes which could potentially be used for other kinds of applications.

Some of these new processes are:

- Using email to receive applications
- Using electronic case files instead of paper files
- Requiring respondents to file a response before the first hearing
- Using case management hearings before a merits hearing
- Scheduling hearings in individual time slots instead of as part of a hearing block.

From June 1, 2014 to April 30, 2015 the LTB received 208 co-op eviction applications, most for non-payment of regular monthly housing charges.

When co-op applications are filed, the LTB schedules both a case management hearing and a merits hearing. About 75% of the co-op applications that are contested have been resolved by mediation at the case management hearing, freeing up the time to hear other applications. Most people who have participated in case management hearings, say they liked having the opportunity to settle the dispute before a hearing. The LTB will continue to monitor the effectiveness of the co-op processes.

Fee Waivers

Another amendment in the *Non-profit Housing Co-operatives Statute Law Amendment Act* allows the LTB to waive fees for people who have a low income. The LTB developed criteria for determining who would qualify for a fee waiver and a process for submitting a fee waiver request.

The proposed rule and practice direction related to fee waivers were posted for public consultation in February 2014 and fee waivers were implemented on June 1. From June 1, 2014 to March 31, 2015, the LTB received 1,659 requests resulting in \$75,144 in waived fees.

Case Management Hearings Pilot

On September 15, 2014 the LTB began piloting case management hearings for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6).

During a case management hearing, parties can settle the issues in dispute with the help of a hearing officer: an LTB mediator who has been designated as a hearing officer under the RTA. If an application is not settled, the LTB schedules a second hearing to hear the merits of the application. The hearing officer makes sure the parties are prepared for the merits hearing, by directing them to exchange documents by a specific date, for example.

LTB's Toronto South and Southern (Hamilton) offices are piloting the initiative. Case management hearings are being conducted in person or by phone.

The pilot is being evaluated based on settlement rates, level of preparedness for a merits hearing and the type of adjournments requested at a merits hearing. Early results show that about 55% of the applications that were scheduled for a case management hearing were resolved at that stage. There was no difference in the success rate between case management hearings conducted by telephone or in person. Depending on the results of the pilot, the LTB will consider expanding the use of case management hearings to other LTB offices and other types of applications.

Scheduling in full day blocks instead of half day blocks - Toronto North & South District Offices

The LTB has changed how hearings are scheduled in the Toronto South and Toronto North District Offices. Previously, hearings in those two locations had been scheduled in half day hearing blocks. Starting in March 2015, most cases (Forms L1 and L9 excepted) were scheduled into full day hearing blocks. Full day hearing blocks are already common in many other LTB hearing locations.

A hearing block is a period of time during which a group of applications are scheduled. Parties are not given a specific time slot when their application will be heard during their block. They wait in the hearing room until their application is called.

The hope is that the change will reduce the number of hearings that have to be rescheduled because of lack of time. In a full day block, if tenants consult with duty counsel or if the parties choose to mediate, there will usually still be time to hold a hearing.

The LTB will be monitoring the new approach to make sure that more cases are being heard on the day they are

scheduled.

Updated Forms

The LTB launched updated application and notice forms on March 1, 2015 (for use starting April 1). The new forms are easier to understand and complete.

Upcoming Initiatives

LTB e-File: Looking to the coming year, LTB is excited to begin with a soft launch of an electronic filing system (e-File). During the soft launch a small pool of regular users will eFile their applications. LTB e-File will provide clients with a new, secure and simple way to file the following forms online: L1, L2, T2 and T6. The LTB expects to make e-File available across the province in the summer of 2015.

Email for case-specific inquiries: LTB is piloting the use of email as a way for parties to submit information or ask questions about their case in two offices: Toronto South and Southwestern (London). If the pilot is successful, the plan is to offer email across the province as another way for parties to get in touch with the LTB.

Mediations

When both parties involved in an application are interested in working together to resolve the issues in dispute, the LTB provides a mediator. In 2014-2015, approximately 35% of all applications where both parties attended the hearing were resolved through mediated agreements and/or consent orders arrived at during mediation. By comparison, about 75% of the co-op applications that were contested were resolved by mediation at the case management hearing.

A mediated agreement is an agreement between the parties. A consent order is an LTB order based on terms that the parties agree to and is enforceable by the courts.

Reviews and Appeals

A party can ask for a review of an LTB decision if a "serious error" has been made in the order.

In 2014-2015, the LTB received 2,471 requests for review, 3% of the total applications received. Of the review requests received, 1,440 were denied after a preliminary review. The other 1,022 were sent to hearing to determine whether there was a serious error.

Call Centre

The LTB handled 286,869 telephone calls this year. The average time per call was 05:10. The average time callers waited in the call queue was 06:48.

Statistics

In 2014-15, the LTB received 79,740 applications. This total includes landlord, tenant and co-op applications. This is a decrease of 2.45% or 2,008 applications compared to 2013-2014.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 62.7% were to terminate a tenancy because of non-payment of rent.

On June 2, 2014, non-profit housing co-operatives ("co-ops") began filing applications for eviction with the LTB.

These applications were previously handled by the courts. The LTB received 208 co-op eviction applications between June 1, 2014 and the end of the fiscal year.

As of March 31, 2015, the number of unresolved applications at the LTB was 10,286.

Table 1: All Applications Received, Resolved and Outstanding

	2014-2015*	2013-2014	2012-2013
Applications Received	79,740	81,748	82,192
Applications Resolved	77,306	82,126	80,261
Outstanding at end of fiscal year	10,286	8,497	9,580

* The 2014-2015 totals include non-profit co-operative housing eviction applications, which the LTB began receiving in June 2014.

Table 2: Landlord and Tenant Applications Received by Region (April 1, 2014 - March 31, 2015)

Central	East	North	South	South-west	Toronto East	Toronto North	Toronto South	Total
8,963	8,370	3,829	10,947	13,500	10,798	12,169	10,956	79,592

Table 3: Co-op Applications Received by Region (June 1, 2014 - March 31, 2015)

Central	East	North	South	South-west	Toronto East	Toronto North	Toronto South	Total
10	19	11	19	36	58	24	31	208

Table 4: Landlord Applications Received by Type

Case Type	Application Description	2014-2015	2013-2014	2012-2013
A1	Determine Whether the Act Applies	55 (0.1%)	69 (0.1%)	62 (0.1%)
A2	Sublet or Assignment	263 (0.4%)	241 (0.3%)	237 (0.3%)
A3	Combined Application (usually includes an L1)	3,986 (5.6%)	4,209 (5.7%)	3,936 (5.2%)
A4	Vary Rent Reduction Amount	135 (0.2%)	134 (0.2%)	209 (0.3%)
L1	Terminate & Evict for Non-Payment of Rent	49,991 (70.0%)	52,832 (71.2%)	54,777 (73.0%)

L2	Terminate for Other Reasons & Evict	7,983 (11.2%)	7,132 (9.9%)	7,102 (9.5%)
L3	Termination - Tenant Gave Notice or Agreed	1,208 (1.7%)	1,179 (1.6%)	1,225 (1.6%)
L4	Terminate the Tenancy - Failed Settlement	5,632 (7.9%)	5,955 (8.0%)	5,549 (7.4%)
L5	Rent Increase Above the Guideline	548 (0.8%)	438 (0.6%)	296 (0.4%)
L6	Review of Provincial Work Order	8 (0.0%)	3 (0.0%)	11 (0.00%)
L7	Transfer Tenant to Care Home	0 (0.0%)	4 (0.0%)	0 (0.00%)
L8	Tenant Changed Locks	31 (0.0%)	21 (0.0%)	45 (0.00%)
L9	Application to Collect Rent	1,735 (2.4%)	1,800 (2.4%)	1,620 (2.2%)
	Total	71,575	74,197	75,069

Table 5: Tenant Applications Received by Type

Case Type	Application Description	2014-2015	2013-2014	2012-2013
A1	Determine Whether the Act Applies	59 (0.7%)	23 (0.3%)	30 (0.4%)
A2	Sublet or Assignment	55 (0.7%)	46 (0.6%)	45 (0.6%)
A3	Combined Application	1,921 (24.1%)	1,680 (22.3%)	1,342 (18.8%)
A4	Vary Rent Reduction Amount	0 (0.0%)	1 (0.0%)	1 (0.01%)
T1	Rent Rebate (e.g. illegal rent)	716 (9.0%)	663 (8.8%)	618 (8.7%)
T2	Tenant Rights	3,441 (43.2%)	3,441 (43.2%)	3,676 (51.6%)
T3	Rent Reduction	69 (0.9%)	51 (0.7%)	58 (0.8%)
T4	Failed Rent Increase Above Guideline	1 (0.0%)	4 (0.0%)	1 (0.01%)
T5	Bad Faith Notice of Termination	170 (2.1%)	156 (2.1%)	152 (2.1%)
T6	Maintenance	1,516 (19.1%)	1,318 (17.5%)	1,198 (16.8%)
T7	Suite Meters	9 (0.0%)	9 (0.0%)	2 (0.03%)
	Total	7,957	7,551	7,123

Table 6: Co-op Applications Received by Type (June 1, 2014 - March 31, 2015)

Case	Application Description	Received
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Type		
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	132 (63.4%)
C1/2	Combined C1 and C2 applications	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	14 (7%)
	Total	208

Table 7: Landlord/Tenant Applications by Method of Resolution (April 1, 2014 - March 31, 2015)

Resolution Type	Total
Abandoned ¹	2,668
Resolved by Mediation ²	11,926
Resolved at Hearing ³	48,107
Resolved without Hearing ⁴	4,402
Review Denied	675
Withdrawn	7,369
Other ⁵	2,001
Total	77,148

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 8: Co-op Eviction Applications by Method of Resolution (June 1, 2014 - March 31, 2015)

Resolution Type	Total
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No Hearing ⁶	22
CMH Only	110
Merit Hearing Only	10
Both CMH and Merit Hearing	16
Total	158

⁶ application withdrawn/discontinued; parties settled the issues on their own

When a co-op eviction application is filed, the LTB schedules a case management hearing (CMH) and a merits hearing. If the application is resolved at the CMH, the merits hearing is cancelled.

Service Standards

The goal is to meet the service standard 80% of the time.

Standard	% of time service standard is met	Average number of days
Applications will be scheduled for a hearing within 25 business days	78%	21
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	89%	3.6

tribunalsontario.ca/lrb

[Return to Table of Contents](#)

Social Benefits Tribunal



What We Do

The goal is to meet the service standard 80% of the time.

The commitment to issue decisions for hearings which take longer than 3 days within 180 days was met only 36% of the time. Because hearings that took more than 3 days to complete accounted for only 5% of hearings, the low compliance has limited impact on the HRTO's overall performance. Through recruitment and training, the HRTO is working to improve in this area so that all parties can have confidence in the system.

Hearings and Mediations	% of time service standard is met	Average number of days
The first mediation date offered to parties will be scheduled to take place within 150 calendar days from the date the parties agree to mediation.	97%	90
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	59%	161

Decisions	% of time service standard is met	Average number of days
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	76%	86
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days.	36%	300

tribunalsontario.ca/hrto

[Return to Table of Contents](#)

Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB):

- resolves disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provides information to landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The Landlord and Tenant Board is established under the [Residential Tenancies Act \(RTA\)](#).

Operational Highlights

Improvements to How the Notice of Hearing is Served

In July 2015, LTB started serving the Notice of Hearing and the application to both the applicant and the respondent. Previously, the applicant had to serve these documents on the respondent and then submit a certificate of service to the LTB.

In March 2016, the LTB improved the process further based on feedback from users.

While most people continued to receive their Notice of Hearing package in the mail, two changes were made:

1. People who file an application in-person at an LTB office can receive their package at the counter instead of by mail.
2. People who file three or more applications at the same time ("bulk filing") can come into the LTB office and pick up the Notice of Hearing packages.

Landlords who apply to increase the rent above the guideline or to vary the amount of a rent reduction and non-profit housing co-operatives who apply to evict a tenant were not affected by these changes. They continue to serve the Notice of Hearing and the application.

Updates to Forms

In April, the LTB released updated versions of forms, notices and the accompanying instructions for completing them. Formatting changes made the forms more accessible and easier to understand. Many of the changes were made as a result of suggestions by the public, LTB members and LTB staff.

Orders on the Day of the Hearing

Starting in October 2015, some parties began leaving their hearing with an order in hand at LTB's Southwest, Central and Toronto North offices. LTB members (adjudicators) at these locations are testing a new process for issuing two types of orders in the hearing room:

1. Consent orders on applications for eviction based on arrears of rent, where the parties have agreed to a repayment schedule which allows the tenant to remain in the unit.
2. Orders where the application has been abandoned, withdrawn or discontinued.

The members write the orders by hand using a template.

Previously, the member would write the order after the hearing and then staff would mail copies to the parties, a process which can take several days.

From October 2015 to the end of March 2016, LTB members issued 668 orders in the hearing room. Feedback has been very positive and, as a next step, the LTB plans to provide portable printers so that members can complete and print the orders from a laptop instead of by hand.

Same day orders is one way the LTB is improving access to fair and timely dispute resolution. The LTB intends to roll out this initiative province-wide next fiscal year.

Case Management Hearings

The LTB continues to conduct case management hearings (CMHs) for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6) at its Toronto South and Southern (Hamilton) offices. In August 2015, consultation meetings were held with staff and parties who have participated in CMHs at both offices. An internal working group at the LTB is using feedback from the meetings to explore ways to improve and expand the process.

Improved Tool to "Check File Status" Online

In October 2015, the LTB launched a new-and-improved version of its "Check File Status" tool. By entering the postal code of the rental property and the file number, landlords and tenants can find out the date, time and location of their next hearing and find out if an order has been issued, without having to call the board. From October 2015 – March 2016, the page was visited nearly 38,000 times and was the 7th most popular page on the LTB website.

LTB e-File

On July 13 2015, the LTB launched e-File, allowing landlords and tenants across Ontario to file the most common LTB applications online, anytime from anywhere.

The e-File tool guides users through a series of steps, and then generates an application. Landlords and tenants can also pay the filing fees online and schedule the first available hearing date.

Four common application types can be e-Filed – two for landlords and two for tenants, which together account for 80% of all applications received at the LTB.

The two applications that tenants can file online are:

- T2: Application about Tenant Rights
- T6: Tenant Application about Maintenance

The two applications that landlords can file online are:

- L1: Application to Evict a Tenant for Non-payment of Rent and to Collect Rent the Tenant Owes
- L2: Application to End a Tenancy and Evict a Tenant

From the launch of e-File on July 13, 2015 to March 31, 2016, the LTB received 11,788 applications online.

- 75% (8,837) were L1 applications
- 12% (1,373) were L2 applications
- 10% (1,221) were T2 applications
- 3% (357) were T6 applications

23% of all L1, L2, T2 and T6 applications filed with the LTB during that time were filed using e-File.

- 24.4% of all L1 applications
- 21.5% of all L2 applications
- 41% of all T2 applications
- 28% of all T6 applications

69% of e-File applications were scheduled for a hearing date online: 75% of landlord applications and 26.5% of tenant applications.

19.2% (702) of e-File applications were filed outside of business hours.

Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered

to more than 60 ServiceOntario locations across the province.

Email for Case Inquiries at the Southwestern and Toronto South Offices

In April 2015, the Southwestern and Toronto South offices began accepting case-specific inquiries by email. LTB users dealing with these offices are given an email address to submit information or ask questions about their case.

By November, this service was being offered to applicants and respondents of all eight LTB offices. Each office receives between 10 and 40 inquiries per week. Parties use email to request a summons, provide unavailable dates for adjourned matters, make submissions, and ask questions about the application and hearing process.

For general inquiries about the LTB process or about a tenant or landlord's rights and obligations, people are asked to visit the LTB website or call the call centre.

French-English Lexicon

The LTB developed a French-English lexicon based on the *Residential Tenancies Act*. The lexicon is a quick reference for bilingual staff and members so that they are confident they are always using the right terminology.

Statistics

In 2015-16, the LTB received 80,214 applications. This total includes landlord, tenant and co-op applications. This is an increase of 0.59% or 474 applications compared to 2014-2015.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 61% were to terminate a tenancy because of non-payment of rent.

The number of unresolved applications at the LTB rose to 11,946, an increase over previous years. There are two major factors which contributed to this change:

1. While the number of applications to terminate a tenancy for non-payment of rent remains high, the volume has been declining slightly over the last three years. By contrast, the number of tenant applications, and eviction applications for other reasons, has been increasing. These types of applications are more complex and take longer to resolve, which contributed to the increase in unresolved applications.
2. The LTB has seen a significant turnover in members (adjudicators) this year. Seventeen percent of full-time members left the board as a result of retirements, resignations and members moving to new opportunities before reaching their 10-year cap (In 2006 Ontario limited appointments to ten years). The lengthy appointment process and the time new members need to get up to speed before they can work at full capacity, contributed to the increase in unresolved applications.

Mediations

When both parties involved in an application are interested in working together to resolve the issues in dispute, the LTB provides a mediator. In 2015-2016, approximately 34% of all applications where both parties attended the hearing were resolved through mediated agreements and/or consent orders arrived at during mediation. By comparison, about 70% of the co-op applications that were contested were resolved by mediation during the case management hearing.

A mediated agreement is an agreement between the parties. A consent order is an LTB order based on terms that the parties agree to and is enforceable by the courts.

Reviews and Appeals

A party can ask for a review of an LTB decision if a "serious error" has been made in the order.

In 2015-16, the LTB received 2,891 requests for review, which is 3.62% of total applications received. Of the review requests received, 1,754 were denied after a preliminary review. The other 1,137 were sent to hearing to determine whether there was a serious error.

Table 1: Call Centre

	2015-16	2014-15	2013-14
Calls handled	299,143	286,869	293,351
Average time per call	04:45	05:10	05:08
Average wait time in the queue	05:06	06:46	06:44

Table 2: All Applications Received, Resolved and Outstanding

	2015-16	2014-15	2013-14
Applications Received*	80,214	79,740	81,748
Applications Resolved	78,175	77,148	82,126
Outstanding at end of fiscal year**	11,946	10,286	8,497

* The 2015-16 totals include non-profit co-operative housing eviction applications.

** As one application can result in more than one resolution, the number of applications outstanding at the end of the fiscal year does not necessarily equal the number from the previous year plus receipts, less the number resolved.

Table 3: Landlord/Tenant Applications by Method of Resolution

Resolution Type	2015-16	2014-15	2013-14
Abandoned ¹	2,673	2,668	2,609
Resolved by Mediation ²	11,541	11,926	13,054
Resolved at Hearing ³	48,533	48,107	51,845
Resolved without Hearing ⁴	4,397	4,402	4,851
Review Denied	729	675	596
Withdrawn	7,487	7,369	7,223
Other ⁵	2,413	2,001	1,948
Total	77,773	77,148	82,126

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 4: Co-op Eviction Applications by Method of Resolution

Resolution Type	2015-16	June 1, 2014 - March 31, 2015
No Hearing ¹	91	22
Case Management Hearing Only	236	110
Merit Hearing Only	10	10
Both Case Management Hearing and Merit Hearing	65	16
Total	402	158

¹ application withdrawn/discontinued; parties settled the issues on their own

Table 5: Landlord and Tenant Applications Received by Region

Head Office*	Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
498	8,793	8,395	4,131	10,913	14,271	10,521	11,557	10,663	79,742

* When the system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 6: Co-op Applications Received by Region

Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
39	22	17	65	102	121	48	58	472

Table 7: Landlord Applications Received by Type

Case Type	Application Description	2015-16	2014-15	2013-14
A1	Determine Whether the Act Applies	67 (0.1%)	55 (0.1%)	69 (0.1%)
A2	Sublet or Assignment	234 (0.3%)	263 (0.4%)	241 (0.3%)
A3	Combined Application (usually includes an L1)	4,050 (5.7%)	3,986 (5.6%)	4,209 (5.7%)
A4	Vary Rent Reduction Amount	76 (0.1%)	135 (0.2%)	134 (0.2%)

L1	Terminate & Evict for Non-Payment of Rent	48,940 (68.4%)	49,991 (70.0%)	52,832 (71.2%)
L2	Terminate for Other Reasons & Evict	8,876 (12.4%)	7,983 (11.2%)	7,132 (9.9%)
L3	Termination - Tenant Gave Notice or Agreed	1,338 (1.9%)	1,208 (1.7%)	1,179 (1.6%)
L4	Terminate the Tenancy - Failed Settlement	5,559 (7.8%)	5,632 (7.9%)	5,955 (8.0%)
L5	Rent Increase Above the Guideline	433 (0.6%)	548 (0.8%)	438 (0.6%)
L6	Review of Provincial Work Order	15 (0.0%)	8 (0.0%)	3 (0.0%)
L7	Transfer Tenant to Care Home	6 (0.0%)	0 (0.0%)	4 (0.0%)
L8	Tenant Changed Locks	28 (0.0%)	31 (0.0%)	21 (0.0%)
L9	Application to Collect Rent	1,892 (2.6%)	1,735 (2.4%)	1,800 (2.4%)
	Total	71,514	71,575	74,197

Table 8: Tenant Applications Received by Type

Case Type	Application Description	2015-16	2014-15	2013-14
A1	Determine Whether the Act Applies	64 (0.8%)	59 (0.7%)	23 (0.3%)
A2	Sublet or Assignment	68 (0.8%)	55 (0.7%)	46 (0.6%)
A3	Combined Application	1,586 (19.3%)	1,921 (24.1%)	1,680 (22.3%)
A4	Vary Rent Reduction Amount	0 (0.0%)	0 (0.0%)	1 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	663 (8.1%)	716 (9.0%)	663 (8.8%)
T2	Tenant Rights	3,922 (47.7%)	3,441 (43.2%)	3,441 (43.2%)
T3	Rent Reduction	67 (0.8%)	69 (0.9%)	51 (0.7%)
T4	Failed Rent Increase Above Guideline	0 (0.0%)	1 (0.0%)	4 (0.0%)
T5	Bad Faith Notice of Termination	174 (2.1%)	170 (2.1%)	156 (2.1%)
T6	Maintenance	1,661 (20.2%)	1,516 (19.1%)	1,318 (17.5%)
T7	Suite Meters	23 (0.3%)	9 (0.0%)	9 (0.0%)
	Total	8,228	7,957	7,551

Table 9: Co-op Applications Received by Type

Case Type	Application Description	2015-16	June 1, 2014 - March 31, 2015
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	252 (53.3%)	132 (63.4%)
C1/2	Combined C1 and C2 applications	74 (15.6%)	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	73 (15.4%)	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	5 (1%)	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	68 (14.4%)	14 (7%)
	Total	472	208

Service Standards

The goal is to meet the service standard 80% of the time.

Standard	% of time service standard is met	Average number of days
Applications will be scheduled for a hearing within 25 business days	69%	23.3
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	83%	4.6

tribunalsontario.ca/lrb

[Return to Table of Contents](#)

Social Benefits Tribunal

agree to mediation.						
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	134 days	34%	161 days	59%	170 days	62%

	2016-17		2015-16		2014-15	
Decisions	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	81 days	68%	86 days	76%	68 days	82%
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days.	312 days	17%	300 days	36%	230 days	39%

tribunalsontario.ca/hrto[Return to Table of Contents](#)

Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The LTB is established under the [Residential Tenancies Act \(RTA\)](#).

Operational Highlights

Case Management Hearings – A New Approach to Applications for Rent Increase above the Guideline

In March 2017, the LTB began to hold case management hearings for applications filed by landlords who want to raise rent above the guideline because they have made capital expenditures (renovations, repairs, replacements or additions). The case management hearing provides both sides the opportunity to discuss, and possibly agree on, a fair rent increase.

During a case management hearing, a dispute resolution officer tries to help the two sides reach an agreement. If an agreement is reached, the dispute resolution officer records the terms of the agreement in an order called a consent order. If the application is not settled at the case management hearing, it is scheduled for a full hearing with an adjudicator on another day.

The dispute resolution officers follow a standard case management hearing structure, offering a consistent and transparent approach to resolving above guideline increase applications. Landlords and tenants receive information on how to prepare for the case management hearing together with their notice of hearing.

Emailing Notice of Hearing Packages to Bulk Filers

In March 2017, bulk filers (people filing more than three applications at a time) started receiving their notice of hearing packages by email instead of regular mail. Bulk filers now receive their notices of hearing more quickly

than they did before.

The change was made after consultations and testing with stakeholders. Bulk filers also have the option to pick up the hearing packages at the LTB office.

At the same time, the LTB introduced the Bulk Application Information Sheet. On the sheet, applicants provide information about the applications in the bulk filing, who should receive the packages, and whether they will pick up the Notice of Hearing packages or want them emailed.

Changes to Application Fees

LTB application fees for most applications increased on January 16, 2017 by about 10%. Fees were also introduced for two tenant applications which were previously free, bringing all tenant applications to \$50. Tenant application fees had not increased since the LTB was established in 1998. Landlord application fees were last increased in 2009.

At the same time as the fee increase, the LTB introduced a 10% discount for applications filed through LTB e-File. After the discount was introduced, the number of e-filed applications increased by 65%.

People who have a low income can request that the application filing fees be waived. The income threshold for fee waivers was increased by 10% to offset the fee increase.

New Notice for Victims of Sexual and Domestic Violence to End Tenancy Early

In September, the *Residential Tenancies Act* changed to allow tenants who are victims of sexual and domestic violence to end their tenancy in 28 days if they believe they or a child living with them may be harmed or injured if they don't leave the unit.

As a result of the legislative change, the LTB, in consultation with its Practice Advisory Committee, created a new Tenant's Notice to End my Tenancy Because of Fear of Sexual or Domestic Violence and Abuse (N15), a new Tenant's Statement about Sexual or Domestic Violence and Abuse.

Full-day Hearing Blocks

In the summer of 2016, the LTB began scheduling full day hearing blocks in Scarborough (in the Toronto East office), Whitby and LTB Central office in Mississauga. Before the change, hearings were scheduled in half day hearing blocks at these locations.

Full day hearing blocks increase the likelihood that all scheduled cases will be heard on the day, and not adjourned due to lack of time. For example, parties who want to speak to tenant duty counsel or try mediation will still have enough time for a hearing on the same day.

The change in scheduling will be monitored to make sure it results in more timely dispute resolution.

The Toronto South and Toronto North offices moved to full day hearings in 2015.

Changes to how the LTB Handles Requests to Review an Order

In July 2016, the LTB made the following changes to how it handles requests to review an order.

Preliminary reviews – All preliminary reviews of a [Request to Review an Order](#) are now conducted by a vice chair or other senior LTB member. Previously, any member could conduct this review.

Review hearings – If there is a review hearing, the member who did the preliminary review decides which member will conduct the review hearing within these parameters:

- Requests to review that claim a party was not reasonably able to participate can be heard by any member, including the member who issued the original order.
- Requests to review that ask the LTB to consider new evidence will usually be assigned to the same

member who issued the original order.

- Requests to review that allege a serious error will be heard by the vice chair or senior member.

Previously, the member who made the order could not be assigned to conduct the hearing. The rules now also clarify that although the LTB can initiate a review without receiving a request from one of the parties (rule 29.4), a party cannot request that the LTB exercise this power. A party must request a review using rule 29.1.

Accepting Application-specific Inquiries by Email

In June 2016, all LTB offices started accepting emails from parties about their case. For example, parties can email documents for their application file or respond to LTB requests for dates they are not available, so the LTB can schedule a hearing. Each LTB office has its own email address. LTB staff received 23, 844 emails through those accounts from June 1, 2016 – March 31, 2017.

For many people, email is more convenient than going to an office or waiting to speak to someone on the phone. It also gives people a way to contact the LTB outside of business hours.

The LTB only responds to application-specific inquiries by email. People with general questions about the LTB application and hearing process or the rights and responsibilities of landlords and tenants, should visit the website or call the LTB.

Case Management Hearings Pilot Update

From September 2014 to April 2015, the LTB did a pilot project which required parties to participate in case management hearings (CMHs) for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6) at its Toronto South and Southern offices. The case management hearing provided both sides the opportunity to discuss, and possibly agree on, a solution that wasn't imposed by the adjudicator.

This year, the LTB evaluated the settlement rates and adjournment (rescheduling) rates of cases which went to a CMH. The results showed that more than two thirds of the cases were not resolved at the CMH and required a full merits hearing. At one office, the adjournment rate of CMH cases was higher than the rate for merits hearings. After reviewing the results of the pilot and consulting with stakeholders, the LTB decided to suspend the pilot (in that form) on January 23, 2017.

The LTB is now using the pilot experience to identify the types of applications that are best suited to the CMH process, including those for Above Guideline Increase Applications, which were introduced in March 2017.

LTB e-File

Launched in July 2015, LTB e-File allows landlords and tenants across Ontario to file the most common LTB applications online, anytime from anywhere.

During the 2016-17 fiscal year, the LTB received 20,971 applications online.

- 74.7% (15,674) were L1 applications
- 15.0% (3,153) were L2 applications
- 7.5% (1,573) were T2 applications
- 2.7% (357) were T6 applications

32.2% of the 64,951 L1, L2, T2 and T6 applications filed with the LTB during the year were filed using e-File. This is a nearly 10% increase over last year. In part, the increase can be attributed to the 10% discount for e-filed applications introduced in January 2017.

- 31.7% of all L1 applications (49,488)
- 31.6% of all L2 applications (9,982)
- 41.3% of all T2 applications (3,807)
- 21.3% of all T6 applications (1,674)

72.1% of e-File applications were scheduled for a hearing date online: 77.1% of landlord applications and 28.2%

of tenant applications. This is an increase of 3% over last year.

23.19% (4864) of e-File applications were filed outside of business hours, a 4% increase over last year.

Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered to more than 60 ServiceOntario locations across the province.

LTB e-File Survey

Conducted over three weeks in May 2016, the LTB e-File survey received responses from 112 people, 63 of whom said they used the tool. Of those, 89 % said they found it user-friendly. The most common suggestions for improvement were:

1. More scheduling options
2. The ability to combine applications
3. The ability to e-file additional application types

The LTB will consider these suggestions when it upgrades the LTB e-File tool.

Statistics

In 2016-17, the LTB received 81,432 applications. This total includes landlord, tenant and co-op applications. This is an increase of 1.52% or 1,218 applications compared to 2015-16.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with roughly 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 61% were to terminate a tenancy because of non-payment of rent.

Table 1: Call Centre

	2016-17	2015-16	2014-15
Calls handled	261,154	299,143	286,869
Average time per call	05:19	04:45	05:10
Average wait time in the queue	09:46	05:06	06:46

Table 2: All Applications Received, Resolved and Open at Year End

	2016-17	2015-16	2014-15
Applications Received*	81,432	80,214	79,740
Applications Resolved	78,783	78,175	77,148
Open at year-end**	13,899	11,946	10,286

* The 2015-16 and 2016-17 totals include non-profit co-operative housing eviction applications.

** In a small number of cases, "resolved" applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal

the number from the previous year plus "applications received", less the "applications resolved".

It has come to light that at least 25% of applications that are listed as "open at year-end" in the case management system are in fact resolved. Staff are working to update the status of these applications.

Table 3: Landlord/Tenant Applications by Method of Resolution

Resolution Type	2016-17	2015-16	2014-15
Abandoned ¹	3,168	2,673	2,668
Resolved by Mediation ²	10,735	11,541	11,926
Resolved at Hearing ³	49,901	48,533	48,107
Resolved without Hearing ⁴	3,997	4,397	4,402
Review Denied	903	729	675
Withdrawn	8,264	7,487	7,369
Other ⁵	1,815	2,413	2,001
Total	78,783	77,773	77,148

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 4: Co-op Eviction Applications by Method of Resolution

Resolution Type	2016-17	2015-16	June 1, 2014 - March 31, 2015
No Hearing ¹	133	91	22
Case Management Hearing Only	288	236	110
Merit Hearing Only	25	10	10
Both Case Management Hearing and Merit Hearing	79	65	16
Total	525	402	158

¹ Application withdrawn/discontinued; parties settled the issues on their own

Table 5: Landlord and Tenant Applications Received by Region

Head Office*	Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total

8,774	8,244	3,952	11,680	14,132	11,002	11,609	11,222	8,774	81,432
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* When the system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 6: Co-op Applications Received by Region

Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
51	43	22	62	124	136	64	80	582

Table 7: Landlord Applications Received by Type

Case Type	Application Description	2016-17	2015-16	2014-15
A1	Determine Whether the Act Applies	104 (0.1%)	67 (0.1%)	55 (0.1%)
A2	Sublet or Assignment	264 (0.3%)	234 (0.3%)	263 (0.4%)
A3	Combined Application (usually includes an L1)	4,067 (5.6%)	4,050 (5.7%)	3,986 (5.6%)
A4	Vary Rent Reduction Amount	134 (0.2%)	76 (0.1%)	135 (0.2%)
L1	Terminate & Evict for Non-Payment of Rent	49,489 (67.6%)	48,940 (68.4%)	49,991 (70.0%)
L2	Terminate for Other Reasons & Evict	9,987 (13.6%)	8,876 (12.4%)	7,983 (11.2%)
L3	Termination - Tenant Gave Notice or Agreed	1,439 (2.0%)	1,338 (1.9%)	1,208 (1.7%)
L4	Terminate the Tenancy - Failed Settlement	5,478 (7.5%)	5,559 (7.8%)	5,632 (7.9%)
L5	Rent Increase Above the Guideline	575 (0.8%)	433 (0.6%)	548 (0.8%)
L6	Review of Provincial Work Order	3 (0.0%)	15 (0.0%)	8 (0.0%)
L7	Transfer Tenant to Care Home	1 (0.0%)	6 (0.0%)	0 (0.0%)
L8	Tenant Changed Locks	37 (0.0%)	28 (0.0%)	31 (0.0%)
L9	Application to Collect Rent	1,628 (2.2%)	1,892 (2.6%)	1,735 (2.4%)
	Total	73,188	71,514	71,575

Table 8: Tenant Applications Received by Type

Case Type	Application Description	2016-17	2015-16	2014-15
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A1	Determine Whether the Act Applies	49 (0.6%)	64 (0.8%)	59 (0.7%)
A2	Sublet or Assignment	55 (0.7%)	68 (0.8%)	55 (0.7%)
A3	Combined Application	1,634 (19.8%)	1,586 (19.3%)	1,921 (24.1%)
A4	Vary Rent Reduction Amount	0 (0.0%)	0 (0.0%)	0 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	732 (8.9%)	663 (8.1%)	716 (9.0%)
T2	Tenant Rights	3,807 (46.1%)	3,922 (47.7%)	3,441 (43.2%)
T3	Rent Reduction	68 (0.8%)	67 (0.8%)	69 (0.9%)
T4	Failed Rent Increase Above Guideline	6 (0.0%)	0 (0.0%)	1 (0.0%)
T5	Bad Faith Notice of Termination	211 (2.6%)	174 (2.1%)	170 (2.1%)
T6	Maintenance	1,675 (20.3%)	1,661 (20.2%)	1,516 (19.1%)
T7	Suite Meters	7 (0.0%)	23 (0.3%)	9 (0.0%)
	Total	8,244	8,228	7,957

Table 9: Co-op Applications Received by Type

Case Type	Application Description	2016-17	2015-16	June 1, 2014 - March 31, 2015
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	274 (47%)	252 (53.3%)	132 (63.4%)
C1/2	Combined C1 and C2 applications	102 (17.5%)	74 (15.6%)	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	93 (16%)	73 (15.4%)	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	3 (0.01%)	5 (1%)	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a	110 (18.9%)	68 (14.4%)	14 (7%)

	Settlement/Order			
	Total	525	472	208

Service Standards

SJTO aims to meet its service standards 100% of the time. However, this is not always possible, and our commitment is to fulfil these standards at least 80% of the time.

	2016-17		2015-16		2014-15	
Standard	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Applications will be scheduled for a hearing within 25 business days	26.6 days	52%	23.3 days	69%	21 days	78%
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	5.2 days	78%	4.6 days	83%	3.6 days	89%

tribunalsontario.ca/lrb

[Return to Table of Contents](#)

Social Benefits Tribunal

The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	181 days	38%	175 days	34%	161 days	59%
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* HRTO's increase in applications has impacted the numbers of days.

Table 30: Comparison of HRTO service standards for decisions from the years 2015 to 2018

	2017-18		2016-17		2015-16	
Decisions	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	63 days	81%	81 days	68%	86 days	76%
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days. *	235 days	33%	312 days	17%	300 days	36%

* The Tribunal issued a total of 24 Decisions in cases where the decision release standard was 180 days. Of those 24 Decisions, 8 met the standard (33%) while 16 did not. There are various reasons why those 16 decisions exceeded the standard, including the number of parties involved in the hearing, the complexity of the issues, the length of the hearings and amount of evidence heard.

tribunalsontario.ca/hrto

[Return to Table of Contents](#)

Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the [Residential Tenancies Act](#) (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The LTB is established under the [Residential Tenancies Act](#) (RTA).

Operational Highlights

Case Management Hearings

Since March 2017, the LTB has been holding case management hearings for applications filed by landlords to increase rent above the guideline based on capital expenditures (for renovations, repairs, replacements or additions). During a case management hearing, a dispute resolution officer helps the two sides try to reach an agreement on a fair rent increase. If an agreement is reached, the dispute resolution officer records the terms of the agreement in a consent order. If the application is not settled, it is scheduled for a full hearing before an adjudicator on another day.

Case management hearings have proven to be an effective way of resolving these applications, with an 81% settlement rate at the end of the year. The LTB is exploring the use of case management hearings in the future for other application types.

Accepting Application-Specific Inquiries by Email

In June 2016, all LTB offices started accepting email inquiries from parties about their applications. For example, parties can email required documents for their application file or respond to LTB requests for dates they are not available, so the LTB can schedule a hearing. Each LTB office has its own email address. LTB staff received

45,581 emails through those accounts from April 1, 2017 to March 31, 2018.

For many people, email is more convenient than going to an office or waiting to speak to someone on the phone. It also gives people a way to contact the LTB outside of business hours.

The LTB responds to only application-specific inquiries by email. People with general questions about the LTB application and hearing process or the rights and responsibilities of landlords and tenants, should visit the LTB website, call the LTB, or visit Steps to Justice, an online resource with legal information at stepstojustice.ca.

LTB e-File

Launched in July 2015, LTB e-File allows landlords and tenants across Ontario to file the most common LTB applications online, at anytime from anywhere.

During the 2017-18 fiscal year, the LTB received 31,002 applications online.

- 76.9% (23,827) were L1 applications
- 17.4% (5,402) were L2 applications
- 3.3% (1,026) were T2 applications
- 2.4% (747) were T6 applications

Of the 63,649 L1, L2, T2 and T6 applications filed with the LTB during the year, 47.1% were filed using e-File. This is a nearly 15% increase over last year. In part, the increase can be attributed to the 10% discount for e-filed applications introduced in January 2017.

- 50.0% of all L1 applications (47,595)
- 47.3% of all L2 applications (11,404)
- 36.2% of all T2 applications (2,832)
- 41.0% of all T6 applications (1,818)

An average of 74% of e-filed applications were also scheduled for a hearing date online; 76.2% of landlord applications and 34.9% of tenant applications. This is an increase of nearly 7% over last year. Approximately 18% of e-filed applications were filed outside of business hours. Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered to more than 60 ServiceOntario locations across the province.

Online Dispute Resolution (ODR) – Prototype

Starting in April 2017, an online dispute resolution (ODR) prototype was developed and tested with internal and external stakeholders. The aim of the prototype development was to assess whether a tool may be developed in the future to help tenants and landlords in Ontario to avoid disputes, resolve disputes without the need for formal legal processes, and enhance alternate portals to LTB services. The goal is for the LTB to provide people with the right online negotiation and mediation tools and processes to resolve disputes as they arise, without the need to travel and appear in-person at a LTB hearing.

Initial testing indicated that both landlords and tenants feel that ODR could be useful as a way of resolving disputes without the need for a formal, in-person hearing. Over the next few years, the LTB will consider implementing an online platform as part of its range of dispute resolution services.

LTB London Office e-File Pilot

In November 2017, landlords and tenants at the LTB Southwest office in London were able to e-File the four most common LTB applications (L1, L2, T2, T6) using a public computer, the "LTB Service Kiosk". LTB e-File allows clients to submit their application and supporting documents, and receive a hearing date at the same time.

People also had the option to leave their application in a secure drop-box at the front counter, rather than waiting to speak with a member of staff at the front counter. As part of this pilot, applications dropped off in-person were no longer processed on the spot; all paper applications were processed in the order they were received.

The goals of the pilot were to increase self-service options for the public, give more people access to LTB e-File, ensure that applications are processed in the order they are received and enable the LTB to redirect staff resources to where they are needed most.

LTB Central Office Electronic Case Files Pilot

Starting January 1, 2018, the LTB Central (Mississauga) office no longer creates paper case files for its 2018 applications. Rather than creating a paper file, an electronic hearing brief is created for the LTB to use during the hearing.

The goal of the pilot is to determine whether the use of electronic case files increases the efficiency and effectiveness of file and hearing room management. The pilot is anticipated to run until June 2018, at which time the LTB will evaluate whether or not to implement this process at other LTB regional offices.

Early Resolution Discussions in the Rexdale Community of Toronto

In partnership with the Rexdale Community Hub (the Hub), the Toronto North LTB office is testing an early dispute resolution process. When landlords file L2 applications that involve tenants who live in the Rexdale community, the early resolution discussion process will be an available option to resolve the application. The pilot started on January 22, 2018.

The goal of this process is to resolve tenancy problems that might lead to eviction without going to an LTB hearing. Tenants and landlords will have an early resolution discussion at the Hub where various community resources are available to assist parties. An LTB dispute resolution officer will guide the discussion.

If the parties resolve all the issues in the application at the early resolution discussion, the dispute resolution officer will draft a mediated agreement or a consent order that sets out what the parties have agreed to and close the application. If the parties don't resolve all the tenancy issues, the application will go to an LTB hearing before an adjudicator without delaying the usual hearing date.

Benefits of the early resolution discussion process include:

- takes place closer to home; no need to travel to the LTB Toronto North office
- access to on-site community based social services at the Hub
- no application filing fee if the parties resolve all their tenancy issues at the early resolution discussion
- assists landlords to work with vulnerable tenants to maintain their housing

New LTB Service Standards

Recognizing that some application types take longer to resolve than others, the LTB introduced new service standards on December 7, 2017. The standards give tenants and landlords a better idea of how long it will take to resolve their case.

The new service standards include:

- Applications to evict a tenant for non-payment of rent and for applications to collect rent the tenant owes (L1, L9):
 - Applications will be scheduled for a hearing within 25 business days.
 - Decisions will be issued within 4 business days of the conclusion of the final hearing.
- All other applications (excluding L5 – Application for an Above Guideline Increase and A4s – Application to Vary the Amount of a Rent Reduction):
 - Applications will be scheduled for a hearing within 30 business days.
 - Decisions will be issued within 10 business days of the conclusion of the final hearing.

In its previous standards, the LTB committed to schedule hearings within 25 business days and issue decisions within 5 days, 80% of the time.

Changes to the *Residential Tenancies Act*

A number of amendments to the *Residential Tenancies Act* were made this year. As a result of these changes, the LTB updated information on its website, brochures, forms and interpretation guidelines. A number of these changes are noted below:

Changes to Forms

- L4: Application to End a Tenancy – Tenant Failed to Meet Conditions of a Settlement or Order. There are now two versions of the form:
 - Use Form L4-A if the mediated agreement or order that was not complied with was based on an L1 or L2 application filed on or before December 31, 2017.
 - Use Form L4-B if the mediated agreement or order that was not complied with was based on an L1 or L2 application filed on or after January 1, 2018.
- L5: Application for an Above Guideline Increase
- T5: Tenant Application – Landlord Gave a Notice of Termination in Bad Faith
- N5: Notice to End your Tenancy for Interfering with Others, Damage or Overcrowding
- N5C: Notice by the Co-op to End your Occupancy for Interfering with Others, Damage or Overcrowding
- N6: Notice to End your Tenancy for Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit
- N12: Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit

Statistics

In 2017-18, the LTB received 80,791 applications. This total includes landlord, tenant and co-op applications. This volume has remained relatively consistent when compared year over year.

The ratio of landlord to tenant applications has also remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with roughly 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 59% were to terminate a tenancy and evict because of non-payment of rent.

Table 31: Comparison of the number of LTB applications from the years 2015 to 2018

	2017-18	2016-17	2015-16
Applications Received	80,791	81,432	80,214
Applications Resolved	78,744	78,783	78,175
Open at year-end *	12,944	13,899	11,946

* In a small number of cases, "resolved" applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received", less the "applications resolved". With the adoption of new service standards the average application lifecycle is 8 weeks, which represents an active caseload of approximately 12,000 applications.

Table 32: Comparison of the methods of resolution for LTB landlord/tenant applications from the years 2015 to 2018

Resolution Type	2017-18	2016-17	2015-16
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Abandoned ¹	2,805	3,168	2,673
Resolved by Mediation ²	10,804	10,735	11,541
Resolved at Hearing ³	49,776	49,901	48,533
Resolved without Hearing ⁴	3,908	3,997	4,397
Review Denied	1,010	903	729
Withdrawn	8,155	8,264	7,487
Other ⁵	1,802	1,815	2,413
Total	78,260	78,783	77,773

¹ Ordered by hearing abandoned

² Mediated; ordered by hearing mediated

³ Ordered by hearing contested or uncontested; ordered by review

⁴ Ordered ex parte; ordered by section 206 agreement

⁵ Discontinued; order voided; ordered amended; amendment denied

Table 33: Comparison of the methods of resolution for LTB co-op eviction applications from the years 2015 to 2018

Resolution Type	2017-18	2016-17	2015-16
No Hearing *	103	133	91
Case Management Hearing Only	268	288	236
Merit Hearing Only	22	25	10
Both Case Management Hearing and Merit Hearing	91	79	65
Total	484	525	402

* Application withdrawn/discontinued; parties settled the issues on their own.

Table 34: Comparison of the number of LTB landlord/tenant applications received by region

Head Office *	Central	East	North	South	South West	Toronto East	Toronto North	Toronto South	Total
1,300	9,005	8,477	4,088	10,969	13,777	10,731	11,380	10,522	80,249

* When the case management system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 35: Comparison of the number of LTB co-op applications received by region

Central	East	North	South	South	Toronto	Toronto	Toronto	Total
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				West	East	North	South	
50	44	33	91	116	102	55	51	542

Table 36: Comparison of the number and types of LTB landlord applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
A1	Determine Whether the Act Applies	96 (0.1%)	104 (0.1%)	67 (0.1%)
A2	Sublet or Assignment	332 (0.5%)	264 (0.3%)	234 (0.3%)
A3	Combined Application (usually includes an L1)	3,878 (5.3%)	4,067 (5.6%)	4,050 (5.7%)
A4	Vary Rent Reduction Amount	220 (0.3%)	134 (0.2%)	76 (0.1%)
L1	Terminate & Evict for Non-Payment of Rent	47,595 (65.6%)	49,489 (67.6%)	48,940 (68.4%)
L2	Terminate for Other Reasons & Evict	11,404 (15.7%)	9,987 (13.6%)	8,876 (12.4%)
L3	Termination - Tenant Gave Notice or Agreed	1,622 (2.2%)	1,439 (2.0%)	1,338 (1.9%)
L4	Terminate the Tenancy - Failed Settlement	5,552 (7.7%)	5,478 (7.5%)	5,559 (7.8%)
L5	Rent Increase Above the Guideline	559 (0.8%)	575 (0.8%)	433 (0.6%)
L6	Review of Provincial Work Order	5 (0.0%)	3 (0.0%)	15 (0.0%)
L7	Transfer Tenant to Care Home	1 (0.0%)	1 (0.0%)	6 (0.0%)
L8	Tenant Changed Locks	29 (0.0%)	37 (0.0%)	28 (0.0%)
L9	Application to Collect Rent	1,218 (1.7%)	1,628 (2.2%)	1,892 (2.6%)
	Total	72,511	73,206	71,514

Table 37: Comparison of the number and types of LTB tenant applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
A1	Determine Whether the Act Applies	91 (1.2%)	49 (0.6%)	64 (0.8%)
A2	Sublet or Assignment	57 (0.7%)	55 (0.7%)	68 (0.8%)
A3	Combined Application	1,798 (23.2%)	1,634 (19.8%)	1,586 (19.3%)

A4	Vary Rent Reduction Amount	2 (0.0%)	0 (0.0%)	0 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	765 (9.9%)	732 (8.9%)	663 (8.1%)
T2	Tenant Rights	2,832 (36.6%)	3,807 (46.1%)	3,922 (47.7%)
T3	Rent Reduction	71 (0.9%)	68 (0.8%)	67 (0.8%)
T4	Failed Rent Increase Above Guideline	3 (0.0%)	6 (0.0%)	0 (0.0%)
T5	Bad Faith Notice of Termination	295 (3.8%)	211 (2.6%)	174 (2.1%)
T6	Maintenance	1,818 (23.5%)	1,675 (20.3%)	1,661 (20.2%)
T7	Suite Meters	6 (0.1%)	7 (0.0%)	23 (0.3%)
	Total	7,738	8,244	8,228

Table 38: Comparison of the number and types of LTB co-op applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	247 (46%)	274 (47%)	252 (53.3%)
C1/2	Combined C1 and C2 applications	114 (21%)	102 (17.5%)	74 (15.6%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	86 (16%)	93 (16%)	73 (15.4%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	6 (1%)	3 (0.01%)	5 (1%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	89 (16%)	110 (18.9%)	68 (14.4%)
	Total	542	582	472

Service Standards

The LTB has historically committed to schedule hearings within 25 business days of the date the application is filed and issue decisions within five days after the end of the hearing, 80% of the time. As highlighted earlier in this report, in December 2017, the LTB introduced new service standards to give landlords and tenants a better idea of how long it will take to resolve their case. The LTB will report against the new service standards going forward from 2018-19.

Table 39: Comparison of LTB service standards for hearings from the years 2015 to 2018

	2017-18		2016-17		2015-16	
Standard	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Applications will be scheduled for a hearing within 25 business days	28 days	49%	26.6 days	52%	23.3 days	69%
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	5.1 days	81%	5.2 days	78%	4.6 days	83%

Call Centre

The LTB is mandated by the *Residential Tenancies Act* to provide information to landlords and tenants about their rights and obligations under the *Act*. This obligation is met, in part, through the LTB call centre.

Table 40: Comparison of LTB call centre data from the years 2015 to 2018

	2017-18	2016-17	2015-16
Calls handled	272,719	261,154	299,143
Average time per call	04:57	05:19	04:45
Average wait time in the queue	09:04	09:46	05:06

days of the date the application is ready to proceed to hearing						
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* Whether standard has been met or not.

HRTO Service Standards (Decisions)

	2018-19		2017-18		2016-17	
Decisions	Avg no. of days	% of time standard is met	Avg no. of days	% of time standard is met	Avg no. of days	% of time standard is met
Decisions for hearings which take 3 days or less will be issued within 90 days	70	76%	63	81%	81	68%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	275	29%	235	33%	312	17%

* Whether standard has been met or not.

Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the [Residential Tenancies Act \(RTA\)](#).

The LTB's authority and jurisdiction are derived from the [Residential Tenancies Act](#).

Operational Highlights

To ensure fairness and equity, in September 2018, the LTB began processing applications according to the date received, regardless of whether the application was dropped off in-person at an LTB office or received by mail or by fax.

In October 2018, a new instructional video, [E-File with the Landlord and Tenant Board: A Video](#) was posted to the LTB website. The step-by-step, animated video clarifies the electronic filing process, especially for first-time users.

The [LTB Rules of Procedure](#) were extensively reformatted with changes that included: allowing the use of a declaration instead of an affidavit, allowing parties to give each other certain documents by email where they both agree and removing the requirement that co-operatives serve applications.

In fall 2018, the LTB created a small team of staff dedicated to managing phone inquiries which resulted in greater efficiency. To provide better service to the public, information about the “best times to call” were also posted on the [website](#).

Landlord and Tenant Board Applications

	2018-19	2017-18	2016-17
Applications received*	82,095	80,791	81,432
Applications resolved**	79,476	78,744	78,783
Open at year-end***	14,726	12,944	13,899

* The totals include non-profit co-operative housing eviction applications.

** The majority of applications - 61% - are resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), through mediation - 13.5% (mediated or ordered by hearing mediated) and through withdrawals - 12%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received”, less the “applications resolved”.

Landlord Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
A1	Determine whether the act applies	126 (0.2%)	96 (0.1%)	104 (0.1%)
A2	Sublet or assignment	378 (0.5%)	332 (0.5%)	264 (0.3%)
A3	Combined application (usually includes an L1)	3,632 (4.9%)	3878 (5.3%)	4,067 (5.6%)
A4	Vary rent reduction amount	173 (0.2%)	220 (0.3%)	134 (0.2%)
L1	Terminate & evict for non-payment of rent	46,043 (62.4%)	47,595 (65.6%)	49,489 (67.6%)
L2	Terminate for other reasons and evict	13,945 (18.9%)	11,404 (15.7%)	9,987 (13.6%)
L3	Termination - tenant gave notice or agreed	1,711 (2.3%)	1,622 (2.2%)	1,439 (2.0%)
L4	Terminate the tenancy - failed settlement	5,571 (7.6%)	5,552 (7.7%)	5,478 (7.5%)
L5	Rent increase above the guideline	717 (1.0%)	559 (0.8%)	575 (0.8%)

L6	Review of provincial work order	4 (0.0%)	5 (0.0%)	3 (0.0%)
L7	Transfer tenant to care home	5 (0.0%)	1 (0.0%)	1 (0.0%)
L8	Tenant changed locks	39 (0.1%)	29 (0.0%)	37 (0.0%)
L9	Application to collect rent	1,394 (1.9%)	1,218 (1.7%)	1,628 (2.2%)
Total		73,738	72,511	73,206

Tenant Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
A1	Determine whether the act applies	116(1.4%)	91 (1.2%)	49 (0.6%)
A2	Sublet or assignment	66 (0.8%)	57 (0.7%)	55 (0.7%)
A3	Combined application	1,780 (21.3%)	1,798 (23.2%)	1,634 (19.8%)
A4	Vary rent reduction amount	1 (0.0%)	2 (0.0%)	0 (0.0%)
T1	Rent rebate (e.g. illegal rent)	863 (10.3%)	765 (9.9%)	732 (8.9%)
T2	Tenant rights	3,053 (36.5%)	2,832 (36.6%)	3,807 (46.1%)
T3	Rent reduction	148 (1.8%)	71 (0.9%)	68 (0.8%)

T4	Failed rent increase above guideline	1 (0.0%)	3 (0.0%)	6 (0.0%)
T5	Bad faith notice of termination	355 (4.2%)	295 (3.8%)	211 (2.6%)
T6	Maintenance	1,970 (23.6%)	1,818 (23.5%)	1,675 (20.3%)
T7	Suite meters	4 (0.1%)	6 (0.1%)	7 (0.0%)
Total		8,357	7,738	8,244

Co-op Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	251 (45%)	247 (46%)	274 (47%)
C1/2	Combined C1 and C2 applications	118 (21%)	114 (21%)	102 (17.5%)
C2	Application to end the occupancy of the member unit and evict the member	107 (19%)	86 (16%)	93 (16%)

C3	Application to end the occupancy and evict the member - based on the member's consent or notice	6 (1%)	6 (1%)	3 (0.01%)
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	81 (14%)	89 (16%)	110 (18.9%)
Total		563	542	582

Call Centre

	2018-19	2017-18	2016-17
Calls handled	242,892	272,719	261,154
Average time per call	4:48	4:57	5:19
Average wait time in the queue	15:18	9:04	9:46

Service Standards

The LTB changed its service standards on December 31, 2017. Recognizing that the time to schedule, hear and issue an order is impacted by the complexity of the application, the LTB has shifted from a single service standard to two categories:

LTB Service Standards*

	2018-19	2017-18
L1 and L9 applications will be scheduled for a hearing within 25 business days	35% (31.8 days)	54% (26.1 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4	70% (4.6 days)	78% (4 days)

business days at the conclusion of the final hearing		
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	37% (36.7 days)	53% (31.2 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	79% (9.5 days)	82% (7.6 days)

Request for Reviews

A party can ask for a review of an LTB decision if they believe a “serious error” has been made in the LTB’s order.

	2018-2019
Total number of requests for review	3,595
Denied requests for review	844
Requests for review sent to hearing	2,751

Ontario Special Education Tribunals – English and French

The Ontario Special Education Tribunals (OSETs) hear appeals from parents who have been unable to resolve disputes with school boards with respect to the identification and placement of exceptional pupils.

The OSETs jurisdiction and authority are derived from the [Education Act](#).

Operational Highlights

In 2018-19, the OSETs began processing appeals electronically to ensure efficiency of service and to reduce costs.

Statistics

In 2018-19, the Ontario Special Education Tribunal (English) received four appeals. One settled through mediation/adjudication, one was closed because it was incomplete, one

No Grounds	2%	2%	2%	2%
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Table 5: HRTO Performance Measures

Table 5: HRTO Performance Measures

Hearings and Mediation	2019-2020 % of time standard is met	2018-2019 % of time standard is met	2017-2018 % of time standard is met	2016-2017 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	27%	62%	84%	92%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	7%	35%	38%	34%
Decisions for hearings which take 3 days or less will be issued within 90 days	76%	76%	81%	68%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	50%	29%	33%	17%

[Return to Top](#)

Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act* (RTA). The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

In 2019-20, e-File became the most popular option to file an application. The LTB received 45,899 applications through e-File, which accounted for more than half of all applications filed. The e-File system allows landlords and tenants across Ontario to file the most common LTB applications online at any time, from anywhere, and at a discounted fee.

In August 2019, the LTB revised the processing and scheduling protocol for Above Guideline Increase (AGI) applications in order to improve the wait time to schedule a hearing. A notice of Case Management Hearing is now issued immediately following processing.

In December 2019, the LTB expanded, refreshed and positioned the [Frequently Asked Questions \(FAQ\)](#) section more prominently on its website to promote visibility of key information and enhance public use. The [Contact the LTB section](#) was also updated to capture more accurate contact centre wait times, and links to information guides were added.

The LTB engaged in three intensive adjudicator recruitment efforts in 2019-20 to increase and improve service delivery. The most recent round of recruitment focused on filling remaining gaps by recruiting more bilingual members and additional members for regions with the most critical adjudicator shortages.

The LTB implemented several initiatives in 2019-20 to help streamline its processes and address critical challenges. These included initiatives that allowed certain services to be performed by members electronically such as routine adjudication requests, order processing and issuance. Additionally, changes were made to the scheduling model that would allow the LTB to assess needs and allocate member resources more effectively across all regions of Ontario.

On January 9, 2020, the Ontario Ombudsman announced an investigation into delays at the LTB. The Ombudsman noted that "the investigation will focus on whether the government is taking adequate steps to address the delays and backlogged cases". Although the terms of some adjudicators were recently extended and a few more have been recruited, the investigation will also look into other potential systemic factors that may be contributing to the problem, such as relevant legislation, training, funding and technology. Tribunals Ontario and the LTB are fully cooperating with the Ombudsman's office and look forward to the Ombudsman's recommendations.

Statistics

Table 1: LTB Applications

Table 1: LTB Applications

Application	2019-2020	2018-2019	2017-2018
Applications Received*	80,874	82,095	80,791
Applications Resolved**	72,064	79,476	78,744
Active Cases at Year-End***	22,803	14,726	12,944

* The totals do not include non-profit co-operative housing eviction applications.

** In 2019-20 the majority of applications – 56.9% – are resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), through mediation – 14.2% (mediated or ordered by hearing mediated), and through withdrawals – 14.6%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g. when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2019-2020	2018-2019	2017-2018	2016-2017
A1	Determine whether the act applies	102	126	96	104
A2	Sublet or assignment	491	378	332	264
A3	Combined application (usually includes an L1)	2,986	3,362	3,878	4,067
A4	Vary rent reduction amount	86	173	220	134
L1	Terminate & evict for non-payment of rent	44,621	46,043	47,595	49,489
L2	Terminate for other reasons and evict	15,732	13,945	11,404	9,987
L3	Termination – tenant gave notice or agreed	1,877	1,711	1,622	1,439
L4	Terminate the tenancy – failed settlement	5,156	5,571	5,552	5,478
L5	Rent increase above the guideline	758	717	559	575
L6	Review of provincial work order	1	4	5	3
L7	Transfer tenant to care home	1	5	1	1
L8	Tenant changed locks	41	39	29	37
L9	Application to collect rent	900	1,394	1,218	1,628
Total		72,752	73,738	72,511	73,206

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2019-2020	2018-2019	2017-2018	2016-2017
A1	Determine whether the act applies	85	116	91	49

A2	Sublet or assignment	62	66	57	55
A3	Combined application	1,610	1,780	1,798	1,634
A4	Vary rent reduction amount	0	1	2	0
T1	Rent rebate (e.g. illegal rent)	884	863	765	732
T2	Tenant rights	3,072	3,053	2,832	3,807
T3	Rent reduction	78	148	71	68
T4	Failed rent increase above guideline	4	1	3	6
T5	Bad faith notice of termination	408	355	295	211
T6	Maintenance	1,914	1,970	1,818	1,675
T7	Suite meters	5	4	6	7
Total		8,122	8,357	7,738	8,244

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2019-2020	2018-2019	2017-2018	2016-2017
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	217	251	247	274
C1/2	Combined C1 and C2 applications	116	118	114	102
C2	Application to end the occupancy of the member unit and evict the member	141	107	86	93
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	6	6	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/ order	91	81	89	110
Total		568	563	542	582

Table 5: Call Centre

Table 5: Call Centre

Calls	2019-2020	2018-2019	2017-2018	2016-2017
Calls handled	201,871	242,892	272,719	261,154
Average time per call	4:37	4:48	4:57	5:19
Average wait time in the queue	17:36	15:18	9:04	9:46

Table 6: LTB Performance Measures

Table 6: LTB Performance Measures

Performance Measure	2019-2020	2018-2019	2017-2018
L1 and L9 applications will be scheduled for a hearing within 25 business days	15% (45.6 days)	35% (31.8 days)	54% (26.1 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	58% (5.8 days)	70% (4.6 days)	78% (4 days)
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	16% (52.7 days)	37% (36.7 days)	53% (31.2 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	71% (11.7 days)	79% (9.5 days)	82% (7.6 days)

Table 7: Requests for Reviews

Table 7: Requests for Reviews

Requests	2019-2020	2018-2019
Total number of requests for review	3,238	3,595
Denied requests for review	833	844
Requests for review sent to hearing	2,405	2,751

[Return to Top](#)

Licence Appeal Tribunal

The Licence Appeal Tribunal (LAT) adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from the following:

- *Accessibility for Ontarians with Disabilities Act*
- *Alcohol, Cannabis and Gaming Regulation and Public Protection Act*
- *Bailiffs Act*
- *Building Code Act*
- *Cannabis Licence Act*
- *Child Care and Early Years Act*
- *Child, Youth and Family Services Act*
- *Collection and Debt Settlement Services Act*
- *Condominium Act*
- *Condominium Management Services Act*
- *Consumer Protection Act*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act*
- *Film Classification Act*
- *Funeral, Burial and Cremation Services Act*
- *Gaming Control Act*
- *Highway Traffic Act*
- *Horse Racing Licence Act*
- *Insurance Act*
- *Intercountry Adoption Act*
- *Liquor Control Act*
- *Liquor Licence Act*

Record of Offences	2%	2%	2%	2%
Receipt of Public Assistance	1%	2%	2%	2%
No Grounds	1%	2%	2%	2%

Table 5: HRTO Performance Measures

Table 5: HRTO Performance Measures

Hearings and Mediation	2020-2021 % of time standard is met	2019-2020 % of time standard is met	2018-2019 % of time standard is met	2017-2018 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	26%	27%	62%	84%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	11%	7%	35%	38%
Decisions for hearings which take 3 days or less will be issued within 90 days	42%	76%	76%	81%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	27%	50%	29%	33%

[Return to Top](#)

Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

In July 2020, the Ontario Legislature made a number of amendments to the RTA and one of its regulations. These changes required changes to the LTB's rules and procedures, including creating new or amending existing LTB forms, brochures, practice directions and interpretation guidelines.

Operational Highlights

The LTB implemented several initiatives in 2020-2021 to streamline its processes and address critical challenges.

On March 19, 2020, the Ontario Superior Court issued an order suspending evictions. The LTB suspended hearings related to eviction applications unless the matter related to an urgent issue such as an illegal act or a serious impairment of safety and pivoted to conducting these hearings by telephone and in writing.

When hearings for eviction applications resumed on August 1, 2020, the LTB implemented a videoconference hearing model, amended all of its processes and established the necessary infrastructure.

To support these initiatives, the LTB is committed to ongoing engagement with stakeholders to solicit feedback and input. Since August 2020, the LTB has been meeting regularly with stakeholders on changes to rules and processes, in accordance with Tribunals Ontario Consultation Policy. The LTB has also received written submissions in response to two rounds of stakeholder engagement on Bill 184 Protecting Tenants and Strengthening Community Housing Act.

To support timely and responsive service, the LTB has focused on building up its adjudicator complement and now has

more adjudicators than ever before. As of March 31, 2021, there were 37 full time adjudicators and 39 part time adjudicators.

Statistics

Table 1: LTB Applications

Table 1: LTB Applications

Application	2020-2021	2019-2020	2018-2019
Applications Received*	48,422	80,874	82,095
Applications Resolved**	35,983	72,064	79,476
Active Cases at Year-End***	34,731	22,803	14,726

Notes:

* The totals do not include non-profit co-operative housing eviction applications.

** In 2020-2021 the majority of applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review) – 40%, through mediation (mediated or ordered by hearing mediated) – 14%, and through withdrawals – 30%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2020-2021	2019-2020	2018-2019	2017-2018
A1	Determine whether the act applies	96	102	126	96
A2	Sublet or assignment	383	491	378	332
A3	Combined application (usually includes an L1)	1,065	2,986	3,362	3,878
A4	Vary rent reduction amount	109	86	173	220
L1	Terminate & evict for non-payment of rent	24,481	44,621	46,043	47,595
L2	Terminate for other reasons and evict	11,031	15,732	13,945	11,404
L3	Termination – tenant gave notice or agreed	1,391	1,877	1,711	1,622
L4	Terminate the tenancy – failed settlement	1,551	5,156	5,571	5,552
L5	Rent increase above the guideline	404	758	717	559
L6	Review of provincial work order	1	1	4	5
L7	Transfer tenant to care home	6	1	5	1
L8	Tenant changed locks	25	41	39	29
L9	Application to collect rent	1,104	900	1,394	1,218

Total	41,647	72,752	73,738	72,511
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Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2020-2021	2019-2020	2018-2019	2017-2018
A1	Determine whether the act applies	64	85	116	91
A2	Sublet or assignment	74	62	66	57
A3	Combined application	583	1,610	1,780	1,798
A4	Vary rent reduction amount	1	0	1	2
T1	Rent rebate (e.g., illegal rent)	718	884	863	765
T2	Tenant rights	3,145	3,072	3,053	2,832
T3	Rent reduction	68	78	148	71
T4	Failed rent increase above guideline	4	4	1	3
T5	Bad faith notice of termination	316	408	355	295
T6	Maintenance	1,795	1,914	1,970	1,818
T7	Suite meters	7	5	4	6
Total		6,775	8,122	8,357	7,738

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2020-2021	2019-2020	2018-2019	2017-2018
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	88	217	251	247
C1/2	Combined C1 and C2 applications	32	116	118	114
C2	Application to end the occupancy of the member unit and evict the member	73	141	107	86
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	3	6	6
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/ order	22	91	81	89
Total		218	568	563	542

Table 5: Call Centre

Table 5: Call Centre

Calls	2020-2021	2019-2020	2018-2019	2017-2018
Calls handled	197,927	201,871	242,892	272,719
Average time per call	5:03	4:37	4:48	4:57
Average wait time in the queue	15:57	17:36	15:18	9:04

Table 6: LTB Performance Measures

Table 6: LTB Performance Measures

Performance Measure	2020-2021*	2019-2020	2018-2019
L1 and L9 applications will be scheduled for a hearing within 25 business days	1% (131.7 days)	15% (45.6 days)	35% (31.8 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	21% (22.4 days)	58% (5.8 days)	70% (4.6 days)
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	16% (108 days)	16% (52.7 days)	37% (36.7 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	60% (28.8 days)	71% (11.7 days)	79% (9.5 days)

Note:

*LTB suspended most hearings related to eviction applications during the early months of the COVID-19 pandemic resulting in delays in the scheduling of hearings. Further, COVID-19 halted in-person hearings resulting in a transition period until a videoconferencing model was established for proceedings. LTB made a number of changes to address delays including establishing a process for an expedited hearing, updating a scheduling plan, and actively engaging in the recruitment of adjudicators to assist with the caseload volume.

Table 7: Requests for Reviews

Table 7: Requests for Reviews

Requests	2020-2021	2019-2020
Total number of requests for review	1,370	3,238
Denied requests for review	260	833
Requests for review sent to hearing	1,110	2,405

[Return to Top](#)

Licence Appeal Tribunal

The Licence Appeal Tribunal (LAT) adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from the following:

Note:

*Some applications allege discrimination on more than one ground, so the total may exceed 100%.

Table 5: HRTO Performance Measures

Table 5: HRTO Performance Measures

Hearings and Mediation	Target	2021-2022 % of time standard is met	2020-2021 % of time standard is met	2019-2020 % of time standard is met	2018-2019 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	80%	29%	26%	27%	62%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	80%	0%*	11%	7%	35%
Decisions for hearings which take 3 days or less will be issued within 90 days	80%	43%	42%	76%	76%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	80%	60%	27%	50%	29%

Note:

*The HRTO has been engaged in COVID recovery efforts, including rescheduling the many events that were cancelled at the start of the pandemic. Rescheduled events moved scheduling timelines beyond targets for 2021/22. Timelines are expected to improve significantly once the HRTO has completed its full recovery from the pandemic.

[Return to Top](#)

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

In July 2020, the Ontario Legislature made a number of amendments to the RTA and one of its regulations. Most amendments took effect in 2020 and the remainder on September 1, 2021. A new application type allows landlords to apply to the LTB to claim compensation for unpaid rent, unpaid utilities, or damages to the rental unit for up to one year after the tenant has moved out. This and other amendments required changes to the LTB's rules and procedures, including creating new or amending existing LTB forms, brochures, practice directions and interpretation guidelines.

Operational Highlights

The LTB implemented several initiatives in 2021-2022 to continue to address backlogs and ensure timely and responsive service.

A key component to support these initiatives was the hiring of additional LTB staff to assist with application processing, scheduling and issuing of Notices of Hearings and orders.

The LTB continued its focus on building up its adjudicator complement with the onboarding of 16 additional adjudicators to assist with hearing backlogs. As of March 31, 2022, there were 39 full-time adjudicators and 51 part-time adjudicators making it the highest number of adjudicators ever appointed to the LTB.

In May 2021, the LTB implemented a scheduling plan that prioritized mediation services, which allowed for more matters to be scheduled and heard. It included same day access to mediation services with a Dispute Resolution Officer (DRO) before moving forward to a hearing with an adjudicator. The plan also included conducting multiple tenant case management hearings in one hearing block with several DROs and resuming a two DRO team approach to Above Guideline Increase case management hearings.

Although COVID-19 related challenges have had a significant impact on LTB's caseload, and in particular the five-month moratorium on evictions from March to August 2020, progress is being made. In 2021-2022, the LTB achieved a steady state of operations receiving 61,586 applications and resolving 61,868 files.

The LTB is committed to ongoing engagement with stakeholders to solicit feedback and input and has continued to meet regularly with stakeholders on changes to rules and processes, in accordance with the Tribunals Ontario Consultation Policy.

Statistics

Table 1: LTB Applications

Table 1: LTB Applications

Application	2021-2022	2020-2021	2019-2020
Applications Received*	61,586	48,422	80,874
Applications Resolved**	61,868	35,983	72,064
Active Cases at Year-End***	32,800	34,731	22,803

Notes:

* The totals do not include non-profit co-operative housing eviction applications.

** In 2021-2022, the majority of applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review) – 48%, through mediation (mediated or ordered by hearing mediated) – 11% and through withdrawals – 20%.

*** In a small number of cases, “resolved” applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2021-2022	2020-2021	2019-2020	2018-2019
A1	Determine whether the act applies	115	96	102	126
A2	Sublet or assignment	376	383	491	378
A3	Combined application (usually includes an L1)	1,385	1,065	2,986	3,362
A4	Vary rent reduction amount	55	109	86	173
L1	Terminate & evict for non-payment of rent	31,130	24,481	44,621	46,043
L2	Terminate for other reasons and evict	13,852	11,031	15,732	13,945
L3	Termination – tenant gave notice or agreed	2,289	1,391	1,877	1,711
L4	Terminate the tenancy – failed settlement	3,545	1,551	5,156	5,571

L5	Rent increase above the guideline	613	404	758	717
L6	Review of provincial work order	0	1	1	4
L7	Transfer tenant to care home	3	6	1	5
L8	Tenant changed locks	35	25	41	39
L9	Application to collect rent	931	1,104	900	1,394
L10	Application to collect money a former tenant owes	7	N/A	N/A	N/A
Total		54,336	41,647	72,752	73,738

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2021-2022	2020-2021	2019-2020	2018-2019
A1	Determine whether the act applies	80	64	85	116
A2	Sublet or assignment	59	74	62	66
A3	Combined application	870	583	1,610	1,780
A4	Vary rent reduction amount	1	1	0	1
T1	Rent rebate (e.g., illegal rent)	843	718	884	863
T2	Tenant rights	2,984	3,145	3,072	3,053
T3	Rent reduction	99	68	78	148
T4	Failed rent increase above guideline	8	4	4	1
T5	Bad faith notice of termination	550	316	408	355
T6	Maintenance	1,752	1,795	1,914	1,970
T7	Suite meters	4	7	5	4
Total		7,250	6,775	8,122	8,357

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2021-2022	2020-2021	2019-2020	2018-2019
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	124	88	217	251
C1/2	Combined C1 and C2 applications	61	32	116	118
C2	Application to end the occupancy of the member unit and evict the member	67	73	141	107

C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	3	3	6
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	45	22	91	81
Total		300	218	568	563

Table 5: Call Centre

Table 5: Call Centre

Calls	2021-2022	2020-2021	2019-2020	2018-2019
Calls handled	164,521	197,927	201,871	242,892
Average time per call	5:00	5:03	4:37	4:48
Average wait time in the queue	22:46	15:57	17:36	15:18

Table 6: LTB Performance Measures

Table 6: LTB Performance Measures

Performance Measure	Target	2021-2022*	2020-2021**	2019-2020
L1 and L9 applications will be scheduled for a hearing within 25 business days	80%	0.2% (74.4 days)	1% (131.7 days)	15% (45.6 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	80%	7.9% (21.5 days)	21% (22.4 days)	58% (5.8 days)
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	80%	2.2% (103.1 days)	16% (108 days)	16% (52.7 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	80%	40% (37.7 days)	60% (28.8 days)	71% (11.7 days)

Notes:

*The LTB made a number of changes to address delays including establishing a process for an expedited hearing, updating a scheduling plan and actively engaging in the recruitment of adjudicators to assist with the caseload volume.

**LTB suspended most hearings related to eviction applications during the early months of the COVID-19 pandemic resulting in delays in the scheduling of hearings. Further, COVID-19 halted in-person hearings resulting in a transition period until a videoconferencing model was established for proceedings.

Table 7: Requests for Reviews

Table 7: Requests for Reviews

Requests	2021-2022	2020-2021	2019-2020
Total number of requests for review	2,452	1,370	3,238
Denied requests for review	403	260	833

Requests for review sent to hearing	2,049	1,110	2,405
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[Return to Top](#)

Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis Licence Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act, 1990*
- *Funeral, Burial and Cremation Services Act, 2022*
- *Gaming Control Act, 1992*
- *Highway Traffic Act*
- *Horse Racing Licence Act, 2015*
- *Intercountry Adoption Act*
- *Licence Appeal Tribunal Act, 1999*
- *Liquor Licence and Control Act, 2019*
- *Motor Vehicle Accident Claims Act*
- *Motor Vehicle Dealers Act, 2002*
- *New Home Construction Licensing Act, 2017 (NHCLA)*
- *Ontario New Home Warranties Plan Act*
- *Payday Loans Act, 2008*
- *Post-secondary Education Choice and Excellence Act, 2000 O. Reg. 279/02*
- *Private Career Colleges Act, 2005*
- *Private Security and Investigative Services Act, 2005*
- *Real Estate and Business Brokers Act, 2002*
- *Retirement Homes Act, 2010*
- *Statutory Powers Procedure Act*
- *Ticket Sales Act, 2017*
- *Travel Industry Act, 2002*
- *Vintners Quality Alliance Act, 1999*

Operational Highlights

LAT continued to focus on digital-first initiatives that provided users with more convenient access to virtual hearings that remained in line with Tribunals Ontario's digital approach to providing dispute resolution services.

On January 31, 2022, LAT-GS launched a new online payment portal for users to pay for an appeal or application. The portal is a quick, convenient and secure way to pay filing fees online.

On March 21, 2022, LAT-AABS launched a canvassing-based scheduling model for all oral adjudicative events in response to stakeholder feedback and to create operational efficiencies. The expanded canvassing-based scheduling model gave parties the opportunity to select case conference and oral hearing dates that worked best for them. This also allowed all parties to participate in a process that is fair, transparent, convenient and timely.

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

In 2022-23, the LTB remained unrelenting in its mission to address its backlog and ensure timely, fair, and responsive service to all Ontarians.

The LTB had been experiencing significant and well-documented pressures before 2020, as a result of adjudicator shortages and an antiquated case management system; these were compounded by the COVID-19 pandemic. The five-month moratorium on eviction hearings from March to August 2020 resulted in approximately 25,000 cases being added to the LTB's caseload.

Over the past two and a half years, the LTB has fundamentally transformed itself from a regional-based organization that relies heavily on paper and in-person hearings to a provincial organization that conducts hearings virtually and with an application process that is now primarily digital and online. Though this transformational change has caused some disruption, we are confident it has led to a more efficient and effective operating model. Over the long term, it will be more convenient for our users and result in the timely resolution of disputes.

This last fiscal year, while the LTB received a higher volume of applications than each of the two years before, the number of matters resolved in 2022-2023 was lower. The increase of LTB applications can be attributed to a variety of factors as Ontario adjusts to a post-COVID world. Some matters that come before the LTB may be complex and require additional time or focus to ensure that resolutions are fair and just.

In early 2023, Tribunals Ontario completed implementation of LTB's new case management system and retired its legacy system, CMORE. While the transition to the new system was not without some challenges, the portal will streamline the dispute resolution process and provide various new functionality to users. It allows parties to file and pay for their LTB applications online, upload evidence directly into the system, view, and exchange documents with other parties, and view their application status including any orders that have been issued related to their case. The system also has features that allow the parties to communicate with each other to discuss opportunities for settlement or ask for assistance from an LTB Dispute Resolution Officer to help reach an agreement.

Throughout the fiscal year, numerous enhancements and improvements were applied to the portal as part of the LTB's goal to have an integrated end-to-end digital user experience. They include:

- Requests for Mediated Services – this new feature was introduced to give parties the ability to request timely support in settling their matters prior to a hearing
- Self-Scheduling Tool – in March 2023, the self-scheduling tool was implemented allowing eligible applicants and/or their representatives to choose their preferred hearing date and timeslot for their hearing through the portal
- Available Applications – throughout the fiscal year, the LTB began increasing the number of applications that may be filed online. As of March 31, 2023, there were a total of 12 different applications available for users

Ongoing updates and enhancements to the portal features, functionality and processes based on feedback received from users and stakeholders will continue to be made. We expect that the convenience and efficiencies offered by the new portal will help us make significant inroads into the backlog in the coming year.

Another key priority for the LTB over the past fiscal year has been adjudicator and staff recruitment. In April

2022, the government announced \$4.5 million in funding over three years for an additional three adjudicators and ten staff. This was followed by an investment of 35 additional staff in late 2022 and in the spring 2023 an additional 40 adjudicator FTEs along with 5 staff FTEs. These investments will provide welcome assistance so that we can provide faster results, shorter wait times, and a better overall experience when users need to engage the board. As of March 31, 2023, the adjudicative roster comprised 39 full-time and 46 part-time members.

Other ways in which the LTB is continuing to look for opportunities and solutions to address service delays include:

- Ongoing review of business processes, including Lean and Ombudsman recommendations, with a view to streamlining procedures
- Optimizing hearing block sizes, in particular for L1/L9s, to best utilize adjudicative resources
- Holding training sessions for adjudicators on streamlined order writing, hearing room management and file preparation to improve member efficiency
- Maximizing operational and adjudicative efficiency through progressive development and deployment of features and documents in the portal
- Launching technical support service to troubleshoot parties' Zoom issues during hearings (leading to more efficient use of hearing time)
- Rolling out Orders from the Bench initiative, a new process whereby adjudicators issue simple, straightforward Orders by email to parties during their hearing
- Launching evening and weekend hearings primarily for adjourned matters and with the consent from all parties

In 2022-2023, the LTB also continued in its commitment to support users by reviewing and updating several online resources. Among them include updated brochures for renters in Ontario with key information for both landlords and tenants, the introduction of a new credit card payment form so applicants' personal information is secure, and consistent operational updates to the LTB's webpage, so users are kept up to date on what is happening at the LTB.

Throughout the fiscal year, the LTB continued to engage stakeholders with regular communications related to the portal, improving the user experience and functionality of the system, including streamlining processes and the implementation of those processes.

In September 2022, the LTB led educational and information sessions for portal users to walk through some features of the portal and address common questions.

During the fiscal year, the LTB conducted seven in person-hearing events.

Statistics

Table 1: LTB Applications

Table 1: <u>LTB</u> Applications			
Application	2022-2023	2021-2022	2020-2021
Applications Received	73,208*	61,586**	48,422**
Applications Resolved***	52,986	61,868	35,983
Active Cases at Year-End****	53,057	32,800	34,731

Notes:

* The totals include non-profit co-operative housing eviction applications filed in LTB's new case management system.

** The totals do not include non-profit co-operative housing eviction applications.

*** In 2022-2023, 47% of the applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), 6% through mediation (mediated or ordered by hearing mediated), and 29% through withdrawals.

****In a small number of cases, "resolved" applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received," less the "applications resolved."

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2022-2023	2021-2022	2020-2021	2019-2020
A1	Determine whether the act applies	138	115	96	102
A2	Sublet or assignment	532	376	383	491
A3	Combined application (usually includes an L1)	2,447	1,321	1,065	2,986
A4	Vary rent reduction amount	7	55	109	86
L1	Terminate & evict for non-payment of rent	37,690	31,240	24,481	44,621
L2	Terminate for other reasons and evict	15,354	13,852	11,031	15,732
L3	Termination – tenant gave notice or agreed	2,656	2,289	1,391	1,877
L4	Terminate the tenancy – failed settlement	3,366	3,545	1,551	5,156
L5	Rent increase above the guideline	605	613	404	758
L6	Review of provincial work order	0	0	1	1
L7	Transfer tenant to care home	2	2	6	1
L8	Tenant changed locks	46	35	25	41
L9	Application to collect rent	615	931	1,104	900
L10	Application to collect money a former tenant owes	992	3	N/A	N/A

Total	64,450	54,459	41,647	72,752
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Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2022-2023	2021-2022	2020-2021	2019-2020
A1	Determine whether the act applies	114	80	64	85
A2	Sublet or assignment	72	59	74	62
A3	Combined application	1,372	860	583	1,610
A4	Vary rent reduction amount	0	1	1	0
T1	Rent rebate (e.g., illegal rent)	1,105	843	718	884
T2	Tenant rights	2,874	2,991	3,145	3,072
T3	Rent reduction	116	99	68	78
T4	Failed rent increase above guideline	25	8	4	4
T5	Bad faith notice of termination	1,067	550	316	408
T6	Maintenance	1,697	1,751	1,795	1,914
T7	Suite meters	13	4	7	5
Total		8,455	7,246	6,775	8,122

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2022-2023	2021-2022	2020-2021	2019-2020
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	230	124	88	217
C1/2	Combined C1 and C2 applications	98	61	32	116

C2	Application to end the occupancy of the member unit and evict the member	131	67	73	141
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	1	3	3	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	41	45	22	91
Total		501	300	218	568

Table 5: Call Centre

Table 5: Call Centre

Calls	2022-2023	2021-2022	2020-2021	2019-2020
Calls handled	122,933	164,521	197,927	201,871
Average time per call	5:13	5:00	5:03	4:37
Average wait time in the queue	36:33	22:46	15:57	17:36

Table 6: LTB Key Performance IndicatorsTable 6: LTB Key Performance Indicators

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 22-23 Total	
	2022-2023	#	%	#	%	#	%	#	%	#	%
Volume of in-person, electronic and written hearing events held at the <u>LTB</u>	N/A										
In-Person Hearing Events		0	N/A	3	N/A	3	N/A	1	N/A	7	N/A

Electronic Hearing Events		5,982	N/A	12,164	N/A	7,206	N/A	17,898	N/A	43,250	N/A
Written Hearing Events		160	N/A	76	N/A	24	N/A	23	N/A	283	N/A
Number of eligible accommodation requests granted (in whole or in-part) by the <u>LTB</u>	N/A	146	N/A	116	N/A	79	N/A	116	N/A	457	N/A
Percentage of hearings scheduled within 50 calendar days for L1 and L9 applications and 55 calendar days for all other applications except for L5's and A4's from the application receipt date	80%	272	14%	218	5%	315	6%	579	3%	1,384	7%
Decisions issued 20 calendar days for L1 and L9 applications and 35 calendar days for all applications except for L5's and A4's from the conclusion of the final hearing event	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for the <u>LTB</u>	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

Percentage of cases that are resolved through alternative dispute resolution (in whole or in-part) within the LTB

N/A TBD TBD TBD TBD TBD TBD TBD TBD TBD TBD

Notes:

*Over the course of the past year, the LTB has been operating out of two case management systems, as it transitioned from its legacy system (CMORE) to the new Tribunals Ontario Portal. As a result, the LTB is unable to report on certain KPIs for the past fiscal year.

**L1: Application to evict a tenant for non-payment of rent and to collect rent the tenant owes.

***L9: Application to Collect Rent the Tenant Owes.

****L5: Application for an Above Guideline Increase.

*****A4: Application to Vary the Amount of a Rent Reduction.

[Return to Top](#)

Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis Licence Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act, 1990*
- *Funeral, Burial and Cremation Services Act, 2022*
- *Gaming Control Act, 1992*
- *Highway Traffic Act, 1990*
 - Subclause 32(5)(b)(i) - Medical (MED)
 - Subsection 47(1) – Medical (MED) and Commercial Vehicle Operator's Registration (CVOR)

resolution (in
whole or in-part)
within the HRTO

Notes:

- N/A – Not applicable
- *The HRTO is unable to report on the percentage of hearings scheduled KPI for Q1 and Q2 of this fiscal year due to data limitations with their case management system. Temporary measures in the case management system were established to gather Q3 and Q4 data however, additional solutions are being examined to ensure this KPI can be reported on consistently in the future.
- **The HRTO is unable to report on the percentage of mediations scheduled KPI for Q2, Q3 and Q4 fiscal year 2023-2024 due to data limitations with their case management system. Solutions are being examined to ensure this KPI can be reported on in the future.

[Return to Top](#)

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

Over the past year, the LTB continued to prioritize initiatives to address ongoing service delays and to reduce and ultimately eliminate its backlog. A comprehensive strategy that included recruiting new adjudicators and staff, the introduction of new technology (Tribunals Ontario Portal) and an enhanced scheduling strategy helped the LTB reduce application processing times and resolve 45% more cases in calendar 2023, compared to the previous year. This would have resulted in a substantial reduction in the backlog, had it not been for the 31% increase in the number of applications received by the LTB in calendar 2023, to approximately 84,000 applications. This is the second-highest number of applications that the LTB has received in a year since its creation. In addition, the LTB is seeing an increased proportion of more complex applications that require more time to hear.

The LTB held considerably more hearings in calendar 2023 than in 2022. In 2022, the LTB held just over 49,000 hearings. In 2023, the LTB held over 70,000 hearings, a 40% increase. The LTB is projecting to schedule over 100,000 hearings in calendar 2024, which will be the highest number of hearings ever scheduled at the LTB.

As of July 31, 2024, the LTB had successfully reduced its active caseload to 46,632 applications, a reduction of 12% since March 31, 2024. The timelines to hearing also significantly improved across all application types, including for L1/L9 applications (which represent over half of the LTB's total intake). By July 31, these matters were being heard within approximately 90 days on average. This is an improvement from early 2023 when it took around, on average, eight to ten months to get to a hearing.

Some of the major initiatives undertaken by the LTB in the last year to modernize its operations and improve service include:

Onboarding and Training New Adjudicators: Member and staff recruitment remained a top priority at the LTB to assist in reducing the backlog. As of March 31, 2024, the adjudicative roster comprised 75 full-time and 59 part-time adjudicators, with a new competition launched March 25, 2024 to further augment adjudicative ranks. A quality onboarding program was developed to ensure that adjudicators are hearing room-ready within a minimal amount of time and the scheduling strategy aligned with new member readiness to conduct hearings.

Tribunals Ontario Portal: Over the past year, Tribunals Ontario has been working on enhancing the case management system to improve its efficiency and usability. Ongoing updates and enhancements continued to be made to the Tribunals Ontario Portal features, functionality and processes based on feedback received from users and stakeholders. Some of these included:

- Consent box enhancements that allow users to update or correct their email address and provide informed consent to receiving email notifications from the [LTB](#)
- High-priority and frequently used order templates were added to the portal that accelerated the order drafting process and provided consistent format, language, and calculations in all orders
- An L2 application validation process to capture potentially fatal flaws prior to an application being submitted. This expedites the proceedings, reduces error-related delays, refunds, re-filing by clients, adjournments, and ultimately dismissals of applications

Technical Support Service: In April 2023, the [LTB](#) launched a dedicated technical support service to help hearing participants troubleshoot any technical issues they may face while joining their hearing on Zoom. Moderators will help these individuals join their hearing, thereby avoiding adjournments due to technical issues.

Partnership with Ontario Shared Services (OSS): In 2023, the [LTB](#) outsourced mail-outs of application acknowledgement packages to [OSS](#). This allows [LTB](#) to deliver information to parties about the application process more quickly and frees up staff time to mail out Notices of Hearing further in advance of the hearing.

New Call Centre technology: In late 2023, Tribunals Ontario introduced new call centre technology at the [LTB](#) to improve the customer service experience and service delivery. Some of the new client-focused features include caller wait time announcements and a call-back option where a caller can choose to leave their phone number and receive a return call while maintaining their spot in the queue.

Mediation blocks: The [LTB](#) implemented new Dispute Resolution Officer (DRO) assigned blocks, based on the need for mediated services. This flexible scheduling strategy allows for a pool of [DROs](#) to be assigned to tenant and L2 Case Management Hearing blocks while maintaining regular service standards for mediation services.

New consolidated email: On July 10, 2023, the [LTB](#) consolidated eight regional office email inboxes into one central email (LTB@ontario.ca). This allows for timelier triage and action of client inquires, escalations of urgent matters, consistent messaging, and improved customer service.

ServiceOntario: [LTB](#) continues to work with ServiceOntario to expand the number of locations throughout the province where users can file [LTB](#) applications and documents in person. An additional 14 sites are expected to begin accepting [LTB](#) applications and documents in the near future, bringing the total to 80 locations.

Throughout 2023-2024, the [LTB](#) continued to engage stakeholders with regular communications related to the Tribunals Ontario Portal, with the goal being to improve user experience and functionality. The [LTB](#) met with several stakeholders in 2023 including the Landlord Self-Help Centre, York Region Homelessness Prevention Program, Federation of Metro Tenants' Associations, Clinic Housing Issues Committee, and the Advocacy Centre for Tenants Ontario, among others.

Additionally, the [LTB](#) held a town hall meeting for all stakeholders in December 2023, where the Tribunals Ontario and [LTB](#) leadership teams provided an update on the major [LTB](#) initiatives and on what's being done to eliminate the backlog. They also addressed questions from stakeholders.

Statistics

Table 1: [LTB](#) Applications

Table 1: LTB Applications			
Application	2023-2024	2022-2023	2021-2022
Applications Received*	82,285	73,406**	61,705***

Applications Resolved****	88,307	52,986	61,868
Active Cases at Year-End***	53,030*****	53,057	32,800

Notes:

- *The totals for 2023-2024 and 2022-2023 include non-profit co-operative housing eviction applications filed in LTB's new case management system.
- **In the 2022-2023 Annual Report, LTB showed a figure of 73,208 total applications received. LTB has since verified the total to be 73,406.
- *** In the 2021-2022 Annual Report, the LTB showed a figure of 61,586 total applications received. That figure has been corrected due to an adding error. 61,705 is the correct total.
- ****In 2023-2024, 50% of the applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), 6% through mediation (mediated or ordered by hearing mediated), and 19% through withdrawals.
- *****In a small number of cases, "resolved" applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received," less the "applications resolved."
- *****As of July 31, 2024, the LTB had successfully reduced its active caseload to 46,632 applications, a reduction of 12% since March 31, 2024.

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2023-2024	2022-2023	2021-2022	2020-2021
A1	Determine whether the act applies	134	138	115	96
A2	Sublet or assignment	639	532	376	383
A3	Combined application (usually includes an L1)	2,044	2,447	1,321	1,065
A4	Vary rent reduction amount	15	7	55	109
L1	Terminate & evict for non-payment of rent	41,386	37,690	31,240	24,481
L2	Terminate for other reasons and evict	16,677	15,354	13,937	11,031
L3	Termination – tenant gave notice or agreed	2,936	2,656	2,289	1,391
L4	Terminate the tenancy – failed settlement	5,535	3,366	3,545	1,551
L5	Rent increase above the guideline	912	605	613	404
L6	Review of provincial work order	0	0	0	1

L7	Transfer tenant to care home	3	2	2	6
L8	Tenant changed locks	52	46	35	25
L9	Application to collect rent	858	615	931	1,104
L10	Application to collect money a former tenant owes	1,261	992	3	N/A
Total		72,452	64,450	54,459	41,647

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2023-2024	2022-2023	2021-2022	2020-2021
A1	Determine whether the act applies	131	114	80	64
A2	Sublet or assignment	108	72	59	74
A3	Combined application	1,594	1,372	860	583
A4	Vary rent reduction amount	0	0	1	1
T1	Rent rebate (e.g., illegal rent)	1,359	1,105	843	718
T2	Tenant rights	3,184	2,874	2,991	3,145
T3	Rent reduction	110	116	99	68
T4	Failed rent increase above guideline	16	25	8	4
T5	Bad faith notice of termination	1,113	1,067	550	316
T6	Maintenance	1,790	1,697	1,751	1,795
T7	Suite meters	15	13	4	7
Total		9,420	8,455	7,246	6,775

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2023-2024	2022-2023	2021-2022	2020-2021
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C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	202	230	124	88
C1/2	Combined C1 and C2 applications	96	98	61	32
C2	Application to end the occupancy of the member unit and evict the member	94	131	67	73
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	1	3	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	18	41	45	22
Total		413	501	300	218

Table 5: Call Centre

Table 5: Call Centre

Calls	2023-2024	2022-2023	2021-2022	2020-2021
Calls handled	157,561	122,933	164,521	197,927
Average time per call	5:18	5:13	5:00	5:03
Average wait time in the queue	27:48	36:33	22:46	15:57

Table 6: LTB Key Performance IndicatorsTable 6: LTB Key Performance Indicators

Landlord and Tenant Board Key Performance Indicators	Target	Q1	Q2	Q3	Q4	FY 2023-2024 Total

	2023-2024	#	%	#	%	#	%	#	%	#	%
Volume of in-person, electronic and written hearing events held at the <u>LTB</u>	N/A										
In-Person Hearing Events		7	N/A	4	N/A	4	N/A	10	N/A	25	N/A
Electronic Hearing Events		19,155	N/A	17,544	N/A	17,192	N/A	20,207	N/A	74,098	N/A
Written Hearing Events		5	N/A	2	N/A	3	N/A	4	N/A	14	N/A
Number of eligible accommodation requests granted (in whole or in-part) by the <u>LTB</u>	N/A	116	N/A	160	N/A	194	N/A	220	N/A	690	N/A
Percentage of hearings scheduled within 50 calendar days for L1** and L9*** applications and 55 calendar days for all other applications except for L5s**** and A4s***** from the application receipt date	80%	13,960	65%	10,946	73%	11,258	81%	14,650	76%	50,814	74%
Decisions issued 20 calendar days for L1 and L9 applications and 35 calendar days for all applications except for L5's and A4's from the conclusion	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

of the final hearing event												
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for the <u>LTB</u>	80%	17,941	35%	18,246	34%	17,851	32%	18,804	35%	18,804	35%	
Percentage of cases that are resolved through alternative dispute resolution (in whole or in-part) within the <u>LTB</u>	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	

Notes:

- *LTB has fully transitioned to the new Tribunals Ontario Portal case management system and is in the process of developing the necessary reports to be able to compile this data.
- N/A – Not applicable
- The definitions for each type of application referenced above are as follows:
 - **L1: Application to evict a tenant for non-payment of rent and to collect rent the tenant owes
 - ***L9: Application to Collect Rent the Tenant Owes.
 - ****L5: Application for an Above Guideline Increase.
 - *****A4: Application to Vary the Amount of a Rent Reduction.

[Return to Top](#)

Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act, 1990*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis License Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act, 1990*
- *Compulsory Automobile Insurance Act*

Human Rights Tribunal of Ontario Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 2024-2025 Total	
	2024-2025	#	%	#	%	#	%	#	%	#	%
resolved through alternative dispute resolution (in whole or in-part) within the <u>HRTO</u>											

Notes:

- The HRTO is unable to report on the percentage of mediations scheduled KPI for Q1, Q2, Q3, and Q4 2024-2025 due to data limitations with their case management system. Solutions are being examined to ensure this KPI can be reported on in the future.
- For the HRTO, the volume of hearing events KPI includes both hearings and mediations.
- For the HRTO, the decisions issued KPI only includes final decisions.

[Return to Top](#)

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

During the past fiscal year, the LTB prioritized initiatives aimed at improving service timelines to reduce and ultimately eliminate its backlog. A strong emphasis on scheduling and modernizing processes helped the LTB resolve approximately 106,000 cases in calendar year 2024, the highest number of resolutions in the LTB's history. This represents a 28% increase from the 83,000 cases resolved in calendar 2023, which was already a 45% increase from the 57,000 cases resolved in 2022. As of March 31, 2025, the LTB had already resolved over 32,000 cases in calendar year 2025.

In 2024, the LTB scheduled approximately 109,000 hearings – the highest number of hearings ever scheduled at the LTB in one year. For comparison, approximately 49,000 hearings were scheduled in 2022, and approximately 76,000 in 2023. As of March 31, 2025, approximately 58,000 hearings have been scheduled for the current calendar year.

These efforts countered a considerable increase in the LTB's application intake that continued throughout the fiscal year. In 2024, the LTB received approximately 87,600 new applications, the highest number of applications that the LTB has received in a calendar year since its creation. As of March 31, 2025, the LTB has continued to receive an average of over 7,000 new applications each month. In addition, the LTB continued to see an increased proportion of more complex applications that require more time to hear, as well as an increased number of requests for review.

As of March 31, 2025, the LTB had successfully reduced its active caseload to 41,465, representing a 26% reduction since the peak in December 2023². The LTB has also sustained significant improvements in service timelines across all application types. In particular, L1 and L9 applications, which comprise over half of the LTB's

total applications, continue to be scheduled for a hearing within the target of approximately 90 days on average.

The LTB undertook several initiatives in the last fiscal year to streamline its operations and improve services, including:

Onboarding and Training New Staff and Adjudicators: To support backlog reduction, the LTB continued to prioritize adjudicator and staff recruitment. As of March 31, 2025, the LTB had 81 full-time and 52 part-time adjudicators. Over the past fiscal year, the LTB significantly increased the number of Dispute Resolution Officers. To support growth and development, the LTB also provided its staff with training sessions on the RTA and conflicts of interest.

Tribunals Ontario Portal: Over the past fiscal year, Tribunals Ontario continued to work on ongoing updates and enhancements to the LTB's case management system, the Tribunals Ontario Portal, based on user and stakeholder feedback. Key updates included enhancements to the Online Dispute Resolution tool, new functionalities to improve online filing, and changes that support staff efficiency with case management.

Form updates: In January 2025, the LTB split the Request to Extend and Shorten Time into two separate forms. This update supports the LTB's ongoing initiative to ensure its forms are accessible, easy to use, and aligned with user needs.

Filing process enhancements: The LTB launched an administrative project aimed at improving the process for parties when filing evidence for their hearings. To further streamline the filing process, the LTB also launched a new Practice Direction requiring legal licensees to use the LTB's case management system to access and submit various items.

ServiceOntario: The LTB continued to collaborate with ServiceOntario to establish service standards between both organizations. The LTB also onboarded an additional 14 ServiceOntario offices to begin accepting LTB applications, bringing the total to 80 locations.

Over the past fiscal year, the LTB continued to engage stakeholders with regular communications, including requests for feedback on improvements to the Tribunals Ontario Portal and other process enhancements. The LTB held virtual meetings with the public and several stakeholders, including the Retirement Homes Regulatory Authority and the Advocacy Centre for Tenants Ontario, among others.

In December 2024, the LTB held a town hall meeting for all stakeholders, with 276 attendees. The Tribunals Ontario and LTB leadership teams provided updates on the LTB's backlog reduction strategies and progress, and key initiatives, and addressed stakeholder questions.

² As of September 23, 2025, the LTB had successfully reduced its active caseload to 36,689 applications, a 11.5% reduction since March 31, 2025.

Statistics

Table 1: LTB Applications

Table 1: LTB Applications

Application	2024-2025	2023-2024	2022-2023	2021-2022
Applications Received	87,993	82,285	73,406*	61,705**
Applications Resolved***	108,146	88,307	52,986	61,868
Active Cases at Year-End****	41,465*****	53,030	53,057	32,800

Notes:

* The totals include non-profit co-operative housing eviction applications filed in the LTB's new case

management system.

** The totals do not include non-profit co-operative housing eviction applications.

*** In 2024-2025, 65% of the applications were resolved at the hearing (ordered by hearing contested or uncontested, or ordered by review, plus five additional hearing outcome types), 10% through mediation (mediated or ordered by hearing mediated, and consent Order by DRO), and 15% through withdrawals (withdrawn and cancelled by coordinator).

**** In a small number of cases, “resolved” applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

***** As of September 23, 2025, the LTB had successfully reduced its active caseload to 36,689 applications, a 11.5% reduction since March 31, 2025.

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2024-2025	2023-2024	2022-2023	2021-2022
A1	Determine whether the act applies	140	134	138	115
A2	Sublet or assignment	733	639	532	376
A3	Combined application (usually includes an L1)	1,886	2,044	2,447	1,321
A4	Vary rent reduction amount	14	15	7	55
L1	Terminate & evict for non-payment of rent	45,435	41,386	37,690	31,240
L2	Terminate for other reasons and evict	15,838	16,677	15,354	13,937
L3	Termination – tenant gave notice or agreed	2,648	2,936	2,656	2,289
L4	Terminate the tenancy – failed settlement	6,613	5,535	3,366	3,545
L5	Rent increase above the guideline	1,028	912	605	613
L6	Review of provincial work order	0	0	0	0
L7	Transfer tenant to care home	4	3	2	2
L8	Tenant changed locks	43	52	46	35

L9	Application to collect rent	900	858	615	931
L10	Application to collect money a former tenant owes	1,757	1,261	992	3
Total		77,039	72,452	64,450	54,459

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2024-2025	2023-2024	2022-2023	2021-2022
A1	Determine whether the act applies	116	131	114	80
A2	Sublet or assignment	107	108	72	59
A3	Combined application	1,841	1,594	1,372	860
A4	Vary rent reduction amount	0	0	0	1
T1	Rent rebate (e.g., illegal rent)	1,618	1,359	1,105	843
T2	Tenant rights	3,480	3,184	2,874	2,991
T3	Rent reduction	142	110	116	99
T4	Failed rent increase above guideline	29	16	25	8
T5	Bad faith notice of termination	941	1,113	1,067	550
T6	Maintenance	2,110	1,790	1,697	1,751
T7	Suite meters	13	15	13	4
Total		10,397	9,420	8,455	7,246

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2024-2025	2023-2024	2022-2023	2021-2022
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly	198	202	230	124

	housing charges and to collect the housing charges that the co-op member owes				
C1/2	Combined C1 and C2 applications	134	96	98	61
C2	Application to end the occupancy of the member unit and evict the member	102	94	131	67
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	5	3	1	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	118	18	41	45
Total		557	413	501	300

Table 5: Call Centre

Table 5: Call Centre

Calls	2024-2025	2023-2024	2022-2023	2021-2022
Calls handled	226,575	157,561	122,933	164,521
Average time per call	5:04	5:18	5:13	5:00
Average wait time in the queue	11:12	27:48	36:33	22:46

Table 6: LTB Key Performance IndicatorsTable 6: LTB Key Performance Indicators

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 2024-2025 Total	
	2024-2025	#	%	#	%	#	%	#	%	#	%
Volume of in-person, electronic and written hearing events held at the <u>LTB</u> in	N/A	23,880	N/A	22,610	N/A	20,117	N/A	22,887	N/A	89,494	N/A

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 2024-2025 Total	
	2024-2025	#	%	#	%	#	%	#	%	#	%
English											
In-Person Hearing Events in English	N/A	11	N/A	4	N/A	N/A	N/A	6	N/A	21	N/A
Electronic Hearing Events in English	N/A	23,866	N/A	22,606	N/A	20,083	N/A	22,879	N/A	89,434	N/A
Written Hearing Events in English	N/A	3	N/A	N/A	N/A	34	N/A	2	N/A	39	N/A
Volume of in- person, electronic and written hearing events held at the <u>LTB</u> in French / Bilingual	N/A	168	N/A	210	N/A	213	N/A	244	N/A	835	N/A
In-Person Hearing Events in French / Bilingual	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Electronic Hearing Events in French / Bilingual	N/A	168	N/A	210	N/A	213	N/A	244	N/A	835	N/A
Written Hearing Events in French / Bilingual	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Number of eligible accommodation requests granted (in whole or in- part) by the <u>LTB</u>	N/A	234	N/A	282	N/A	311	N/A	516	N/A	1,343	N/A
Percentage of hearings scheduled within 50	80%	15,568	72%	17,304	77%	17,052	82%	19,304	76%	69,228	77%

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 2024-2025 Total	
	2024-2025	#	%	#	%	#	%	#	%	#	%
calendar days for L1 and L9 applications and 55 calendar days for all other applications except for L5's and A4's from the application receipt date											
Decisions issued 20 calendar days for L1 and L9 applications and 35 calendar days for all applications except for L5's and A4's from the conclusion of the final hearing event	80%	TBD	TBD	TBD	TBD	TBD	TBD	10,183	82%	10,183	82%
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for English applications in the <u>LTB</u>	80%	17,756	37%	19,610	43%	19,021	43%	18,826	46%	18,826	46%
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for French / Bilingual applications in	80%	TBD	TBD	145	28%	145	29%	138	27%	138	27%

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 2024-2025 Total	
	2024-2025	#	%	#	%	#	%	#	%	#	%
the <u>LTB</u>											
Percentage of cases that are resolved through alternative dispute resolution (in whole or in-part) within the <u>LTB</u>	N/A	TBD	TBD	TBD	TBD	2,427	10%	2,789	10%	5,216	10%

Notes:

- As of Q4 of 2024-2025, the LTB has fully transitioned to the new Tribunals Ontario Portal case management system and is able to compile this data. Data prior to this transition is unavailable.
- The definitions for each type of application referenced above are as follows:
 - L1: Application to evict a tenant for non-payment of rent and to collect rent the tenant owes
 - L5: Application for an Above Guideline Increase
 - L9: Application to Collect Rent the Tenant Owes
 - A4: Application to Vary the Amount of a Rent Reduction

[Return to Top](#)

Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act, 1990*
- *Building Code Act, 1992*, and O. Reg. 332/12, Division C, Part 3; and O. Reg. 163/24
- *Cannabis License Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act, 1990*
- *Combative Sports Act, 2019*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act, 1990*
- *Discriminatory Business Practices Act, 1990*